UPSC CSE 2027 · GS Foundation

POLITY

Preamble · Sources · Union and territory · Citizenship · Fundamental Rights · DPSP · Duties · Amendment · Executive · Parliament · Judiciary · States · Federalism · Emergency · Elections

Handwritten revision notes

Built from the Sarrthi IAS GS Foundation Polity handouts (Parts 1 to 3) with Lakshmikanth tables and current affairs.
Bracket trees · diagrams · mnemonics · PYQ tags · current affairs
Right column and left binding margin are kept blank for your own use.

Personal study edition · for printing

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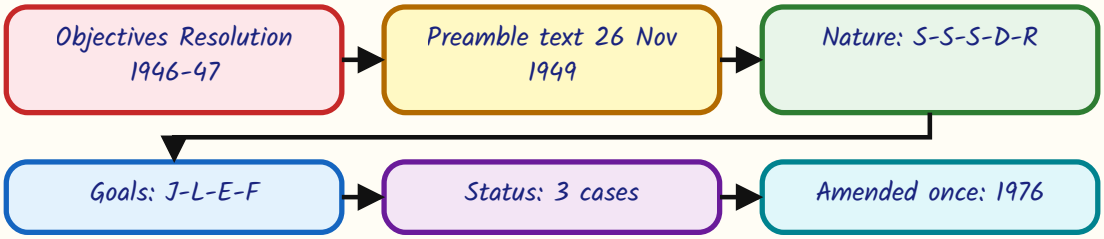
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PREAMBLE

PYQ Prelims 2020, 2017 (x2), 2013, 2011 · Mains 2016

✎ *The short introduction that says who made the Constitution, what India is (nature) and what it promises (goals); courts settled that it is part of the Constitution, non-justiciable, amendable once (1976) within the basic structure.*

At a glance: the route



THE EXACT TEXT

"WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens: JUSTICE, social, economic and political; LIBERTY of thought, expression, belief, faith and worship; EQUALITY of status and of opportunity; and to promote among them all FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation; IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION."

Prelims fact

→ the American Constitution was the first in the world to begin with a Preamble. "Preamble" = Latin praeambulum, "to walk before". Four ingredients: source of authority (the people)
→ nature of State
→ objectives
→ date of adoption (26 Nov 1949).

🏛️ CLASS · Preamble: history and the US model

1929
Lahore Congress: Purna Swaraj

1930
Purna Swaraj Day, 26 Jan

1930–47
26 Jan marked as Independence Day every year

26 Nov 1949
adopted and enacted

26 Jan 1950
commencement, Art 394

Teacher: a few provisions (citizenship, elections etc., needed because of partition) took effect on 26 Nov 1949 itself; the rest from 26 Jan 1950 (Art 394). The Preamble = identity card, introduction, soul. ⭐

Pre-1947 India	Rule
British India	governed directly by the British; provinces; Governors British
🗺️ Princely / Indian States	Indian rulers kept some rights under British overlordship

💡 US Preamble aims (class)

→ union
→ justice
→ tranquility
→ defence
→ welfare
→ liberty.

🎯 THREE VOICES (MAINS VALUE ADDITION)

Quotes

→ N.A. Palkhivala: "Identity card of the Constitution"
→ K.M. Munshi: "Horoscope of our sovereign democratic republic"
→ M. Hidayatullah: "soul of our Constitution"; a solemn resolve "which nothing but a revolution can alter"; resembles the US Declaration of Independence but is more than a declaration; lays down the pattern of our political society
→ Sir Ernest Barker: "key-note" of the Constitution

P-M-H — Quote memory: Palkhivala = Passport (identity card) · Munshi = Moon-chart (horoscope) · Hidayatullah = Heart (soul)

🔧 OBJECTIVES RESOLUTION

🔧 Objectives Resolution

→ drafted and moved by Nehru, 13 Dec 1946
→ adopted unanimously 22 Jan 1947
→ a modified version became the Preamble

Eight points

→ 1 Resolve: Independent Sovereign Republic; draw up a Constitution
→ 2 Union: British India + Indian States + willing territories
→ 3 Autonomous units: keep status; residuary powers except those vested in or implied for the Union
→ 4 People: all power derives from the people

5 Guarantees

→ Justice: social, economic, political
→ Equality of status, opportunity and before the law
→ Freedom of thought, expression, belief, faith, worship, vocation, association, action (subject to law and public morality)

→ 6 Safeguards: minorities, backward and tribal areas, depressed and other backward classes
→ 7 Integrity: territory and sovereign rights on land, sea, air (justice and law of civilized nations)
→ 8 World role: rightful place; world peace and welfare of mankind

🗺️ FIVE KEYWORDS: NATURE OF THE STATE

Keyword	Meaning	Hook
Sovereign	fully independent, internal and external	UN or Commonwealth membership does not limit it; can acquire or cede territory; strategic autonomy, NAM leadership
🧑‍🤝‍🧑 Socialist	reduce inequality; democratic socialism, mixed economy	42nd Am. (1976); Congress Avadi Resolution (1955); Marxist + Gandhian, leans Gandhian; MGNREGA, food security despite post-1991 reforms
📚 Secular	no official religion; Sarva Dharma Sambhava (positive secularism)	42nd Am. (1976), implicit already; State may reform religion (untouchability, temple entry); Arts 25-28
Democratic	popular sovereignty: universal adult suffrage, periodic elections	social and economic democracy too; substantive equality
🎯 Republic PYQ 2016	Head of State (President) elected, not hereditary	unlike UK monarchy; President elected indirectly by electoral college; political equality: any eligible citizen can hold highest office

S-S-S-D-R – Sovereign, Socialist, Secular, Democratic, Republic. "Sons Stand Defending Republic": Sovereign Sons Stand Defending Republic. Only the middle two S came in 1976.

Keep two lists apart: Nature = who rules and how (S-S-S-D-R). Objectives = what the State promises (J-L-E-F).

Related points

→ India was a British dominion 15 Aug 1947 to 26 Jan 1950; ceased by declaring itself a sovereign republic

→ Commonwealth (declared 1949) and UN (since 1945) do not limit sovereignty

→ Indian socialism = democratic socialism, mixed economy, not communistic (state) socialism that nationalises all means of production

→ SC 1974: framers wanted a secular State even before the word; States can be atheistic, theocratic or secular

→ Democracy: direct (Switzerland: referendum, initiative, recall, plebiscite) or indirect; India = representative parliamentary democracy

CLASS · Sovereign, Socialist, Secular, Democratic, Republic: extras

Why "Socialist" was not there in 1950: a Constitution is a political and legal document, not an ideology statement. Limits on sovereignty (teacher): global constitutionalism; American exceptionalism (idea of a unique nation).

Keyword	Class additions
Socialist	Art 18 abolished titles. Three marks: (1) no special privileges (2) special effort to make the unequal more equal (3) community interest over individual interest. Marxist ideals + Gandhian thought. Nakara v Union of India, 1983
Secular	(1) no State religion (2) no State discrimination on religion (3) every person may follow own faith, subject to limits
Democratic	not only political (1 man, 1 vote, 1 value) but economic and social democracy
Republic	(1) head of State (President) elected; head of government = PM (2) public offices open to all: political (minister), administrative (bureaucracy), on some conditions (3) power from the people

CLASS · Secularism: concept and comparison

Secularism

→ term coined by George Holyoake (British, 19th c.)

→ approach to manage religious, ethnic, linguistic diversity

3 components

→ State separate from religion (State–church separation)

→ each person follows own faith, subject to public order and rights of others

→ State does not discriminate on religion

Country	Why / how	Key facts
France (laicite)	protect people's rights from religion; State hostile or distant to religion	1789 Revolution was also against Church power (church courts, Inquisition, large church lands). Features: State hostility; State and common national identity first; freedom of religion but not in public place; negative attitude to religion. Bans hijab, head scarves, face covering. Charlie Hebdo attacked 2011, 2015, 2020 (Prophet cartoons)
USA	protect religion from State interference	1776 "all men are created equal by their creator"; 1st Amendment, 1791: Establishment + Free exercise clauses; Jefferson's "wall of separation". Roe v Wade 1973 legalised abortion; Dobbs v Jackson 2022 no right to abortion (a backward step)
India	protect one community from another	priestly class never held State power as in Europe; missionaries under British; secularism peaked after the horror of Partition; Gandhi and Nehru differed on religion

India: key features

→ no theocratic State (no State religion)

→ does not deny or oppose religion

State may interfere

→ facilitate and promote all religions equally, keeping principled distance

→ regulate non-religious practice
→ reform religion

📚 Why secularism (5)

→ individual freedom (J.S. Mill harm principle)
→ peace
→ modernity
→ democracy: equal participation
→ fairness: John Rawls, A Theory of Justice, veil of ignorance (design society not knowing your status, class, race, religion)

4 types of country	Example / note
🗺️ 1 State religion	
📚 2 supports a religion without declaring it official	India swings between 2 and 3
🗺️ 3 State neutral to religion	
🗺️ 4 State hostile to religion	France

PYQ frame: "Should we have a blasphemy law?" Teacher: No. Existing BNS already punishes religious outrage: Sec 196 (enmity on religion) and Secs 298–302 (see Ch 2). A secular State stays neutral; a separate blasphemy law adds nothing. ✅

📜 FOUR OBJECTIVES AND THEIR ARTICLES PYQ 2017 PYQ 2013 PYQ 2011

Objective	Scope	Articles
Justice	social (no caste, religion, gender bias; reservations), economic (wealth, income, property), political (universal adult suffrage)	Art 39 economic justice
🛡️ Liberty	opportunity for human potential; thought, expression, belief, faith, worship; not absolute (public order, morality, national security); RTI Act	Arts 19–22
🛡️ Equality	no special privileges; civic, political, economic	Civic 14–18; political 325–326; economic 39 (equal pay) and 43 (living wage)
Fraternity	dignity of individual; unity and integrity (added 1976)	Art 21 dignity; Art 51A women's dignity; Art 1 Union of States

🛡️ Political equality

→ Art 325: no exclusion from electoral rolls on religion, race, caste or sex
→ Art 326: Lok Sabha and Assembly elections on universal adult suffrage

SELF – Social, economic, political Justice · Equality · Liberty · Fraternity. The Preamble secures the dignity of the SELF (order rearranged).

J-L-E-F – Judges Let Everyone Flourish

Trap (Prelims 2013): economic justice is in the Preamble and DPSP; FR alone do not carry it. Prelims 2017: economic liberty is NOT in the Preamble; the Preamble reflects the mind of the makers.

🏛️ Origins of ideals

→ Justice (social + economic = distributive): Russian Revolution 1917
→ Liberty, Equality, Fraternity: French Revolution 1789–1799
→ Ambedkar, 25 Nov 1949: political democracy cannot last without social democracy; L-E-F must not be divorced

🛡️ CLASS · Liberty and fraternity: fine points

Class chain

Freedom (general idea) → Liberty (legally protected space) → Rights (entitlements)

Two liberties
- → Negative = freedom from interference
- → Positive = ability to act
- → limits: public order, morality, national security; no hate speech

Fraternity (2 senses): (1) mutual respect and harmony across backgrounds (2) cohesion in diversity, a collective Indian identity. Teacher: "Unity is territorial"; fraternity gives integrity. Equality = equalising opportunities, not only status. ⭐

⚡ SEVEN ROLES OF THE PREAMBLE

Role	One line
⚡ Source of authority	"We, the People": legitimacy from citizens
💡 Reflection of ideals	J-L-E-F: philosophy of framers
Introduction	concise preface
⚡ Interpretative role	not a source of power; read ambiguous provisions; Kesavananda 1973 basic structure
🗺️ Declares nature of State	S-S-S-D-R
💡 Reflection of objectives	guides policy; freedom struggle to Republic
National integration	fraternity beyond caste, religion, language, region

📌 **SRIIDRN** — Source, Reflection of ideals, Introduction, Interpretation, Declaration of nature, Reflection of objectives, National integration. "Some Rivers Irrigate Instead Deserts Remain Naked."

👥 IS IT PART OF THE CONSTITUTION? PYQ 2020

1960 — Berubari: NOT a part

1973 — Kesavananda Bharati: IS a part

1995 — LIC of India: integral part

⚖️ Three cases

Berubari 1960
- → not a part; guiding light only
- → no independent force; no power or rights
- → Presidential reference under Art 143; "key to the minds of the makers"

Kesavananda 1973
- → is a part; read in light of ideals
- → gave basic structure doctrine

LIC 1995
- → reaffirmed: integral part
- → no independent rights; guides interpretation

📌 **B-K-L** — Berubari = No → Kesavananda = Yes → LIC = Yes again. "Bad Kind Law". Also Barred, Kept, Locked.

Important takeaway (Prelims 2020): neither a source of power to the legislature nor a prohibition on its powers; non-justiciable. Constituent Assembly adopted it after the rest; Dr Rajendra Prasad put "that the Preamble stands part of the Constitution" to vote. ⭐

⚠️ Five limitations
- → cannot override explicit articles

→ not enforceable (FR are)
→ cannot confer rights or duties
→ ambiguous scope (justice, liberty undefined)
→ not self-executory: needs FR, DPSP, policy

ADORN — Ambiguity · Dependent on operative provisions · Override (cannot) · Rights and duties (cannot confer) · Not enforceable. It ADORNS but cannot be enforced (Berubari: ornamental).

O-E-R-A-D — Handout hook: Override, Enforce, Rights, Ambiguous, Depends. "Only Even Rich Aunts Donate."

CAN IT BE AMENDED?

1960
Berubari: not a part, so not amendable

1973
Kesavananda: amendable under Art 368, if basic structure respected

1976
42nd Am. adds Socialist, Secular, Integrity

Later
SC upheld the amendment

S-S-I — Socialist, Secular, Integrity: "two S and an I, once, in 1976". Seventy-six Stamped In. Amended only once.

REMOVAL DEBATE: "SOCIALIST", "SECULAR"

For removal
→ Emergency-era insertion (1976), not in 1950 Preamble
→ post-1991 rigid socialism may constrain reform
→ ideological neutrality of State

Against removal
→ identity: welfare, plural, inclusive
→ basic structure: Minerva Mills (1980), SR Bommai (1994)
→ protects minorities from majoritarianism
→ Palkhivala's "identity card": coherence

Way forward (5)

Balance
→ retain inclusive principles, allow liberalisation
→ dialogue: Parliament, States, civil society, judiciary
→ judicial safeguards: keep both as essential features

Practice over semantics
→ enforce secularism and welfare in practice
→ PM's 5S: Samman, Samvad, Sahyog, Shanti, Samriddhi

Mains frame (2016): take each adjective of the Republic (Sovereign, Socialist, Secular, Democratic, Republic), meaning + Article + 1976 change, then defend with basic structure. Closing: Preamble is the soul and compass; it guides interpretation, cannot override an article. ✅

1946 Dec 13 Objectives Resolution moved

1947 Jan 22 adopted

1949 Nov 26 Constitution adopted

1955 Avadi

1960 Berubari

1973 Kesavananda

1976 42nd Am.

1980 Minerva Mills

1994 SR Bommai

1995 LIC

⚖️ CLASS · Balram Singh case (2024)

🗺️ Balram Singh v Union of India, 2024

→ 42nd Am. 1976 added Socialist, Secular, Integrity

📬 Petitioners

→ addition politically motivated

→ socialism limits economic freedom (yet liberalisation and capitalism went on)

→ State should be ideologically neutral (India already secular)

→ Class: words treated as present from the beginning; writ petitions dismissed

📌 Preamble interpretation rule (teacher): an Article with two readings: choose by the Preamble; with one reading: Preamble cannot override it.

Recall drill: cover and answer

Is the Preamble justiciable? (Prelims 2020)	No. Part of the Constitution but no legal effect independently; not a source of power nor a prohibition	Three cases on Preamble status, in order?	Berubari 1960 (not part), Kesavananda 1973 (part), LIC 1995 (integral)
Words added in 1976 and by which Amendment?	Socialist, Secular, Integrity; 42nd Amendment; only amendment so far	Objectives Resolution: who, when moved, when adopted?	Nehru; 13 Dec 1946; 22 Jan 1947 (unanimously)
Nature of the State in five words?	Sovereign, Socialist, Secular, Democratic, Republic	Which Articles give economic equality and living wage?	Art 39 (equal pay, distribution) and Art 43 (living wage)
Where is economic justice found? (Prelims 2013)	Preamble and DPSP	Who called the Preamble the "identity card", "horoscope", "soul"?	Palkhivala, Munshi, Hidayatullah
Which Articles bar exclusion from rolls / set adult suffrage?	Art 325 and Art 326	Which Constitution first began with a Preamble?	American
Who coined "secularism"? What is the Establishment clause?	George Holyoake; US 1st Amendment (1791): no law respecting establishment of religion, nor prohibiting free exercise	Balram Singh case 2024?	Challenge to words added by 42nd Am.; writ petitions dismissed

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

DPSP = Directive Principles of State Policy — Part IV (Arts 36–51): goals the State should pursue; not enforceable in court

UN = United Nations — World body of states founded in 1945 for peace, security and cooperation

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

PM = Prime Minister — Head of the Union government

IT = Information Technology — Computing and digital technology (for example, the IT Act, 2000)

NAM = Non-Aligned Movement — Bloc of states that stayed out of Cold War alliances

MGNREGA = Mahatma Gandhi National Rural Employment Guarantee Act, 2005 — Legal guarantee of 100 days of wage work to rural households

BNS = Bharatiya Nyaya Sanhita, 2023 — New criminal code that replaced the Indian Penal Code

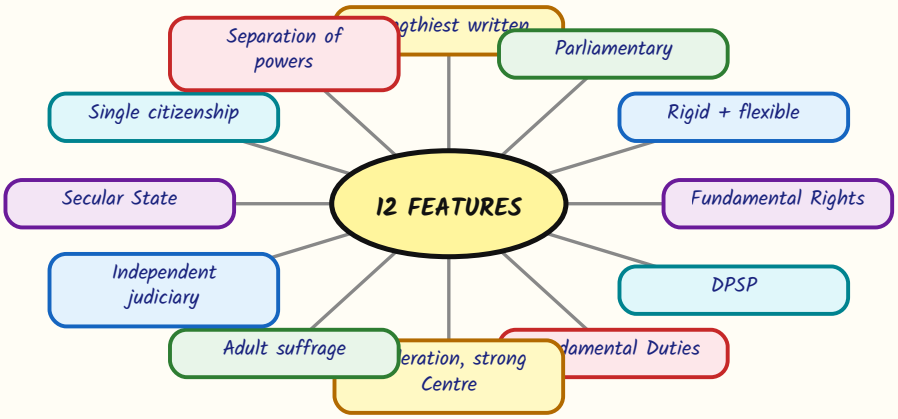
RTI = Right to Information — Citizens can seek records from public authorities under the RTI Act, 2005

SALIENT FEATURES & CRITIQUE

PYQ Prelims 2023 (x2), 2021 (x3), 2020, 2009, 1996, 1993 (x2) · Mains 2016

✎ *Twelve features that define the Constitution (with the six majorities), then the eight charges critics made and the framers' replies; the framers adapted, not copied.*

At a glance: the twelve



Four clusters
- → Size and form: 1–3
- → Rights side: 4–6
- → Federal side: 7, 11
- → People and law: 8–10, 12

Dates
- → adopted 26 Nov 1949 (Constitution Day, Prelims 2023); enforced 26 Jan 1950. PYQ answers: purpose of a constitution = defines and limits powers of government (2023)
- → constitutional government = limited government (2021, 2020)
- → best safeguard of liberty = separation of powers (2021)
- → Constituent Assembly idea first by Swaraj Party 1934 (1996)
- → 3rd Round Table Conference led to GoI Act 1935 (2009)
- → common to India and USA federation: a federal Supreme Court (1993).

L-P-B-F-D-D — "Long Parliaments Blend Fine Debates, Duties Federal Unions Judge Secular Single Separations." Order: Lengthiest, Parliamentary, Blend, FR, DPSP, Duties, Federation, Universal suffrage, Judiciary, Secular, Single citizenship, Separation.

1 LENGTHIEST WRITTEN PYQ 2023

	At adoption	Today
📜 Articles	395	470
Parts	22	25
🗺️ Schedules	8	12

Changes
- → deleted ~20 Articles and Part VII (7th Am. 1956)
- → added ~95 Articles, 4 Parts (IVA, IXA, IXB, XIVA), 4 Schedules (9, 10, 11, 12)
- → Parts: IVA and XIVA by 42nd; IX by 73rd; IXA by 74th; IXB by 97th
- → Article counts: USA 7 (original), Australia 128, China 138, Canada 147

IV-A IX-A IX-B XIV-A — Chant: "IV-A, IX-A, IX-B, XIV-A": the A, A, B, A pattern.

Why so long (4)
- → vast geography and diversity

→ lengthy GoI Act 1935
→ one Constitution for Union and States
→ lawyer-dominated Assembly; electoral system, administration written in

Source conflict: handout says 470 Articles under Feature 1 but "over 450" in the Critique. Use 470 and note the mismatch.

Other points

→ 42nd Am. (1976) = "Mini-Constitution"
→ 7th, 42nd, 44th, 73rd, 74th, 97th, 101st Amendments changed many features
→ Art 370 special status of J&K ended 2019; Reorganisation Act 2019: UTs J&K and Ladakh

👥 CLASS · Constitution basics

👥 Constitution

→ the basic, parent law by which a nation state (politically organised society) is governed. Nation State (Sovereign, 1933): permanent population
→ organised government
→ defined territory
→ independence from external control.

Term	Meaning
Ultra vires	unconstitutional law
Intra vires	constitutional law
📜 Statute (ordinary) law	made by Parliament or State Legislature
👥 Sources of constitutional law (4)	Constitution · amendments · judicial interpretation · conventions (unwritten)

📜 Bill to law



Official Gazette: authorised legal document, weekly (Dept of Publications); urgent matters in an Extraordinary Gazette. Lok Sabha = directly elected popular house; Rajya Sabha = permanent house.

👥 A Constitution gives (8)

→ institutional framework of L, E, J
→ norms among L, E, J
→ norms between L, E, J and people
→ ideals and aspirations (and conflicts): Sov, Soc, Secular, Democratic Republic; J, L, E, F. Art 1 "India, that is Bharat" (Japan = Nippon, Bhutan = Druk Yul, Germany = Deutschland)
→ birth certificate of the nation
→ minimum norms of cooperation, coordination, co-existence
→ legitimacy to State and its actions
→ enforceable limits on the State (democratic Constitution)

👥 CLASS · Size: class vs handout

Class vs handout: class wrote 450 Articles today; handout says 470 (check).

Small additions

→ 7th Am. 1956: Part A/B/C/D States dropped (Andaman and Nicobar was Part D): now State and UT

→ about 3/4 of the text drawn from GoI Act 1935 (smooth administration); also details on language, UPSC, EC

🏛 2 PARLIAMENTARY FORM

Westminster model

→ President: nominal head

→ PM + Council of Ministers: real power, collectively responsible to Lok Sabha

→ No-confidence motion removes government

Vs Britain

→ Parliament not sovereign: written Constitution + judicial review

→ elected republican head, not monarch

⚠ Criticisms

→ coalition instability

→ executive dominance

→ Prime Ministerial Government

→ chosen for stability with accountability; critics: too Western

🏛 CLASS · Parliamentary form: five features

🏛 Parliamentary features

→ dual executives

→ majority-party rule

→ ministerial accountability

→ leadership of PM / CM

→ lower house can be dissolved (PM advises President to dissolve Lok Sabha)

3 RIGID + FLEXIBLE: TYPES OF MAJORITY

Rigid

→ federal structure, judiciary, FR

→ special majority + half the States (Art 368)

Flexible

→ new States, names, boundaries

→ simple majority like ordinary laws

Type	Meaning	Used for
1 Simple	>50% present and voting; default (Art 100)	Ordinary, Money, Financial Bills; confidence, no-confidence, censure, adjournment, thanks motions; President's Rule (Art 356); Financial Emergency (Art 360); Speaker/Deputy Speaker election (Art 93); Deputy Chairman RS election (89); disapproval of National Emergency (352)
2 Effective	>50% of total membership minus vacancies	Removal of Vice-President (67, RS); Deputy Chairman RS removal (90); Speaker/Deputy Speaker LS removal (Art 94)
3 Absolute	>50% of total House strength, regardless of vacancies	part of Special I; party needs 272 in Lok Sabha to form government
4 Special I	majority of total membership of each House + 2/3 present and voting	Amendment (368); removal of SC judges (Art 124), HC judges (Art 217), CAG (Art 148), CEC (Art 324), State Election Commissioner (Art 243K); approval of National Emergency (352)

5 Special II	2/3 of total membership of each House	Impeachment of President (61)
6 Special III	2/3 present and voting, Rajya Sabha only	Art 312 (new All-India Services); Art 249 (State List law in national interest)

MASTER — Majority of total + 2/3 present (Special I, Art 368) · Absolute · Simple · Two-thirds of Total (Special II, impeachment) · Effective · Rajya Sabha only (Special III, Arts 312, 249). A majority is the MASTER of the House.

S-E-A-S-S-S — Handout hook: "Some Elephants Always Sing Sweet Songs." Simple = present and voting; Effective = minus vacancies; Absolute = of the whole House.

Handout alert: Art 352 appears twice (disapproval = Simple; approval = Special I). Deputy Chairman RS: Art 89 election (Simple) and Art 90 removal (Effective).

🎯 CLASS · Rigid and flexible: teacher's examples

Point	Example
🗺️ Rigid (special majority + States)	federal structure, judiciary, FR
Flexible (simple majority)	new States, boundary and name changes
Art 124	SC = CJI + 7 judges at start; SC (Number of Judges) Act 1956; last raised 2019: 34 now; by law, simple majority
Art 100(3) quorum	1/10 of members (e.g. 543: 55); changeable by simple majority
📜 Complementary law, no amendment	Art 11 → Citizenship Act 1955; Art 17 → Untouchability (Offences) Act 1955 (now Protection of Civil Rights Act)
Effective majority	Lok Sabha 543, 10 vacant → 533 is effective strength

Teacher stresses: blanks are filled by simply passing a law, not by amending the Constitution. Parliament amended the Constitution 106 times in 75 years. ⭐

📬 CLASS · Written vs unwritten; conventions

👥 Unwritten constitutions

→ UK, Israel, New Zealand

→ none is wholly unwritten: scattered in many sources, not one volume

→ run on conventions: flexible (advantage); lack a single "constitutional moment"

→ Difference is of degree: unwritten → written down = more convention; India written, some convention

👥 Constitutional conventions

Uses (3)

→ help adaptation

→ promote constitutionalism

→ courts use them

🎯 Indian examples

→ leader of majority party invited to form government

→ PM / CM resigns on losing majority

→ Deputy Speaker from opposition

→ President: no more than 2 terms

→ Governor from outside the State

💰 4 FUNDAMENTAL RIGHTS, 5 DPSP, 6 DUTIES

Right (Part III)	Articles	Core
🛡️ Equality	14–18	before law, no discrimination, untouchability and titles abolished
🛡️ Freedom	19–22	speech, association, movement, residence, profession; conviction, liberty
🧍‍♂️🧍 Against exploitation	23–24	trafficking, forced and child labour
🛡️ Freedom of religion	25–28	conscience, profess, practise, propagate
📚 Cultural and educational	29–30	language, culture, minorities' institutions
👥 Constitutional remedies	32	Supreme Court; Ambedkar: "heart and soul"

E-F-E-R-C-C – Equal Freedom Ends Rulers' Cruel Control. Handout: "Every Fine Engine Runs Cool Completely."

FR justiciable; originally seven rights. Right to Property (Art 31) removed by 44th Am. 1978; now legal right Art 300-A (Part XII). FR suspended in National Emergency except Arts 20, 21.

DPSP (Part IV)

→ non-justiciable; welfare State; Ambedkar: "novel feature"

- 🧍‍♂️🧍 Socialist → work, education, livelihood
- Gandhian → Panchayati Raj, village industries, prohibition
- Liberal-intellectual → UCC, environment, international peace

→ influenced land reforms, MGNREGA, RTE Act

S-G-L – Socialist, Gandhian, Liberal-intellectual: "See Gandhi Lead"

💰 Fundamental Duties

→ inspired by USSR
→ 1976: 42nd Am., Part IVA, Art 51A, 10 duties
→ 2002: 86th Am. adds 11th: parents/guardians provide education to children 6 to 14 (Art 51A(k))
→ non-justiciable

F-D-D – Freedom Demands Duty: FR (Part III), DPSP (Part IV), Duties (Part IVA).

🎯 7 FEDERATION WITH CENTRAL TILT PYQ 1993

🗺️ Federal features

→ dual polity
→ division of powers
→ written Constitution
→ independent judiciary
→ bicameralism at Centre

🗺️ Tilt to Centre

→ important subjects with Union
→ Emergency takeover
→ one Constitution
→ one citizenship

Labels

→ Art 1: "Union of States": no secession; not an agreement among States
→ K.C. Wheare: "quasi-federal"
→ Morris Jones: "bargaining federalism"
→ Granville Austin: "co-operative federalism"
→ Jennings: "centralising tendency"

📜 8 TO 12: PEOPLE AND LAW

8 Universal adult suffrage

→ Art 326: 18+ citizens vote
→ age 21 to 18: 61st Am. 1988
→ over 900 million voters

Source conflict: Lakshmikanth says voting age fell in 1989 (61st Act of 1988). Quote 61st Amendment, 1988.

9 Independent judiciary

→ integrated: SC, High Courts, subordinate; one system for Central and State laws
→ Judicial review: Arts 13, 32, 226; decides Union–State disputes
→ independence: tenure security, fixed service conditions, impeachment process
→ also: expenses on Consolidated Fund, no legislative discussion of conduct, ban on practice after retirement, contempt power
→ narrower than US: Art 21 "procedure established by law", not due process

📚 10 Secular

→ no State religion; Arts 25–28 profess, practise, propagate any faith or none
→ 42nd Am. 1976 inserted "Secular"
→ Sarva Dharma Sambhava; State reforms (untouchability, gender equality in worship) yet neutral

11 Single citizenship

→ unlike US dual citizenship (Prelims 2021: one citizenship, one domicile)
→ same civil and political rights in every State/UT
→ prevents parochial loyalty; integration

⚡ 12 Separation of powers

→ Montesquieu; in India functional and flexible, with checks and balances

Overlaps

→ executive in legislature: Question Hour, no-confidence, committees
→ judicial review over both
→ legislature in judiciary: impeachment of judges
→ executive in judiciary: appointments

Lakshmikanth adds

→ independent bodies: EC, CAG, UPSC, State PSCs
→ three-tier government: 73rd, 74th (1992)
→ co-operative societies: 97th (2011): Art 19 right, Art 43B, Part IXB
→ LK lists 17 features; use handout's 12
→ Emergency types: Art 352 (war, external aggression, armed rebellion), 356 and 365, 360

CLASS · Suffrage, judiciary, emergency, via media

Universal adult suffrage (Art 326)

→ age 21 → 18 by 61st Am. 1988
→ why: most people uneducated (class: ~90%) so education cannot be the test; depressed classes; right to vote is a right, not a privilege

Independent judiciary

→ pyramid: SC → High Courts → subordinate courts
→ guards the Constitution: Arts 13, 32, 226; settles citizen v State and Union v State (federal balance)

Emergency (feature 16)	Article	Times used
National	352	3
👑 President's Rule	356	100+
Financial	360	0

Feature 17 (via media): between political sovereignty (UK) and judicial sovereignty (USA) India has constitutional sovereignty. Feature 15: political + social + economic justice. ⭐

CLASS · Religious offences (BNS) and blasphemy

BNS section	Offence
298	injuring or defiling a place of worship
299	deliberate act to outrage religious feelings of a class
300	disturbing a religious assembly
301	trespass on burial and cremation grounds
302	uttering words to wound religious feelings

Class · date not given — Punjab, 2008: a law against blasphemy was passed (class example).

CLASS · Places of Worship Act, 1991

Section	Rule
3	no conversion of a place of worship of one religion into another
4	character as on 15 Aug 1947 frozen
5	exempts the Ram Janmabhoomi–Babri dispute

1949 Babri Masjid locked → **1986** opened → **1992** demolished, case pending → **2019** SC verdict (class: in favour of Hindus)

Repeal case	Retain case
arbitrary cut-off of 15 Aug 1947	move beyond the past
right to seek justice is part of right to life	principle of non-retrogression
legitimises invaders' acts	no retreat in a progressive society
temples are eternal	past wrongs cannot justify oppressing present or future

SC view: Act is linked to a basic feature (secularism) and is a legal instrument to protect it, but SC did not expressly call it an extension of the basic structure; it did not extend conversion to any other dispute.

Gyanvapi (Kashi Vishwanath)

→ temple demolished, mosque built by Aurangzeb; Kashi Vishwanath rebuilt 1776 by Ahilyabai Holkar next to it

→ 2022: civil court ordered videography; Allahabad HC did not stop it; then SC

→ SC: the 1991 Act does not bar investigating the true nature of the place

→ teacher's question: what if true nature differs from present nature?

Class · date not given (verify) — USCIRF: US Commission on International Religious Freedom, under US IRF Act 1998, advises the US government; special watch list; "Countries of Particular Concern": India, China, Pakistan, North Korea (class note also says it recommended banning RSS: verify).

CLASS · Banning of books: Sec 98 BNSS

Ground to forfeit a publication	Section
promoting enmity on religion, race, caste, language	BNS 196
assertions prejudicial to national unity	BNS 197
sale of obscene books, materials, paintings	BNS 294
outraging religious feelings of a class	BNS 299
sedition	IPC 124A

Teacher: Sec 98 BNSS (old CrPC): the State (executive) may forfeit a publication and issue a search warrant. Better a judge or jury than government. A ban meant to reduce readers often increases them.

🎯 CRITIQUE: EIGHT CHARGES AND REPLIES PYQ 2016

Charge	Critics said	Defence
💰 1 Borrowed	"Bag of borrowings"; Ivor Jennings: "patchwork", "lawyer's paradise"	Ambedkar: none framed so late could avoid resemblance; "ransacking all known Constitutions". Granville Austin: adaptation, not imitation
📜 2 Carbon copy of 1935 Act	N. Srinivasan: "close copy"; P.R. Deshmukh: "1935 Act with adult franchise"	Ambedkar: India already ran under 1935 Act; adult franchise, FR, democracy's soul were new. Structure from 1935 Act; FR, DPSP from US and Ireland; political part from Britain
🌐 3 Un-Indian	K. Hanumanthaiya: "music of an English band" not Veena or Sitar; Lokanath Misra: "slavish imitation of the West"	Granville Austin: "absurd"; L-E-F universal
🌐 4 Un-Gandhian	Gandhi wanted village decentralisation; Hanumanthaiya; T. Prakasam blamed Ambedkar	Art 40, later 73rd, 74th Am.; Ambedkar: villages "dens of darkness"
5 Elephantine	Jennings: "too long"; H.V. Kamath: Assembly emblem was an elephant	diversity, one Constitution for Union and States; fewer disputes
📜 6 Lawyers' paradise	Jennings; H.K. Maheswari: Indians more litigious	legal document needs precision; protects rights, federalism
7 Lacks consistency	liberal ideals mixed with cow protection, prohibition	Hanna Lerner: deferral, ambiguity, non-justiciability managed UCC, prohibition
8 Ambedkar's warnings	political democracy cannot last without social and economic democracy; "era of contradictions"; beware hero-worship	Constitutional morality and methods, not mass protests or blind faith

B-C-U-U-E-P-L-A — Beggar's Copy Upsets Us; Elephant's Paradise Looks Awful. Handout: "Bad Copies Usually Upset Every Proud Lawyer, Ambedkar warned."

📰 *In the news · Aug 2026 (verify dates)* **Written constitutions debate:** UK PM backed a single codified constitution. Written does not mean rigid: rigidity depends on amendment procedure. India: constitutional supremacy; UK: parliamentary sovereignty.

Mains frame: borrowed but adapted; quasi-federal; flexible; separation of powers functional. Close with Ambedkar's warning on social and economic democracy. ✅

1949 Nov 26 adopted

1950 Jan 26 enforced: 395 / 22 / 8

1976 42nd: Duties, Secular

1978 44th: Art 31 removed, 300-A

1988 61st: voting age 21 to 18

2002 86th: 11th duty

CLASS · Critique: additions

Critique

→ measured "against a yardstick"

🌐 **Un-Gandhian**

→ Gandhi: oceanic circle (individual at centre, then village, State, Centre; most power at the bottom) vs India's pyramid (Union, State, local bodies)

→ answered by Art 40 and reservation (SC, ST, OBC)

👥 **Hanna Lerner: constitutional incrementalism**

→ deferral: official language, Art 343

→ ambiguity: Art 25

→ non-justiciability: Part IV; alcohol ban but not tobacco; Art 44 UCC (personal laws: marriage, divorce)

→ Jennings: "paradise of lawyers", elephantine; Granville Austin asks "what is Indian?"

👥 **George Grote: constitutional morality (polysemous)**

→ paramount reverence to the constitutional spirit

→ obedience to legally established authority

→ acting within the Constitution's framework
→ habit of free speech and unrestrained criticism of public authority's public acts

Ambedkar caveats (class)

→ avoid non-constitutional methods
→ avoid hero-worship
→ 26 Jan 1950 = life of contradictions
→ constitutional morality: teacher's example, a candidate with criminal proceedings contesting elections.

📜 CLASS · National emblem and State emblem Act

Lion Capital (emblem)

→ lion in calm pose = power; courage, pride, confidence
→ Abacus carries bull, elephant, horse and Dharma chakra (blue)
→ State Emblem (Prohibition of Improper Use) Act, 2005: Sec 6 specifies the design (class)
→ controversy: new Parliament emblem "fangs exposed"

CLASS · Civil services (links Art 312, Special III majority)

Civil services

→ origin: East India Company, 1765 Diwani of Bengal; non-combatant staff = "civil"

👥 Structure

→ All India Services (Group A)
→ Central Services: non-technical (IRS, IAAS), technical (Engineering), Central Health, Railway Management, para-defence (IDES, IDAS), Secretariat Service (Group B, C)
→ State Civil Services (Group A)
→ Municipal Services

Status

→ Art 312; Entry 70, Union List; All India Services Act, 1951

Group	Role
A, B	management cadre
C	supervisory
D	routine functions

Not civil servants (but public servants): PSU employees, defence services, judiciary, political executive, MPs. Every civil servant is a public servant. 3rd Pay Commission: A-D to I-IV. Services: 1947 ICS and IP survived; 21 April 1947 Patel addressed probationers: Civil Services Day since 2006.

AIS cadres

→ class: 25 cadres; joint cadres AGMUT (Arunachal-Goa-Mizoram-UTs) and Assam-Meghalaya
→ SRC (class: 1953, check) proposed 3 new AIS: IFS, IES (Engineering), IMHS
→ 1963: 1951 Act amended to create them; only IFS operationalised, States refused the other two

Recall drill: cover and answer

Articles, Parts, Schedules then and now?	395/22/8 at adoption; 470/25/12 today	Which four Parts were added?	IVA, IXA, IXB, XIVA (Schedules 9–12 added)
Special majority Type I and Type II?	I: majority of total + 2/3 present and voting (Art 368); II: 2/3 of total membership of each House (President impeachment, Art 61)	Which majority for removal of Vice-President?	Effective majority (Art 67, Rajya Sabha)
Art 312 and 249 need which majority?	Special III: 2/3 present and voting in Rajya Sabha only	Fundamental Duties: Amendment, Article, number added 2002?	42nd (1976), Part IVA Art 51A, 10 duties; 86th (2002) added 11th (children 6 to 14)
Who called India quasi-federal?	K.C. Wheare	Voting age lowered by which Amendment?	61st (1988), 21 to 18, Art 326
Right to Property: removed when, now where?	44th Am. 1978; Art 300-A (Part XII)	Name the eight charges.	Borrowed, Carbon copy of 1935, Un-Indian, Un-Gandhian, Elephantine, Lawyers' paradise, Lacks consistency, Ambedkar's warnings
Places of Worship Act 1991: Secs 3, 4, 5?	3 no conversion; 4 character frozen at 15 Aug 1947; 5 exempts Ayodhya dispute	Sec 98 BNSS?	State may forfeit publications violating BNS 196, 197, 294, 299 or IPC 124A
Emergency counts (class)?	Art 352: 3 times; Art 356: 100+; Art 360: 0		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

BNS = Bharatiya Nyaya Sanhita, 2023 — New criminal code that replaced the Indian Penal Code

DPSP = Directive Principles of State Policy — Part IV (Arts 36–51): goals the State should pursue; not enforceable in court

PM = Prime Minister — Head of the Union government

RS = Rajya Sabha — Council of States; the upper House of Parliament

UCC = Uniform Civil Code — Proposed common personal laws for all citizens (Art 44)

BNSS = Bharatiya Nagarik Suraksha Sanhita, 2023 — New procedure code that replaced the Code of Criminal Procedure

UT = Union Territory — Area administered directly by the Union government

UPSC = Union Public Service Commission — Constitutional body (Art 315) that recruits for the Union services

CM = Chief Minister — Head of a State government

HC = High Court — State-level constitutional court (Art 214)

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

IPC = Indian Penal Code, 1860 — Old criminal code, replaced by the BNS

AIS = All India Services — IAS, IPS and Indian Forest Service, created under Art 312 and shared by Union and States

CEC = Chief Election Commissioner — Head of the Election Commission

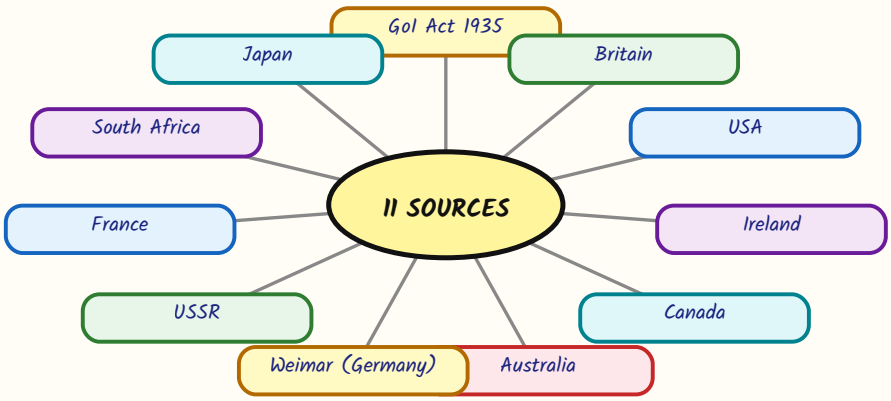
CJI = Chief Justice of India — Head of the Supreme Court

SOURCES OF THE CONSTITUTION

PYQ none quoted in the material · Handout pp. 24-25

✎ *The Constitution is borrowed but adapted: the 1935 Act plus ten countries; learn who gave which feature.*

At a glance: Act 1935 + ten countries



WHO GAVE WHAT

Source	Features adapted
GoI Act, 1935	federal scheme; Governor's office; Public Service Commissions; judiciary; emergency provisions; administrative details; advisory jurisdiction of SC (Sec 213)
Britain	parliamentary system; Rule of Law; single citizenship; cabinet system; prerogative writs; parliamentary privileges; bicameral legislature
USA	Fundamental Rights (Part III); independence of judiciary; judicial review; impeachment of President; removal of SC and HC judges; Vice-President; Preamble "We, the People"
Ireland	DPSP (Part IV); nomination of Rajya Sabha members; method of election of President
Canada	federation with strong Centre; residuary powers with Centre; Governors appointed by Centre
Australia	Concurrent List; freedom of trade, commerce and intercourse; joint sitting of Houses
Weimar (Germany)	emergency suspension of Fundamental Rights
USSR	Fundamental Duties (Part IVA); ideals of social, economic, political justice in Preamble
France	Republic; Liberty, Equality, Fraternity in Preamble
South Africa	amendment procedure; Rajya Sabha election by proportional representation through Single Transferable Vote
Japan	"Procedure established by law"

CLASS · Four sources of the Constitution

Sources (class)

→ 1 National movement values: national unity, unity in diversity, liberty, equality, justice, rule of law, democracy, secularism, faith in peaceful and constitutional means

→ 2 Foreign constitutions (separate electorates came from 1909 Indian Councils Act)

3 GoI Act 1935

→ negative: dropped half-hearted democracy and separate electorates

→ positive: federal system with strong Centre, bicameralism, judiciary, neutral non-political civil service

→ 4 Constituent Assembly record: Objectives Resolution, committee reports, debates

💰 CLASS · Borrowings: extras

Source	Extra items in class
USA	Marbury v Madison (judicial review); equal protection of laws; due process of law
Ireland	12 nominated Rajya Sabha members (class wrote "of 245"; RS is 250: 238 + 12, verify)
Weimar (1919–33)	emergency suspension of FR (class table unreadable)

FPTP example (teacher): 100 voters, candidates A–J: A 9, B 10, C 11, D 10, E 9, F 8, G 10 … C wins though ~90% of the constituency rejected him: minority winner.

SHORTCUTS

Group tricks

→ Rights and courts = USA (FR, judicial review, impeachment, VP)
→ Government machinery = Britain (parliament, cabinet, Rule of Law, writs)
→ Ideals = Ireland (DPSP) + USSR (duties)
→ Federal mix = Canada + Australia + GoI Act 1935
→ single: Weimar, South Africa, Japan, France

🗺️ Federal block

- **Canada** → strong Centre → residuary powers → Governors appointed
- **Australia** → Concurrent List → trade freedom → joint sitting
- **📜 GoI Act 1935** → federal scheme → Governor → PSCs → judiciary → emergency

💡 Single-feature

→ Weimar: FR suspension in Emergency
→ South Africa: amendment procedure, RS election by STV
→ Japan: procedure established by law
→ Ireland: DPSP, RS nominations, President's election

FABRIC — French: Republic, L–E–F · Act of 1935 · British: parliament, rule of law, cabinet · Rajya Sabha by STV and amendment: South African · Irish: DPSP, RS nominations, President's election · Concurrent List, trade, joint sitting: Australian (6 of 11)

DRAPE — Duties: USSR · Residuary powers, strong Centre, Governors: Canada · American: FR, judicial review · Procedure established by law: Japan · Emergency suspension of FR: Weimar (other 5, so all 11 are covered): the borrowed FABRIC was DRAPED over India

CAP — What Canada gave: Centre strong · Appointed Governors · Powers, residuary

C-F-J — What Australia gave: Concurrent List · Freedom of trade · Joint sitting. "Commerce Flows Jointly."

D-N-E — Ireland's three: DPSP, Nomination of RS members, Election of President. "Dublin Never Ends."

G-B-U-I-C-A-W-S-F-S-J — Countries in order: GoI Act, Britain, USA, Ireland, Canada, Australia, Weimar, Soviet, France, South Africa, Japan: "Good Boys Usually Ignore Careless Aunts' Warnings. Some Friends Still Joke."

W-S-J — Single-feature: Weimar = FR suspension · South Africa = amendment + RS by STV · Japan = procedure established by law

Trap (handout alert): single citizenship is credited to Britain here, but Ch 2 contrasts it with US dual citizenship. For "source" answer Britain; for "model contrast" answer US.

Extra points (LK)

→ Ambedkar: framed after "ransacking all the known Constitutions of the World"

→ LK: structure from 1935 Act; philosophy (FR from US, DPSP from Ireland); politics (cabinet government) from Britain

→ 1935 Act = most profound influence; more than half the provisions identical or close; about 250 provisions included

→ Ambedkar's reply to carbon-copy charge: no shame, no plagiarism, no patent rights on fundamental ideas; regretted only that the borrowed provisions are mostly administrative detail

→ Justice ideal: Russian Revolution (1917); L-E-F: French Revolution (1789–1799)

→ Judicial review narrower than US: Japan's "procedure established by law" instead of American "due process"

→ LK also lists legislative procedure under Britain; use handout list unless teacher mentions it

1935
GoI Act: administrative and federal base

1949 Nov 26
adopted

1950 Jan 26
enforced

Recall drill: cover and answer

Which country gave DPSP?	Ireland (also RS nomination, President's election method)	Source of Fundamental Duties?	USSR (Part IVA)
Source of Concurrent List?	Australia (with trade freedom, joint sitting)	Source of procedure established by law?	Japan
Source of amendment procedure and RS election by STV?	South Africa	Source of residuary powers with Centre?	Canada (also Governors appointed, strong Centre)
Source of emergency suspension of FR?	Weimar Constitution (Germany)	What did the 1935 Act give?	Federal scheme, Governor, PSCs, judiciary, emergency, administrative details, SC advisory jurisdiction (Sec 213)
USA gave which features?	FR, judicial review, independence of judiciary, impeachment, removal of judges, Vice-President, "We, the People"		

🔤 **Quick brief: abbreviations, schemes, bodies** (expansions from notes where given; briefs are general knowledge, verify)

RS = Rajya Sabha — Council of States; the upper House of Parliament

DPSP = Directive Principles of State Policy — Part IV (Arts 36–51): goals the State should pursue; not enforceable in court

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

HC = High Court — State-level constitutional court (Art 214)

VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

THE SCHEDULES

PYQ Prelims 2023, 2022, 2019 (x2), 2018, 2015, 2014 · Mains 2013

✎ *Twelve lists attached to the Articles; the Fifth, Sixth, Ninth and Tenth carry most questions, plus the 22 languages and the 29 and 18 subjects of local bodies.*

At a glance: 12 = 8 + 4

1950: 8 Schedules → Added: 9th, 10th, 11th, 12th → Today: 12 Schedules → Each linked to Articles

🎯 ALL TWELVE AT A GLANCE PYQ 2014

Sch	Deals with	Articles
1st	names and territory of States and UTs	1, 4
2nd	emoluments, allowances, privileges of high offices	59, 65, 75, 97, 125, 148, 158, 164, 186, 221
3rd	forms of oaths or affirmations	75, 84, 99, 124, 146, 173, 188, 219
4th	Rajya Sabha seats to States and UTs	4, 80
5th	Scheduled Areas and Scheduled Tribes	244
6th	tribal areas of Assam, Meghalaya, Tripura, Mizoram	244, 275
7th	Union, State, Concurrent Lists	246
8th	languages recognised	343, 351
9th	protects listed laws from FR challenge	31B
10th	disqualification for defection	102, 191
11th	powers of Panchayats	243G
12th	powers of Municipalities	243W

M-M-O-S-T-T — "My Money Oath Seats Tribes Take Lists, Languages Shield Defectors, Panchayats Municipalities." Map, Money, Oath, Seats, Tribes, Tribes (NE), Lists, Languages, Shield, Defection, Panchayats, Municipalities.

Remember: 12 = 8 original + 4 added (9, 10, 11, 12). Schedules carry detail so Articles stay lean; changed by amendment. ⭐

👥 CLASS · Review bodies on working of the Constitution

Body	Year	Head / subject
ARC-I	1966	M. Desai
👑 Sarkaria Commission	1983	Centre-State relations
NCRWC	2000	M.N. Venkatachaliah (review of Constitution)
ARC-II	2005	V. Moily
👑 Punchhi Commission	2007	Centre-State relations

ARC-II: in the era of RTI and transparency the **oath of secrecy** is a misfit; replace it with an **oath of transparency**. Schedules = attachments with administrative detail (e.g. Art 1 → Sch 1). ⭐

FIRST TO FOURTH

First Schedule

→ Parliament admits States, alters areas, boundaries, names (Arts 2–4)
→ on President's recommendation after State legislature's views
→ Art 4: ordinary law, not an Art 368 amendment
→ "ledger of India's political map"; confers no powers

2nd Sch part	Covers
A	President and Governors
B	omitted by 26th Am. 1971 (privy purses)
C	Presiding Officers: Speaker/Deputy, Chairman/Deputy Chairman, State counterparts
D	Judges of SC and HC
E	CAG
F	Union and State PSCs

A-C-D-E-F – "Any Court Deserves Even Fees": A President and Governors, (B omitted), C Presiding officers, D Judges, E CAG, F PSCs. Revisable by ordinary law.

Third Schedule: oaths of Union/State Ministers, candidates, MPs, MLAs/MLCs, SC and HC judges, CAG; oath of office, plus secrecy for ministers. President's and Governors' oaths are NOT here: Art 60 and Art 159. Fourth: elective RS seats only; the 12 nominated are outside. Arts 2–3 laws revise 1st and 4th by ordinary law (Art 4).

CLASS · Oath controversies; US Congress

Class · oath limits 2012: Kerala MLA Umesh Challiyal's oath in name of Sri Narayana Guru objected to (reading uncertain). 2024: opposition members added "Jai Samvidhan", "Jai Bhim" at oath end. 2024: West Bengal bye-election: dispute over Governor calling winners to Raj Bhavan for oath.

US Congress (50 States)	Members	Basis
House of Representatives	435	population
Senate	100	equal: 2 x 50

FIFTH AND SIXTH: TRIBAL AREAS PYQ 2023 PYQ 2022 PYQ 2019 PYQ 2015

Fifth Sch (Art 244)

→ Scheduled Areas and STs outside Assam, Meghalaya, Tripura, Mizoram
→ Governor's regulations + Tribes Advisory Council
→ 10 States
→ prevents transfer of tribal land to non-tribals (2022, 2019)

Sixth Sch (Arts 244(2), 275)

→ Assam, Meghalaya, Tripura, Mizoram
→ elected Autonomous District Councils (and Regional): legislative, executive, limited judicial, fiscal
→ grants-in-aid Art 275(1)

A-C-G-H-J – Fifth Sch States 1–5: Andhra Pradesh, Chhattisgarh, Gujarat, Himachal Pradesh, Jharkhand: Ancient Clans Guard Hills, Jungles

M-M-O-R-T – Fifth Sch States 6–10: Madhya Pradesh, Maharashtra, Odisha, Rajasthan, Telangana: Many Mountain Outposts Remain Tribal. Handout: "A Cool Guy Helps Just My Mother Often Run Tea".

A-M-T-M — Sixth Sch States: Assam, Meghalaya, Tripura, Mizoram: "All My Tribal Mates"

Fifth Sch: four things

→ 1 President declares, alters, re-organises Scheduled Areas by public order

→ 2 Governor's annual report to President; President may direct

→ 3 Tribes Advisory Council (TAC) mandatory in every State with Scheduled Areas

→ 4 Governor may direct that Acts do not apply or apply modified; makes regulations for peace and good government

TAC / regulations	Detail
👥 TAC size	up to 20 members; about 3/4 from ST MLAs; if STs scarce, Governor nominates; not less than half ST persons
⚡ TAC role	advises on ST welfare, especially matters Governor refers
👑 Governor's regulations	(i) prohibit or restrict land transfer by or among STs, (ii) regulate allotment of land to STs, (iii) regulate money-lending to STs
💰 Process	consult TAC; every regulation needs President's assent

Prelims shortcut: Fifth = Governor + TAC + land protection. Sixth = Councils + taxes + courts. Parliament can change the Schedule by law, **not an Art 368 amendment**. Sixth extras: village and District Council courts under State High Court supervision, customary law; taxes on land, buildings, market goods, animals, vehicles, professions, trades, services, roads, ferries, water; budgets and funds. **Mains 2013:** Art 244, impact of non-implementation of Fifth Schedule.

📜 SEVENTH: WHO LEGISLATES ON WHAT

Art 246

→ three lists: Union, State, Concurrent

→ **42nd Am. 1976:** education, forests, wildlife, weights and measures: State to Concurrent

→ **101st Am. 2016:** GST reworked taxation entries

→ entries (this chapter): Union 97, State 61, Concurrent 52

Source conflict: Centre-State chapter (and LK) give Union 98 (originally 97), State 59 (originally 66), Concurrent 52 (originally 47). Check class notes before quoting.

💰 CLASS · Seventh Schedule: tests, transfers, GST

List	Test (class)	Final entries
🗺️ Union	nation-wide uniformity essential	98 (original 97; class also wrote 100)
🆕 Concurrent	uniformity desirable, not essential	52 (original 47)
🗺️ State	uniformity neither desirable nor essential	59 (original 66; class also wrote 61)

Class vs handout: class gives final 98 / 59 / 52, matching the Centre-State chapter; this chapter's 97 / 61 / 52 is outdated (check).

🗺️ 42nd Am. 1976: 5 subjects State → Concurrent

→ protection of wildlife

→ forests

→ weights and measures

→ administration of justice; organisation of subordinate courts

→ education incl. technical, medical, universities, vocational training

101st Am. 2016 (GST): Union entries 92, 92C and State entries 52, 55 removed. State List examples: mines and minerals, police, public order, prisons, industries, trade and commerce.

EIGHTH: 22 LANGUAGES

Eighth Schedule

→ recognises languages; no national language
→ read with Arts 343–351, Art 351 develop Hindi, Arts 350A–350B linguistic minorities; LK cites Arts 344 and 351, handout 343 and 351 (follow handout)
→ inclusion helps recruitment exams, translation, CIIL, Sahitya Akademi
→ not the Union's official language; States choose under Art 345
→ 96th Am. 2011: Oriya renamed Odia

1950
14: Assamese, Bengali, Gujarati, Hindi, Kannada, Kashmiri, Malayalam, Marathi, Odia, Punjabi, Sanskrit, Tamil, Telugu, Urdu

1967
21st Am. + Sindhi = 15

1992
71st Am. + Konkani, Manipuri (Meitei), Nepali = 18

2003
92nd Am. + Bodo, Dogri, Maithili, Santhali = 22

S-K-M-N-B-D-M-S – Sindhi (1967), Konkani Manipuri Nepali (1992), Bodo Dogri Maithili Santhali (2003). "Sweet Kind Mothers Nurture Baby Daughters, Making Smiles." Handout: KMN; BDMS = "Bad Dogs Maul Sheep".

NINTH: THE PROTECTIVE LIST PYQ 2019 PYQ 2018

Ninth Schedule

→ Art 31B: laws "not deemed to be void" for violating FR, retrospectively
→ placed through 1st Am. (Nehru); original aim: agrarian reform (zamindari, ceilings)
→ insert/delete only by Art 368 amendment
→ Art 31B wider than Art 31A: all FR, any subject
→ 13 Acts in 1951; 282 now (last entry 284; entries 87, 92, 130 deleted; one is 257-A)

1951
Shankari Prasad: wide amending power

1965
Sajjan Singh: same

1967
Golaknath: curtailed

24 Apr 1973
Kesavananda: basic structure

1981
Waman Rao: post-24-04-1973 laws reviewable

2007
I.R. Coelho v. State of Tamil Nadu: no absolute immunity

S-S-G-K-W-C – Shankari, Sajjan, Golaknath, Kesavananda, Waman Rao, Coelho: "Some Singers Get Kind Words Cheaply". Shield Stands, Gradually Kicked, Weakened, Cracked.

Amendment	Acts	Entries
Before 24 Apr 1973		
1st (1951)	13	1–13
4th (1955)	7	14–20
7th (1964)	44	21–64
29th (1972)	2	65–66
After 24 Apr 1973		
34th (1974)	20	67–86
39th (1975)	38	87–124
40th (1976)	64	125–188
47th (1984)	14	189–202

66th (1990)	55	203–257
76th (1994)	1	257A
78th (1995)	27	258–284

Trap (2018): "A Ninth Schedule law cannot be examined by any court" is wrong; Parliament can place a law there. Post-1973 laws tested against Arts 14, 15, 19, 21 and basic structure (Coelho). Source conflict: LK says Waman Rao 1980; handout 1981; follow handout. Prelims 2019: introduced under Nehru.

🎯 TENTH: ANTI-DEFECTION PYQ 2014

🗺️ Tenth Schedule

→ 52nd Am. 1985 (changed Arts 101, 102, 190, 191); strengthened by 91st (2003)

→ Parliament and State legislatures; curbs floor-crossing, keeps parties intact

→ exceptions: merger (2/3 of party); presiding officer who quits party after election or rejoins after office

Member	Disqualified if
👥 Party member	(i) voluntarily gives up membership (inferred from conduct) or (ii) votes/abstains against whip without permission and party does not condone within 15 days
Independent	joins a party after election
📦 Nominated	joins a party after six months of taking seat

GAIN — Gives up membership · Acts against whip · Independent joins party · Nominated joins after six months. Defectors chase personal GAIN.

G-W-I-N — Handout: "Going With India's Nation"

Who decides

→ complaint to Speaker/Chairman; must hear member; may refer to privileges committee; rules laid before House 30 days

→ Kihoto Hollohan v. Zachillhu (1992): law upheld; Speaker = tribunal; review under Arts 136, 226, 227 (mala fides, perversity); finality clause struck down

→ no time limit; Court insists on reasonable period

Advantages	Criticisms
Stability	dissent vs defection unclear; party bossism
Orderly merger	retail banned, wholesale legitimised (split now deleted)
🧑‍🤝‍🧑 Lower corruption and cost	no remedy for expulsion over acts outside House
👥 Constitutional status for parties, first time	independent vs nominated: unequal
	presiding officer as judge: bias, no training; Speakers Rabi Ray (1991), Shivraj Patil (1993) questioned it

S-O-L-C — Advantages: Stability, Orderly merger, Lower corruption, Constitutional status for parties

📜 91st Amendment, 2003

→ Union ministers (incl. PM) ≤15% of Lok Sabha

→ State ministers (incl. CM) ≤15% of Assembly, not less than 12

→ defector disqualified from being minister

→ defector cannot hold remunerative political post (public revenue; body owned by them), except compensatory pay

→ one-third split deleted; only 2/3 merger

→ Reasons: Dinesh Goswami Committee (1990), Law Commission 170th Report (1999), NCRWC (2002) (suggested 10% cap; law fixed 15%)

Numbers: 15% and 12; split (1/3) gone, merger (2/3) stays. ⭐

🏛️ CLASS · Anti-defection: why and history

Defection

→ leaving one party for another

→ 1967–68: 438 defections (class figure); "Aaya Ram, Gaya Ram" = breach of trust

Why ADL (5)

→ breach of voters' trust

→ government instability

→ corruption (legislative trafficking)

→ parties are the principal forces (support and finance)

→ anti-party activities

British Parliament phrase	Meaning
Crossing the floor	defection
Holding the floor	speaking
Yielding the floor	turn ends or speaker asked to stop

🗺️ CLASS · Tenth Schedule: who is covered

⚖️ Special cases

→ Independent: cannot join a party, but may join a coalition government

→ Nominated: disqualified if joins a party after 6 months

Presiding officers exempt

→ Speaker, Deputy Speaker (LS, Assembly)

→ RS Chairman (the VP, not a member of RS) and Deputy Chairman

→ Council Chairperson and Deputy

→ Merger: 2/3 of party agree; dissenters may sit as independents; old 1/3 split removed (91st)

91st Am. 2003	Union	State
👑 cap on ministers	Art 75(1A): ≤15% of Lok Sabha	Art 164(1A): ≤15% of Assembly, min 12
👑 defector barred from ministership	Art 75(1B)	Art 164(1B)
🧑‍🤝‍🧑 remunerative political post	Art 361B (both)	

Sikkim example: Assembly of 32; 15% would be below 12, so the minimum 12 applies. A defector becomes minister only after re-election on the new party ticket. ⭐

⚖️ CLASS · Who decides, cases and criticism

📬 Complaint

→ made to the presiding officer; no time frame originally

→ any legislator or interested party may file (2013 case, name unclear in notes)

→ complaint against the presiding officer: a member chosen or elected by the House

→ Other disqualifications: Arts 102 / 191; doubts go to President / Governor under Arts 103 / 192 on ECI opinion

Case	Held
Kihoto Hollohan 1992	judicial review allowed: quasi-judicial function; PO may lack legal acumen; risk of bias. Whip defiance = defection in 3 cases only: vote of confidence, no-confidence, major policy on which party went to polls
📜 Law Commission 170th, 1999	pre-election coalition partners should be covered

Ravi Nayak 1994	voluntary resignation read broadly to cover anti-party activities
🗳️ Halim Committee 1998	rightful criticism of the party is not anti-party (class wording unclear)
Viswanathan 1996	expelled members not disqualified; remain members of that party; treated as unattached
Rajendra Singh Rana 2007	PO must accept the petition and record a proper finding; no time limit
Keisham Meghachandra Singh 2020	decide within 3 months unless exceptional circumstances

Coalitions

→ example: Assembly of 100: A 40, B 30, C 15, D 15 = coalition government

→ Pre-election coalition: one manifesto; post-election: parties join after results

→ a partner leaving also causes instability

⚠️ Criticism: why PO? whip gagging

→ other disqualifications rest with President / Governor on ECI advice, yet this is with the PO

→ whip suppresses genuine dissent; no vote of conscience; MPs cannot faithfully represent voters

→ reverses accountability: executive answers to Parliament, but MPs answer to the party

Mains PYQ (class, 9 Apr 2026): "MPs' participation in debates has fallen: to what extent did ADL contribute?" Intro: ADL ties MPs to the whip, but it is only one cause. Points: (1) MPs lack policy awareness (2) disruptions and adjournments (3) short time as House size grows (4) fewer sittings: about 65 days against 100+ needed (5) criminalisation of politics. Close: reform sittings and rules, not only ADL. ✅

ELEVENTH AND TWELFTH: LOCAL BODIES

Eleventh: 29 subjects

→ 73rd Am. 1992; Part IX (Arts 243–243O); Art 243G enabling, not self-executing

→ Panchayats: village, intermediate, district

Theme	Subjects (1–29)
Farm and land (1–7)	1 Agriculture incl. extension; 2 land improvement, reforms, consolidation, soil conservation; 3 minor irrigation, water management, watershed; 4 animal husbandry, dairying, poultry; 5 fisheries; 6 social and farm forestry; 7 minor forest produce
Industry (8–9)	8 small scale industries incl. food processing; 9 khadi, village and cottage industries
👥 Infrastructure (10–15)	10 rural housing; 11 drinking water; 12 fuel and fodder; 13 roads, culverts, bridges, ferries, waterways; 14 rural electrification; 15 non-conventional energy
📚 Poverty and education (16–21)	16 poverty alleviation; 17 education incl. primary and secondary; 18 technical and vocational; 19 adult and non-formal; 20 libraries; 21 cultural activities
Market, health, welfare (22–29)	22 markets and fairs; 23 health and sanitation (hospitals, PHCs, dispensaries); 24 family welfare; 25 women and child development; 26 social welfare incl. handicapped and mentally retarded; 27 weaker sections, SCs and STs; 28 public distribution system; 29 community assets

F-I-I-P-M – Farm (1–7), Industry (8–9), Infrastructure (10–15), Poverty and education (16–21), Markets, health and welfare (22–29). 7+2+6+6+8 = 29.

Twelfth: 18 subjects

→ 74th Am. 1992; Part IXA (Arts 243P–243ZG); Art 243W enabling

→ Nagar Panchayat, Municipal Council, Municipal Corporation

Theme	Subjects (1–18)
Planning and land	1 urban and town planning; 2 land-use and building regulation; 3 economic and social development planning
Services	4 roads and bridges; 5 water supply; 6 public health, sanitation, solid waste; 7 fire services
Environment and welfare	8 urban forestry, environment, ecology; 9 weaker sections incl. handicapped; 10 slum improvement; 11 urban poverty alleviation
📚 Amenities and culture	12 parks, gardens, playgrounds; 13 cultural, educational, aesthetic; 14 burials, cremations; 15 cattle ponds, prevention of cruelty to animals; 16 vital statistics; 17 street lighting, parking, bus stops, conveniences; 18 slaughterhouses and tanneries

Handout alert: Twelfth list numbered 9–26 in the PDF; 18 subjects, renumbered 1–18.

29–18 — Panchayats 29 (73rd, Art 243G, Part IX); Municipalities 18 (74th, Art 243W, Part IXA). "29 villages, 18 towns": rural is bigger.

📰 ***In the news · Sep 2026 (verify dates)*** **Tulu:** Karnataka Cabinet gave Tulu the status of second additional administrative language for Dakshina Kannada and Udupi.

1950
8 Schedules

1951
1st Am.: Ninth

1971
26th: 2nd Sch B omitted

1973
Kesavananda

1985
52nd: Tenth

1992
71st; 73rd, 74th: 11th, 12th

2003
91st; 92nd: 22 languages

2007
Coelho

2016
101st: GST

Recall drill: cover and answer

How many Schedules originally and now?	8 in 1950; 12 now (9th–12th added)	Which Schedule deals with anti-defection? (Prelims 2014)	Tenth (52nd Am. 1985; 91st Am. 2003)
Fifth Schedule applies to how many States? TAC size?	10 States; Tribes Advisory Council up to 20 members	Sixth Schedule States?	Assam, Meghalaya, Tripura, Mizoram (Autonomous District Councils)
Ninth Schedule Article and the 2007 case?	Art 31B; I.R. Coelho v. State of Tamil Nadu: post-24-04-1973 laws reviewable on basic structure	Eighth Schedule: how many languages, last additions?	22; 92nd Am. 2003: Bodo, Dogri, Maithili, Santhali
Panchayat and Municipality subjects?	29 (11th Sch, Art 243G) and 18 (12th Sch, Art 243W)	91st Amendment numbers?	Ministers max 15% of House (State min 12); split deleted, 2/3 merger only
Kihoto Hollohan (1992) held?	Tenth Schedule upheld; Speaker is a tribunal, subject to judicial review	Whose oaths are NOT in the Third Schedule?	President (Art 60) and Governors (Art 159)
Whip defiance is defection in which 3 cases (Kihoto)?	confidence vote, no-confidence vote, major policy the party fought election on	Keisham Meghachandra 2020?	ADL cases to be decided within 3 months
Final Seventh Schedule entries (class)?	Union 98, State 59, Concurrent 52	91st Am. Articles?	75(1A),(1B); 164(1A),(1B); 361B

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

GST = Goods and Services Tax — Common indirect tax on goods and services; policy by the GST Council (Art 279A)

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

RS = Rajya Sabha — Council of States; the upper House of Parliament

ST = Scheduled Tribes — Tribal groups listed under Art 342

NCRWC = National Commission to Review the Working of the Constitution — Set up in 2000 under Justice M. N. Venkatachaliah

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

HC = High Court — State-level constitutional court (Art 214)

ECI = Election Commission of India — Constitutional body (Art 324) that conducts elections

RTI = Right to Information — Citizens can seek records from public authorities under the RTI Act, 2005

PM = Prime Minister — Head of the Union government

CM = Chief Minister — Head of a State government

VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

TAC = Tribes Advisory Council

FUNDAMENTAL RIGHTS

PYQ Prelims 2024, 2022, 2021, 2020, 2019, 2018, 2017, 2015 · Mains 2024, 2023, 2022, 2017, 2015, 2014, 2013

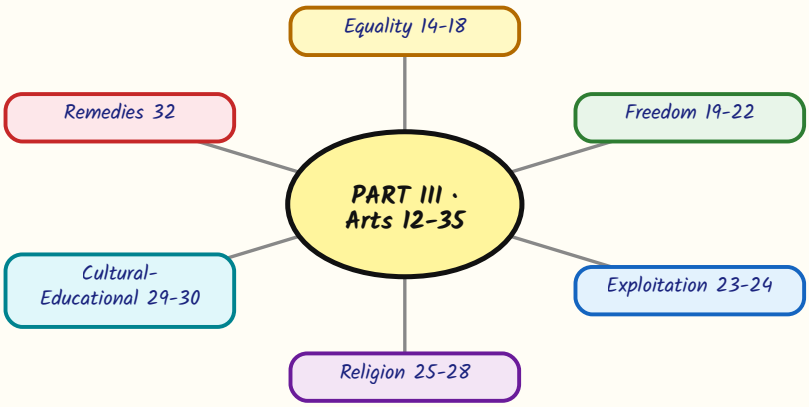
Part III (Arts 12-35) shields the individual from the State: six rights, reasonable limits, courts as guardians (Art 32/226), Arts 20-21 never suspended.

Current affairs · verify dates

Maternity rights: Rakhi Bisht v. Union of India (2026)
Delhi High Court held that availing maternity leave cannot diminish a woman's professional status or career prospects; cited Articles 14, 15, 21 ... (full: CA pages at the end)

New Guidelines for Film Certification, 2026
The I&B Ministry notified new film certification guidelines under the Cinematograph Act, 1952, superseding the 1991 notification.

At a glance: six FRs (5, 4, 2, 4, 2, 1 Articles)



Fundamental Rights: basic freedoms in Part III (Arts 12–35), justiciable; "Magna Carta of India"; inspired by the American Bill of Rights. Void law = Art 13. Ambedkar: Art 32 = "heart and soul of the Constitution".

Every Free Entity Receives Court Remedies — Equality 14–18 · Freedom 19–22 · Exploitation 23–24 · Religion 25–28 · Cultural-educational 29–30 · Remedies 32 · Arts 20 and 21 never suspended

1 · HISTORY AND PRESENT STATUS

Why "fundamental"

→ guaranteed by the fundamental law, the Constitution
→ essential for all-round development (material, intellectual, moral, spiritual)
→ limits on State power: government of laws, not of men

Early demands

→ Tilak: civil liberties ("Swaraj is my birthright")
→ Congress: speech, press, association (late 19th c.)
→ Constituent Assembly: Ambedkar, K.M. Munshi, Sardar Patel argued for enforceable FRs

1928 Nehru Report: first Bill of Rights

1946 Objective Resolution (Nehru)

1950 Part III adopted: seven FRs

1978 44th Am removes property (Art 31) → Art 300A; six FRs

Time Never Allows Forgetting Ideas — Tilak · Nehru Report 1928 · American Bill of Rights 1791 · French Declaration 1789 · Irish Constitution 1937 (directive principles)

No.	Right	Articles
1	Equality	14–18
2	Freedom	19–22
3	Against Exploitation	23–24
4	Freedom of Religion	25–28
5	Cultural and Educational	29–30
6	Constitutional Remedies	32

In the news · Aug 2026 (verify dates) Noise and Art 21: Patna HC issued State-wide noise-control directions. In Re: Noise Pollution (2005): Arts 19(1)(a) and 25 give no unrestricted right to make noise; Art 21 covers unlawful noise.

CLASS · Magna Carta and sources of law

Magna Carta (1215): royal charter signed by King John; limited the king's powers, protected rights of free people, made the king subject to law; foundation of constitutionalism.

Sources of law	Class list
Order	Constitution · Statutes · Delegated legislation · Case law · Customs
Common law	law from Courts + Parliament: UK etc.
Civil law	law from Parliament only: continental Europe, e.g. France, Germany

2 · FEATURES AND CLASSIFICATION

#	Feature	Key point
1	Not absolute	reasonable restrictions (public order, morality, sovereignty, security); e.g. Art 19 vs defamation, contempt
2	Justiciable	SC (Art 32), HCs (Art 226) issue writs
3	Against the State	not private persons; exceptions Art 17 and Art 23 (bind private too)
4	Individual + collective	speech + cultural/educational rights
5	Suspendable in emergency	National Emergency (Art 352): Art 19 etc.; Arts 20, 21 never (44th Am)
6	Amendable, not destroyable	Art 368 + Basic Structure (Kesavananda 1973)
7	Negative and positive	neg: Art 18 titles, Art 15; pos: Art 21A, Art 23
8	Citizens and foreigners	all: Art 14, 21; citizens only: Art 15, Art 19
9	Some self-executory	Arts 14, 19, 20, 21, 22(1)–(2), 17, 23, 25; others need law: Art 21A via RTE Act 2009; Art 22(3)–(7)

Nine Judges Present Important States Against No Court Silence — Not absolute · Justiciable · Primarily vs State · Individual+collective · Suspendable in emergency · Amendable not destroyable · Negative+positive · Citizens+foreigners · Self-executory

Handout alert: Feature 3 names Art 17; Art 12 section names Arts 17 and 23. Both valid: Art 17 and Art 23 bind private persons too.

Citizens ONLY

→ Art 15 · Art 16 · Art 19
→ Art 29 · Art 30
→ Art 19 freedoms reach shareholders, not the company

🌐 Citizens + foreigners (not enemy aliens)

→ Arts 14, 20, 21, 21A, 22
→ Arts 23, 24, 25, 26, 27, 28

Aspect	Fundamental Rights	Ordinary Rights
Source	Constitution, Part III (Arts 12–35)	ordinary laws
Enforce	directly: SC (Art 32), HC (Art 226)	normal legal process
🛡️ Protection	not removable by ordinary law	simple act can change
📜 Amend	only Art 368 (subject to Basic Structure)	simple majority
🎯 Examples	Art 14, Art 21, Art 19	Right to Vote (RPA 1950/1951), Property (Art 300A), Contract Act

CLASS · Not self-executory FRs

Need a law to work (not self-executory): Arts 17, 23, 24, 21A (21A: 86th Am 2002 then RTE Act 2009). Right to Vote = constitutional right (RPA 1950/51); RTI Act 2005 = statutory right. FR enforced by SC and HC (Arts 32, 226). ⭐

📜 3 · ARTICLE 12: WHO IS THE "STATE"

🗺️ State (Art 12) for Part III only

→ Government and Parliament of India
→ Government and Legislature of each State
→ all local authorities (Sec 3(31) General Clauses Act: municipalities, district boards, panchayats, improvement trusts, mining boards)
→ other authorities: open-ended, court-evolved

Test for "other authorities"	Case
Instrumentality or agency	Ajay Hasia v. Khalid Mujib, 1981
🗺️ Deep and pervasive State control	Pradeep Kumar Biswas v. Indian Institute of Chemical Biology (IICB), 2002
⚡ Public function	(no case named)

Tests are not automatic: PSUs and government corporations are not automatically "State"; only if courts say so after the tests.

All Public Powers — Ajay Hasia 1981 = instrumentality · Pradeep Kumar Biswas 2002 = deep control · Public function

Judiciary as State?	Holding
🗺️ Rati Lal v. State of Bombay	not State
🗺️ A.R. Antulay v. R.S. Nayak; N.S. Mirajkar v. State of Maharashtra	rule-making power: State; exercise of judicial power: not State

🗺️ Private body = State when

→ public functions of great importance
→ deep and pervasive State control (functioning, finance, policy)
→ instrumentality or agency of the State

Public Duties Invite — Public function · Deep control · Instrumentality

🗺️ CLASS · Art 12: how "State" widened

Ajay Hasia 1981 factors

→ substantially controlled or financed by govt
→ state-conferred monopoly status
→ functions of public importance
→ instrumentality/agency of State (e.g. nationalised banks)
→ not every PSU qualifies

Judiciary: SC/HC judicial side (writs under Arts 32, 226, judicial orders) vs administrative side (CJI, rules, staff, resolutions); district and subordinate courts fall under "State" (class). 💡

🗺️ BCCI: is it "State"?

→ legally a registered society (cooperative)
→ 2015 SC set up Lodha Committee on corruption; SC: performs public function (sport touches billions); Law Commission: yes
→ 2018 CIC: BCCI under RTI Act
→ Sports Governance Act 2025: BCCI not "State", exempted from RTI (as per class)

📜 4 · ARTICLE 13: LAWS VIOLATING FRs

Clause	Rule
13(1)	pre-Constitution laws (before 26 Jan 1950) violating FRs: void from that day
13(2)	State cannot make law taking away/limiting FRs; void to extent of conflict
13(3)	"law" = (a) permanent laws of Parliament/State legislatures; (b) temporary: ordinances of President/ Governors; (c) delegated: order, byelaw, rule, regulation, notification; (d) custom or usage with force of law
13(4)	added by 24th Am, 1971: Art 368 amendments not "law"; but Kesavananda (1973): reviewable if they destroy Basic Structure

Police Patrol Main Corridors – Pre-1950 · Post-1950 · Meaning of law · Constitutional amendments

People Trust Daily Norms – Permanent · Temporary (ordinances) · Delegated · Non-legislative custom

Judicial review: not in the Constitution in so many words; Art 13 lets courts strike down law violating FRs = guardian of FRs. Amendments not "law" but reviewable on Basic Structure (judicial review, rule of law, federalism, free and fair elections). 💡

EXCEPTIONS TO ART 13

Exception	Detail
13(4)	amendment under Art 368 not "law" (24th Am 1971); Basic Structure limit (Kesavananda 1973)
Art 358	war or external aggression only: Art 19 stops operating automatically; protection ends with Emergency
Art 359	President suspends right to move court for named FRs; remedy blocked, not the right; never Arts 20, 21 (44th Am)
31A	agrarian reform/acquisitions: saved from Arts 14, 19
31B	Ninth Schedule: shielded from FR challenge; after 24 April 1973 testable on basic structure (Waman Rao, I.R. Coelho)
31C	laws implementing Art 39(b), (c) over Arts 14, 19 (real link); extension to all DPSPs struck in Minerva Mills (1980)
⚖️ Judgments	Art 13 targets laws, not judgments; legislature must pass new/validating law fixing the defect

All Bills Covered – 31A Agrarian laws · 31B Binder into Ninth Schedule · 31C Causes of Art 39(b)-(c)

5 · ARTICLE 14: EQUALITY BEFORE LAW PYQ 2021

Art 14: State shall not deny to any person equality before the law or equal protection of the laws. All persons (citizens, foreigners); includes legal persons (companies, societies). PYQ 2021: unguided, uncontrolled executive discretion violates Art 14.

	Equality before law	Equal protection of laws
Origin	British	American
Nature	negative; Rule of Law; no one above law	positive; equal treatment of equals; reasonable classification, affirmative steps
Example	minister and citizen, same process	special provisions for SC, ST, women

Britain No, America Plus — British = Negative · American = Positive

Reasonable classification (vs class legislation)
→ intelligible differentia: real, substantial distinction
→ rational nexus with the object of the law
→ valid: special laws for women, children, backward classes

If Reasonable — Intelligible differentia + Rational nexus

Dicey (Rule of Law)	Meaning	In India
1. Absence of arbitrary power	no punishment unless law broken; arrest by legal procedure	Followed
2. Equality before law	same laws and ordinary courts for all	Followed
3. Primacy of individual rights	Britain: common law, not written constitution	Not applicable: FRs guaranteed

Rule of Law is part of the Basic Structure (cannot be diluted even by amendment).

Formal equality
→ equality in law, same for all
→ e.g. "one person, one vote"

Substantive equality
→ removes social–economic inequality; positive State action
→ e.g. reservation SC, ST, OBC, women

Exception to Art 14	Detail
Art 361 President, Governors	not answerable to courts for official acts; no criminal case, no arrest during term; civil suit for personal acts only after 2 months notice
Art 361A	substantially true report of legislative proceedings (incl. authorised broadcasts) protected; not secret sittings or malice
Arts 105, 194	legislators: freedom of speech in House; not liable for speech or vote
Art 31C	"Where Article 31C comes in, Article 14 goes out" (SC); only genuine 39(b)/(c) laws; blanket extension struck in Minerva Mills
Diplomats, foreign sovereigns	immunity (Vienna Convention on Diplomatic Relations); reciprocity
UN and agencies	United Nations (Privileges and Immunities) Act, 1947

Presidents Publish Laws, Diplomats Unite — President–Governors (361) · Publication (361A) · Legislative privileges (105, 194) · Diplomats · UN · C = 31C

CLASS · Rule of law: Dicey and India's exceptions

Dicey (19th c.), class wording	Point
(a) Supremacy of law	no govt by whims; "law is King of kings"
(b) No arbitrary power	power must come with authority (who, when, how) = accountability
(c) Equality	all subject to the ordinary law, ordinary courts

India: exceptions to ROL	Basis
Diplomatic immunity	Vienna Convention

🏛️ Parliamentary privileges	absolute freedom of speech on the floor (Arts 105, 194)
👑 President, Governor	Art 361, Part XIX

7th Amendment 1956 omitted the word "Rajpramukh". President/Governor = constitutional head; PM/CM = head of government. Commute = substitute a lesser penalty. ⭐

🎯 CLASS · Art 14: examples of classification

Art 14 = citizens and non-citizens. Equality before law (UK, negative: no special privileges, rich or poor) = ROL. Equal protection (USA, positive: like treated alike). Also suspended during National Emergency. 💡

Valid classification (example)	Why
💰 Progressive tax slabs 10, 20, 30%	society must be classified
Prohibition: armed forces may drink, citizens not (Gujarat, Bihar)	different circumstances
Kodavas (Coorg, martial community): arms without licence	custom/community

Fails either test = class legislation: (1) class is a homogeneous set (similar if not identical); (2) rational nexus between class and object of the law. Art 31C: 39(b), 39(c) = "two pillars" of Indian socialism; such laws cannot be challenged under Arts 14, 19.

📜 6 · ARTICLE 15 AND 103rd AMENDMENT

Art 15: no discrimination on religion, race, caste, sex, place of birth (5 grounds; "only" = exclusive reliance; merit or fitness valid). Art 16 adds descent and residence (7 grounds). 💡

Clause	Rule	Binds
15(1)	no citizen discriminated by State on five grounds	State only
15(2)	access to shops, restaurants, hotels, places of entertainment; wells, tanks, bathing ghats, roads maintained wholly/partly from State funds	State and private

Rich Rulers Cannot Sort People — Religion · Race · Caste · Sex · Place of birth

Clause	Special provision	Note
15(3)	women and children	seats for women in panchayats, municipalities
15(4)	SEBCs, SCs, STs	First Am (1951) after Champakam Dorairajan
15(5)	admissions to educational institutions, public or private, aided or unaided, except minority (Art 30)	93rd Am (2005)
15(6)	up to 10% EWS in education (govt, private unaided; not Art 30 minority)	103rd Am (2019)

We Build Equal Education — Clauses 3–6: Women-children (3) · Backward (4) · Education admissions (5) · EWS (6)

Use: 15(4) for SEBC/SC/ST generally; 15(5) for admissions incl. private unaided. The handout mixes "public or private, aided or unaided" with "government and private unaided": use government and private unaided, excluding Art 30 minority.

103rd Am, 2019 (EWS): Art 15(6) (education) + Art 16(6) (initial appointments, up to 10%); for those not in SC/ST/OBC; income/asset limits notified by government. Janhit Abhiyan v. Union of India (SC, 2022): amendment valid; 50% cap not absolute; SC/ST/OBC exclusion not discriminatory; economic criteria can ground affirmative action. ⭐

CLASS · Art 15: residence, Champakam, unaided colleges

Case / Act	Holding
Pradip Jain 1984	domicile quota in State-run institutions valid, but not wholesale
👫 Veena Vadini Teachers Training Inst. 2023	MP B.Ed college, 75% for locals: court asked to reduce
Champakam Dorairajan 1951	Madras 1927 communal quota struck (Art 29(2)); answered by 1st Am 1951, Art 15(4)
P.A. Inamdar 2005	State cannot force quota on unaided institutions (Arts 14, 19(1)(g)); answered by 93rd Am 2005, Art 15(5)

Residence: discrimination allowed in **education** (State institutions), not in **employment** (Art 16(2)); only Parliament can lay down residence rules. **Art 29(2):** no denial of admission on religion, race, caste, language. **NCRWC 2000** suggested adding property, political opinion, social/economic origin: not implemented.

📜 7 · ARTICLE 16 AND RESERVATION POLICY

Clause	Rule
16(1)	equal opportunity in public employment for all citizens
16(2)	no discrimination only on religion, race, caste, sex, descent, place of birth, residence
16(3)	Parliament (not States) may prescribe residence rules
16(4)	reservation for backward classes not adequately represented (enabling)
16(4A)	reservation in promotions for SC/ST (consequential seniority)
16(4B)	carry-forward of unfilled vacancies: separate class, outside 50% for that year
16(5)	religious/denominational institution posts: holder must belong to that religion
16(6)	up to 10% EWS (not SC/ST/OBC); additional

Every New Post Belongs, Promotions Carry Rights, EWS – Equal chance (1) · No identity bias (2) · Parliament residence (3) · Backward (4) · Promotions SC/ST (4A) · Carry-forward (4B) · Religious posts (5) · EWS (6)

Trap: OBC job reservation flows from **16(4)**, not 16(5) (religious posts), although a later handout heading says "Article 16(5)".

Provision	What it does
Art 15(4)	SEBC, SC, ST in education
Art 16(4)	public employment
Art 46 (DPSP)	promote educational and economic interests of weaker sections

Group	Reason
👫 SC	untouchability, social exclusion
👫 ST	isolation, exploitation
👫 OBC	social and educational backwardness
EWS	economic disadvantage
👫 Women, PwDs, Minorities	lack of representation

Some Rights Speak – Share (economic redistribution) · Respect (cultural recognition) · Say (political representation: reserved seats; descriptive to substantive representation)

Type	Meaning	Example	Backing
Vertical	across groups SC, ST, OBC, EWS	SC 15, ST 7.5, OBC 27, EWS 10 %	Arts 15(4), 16(4), 15(6), 16(6)
Horizontal	inside each group: women, PwDs, ex-servicemen	33% women within each category	Arts 15(3), 16(1)

CLASS · Central quota numbers and Art 16

Central govt quota	%
🧑‍🤝‍🧑 SC	15
🧑‍🤝‍🧑 ST	7.5
🧑‍🤝‍🧑 OBC	27
EWS (general)	10
📜 PwD (40% disability, PwD Act 2016)	4 jobs · 5 education
Total as class sums it	63.5 jobs · 64.5 education

16(1) "employment" is wide: appointment date, pay, increment, pension, superannuation. 💡
16(2): State cannot fix domicile; only Parliament by law (domicile = residence requirement). First country with domicile-based qualification: USA.

1957
Public Employment Act: HP, Manipur, Tripura, Andhra Pradesh may reserve Group C–D for locals

1974
Act expires

1973
32nd Am: Art 371D (AP and Telangana): reserve C and D posts for locals

J&K domicile: 15 years resident; or studied 7 years and sat Class X and XII there; or registered migrant (and children); or children of govt employees served 10 years. ⭐

Affirmative action: term used by J.F. Kennedy; anti-discrimination measures giving access to preferred positions to groups otherwise excluded or under-represented (IITs, IIMs, AIIMS, LS, MPs, MLAs). 16(4): backward classes not adequately represented. ✅

🏛️ CLASS · Why reservation: early history

Why reservation: equal share (jobs), equal respect (educational institutions), equal voice (SC/ST in LS and Assemblies). 💡

1902
Maharaja of Kolhapur: first reservation steps

Art 330
LS: 84 SC + 47 ST = 131

Art 332
SC/ST in Assemblies; 104th Am 2019 extends to 2030

2019
Anglo-Indian seats end: Art 331 (2 in LS), Art 333 (2 in LA by Governor)

🎯 CLASS · 81st Am backlog: worked example

	Before 81st Am	After 81st Am 2000 (Art 16(4B))
Year 1	total 100, reserved 50, backlog 30; only 20 filled	regular 50 + backlog 30 as separate class = 80 reserved
Year 2	quota 30 lost; 30 backlog + 20 current = 50 (cap holds)	regular 50 + backlog 20 = 70 reserved

🧑‍🤝‍🧑 8 · SC, ST AND OBC

	Scheduled Castes	Scheduled Tribes
Census 2011	16.6% (UP, WB, TN, Bihar, AP)	8.6% (MP, Chhattisgarh, Jharkhand, Odisha; Northeast; Maharashtra, Gujarat, Rajasthan, A&N)
🧑‍🤝‍🧑 List	Art 341: President specifies; only Parliament modifies; SC Order 1950	Art 342: same; ST Order 1950 as amended
📜 Special provisions	Arts 15(4), 16(4); Art 17; Art 46; Arts 330–334 (seats)	Arts 15(4), 16(4); Art 46; Arts 330–334
Quota	15% education, jobs; Lok Sabha, Assemblies (Arts 330, 332)	7.5% Union education, jobs; seats (Arts 330, 332); States by ST population
Others	Atrocities Act 1989; Protection of Civil Rights Act 1955	Art 244(1), 244(2) (Fifth: Scheduled Areas; Sixth: Autonomous District Councils, NE); Art 275(1) grants; Art 338A NCST; Atrocities Act 1989
📚 Religion	Hindu, Sikh, Buddhist only	no religion bar

Hard Starts, Broader — Hindu 1950 · Sikh 1956 · Buddhist 1990 (SC Order extensions)

Muslim and Christian Dalits excluded. Soosai v. Union of India (1985) upheld exclusion. Recent: Constitution Bench (2023) hears challenge to 1950 Order; Justice K.G. Balakrishnan Commission (2022) on SC status for converts to Christianity or Islam.

ST identification: only Parliament lists/delists (on Art 342 notification). Lokur Committee (1965): distinct culture, geographical isolation, backwardness (old "primitive traits" outdated). State of Maharashtra v. Milind (2000): courts cannot expand the ST list via synonyms or sub-tribes.

1 before 2 — SC list = Art 341, Tribes list = Art 342

CLASS · SC census and SC status for converts

1931 Census Commissioner J.H. Hutton criteria: (1) temple-entry prohibition, (2) pollution by touch or proximity. First Scheduled list 1931. Lists: SC 1200+ (Art 341), ST 700+ (Art 342). SC/ST lists: State prepares, Parliament changes by vote; OBC: Centre and each State keep own lists.

1985
Soosai (3 judges): SC status only Hindu/Buddhist/Sikh; Christians/Muslims to be examined, pending

2007
Ranganatha Misra Committee: give SC status to Dalit Muslims/Christians

2015
K.P. Manu: reconverts accepted by community regain SC

2022
Balakrishnan Committee (Oct); Govt affidavit opposes inclusion (Nov)

2024
Selvarani: no quota if conversion only for benefit

2026
Chinthada Anada (POA case, 2 judges)

Chinthada Anada 2026: Dalit converting to Christianity/Islam cannot claim SC protection or POA benefits. Converting to Hinduism/Buddhism/Sikhism needs proof of earlier caste, bona fide conversion, and acceptance and assimilation by the original caste community. Mains chain: Soosai, Misra, Balakrishnan, Selvarani, Chinthada.

Class vs handout: class notes Dalit Sikhs added 1950 and Buddhists 1990; handout gives Sikh 1956 (check). Muslim classes: Ashraf; Ajlaf (backward) + Arzal (Dalit) = Pasmanda ("left behind"), about 85%.

CLASS · Identification power, 342A and Mandal numbers

Case / Act	Holding
Jaishree Laxman Rao Patil 2021	Art 342A is a copy of Art 341, so only Centre identifies SEBCs; Maratha quota struck
105th Am 2021	342A(3): States may keep own SEBC (OBC) list

1953
1st Art 340 commission: Kaka Kalelkar

1979
Mandal: 27% OBC

1990
jobs implemented

1992
Indra Sawhney

2006
27% in educational institutions

Why 27%: Balaji case: reservation not above 50%; so SC 15 + ST 7.5 + OBC 27.

OBC

Provision	Detail
Arts 15(4), 16(4)	SEBCs in education and employment; no all-India caste census figure for OBCs
Art 338B (102nd Am, 2018)	constitutional status to NCBC; monitors safeguards, advises, inclusion/exclusion
Art 342A (102nd Am, 2018)	Central List of SEBCs notified by President
105th Am, 2021 (earlier 127th Bill)	restores States' power to keep State OBC lists
Central quota	27% Central jobs and Central Educational Institutions (CEI Act, 2006) with non-creamy layer filter; minority institutions exempt (Art 30)

Non-Creamy Layer: from Indra Sawhney (Mandal Commission, 1992); excludes the advanced; valid NCL certificate; income/occupation criteria notified. **Identification:** Central List proposed by States/UTs/NCBC, scrutinised by NCBC, notified by President (Art 342A); State Lists by State bodies; criteria from Kaka Kalelkar, Mandal (social, educational, economic); religion no bar.

Rohini Commission (2017–), Justice G. Rohini

→ few advanced OBC groups take most of the 27%
→ studied admission/recruitment data; gaps in fresh data
→ idea: split 27% into backward / more backward / most backward
→ legal backdrop: Indra Sawhney (1992) permits sub-classification
→ models: Tamil Nadu MBC, Karnataka 2A/2B/3A/3B, Andhra Pradesh
→ challenge: tiers within 50% ceiling, avoid fragmentation

1951
Madras v. Champakam Dorairajan strikes caste admissions; First Am inserts 15(4)

2005
93rd Am: Art 15(5)

2006
CEI Act: 27% OBC

Apr 2008
Ashoka Kumar Thakur: upheld; creamy layer excluded

CREAM – C Constitutional post-holders (high constitutional positions) · R Rank of Colonel and above in armed forces · E Employees in senior government posts: Group A and B · A Advocates, doctors and other professionals · M Money: annual family income above Rs 8 lakh (creamy layer: kept out of OBC quota)

Creamy-layer income ceiling

→ Rs 1 lakh (1993)
→ Rs 2.5 lakh (2004)
→ Rs 4.5 lakh (2008)
→ Rs 6 lakh (2013)
→ Rs 8 lakh (2017). Also covers President, Vice-President, SC and HC judges, UPSC members, CAG, trade/business/industry, agricultural land above a limit.

In the news · Aug 2026 (verify dates) Creamy layer, Rohith Nathan case: not decided by parental salary alone, post status counts; separate income rules for govt and PSU/private parents violate Arts 14, 16.

🎯 MANDAL TO INDRA SAWHNEY PYQ 2022

1979 Mandal Commission (Art 340, B.P. Mandal): 3743 castes, 52%; 27% jobs + 22.5% SC/ST

1990 V.P. Singh implements

1991 Narasimha Rao: economic filter + 10% for poor among higher castes (struck down)

1992 Indra Sawhney (Mandal case)

1993 Ram Nandan Committee (creamy layer); NCBC

1995 77th Am: SC/ST promotions

Mandal's Votes Nudged India's Reservation Story — Mandal Commission (1979) · V.P. Singh implements (1990) · Narasimha Rao: economic filter and 10% (1991) · Indra Sawhney (1992) · Ram Nandan Committee, creamy layer (1993) · Seventy-seventh Am, promotions (1995)

#	Indra Sawhney (1992) holding
1	27% OBC reservation valid
2	creamy layer excluded
3	no reservation in promotions under 16(4)
4	total reservations 50% ceiling, except exceptional cases (applied every year)
5	carry-forward valid within 50%; permanent statutory body for OBC list review

Very Clever Panel Fixes Caps — Valid 27% · Creamy layer out · Promotions barred · Fifty percent cap · Carry-forward valid

Reply to Indra Sawhney	Effect
77th Am (1995)	promotions for SC/ST (Art 16(4A))
81st Am (2000)	backlog vacancies may exceed 50%
82nd Am (2000)	Art 335: relax qualifying marks for SC/ST promotions
85th Am (2001)	consequential seniority from June 1995
76th Am (1994)	Tamil Nadu 1993 Reservation Act (69%) into Ninth Schedule

Pay Back Service — Promotion (77th, 1995) · Backlog beyond 50% (81st, 2000) · Seniority consequential (85th, 2001)

Extra Indra Sawhney: existing promotion reservation continued for five years only (up to 1997); no marks relaxation in promotions (efficiency, Art 335). 77th, 81st, 85th concern SC/ST, not OBC. ⭐

CLASS · Indra Sawhney 1992: more points

#	Extra points from class
1	Not adequately represented is the test: if a group already has its share, no quota
2	50% cap unless exceptional circumstances ("norm vs exception"); applies to each year
3	Identification of backward classes: subject to judicial review
4	16(4) always read with Art 335 (efficiency): 82nd Am 2000 added proviso
5	Quota only in initial recruitment, not promotion
6	Unfilled seats carried forward for max 3 recruitment years
7	10% economic quota of Narasimha Rao: rejected

CLASS · Creamy layer: criteria and Rohith Nathan

Ram Nandan Committee 1993: status test	Excluded
Parents	either parent Group A direct recruit; both parents Group B / constitutional post
Army	either parent Lieutenant or above
Private/PSU	status test separate (no equivalent post)

👫 Income test

→ 1993 Rs 1L
→ 2004 2.5L
→ 2008 4.5L
→ 2013 6L
→ 2017 8L. Salary and agriculture not counted; business and rent counted. NCBC suggested 10L and 12L (class: only ~2% households earn 12L+).

Class · 2026 Rohith Nathan: SC struck down the 2004 DOPT clarification (status test for govt posts, income test only for PSU/private parents, implemented 2015: discriminatory); Govt must weigh income + status together.

After Indra Sawhney, targeting benefits: (1) identify creamy layer (2) revise lists (3) sub-classify. Class data: 2600+ of 3743 OBC castes got no benefit; about 50% of the Central list got only 3% of benefits. ✅

CLASS · Sub-classification: Rohini, Chinnaiah, Davinder

2004
E.V. Chinnaiah (5 judges): no sub-classification within SC (homogeneous)

2017
Rohini Commission (Art 340) on 27% OBC; report 2023, not public; rumoured split A10, B9, C6, D2

2024
Davinder Singh (7 judges): sub-classification within SC/ST allowed if evidence-based and open to judicial review

Davinder Singh 2024 arose from Punjab SC and BC (Reservation in Services) Act 2006: half of SC quota for Balmikis and Mazhabi Sikhs. 💡

CLASS · Promotions: Nagaraj to Jarnail Singh

Quota = equality of opportunity vs outcome. Class data: 2019 Secretaries 89 (SC 1, ST 3, OBC 0); Addl. Secretaries 93 (SC 6, ST 5, OBC 0); Joint Secretaries 271 (SC 13, ST 9, OBC 19): case for promotion quota. 💡

1995
77th Am: Art 16(4A)

2006
Nagaraj: read with Art 335; under-representation; quantifiable data; creamy layer filter

2018
Jarnail Singh I: creamy layer upheld; no quantifiable data needed

2022
Jarnail Singh II: no yardstick for under-representation; review period left to govt (reasonable); no retrospective effect

CLASS · Ram Singh 2015: who deserves quota

Ram Singh 2015 (OBC inside varna order; SC/ST outside it): (1) historic injustice alone is not enough; (2) groups deserving quota is a continuous evolution, e.g. transgender as third gender added to OBC list (2014). Vertical discrimination backs 15(4), 16(4). Knowledge centres: NCBC, ICSSR, NGOs. ⭐

9 · EWS: ELIGIBILITY PYQ 2022

Test	Rule
Community	not SC/ST/OBC
Family income	below Rs 8,00,000 a year (all sources), previous financial year
Family unit	applicant, parents, spouse, children below 18 (education: siblings below 18 too; employment: minor children)
Agricultural land	below 5 acres
Flat	below 1000 sq ft
Plot, notified municipality	below 100 sq yards
Plot elsewhere	below 200 sq yards

8-5-1000-100-200 — Income Rs 8 lakh · Land 5 acres · Flat 1000 sq ft · Plot 100 sq yd (notified) · Plot 200 sq yd (other). All limits must hold.

EWS application

→ Education 15(6): up to 10%, government + private unaided; not Art 30 minority; Union directions 2019; Income and Asset Certificate

→ Employment 16(6): up to 10% initial appointments; January 2019 order, direct recruitment under Union; property of family clubbed; SC/ST/OBC excluded

→ Scientific/technical carve-out if all three: above lowest Group-A grade; classified scientific/technical under 1961 Cabinet Secretariat Order; research or its direction

→ false certificates: cancellation and penalties; States may adopt aligned norms

Handout alert: family unit given three ways; use base definition, and "siblings below 18" for institutions.

CLASS · EWS: problems with the 103rd Am

Problem	Point
1	50% ceiling breached (class: now 63.5%)
2	Indra Sawhney: quota for not adequately represented; general category is adequately represented
3	Quota framework built for vertical (caste) discrimination
4	Court: income cannot be the only test of backwardness
5	Fake EWS certificates, hence annual renewal

Janhit Abhiyan v. UOI 2022: 5 judges, 3:2; quota beyond 50% does not violate Basic Structure. Art 15(6) 10% education; 16(6) 10% jobs.

CLASS · Reserved candidate above general cut-off

Source	Rule
2009 standing order	no move to general if claiming age/fee relaxation, lower qualifying marks, physical standard; counted in reserved
Jitendra Kumar 2010	reserved candidates above general cut-off can be in general (court corrected the order)
NEW Sajib Roy 2025	no automatic right to migrate; depends on recruitment rules/notification

Is reservation a fundamental right? No: Mukesh Kumar 2020: Arts 15(4), 16(4) only enabling; State not bound to give quota.

CLASS · Maratha reservation

1918 Hyderabad Gazette (Nizam): Marathas of Marathwada backward

2014 Cong-NCP: 16% Maratha quota

2016 Bombay HC stay

2017 Justice Gaikwad (MSBCC)

2018 SEBC Act: 16%; HC cuts to 13% jobs, 12% education

2021 Jaishree Laxman Rao Patil: struck down (above 50%)

2024 Shukre Commission (84% backward); law: 10% quota; Kunbi certificates, OBC list

Mains frame: why do dominant castes (Kapus AP, Patidars Gujarat, Jats Haryana, Marathas) demand quota? Intro: socially dominant, partly prosperous, yet seek OBC status. Points: (1) M.N. Srinivas: numerous, own land, dominate agriculture; (2) land split across generations; (3) farming less profitable; (4) OBCs gained from policy while these slid; (5) unprepared for urban formal jobs. Close: needs jobs and skills, not only quota. ✅

CLASS · Caste census and SECC

Caste counted 1881–1931 (Mandal used this data); since 1951 only SC/ST. SECC 2011 done but figures never released. 💡

For

→ OBC numbers unknown: targeted action impossible

→ Art 340 inquiry, revising lists

→ SC wants contemporary data

Against

→ promotes casteism

→ sharpens divides, national unity

Class · Bihar 2022-23 Bihar caste survey: Centre opposed (caste = Union List 69; Census Act 1948 silent; privacy); Patna HC allowed as survey. SC 19.65%, ST 1.68%, OBC 27.12%, EBC 36.01% (about 85% together).

CLASS · Why quota benefits do not reach

Cause	Detail
Posts	Group D stopped, some Group C; contractual group D: no quota
Lateral entry	Secy to U.Secy levels (ARC II also); court: quota cannot apply to a single post
NFS	"Not found suitable" used to keep seats vacant in Central universities, UGC colleges

CLASS · Sons of soil and religion-based quota

Haryana State Employment of Locals Act 2020: 75% private jobs paying up to Rs 30,000 for locals. P&H HC 2023 struck down: violates Art 16, 19(1)(g), movement/residence (Art 19), hurts economy, shifts govt's duty to create jobs. 📌

Class · 2023 Karnataka: 4% Muslim quota (since 1994) scrapped before 2023 polls, given to Vokkaligas and Lingayats. Against religion quotas: whole community not backward, conversions, disharmony, secularism.

CLASS · India vs USA: affirmative action

	India	USA
Equal protection	from the start	14th Am 1868
Affirmative action	codified in Constitution	not codified; Kennedy executive order (early 1960s); "DEI"
Apex court	bench system	SCOTUS: 9 judges sit together (en banc)

SFFA 2023 (Students for Fair Admissions), 6:3: race-based admission at Harvard and Univ. of North Carolina illegal. ⭐

10 · ARTICLES 17 AND 18 PYQ 2020 PYQ 2022

Art 17: untouchability abolished

→ practice in any form forbidden; enforcing any disability = offence
→ Parliament makes punishment law under Art 35
→ not defined: caste-based social exclusion (temples, shops, wells)
→ SC: enforceable against State and private individuals
→ Mysore HC: historical caste practice, not every social boycott

1955 Untouchability (Offences) Act: first law

1976 Protection of Civil Rights Act (renamed 1955 Act)

1989 SC/ST (Prevention of Atrocities) Act: special courts

Under Parliament's Article — Untouchability (Offences) Act 1955 · Protection of Civil Rights Act (1976 renamed) · Atrocities Act 1989

Art 18	Provision
(1)	State confers no title (citizen or foreigner) except military or academic distinctions
(2)	citizen cannot accept title from foreign State
(3)	foreigner holding office of profit or trust: no foreign title without President's consent
(4)	no present, emolument or office from foreign State without President's consent

Sir Can't Fancy Prefixes — State gives none · Citizen takes none · Foreigner in office needs consent · Presents need consent

Rationale: British titles (Rai Bahadur, Khan Bahadur, Maharaja) divided society. Allowed: honorary degrees, military (Param Vir Chakra), academic distinctions, merit awards if not hereditary titles.

1954 four civilian awards: Bharat Ratna, Padma Vibhushan, Padma Bhushan, Padma Shri

1977 discontinued (Morarji Desai govt)

1980 revived (Indira Gandhi govt)

1996 Balaji Raghavan: valid if not used as prefix or suffix

Big Victories Build Stature — Bharat Ratna · Padma Vibhushan · Padma Bhushan · Padma Shri (descending)

Misuse as title (e.g. "Padma Shri X"): award can be forfeited. Padma awards also interrupted 1978–79, 1993–97. Limits: Padma at most 120 a year (excluding posthumous, NRI, foreigner, OCI); Bharat Ratna at most three a year.

CLASS · Art 17: offences, POA Act, issues

Offences under Civil Rights Act

→ insulting an SC member on ground of untouchability
→ preaching it · justifying it
→ refusing entry to worship place, hospital, restaurant, water source, cremation ground, public place
→ punishment: 1 to 6 months; disqualification from elections (class: 6 months, 6 years after release; check)

Feature	Meaning
Presumption of guilt	accused must prove innocence
Cognizable	arrest without warrant
Non-compoundable	no settlement even if victim agrees

SC/ST (POA) Act 1989, 2015 Am	Change
Special courts	trial in 2 months

NEW 17 new atrocities	e.g. slipper garlanding, insulting SC/ST leaders
Official neglect	non-SC/ST public servant: 6 months jail

POA issues: police register under 1/3 of cases; conviction rate 26%; unaware victims; costly battles; some false cases.

2018 — Subhash Mahajan: no automatic arrest; preliminary enquiry; Dy SP/SP permission

2018 — POA Am: Sec 18A reverses it: no enquiry, no approval, no anticipatory bail

2019 — SC recalls Mahajan

CLASS · Art 18: awards extras

Award	Class note
Padma Vibhushan	exceptional, distinguished service (1st class)
Padma Bhushan	distinguished service of higher order (2nd)
Padma Shri	distinguished service in any field (3rd)
Bharat Ratna	service of highest order; PM recommends to President; no formal nomination

Class vs handout: class says awards began 1954 and Padma classes (Pehla/Doosra/Teesra varg) in 1955; handout gives all four in 1954. Bharat Ratna "9th in Table of Precedence" (class diagram unclear).

Padma: announced on eve of Republic Day; Padma committee: Cabinet Secretary (chair), Home Secy, Secy to President, 4–6 eminent persons, then PM, then President. 2017 opened to online and self-nomination (2014: 2,200; 2020: 46,000). PB and PS: same person not again for 5 years; govt servants and PSU staff excluded except doctors, scientists. No cash: Sanad + medallion.

Bharat Ratna: first three 1954: C. Rajagopalachari, S. Radhakrishnan, C.V. Raman. Youngest Sachin Tendulkar; oldest D.K. Karve (1958, about 100). Foreigners: Mandela, Abdul Ghaffar Khan, Mother Teresa. Posthumous allowed. 2024 (election eve): five (Advani, M.S. Swaminathan, Karpoori Thakur, P.V. Narasimha Rao, Charan Singh) despite the "max 3" policy.

11 · ARTICLE 19: SIX FREEDOMS PYQ 2022

Art 19(1): six freedoms, citizens only; originally 7; 44th Am (1978) removed property (19(1)(f)); no (f). Restrictions 19(2)–19(6).

Freedom	Clause	Restrict	Grounds
Speech and expression	19(1)(a)	19(2)	sovereignty and integrity, security of State, friendly relations, public order, decency/morality, contempt of court, defamation, incitement
Assemble peaceably, without arms	19(1)(b)	19(3)	sovereignty and integrity; public order
Associations, unions, co-operatives	19(1)(c)	19(4)	sovereignty and integrity (16th Am 1963); public order; morality
Move freely	19(1)(d)	19(5)	general public; protection of STs
Reside and settle	19(1)(e)	19(5)	same
Profession, trade, business	19(1)(g)	19(6)	general public; State monopoly 19(6)(ii); professional/technical qualification

MATURE — M Move freely, 19(1)(d) · A Assemble, 19(1)(b) · T Trade/profession, 19(1)(g) · U Unions, 19(1)(c) · R Reside, 19(1)(e) · E Expression, 19(1)(a)

Some Adults Always Move, Rest, Practise — Speech · Assemble · Association · Move · Reside · Profession; restrictions 2–3–4–5–6 = a–b–c–d/e–g

In the news · Jul 2026 (verify dates) **Public order in 19(2):** inserted by **First Am, 1951**, not original. Art 19 rights for citizens only.

In the news · Jul 2026 (verify dates) **SC on right to protest:** peaceful protest guaranteed, police excess unjustifiable, violence against police too; sought uniform protocol. Links Art 19(1)(a),(b),(c), 19(2),(3).

CLASS · Inferred rights and original 19(2)

Inferred rights: not written in the Constitution, derived by interpretation. Under 19(1)(a): right to be **silent**, press freedom, right to **information**, right to **advertise**.

Original 19(2) (1950)	After 1st Am 1951
Libel, slander, defamation; contempt; decency, morality	kept
"Undermines security of State"; "tends to overthrow State"	reworded/removed
–	+ friendly relations with foreign States, public order, incitement; "reasonable" and "in the interest of"

1st Am 1951 = "Second Constitution": curtailed 19(1)(a); added 15(4); added 31B / Ninth Schedule (land reforms). Motive: govts amend when they dislike a judgment. **Ninth Schedule = "Island of Unconstitutionality"** vs Art 13.

SPEECH 19(1)(a) PYQ 2014 PYQ 2013

Mains: hate speech and films (2014); **Section 66A, IT Act** vs Art 19 (2013); movement and residence not absolute (2022).

Head	Case / detail
Right to receive information	two-way channel; includes criticising government policy
Press	no special privilege; protected from discriminatory laws
Silence, no anthem	Bijoe Emmanuel v. State of Kerala (1986)
Candidate information	PUCL v. Union of India (2002)
Internet	Anuradha Bhasin v. Union of India (2020)
Broadcast	Cricket Association of Bengal v. Union of India (1995)
National flag	Union of India v. Naveen Jindal (2004)

Big Public Actions Can Name – Bijoe (silence 1986) · PUCL (candidate info 2002) · Anuradha Bhasin (internet 2020) · Cricket Association (broadcast 1995) · Naveen Jindal (flag 2004)

Ground (19(2))	Added by
1 Sovereignty and integrity	16th Am, 1963
2 Security of State	original
3 Friendly relations with foreign States	1st Am, 1951
4 Public order, decency or morality	original
5 Contempt of court	original
6 Defamation	original
7 Incitement to an offence	original

See Some Friendly Police Catch Dangerous Incidents – Sovereignty · Security · Friendly relations · Public order–decency–morality · Contempt · Defamation · Incitement

Reasonableness

→ fair balance, not arbitrary or excessive

→ e.g. loudspeakers banned after 10 PM

Proportionality (stricter, European)

→ legitimate goal · suitable measure · least restrictive · benefit outweighs harm

→ total internet shutdown may fail; blocking specific content may pass

Law Should Limit Balanced — Legitimate goal · Suitable measure · Least restrictive · Benefit outweighs harm

CLASS · Criminal law renamed; defamation

Old (year)	New (2023)
IPC 1860	BNS Bharatiya Nyaya Sanhita
CrPC 1973	BNSS Bharatiya Nagarik Suraksha Sanhita
Indian Evidence Act 1872	BSA Bharatiya Sakshya Adhiniyam

About 90% provisions same, only numbering changed. CrPC = prevention, investigation, arrest, bail, chargesheet, trial; IEA = oral and documentary evidence, relevance, proof.

Defamation: BNS Sec 356, civil + criminal. Subramanian Swamy 2016: both upheld: reputation is part of Art 21; dignity and fraternity (Preamble). Problems of criminal defamation: self-censorship by media and opponents; supporters file cases in many courts; exceptions ignored; privilege of political leaders; public remedy for private wrong.

CLASS · Obscenity: laws and tests

Law	Provision
BNS 294, 295, 296	obscene books/paintings; sale to children; obscene acts/songs in public
Indecent Representation of Women Act 1986	–
IT Act 2000 Sec 67	obscene material in electronic form
POCSO 2012	child pornography: publication, transmission, possession illegal (viewing adult porn: SC said not a crime)

Test	Rule
Hicklin 1868 (UK)	tends to corrupt minds open to such influence; artistic merit ignored
Miller 1973 (USA)	(a) average person, contemporary community standards finds it obscene; (b) patently offensive sexual depiction; (c) lacks serious artistic, literary, scientific or political value

CLASS · Films: CBFC, FCAT, committees

Certificate	Meaning
U	unrestricted
U/A	under 12 with parental guidance
A	adults, 18+
S	special group, e.g. medical

Cinematograph Act 1952, Sec 5B: no certification of film attracting Art 19(2) grounds; cuts can be advised. TV: Cable TV Networks Regulation Act 1995; OTT: digital ethics code, IT rules. Sec 6 (Union revisionary power) struck down: "Shakrappa case, 2000" (as written). FCAT abolished 2021: appeal now to High Court (no experts, slow, costly).

2013
Mudgal Committee: member norms; censoring to certification; Model Cinematograph Bill

2016
Shyam Benegal Committee: certification only; U, UA12+, UA15+, A, A-caution, S (ignored)

2023
Cinematograph Am: U, UA7+, UA13+, UA16+, A, S; anti-piracy; certificate perpetual

CLASS · Why film differs; Heckler's veto

Medium affects expression: films face more limits than articles because of (1) wider outreach (2) sudden impact (3) absence of context. ✅

"Heckler's veto": State bans a film citing public order after threats of stone pelting; those who threaten get to veto speech. Ore Oru Gramathile 1989 and Rangarajan 1989 (as written): once CBFC-certified, State cannot plead public order. ⭐

CLASS · Sec 66A and Shreya Singhal

IT Act Sec 66A (2008 Am; 3 years): grossly offensive info, public menace, insult/injury, false info causing annoyance, hatred. Shreya Singhal 2015: struck down: vague, chilling effect, goes beyond 19(2). Class rule: discussion and advocacy allowed; incitement not. FIRs under it continued till 2023-24. 💡

CLASS · Freedom of speech: value and threats

Mains frame: importance of free speech and threats. Importance: intrinsic worth; cornerstone of democracy; tolerate unpopular views; disagreement is not enmity; no guarantee majority is right; clash of ideas, innovation, accountability ("speak truth to power"). Rule: err on the side of freedom (under-restrict). Threats: (1) antiquated laws (IPC about 90% colonial) (2) hypersensitive politicians, politics and satire "fraternal twins" (3) "lapdog" media (4) corrupt enforcement (5) weak judiciary (124A decided only in 2022) (6) online trolls. ✅

CLASS · Internet shutdowns; tests of reasonableness

Class · data Internet shutdowns: 2023: 116; 2024: 84. Anuradha Bhasin 2020: internet enables 19(1)(a), 19(1)(g), 21A; shut only in extreme cases; ties to the $1T digital economy.

Test for 19(2) "reasonable restriction"	Idea
Circumstantial	case by case
Proportionality	no more than needed
Nexus	link between restriction and aim; does it stop the misuse
Compelling public/national interest	overriding need

OTHER FREEDOMS

19(1)(b) assembly

→ meetings, demonstrations, processions, hunger strikes (UDHR recognises); not on government premises or private property without consent

→ T.K. Rangarajan v. State of Tamil Nadu (2003): no fundamental right to strike for government employees

→ must be peaceful; 19(3): sovereignty/integrity, public order

19(1)(c) association (6 facets)

→ right to membership

→ right to exit

→ State may nominate weaker sections to co-operatives

→ no prior permission to form

→ no right to recognition

→ no guarantee of objectives

19(1)(d), (e) movement, residence

→ Kharak Singh v. State of UP (1963): travel across India part of personal liberty

→ U.P. Avas Evam Vikas Parishad v. Friends Co-op Housing Society (1995): residence includes shelter and building houses

→ 19(5): general public (safety, health, environment); protection of STs

19(1)(g) profession

→ Excel Wear v. Union of India (1978): right to close; Section 25-O Industrial Disputes Act struck

→ Vishaka v. State of Rajasthan (1997): workplace sexual harassment; Vishaka Guidelines

→ not included: particular job, criminal/dangerous trade, trade with government, protection from competition

→ 19(6): general public (licensing, qualifications, ban on liquor, drugs); State monopoly 19(6)(ii); professional/technical qualification

Take Keys, Unlock Each Vault – T.K. Rangarajan (no strike 2003) · Kharak Singh (travel 1963) · U.P. Avas (shelter 1995) · Excel Wear (closure 1978) · Vishaka (harassment 1997)

CLASS · Assembly and protest

Why 19(1)(b), (c): citizens engage, pursue collective goals, political mobilisation. Restrictions: 19(3) for (b), 19(4) for (c). Right to protest grows from 19(1)(a) + (b).

Control on assembly	Detail
Processions	police fix route (Indian Police Act 1861); NOC from local police
Sec 144 CrPC = Sec 163 BNSS	max 5 persons; any Executive Magistrate (DM, SDM, tehsildar); misused; SC upheld, no guidelines
NOC norms	SC upheld: no right to assemble "anywhere"

Case	Holding
Himmat Singh 1973 (as written)	no right to protest anywhere, but State cannot ban every street
Rangarajan 1989 (as written)	suppress only if community interest genuinely endangered
Madras HC 2023	peaceful protest is a fundamental right
Shaheen Bagh 2020 (Amit Sahani)	anti-CAA sit-in blocked a road; SC: no indefinite occupation of public place
Ramlila Maidan 2012	night police charge on sleeping protesters (context)

Way forward: narrow limits, society tolerates some disruption. (1) SC guidelines on Sec 163 BNSS (2) no criminal cases on peaceful protesters (3) protect assemblies from majoritarian counter-protest (4) police reform: Police Act 1861 (Irish Constabulary model) is colonial; train police to facilitate rights and use minimal force.

CLASS · Strikes, ESMA, UAPA

Strike: long strike by civil servants = disciplinary offence under Conduct Rules. ESMA 1968: govt can declare a strike illegal and act.

UAPA 1967 Sec 10: after an organisation is declared unlawful (due process, chance to defend), a person who is or continues as member: 2 years. Arup Bhuyan 2011 (class note on its holding unclear) was overruled in 2023.

CLASS · Movement and residence: migration and limits

Migrants: about 450 million (Census 2011): intra-State 88%, inter-State 12%. Why inter-State is low: property purchase limits (HP, UK, J&K); domicile quotas in State institutes; policies against outsiders; regional bias.

19(5) restriction	Example
🗺️ Scheduled tribal areas	tourist permit
Inner Line Permit	Arunachal, Nagaland, Mizoram, Manipur (protect indigenous culture)
1873 Bengal Eastern Frontier Regulation	non-natives barred from tea areas; still in force
Quarantine	Epidemic Diseases Act
Public order	curfew
Externment	Goonda Acts; preventive; upheld by SC; guidelines needed

CLASS · 19(1)(g): legitimate trade and dance bars

19(6): general public interest; arms and liquor licensed; minimum qualifications; nationalisation (banks 1969). Court protects only a legitimate profession (judged by history, morality, social effect): money-lending legitimate, but States may curb usurious informal lending. ⭐

Indian Hotels and Restaurants Association 2013: Maharashtra dance-bar ban struck (HC, SC): regulate (e.g. cameras), do not prohibit.

12 · ARTICLE 20: CRIMINAL LAW SAFEGUARDS

Art 20: criminal laws only; citizens and foreigners; against conviction, not preventive detention. 💡

Clause	Protection	Rule
20(1)	ex-post-facto laws	no conviction except under law in force at the act; no greater penalty
20(2)	double jeopardy	not prosecuted and punished twice for same offence; "Nemo debet bis vexari"; needs court/tribunal prosecution and punishment; not departmental
20(3)	self-incrimination	accused not compelled to be witness against himself; formally accused only; oral and documentary

Every Day Safe — Ex-post-facto (1) · Double jeopardy (2) · Self-incrimination (3)

20(1): bars conviction and sentence, not trial (procedure may change); retrospective civil or tax law allowed; retrospective law reducing punishment valid. Not for preventive detention. ⭐

BIO — Bodily examinations: blood, hair, DNA · Impressions: thumb, specimen signatures, handwriting · Objects: production of material objects such as weapons (outside Art 20(3))

🎯 CLASS · Art 20(1) examples; narco tests

Scenario	Result
📜 Act legal for 50 years, made illegal in 2026 (3 years jail)	no punishment for past conduct
⚖️ Already illegal, case begun Jan 2026; Feb 2026 amendment raises penalty	not applied to that case
📜 Same, amendment reduces penalty to 1 year	reduced penalty applies; trial procedure follows new law

20(3): tests on accused

→ narco analysis (sodium pentothal), brain mapping, polygraph

→ Selvi v. Karnataka 2010: only with consent; forced tests violate Arts 20(3), 21

→ Amlesh Kumar 2025: no absolute right to demand narco; only at evidence stage, not bail

→ results not sole basis of conviction or acquittal; not admissible, but evidence discovered through the test is admissible

13 · ARTICLES 21 AND 21A PYQ 2021 PYQ 2019

Art 21: no deprivation of life or personal liberty except according to **procedure established by law**. Every person; enforced via Arts 32, 226, PILs. Privacy: Prelims 2021, 2018; Mains 2017, 2024. Marry person of choice = **Art 21** (Prelims 2019).

	A.K. Gopalan (1950)	Maneka Gandhi (1978)
Reading	narrow; procedure established by law; any enacted procedure valid	overruled Gopalan; fair, just, reasonable procedure = due process
Against	executive action only	executive and legislature
Articles	read separately	Arts 14, 19, 21 together; dignity

Grudging vs Mighty — Gopalan = Grudging (narrow, 1950) · Maneka = Mighty (broad, 1978)

Golden Triangle (Maneka Gandhi 1978): Art 14 (non-arbitrariness) + Art 19 (reasonable restrictions) + Art 21 (fair procedure); a law on liberty must pass all three.

Derivative right (35 in handout)	Case
Livelihood	Olga Tellis v. Bombay Municipal Corporation, 1985
Privacy	K.S. Puttaswamy v. Union of India, 2017
Health, medical care	Paschim Banga Khet Mazdoor Samity, 1996
Free education to 14	Unni Krishnan v. State of AP, 1993 (led to Art 21A)
Free legal aid	Hussainara Khatoon v. State of Bihar, 1979
Travel abroad	Satwant Singh v. Assistant Passport Officer, 1967
Sleep	Ramlila Maidan case, 2012
Information	precursor to RTI Act, 2005
Others	dignity · decent environment · shelter · against solitary confinement · speedy trial · against handcuffing, custodial torture, inhuman treatment, delayed execution, bonded labour, custodial harassment, public hanging, bar fetters · emergency medical aid · timely treatment in govt hospitals · not driven out of a State · fair trial · prisoners' necessities · women's decency · road access in hilly areas · reputation · appeal from conviction · family pension · social-economic justice · life insurance · noise-free · sustainable development · opportunity and equal access

One Person Holds Unlimited Human Status — Olga Tellis (livelihood 1985) · Puttaswamy (privacy 2017) · Paschim Banga (Health 1996) · Unni Krishnan (education 1993) · Hussainara (legal aid 1979) · Satwant Singh (travel abroad 1967)

Lakshmikanth lists 39: adds decent burial/cremation (36), marry person of choice (37), die with dignity / passive euthanasia (38), freedom from adverse effects of climate change (39). Cases: Francis Coralie Mullin (1981) dignity; Sheela Barse (1983) custodial harassment; Rural Litigation and Entitlement Kendra v. UP (1985) environment; Parmanand Katara (1989) emergency medical aid; Shantistar Builders (1990) shelter; Common Cause (2018) die with dignity. Handout: Hussainara = legal aid; LK: Hussainara = speedy trial, M.H. Hoskot v. State of Maharashtra (1978) = legal aid. Use handout.

Art 21A: free and compulsory education, **6–14** years; elementary only; **86th Am, 2002**. Art 45 now: early childhood care up to **6**; **Art 51A(k)** duty of parents. Art 45 (DPSP) earlier non-enforceable.

1992
Mohini Jain v. State of Karnataka: education right at all levels (overruled)

1993
Unni Krishnan: free to 14

2002
86th Am: Art 21A

2009
RTE Act

Many Unis Ask Rights — Mohini Jain 1992 · Unni Krishnan 1993 · 86th Amendment 2002 · RTE Act 2009

RTE Act 2009	Provision
Coverage	age 6–14; Class I–VIII
🗺️ State	Sarva Shiksha Abhiyan, later Samagra Shiksha Abhiyan; school within 3 km (primary), 5 km (upper primary)
No discrimination	no denial for documents, late admission, disability; no-detention policy (modified 2019)
Quota	25% seats private unaided schools, govt reimbursement
👥 Infrastructure	Section 19: pupil-teacher ratio (PTR), classrooms, water, toilets, playground, library
Teachers	qualifications by NCTE; no private tuition; non-academic duties only census, elections, disaster relief
Curriculum	child-centred; CCE (Continuous and Comprehensive Evaluation)
Banned	capitation fees, screening, mental harassment, corporal punishment; random selection
📜 Amendments	2012: children with disabilities; 2019: States may hold exams in classes 5 and 8, re-exam before detention

Children Study Now Quietly, Improve Tomorrow's Careers Properly — Coverage 6–14 · State (3 km, 5 km) · No discrimination · Quota 25% · Infrastructure s.19 · Teachers (NCTE) · Curriculum (CCE) · Punishment banned

💰 CLASS · Art 21: due process, B.N. Rau

Art 21 = citizens and non-citizens. Law must be fair, reasonable, substantive and procedural (due process). Gopalan 1950: guarded against executive, not legislature. Due process draws on natural justice and fair application of law. 💡

Why "procedure established by law": draft had "due process"; B.N. Rau met US Justice Felix Frankfurter, who warned due process sets Congress against the Court; Rau advised replacing it. ⭐

🛡️ CLASS · Suicide and right to die

Law / case	Point
IPC 309	attempt: 1 year
IPC 306 = BNS 108	abetment of suicide: 10 years
P. Rathinam 1994	penalising attempt violates Art 21
Gian Kaur 1996	overruled: no right to die, but right to die with dignity; court tests constitutionality, not desirability
📜 Mental Health Act 2017, Sec 115	attempt presumed "severe stress", not punishable
📜 Law Commission	309 should go

Decriminalise: for

→ survivor punished, the dead cannot be
→ needs treatment, not torture
→ global trend
→ Victorian Christian morality
→ punishes society's failure
→ golden-hour care

🧑‍🤝‍🧑 Against

→ individualistic capitalist tradition
→ cannot resume right to life
→ State duty to prevent violence even to self

CLASS · Euthanasia

Active (toxic injection) vs passive (withdraw life support; voluntary or involuntary). For: cost, bed scarcity, informal practice, ends suffering. Against: Hippocratic oath, abuse (property greed), no hope of miracle, slows research. 💡

2011
Aruna Shanbaug (2 judges): passive euthanasia in PVS; HC decides on 3-doctor panel; she died naturally after 2 years

2018
Common Cause: dignified death; living will (AMD)

2023
AMD guidelines eased

2026
Harish Rana (PVS 13 years): first court-approved; Govt asked for a law

2023 AMD guidelines	Earlier	Now
Attested by	Judicial Magistrate	Gazetted Officer or notary
Kept with	District court	National digital health record
Primary board	4 doctors, 20 years	3 doctors incl. treating (5 yrs) + 2
Secondary board	DM forms	district hospital panel
Time	none	48 hours
Appeal	-	HC fresh panel, then SC

Harish Rana 2026 test: (1) what the person would have chosen (2) best interests: what a reasonable person in that state would prefer (corrects Aruna 2011). ⭐

CLASS · Capital punishment

For

→ deterrent (a myth, class says)
→ closure for victim's family
→ symbolic value

🧑‍🤝‍🧑 Against

→ irreversible
→ cruel: hanging medieval (2023 petition; SC committee on method)
→ reformatory vs retributory
→ socio-economic bias in legal aid

Deterrence myth: USA: 23 States abolished; 27 retain with higher homicides. India murder rate per lakh: 4.6 (1992), 2.7 (2013), 2.49 (2017), 2.00 (2023). Certainty, not severity, deters. 📌

Source	Position
📜 Law Commission 35th, 1967	endorsed death penalty
📜 Law Commission 262nd, 2015	oppose, except terrorism
⚖️ ICC (Hague), UN tribunals	exclude death penalty even for genocide
South Africa 1995	unconstitutional: arbitrary (investigation, prosecutor, judge, accused's status, defence)

Furman v Georgia 1972 / Gregg v Georgia	USA: unconstitutional, then constitutional per State practice

CLASS · Art 21: capital punishment, prisons

Rarest of rare

→ Bachan Singh (1980): life = norm, death = exception; Sec 354(3) CrPC = 393 BNSS: reasons needed; aggravating = crime, mitigating = criminal (age, orphan, background); "rarest" undefined

→ Machhi Singh (1983) guides: manner · anti-social nature (communal killing) · motive (money, depravity) · magnitude · recidivism · victim (helpless child, mentally ill, leader, old); balance-sheet theory

1996
Ravji: aggravating favoured

2009
Bariyar: mitigating restored

2012
Sangeet v Haryana: balance sheet dropped

Problems: vague, media opinion, arbitrary. 2000–15: trial courts gave death to 1790; HC commuted 55%, acquitted 27%.

Prison term	Class point
⚡ Parole (Prisons Act 1894)	long-term (conditions) or short-term (family emergency); not absolute; States differ
Furlough	long-term convict (e.g. 25 yrs): 1-month break from monotony
NEW Pradeep Yashwant Kokade 2024	undue delay in mercy: fact-based (70+ yrs, mental illness), even 6 months can be undue; dedicated cell in Home Ministry

Sec 472 BNSS: no judicial review of President/Governor mercy decision; Home Minister advice in 60 days but no time limit for President; clashes with SC "limited judicial review" (Kehar Singh).

CLASS · Art 21: newer expansions, dignity

Case	Holding
NEW Ranjit Singh 2024 (Great Indian Bustard)	right against adverse effects of climate change: livelihood, clean water/air, food, health, indigenous peoples
NEW Jaya Thakur 2026	menstrual health = Art 21: free napkins · separate hygienic toilets · disposal · mandatory education · all schools in ~3 months; NCPCR supervises
Road safety	National Highways = 2% of roads, 30% of fatalities
📬 Sunil Gupta 1991 (as written)	handcuffing an affront to dignity, unconstitutional except rare cases; Sec 43 BNSS allows: serious offence, habitual, escaped custody
📬 Shailendra Rai 2022 (as written)	two-finger test banned; continuing it = misconduct

Menstrual leave: SC declined to order (firms hire fewer women, fewer top posts; voluntary leave possible); told to approach Health Ministry. Teacher: sits oddly with the menstrual-health right.

Critique of Art 21 expansion: (1) where are the resources? (2) reading a right in does not deliver it (3) speedy and fair trial only courts can enforce. ✅

CLASS · Art 21: animals, rivers

2011
bulls listed under PCA Act 1960: Jallikattu banned

2014
Animal Welfare Board v A. Nagaraj: right to life covers animals

2016
Centre drops bulls; SC stays

2017
TN ordinance; Art 29(1) culture

2023
AWBI v UOI: upheld, safety directions

5 freedoms of animals

→ (Universal Declaration of Animal Welfare, cited by SC): hunger/thirst/malnutrition
→ discomfort
→ pain/injury/disease
→ fear/distress
→ normal behaviour. Teacher: recognise as animal FRs. Links Art 48A, 51A(g).

Speciesism: human interest over animals only by species; tackled like racism. Shift: anthropocentric to biocentric.

Class · 2025 Stray dogs (SC suo motu): ~20K bites a year (~2K Delhi). First: round up to shelters. Counter: ABC Rules 2023 (no relocation). Final: release after sterilise-vaccinate; not released if rabid/aggressive; ban public feeding (designated spots only); municipal helplines; clear strays from hospitals, schools; unified national policy.

ABC Rules 2023 (C-S-V-R)

Catch → Sterilise → Vaccinate → Release

Rights of nature

→ NZ 2017: Whanganui river = living person (Maori)
→ Uttarakhand HC: Ganga, Yamuna living persons; "parents" = Namami Gange Director, Chief Secretary, Advocate General of Uttarakhand
→ SC stayed: Ganga crosses many States

CLASS · Gender, sexuality, same-sex marriage

Sex = biological; gender = self-identity (cis when matching). Yogyakarta Principles (Indonesia, 2006): LGBTQ rights. Gains: passport, ration card, Aadhaar, property, marry, adopt.

Year	Case	Point
2009	Delhi HC	decriminalised Sec 377 IPC (10 yrs/life): Art 14, Art 21 dignity/privacy, 19(1)(a)
later	SC Naz Foundation (Koushal [?])	overruled Delhi HC
2014	NALSA	third gender; binary rejected; Arts 14, 15, 16; 19(1)(a) gender expression; self-identity under 21
2018	Navtej Johar	decriminalised; Shafin Jahan 2018: marry person of choice = 21
2019	Madras HC (Arun Kumar)	cis-man + trans-woman marriage valid
2023	Supriya Chakraborty (5J)	no FR to marry (3J vs 2J split on points)

Against

→ 377 decriminalised but no FR to marry
→ clashes with family unit; HMA, Shariat, CMA, PMA
→ societal concept of marriage
→ no children; slippery slope
→ leave to Parliament

For (5J)

→ denial on orientation = Art 14
→ restriction valid only to prevent harm
→ Special Marriage Act 1954 read gender-neutral
→ partnership without marriage lacks rights

Verdict: SMA cannot be read gender-neutral; Parliament to decide; TGs can marry; committee under Cabinet Secretary for same-sex couple entitlements. 30-35 countries allow (e.g. Taiwan).

CLASS · Privacy, personality rights, lynching

⚡ 8 functions of privacy (teacher: Imp)

→ intrusion: shield from surveillance
→ personal autonomy: control own data
→ free expression without eavesdropping
→ dignity: reputation, image
→ security: financial, medical data; theft, fraud
→ health and safety: seek doctor/lawyer without exposure
→ no discrimination by misuse of data
→ builds trust in society

Puttaswamy 2017 (details): 9J, 9:0. Govt argued privacy is an elitist notion. Court: rejected originalism; privacy a natural right (exists without Constitution), restrictable by law, evolves case by case; boundary with 19(1)(a) vague. Overruled ADM Jabalpur (Art 21 suspendable in Emergency).

Class vs handout: class dates ADM Jabalpur 1975; the note records 1976 (check).

Personality rights: likeness, voice, image, signature not to be exploited commercially; no specific law; 19(1)(a) and 21; partly Trademark Act 1999, Copyright Act 1957. AB v Rajat Nagi 2023 (as written), Delhi HC: unauthorised celebrity use violates privacy and identity. Deepfakes. Teacher: new threats to civilisation = climate change, nuclear holocaust, biotechnology, AI.

Mob lynching: Love Jihad, Gau Raksha, honour killing; earlier IPC 300/302. Tehsin Poonawala 2018: guidelines for States. BNS 103(2): 5+ persons, race/caste/community: each death or life.

14 · ARTICLE 22: ARREST AND DETENTION PYQ 2019

Punitive: after trial and conviction. Preventive: without trial, on suspicion, to prevent future offence.

Clause	Provision
22(1)	told grounds as soon as possible; consult and be defended by lawyer of choice
22(2)	produced before nearest magistrate within 24 hours
22(3)	exceptions to (1), (2): (a) enemy alien; (b) preventive detention
22(4)	no detention beyond 3 months unless Advisory Board of HC judges reports sufficient cause
22(5)	grounds communicated; earliest opportunity of representation
22(6)	facts against public interest need not be disclosed
22(7)	Parliament may prescribe cases beyond 3 months without Board, maximum period, Board procedure

I Put Every Accused Guarded Near Police — Informed (1) · Produced 24 hrs (2) · Exceptions (3) · Advisory Board 3 months (4) · Grounds + representation (5) · Non-disclosure (6) · Parliament's power (7)

44th Am (1978) cut Board-free detention from 3 to 2 months, but not enforced: 3 months still applies.

In the news · Jul 2026 (verify dates) West Bengal Public Safety and Control of Anti-Social Activities Bill, 2026: Art 22(3) exempts preventive detention from 22(1)–(2); 22(4) caps at three months without Advisory Board.

	Ordinary arrest	Preventive detention
Who	not enemy aliens or preventive detainees	citizens and aliens

🛡️ Safeguards	grounds; lawyer; magistrate within 24 hours (excluding travel); no more without authorisation	max 3 months without HC Board; grounds (except public interest); representation
Not applicable	court-ordered, civil, tax-default arrests, deportation of aliens	

Preventive detention power	Subjects
🏛️ Parliament exclusive	defence of India, foreign affairs, security of India
🆕 Concurrent	security of a State, public order, supplies and services essential to community

Delhi Fully Secures — Defence · Foreign affairs · Security of India

Past laws	Current laws
📜 Preventive Detention Act 1950; MISA 1971–78; TADA 1985–95; POTA 2002–04	COFEPOSA 1974 (forex, smuggling); NSA 1980; PBMSECA 1980 (blackmarketing); PITNDPSA 1988 (narcotics); UAPA 1967 (amended 2004, 2008, 2012, 2019)

People Must Think Politely — PDA 1950 (PDA = Preventive Detention Act) · MISA 1971–78 · TADA 1985–95 · POTA 2002–04

Cops Nab Poachers, Pushers, Unlawful groups — COFEPOSA 1974 · NSA 1980 · PBMSECA 1980 · PITNDPSA 1988 · UAPA 1967

👫 CLASS · Bail, arrest, Arnesh Kumar

Why bail: presumption of innocence; liberty (21); reputation. "Bail the norm, jail the exception". Balchand (1978) deny if: flee, tamper evidence, intimidate witnesses, repeat crime. Bailable = right (officer can grant); non-bailable = court discretion. 💡

Bail type	Point
Regular	ordinary
Interim	till regular bail decided
Anticipatory	before arrest; Sessions Court/HC; discretionary
Default	BNSS 187: charge sheet not filed in time: 60 days ordinary, 90 heinous

	Police custody	Judicial custody
Max / place	15 days, lock-up	court custody, jail
Interrogation	yes	needs court permission
Note	e.g. bail refused after 3 days, then judicial	House arrest (BNSS 187): own/other house, e.g. medical

Arnesh Kumar 2014: Sec 41/41A CrPC = Sec 35 BNSS. Offence up to 7 yrs: notice first, arrest only on non-cooperation. Arrest without warrant: police fill a checklist of reasons; court examines. Applies to ordinary IPC offences, not special laws. Aim: lower courts as guardians, fewer casual arrests. ⭐

📜 CLASS · Special laws, ED, UAPA

UAPA 1967, NDPS 1985, PMLA 2002: BNSS norms do not apply; bail hard. PMLA Sec 45 twin test: (1) public prosecutor heard (2) court satisfied accused likely not guilty (mini-trial).

2017
Nikesh Tarachand Shah: twin test arbitrary

2022
Vijay Madanlal Choudhary: overruled; twin test valid

⚡ ED powers criticised
→ detain without reasons
→ arrest without full grounds (Art 22)

→ ECIR (like FIR) copy not given
→ presumption of guilt
→ statements to ED admissible (police confessions are not: Sec 25 IEA 1872)
→ wide money laundering: Sec 3 PMLA (possession, concealment, use, projecting as untainted)

ED: 1956 Enforcement Unit, 1957 Directorate; Dept of Revenue, Finance. PMLA 2002, FEMA 1999, Fugitive Economic Offenders Act 2018. Class data: since 2005, 6000+ cases, 24 convictions; 85% against opposition politicians (as noted). No law on wrongful detention.

K.A. Najeeb 2021: UAPA does not bar constitutional courts granting bail for speedy-trial violation. UAPA Sec 15 terrorist act: intent to threaten unity, integrity, security (incl. economic), strike terror by bombs, firearms, lethal weapons. Umar Khalid bail refusal widened it to speech, chakka jams: blurs terrorism and protest.

CLASS · Custodial violence, torture

~5 custodial deaths a day

→ poor police recruitment, training
→ poor lock-ups, infrastructure
→ manpower: UN norm 222 per lakh, India 155
→ career pressure for fast convictions
→ media and social pressure
→ weak judicial oversight
→ weak senior supervision

Protection: Art 20(3), 21, 22; Sec 53 BNSS medical exam; Sec 196 BNSS mandatory magisterial inquiry into custodial deaths; D.K. Basu guidelines (1996 onwards).

UN Convention against Torture 1987: India signed 1997, not ratified (fear of external scrutiny; J&K, Northeast needs; govt: no anti-torture law). Paramvir Singh Saini v Baljit Singh 2020: CCTV in interrogation rooms incl. CBI, NIA, ED.

15 · EXPLOITATION: ARTS 23, 24 PYQ 2017

Art 23	Provision
23(1)	traffic in human beings, begar, similar forced labour prohibited; offence
23(2)	State may impose compulsory service for public purposes; no discrimination on religion, race, caste, class

Art 23: citizens and non-citizens; against State and private. Traffic: buying, selling humans; Devadasi system; Immoral Traffic (Prevention) Act, 1956. Begar: unpaid service by zamindars. Forced labour: bonded labour; below minimum wage. Laws: Bonded Labour System (Abolition) Act, 1976; Minimum Wages Act, 1948; Contract Labour Act, 1970; Equal Remuneration Act, 1976.

Art 23 case	Holding
PUDR v. Union of India (1982)	"force" includes economic compulsion; below minimum wage = forced labour
Bandhua Mukti Morcha v. Union of India (1984)	bonded labour, inhuman working conditions

Tough Bosses Forbidden — Traffic · Begar · Forced labour

Sex work: for

→ regulation
→ protection from trafficking, disease
→ labour rights
→ less middlemen exploitation
→ hygiene, safety

Sex work: against

→ more trafficking
→ commodification
→ legitimises patriarchy
→ wrong social message
→ ITPA 1956 bans brothels, pimping, soliciting; not voluntary private sex work; experts: social protection

Art 24: no child below **14** in factory, mine or hazardous employment; against State and private; family work, art, education-related allowed.

1938
Employment of Children Act

1986
Child Labour (Prohibition and Regulation) Act: **18 occupations, 65 processes**

2016
renamed **Child and Adolescent Labour Act**: ban under 14 except family enterprise, audio-visual entertainment; **Adolescents 14–18** barred from hazardous work

Early laws

→ Employment of Children Act 1938
→ Factories Act 1948
→ Mines Act 1952
→ Plantation Labour Act 1951
→ Motor Transport Workers Act 1951
→ Bidi and Cigar Workers Act 1966
→ Apprentices Act 1961
→ Merchant Shipping Act 1958. The 1986 Act allowed non-hazardous child labour (conflicted with Art 21A).

Step	Detail
M.C. Mehta v. State of Tamil Nadu (1996)	Child Labour Rehabilitation Welfare Fund; employer deposits **Rs 20,000** per child
Ban of **2006**	under-14 domestic servants, roadside eateries, hotels, spas
Commissions for Protection of Child Rights Act, 2005	National and State Commissions; Children's Courts

Under One-four, Adolescents Rested — Under 14 (Art 24) · Occupations 18, processes 65 · Adolescents 14–18 (2016) · Rs 20,000 (M.C. Mehta 1996)

CLASS · Arts 23, 24 add-ons; sex work

Class question	Answer
A works for B, underpaid, unwilling: forced labour?	yes (teacher)
Why no gender in 23(2)?	men needed in war etc.
State bound by non-discrimination in compulsory service?	not written, but in scope: yes
Art 24: non-hazardous work under 14?	conflicts with **Art 21A** (6–14, RTE 2009); Child Labour Amendment Act 2016

ITPA 1956

→ sex work per se not a crime; illegal: brothel, pimping, public place (hotels). Legalised: NZ, Germany, Denmark. **Pradeep Ghosh Committee 2011:** prevent trafficking
→ rehab for those leaving
→ conducive conditions for those staying.

Budhadev Karmaskar 2022 (10 directions)

→ adult consenting: police must not interfere
→ victim of assault gets same facilities
→ raid: no arrest, penalty, harassment
→ State survey of protective homes; release adult women held against will
→ sensitise police
→ identity not revealed
→ consult sex workers on laws, schemes
→ rights workshops
→ child not separated from mother
→ Aadhaar card

16 · RELIGION: ARTS 25, 26

Art 25	Rule
25(1)	conscience; profess, practise, propagate; subject to public order, morality, health, other FRs; all persons
25(2)(a)	State may regulate secular activity linked to religion
25(2)(b)	social welfare and reform; open Hindu public institutions to all Hindus
Expl I	kirpan part of Sikh profession
Expl II	"Hindus" includes Sikh, Jaina, Buddhist

Calm People Pray Peacefully — Conscience · Profess · Practise · Propagate (not forcible conversion)

Limits: no untouchability, human sacrifice, animal cruelty as religion; cannot override gender equality. **Rev. Stainislaus v. State of MP (1977):** propagation is not conversion; forced/fraudulent conversion violates conscience. **Gujarat Freedom of Religion (Amendment) Act, 2021:** District Magistrate permission; some provisions stayed by Gujarat HC; other States: MP, Odisha, Himachal Pradesh.

Landmark case	Outcome
Shirur Mutt (1954)	religious vs secular; Essential Religious Practices (ERP) doctrine
Stainislaus (1977)	propagate is not convert
Nikhil Soni v. Union of India (2015)	Rajasthan HC banned Santhara; SC stayed
Sabarimala (2018)	women's entry upheld
Azaan case (Allahabad HC, 2020)	azaan essential; loudspeakers not

Some Students Never Skip Assembly — Shirur Mutt 1954 · Stainislaus 1977 · Nikhil Soni 2015 · Sabarimala 2018 · Azaan 2020

Art 26 (denominations)	Right
26(a)	institutions for religious, charitable purposes
26(b)	manage own affairs in religion
26(c)	own and acquire property
26(d)	administer property per law

I Manage Own Assets — Institutions · Manage religion · Own property · Administer property

Denomination test

→ common beliefs/doctrines
→ common organisation
→ distinctive name
→ Ramakrishna Mission, Ananda Marga yes; Aurobindo Society no

Bold Old Names – Beliefs · Organisation · Name

Denominations keep property protection under 26(c), (d) after 1978; State may acquire religious property for public purpose but protect shrine's character.

	Art 25	Art 26
Right	individual	collective (denominations)
Beneficiaries	all persons	denominations only
Limits	public order, morality, health and other FRs	public order, morality, health; not other FRs
Secular	State regulates (25(2)(a))	no interference in essential religion; secular management regulated

CLASS · Art 25-26 add-ons

Propagate is the sensitive word: Stainislaus 1977: no right to convert, so conversion is not a legal right. Judge of force/fraud/allurement: State (teacher). Anti-conversion laws; permission from State in some; challenged in SC (outcome not noted).

Property and denominations: citizens lost property right (Art 31, 19(1)(f)); denominations keep 26(c), (d). Eminent domain = govt seizing private property for public use; denomination property can be acquired if the institution survives; right not absolute.

1817 Madras Regulation: EIC controls Hindu temples

1840 temples freed (missionary pressure)

1925 Madras Hindu Religious and Charitable Act; Sikh Gurdwara Act (SGPC elected Sikhs)

1951 State regulation re-enacted (as written)

1954 Shirur Mutt: essential vs non-essential (finance, personnel)

Why only Hindu temples? SC: public in character; Hinduism = way of life (no one prophet, God, rule book); govt as "biggest representative of the public". Arya Samaj, Ramakrishna Mission claims of separate religion rejected (as noted).

Hinduism vs Hindutva: inclusive way of life vs political, exclusive. Ramesh Prabhoo: class writes 1966 (verify 1995/96); SC conflated them, promised a review bench never set up.

Santhara (Nikhil Soni 2015): Rajasthan HC banned: Sec 309 IPC (attempt to suicide), 306 (abetment); practice cannot violate right to life; not ERP. SC stayed; pending.

SC: 3 tests to continue a practice

Essential Religious Practice → *Public interest* → *Reformist goal of Constitution*

Critique: courts give yes/no certainty on subjective culture.

Sabarimala

→ celibate deity; Haji Ali, Shani Shingnapur: Bombay HC allowed entry 2016. Indian Young Lawyers Association v Kerala 2018 (5J) allowed women; review sent to 9J, pending. Four clashes: individual v State

→ individual v individual (horizontal)

→ group v State

→ State restriction in public interest. 26(b) vs 25(2); ancient custom passes only the 3 tests. Open: temple with a statutory board = State?

Azaan (Allahabad HC 2020, covid): azaan ERP, loudspeaker not. ⭐

17 · ARTS 27, 28

Art 27: no compulsion to pay taxes for a particular religion. Tax vs fee: fee for service permitted (Vaishno Devi, Tirupati crowd management: constitutional); tax to maintain Hindu temples or churches, Jaziya: unconstitutional. 💡

Art 28	Rule
28(1)	no religious instruction in institution wholly State-funded
28(2)	not for State-administered institution under trust or endowment requiring it
28(3)	no compulsion in State-recognised or aided institution without consent (guardian for minors)

Institution type	Instruction	Attendance
🗺️ (a) Wholly State	prohibited	n/a
👑 (b) State-administered under trust	permitted	may be compulsory
(c) Recognised	permitted	voluntary
(d) Aided	permitted	voluntary

We Allow Religion Among volunteers — Wholly State (banned) · Administered under trust · Recognised · Aided

I Can Teach Everyone — Individual religion (25) · Collective (26) · Taxes (27) · Education instruction (28)

CLASS · Art 27-28 add-ons

Jaziya (tax on non-Muslims) abolished by Akbar; Art 27 bars such taxes. Haj subsidy (class: Rafiq Bhikan 2012): challenged under 27; phase out in 10 years; shrine entry fee for security allowed. ⭐

Class vs handout: case name and year as written in class; the usual citation is Prafull Goradia v UOI 2011 (check).

Aruna Roy 2002: NCFSE 2002 upheld. Religious education (about religions, values) allowed; religious instruction (making one follow a religion) not. Recognised/aided institutions: above 18, own consent. ⭐

Class · pending case KVS prayers: case filed 2019, SC bench. Against: Art 28 instruction, atheists, scientific temper. For: no conversion, invocation, morality. Suggestion: rotate texts or an all-faith prayer.

📚 18 · CULTURAL AND EDUCATIONAL: ARTS 29, 30

Clause	Rule	Type
29(1)	any section of citizens with distinct language, script, culture may conserve it (minority or majority)	group
29(2)	no denial of admission to State-maintained/aided institution only on religion, race, caste, language	individual
30(1)	religious and linguistic minorities: establish and administer institutions of choice	
30(1A)	compensation on acquisition must not abrogate right (44th Am, 1978)	
30(2)	no aid discrimination because minority-managed	

"Minority" not defined; judicial. Art 30 exclusive to minorities. Malankara Syrian Catholic College case (2007): four rights under 30(1). ⭐

Art 30(1) right	
1	governing body
2	appoint staff, discipline
3	admit students, reasonable fees
4	use property for institution

Good Schools Always Prosper – Governing body · Staff · Admission · Property

Nature of Art 30	Detail
Not absolute	maladministration can be checked
Reasonable regulation	qualifications, curriculum, discipline, safety; not dilute core control
No reverse discrimination	equal treatment, not superior privileges
📜 General laws apply	labour, tax, building, public order, health

Minority institution	Position
Recognised and aided	State regulation and oversight
Recognised, unaided	more autonomy; academic standards
Unrecognised, unaided	free in internal management; general laws

All for 29, Minorities for 30 – Any section (29) vs Minorities only (30)

👫 CLASS · Minorities framework and institutions

Common domain

→ Preamble: secularism, liberty of belief
→ Arts 14, 15, 16, 25–28
→ 51A(e) harmony, (f) composite culture, (h) scientific temper

Special domain

→ 15(5), 15(6): minority institutions outside
→ Art 25: kirpan
→ Arts 29, 30
→ 347, 350A, 350B: language recognition; mother-tongue primary education; special officer

Not defined. NCM Act 1992 (Sec 2(c): as notified by Centre); NCMEI Act 2004. Linguistic minorities identified at State level, religious at national. 1993: Muslims, Christians, Parsis, Buddhists, Sikhs; 2014: Jains. Hindus are minority in Ladakh, Kashmir, Punjab, Lakshadweep, Meghalaya etc. 💡

TMA Pai 2002: identify minorities at State level (district level struck). Centre told SC States may identify (e.g. Maharashtra: Jews), retracted in 2 days: only Centre notifies. Challenge to Sec 2(c) pending; Lingayats, Bahais seek status. ⭐

MEI position	Rule
Aided, 29(2)	reasonable number (~50%) non-minority admitted; State rules reasonable, merit-based procedure
Unaided	own admission, fair and transparent
Both	State fixes teacher/principal qualifications; Art 30 is no right to mal-administer; all citizens can invoke Art 30 (teacher)

Md Rafiq 2020: West Bengal Madarsa Service Commission Act 2008 upheld; aided MEIs have no absolute right to appoint teachers. ⭐

1875 MAO College

1920 AMU by Act

1967 Azeez Basha: State-set, not MEI

1981 Act amended: MEI

2006 Allahabad HC strikes; SC stays, 7J

2024 AMU v Naresh Agarwal: Basha overruled

AMU 2024 tests (burden on community): Genesis (funds, land) · Purpose (preserve minority culture, educate its students). Statute does not end MEI status; Art 30 covers pre-1950 universities; secular teaching, hiring competent staff no loss. JMI: central university 1988; declared MEI 2011; Delhi HC challenge. ⭐

Anjum Qadri 2024: UP Madarsa Education Board Act 2004; Allahabad HC struck it (16,000 madarsas, 16 lakh students); SC reversed, but madarsas may certify up to 12th, not Fazil/Kamil degrees. ⭐

Pramati Educational Trust 2014: RTE 25% EWS quota not for MEIs; criticised (best schools; mixing classes); larger bench to review. ⭐

19 · ARTICLE 32: REMEDIES AND WRITS PYQ 2024 PYQ 2022

Clause	Provision
32(1)	right to move SC guaranteed
32(2)	directions, orders, writs: habeas corpus, mandamus, prohibition, quo warranto, certiorari
32(3)	Parliament may empower other courts (none yet)
32(4)	not suspended except as Constitution provides (Art 359)

Writ	Meaning	Purpose	Not against
Habeas Corpus	"to have the body"	test legality of detention; most effective safeguard of liberty; against public authorities and private persons	lawful detention, competent court order, outside jurisdiction; not in contempt of legislature/court
Mandamus	"we command"	public authority to do legal duty; directs activity	private individuals, discretionary functions, President and Governors, contracts
Prohibition	"to forbid"	higher court to lower court/tribunal: stop excess of jurisdiction; preventive; directs inactivity	administrative, legislative bodies, private; only judicial/ quasi-judicial
Certiorari	"to be certified"	quash or transfer order already passed; preventive and corrective; error of law, lack/excess of jurisdiction; since 1991 also administrative authorities	legislative bodies, private
Quo Warranto	"by what authority"	tests claim to public office; any interested citizen can file	only substantive statutory/ constitutional offices; not private, ministerial

CHAMP — Certiorari: to be certified; quash lower order · Habeas Corpus: have the body · Authority: Quo Warranto · Mandamus: we command · Prohibition: forbid lower court (five writs under Art 32)

How May People Challenge Quickly — Habeas · Mandamus · Prohibition · Certiorari · Quo Warranto

Shortcut

→ detention = Habeas
→ duty undone = Mandamus
→ lower court exceeds, stop = Prohibition (before)
→ quash/transfer order = Certiorari (also after)
→ illegal claim to office = Quo Warranto.

	SC (Art 32)	HC (Art 226)
💡 Nature	itself an FR	constitutional power, not FR
Scope	FRs only	FRs and other legal rights
🤝 Obligation	cannot refuse	discretionary
🗺️ Territory	throughout India	HC limits (cause of action)
Emergency	right suspended by Art 359 order	HC power continues; enforcement of named FRs may be barred
👥 Basic structure	judicial review part of it	also part of it

Art 32 is original but not exclusive: concurrent with Art 226. Before 1950 only Calcutta, Bombay, Madras HCs issued writs. ⭐

Five Stars Over The Entire Building — FR itself vs power · Scope · Obligation · Territory · Emergency · Basic structure (both)

📬 CLASS · Writs: extra points

Art 139: Parliament may extend SC writ power beyond FRs (teacher). Handout (ch14) mentions only Centre–State agreement.

Mandamus not against also: Chief Justice of HC in judicial capacity; legislature in legislative function. Injunction (class, outside the five): mandatory (like mandamus, against private persons) · preventive (like prohibition, against case party). ⭐

20 · ARTS 33, 34, 35

Art 33 covers	Persons
(a)	Armed Forces
(b)	forces charged with public order
(c)	intelligence/counter-intelligence bureaus
(d)	telecom staff of (a)–(c)

A Police Inspector Transmits — Armed forces · Public-order forces · Intelligence · Telecom

Art 33: only Parliament; law beyond judicial review for FR violation; can restrict speech, unions, political parties/trade unions, press, demonstrations; includes non-combatants (barbers, cooks, carpenters, mechanics, tailors, chowkidars); court martial may be excluded from writs. Laws: Army Act 1950, Navy Act 1950, Air Force Act 1950, Police Forces (Restriction of Rights) Act 1966, Border Security Force Act 1968. ⭐

Art 34 (martial law): restrictions on FRs while martial law in force; Parliament may indemnify officials, validate punishments; Act of Indemnity not struck merely for violating FRs. Martial law not defined; differs from Military Law (armed forces only). Civil administration suspended; military governs the area. 💡

	Martial law	National Emergency (352)
Grounds	local breakdown of law and order	war, external aggression, armed rebellion
Scope	specific area	whole country or part
Administration	military runs civil administration; courts may be suspended	civil government and courts continue
Basis	no code; Art 34	Part XVIII (Arts 352–360)
FRs	restricted locally (Art 34)	Art 19 auto-suspends for war/external aggression (358); 359; Arts 20, 21 not
🗺️ Centre–State	none	Art 353 (Union legislates on State List); Arts 354, 83, 172

Alert: 358 = war or external aggression only; the broader list ("or armed rebellion") describes Art 352 grounds.

Art 35

→ exclusive power of Parliament (not States) for uniformity: 16(3) residence rules
→ 32(3) other courts' writs
→ 33 forces
→ 34 indemnity
→ penalties for 17 (Protection of Civil Rights Act, 1955) and 23 (Immoral Traffic (Prevention) Act, 1956; Bonded Labour (Abolition) Act, 1976).

Right Way And More Under The law — Residence 16(3) · Writs by other courts 32(3) · Armed forces 33 · Martial law 34 · Untouchability penalty 17 · Trafficking penalty 23

CLASS · Art 34, waiver

Martial law: civil administration suspended, military governs; forces may violate FRs knowingly or not. 41 Shots case (NYPD, boy with toy gun shot): unintentional violation; Parliament can indemnify.

Martial law has no defined grounds, duration or Parliament approval; National Emergency has all three.

Doctrine of waiver: Behram case 1954 (as noted): FR cannot be waived; they bind the State, nobody may relieve it of duty. Ordinary legal rights can be waived.

21 · PROPERTY AND SHIELDS 31A, 31B, 31C PYQ 2021

1950
one of 7 FRs: Art 19(1)(f); Art 31 public purpose + compensation

1951
1st Am: Arts 31A, 31B, Ninth Schedule

1955
4th Am: adequacy of compensation not justiciable

1971
25th Am: "compensation" becomes "amount"; 31C inserted

1978
44th Am: Arts 19(1)(f), 31 repealed; Art 300A in Part XII

2007
I.R. Coelho

1-4-25-39-42-44: 1st (1951), 4th (1955), 25th (1971), 39th, 42nd, 44th (1978); first five protect agrarian laws or cut scrutiny; 44th ended the FR. LK adds 7th and 40th. Compensation rule for personal-cultivation land within ceiling (31A proviso): 17th Am (1964).

Property today (Art 300A)	
Status	legal/constitutional right to any person; not FR; not Basic Structure
Protection	only against executive action; legislature can curtail by ordinary law
Remedy	HC under Art 226, not Art 32
Compensation	not guaranteed, except: (a) minority institution property (Art 30); (b) personal-cultivation land within ceiling (31A proviso)
Otherwise	Land Acquisition, Rehabilitation and Resettlement Act, 2013

Must Lay compensation — Minority institutions (Art 30) · Land within ceiling limits (31A proviso)

Shield	What it saves	Limits
31A	from Arts 14, 19: (1) estates taken over; (2) management of properties; (3) merging corporations; (4) directors/shareholders rights; (5) mining leases	State laws need President's assent; ceiling land needs market-value compensation
31B	all Ninth Schedule laws; 1951: 13 land reform laws; now 280+ (actually 282; last entry 284; entries 87, 92, 130 deleted; one is 257A)	Coelho (2007): laws after 24 April 1973 struck if violating Arts 14, 19, 21 or Basic Structure
31C	laws for Art 39(b), 39(c) from Arts 14, 19; inserted by 25th Am (1971)	Kesavananda struck "cannot question" part; 42nd Am (1976) extended to all DPSPs; Minerva Mills (1980) cancelled; State law needs President's assent

Every Minister Checks Director Meetings — Estates · Management · Corporations merged · Directors/shareholders · Mining leases (31A)

Waman Rao (1980) fixed the 24 April 1973 cut-off (the Basic Structure chapter says 1981).

CLASS · Property: framework and shields

Original: 19(1)(f); 31(1) authority of law (LAA 1894, then 2013); 31(2) public purpose + compensation. 25th Am 1971: "amount", not so low as confiscation. Two ways to weaken RTP: change the framework, or new exception laws.

31B / Ninth Schedule: land reforms, also Tamil Nadu Act 1993, MRTP Act 1969 (abolished). 31D (42nd Am 1976): anti-national activity laws immune from Arts 14, 19; repealed by 43rd Am 1977. In J&K, RTP existed under its own Constitution (till 2019).

Class vs handout: class says 31C extended to all DPSPs by 41st Am 1976 (handout: 42nd); Waman Rao 1981 (handout: 1980). Check.

22 · CRITICISM, SIGNIFICANCE, RIGHTS OUTSIDE PART III

PYQ 2017

#	Criticism	Detail
1	Excessive limits	Art 19 lists more restrictions than rights; Jaspat Roy Kapoor
2	No socio-economic rights	no work, social security, rest and leisure (guaranteed in USSR, China)
3	Lack of clarity	vague terms; Sir Ivor Jennings: "paradise for lawyers"
4	No permanency	amendable (property 1978); only basic structure
5	Suspension in Emergency	except Arts 20, 21; 1975–77 Emergency
6	Expensive remedy	costly, slow
7	Preventive detention	Art 22; colonial hangover
8	Ninth Schedule evasion	dilutes "fundamental"
9	Over-libertarian	egalitarian rights in non-justiciable Part IV
10	No philosophical consistency	Jennings

Every Single Law Needs Scrutiny, Especially Preventive Exceptions Our Nation — Excessive · Socio-economic missing · Lacks clarity · No permanence · Suspension · Expensive · Preventive detention · Evasion by 9th Schedule · Over-libertarian · No consistent philosophy

#	Significance
1	bedrock of democracy
2	individual liberty
3	Rule of Law
4	equality, social justice
5	secular character
6	minority protection

7	dignity
8	check on governmental power
9	material and moral security
10	catalyst for social transformation

Big Ideas Really Enrich Society, Making Democracy Confident, Modern, Changing — Bedrock · Individual liberty · Rule of law · Equality · Secular · Minorities · Dignity · Check on power · Material–moral security · Catalyst

Outside Part III	Provision	Remedy
265 (Part XII)	no tax except by authority of law	HC / civil court
300A (Part XII)	no deprivation of property except by law	HC Art 226
301 (Part XIII)	trade, commerce, intercourse free throughout India	HC, not Art 32
326 (Part XV)	adult suffrage, age 18	election law, not Art 32

Tax Pay Trade Vote — Tax 265 · Property 300A · Trade 301 · Vote 326

Prelims links: property = legal right of any person (Art 300A) (2021); right to vote and be elected = constitutional right, not FR (2017). Rights vs duties: correlative (2017). Welfare State = DPSP (2015). Liberty = opportunity to develop oneself fully (2019).

CLASS · Elections, rights outside Part III

Importance: democracy lives between elections (psephology = study of elections): protest, dissent; individual liberty via 19(1)(a), (b).

Right to vote = statutory, Sec 62 RPA 1951; Art 326 = right to be on the roll. Art 301 violation goes to HC. Art 265 consent to tax through legislators (representatives).

NUMBERS AND CASE BANK

Number	Fact
24 hours	magistrate (22(2))
3 months	preventive detention without Board
2 months	notice for suits against President/Governors (361)
6–14	Art 21A
15, 7.5, 27, 10	SC, ST, OBC, EWS %
50%	ceiling (Indra Sawhney)
25%	RTE private seats
16.6% and 8.6%	SC, ST (Census 2011)
13 and 280+	Ninth Schedule laws 1951, now
3743 castes; 52%	Mandal estimate

In the news · Sep 2026 (verify dates) Film certification: I&B Ministry notified New Guidelines for Film Certification, 2026 under the Cinematograph Act, 1952, superseding 1991 notification. Maternity rights: Rakhi Bisht v. Union of India (2026), Delhi HC: maternity leave cannot diminish professional status; cited Arts 14, 15, 21, 42.

Mains frame (Art 19, Art 21, gender justice): Intro (Part III shields the individual) → rights with reasonable limits (19(2), proportionality) → Art 21 expansion (Maneka, Puttaswamy) → courts as guardians, Art 32 → conclude: liberty with responsibility.

Recall drill: cover and answer

Article spans of the six FRs?	14–18, 19–22, 23–24, 25–28, 29–30, 32	Which Articles are never suspended in Emergency?	Arts 20 and 21 (44th Am, 1978)
Art 13(4) added by? Case?	24th Am 1971; Kesavananda 1973 (basic structure)	Six conditions of Art 19(2)? How many grounds, which added 1951 and 1963?	Seven grounds; friendly relations 1951; sovereignty and integrity 1963 (16th Am)
Gopalan vs Maneka Gandhi?	1950 narrow, procedure established by law vs 1978 fair, just, reasonable; Golden Triangle 14, 19, 21	Five writs and the one filed by any citizen?	Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo Warranto; Quo Warranto
Preventive detention: time and Board?	3 months; Advisory Board of HC judges (22(4)); 24 hours to magistrate (22(2))	Reservation quotas and ceiling?	SC 15, ST 7.5, OBC 27, EWS 10; 50% (Indra Sawhney), not absolute (Janhit Abhiyan 2022)
EWS limits?	Rs 8 lakh; 5 acres; 1000 sq ft; 100 and 200 sq yd; 103rd Am 2019; 15(6), 16(6)	Property after 1978?	Art 300A legal right (44th Am); remedy Art 226; compensation only minority institution and ceiling land
Which case allowed sub-classification within SC/ST (2024) and which denied it (2004)?	Davinder Singh 2024 (7 judges) allowed; E.V. Chinnaiah 2004 (5 judges) denied	Nagaraj (2006) vs Jarnail Singh I (2018) on promotion quota?	Nagaraj: quantifiable data + creamy layer; Jarnail Singh I: creamy layer upheld, no quantifiable data
Hicklin (1868) vs Miller (1973) test?	Hicklin (UK): tends to corrupt; Miller (USA): community standard, patently offensive, lacks serious value	Why did the Constituent Assembly drop "due process"?	B.N. Rau, after Justice Frankfurter warned of Congress–Court conflict, advised "procedure established by law"

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ST = Scheduled Tribes — Tribal groups listed under Art 342

HC = High Court — State-level constitutional court (Art 214)

OBC = Other Backward Classes — Socially and educationally backward groups eligible for reservation (Art 15(4), 16(4))

EWS = Economically Weaker Sections — 10% reservation in jobs and education (103rd Amendment, 2019)

BNSS = Bharatiya Nagarik Suraksha Sanhita, 2023 — New procedure code that replaced the Code of Criminal Procedure

IPC = Indian Penal Code, 1860 — Old criminal code, replaced by the BNS

RTE = Right to Education — Art 21A and the RTE Act, 2009: free and compulsory education for ages 6–14

UAPA = Unlawful Activities (Prevention) Act, 1967 — Main anti-terror law; allows banning organisations and designating terrorists

NCBC = National Commission for Backward Classes — Constitutional commission under Art 338B (102nd Amendment, 2018)

PSU = Public Sector Undertaking — Company owned mainly by the government

BNS = Bharatiya Nyaya Sanhita, 2023 — New criminal code that replaced the Indian Penal Code

ED = Enforcement Directorate — Agency that enforces PMLA and FEMA

RTI = Right to Information — Citizens can seek records from public authorities under the RTI Act, 2005

UN = United Nations — World body of states founded in 1945 for peace, security and cooperation

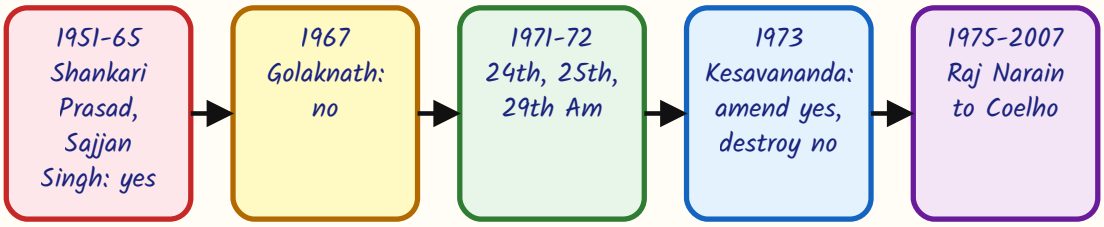
PM = Prime Minister — Head of the Union government

⚖ BASIC STRUCTURE ⚖

PYQ Prelims 2020, 2018 (x2), 1994 · Mains 2019, 2016, 2014

✎ *Parliament may amend, but cannot destroy the Constitution's core identity: Kesavananda Bharati (1973), 13 judges, 7:6.*

⚖ At a glance: story of the doctrine



Basic Structure Doctrine: Parliament can amend any part but not alter its fundamental identity. Art 368 confers a limited power. Balances Parliament's authority and supremacy of the Constitution. Amend: yes. Destroy the basic structure: no. 💡

Terms: Constituent power = Art 368, vs ordinary law-making. Prospective application (Waman Rao 1981). Rights test, essence test (Coelho 2007). Mini-Constitution = 42nd Am (1976, Emergency). No fixed list; critics call it overreach. ⭐

🎯 BEFORE KESAVANANDA PYQ 1994

Case	Challenged	Held
Shankari Prasad v. Union of India (1951)	First Am, 1951 (property, to help land reform)	Yes: Parliament can amend any part incl. FRs; "law" in Art 13(2) = ordinary legislation only
Sajjan Singh v. State of Rajasthan (1965)	17th Am, 1964 (property)	earlier view reaffirmed; Justices Hidayatullah and Mudholkar doubted: first sign of inherent limits
I.C. Golaknath v. State of Punjab (1967)	overturned the two earlier cases	No: 11-judge bench; FRs transcendental, immutable; amendment is "law" under 13(2), void if it curtails FRs; constitutional impasse

Some Students Got Knowledge – Shankari Prasad (1951) · Sajjan Singh (1965) · Golaknath (1967) · Kesavananda (1973)

Slow Steps Guard Keystone – S Shankari Prasad (1951) · S Sajjan Singh (1965) · G Golaknath (1967) · K Kesavananda Bharati (1973)

Yes, Yes, No: Shankari Prasad yes, Sajjan Singh yes, Golaknath no (amending FRs); Kesavananda: yes, but not the basic structure. ✅

🏛 PARLIAMENT'S REACTION

Amendment	What it did
24th Am, 1971	Parliament can amend any provision incl. FRs; amendment not "law" under Art 13; amended Art 13 and Art 368
25th Am, 1971	curtailed property; DPSP precedence over FRs; Art 31C protects laws for Art 39(b), 39(c)
29th Am, 1972	two Kerala land reform laws into Ninth Schedule

All Cows Keep calm – Amend power = 24th · C31C = 25th · Kerala laws in Ninth Schedule = 29th

Golaknath challenged the 17th Am (1964), which put certain state acts in the Ninth Schedule. ⭐

KESAVANANDA BHARATI (1973) PYQ 1994

Kesavananda Bharati v. State of Kerala, 1973

→ head of Edneer Mutt, Kerala; challenged 24th, 25th, 29th Am
→ 13-judge Bench (largest), 7:6
→ upheld 24th Am: amend any part incl. FRs
→ but no power to alter or destroy basic structure
→ amendment is not an ordinary law under Art 13(2); Parliament has legislative and constituent power
→ cut-off date 24 April 1973
→ expressly overruled Golaknath: FR can be taken away only if not part of basic structure

Thirteen Sages split seven-six — Thirteen judges · Seven to six

Trap: Golaknath bench = 11 judges; Kesavananda = 13. Handout numbers the two issues "10", "11" (printing slip): there are only two questions (limits of Art 368? can essential features, incl. FRs, be altered?).

AFTER KESAVANANDA PYQ 2018 PYQ 2016

Case	Trigger	Outcome
Indira Nehru Gandhi v. Raj Narain (1975)	Allahabad HC voided Indira Gandhi's election (1971 polls); 39th Am, 1975 inserted Art 329A: elections of PM, President, VP, Speaker beyond courts	struck down; free and fair elections, judicial review; first use against an amendment
Minerva Mills v. Union of India (1980)	42nd Am (1976), Emergency 1975-77: Art 368(4) and (5): no court challenge, no limit	both struck; limited amending power is itself basic; FR-DPSP harmony; judicial review; a limited power cannot become unlimited
Waman Rao v. Union of India (1981)	Ninth Schedule	doctrine applies to amendments after 24 April 1973 (prospective)
S.R. Bommai v. Union of India (1994)	Art 356 misuse	federalism basic; States not mere agents; President's Rule reviewable if mala fide or irrelevant grounds; secularism, democracy, unity and integrity, judicial review
I.R. Coelho v. State of Tamil Nadu (2007)	nine-judge bench; Ninth Schedule, Art 31B	no blanket immunity; laws after 24 April 1973 open if violating Arts 14, 19, 21; rights test, essence of right test

I Met Wise Boys Confidently — Indira Nehru Gandhi v. Raj Narain (1975) · Minerva Mills (1980) · Waman Rao (1981) · Bommai (1994) · Coelho (2007)

Indira's Mistake: We Block Changes — I Indira Nehru Gandhi v. Raj Narain (1975) · M Minerva Mills (1980) · W Waman Rao (1981) · B Bommai, S.R. (1994) · C Coelho, I.R. (2007)

Pattern: every time Parliament put something beyond courts (329A, 368(4) and (5), Ninth Schedule) the Court answered with basic structure and judicial review. 39th = 329A; 42nd = 368(4), (5); Waman Rao = cut-off; Coelho = rights tests, 14, 19, 21. PYQ 2018: Parliament can place a law in the Ninth Schedule, but its validity can be examined. ✅

TABLE OF BASIC FEATURES (26 CASES)

No.	Case (Year)	Elements
1	Kesavananda (1973) (Fundamental Rights Case)	supremacy of Constitution; separation of powers; republic and democratic form; secular; federal; sovereignty and unity; freedom and dignity of individual; welfare state mandate; parliamentary system
2	Indira Nehru Gandhi v. Raj Narain (1975) (Election Case)	sovereign democratic republic; equality of status and opportunity; secularism and freedom of conscience; rule of law; judicial review; free and fair elections
3	Minerva Mills (1980)	limited amending power; judicial review; FR–DPSP balance
4	Central Coal Fields Ltd. v. Union of India (1980)	effective access to justice
5	Bhim Singhji v. Union of India (1980)	welfare State (socio-economic justice)
6	S.P. Sampath Kumar v. Union of India (1986)	rule of law; judicial review
7	P. Sambamurthy v. State of A.P. (1986)	rule of law; judicial review
8	Delhi Judicial Service Assn. v. State of Gujarat (1991)	SC powers: Arts 32, 136, 141, 142
9	Indra Sawhney (1992) (Mandal Case)	rule of law
10	Kumar Padma Prasad v. Union of India (1992)	independence of judiciary
11	Kihoto Hollohan v. Zachillhu (1992) (Defection Case)	free and fair elections; sovereign democratic republican structure
12	Raghunath Rao v. Union of India (1993)	equality; unity and integrity
13	S.R. Bommai (1994)	federalism; secularism; democracy; unity and integrity; social justice; judicial review
14	L. Chandra Kumar v. Union of India (1997)	HC powers Arts 226, 227
15	Indra Sawhney (II) (1999)	equality
16	All India Judges' Assn. v. Union of India (2001)	independent judicial system
17	Kuldip Nayar v. Union of India (2006)	democracy; free and fair elections
18	M. Nagaraj v. Union of India (2006)	equality
19	I.R. Coelho (2007) (Ninth Schedule Case)	rule of law; separation of powers; essence of FRs; judicial review; equality
20	Ram Jethmalani v. Union of India (2011)	SC powers, Art 32
21	Namit Sharma v. Union of India (2012)	freedom and dignity of individual
22	PUCL v. Union of India (2013)	free and fair elections; NOTA
23	Madras Bar Association v. Union of India (2014)	judicial review; HC powers Arts 226, 227
24	Supreme Court Advocates-on-Record Assn. v. Union of India (2015) (NJAC Case)	independence of judiciary; judicial primacy in appointments; separation of powers; judicial accountability
25	K.S. Puttaswamy v. Union of India (2017) (Privacy Case)	constitutional morality; rule of law; privacy and dignity
26	Union of India v. Madras Bar Association (2021)	judicial review; separation of powers; federal balance

FAR – F FRs and DPSPs: harmony and balance · A Amending power is limited · R Review: judicial review (Minerva Mills 1980)

RECORD – R Rule of law · E Elections free and fair · C Conscience: secularism · O Opportunity: equality of status · R Review: judicial review · D Democratic: sovereign democratic republic (Election Case 1975)

Bommai row rebuilt: six elements (adds social justice; Section 5 narrative names five). **Not a closed list.** Lakshmikanth: **20** elements, table stops at 22 cases (to Madras Bar 2014); handout to 26 (2021).

Element	Cases (number)
Judicial review	2, 3, 6, 7, 13, 19, 23, 26
📜 Rule of law	2, 6, 7, 9, 19, 25
🗳️ Free and fair elections	2, 11, 17, 22
🛡️ Equality	2, 12, 15, 18, 19
⚡ Separation of powers	1, 19, 24, 26
Independence of judiciary	10, 16, 24
🗺️ Federalism	1, 13, 26
📚 Secularism	1, 2, 13
Unity and integrity	1, 12, 13
🛡️ Dignity of individual	1, 21, 25
🗺️ Welfare state	1, 5
⚡ HC powers, Arts 226, 227	14, 23
⚡ SC powers	8, 20

Judges Rule Fair Elections — Judicial review · Rule of law · Free and fair elections · Equality (the four that recur)

Keen Advocates Name the judiciary — Kumar Padma Prasad · All India Judges · NJAC (independence of judiciary)

Hooks

→ Mandal = Indra Sawhney
→ Defection = Kihoto
→ Election Case = Raj Narain
→ Ninth Schedule Case = Coelho
→ NJAC = SC Advocates-on-Record
→ Privacy = Puttaswamy
→ NOTA = PUCL. SC powers: Art 32 (writs), 136 (special leave), 141 (law binds all courts), 142 (decrees). HC: Art 226 (writs), Art 227 (superintendence). Central Coal Fields v. Jaiswal Coal Co. (1980); PYQ 2020: Constitution does not define basic structure.

👫 CLASS · Teacher's list of 20 basic features

No.	Element	No.	Element
1	Supremacy of Constitution	11	Unity and integrity of India
2	Rule of law	12	Welfare state
3	Separation of powers	13	Parliamentary form of government
5	Judicial review	14	Independence of judiciary
6	Federalism	15	Limits on amending power, Art 368
7	Secularism	16	Balance between FR and DPSP
8	Sovereign democratic republic	17	Free and fair elections
9	Objectives in the Preamble	18	Effective access to justice
10	Freedom and dignity of the individual	19	SC powers: Arts 32, 136, 141, 142
	(no. 4 unclear in class note)	20	HC powers: Arts 226, 227

Class meaning: basic structure = the soul, identity, value, essence, system of the Constitution; named in Kesavananda Bharati (1973). Class numbers 20 items; 19 readable. 💡

Why 1973 matters (class): Indira Gandhi made A.N. Ray CJI, superseding Shelat, Hegde, Grover (breaking the senior-most tradition). 1975: attempt to override the 1973 judgement (39th Am). 42nd Am 1976: Art 368(4), (5); struck down in Minerva Mills 1980. ⭐

⚠️ CRITICISM AND SIGNIFICANCE PYQ 2014

No.	Criticism	Argument
1	Judicial overreach	unelected judges vs elected Parliament
2	No constitutional basis	not mentioned; interpretation in 1973
3	Rewriting the Constitution	third legislative chamber
4	Against majority principle	special majorities overruled; counter-majoritarian safeguard
5	Narrow margin	7-6 on 13 judges
6	Judicial subjectivity	no fixed list; bench variation
7	Institutional tension	blurs separation of powers

Old Books Reveal Many Narrow Stories Indeed — Overreach · Basis missing · Rewriting · Majority principle · Narrow margin · Subjectivity · Institutional tension

Group the seven: Power (1, 3) + Legitimacy (2, 4, 5) + Uncertainty and friction (6, 7). ✅

Significance	What it does
Guardian of spirit	democracy, secularism, rule of law
Judicial check	amend, not re-draft; no absolute constituent power
Flexibility and stability	"privileging uncertain democracy over certain tyranny"
🛡️ Protects FRs	against transient majorities
⚡ Separation of powers, federalism	State autonomy
🌐 Global influence	Bangladesh, Uganda; Germany Basic Law Art 79
Enduring relevance	the Constitution's conscience

Good Judges Balance Power, Protect Generations Eternally — Guardian of spirit · Judicial check · Balance flexibility-stability · Protect FRs · Preserve separation and federalism · Global influence · Enduring relevance

1951 Shankari Prasad

1964 17th Am

1965 Sajjan Singh

1967 Golaknath (11)

1971 24th, 25th Am (31C)

1972 29th Am

Apr 1973 Kesavananda (13, 7:6)

1975 Raj Narain: 329A

1976 42nd Am: 368(4), (5)

1980 Minerva Mills

1981 Waman Rao

1994 Bommai

2007 Coelho (9 judges)

Lakshmikanth differs: Sajjan Singh 1964 (handout 1965); Waman Rao 1980 (handout 1981); Election Case names only PM and Speaker (handout also President, VP). Follow handout in class. Ch 9: amending power. Mains: 2019 (Art 368 limits), 2016 (Coelho, judicial review key), 2014 (activism).

👥 CLASS · Laws struck down on basic structure; PYQ frame

Law	Case	Why struck
39th Am 1975 (Art 329A): disputes on election of President, VP, PM, Speaker decided by a law-made authority	Indira Gandhi v. Raj Narain 1975	free and fair elections
42nd Am 1976: Art 368(4), (5)	Minerva Mills 1980	limited amending power
⚖️ 42nd Am 1976: Part XIV-A Tribunals (Arts 323A, 323B)	L. Chandra Kumar 1997	HC review (Arts 226, 227)
🏛️ 52nd Am 1985: Tenth Schedule para 7 (Speaker decision final)	Kihoto Hollohan 1992	para 7 struck; rest upheld
99th Am 2014: NJAC	SC Advocates-on-Record v. UOI 2015 (4th Judges case)	independence of judiciary, struck completely

Against (class)	For (class)
👥 no constitutional basis; SC rewrites the Constitution	limits Parliament's amending power
🏛️ infringes majority rule; judiciary = 3rd chamber of Parliament	preserves identity and core values
7:6 (majority should be 8:5, 9:4, 10:3)	temporary majority cannot override framers' vision
⚖️ criteria subjective, depend on judges' thinking	Parliament can amend, not re-draft
institutional tension	uncertain democracy over certain tyranny

Answer frame (class): Intro: Kesavananda 1973, amend yes, destroy no. Body: 3 points against + 3 for (table), 5 struck-down examples. Close: idea of the Constitution = secular, liberal, democratic. **Abroad:** Bangladesh SC 1989, Uganda SC 2017, German Basic Law Art 79(3). ✅

👥 CLASS · Constitutionalism (concept)

👥 Constitutionalism (John Locke, 17th C)

→ ideas: government **limited**, never absolute; legitimacy

Tools

→ Rule of law

→ Separation of powers, checks and balances (India: not rigid)

→ No arbitrary power

→ Basic rights and civil liberties

Promoters

→ ROL, SOP, rights

→ temporary government: elections every 5 years

→ free media

→ independent judiciary over executive and legislature

→ civilian control of military: no **Praetorianism** (army dominance)

Reality check (class): practice depends on (1) **political culture**: feudal, family-oriented; **4 Cs** = Corruption, Criminalisation, Casteism, Communalism; plus vindictiveness; (2) **administrative culture**: colonial mindset, corruption, rich-poor bias; (3) **social values**: over-permissiveness.

Art 13 / Emergency notes (class): Shankari Prasad 1951, Sajjan Singh 1965 = amendment is not "law" under Art 13; Golaknath 1967 = amendment is law (11 judges); Kesavananda = **"Senior Pontiff"** of Edneer Math, 13 judges 7:6. **Art 358** note: 44th Am 1978 narrowed Emergency grounds (class writes "armed rebellion"; war/external aggression) (check wording).

Recall drill: cover and answer

Kesavananda: judges, ratio, year, cut-off?	13 judges, 7:6, 1973, 24 April 1973	Order of cases and direction (yes/no)?	Shankari Prasad 1951 yes, Sajjan Singh 1965 yes, Golaknath 1967 no (11 judges), Kesavananda 1973
What did 24th, 25th, 29th Amendments do?	24th: amend FRs, not "law" 13; 25th: Art 31C; 29th: two Kerala laws in Ninth Schedule	Raj Narain 1975 struck down what?	39th Am, Art 329A (elections of PM, President, VP, Speaker)
Minerva Mills 1980 struck down what?	42nd Am, Art 368(4) and (5); limited power is basic; FR–DPSP balance	Waman Rao vs Coelho?	Waman Rao 1981: prospective from 24 April 1973; Coelho 2007: nine judges, rights and essence tests, Arts 14, 19, 21
Bommai 1994 held?	Federalism, secularism, democracy basic; Art 356 reviewable (mala fide)	Recurring basic features?	Judicial review, rule of law, free and fair elections, equality
Seven criticisms headline?	overreach, no basis, rewriting, majority, narrow 7–6, subjectivity, tension	Who superseded 3 judges in 1973, which?	A.N. Ray made CJI over Shelat, Hegde, Grover
5 laws struck down on basic structure?	39th 1975, 42nd 368(4)/(5) 1980, 42nd Part XIV-A 1997, 52nd para 7 1992, 99th NJAC 2015		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

HC = High Court — State-level constitutional court (Art 214)

PM = Prime Minister — Head of the Union government

VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

DPSP = Directive Principles of State Policy — Part IV (Arts 36–51): goals the State should pursue; not enforceable in court

PUCL = People's Union for Civil Liberties — Rights group behind landmark cases such as the 1997 phone-tapping case

CJI = Chief Justice of India — Head of the Supreme Court

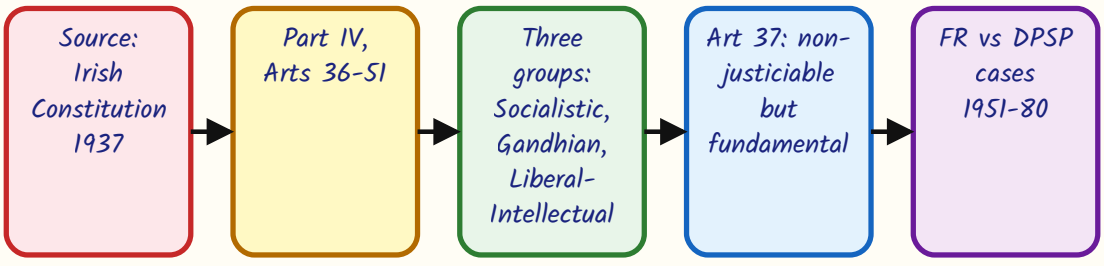
II = Indra Sawhney

DIRECTIVE PRINCIPLES

PYQ Prelims 2025, 2021, 2020, 2017, 2015, 2014, 2013, 2012 · Mains 2015

✎ *Part IV (Arts 36-51) is the Constitution's welfare-state blueprint: not enforceable in court, yet "fundamental in governance", and its long tug-of-war with Fundamental Rights ends in the "two wheels of a chariot".*

At a glance: the route



SOURCE AND ARTICLES 36-51 PYQ 2023 PYQ 2014

Source of DPSP

→ Irish Constitution 1937 (which took it from the Spanish Constitution)
→ Baldwin: welfare-state ideas
→ Gandhiji: socio-economic justice
→ Ambedkar: like the Instrument of Instructions of the Govt of India Act 1935

Art	Subject	Group
Art 36	Meaning of "State" (same as Part III)	none
Art 37	Fundamental to governance; State must apply them	none
Art 38	Social order promoting welfare	Socialistic
Art 39	Policy principles for the State	Socialistic
Art 39A	Equal justice, free legal aid	Socialistic
Art 40	Village panchayats	Gandhian
Art 41	Right to work, education, public assistance	Socialistic
Art 42	Just, humane work conditions; maternity relief	Socialistic
Art 43	Living wage, conditions of work	Socialistic (living wage); Gandhian (cottage industries)
Art 43A	Workers' participation in management	Socialistic
Art 43B	Cooperative societies	Gandhian
Art 44	Uniform Civil Code PYQ 2015	Liberal-Intellectual
Art 45	Early childhood care and education up to 6 years	Liberal-Intellectual
Art 46	Advancement of SCs, STs, vulnerable groups	Gandhian
Art 47	Nutrition, living standard, public health	Socialistic (nutrition); Gandhian (prohibition)
Art 48	Agriculture and animal husbandry	Gandhian (cow protection); Liberal (modern agriculture)
Art 48A	Environment, forests, wildlife	Liberal-Intellectual
Art 49	Monuments of national importance	Liberal-Intellectual
Art 50	Separation of judiciary from executive PYQ 2025 PYQ 2020	Liberal-Intellectual
Art 51	International peace and security PYQ 2014	Liberal-Intellectual

Handout alert: the table gives one subject per Article, but the group lists reuse Arts 43, 47, 48 in two groups; Art 45 is worded two ways (early childhood care / free education up to 6). Group questions: use the classification lists. Article-subject questions: use the table.

Band the Articles

→ 38-39A social order, wealth, legal aid
→ 40 panchayats
→ 41-43B work, wages, workers, cooperatives
→ 44 UCC
→ 45-47 child, weaker sections, health
→ 48-48A farm, animals, environment
→ 49-51 heritage, judiciary, peace.

CIVICS — Gandhian (6): Cow protection 48 · Industries, cottage 43 · Village panchayats 40 · Intoxicants, prohibition 47 · Co-operatives 43B · Sections weaker, SC/ST 46

HELP — 42nd Am 1976 additions: Healthy development of children (39) · Environment 48A · Legal aid 39A · Participation of workers 43A PYQ 2017

CLASS · Sapru Committee, meaning of State

Sapru Committee 1945: two types of rights, justiciable (Part III) and non-justiciable (Part IV). Inspiration also from Socialist, Gandhian, Liberal thought. Art 36 = "State" as in Art 12; Art 37 uses the word "fundamental".

NATURE OF DPSP PYQ 2020 PYQ 2017 PYQ 2012

Five ideas

1. Guiding ideals
- → Instructions to legislative, executive, administrative organs
- → Art 36: "State" as in Part III

2. Instrument of Instructions
- → 1935 Act: British govt to Governor-General
- → DPSP: democratic directions to Indian legislature and executive (Ambedkar)

3. Socio-economic programme
- → Secure justice, liberty, equality, fraternity
- → Welfare state, not the colonial police state PYQ 2020 PYQ 2015

4. Non-justiciable but fundamental
- → Courts cannot enforce
- → Art 37: State's duty to apply in making laws

5. Interpretation
- → Courts judge reasonableness of laws
- → Law furthering DPSP may be upheld (land reform cases)

Handout stresses: Art 37 wording tested in Prelims 2013, 2015, 2020. Part IV also bears on education (2012 PYQ: DPSP + local bodies + others all count). DPSP are not limitations on legislature or executive (2017).

CLASSIFICATION: THREE GROUPS PYQ 2021 PYQ 2012

Socialistic (8)
- → 38 welfare state: just social order, minimise inequalities
- → 39 livelihood, no wealth concentration, equal pay, workers and children
- → 39A equal justice, free legal aid
- → 41 work, education, assistance (unemployment, sickness, old age, disability)
- → 42 humane work, maternity relief
- → 43 living wage, decent life
- → 43A workers in management
- → 47 nutrition, public health

In the news · Aug 2026 Art 39A and ADR: ADR report: Art 39A (42nd Am, 1976) gives equal justice and free legal aid; Art 51(d) encourages arbitration. NALSA got Rs 550 crore against Rs 1,058.87 crore needed.

Gandhian (6)
- → 40 village panchayats as self-government units
- → 43 cottage industries (individual or cooperative basis)
- → 43B cooperatives: autonomous, democratic
- → 46 SCs, STs, weaker sections
- → 47 prohibit harmful drugs and drinks

🛡️ 48 cow protection

→ No slaughter of cows, calves, draught animals
→ Improve breeds

📰 **In the news · Aug 2026** Art 47 and drugs: State to endeavour to prohibit intoxicating drinks and drugs injurious to health, except for medicinal purposes. NDPS Act, 1985 regulates controlled substances.

Liberal-Intellectual (7)

→ 44 Uniform Civil Code
→ 45 early childhood care and education (group list: free education up to 6)
→ 48 modern agriculture and animal husbandry
→ 48A environment, forests, wildlife
→ 49 monuments of national importance
→ 50 separation of judiciary and executive
→ 51 peace, international law, arbitration

SCIENCE — Liberal-Intellectual: Scientific lines, agriculture (48) · Childhood care (45) · International peace (51) · Environment (48A) · National heritage (49) · Civil Code (44) · Executive: separation of judiciary (50)

Some Good Leaders — Socialistic (8) · Gandhian (6) · Liberal-Intellectual (7): "Some Good Leaders"

Gandhian test (2012 PYQ): village, cottage, cooperative, weaker sections, prohibition, cow = Gandhian. Panchayats and cottage industries: yes. UCC and leisure for workers: no. Concentration of wealth violates DPSP (2021). RTE Act 2009 rests on DPSP, mainly Art 45.

CLASS · Why non-justiciable, non-self-executing

📜 Non-self-executing = needs a law to operate

→ financial and administrative limits of a newly independent country
→ many are moral principles (Art 51): cannot be justiciable
→ low socio-economic development: Art 44 UCC possible only when society is ready
→ Violation: court cannot strike down (e.g. an excise act); courts use DPSP to read constitutionality of laws

CLASS · Marxian vs Fabian socialism

	Marxian	Fabian
Route	violent revolution	evolution (Fabius Cunctator, Roman general)
Economy	state owns all means of production; stateless, classless society	mixed economy: public + regulated private
Politics	one communist party, totalitarian	democratic society

Teacher: ours = blend of Marxian and Gandhian socialism: "Marxian socialism without violence" (Gandhi wanted stateless society; we have a state and bureaucracy). Overlaps: Art 43 (Socialist + Gandhian), Art 47 intoxicants (Socialist + Gandhian), Art 48 cow slaughter ban (Gandhian + Liberal). ⭐

📜 EVOLUTION THROUGH AMENDMENTS PYQ 2017

Amendment	Year	Change
42nd	1976	Art 39 expanded (children); new 39A, 43A, 48A
44th	1978	Art 38 widened: status, facilities, opportunities, not only income
86th	2002	Art 45 recast: early childhood care up to 6 years; old Art 45 (free, compulsory to 14) became Art 21A FR
97th	2011	New Art 43B: voluntary formation, autonomous functioning, democratic control, professional management of cooperatives

48A brought ecology into the Constitution for the first time. 39A: access to justice must not depend on economic capacity. 43A: constitutional backing to industrial democracy. 💡

Count trap: handout says the 42nd Am "introduced four new principles", but it is one widened Article (39) plus three new Articles (39A, 43A, 48A).

🎯 STATUS: ART 37 PYQ 2013 PYQ 2015 PYQ 2020

Art 37: "The provisions contained in this Part shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country, and it shall be the duty of the State to apply these principles in making laws." Moral and political obligation. 💡

Why non-justiciable

→ Split of justiciable and non-justiciable rights recommended by Sir B.N. Rau, accepted by the Drafting Committee
→ 1 lack of financial resources at Independence
→ 2 socio-economic diversity, regional backwardness
→ 3 flexibility on order, timing, manner, free of litigation
→ Sanction = public opinion, elections, political responsibility

🏛️ Constituent Assembly voices

→ Alladi Krishna Swamy Ayyar: no responsible ministry could "light-heartedly" ignore them
→ Ambedkar: a govt that ignores them answers to people at elections

Remember: Court cannot enforce, the voter can. Money, diversity, flexibility = three reasons. ✅

💡 SIGNIFICANCE (15 POINTS, GROUPED)

💡 Significance

Moral frame

→ Fundamental to governance
→ Life-giving provisions (L.M. Singhvi)
→ Conscience of the Constitution (Granville Austin)
→ Moral and educative value (B.N. Rau)
→ Instrument of Instructions (M.C. Setalvad)
→ M.C. Chagla: full implementation = true welfare state
→ Instrument of social revolution; reinforce Preamble

Economic democracy

→ Ambedkar: foundation of economic democracy beside political democracy
→ Supplement to FRs: FR = political freedoms, DPSP = social and economic rights

📜 Law, policy, politics

→ Guidance for judiciary; background for legislation
→ Stability and continuity across governments
→ Accountability tool for Opposition
→ Benchmark for performance; common political manifesto

⚠️ CRITICISM (FIVE LINES)

Criticism	Argument
No legal force	K.C. Wheare, Sir Ivor Jennings: moral precepts; Assembly members: "pious superfluities"
Illogical arrangement	No systematic classification; major beside minor items
No coherent philosophy	Modern measures mixed with sentiment; subjective reading
Conservative, outdated	19th-century Fabian socialism; fail 21st-century realities
👥 Constitutional conflict	Centre-states, President-PM, Governor-CM

⚠️ CLASS · Teacher's 10 criticisms; LPG frame

No.	Criticism	Keyword
1	Non-justiciable	window dressing, pious superfluities; cheque not encashable till bank has money; new-year resolution
2	Unsystematic, repetitive	enumeration
3	Vague	lets govt interpret in changing circumstances
4	Reactionary	golden-past belief; alcohol ban vs privacy, choice, liberty
5	Inconsistent	rational (39A, UCC) beside sentiment (alcohol, cow)
6	Abstract + concrete mixed	cow ban is a concrete policy, not a principle
7	No real FR-DPSP difference	Art 45 moved to Art 21A
8	Duty unclear	moral or legal?
9	Oath conflict	President/Governor swear to defend Constitution vs ministers violating DPSP
10	Doctrinaire socialism	39(b), (c) vs LPG; 19th-20th C ideas

Q: Are DPSP irrelevant in the LPG era? No (class frame). Rising need: (1) crime against women, children (Arts 39, 42); (2) LPG inequality (38, 39(2)); (3) labour exploitation; (4) farmers' distress; (5) twin health burden (communicable + diabetes, obesity, CVD); (6) crime against SC/ST and weak; (7) climate crisis; (8) wars and changing world order (Art 51). Close: DPSP are the conscience of welfare governance. ✅

⚖️ FR VERSUS DPSP: THE CASE CHAIN PYQ 2017

1951 Champakam: FRs prevail

1951–64 1st, 4th, 17th Am

1967 Golaknath

1971 24th, 25th Am: Art 31C

1973 Kesavananda

1976 42nd Am

1978 44th Am: Art 31 abolished

1980 Minerva Mills

⚖️ Case chain

- **Champakam Dorairajan 1951** → FRs prevail; DPSP subordinate → Parliament may amend FRs to give effect to DPSP
- **🏛️ Parliament acts** → First Am (1951), Fourth (1955), Seventeenth (1964)
- **Golaknath 1967** → Parliament cannot amend FRs (sacrosanct) → Deadlock for DPSP
- **24th and 25th Am 1971** → 24th restores power to amend FRs → 25th inserts Art 31C
- **Kesavananda 1973** → Strikes second part of 31C (judicial review basic feature) → Upholds first part: 39(b),(c) over Arts 14, 19, 31
- **42nd Am 1976** → Extends first clause of 31C to all DPSP
- **Minerva Mills 1980** → Strikes the extension; DPSP subordinate to FRs → Arts 14, 19 still subject to 39(b),(c) → "Two wheels of a chariot"

Art 31C (25th Am): (i) law implementing socialist DPSP in Art 39(b) and Art 39(c) not invalid for contravening Arts 14, 19, 31; (ii) no court may question it for not conforming to that policy. 💡

C G K M — Chariot's Gears Keep Moving: Champakam Dorairajan (1951) · Golaknath (1967) · Kesavananda Bharati (1973) · Minerva Mills (1980)

44th Am (1978) abolished Art 31: no constitutional right to property. Today: FRs hold precedence, but Parliament may amend FRs to give effect to DPSP if the basic structure stays. ⭐

Aspect	Fundamental Rights	Directive Principles
💡 Nature	Restrictive: stop State infringing freedoms	Prescriptive: positive welfare measures
Enforceability	Enforceable; go to court directly	Not enforceable; political will
💡 Purpose	Political freedom, democratic framework	Social and economic justice
Sanction	Legal; judicial remedies	Moral and political only
Focus	Individual liberty	Collective welfare
📜 Legislation	Automatically operational	Need enabling law or policy
⚡ Judicial role	Courts strike down laws violating FRs	Cannot strike down for violating DPSP; can uphold laws implementing them

42nd Am appears twice: source of four DPSP changes (Section on evolution) and extension of Art 31C. Both true; keep separate. FR = restrain, DP = push: FR court, legal sanction, self-operating; DP voter, moral sanction, needs a law.

DPSP vs Fundamental Duties: Part IV (State, Irish source) vs Part IVA Art 51A (citizens, USSR source); both non-justiciable; parallel: Art 48A vs Art 51A(g). Full table in the Duties chapter.

CLASS · FR-DPSP final position; Art 39(b)

Final position (5 points)

→ 1 Parliament may amend Part III to implement Part IV if basic structure is intact

→ 2 FR scope adjusted to fit DPSP (e.g. Art 21 read widely)

→ 3 Law implementing DPSP that violates Arts 14, 19: upheld if it passes reasonable classification and reasonable restriction

→ 4 otherwise DPSP cannot override FR; courts give effect to both: harmonious construction

→ 5 both serve citizens; no inherent conflict

Images: two wheels of one chariot; means in Part III, ends in Part IV; together the conscience of the Constitution. Original view: Champakam 1951, Golaknath 1967 = FR prevail.

Art 39(b): private resources = "material resources of community"?	Holding
Ranganatha Reddy 1977 (J. Krishna Iyer)	private property falls under 39(b); Marx: community = individuals
⚖️ Sanjeev Coke 1982 (5 judges)	adopted Iyer view; later overruled by 9 judges
⚖️ Property Owners Assn of Maharashtra 2024 (9 judges, 8:1)	private property may qualify, but acquisition depends on nationalisation, scarcity; no one economic ideology imposed

ENFORCEMENT OF DPSP

Area	Measures
Planning	Planning Commission 1950, Five-Year Plans; replaced by NITI Aayog 2015
Agrarian	Abolition of intermediaries (zamindars); tenancy reform; land ceilings; redistribution; cooperative farming
👫 Women	Maternity Benefit Act 1961; Equal Remuneration Act 1976
Economic	Nationalisation: life insurance 1956, banks 1969, general insurance 1971; privy purses abolished 1971
Justice	Legal Services Authorities Act 1987: free legal aid; Lok Adalats: statutory conciliation, awards binding PYQ 2020
Cottage industries	Khadi and Village Industries Commission, Small-Scale Industries Board, Handloom, Coir, Silk Boards
Environment	Wildlife (Protection) Act 1972; Forest (Conservation) Act 1980; Water and Air Acts; National Forest Policy 1988; pollution control boards

CLASS · Implementation, article by article

Art	Laws, schemes, bodies
39(b), (c)	nationalisation; land reforms; MRTP Act 1976; privy purses (paid to princely rulers on integration 1947, merger 1949) abolished by 26th Am 1971 (also Art 362)
39(a)	Equal Remuneration Act 1976 (imp)
39(e), (f)	NCPCR; POCSO Act 2012; Child Marriage Restraint Act 1929 (Sharda) then PCMA 2006
39A	Legal Services Authorities Act 1987: NALSA (national), SLSA, DLSA, TLSA (taluk)
40	73rd Am 1992: Part IX, Schedule XI
41	MGNREGA (class: now "VB-G RAM G"); older persons: National Policy 1999, Maintenance and Welfare of Parents and Senior Citizens Act 2007; disabled: RPwD Act 2016 (class: 2017)
42	Factories Act 1948; Maternity Benefit Act 1961
43	Minimum Wages Act 1948; KVIC Act 1956; khadi, silk boards
43A, 43B	Trade Unions Act 1926 (collective bargaining); Part IX-B, state cooperative societies Acts
45	86th Am 2002 (Art 21A, ages 6-14); ICDS
46	Civil Rights Protection Act 1955; SC/ST (POA) Act (class writes 1985; Act is 1989, check)
47	Swachh Bharat Mission, NRHM, NUHM, Ayushman Bharat
48	cow-slaughter laws; MSP on CACP advice; ICAR, IARI, NDRI; crop insurance
48A	Wildlife Act 1972; Forest Conservation Act 1980; NGT; EIA; Bharat Stage VI; Project Tiger, Project Elephant
49	Ancient Monuments and Archaeological Sites and Remains Act 1958 (ASI)
50	CrPC 1973 took trial power from DM (executive)
51	multipolarity; UN centrality; peaceful co-existence (Panchsheel)

DIRECTIVES OUTSIDE PART IV

Art	Part	Directs
Art 335	Part XVI	Claims of SCs and STs in services, balanced with efficiency
Art 350-A	Part XVII	Mother-tongue teaching for linguistic minority children at primary level
Art 351	Part not given	Union to spread Hindi as medium of expression of composite culture

Not enforceable, but courts read them with Part IV by harmonious construction. 💡

In the news · July 2026 MP passes UCC Bill: Madhya Pradesh Assembly passed UCC Bill, 2026, fifth state after Uttarakhand, Gujarat, Assam and Goa; Art 44 DPSP; STs excluded; concern of federal fragmentation.

In the news · Sept 2026 (verify dates) Maternity rights: Rakhi Bisht v. Union of India (2026): Delhi HC held maternity leave cannot diminish a woman's professional status or career prospects; cited Articles 14, 15, 21, 42.

CLASS · UCC (Art 44): views, personal laws

Why UCC (Constituent Assembly)

- → liberal nationalists: personal laws block national consolidation, secularism
- → burden on legal system: different norms per community
- → religion-based laws biased against women

Why not at once

- → shock; personal laws = way of life
- → Nehru: at least Hindus uniform (Hindu Code Bills)

Personal law	Year
💰 Hindu Adoption Act; Hindu Minority and Guardianship Act; Hindu Succession Act (Hindu Code; also Buddhist, Sikh, Jain)	1956
Christian Marriage Act	1872
Anand Marriage Act (Sikh marriages registrable after 2012 amendment)	1909
Parsi Marriage and Divorce Act	1936
Muslim Personal Law (Shariat) Application Act	1937
Special Marriage Act: civil, religion- and caste-neutral; no change of religion; forbids polygamy; all faiths	1954

SC on UCC: desirable, but sudden change may backfire; gradual, progressive; court cannot direct the legislature to make it. Concurrent List Entry 5. Intestate = dies without a will. ⭐

CLASS · Shah Bano to triple talaq; polygamy

1985 Shah Bano

1986 Muslim Women Act

2001 Danial Latifi

2017 Shayara Bano

2019 Triple Talaq Act

2024 Mohd Abdul Samad

Case / law	Holding
Shah Bano 1985	Sec 125 CrPC (now 144 BNSS) applies to Muslim husbands; Mahr is not divorce payment; Iddat (3 months waiting period) too short
🛡️ Muslim Women (Protection of Rights on Divorce) Act 1986	reversed Shah Bano; challenged
Danial Latifi 2001	payment within Iddat must sustain ex-wife for a large part of her life
🆕 Mohd Abdul Samad 2024	1986 Act does not bar Sec 125 / 144 BNSS petition
Shayara Bano 2017	Talaq-e-biddat (triple talaq) unconstitutional, un-Islamic
Shamim Ara (class: 2022; usually 2002, check)	talaq needs reasonable ground and prior reconciliation
🛡️ Muslim Women (Protection of Rights on Marriage) Act 2019	up to 3 years jail; critics: criminalises a void act, marriage is a civil contract; leaves wife abandoned, no maintenance clarity

Polygamy	Point
Shariat	allowed for social service (destitute, widows) and equal treatment of wives
Others	bigamy offence: Sec 494 IPC (now Sec 82 BNS)
Sarla Mudgal 1995	conversion to Islam for 2nd marriage not valid; Sec 494 applies; Lily Thomas 2000 same
NFHS (class)	Muslim 2.5% (2011) to 1.9% (2019-21); Hindu 1.7% to 1.3%; mostly poor, rural

CLASS · UCC answer frame; Goa; Uttarakhand

UCC frame: **Benefits:** lighter legal burden, consolidation and secularism, women's rights. **Problems:** diversity and Art 25; low socio-economic readiness; no legislative action, no uniform criminal code; hard to fix norms (e.g. separation period before divorce); fear of Hindu law imposed; obsession with Art 44 while work, food, health DPs lag; Art 44 says "secure", not impose. **Way ahead:** strengthen progressive voices in every religion; nullify provisions against women's freedom, equality, dignity; optional civil code (Special Marriage Act); focus on work, food, health; remove un-Islamic aspects from Muslim law; leave rest untouched. ✅

State code	Points (class)
👫 Goa (first; "not uniform enough")	Portuguese Civil Code 1867, modernised 1966; no polygamy after marriage, except Hindu male if wife bears no child (unused)
🗳️ Uttarakhand 2024 (Justice R.P. Desai panel)	marriage, divorce, succession, live-in (registration mandatory); equal succession, excludes ST; divorce registered; covers domiciled outside; consanguineous marriage barred (up to 1st cousin); no adoption, maintenance, guardianship

MORE POINTS TO KNOW

Extras

→ Ambedkar: DPSP are "novel features"; with FRs they hold the philosophy of the Constitution

→ Police state = law and order and defence only; rests on 19th-century laissez-faire

💡 Art 39 six aims

→ Livelihood · fair distribution · no wealth concentration

→ Equal pay for men and women · health of workers and children · healthy development of children

→ 39(b) ownership and control shared for common good; 39(c) no concentration of wealth

→ 41 unemployment, old age, sickness, disablement · 49 monuments of artistic or historic interest

→ Living wage > minimum wage (food, shelter, clothing) and adds education, health, insurance; fair wage lies between

→ FR: negative, personal, aims at political democracy · DPSP: positive, societarian, aims at social and economic democracy

→ K. Santhanam's conflict: Centre can direct states to follow DPSP and dismiss a non-complying state govt; President may reject a bill that ignores them

→ Lok Adalat = status of civil court, award binding and final, no appeal · CrPC 1973 separated judiciary from executive (Art 50)

→ Incomplete implementation: inadequate finances, adverse socio-economic conditions, population explosion, strained Centre-state relations

→ Other steps: 73rd Am (1992) panchayats · 103rd Am (2019) 10% EWS reservation · 102nd Am (2018) constitutional status to Backward Classes Commission

CLASS · Art 48 cow slaughter; Art 47 alcohol

Cow slaughter (State List Entry 15)	States
Complete ban, stringent	UP, Maharashtra, Gujarat, Karnataka
Partial ban (fit-for-slaughter certificate)	West Bengal
No ban	Arunachal, Meghalaya, Nagaland, Mizoram

Case	Holding
Hanif Qureshi 1958	complete ban not in public interest; food for many; Art 19(1)(g) (as class says; verify)
Mirzapur Moti Qureshi 2005	upheld complete ban
Allahabad HC 2021 (obiter)	cow protection as Hindus' FR, national animal; teacher: hard, State subject

Critique (class): aim is more cows, yet cow growth below buffalo (census 2012-19); farmers can't sell or keep, abandon cattle (stray menace); cow vigilantism.

Prohibition (State List Entry 8): in force Gujarat, Mizoram, Bihar, Nagaland; partial Manipur, Lakshadweep. For: domestic violence, poor's livelihood, health (frame on health). Against: never succeeded anywhere: smuggling, corruption, spurious liquor; cigarettes worse yet legal; against liberalism; 15-20% of state revenue; hits the poor; drinker vs drunkard; Gujarat permits for outsiders. Politics: NE = Church; Gujarat = Gandhi. ✅

Alcohol case / policy	Holding
Kerala Abkari Policy 2014	drink only in 5-star hotels; small bars banned; HC, SC upheld
Narula 1967	state may ban a trade, but equally for all, not selectively

Khoday Distilleries 1995	no FR to trade in liquor
⚖️ Synthetic and Chemicals 1989 then Lalta Prasad Vaish 2024 (9 judges, 8:1)	Entry 8 only potable liquor; overruled: industrial alcohol also in Entry 8 SL

TIMELINE

1937 Irish Constitution

1950 Planning Commission

1951 Champakam; 1st Am

1967 Golaknath

1971 24th, 25th Am; 31C

1973 Kesavananda

1976 42nd Am

1978 44th Am

1980 Minerva Mills

2002 86th Am

2011 97th Am

2015 NITI Aayog

Answer frame: Rights restrain the State; Directives push it forward. Court now treats them as two wheels of one chariot: balance, neither absolute, basic structure intact. ✅

Recall drill: cover and answer

Which Articles form Part IV?	36 to 51	Main source of DPSP?	Irish Constitution 1937
What does Art 37 say?	Not enforceable by courts, yet fundamental in governance; duty of State to apply in making laws	Three groups and counts?	Socialistic 8, Gandhian 6, Liberal-Intellectual 7
Four additions by 42nd Am (1976)?	Art 39 (children), 39A, 43A, 48A (HELP)	Which Amendment added Art 43B?	97th (2011)
Art 31C: inserted by? Struck how?	25th Am 1971; 2nd part struck in Kesavananda 1973; 42nd extension struck in Minerva Mills 1980	Minerva Mills image?	FRs and DPSP are two wheels of a chariot
Directives outside Part IV?	Arts 335, 350-A, 351	Nationalisation years?	Life insurance 1956, banks 1969, general insurance 1971
Sapru Committee 1945?	justiciable (III) vs non-justiciable (IV) rights	Triple talaq: case and Act?	Shayara Bano 2017; Muslim Women (Protection of Rights on Marriage) Act 2019, 3 years
Lalta Prasad Vaish 2024?	industrial alcohol in State List Entry 8 (9 judges, 8:1)	Property Owners Assn 2024?	private property may be 39(b) resource; 9 judges, 8:1

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

DPSP = Directive Principles of State Policy — Part IV (Arts 36–51): goals the State should pursue; not enforceable in court

UCC = Uniform Civil Code — Proposed common personal laws for all citizens (Art 44)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ST = Scheduled Tribes — Tribal groups listed under Art 342

HC = High Court — State-level constitutional court (Art 214)

ADR = Association for Democratic Reforms — NGO working on electoral and political reform

NALSA = National Legal Services Authority — Statutory body providing free legal aid

NITI = National Institution for Transforming India — Government policy think tank that replaced the Planning Commission in 2015

BNSS = Bharatiya Nagarik Suraksha Sanhita, 2023 — New procedure code that replaced the Code of Criminal Procedure

RTE = Right to Education — Art 21A and the RTE Act, 2009: free and compulsory education for ages 6–14

PM = Prime Minister — Head of the Union government

CM = Chief Minister — Head of a State government

NCPCR = National Commission for Protection of Child Rights — Statutory body under the CPCR Act, 2005

POCSO = Protection of Children from Sexual Offences Act, 2012 — Special law for child sexual offences, with special courts

MGNREGA = Mahatma Gandhi National Rural Employment Guarantee Act, 2005 — Legal guarantee of 100 days of wage work to rural households

MSP = Minimum Support Price — Price at which the government buys notified crops; CACP recommends it

FUNDAMENTAL DUTIES

PYQ Prelims 2025, 2017, 2015, 2012, 2011

✎ *Part IVA, Art 51A: 11 duties of citizens, added in 1976 on the Swaran Singh Committee's advice, non-justiciable, with the Verma Committee (1999) listing Acts that already enforce them.*

At a glance: the route



Remember: Part IVA, Art 51A: 11 duties (10 in 1976 + 1 in 2002), citizens only, non-justiciable. Idea from the Constitution of the erstwhile USSR. ⭐

RATIONALE

🤝 Why duties

→ Original Constitution had only rights; framers expected civic responsibility to evolve
→ By mid-1970s duties felt necessary for discipline and commitment
→ Inspiration: USSR (rights and duties inseparable); USA, Canada, France, Australia stress individual rights
→ Aim: ethical code so ideals become civic behaviour

💡 Four aims

→ National integration: Constitution, flag, symbols
→ Strengthen democracy: sovereignty, public property
→ Social harmony: scientific temper, environment, inquiry
→ Balance rights with responsibilities

🗳️ EVOLUTION: SWARAN SINGH COMMITTEE

Route

Emergency 1975–1977
→ Sardar Swaran Singh Committee (1976) set up by Congress govt
→ Advised: separate chapter, new Part IVA, eight duties

📜 42nd Am Act 1976
→ Adds Part IVA (Art 51A) with ten duties: first codification

📜 86th Am Act 2002
→ One more duty: education of children aged 6 to 14

📰 In the news · July 2026 **Vande Mataram Act, 2026:** Prevention of Insults to National Honour (Amendment) Act, 2026 puts Vande Mataram on par with the Anthem; Art 51A(a) duty; Bijoe Emmanuel (1986) protects respectful non-singing.

🗳️ Committee recommended

→ Inclusion of duties beside rights
→ Moral and civic responsibility: rights inseparable from duties
→ A new Part IVA code for all citizens

Rejected suggestion	Why left out
📜 Penal provisions	Parliament to punish non-performance; could undermine FRs
Judicial bar	No court to question a law enforcing duties; inconsistent with constitutional principles
💰 Duty to pay taxes	Omitted from final list

P J T — Pay Just Taxes: Penalty for non-performance · Judicial bar · Taxes

India was the **first Commonwealth nation** to include Fundamental Duties in its Constitution. 💡

Count trap: committee suggested **8**; 1976 Amendment gave **10** (Art 51A (a) to (j)); with 2002 (k) today **11**. "How many today" = 11; "original" = 10.

🤝 ART 51A: THE ELEVEN DUTIES PYQ 2012 PYQ 2011 PYQ 2015

Clause	Duty	Handout gloss
(a)	Abide by Constitution, respect symbols	National Flag, National Anthem
(b)	Cherish ideals of the freedom struggle	Sacrifice, unity, self-reliance
(c)	Protect sovereignty, unity, integrity of India PYQ 2015	Act against threats
(d)	Defend the country, national service when called	War and civil emergencies
(e)	Promote harmony, renounce discrimination	Beyond caste, religion, language; denounce practices degrading women
(f)	Preserve rich cultural heritage	Art, literature, monuments, composite culture
(g)	Protect and improve the environment	Forests, rivers, wildlife; compassion for living beings
(h)	Develop scientific temper and humanism	Rational thinking, inquiry, reform; reject superstition
(i)	Safeguard public property, renounce violence	Public assets as national trust
(j)	Strive for excellence in all spheres	Individuals and institutions
(k)	Provide education to children 6 to 14	86th Am 2002; parent or guardian; reinforces Art 21A

DUTIES — Defend country (d) · Unity, sovereignty (c) · Temper, scientific (h) · Ideals of freedom struggle (b) · Environment (g) · Safeguard public property (i)

CHEER — Constitution, flag, anthem (a) · Harmony (e) · Excellence (j) · Education 6–14 (k) · Rich cultural heritage (f)

Not duties: voting (2011 PYQ), protecting weaker sections (2012; that is Art 46, a DPSP), paying taxes, family planning. **Are** duties: scientific temper, public property, composite culture, excellence, sovereignty–unity–integrity, abide by Constitution.

🤝 CLASS · Civic vs moral duties

🤝 Civic duty
- → 51A(a) Constitution, symbols
- → (d) defend country
- → (i) public property, violence
- → (k) educate children

🤝 Moral duty
- → (b) freedom-struggle ideals
- → (c) sovereignty, unity
- → (e) harmony
- → (f) heritage
- → (h) scientific temper
- → (j) excellence

(g) environment = blend of moral and civic (class writes it on both sides). Letters partly unreadable in class note (check; Saarthi notes p. 121).

💡 FEATURES

Feature	Detail
Moral plus civic	Moral: freedom struggle ideals. Civic: Constitution, Flag, Anthem
Indian tradition	Compassion, harmony, respect for elders, environment, community living
Citizens only	Unlike several FRs that cover all persons incl. foreigners
Non-justiciable	No court enforcement, no penalty; handout adds Parliament may legislate to give effect
Complementary	Balance rights with collective responsibility; triad with FRs and DPSP

Triad

- **FRs**
  - → Part III
  - → Justiciable
  - → Several extend to persons
- **🤝 DPSP and Duties**
  - → Part IV and Part IVA
  - → Non-justiciable
  - → DPSP bind State morally; duties bind citizens morally

🤝 NOTION OF DUTIES: SIX IDEAS

🤝 Why duties matter

- **Gandhian view**
  - → Perform duties and rights follow
  - → Duties underpin justice and harmony
- → **Preventive**: moral warning against acts that harm unity and harmony
- → **Reminder**: rights go with obligations
- → **Source of discipline**: citizens as active participants
- **Democratic balance**
  - → **Indira Gandhi**: "not to suppress rights but to balance them"
  - → Law Minister **H.R. Gokhale**: "sobering reminder" against anti-national behaviour of the 1970s
- **⚖️ Guidance for courts**
  - → AIIMS Students' Union v. AIIMS (2001): duties relevant in interpreting FRs

🤝 CLASS · Nature of duties

💡 Nature

- → rights and duties = **two sides of a coin**
- → Indian way of life: **Dharma** as duty
- → Parts III, IV fail without duties: **21A to Art 45 to 51A(k)**, meaningless if parent does not act
- → warning to anti-social elements
- → citizens = participants in nation building

⚠️ CRITICISM (FIVE)

Criticism	Argument
Incomplete	Omits voting, honest tax payment, family planning; committee itself proposed tax duty
📜 Vague, abstract	"noble ideals", "composite culture", "scientific temper" too broad
Non-justiciable	No sanction; committee's penalty proposal ignored
💰 Unnecessary	Inherent moral duties; passed during the Emergency, politically motivated
Placement	Part IVA after DPSP diminishes them; should follow Part III directly

CLASS · Critique additions

⚠️ Extra criticisms (class)

→ vague (as DPSP); moral, hard to enforce
→ NCRWC: list incomplete; add duty to pay taxes, vote, family values, responsible parenthood, industry to educate employees' children
→ burden on FR increased
→ mention Parts III, IV, IVA together
→ IVA added in National Emergency: political
→ citizens obey anyway: nanny state

🎯 NON-JUSTICIABILITY PYQ 2017

Non-justiciable

→ No direct enforcement; no court punishment (like DPSP)
→ Deliberately placed in Part IVA, not end of justiciable Part III

🧑‍🤝‍🧑 Contrast abroad

→ USSR, Yugoslavia and Albania made duties legally binding
→ India: advisory

V.K.R.V. Rao

→ Ineffective without legal sanctions
→ People lack courage to perform voluntarily
→ Rights without enforceable duties lack ethical foundation

1998
SC notice on spreading awareness

1999
Justice J.S. Verma Committee

Source conflict: Features says Parliament may enact laws to give effect; non-justiciability says no provision for direct enforcement. 2017 PYQ key: no legislative process provided to enforce duties, and not correlative to legal duties (answer: neither 1 nor 2). Use the PYQ key. (Lakshmikanth says "enforceable by law" through Parliament; for exam keep non-justiciable.)

⚖️ CLASS · Supreme Court on duties

🧑‍🤝‍🧑 SC position

→ Part IVA has the same status as Part IV: IV directs the State, IVA directs citizens
→ State may make laws to prevent violation; citizens only; no writ enforcement
→ law giving effect to an FD survives Art 13(2) if it passes reasonable classification (14) and reasonable restriction (19)
→ citizen cannot claim to be equipped to perform duties

Case / example	Point
M.C. Mehta v. UOI 1988	environment lessons up to class 10; free textbooks; teacher training; yearly cleanliness weeks with all citizens incl. legislature, executive
Art 51A(j) in APRs	seniors assess juniors fairly so deserving ones are promoted

🗳️ VERMA COMMITTEE (1999)

🔧 Recommendations

→ Duties raise standards of public life; everyone to obey and promote them
→ Public office holders: avoid selfishness and nepotism
→ Integrity · Accountability · Transparency · Honesty
→ Leadership by example

Act (year order)	Purpose	Duty
Representation of People Act 1951	Membership can be rejected for corrupt activities	Public integrity
Protection of Civil Rights Act 1955	Punish preaching and practising untouchability	(e)
Unlawful Activities Protection Act 1967	Ban sectarian organisations	(c), (e)
Prevention of Insults to National Honour Act 1971	No insult to anthem, flag, Constitution	(a)
Wildlife Protection Act 1972	Protect rare animals, birds, plants; bars illegal trade	(g)
Forest Conservation Act 1980	Bars destruction of natural forest and diversion to other uses	(g)

Verma Committee also noted: criminal laws punish enmity between groups; the IPC punishes statements prejudicial to national integration. Lakshmikanth differs: Civil Rights Act 1955 was called the Untouchability (Offences) Act till 1976; UAPA is the Unlawful Activities (Prevention) Act, 1967.

RIGHTS, DPSP AND DUTIES SIDE BY SIDE PYQ 2023

Aspect	Fundamental Rights	DPSP	Fundamental Duties
Part	III	IV	IVA (Art 51A)
Binds / serves	Individuals; several apply to all persons	The State	Citizens only
Justiciable	Yes	No	No
Source	none stated	Irish Constitution	Constitution of erstwhile USSR
Added by	Constitution as framed	not stated	42nd Am 1976 (and 86th, 2002)

Handout describes only Duties; FR and DPSP columns use facts from Duties text and the DPSP chapter. Duties and DPSP are non-justiciable; only FRs are enforceable.

MORE POINTS TO KNOW

Extras

→ Framers placed duties of the State as DPSP but not duties of citizens; Congress later called it a historical mistake

→ Japan's Constitution is perhaps the only democratic one with citizens' duties; USA, Canada, France, Germany, Australia have none

→ Part IVA has only Art 51A: first code of ten duties

→ FRs open to all persons incl. foreigners: Arts 14, 20, 21, 21A, 22, 23, 24, 25, 26, 27, 28

Courts

→ Mohan Kumar Singhania (1991): Art 51A can interpret ambiguous laws

→ Ramlila Maidan Incident (2012): common thread runs through Parts III, IV, IVA

→ Opposition strongly opposed duties in 1976; Janata Govt (Morarji Desai) undid many 42nd Am changes via 43rd and 44th Am but kept the duties

Critics

→ C.K. Daphtary: over 99.9% citizens are law-abiding

→ A.K. Sen: harsh schoolmaster

→ D.D. Chawla: wording vague

CLASS · Flag Code 2002; National Anthem

Flag Code 2002

→ ratio 3:2, rectangular; damaged flag not shown; place of honour

→ not on vehicles (except President, VIP, Governor, PM); no commercial use; half-mast only on set occasions

→ never upside down, as clothing, or touching ground or water

2022 changes

→ private display 24x7; Har Ghar Tiranga

→ machine-made, polyester flags allowed (Dec 2021, check); earlier only hand-spun khadi, wool, silk

Anthem	Point
📜 Prevention of Insults to National Honour Act 1971	punishes preventing singing or disturbing an assembly singing it; general order: stand
🧑‍🤝‍🧑 SC 2016 / 2018	2016: stand in cinema halls; 2018: optional (disabled exempt)
Bijoe Emmanuel 1986	Jehovah's Witness children stood, did not sing: no disrespect
J&K HC 2021	not standing = disrespect, not an offence under 1971 Act

TIMELINE

1950 Rights only

1971 National Honour Act

1972 Wildlife Act

1975-77 Emergency

1976 Swaran Singh; 42nd Am

1980 Forest Act

1998 SC notice

1999 Verma Committee

2001 AIIMS case

2002 86th Am: (k)

Answer frame: Rights tell the State what citizens may demand; duties tell citizens what the nation expects, with conscience as the only enforcer. ✅

Recall drill: cover and answer

Part and Article of Fundamental Duties?	Part IVA, Art 51A	Who recommended duties? Year? How many?	Swaran Singh Committee 1976; 8 suggested
How many duties: 1976 and today?	10 in 1976, 11 today	Which Amendment added duty (k)?	86th (2002): education for children 6 to 14
Three recommendations not accepted?	Penalties, judicial bar, duty to pay taxes	Source of the idea?	Constitution of the erstwhile USSR
Is voting a duty? Protecting weaker sections?	No (2011); no, it is Art 46 DPSP (2012)	Justiciable?	No; citizens only; no penalty
Verma Committee year and Acts?	1999; RPA 1951, Civil Rights 1955, UAPA 1967, National Honour 1971, Wildlife 1972, Forest 1980	2017 PYQ key on enforcement?	Neither a legislative process nor correlative legal duties: answer neither
Flag Code ratio, year?	3:2, 2002	Bijoe Emmanuel 1986?	standing without singing is not disrespect

🔤 **Quick brief: abbreviations, schemes, bodies** (expansions from notes where given; briefs are general knowledge, verify)

DPSP = Directive Principles of State Policy — Part IV (Arts 36–51): goals the State should pursue; not enforceable in court

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

UAPA = Unlawful Activities (Prevention) Act, 1967 — Main anti-terror law; allows banning organisations and designating terrorists

NCRWC = National Commission to Review the Working of the Constitution — Set up in 2000 under Justice M. N. Venkatachaliah

IPC = Indian Penal Code, 1860 — Old criminal code, replaced by the BNS

PM = Prime Minister — Head of the Union government

HC = High Court — State-level constitutional court (Art 214)

RPA = Representation of the People Act — Laws on conduct of elections and disqualification (1950 and 1951)

AMENDMENT OF THE CONSTITUTION

PYQ Prelims 2024, 2022, 2020, 2019, 2017, 2013 · Mains 2019, 2018, 2017

✎ *Art 368 (Part XX) gives Parliament the constituent power; three tiers (simple majority, special majority, special majority plus half the States) let small matters change easily and federal ones only with the States, while the basic structure stays out of reach.*

📜 Art 368(2): how an Amendment Bill passes



Remember: special majority = majority of total membership + 2/3 of present and voting; federal items also need half the States. ⭐

LIVING DOCUMENT: RIGID, FLEXIBLE, MIXED

Feature	Rigid	Flexible	Mixed (semi-rigid)
🎯 Example	USA	UK	India
Method	2/3 both Houses of Congress + 3/4 of States	Simple majority like ordinary law	Mostly special majority; some also half the States
💡 Principle	Judicial supremacy	Parliamentary sovereignty	Constitutional supremacy
💡 Nature	Very rigid, change rare	Highly flexible, easy change	Stability with adaptability

Soviet Union had four constitutions in seven decades; France several since its Revolution; India still works under the Constitution adopted in 1949: change without losing continuity. 💡

📜 ARTICLE 368: FIVE CLAUSES PYQ 2024

Clause	Subject	Gist
Art 368(1)	Constituent power	Parliament may add, vary or repeal any provision by the Art 368 procedure
Art 368(2)	Procedure	Bill in either House, special majority, President's assent; proviso: ratification by half the States for federal matters
Art 368(3)	Immunity from Art 13	"Nothing in Article 13 shall apply to any amendment made under this Article"
Art 368(4)	Bar on judicial review	42nd Am (1976); struck down in Minerva Mills (1980)
Art 368(5)	No limitation	42nd Am (1976); power wide but not unlimited

CPIBN — Clever Parliament Insists: Bar Nothing. Constituent power (1) · Procedure (2) · Immunity from Art 13 (3) · Bar on judicial review (4) · No limitation (5). Clauses 4 and 5 (42nd Am) were an attempt to bar everything; Court struck them down.

Art 368 sits in Part XX: exclusive procedure and authority. 1 = power · 2 = procedure · 3 = Art 13 shield · 4 and 5 = 42nd Am, both defanged. Source aid: "Cats Prefer Ice, But Not always".

⚡ CLAUSES (1) AND (2): POWER AND PROCEDURE PYQ 2022 PYQ 2013

Clause (1)
- → Constituent power distinct from ordinary law-making under Art 245
- → Overriding effect: no other article curtails it
- → Add, vary, repeal: procedurally regulated, not unlimited

📜 Clause (2): Bill passes

Introduction	→ Either House (not Lok Sabha only) → No prior President permission → Minister or private member
Passage	→ Special majority in each House
🗺️ Federal subject?	→ Ratify by not less than half of State Legislatures before presentation
👑 President	→ Bound to assent: 24th Am 1971

Special majority
- → Part 1: majority of total membership of the House
- → Part 2: 2/3 of members present and voting
- → Gives broad consensus, not a transient majority

🎯 Four truths (Prelims 2013, 2022)
- → either House
- → no President's prior nod
- → assent obligatory
- → no joint sitting. Ratification needs half of States, not all. Rajya Sabha has equal power in amending (2020).

📝 CLASS · Procedure, 10-item list, Emergency majorities

Class vs handout: class lists 10 federal items (adds Art 241, High Courts for UTs, beside GST Council Art 279A, Art 368, Seventh Schedule, States' representation); handout has 7 / 8. Class codes: M-1 = Parliament only; M-2 = Parliament + half the States (check).

Emergency (class)	Parliament approval
352 National	2/3 special majority
🗺️ 356 State	simple majority
360 Financial	simple majority

🗺️ THE PROVISO: STATE RATIFICATION (7-ITEM LIST)

Subject	Where
🗳️ Election of the President	Arts 54-55
⚡ Distribution of executive powers	Arts 73 and 162
Judiciary	Chapter IV of Part V; Chapter V of Part VI
📜 Legislative relations	Chapter I of Part XI
🗺️ Seventh Schedule	Union, State, Concurrent Lists
🏛️ Representation of States in Parliament	
📝 Procedure of amendment itself	Art 368

Handout alert: the proviso list has 7 items; the Section on three types has 8 and adds the GST Council (101st Am) and splits legislative powers from the Seventh Schedule lists. Use the 8-item list for exams.

🎯 CLAUSES (3), (4), (5) PYQ 2018

Clause (3)
→ Amendment is not an ordinary law, so not invalid merely for violating FRs
→ Kesavananda Bharati v. State of Kerala (1973): Art 13 does not apply, but basic structure cannot be altered
→ Exempt from Art 13, not from basic structure

Clause (4)
→ Inserted by 42nd Am (1976): no amendment questioned in any court on any ground
→ Minerva Mills v. Union of India (1980) struck down the absolute exclusion: judicial review is part of basic structure

Clause (5)
→ 42nd Am (1976): no limitation on constituent power
→ Curtailed: wide but not unlimited; cannot alter basic identity

42nd Am tried	Result
Clause 4: no judicial review	Minerva Mills (1980) struck down
⚡ Clause 5: no limit on power	Basic structure survives (Ch 6)

Which case struck down 4 and 5? Basic Structure chapter credits Minerva Mills; this handout names Kesavananda and Minerva Mills together. Answer Minerva Mills (1980).

📜 THREE TYPES OF AMENDMENT PYQ 2020

1. Simple majority
→ Majority of members present and voting
→ Like ordinary law; no State ratification; outside Art 368 procedure

No.	Simple majority subjects (18)
1	Admission or establishment of new States
2	Formation of new States, alteration of boundaries or names
3	Legislative Councils in States: creation or abolition
4	Second Schedule: emoluments, allowances, privileges of President, Governors, Speakers, Judges
5	Quorum in Parliament
6	Salaries and allowances of MPs
7	Rules of procedure in Parliament
8	Privileges of Parliament, members, committees
9	Use of English in Parliament
10	Number of puisne Judges in the Supreme Court
11	Jurisdiction of the Supreme Court
12	Use of official language
13	Citizenship: acquisition and termination
14	Elections to Parliament and State Legislatures
15	Delimitation of constituencies
16	Union Territories
17	Fifth Schedule: scheduled areas and tribes
18	Sixth Schedule: tribal areas of Assam, Meghalaya, Tripura, Mizoram

PRESIDE – Parliament quorum · Rules of procedure · English in Parliament · Salaries of MPs · Immunities (privileges) · Delimitation · Emoluments (Second Schedule) (7 items)

STATES – Sixth Schedule · Territories, Union · Alteration of names, areas, boundaries · Tribes, Fifth Schedule · Establishment or admission of new States · State legislative councils (6 items)

SCOPE – Supreme Court jurisdiction · Citizenship · Official language · Puisne judges number · Elections (5 items). PRESIDE + STATES + SCOPE = all 18.

2. Special majority

→ Majority of total membership of each House and 2/3 of present and voting

→ Covers: Fundamental Rights, DPSP, all other provisions not under the other two

→ Prevents frequent or politically motivated change

🗺️ 3. Special majority + half the States

→ For provisions of federal significance: Parliament special majority + ratification by at least half of State Legislatures

No.	Ratification subjects (8)	Why
1	Election of the President and its manner	Parliament and State Legislatures elect
2	Extent of executive power of Union and States	Centre–State authority
3	Supreme Court and High Courts	Federal and constitutional balance
4	Distribution of legislative powers	Changes federal scheme
5	Goods and Services Tax Council	101st Am; Union and States
6	Any of the Lists in Seventh Schedule	Centre–State legislative relations
7	Representation of States in Parliament	Seats in Rajya Sabha or Lok Sabha
8	Power of Parliament to amend (Art 368 itself)	Amending process

PEDESTAL – Parliament: representation of States · Election of the President · Distribution of legislative powers · Extent of executive power · Supreme Court and High Courts · Tax: GST Council · Article 368 itself · Lists of Seventh Schedule

Fast sort: new states, citizenship, salaries, elections, languages, Schedules 5 and 6 = simple. FR and DPSP = special. President, courts, Seventh Schedule, GST Council, States' seats, Art 368 = special + half of States. 💡

Category	Majority	State role	Examples
Simple	Present and voting	Not required	New States, salaries, citizenship
Special	2/3 present and voting + majority of total membership	Not required	FRs, DPSPs
Special + ratification	Special + 50% States	Required	President's election, federal powers

💡 SIGNIFICANCE (EIGHT POINTS)

💡 Significance

→ Flexibility: living document, specific provisions modified

→ Stability: special majorities, State ratification

→ Basic structure: Kesavananda (1973) protects democracy, secularism, rule of law, judicial review

→ Balance of rigidity and flexibility

→ Cooperative federalism

→ Democratic consensus

→ Protects FRs: judicial scrutiny

→ Progressive reforms: 73rd and 74th Am (1992) local self-government

⚠️ CRITICISM (EIGHT POINTS)

Criticism	Argument
No separate body	Parliament that makes ordinary laws also amends: blurs legislative and constituent power
Centralised	Only Parliament can initiate; States cannot; weakens federalism
⚡ Limited State role	Only half the States needed, even in federal matters
No ratification deadline	States may delay or withhold consent indefinitely
No joint sitting	If Houses disagree the Bill lapses; rigidity absent in ordinary law
💰 Like ordinary process	Apart from special majority; more amenable than USA or Australia
Ambiguous, incomplete	Vague wording forced interpretation (Kesavananda, Minerva Mills)
Central dominance, judicial dependence	Union initiates, judiciary defines limits

Handout numbers these 26 to 33 (print slip): there are **eight** criticisms. "Only Parliament can initiate" fits the Bill being introduced in either House (2013 PYQ).

⚖️ Balanced verdict

→ Neither too rigid to resist change nor too flexible to invite instability
→ Reforms with stability: RTE (86th Am, 2002), 73rd and 74th Am (1992)

Speaker	View
K.C. Wheare	"strikes a good balance between flexibility and rigidity"
🏛️ Nehru (Constituent Assembly)	"No Constitution can be permanent; it must allow for growth with the nation"
Ambedkar	Avoided "extraordinary terms and conditions" of USA or Australia; facile yet responsible procedure
Granville Austin	"One of the most ably conceived aspects of the Constitution"

📜 CLASS · Referendum; why so many amendments

Undemocratic: no people's role; referendum used in Australia, Switzerland, Denmark, Ireland. Class: amended 106 times; flexible yet turning rigid in coalition era (opposition support needed); no deadlock mechanism; no time limit for States; SC almost a 3rd chamber. ⭐

📜 Why so many amendments

→ administrative details
→ social change: 44th Am 1978 (right to property)
→ grass-root democracy: Parts IX, IX-B
→ cleaner politics: Tenth Schedule, anti-defection
→ SC interpretation: Art 21 widened

MORE POINTS TO KNOW

Extras

→ Federal ratification by State legislatures: simple majority of members present and voting; once half agree, formality complete

→ Total membership = all seats, whatever vacancies or absentees; Lok Sabha Rules apply special majority at all effective stages, not only final vote

→ President can neither withhold assent nor return the Bill; after assent it is an Amendment Act

→ Simple-majority matters are amended under other articles, outside Art 368

→ State Legislatures cannot start amendments, except a resolution requesting Parliament to create or abolish a Legislative Council (Parliament may ignore)

→ Constitution silent on whether States may withdraw approval; USA needs 3/4 States, convention on petition of 2/3 State legislatures

→ Ordinary Bill may have joint sitting in deadlock; amendment Bill cannot; procedure called too sketchy

→ GST Council item: 101st Am (2016), relates to Art 279-A

→ Lakshmikanth differs: Art 368 itself provides two types; simple majority sits in other articles. For exam state all three ways. Wheare: variety in amending process is "wise but rarely found"

TIMELINE PYQ 2017

1949 Constitution adopted	**1971** 24th Am: assent mandatory	**1973** Kesavananda	**1976** 42nd Am: 368(4),(5)
1980 Minerva Mills	**1992** 73rd, 74th Am	**2002** 86th Am: RTE	**2016** 101st Am: GST Council

Mains frame (2018, 2017, 2019): power wide but limited by basic structure; 101st Am (2016) created the GST Council and amendments to it need State ratification; Constitution as a living instrument adapting through three-tier amendment. ✅

Recall drill: cover and answer

Article and Part for amendment?	Art 368, Part XX	Who can introduce an Amendment Bill?	Either House; minister or private member; no prior President permission
Special majority means?	Majority of total membership + 2/3 of members present and voting	Is President bound to assent? Since when?	Yes, 24th Am 1971
Is there a joint sitting?	No: Bill lapses on disagreement	How many States must ratify?	Not less than half
Which clauses did the 42nd Am add? Result?	368(4) and (5); struck down in Minerva Mills 1980	Does Art 13 apply to amendments?	No (368(3)), but basic structure limits them (Kesavananda 1973)
How many subjects: simple / ratification?	18 simple; 8 ratification (incl. GST Council)	Simple, special or ratification: FRs? Citizenship? President election?	FRs special; citizenship simple; President election special + half States
Which extra item does class add to federal list?	Art 241 High Courts for UTs		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

GST = Goods and Services Tax — Common indirect tax on goods and services; policy by the GST Council (Art 279A)

DPSP = Directive Principles of State Policy — Part IV (Arts 36–51): goals the State should pursue; not enforceable in court

RTE = Right to Education — Art 21A and the RTE Act, 2009: free and compulsory education for ages 6–14

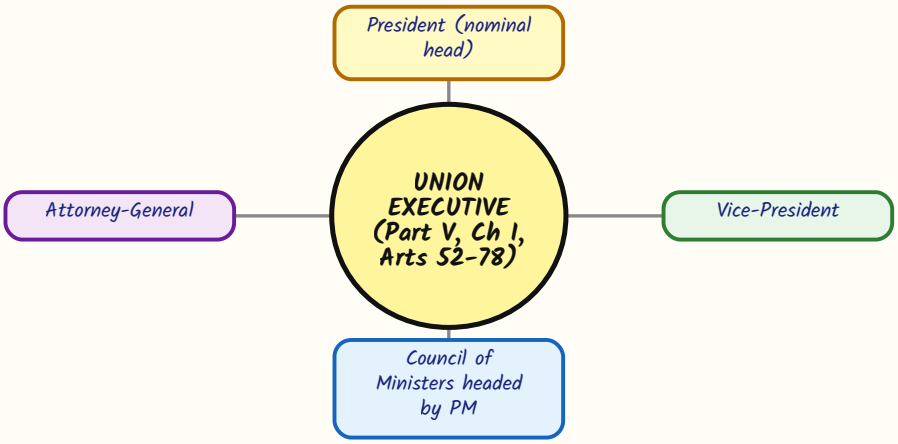
SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

UNION EXECUTIVE

PYQ Prelims 2024, 2023, 2022, 2021, 2018, 2016, 2015, 2014, 2013, 2012, 2010, 2009, 2008, 2007, 2005, 2004, 2003, 2002, 2001, 2000, 1999, 1997, 1996 · Mains (pardon delay)

The President reigns; the PM and Council of Ministers rule; Art 74 with Art 75(3) tie them through responsibility to the Lok Sabha. Elections, vote values, vetoes, ordinances, pardon, Cabinet and PMO are the testable core.

At a glance: four parts



Remember: the President reigns, the PM and Council rule; Art 74 + Art 75(3) tie them together through responsibility to the Lok Sabha.

STRUCTURE AND PRESIDENT'S STATUS

Art	What it says
52	"There shall be a President of India": "shall" = office never abolished, never vacant
53	Executive power vested in the President, directly or via subordinates; 53(2) Supreme Commander of Defence Forces
74	Council of Ministers with PM at head to aid and advise; President acts in accordance
75(3)	Council collectively responsible to the Lok Sabha

President = nominal (constitutional) executive, like the British monarch; real executive = Council headed by PM. All Union executive actions are in his name.

Handout alert: Attorney-General is listed as part of the Executive but only his appointment (by President on PM's advice) appears; headings for "Emergency Power" are empty (see extras).

ELECTION OF THE PRESIDENT (ARTS 54, 55, 71) PYQ

2023 PYQ 2018 PYQ 2003 PYQ 1996

Electoral College (Art 54)

Included
- → Elected members of both Houses
- → Elected MLAs incl. Delhi and Puducherry (70th Am 1992)

Excluded
- → Nominated MPs and MLAs
- → Members of Legislative Councils (MLCs)
- → Members of a dissolved Assembly

104th Am (handout year 2020) ended nomination of Anglo-Indians to Lok Sabha and State Assemblies.

Voter	Value of vote (Art 55: uniformity and parity)
Elected MLA	State population (1971 Census, frozen by 84th Am 2001) in proportion to number of elected MLAs. PYQ wording: as many votes as multiples of one thousand in quotient of population divided by elected members
Elected MP	Equal for all; total MP votes = total MLA votes (parity)

2022 numbers: MLA vote UP 208, Maharashtra 175, Sikkim 7; MP vote 700 (after J&K reorganisation). Handout also says 708 elsewhere: quote 700 for 2022, check class notes. 4,896 voters in 2017; 776 MPs and 4,000+ MLAs.

Voting and counting

PR by STV, secret ballot, ECI → *No majority: lowest eliminated, votes transferred* → *More than 50% of valid votes: declared* → *Returning Officer: Secretary General of LS / RS by rotation*

Item	Detail
V.V. Giri (1969)	Only President elected after second preferences counted
Neelam Sanjiva Reddy (1977)	Only unopposed President
Proxy vote, NOTA	Not allowed
Security deposit	Rs 15,000 (RPA 1951); forfeited if less than 1/6th of votes needed to win
Nomination	50 proposers and 50 seconders
Presidential and Vice-Presidential Elections Act, 1952	Framework for Arts 54–57 and 63–71; notification before term expires or on vacancy; unopposed if one valid candidate remains; poll if more

Disputes (Art 71)
- → Supreme Court decides; decision final
- → If election void, earlier acts remain valid
- → Petition by losing candidate or 20+ electors

39th Am 1975 → Forum moved to authority created by Parliament

44th Am 1978 → Supreme Court restored

→ Cannot be challenged for dissolved Assemblies or vacancies (2023)

Prelims shortcut: nominated members and MLCs never vote for the President (nominated MPs do vote for the VP). 1971 Census for MLA value. Supreme Court for disputes. Winning quota = (valid votes / (seats + 1)) + 1.

Why indirect (Const. Assembly)	Criticism
🏛️ Parliamentary logic: nominal head	Highly complex
⚡ Avoid rivalry with PM (both claiming popular mandate)	MLA vote value differs by State
🧑‍🤝‍🧑 Cost and complexity of nationwide poll for ceremonial office	"neither proportional representation nor single transferable vote"
🗺️ Federal representation of Union and States	

Handout alert: method = "PR through STV with secret ballot"; the criticism is a view that the multi-value system departs from textbook PR/STV. Constituent Assembly: "proportional representation" a misnomer for one post; better called a preferential vote.

Aspect	India	USA	France
System	Indirect; MPs and State legislators	Indirect; 538-member Electoral College	Direct (since 1962)
Method	STV with PR	Winner-takes-all (Maine, Nebraska district system)	Two-round; runoff
⏳ Term	5 years, no limit	4 years, max two (22nd Am)	5 years, max two (2008 amendment)
🗳️ Nomination	Proposers, seconders, deposit	Primaries, caucuses, conventions	500 signatures of elected representatives
Disputes	Supreme Court (Art 71)	State courts, may reach SC (2000 Florida)	Constitutional Council can annul

Ambedkar: the President occupies the same position as the King under the English Constitution. 1997: nomination raised to 50 + 50 (earlier 10 each), deposit to Rs 15,000 (earlier Rs 2,500). 💡

🗳️ CLASS · Election: sources, why indirect, vote value, STV

Source	Content
👥 Constitution	Arts 54, 55 (college, procedure) · 58 qualification · 62 timing · 71 disputes (SC)
📜 Statute	Presidential and Vice-Presidential Elections Act, 1952
Rules	President and VP Election Rules, 1974 (made under the Act)

Art 54 "State" includes Delhi and Puducherry. Teacher flag: US President is indirect by the Constitution, near-direct in practice. Ballots: Green = MPs, Pink = MLAs. Notification by ECI within 60 days before the term expires. ⭐

Why indirect (teacher)

→ Nominal, ceremonial, constitutional, de jure head; PM = de facto, real head

→ Direct poll = waste of money and time; fought on personalities, no manifesto, little power to decide

→ Whole-country mandate could make a rival power centre to the PM (elected by one constituency)

→ Want a statesman above party politics, trusted by all parties

🗺️ Why State MLAs vote

→ Else President = creature of the Centre's majority party

→ He is head of the Nation, not only of the Union executive

→ MLCs and nominated members out: no popular mandate

Art 55	Rule and teacher example
💡 Two principles	(1) uniformity of representation among States; (2) parity between States as a whole and the Union

MLA vote	(1971 population ÷ elected MLAs) ÷ 1000; remainder 500 or more adds 1. Teacher: 1700 gives 1, rem 700, so 2; 1400 gives rem 400, so 1
MP vote	Total value of all MLA votes of all States ÷ elected MPs of LS + RS
Why compute	Delhi: 70 MLAs : 7 MPs = 10 : 1 for 2 crore people; an MP represents a far larger population

STV quota = valid votes ÷ (seats + 1) + 1; one seat = 50% + 1, so majoritarian. First preference compulsory, further optional. Teacher drill (100 ballots): A 51 wins at once; if A 45, B 30, D 6, lowest D is eliminated and his 2nd preferences likely lift A to 51. MLA and MP ballots carry unequal values: disproportion. ✅

🎓 QUALIFICATIONS, CONDITIONS, OATH (ARTS 58-60) PYQ 2018

Conditions (Art 59)

→ Not a member of Parliament or State Legislature; seat deemed vacated on entering office
→ No other office of profit
→ Rent-free residences; emoluments by Parliament (Second Schedule till then); cannot be diminished in term

Immunities

→ Personal immunity for official acts
→ No criminal proceedings in term; no arrest
→ Civil proceedings for personal acts after two months' notice

Oath (Art 60)

→ Before Chief Justice of India (or senior-most SC Judge)
→ Same oath for anyone acting as President
→ Faithfully execute · preserve, protect, defend Constitution and law · devote to service of people

📰 In the news · Aug 2026 ACC extends Cabinet Secretary: ACC (PM chair, Home Minister) approved one-year extension of Cabinet Secretary. Fixed two-year tenure, extendable up to four years under All India Services Rules, 1958.

💰 CLASS · Resignation rule, salary, who takes an oath

Art 56: resignation to the VP, who informs the Speaker. A candidate holding a post under GOI, State govt or local authority must resign; it takes effect on entering Presidential office. No need to resign: President, VP, Governor, Ministers. Art 59: MP or MLA elected President is deemed to vacate the seat on that date. ⭐

Salary Rs 5 lakh a month (President's Emoluments Act, 1951, as in class). Teacher: cannot be reduced for the sitting President, can be changed for the next one. ⭐

Oath	Article	Note
⚡ President (or anyone discharging his functions)	60	Borrowed from the USA
👑 Vice-President	69	As ex-officio Chairman of RS
👑 Governor	159	Before High Court Chief Justice
👥 UPSC, ECI, SPSC members	None	No oath prescribed
👑 Information Commissioners	RTI Act 2005	Oath "like Judges"
👑 CVC and Vigilance Commissioners	CVC Act 2003	Oath under the Act

⏳ TERM, VACANCY, IMPEACHMENT (ARTS 56, 61, 62) PYQ 2023

⏳ Term

→ Five years from taking office; continues till successor takes charge
→ Resigns by writing to the Vice-President
→ No limit on re-election (USA: two terms)

Vacancy	When	Filled by
Anticipated	Term about to expire	Election before term ends
Casual	Death; resignation; impeachment; disqualification; election declared void (Art 71)	VP acts; if VP vacant, CJI or senior-most SC Judge; fresh election within six months; full five years
Temporary	Illness, absence	VP discharges functions till President resumes

1969 case: Zakir Husain died May 1969; VP V.V. Giri acted, resigned to contest; CJI M. Hidayatullah officiated 20 July to 24 August 1969. ⭐

Impeachment (Art 61)

→ Only ground: "violation of the Constitution"; quasi-judicial

→ No President ever impeached

Procedure

→ Charges in either House, signed by 1/4 of members, 14 days' notice to President

→ Passed by 2/3 of total membership

→ Other House investigates (President may appear) and passes by 2/3 of total membership

→ Nominated MPs take part; State MLAs do not

1996 PYQ

→ State Assemblies: in Electoral College, not in impeachment forum

→ Legislative Councils: neither

CLASS · VP also vacant (Art 70); impeachment vs USA

Art 70: Constitution had no rule if the VP office is also vacant (problem arose in 1969); Parliament may provide: President (Discharge of Functions) Act, 1969: the CJI officiates. 💡

Teacher's terms: impeachment = formal charge, the first step; removal = successful impeachment, the end result. 💡

Point	India (Art 61)	USA
Ground	Violation of the Constitution	Treason, bribery, other high crimes and misdemeanours
Starts in	Either House	Only House of Representatives (435) = LS analogue
First House	1/4 signatures, 14 days' notice; 2/3 of total membership	Simple majority impeaches
Second House	Investigates; President defends; 2/3 of total membership	Senate (100) = RS analogue, investigates; 2/3; Chief Justice of SCOTUS presides

US route

House of Representatives: simple majority impeaches → Senate (investigating House): 2/3 majority, Chief Justice presides → President removed

⚡ PRESIDENT'S POWERS: EXECUTIVE AND LEGISLATIVE PYQ

2014 PYQ 2010

⚡ Executive powers

🗳️ Appoints

→ PM; ministers on PM's advice
→ Governors
→ Attorney-General
→ CAG
→ CEC and ECs
→ Chairs and Members of Finance Commission, UPSC, other bodies
→ Judges of SC and HCs
→ Ambassadors and High Commissioners

🚪 Removes

→ Ministers (PM's advice)
→ Governors
→ Attorney-General
→ Commission members under conditions

Rules and information

→ Art 77: rules of business; actions in President's name, not PM's (2014)
→ Art 78: calls for information from PM; minister's proposals to Council

UTs

→ Administrators / Lt Governors (Art 239)
→ Special responsibility for Fifth and Sixth Schedules

→ Faithful execution of laws; may appoint inquiry commissions

Legislative power	Detail
Summon, prorogue, dissolve (Art 85)	Dissolves Lok Sabha; Houses meet at least once in six months
Address (Arts 86, 87)	Both Houses jointly at first session each year and after every general election: govt policy
🤝 Speaker's duties	If Speaker and Deputy Speaker offices vacant, an LS member appointed by President
🗳️ Nominations	12 to Rajya Sabha (literature, science, art, social service); Anglo-Indian nomination ended by 104th Am
Assent	Arts 111, 200, 201 (see veto)
📜 Ordinances	Art 123
🎓 Disqualification (Art 103)	President decides finally after consulting ECI
UT regulations	Andaman and Nicobar, Lakshadweep, Dadra and Nagar Haveli and Daman and Diu, Ladakh
Laying of reports	NCSC, NCST, UPSC, Finance Commission, others (Finance Commission recommendations laid by President: 2010)

Prior sanction or recommendation	Bill
Art 3	Reorganisation of States
Art 110	Money Bills
Art 274	Taxation in which States are interested
Art 304	Restrictions on trade among States

States Money Taxes Trade — 3 States · 110 Money · 274 Taxes of States' interest · 304 Trade restrictions (Art numbers in order)

CLASS · Art 53 idea, Art 77 rules, address, Art 255

Art 53: State power = legislative + executive + judicial; executive power = whatever remains after removing legislative and judicial power.

Art 77	Content
(1), (2)	All executive action in the President's name; orders authenticated as the rules say
(3)	President makes rules for convenient transaction and allocation of business among ministers
Two sets	GOI (Allocation of Business) Rules 1961: ministries created and abolished here · GOI (Transaction of Business) Rules 1961

"President in Parliament" (Art 79): not a member, yet Parliament is incomplete without him (summon, address, assent). Adjournment sine die by Speaker or Chairman; then prorogation by President (Art 85(2)) ends the session until a fresh summons.

Address and messages	Rule
Art 86	"May" address or send messages; House must consider a message at the earliest (86(2))
Art 87 (mandatory)	First session after each general election; first session of each year. Speech = govt's policy statement of the year; like US "State of the Union"
Comment or skip?	Cannot comment on it; by convention cannot skip, but may skip parts critical of the President or against the Constitution (class)
Motion of Thanks	If defeated in LS it is a no-confidence

Art 255: a Bill that needed the President's prior recommendation or sanction but was introduced without it becomes valid later if the President signs.

FINANCIAL, JUDICIAL, DIPLOMATIC, MILITARY POWERS

PYQ 2024 PYQ 2012

Financial power	Detail
Annual Financial Statement (Art 112)	Laid before both Houses; Finance Minister lays it on behalf of the President, not PM (2024)
Money and Financial Bills	Only in Lok Sabha, with President's prior recommendation
Demands for Grants, Supplementary Grants	Lok Sabha only, on President's recommendation
Contingency Fund (Art 267)	For urgent or unforeseen expenses
Reports	CAG, Finance Commission, Union Accounts reports laid by President (2010, 2012); PAC report is not in that list

Judicial

→ Appoints CJ and Judges of SC (Art 124) and HCs (Art 217) via collegium

→ Removes judges only by Parliament's impeachment for proved misbehaviour or incapacity

→ Pardon Art 72; advisory opinion Art 143

Diplomatic and military

→ Represents India abroad; appoints ambassadors; receives diplomats

→ Treaties in his name, binding only after Parliament's approval

→ Supreme Commander (Art 53(2)); appoints Chiefs of Army, Navy, Air Force

→ War or peace only with Parliament's approval; on Council's advice

⚡ VETO POWER (ARTS 111, 200, 201) PYQ 2023

🎓 Three vetoes (no qualified veto of USA)

- 📜 **Absolute:** withhold, Bill dies
  → Private Members' Bills, or Cabinet that introduced it lost power
  → PEPSU Appropriation Bill 1954 (first use); MPs' Salary and Pension (Amendment) Bill 1991 (R. Venkataraman, returned unsigned)
- 🚪 **Suspensive:** return a non-Money Bill; must assent if passed again
  → Kalam 2006, Parliament (Prevention of Disqualification) Amendment Bill (Office of Profit)
- **Pocket:** no action, no time limit
  → Zail Singh 1986, Indian Post Office (Amendment) Bill (interception of private mail)

ASP — Absolute (withhold; Bill dies) · Suspensive (return a non-Money Bill; assent if passed again) · Pocket (no action, no time limit)

State Bills: Governor has four options: assent, withhold, return (non-Money Bill), reserve for President. Must reserve a Bill endangering the High Court position (Art 200, 2nd proviso).

Bill	Central	State (reserved for President)
Ordinary	Art 111: assent; withhold; return; must assent if re-passed	Arts 200, 201: assent; withhold; return; after reconsideration President not bound; no time limit so pocket veto possible (Kerala Education Bill 1957 cited); decision final
Money	Arts 109, 110, 111: Lok Sabha only, prior recommendation; cannot be returned; assent by practice	If reserved: assent or withhold only; cannot return
👥 Constitutional Amendment	Art 368: assent mandatory; no return or withhold (24th Am 1971)	Cannot be introduced in State Legislature; States only ratify under 368(2)

Shortcut: Money Bill cannot be returned; Amendment Bill cannot be returned or withheld; only ordinary Bills can be returned. **PYQ 2023:** no time limits for President's assent. US President must return a Bill within 10 days, so the Indian pocket is "bigger". PEPSU 1954 Bill passed under President's Rule revoked before assent. 1991 MPs' salary Bill passed without prior recommendation. 1986 Post Office Bill sent back in 1989 by Venkataraman; National Front Govt dropped it.

📜 CLASS · Veto: four types; Centre over State Bills

Purpose: stop hasty, ill-considered, unconstitutional law. **Four vetoes worldwide:** Absolute, Suspensive, Qualified (USA only, not India), Pocket. India = absolute + suspensive + pocket; no return for a Constitution Amendment Bill or Money Bill.

Art 201: Centre has an absolute veto over State legislation. Example: Maharashtra Bill passed 1995, Centre's assent came 2015. **Sarkaria:** decide State List Bills within 4 months; **Punchhi:** within 6 months.

⚡ ORDINANCE POWER (ART 123) PYQ 2003

President may promulgate ordinances when Parliament is not in session: same force as an Act but temporary. Ambedkar justified it for sudden situations; rare among democracies (not USA or UK). Works in normal times, unlike Emergency powers.

Condition	Detail
🏛️ (a) Not in session	Both Houses not sitting; ordinance issued while a House sits is void
💰 (b) Immediate necessity	Satisfaction on Council's advice; judicially reviewable (R.C. Cooper 1970: mala fides). 38th Am 1975 made it final; 44th Am 1978 deleted that clause
(c) Competence	Union and Concurrent subjects only; may be retrospective; cannot violate FRs or Basic Structure; may amend or repeal laws, alter tax law; cannot amend Constitution (Art 368)
⏳ (d) Laying, duration	Laid on reassembly; ceases six weeks after reassembly unless approved; earlier if both Houses disapprove; different dates: six weeks from later date

Maximum life: about six months and six weeks. Acts done under an ordinance stay valid after it lapses. President may withdraw any time on Council's advice. Bill replacing an ordinance needs a statement of circumstances (Lok Sabha rules). 2002 electoral reforms ordinance, sent back unchanged, assented under Art 123 (PYQ). Handout also says an ordinance can be issued when only one House is in session (Lakshmikanth note); keep both sides in mind.

Case	Holding
🗺️ R.C. Cooper v. Union of India (1970)	Satisfaction questionable on mala fides
🗺️ A.K. Roy v. Union of India (1982)	Not beyond scrutiny; cannot evade Parliament
🗺️ D.C. Wadhwa v. State of Bihar (1987)	Re-promulgation struck down as fraud on the Constitution; Governor of Bihar kept 250+ ordinances alive 1967–1981

C A D — Courts Always Discipline: Cooper (1970) · A.K. Roy (1982) · D.C. Wadhwa (1987)

Lakshmikanth differs: Wadhwa 1986 and exactly 256 ordinances for 1 to 14 years (handout: 1987, over 250). Use handout.

🏛️ CLASS · Ordinance: critique, history, data, more cases

Ordinance power is not parallel or coordinate with Parliament's. Critique: undemocratic; breaches separation of powers; found neither in UK nor USA (teacher left the source open).

1861
British introduce it

CA debates
"necessary evil"; Nehru and Ambedkar trust it will not be abused

1952–64
66 by Nehru govt

1978
Demonetisation by ordinance

1990s on
sharp rise

Why the rise

→ coalition governments
→ fait accompli (hard to undo, affects millions)
→ govt avoids engaging the Opposition. Issues: inadequate scrutiny in 6 weeks; ordinances on pending Bills; re-promulgation after prorogation.

Ordinances per 10 Bills	Rate
👫 First 30 years	1

Next 30 years	2
16th Lok Sabha (2014–19)	3.5

Case	Holding
A.K. Roy (1982)	Rejected the plea that an ordinance is an executive, not legislative, act; wisdom not questionable but it is reviewable
Krishna Kumar Singh (2017)	Wisdom can be questioned; ordinance can be nullified unless effects are irreversible or reviving them would gravely harm public interest

Class vs handout: class dates Cooper to 1969, handout 1970 (check). Class on Cooper: wisdom not questionable, only mala fides is the check. Class: repeal is ideal but impractical; practical route = Presidential checks.

⚡ PARDONING POWER (ART 72) PYQ Mains

Act of grace, not judgment; not an appeal; on aid and advice of Council (Art 74). Aims: correct judicial errors or excess punishment; mercy on humanitarian grounds. Covers: Union-law offence, Court-martial, Death sentence. 72(2): military officers' power to suspend or remit unaffected. Art 72(3): Governor's Art 161 power to suspend, remit, commute death sentence unaffected.

Form	Meaning	Example
Pardon	Absolves completely; conviction erased; rights restored	Legally innocent
Commutation	Lighter kind of punishment; conviction stays	Death to life; rigorous to simple
Remission	Reduces duration, same character	5 years rigorous cut to 3
Respite	Lesser punishment for special circumstances	Disability, illness, mental infirmity, pregnancy
Reprieve	Temporary stay of execution	Time to seek mercy or review

SCRAP – Stay of execution (Reprieve) · Commutation · Remission · Absolves (Pardon) · Physical disability or Pregnancy (Respite)

Handout alert: Art 72 text lists pardon, reprieve, respite, remission, suspension, commutation (six words) but explains "five kinds". Learn the five; "suspension" is in the Article wording. Governor (Art 161) cannot pardon a court-martial or death sentence; only suspend, remit, commute a death sentence (concurrent power).

Case	Holding
Maru Ram v. Union of India (1980)	President acts on Union Cabinet advice; review if arbitrary or mala fide
Kehar Singh v. Union of India (1988)	No right to oral hearing; may re-examine evidence; review if irrational, discriminatory, mala fide
Shatrughan Chauhan v. Union of India (2014)	Inordinate delay, mental illness, lapses can justify commutation; convicts and families informed before execution

Mains hook (delay in mercy petitions): should a time limit be set for the President? Use Shatrughan Chauhan 2014, Art 74 advice, judicial review limits (answer skeleton in flashcards). ✅

⚖ CLASS · Clemency: why, who, limits, cases

Why clemency (teacher)

→ Correct possible judicial errors
→ New facts after the trial
→ Unduly harsh punishment
→ Obsolete laws, e.g. Sec 377 IPC (homosexuality criminalised, 10 years to life)

HONE — Harsh punishment · Obsolete law · New facts · Error of court: clemency hones justice (own mnemonic)

Jurisdiction: President: all death sentences (only he can pardon; Governor only commutes), all court-martial, offences against Union-law. No pre-emptive pardon (before investigation or trial). Seventh Schedule: UL, SL, CL split law-making; implementing power: UL Centre, SL State, CL ordinarily State unless the statute says Centre too.

Life sentence	Art 72 / 161	CrPC 432-433A (BNSS 473-475)
Nature	Constitutional	Statutory
Release	President / Governor can act the very next day	Only after 14 years of jail
Rule	Maru Ram (1980): constitutional power overrides CrPC (now BNSS)	

Case	Holding
Kehar Singh (1989 in class)	Limited review: only whether power was exercised properly, not appeal on merits; President may examine evidence afresh; accused may present case to him; acts on Council's advice, independent of judiciary
Epuru Sudhakar (2006)	Review if (1) no application of mind (2) mala fide (3) irrelevant ground (caste, religion barred) (4) arbitrary. Not a private act of grace; society's interest first
Triveni Behn (1989)	Undue delay violates Arts 20, 21: ground to commute (imprisonment + death = two punishments)
Shatrughan Chauhan (2014)	Supervening events (last remedy to execution): delay, insanity commute. No solitary confinement of death row; 14 days' gap after last remedy; regular mental-health check; post-mortem
UOI v Sriharan (2015)	Rajiv Gandhi convicts, DS commuted to life: "double dip" (statutory release after commutation) allowed; but if a Central agency (CBI) investigated, State cannot release without Centre
Perarivalan (2022)	Governor cannot refer the petition to the President; he acts on State Cabinet's advice, no independent discretion
Bilkis Bano	11 convicts, life in 2008 (Maharashtra trial; HC, SC upheld). 2022 remission applied the 1992 policy though Gujarat's 2014 policy barred rape-murder releases. 2024 SC: back to jail; Maharashtra's policy applies as trial was there

Class vs handout: Kehar Singh class 1989, handout 1988 (check).

Hurried execution: Afzal Guru (2001 Parliament attack): 2013 warrant 1 day before; family told by letter 3 days after. Right to life lasts till the last breath: late petitions must be heard.

PYQ frame: clemency boards (USA, Malaysia) to help President/Governor? Against: (1) needs amending Arts 72, 161 (2) controversy if govt departs from the board's advice. Alternative: a notional 6-month limit; explain any delay.

POSITION, DISCRETION, ART 143 — PYQ 2002

Parliamentary system: President is head of State only (US President is head of State and government). Ambedkar: "represents the nation but does not rule the nation ... a ceremonial device or a seal". K.T. Shah: warned against "gramophone of the Prime Minister".

Art 74 evolution

- → Original: advice-binding implied by convention
- → 42nd Am 1976: advice binding
- **44th Am 1978**
  - → President may once ask Council to reconsider
  - → Then bound by reaffirmed advice
- **1997**
  - → K.R. Narayanan returned advice to impose President's Rule in UP; Cabinet dropped it

Shortcut: 42nd = binding; 44th = send back once (PYQ 2002). Handout once credits "42nd and 44th Amendment Act (1976)" together: 42nd is 1976, 44th is 1978.

President can act independently	Detail
Choosing PM	Hung Lok Sabha, no majority party
👥 Duty to preserve, protect, defend Constitution	Basis for independent action
🔧 Dissolution advice	May reject PM's request if majority lost; look for alternative govt; advice binding only if govt has majority
🎓 Disqualification of MP (Art 103)	Consults ECI, not Council
Art 74	Return advice for reconsideration
Art 78	Seek information from PM
Vetoes	Pocket (Post Office Bill 1986); suspensive (Office of Profit Bill 2006)
🏛️ Messages to Parliament	List ends with "sending messages to the" Parliament

Moral authority: faced with unconstitutional advice use Art 78 (information) or Art 74 (send back). President = "Great Grandfather in a large joint family". R. Venkataraman: discretion is an "emergency light". ⭐

Art 143: advisory

- **Art 143(1) discretionary** → Question of law or fact of public importance → Court may decline; opinion advisory, not binding
- **Art 143(2) mandatory** → Pre-constitutional treaties or agreements: President must refer; Court must answer
- **Art 145(3)** → Five judges; majority opinion

→ Used at least 15 times since 1950: Kerala Education Bill 1957, Ayodhya Reference 1993

📰 *In the news (verify dates)* **Recent reference:** President invoked Art 143(1) on powers of Governors and the President under Arts 200 and 201 after an SC ruling set timelines and introduced "deemed consent".

Handout alert: Kerala Education Bill 1957 appears as an Art 143 reference and as a pocket-veto example; remember it as an Art 143 reference. The "3 schools of thought" figure is missing.

⚡ CLASS · Three schools, Art 361, soft powers

School	View
Rubber stamp	Mere rubber stamp of the Council
Literal reading	Text of the Constitution alone (class note unclear)
Middle ground (teacher's own)	Bound by Council for practical purposes, constitutional head, but an unspecified reserve of discretion as guardian of the Constitution

Proof of nominal head: Ambedkar (represents, does not rule); Draft Constitution's Instruments of Instructions; Ram Jawaya Kapoor (1955), U.N. Rao (1971), Shamsher Singh (1974). Art 361: President or Governor not answerable in court for official acts. Art 74: "aid and advice" is not an order. COM is advisory in form, decisive in practice. ⭐

⚡ True role

- → Constitutional head
- → Right to warn and be consulted
- → Stable government

⚡ Soft powers

- → Question policies, Bills, appointments in a limited way; criticism muted
- → Admonish PM in private, never publicly

→ Receive Leader of Opposition and forward demands to PM; may summon PM

→ Fix the time allowed to PM to prove majority

👑 VICE-PRESIDENT (ARTS 63-71) PYQ 2008 PYQ 2004 PYQ 1997

Art 63: there shall be a VP; second-highest office; modelled on the American VP; ex-officio Chairman of Rajya Sabha. First VP Dr S. Radhakrishnan (1952–1962). 💡

Issue	President	Vice-President (Art 66)
Voters	Elected MPs and MLAs (4,896 in 2017)	Only MPs of both Houses (790 in 2017)
👥 Nominated members	No	Yes
Value of vote	Differs by State; MPs equal	One per voter
🎓 Eligibility	Qualified for Lok Sabha	Qualified for Rajya Sabha
🗳️ Nomination	50 + 50	20 + 20
Method	PR by STV, secret ballot, ECI	Same
Disputes	Supreme Court, final	Same

Ambedkar: President's power extends over Centre and States so State Legislatures vote; VP's functions are confined to the Council of States. Eligibility: citizen, 35, qualified for RS, no office of profit. Not a member of either House or State legislature. Election cannot be challenged for Electoral College vacancies; if void, earlier acts valid. Oath: true faith and allegiance; faithfully discharge duties; administered by President or his nominee. ⭐

Handout alert: the table says value of President's vote "excludes the population" (garbled). Use the main rule: 1971 Census population and number of elected MLAs.

Term (Art 67), vacancy (Art 68)	Rule
⏳ Term	Five years; continues till successor; no limit on re-election
Vacancy by	Expiry; resignation to President; removal; death; disqualification; election void
Anticipated	Election before term ends
Unexpected	Election asap, no six-month limit; full five years
🚪 Removal	No ground stated; resolution only in Rajya Sabha by effective majority of then members; Lok Sabha simple majority

Effective strength = maximum minus vacancies: 5 vacancies, 245 − 5 = 240, so 121 votes. Handout: no one-fourth members / 14-day notice rule for VP. Lakshmikanth differs: says 14 days' advance notice needed; use handout, but remember LK has the notice. 💡

⚡ Dual role

Chairman of RS (Art 64)

→ Presides, keeps order, decides procedure, allows motions

→ Casting vote in tie

→ Not a member (like US VP in Senate)

👑 Acting President (Art 65)

→ Vacancy: at most six months; temporary inability: till President resumes

→ Gets President's powers, immunities, salary

→ Deputy Chairman of RS presides meanwhile

VP who became President	VP years	President
Dr S. Radhakrishnan	1952–1962	2nd (1962–1967)
Dr Zakir Husain	1957–1962	3rd (1967–1969)
V.V. Giri	1967–1969	4th (1969–1974)
R. Venkataraman	1984–1987	8th (1987–1992)

Dr Shankar Dayal Sharma	1987–1992	9th (1992–1997)
K.R. Narayanan	1992–1997	10th (1997–2002)

Rare Zebras Graze Very Slow Nights – Radhakrishnan · Zakir Husain · Giri · Venkataraman · Sharma · Narayanan (Presidents 2, 3, 4, 8, 9, 10) (source aid)

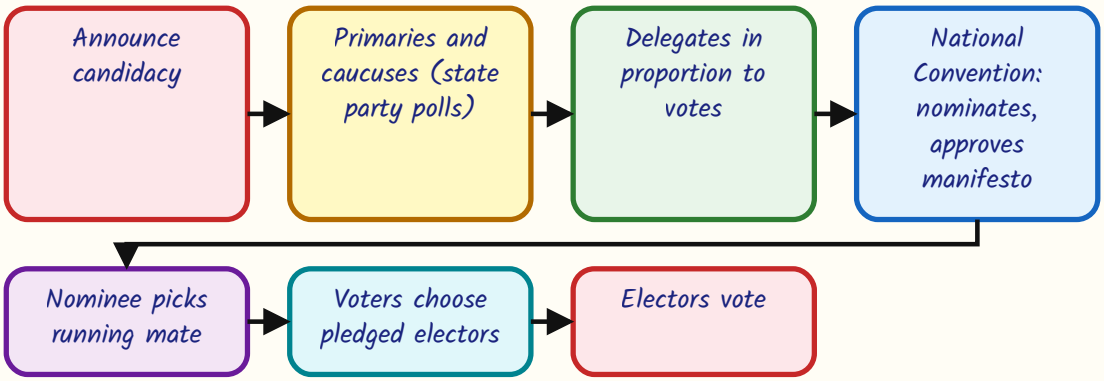
Aspect	India VP	USA VP
Basis	Modelled on US, adapted to parliamentary system	Original in presidential system
⚡ Legislative role	Chairman of Rajya Sabha	President of the Senate
⚡ Executive role	No real authority; ceremonial	Significant; immediate successor
💰 Succession	Acts temporarily; new President in six months	Automatically succeeds for remaining term
💰 After succession	Only till new President takes charge	Continues unexpired term

🗳️ CLASS · USA: eligibility, ticket, Electoral College; VP pay

VP salary and allowances: Salaries and Allowances of Officers of Parliament Act, 1953 (as ex-officio Chairman of RS). ⭐

US President and VP: natural-born citizen, resident 14 years, age 35; elected together as a ticket (nominee picks running mate); 22nd Am 1951: 4-year term, max two. 💡

US route to the Presidency



State	R votes	D votes	Electors to
S1 (60 voters)	31	29	R: 11
S2 (50)	26	24	R: 10
S3 (100)	10	90	D: 20
Total	67	143	R 21, D 20

Electoral College: House 435 + Senate 100 + Washington DC 3 = 538; 270 to win; winner takes all in each State. Teacher's toy case: D has the popular majority (143 vs 67) but R wins the presidency (21 vs 20 electors).

👑 THE PRIME MINISTER PYQ 2013 PYQ 2012 PYQ 2007 PYQ 1997

PM = real (de facto) executive; President nominal (de jure). Ivor Jennings: "keystone of the Constitution. All roads lead to the PM." Ambedkar: the PM, not the President, is comparable to the US President. 💡

View	Meaning	Examples
Primus inter pares	First among equals; coordinator; Cabinet decides	Manmohan Singh

Luna inter stellas minores	Moon among lesser stars; boss, captain; "Prime Ministerial government"	Nehru, Indira Gandhi, Rajiv Gandhi, Modi

🗳️ Appointment (Art 75(1))

→ By President; no detailed procedure, so convention: leader of majority party in Lok Sabha

→ Hung House: leader of largest party or coalition to seek confidence; Neelam Sanjiva Reddy appointed Charan Singh 1979

→ Sudden death: Zail Singh appointed Rajiv Gandhi 1984; Congress Parliamentary Party endorsed

Delhi HC (1980): need not prove majority before appointment; appoint first, prove in reasonable time: Charan Singh 1979, V.P. Singh 1989, Chandra Shekhar 1990, Vajpayee 1996. S.P. Anand v. H.D. Deve Gowda (1997): non-member can be PM but must join either House within six months (PYQ 2012). Britain: PM must be in Commons; India: either House (Indira Gandhi 1966, Deve Gowda 1996, Manmohan Singh 2004 in RS). ⭐

PM's oath	Content
Office	True faith and allegiance to Constitution; uphold sovereignty and integrity; faithfully discharge duties; do right to all without fear or favour, affection or ill will
Secrecy	Not to disclose information that comes as a minister, except for official duties

⏳ Term, salary

→ No fixed term; "during pleasure of President" but cannot dismiss a PM with LS confidence

→ Loses confidence: must resign (V.P. Singh 1990, Deve Gowda 1997)

→ MP's pay + sumptuary allowance (Rs 3,000 per month in 2018), free residence, travel, medical, security

Relation	Functions
🏛️ Council of Ministers	Heads Council; recommends ministers; allocates, reshuffles portfolios; can ask minister to resign or advise dismissal; presides; chief coordinator; PM's resignation dissolves whole Council; other minister's resignation or death only creates a vacancy
👑 President (Art 78)	Principal channel; informs of decisions and proposals; places a matter decided by one minister before Council if asked; advises on AG, CAG, UPSC, ECs, Finance Commission appointments
🏛️ Parliament	Leader of Lok Sabha; advises summoning, proroguing, dissolving LS at any time; chief spokesperson

Art	Provision	Essence
74	Council with PM aids and advises; may once ask reconsideration	Aid and advice
75	(a) PM by President, ministers on PM's advice; (b) pleasure of President; (c) collective responsibility to LS	Appointment, tenure, responsibility
78	PM communicates decisions, supplies information, submits matters	Keeps President informed

PM also

Chairs

→ NITI Aayog

→ National Integration Council

→ Inter-State Council

→ National Water Resources Council

→ Shapes foreign policy; chief spokesman; Crisis Manager-in-Chief

Caretaker govt

→ Not in Constitution; convention when govt loses confidence, resigns or LS dissolved

→ Only routine administration; no major policy, new schemes, large commitments (except security, urgency)

→ Tarkunde Committee (1974–75); Calcutta HC (1979); President N.S. Reddy reaffirmed 1979

Deputy PM

→ Not a constitutional office; appointed by President on PM's recommendation

→ First Sardar Vallabhbhai Patel, last L.K. Advani
→ Deputy CM: appointed by Governor on CM's advice; not constitutional
→ Devi Lal's oath (1990) upheld: titles are descriptive if substantive oath correct

CM who became PM	State	Year
Morarji Desai	Bombay State	1977
Charan Singh	Uttar Pradesh	1979
V.P. Singh	Uttar Pradesh	1989
P.V. Narasimha Rao	Andhra Pradesh	1991
H.D. Deve Gowda	Karnataka	1996
Narendra Modi	Gujarat	2014

My Cats Visit People During Nights – Morarji · Charan Singh · V.P. Singh · P.V. Narasimha Rao · Deve Gowda · Narendra Modi (source aid)

PM in lower House: UK always Commons (last Lords PM Lord Salisbury 1902); German Chancellor from Bundestag; Japanese PM from lower house. 1966 H.V. Kamath Bill to codify PM from Lok Sabha: Congress rejected, convention will evolve. After Nehru's and Shastri's deaths Gulzari Lal Nanda acted as PM; Delhi HC list also includes Narasimha Rao 1991, Deve Gowda 1996, Gujral 1997, Vajpayee 1998; in a hung House the leader proves confidence within a month. Lakshmikanth differs: dates the six-month rule to a 1996 SC ruling (handout: S.P. Anand 1997).

CLASS · Why PM-centred; PM relations; Deputy PM

Laski: PM is central to the birth, life and death of the Council. Hilton: PM is an elected monarch.

Why PM dominates (teacher)

Personal
→ Tallest leader of country and party
→ Celebrity vote-getter, clear majority

Institutional
→ Heads Cabinet and Council; allocates and reshuffles portfolios
→ His exit dissolves Council; leader of the House
→ Chairs NITI Aayog, NDMA; PMO and Cabinet Secretariat support
→ Keeps sensitive depts: Space, Atomic Energy

PM and	Extra functions (class)
Parliament	Advises on nominated RS members; harmonises relations with Opposition; resolves RS–LS deadlock
People	Constitutional morality; leader of the masses
World	Engages foreign partners, more than the External Affairs Minister

Deputy PM is created when
→ Two leaders of near-equal stature (Nehru, Patel)
→ To check rivalry and factions (Indira Gandhi, Morarji Desai)
→ Coalition compulsion (class: V.P. Singh, Chandrashekhar governments)
→ Not codified

COUNCIL OF MINISTERS PYQ 2022 PYQ 2013 PYQ 2007

Appointment (Art 75)

→ PM by President; others on PM's advice
→ Pleasure of President; in practice while LS trusts them (75(3))
→ Non-member minister: member of Parliament within six months (Deve Gowda 1996 entered RS)
→ May speak in other House, vote only in own
→ Oaths by President; salaries by Parliament; advice cannot be questioned in any court

In the news · July 2026 Minister resigns, Art 75: Education Minister's resignation over NEET failures cited as individual ministerial responsibility; Art 75(2) pleasure of President; 75(3) collective responsibility to Lok Sabha.

91st Am Act 2003	Detail
Cap	Total ministers including PM not more than 15% of Lok Sabha strength
Defection	MP disqualified under Tenth Schedule cannot be a minister

PYQ 2022 trap: the Constitution does not classify ministers into four ranks; ranks arise by convention. The 15% cap is constitutional (91st Am). PM and Council ministers: Art 75(4) oath of office and secrecy; Art 75(6) salaries.

Under Salaries and Allowances of Ministers Act, 1952	Sumptuary allowance per month
PM	Rs 3,000
Cabinet Minister	Rs 2,000
Minister of State	Rs 1,000
Deputy Minister	Rs 600

Numbers: 3-2-1-0.6 thousand: PM, Cabinet Minister, MoS, Deputy Minister. MP's basic pay plus allowances.

Responsibility	Content
Collective (Art 75(3))	To Lok Sabha; "swims or sinks together"; no-confidence makes all resign (incl. RS ministers); Cabinet decisions bind all; minister who cannot defend must resign (Ambedkar 1953 Hindu Code Bill; C.D. Deshmukh Reorganisation of States; Arif Mohammad Khan 1986 Muslim Women (Protection of Rights on Divorce) Act)
Individual (Art 75(2))	Each answers for department; pleasure of President, used on PM's advice; A. Raja (2010) resigned over 2G spectrum. Ambedkar: collective responsibility works through the PM
No legal	Britain: minister countersigns and can be liable; India: no countersignature, courts cannot inquire into advice; politically accountable, not legally liable

Cats Ignore Noise — Collective · Individual · No legal (source aid)

Case	Holding
U.N.R. Rao v. Indira Gandhi (1971)	Council continues after LS dissolution; President cannot use executive power without aid and advice; breach of Art 74
Shamsher Singh v. State of Punjab (1974)	"Satisfaction of the President" = satisfaction of Council, not personal

Rank	Role
Cabinet Minister	Key portfolios (Defence, Home, Finance, External Affairs); core policy body chaired by PM; "steering wheel of the ship of State" (Ramsay Muir)
MoS (Attached)	Assists a Cabinet Minister
MoS (Independent Charge)	Heads smaller ministry; all functions of Cabinet Minister but not in Cabinet; attends when invited
Deputy Minister	Assists Cabinet Minister or MoS; no independent charge; rarely used now

Kitchen Cabinet (Inner Cabinet): PM and a few trusted colleagues; efficient, confidential, may dilute Cabinet and let non-elected advisers influence; powerful under Indira Gandhi (P.N. Haksar, D.P. Dhar). "Cabinet" entered the Constitution by 44th Am (1978), appears only in Art 352(3): Emergency needs Cabinet's written advice. Parliamentary Secretaries are not in the Council: PM appoints, no department, assist senior ministers in Parliament. ⭐

Basis	Council of Ministers	Cabinet
👥 Composition	Cabinet Ministers, MoS (IC), Deputy Ministers	Smaller inner circle; Cabinet ministers only
👥 Size	About 40 to 60, within 15%	About 15 to 20
Decisions	Implements; seldom meets as whole	Real authority; meets regularly, usually once a week
⚡ Power	Broader but mostly advisory; all powers in theory	Supreme in policy, coordination, control; exercises Council's powers in practice
Basis	Arts 74, 75; constitutional body; size max 15% (91st Am 2003)	Only Art 352(3) (44th Am 1978); powers rest on convention
Accountability	Collectively to Lower House	Enforces that collective responsibility

👥 CLASS · CoM ranks, formation, size; Cabinet functions

🏛️ Hierarchy of the Council



Term	Class point
Portfolio system	Govt work divided into departments, each given to a person; portfolio = group of related activities (Finance, Defence). Cabinet Minister can also be without portfolio
MoS (IC)	Heads smaller ministries; not in Cabinet, attends when invited
MoS	Assists Cabinet Minister; 36 MoS in class (e.g. Jitin Prasada, Commerce; Anupriya Patel, Health)
👑 Deputy Minister	Assists in administrative and parliamentary work; "trainee post", lost significance
🏛️ Parliamentary Secretary	Handles the ministry's Parliament work: explains Bills, answers Questions

Formation	Rule
Clear majority	President appoints the single party's leader
Hung LS (Punchhi order)	(1) pre-poll coalition (2) largest coalition with outside support (3) largest party with outside support
👫 Post-poll coalition with majority	Partners join the Council
👫 Post-poll minority coalition	Outside support; "a bit unstable"

PM weighs: region, regional communities, women, backward classes (SC, ST, OBC), party heavyweights, coalition partners, youth. ARC-1 (1966): integrity, party stature, capacity for sustained work. ⭐

Small Cabinet: 6 gains

- → Effective deliberation
- → Better coordination
- → Lighter tax burden
- → Easier secrecy
- → Fewer tongue-tied ministers

→ Rational division of work

⚡ Cabinet: 8 functions (teacher)

→ Governs: supreme executive authority
→ Creation dominates the creator: prime legislative body (agenda, summoning date)
→ Principal policy-making body
→ Co-ordinating body par excellence
→ Senior appointments (Governors etc.)
→ Budget: preparation, enactment, execution
→ Supplies chief executives to organs of govt
→ Crisis management (war, disasters)

PYQ frame: "Cabinet dictatorship is a stark reality, but no cabinet can be omnipotent." ✅ Reality: supreme executive authority, prime legislative body, principal policy maker. Limits: judicial and legislative checks · public opinion · EC, CAG, NHRC · party pressure · international opinion and treaties (WTO, globalism). Close: dominance within checks.

🗳️ CABINET COMMITTEES AND GROUPS OF MINISTERS PYQ

2009 PYQ 2007

Extra-constitutional: from Government of India (Transaction of Business) Rules, 1961 under Art 77(3). Formed by PM; usually six to eight standing plus ad hoc; 3 to 8 members; MoS may be included; PM chairs the crucial ones; Home or Defence Minister when delegated. Cabinet Secretariat gives staff, agenda, records. Aim: specialisation, coordination, speed. 💡

Committee	Head	Role
Political Affairs (CCPA) "Super Cabinet"	PM	Centre-State relations; political coordination; ministry disputes; foreign affairs
Economic Affairs (CCEA)	PM	Economic, industrial policy; investment approvals, pricing, subsidy
🛡️ Security (CCS)	PM	Defence, national security, intelligence; procurement; internal security
🏛️ Parliamentary Affairs	Defence Minister	Legislative business; sessions; Bills
Investment and Growth	PM	Large investment; removes bottlenecks
Employment and Skill Development (2019)	PM	Jobs, skills, labour reforms
Accommodation	Home Minister	Govt accommodation; rent norms, retention, eviction
🗳️ Appointments	PM	Top appointments, transfers, promotions: Secretaries, PSU heads, constitutional bodies

AIDES – Appointments · Investment and Growth · Development: Employment and Skill Development · Economic Affairs · Security (five of the eight)

APP – Accommodation (Home Minister) · Parliamentary Affairs (Defence Minister) · Political Affairs (PM). The other three of the eight.

PM heads six of eight; Parliamentary Affairs: Defence Minister; Accommodation: Home Minister. Handout says "six to eight standing" in features but lists eight at present; Employment and Skill Development created 2019. Source aid: "PM Expects Stellar Performance, Intelligent Effort, Accurate Answers".

Function	Example
Policy formulation	Detailed examination before Cabinet
Administrative coordination	CCEA: Finance, Commerce, Industry
🔧 Dispute resolution	CCPA

🛡️ Crisis, security	CCS: war, terrorism, disturbances
Personnel	Appointments committee
📜 Legislative management	Parliamentary Affairs: session timing
Economic, social development	CCEA; Employment and Skill Development

Significance: specialisation, upholds collective responsibility (Art 75(3)), strengthens PM, inter-ministerial cooperation, continuity, policy think tank. Constituted when subject involves many ministries. 💡

👑 Groups of Ministers (GoMs)

→ Ad hoc, temporary, issue-specific; some decide for Cabinet, some only recommend; dissolve after task

Second ARC (2005–2009)

→ Proliferation caused delays

→ Selective use; only time-bound GoMs with clear mandate and decision powers

→ 2024: two informal GoMs (iGoMs) for economic and social reforms (Viksit Bharat by 2047)

🗳️ CLASS · Cabinet committees: gains and problems

Extra advantages	Problems
👑 Check on arbitrary decisions of one minister	PM chairs most, so Cabinet's revisionary role is weakened
⚠️ All concerned ministries involved: balanced	Meetings not held regularly
Small body, better deliberation, sustained focus	Junior ministers rarely included
👑 Best use of ministerial expertise	Some set up on trivial issues
Resolves minor conflicts	Gaps: AI, climate change, poverty

Number and composition are the PM's sole prerogative. ⭐

🎯 CABINET SECRETARIAT, PMO, CENTRAL SECRETARIAT PYQ

2021 PYQ 2015 PYQ 2014 PYQ 2009 PYQ 2000

Cabinet Secretariat

→ Principal staff agency; works under PM (Chairperson of Cabinet)

⚡ Functions

→ Assistance to Cabinet and committees: agenda, minutes

→ Implements rules of business; chief coordinating agency

→ Monthly summary to President and ministers

→ Promotes new policy initiatives

→ PYQ 2014, 2009: agenda and committee assistance are functions; allocation of financial resources to ministries is not; works under PM, not Ministry of Parliamentary Affairs

Cabinet Secretary

→ Senior-most IAS post; head of civil services

→ 11th rank in precedence (PYQ 2000: CJI, Cabinet Ministers, CEC, Cabinet Secretary)

→ Principal adviser to PM; "conscience keeper"; buffer between executive and civil service

→ Presides over Chief Secretaries conference; chairs Civil Services Board (PM not ex-officio chair: 2015)

→ Since 2010: minimum 2 years, beyond retirement age, extendable by 2

→ N.R. Pillai first; Rajiv Gauba present

PMO

Growth

→ 1947 Prime Minister's Secretariat (PMS)

→ 1977 Janata govt renames PMO

→ Indira Gandhi: PMO took decisions (bank nationalisation, privy purses, Emergency)

→ Rajiv Gandhi: "government of government of India"; Cabinet Secretariat its implementation arm

👥 Members

→ A Minister of State

→ Principal Secretary (P.K. Mishra)

→ National Security Advisor

⚡ Functions

→ References and files; PM as "CEO of the country"

→ Direct-charge depts: atomic energy and space (Dept of Atomic Energy under PMO: 2009)

→ NITI Aayog chair work; public relations

→ Residual legatee

→ PM Relief Fund, PM National Defence Fund, PM CARES Fund

→ Role reflects PM's personality; weak in coalitions; strong PMO makes Principal Secretary more powerful than Cabinet Secretary

Point	Cabinet Secretariat	PMO
Serves	Cabinet, committees, PM	PM personally
Head	Cabinet Secretary (11th)	Principal Secretary
🏛️ Origin	Principal staff agency	PMS 1947, PMO 1977
Special	Coordination; monthly summary; rules of business	Residual legatee; PM's funds; direct-charge depts

Central Secretariat

→ Headquarters of all central ministries; administers Union List subjects

→ Split system: policy (generalists) vs implementation (specialists): Health Department / Directorate of Health; Home / DG Police

⚡ Functions

→ Policy advice

→ Legislative work (draft Bills, briefs for Questions)

→ Ministry budget

→ General supervision

→ Clearing house; institutional memory; continuity

→ Channel to States, CAG, UPSC

Handout alert: PYQ tail Q45, Q46 cut off. Q46 (1995): Finance Minister in Lok Sabha, or all parts of India represented in the Council, are conventions not in the Constitution; answer (c) all parts represented. Q45 answer (c) full discretion in choosing ministers. Source PYQ facts: Dept of Border Management is under MHA (2008); Food and Nutrition Board under Health (2005); forest rights nodal agency: Tribal Affairs; GEAC under Environment and Forests; MCA-21 = e-governance (2007); Transchart = chartering wing of Surface Transport (1999); ministries at Centre on 15 Aug 1947 = 18 (2009); Sarkaria Commission (1983): Governor an eminent outsider.

CLASS · Cabinet Secretariat wings, Secretary, PMO

Cabinet Secretariat wings

→ Civil: assists Cabinet, committees, PM
→ Military: assists Defence Committee of Cabinet, NSC
→ Intelligence: assists (R&AW)

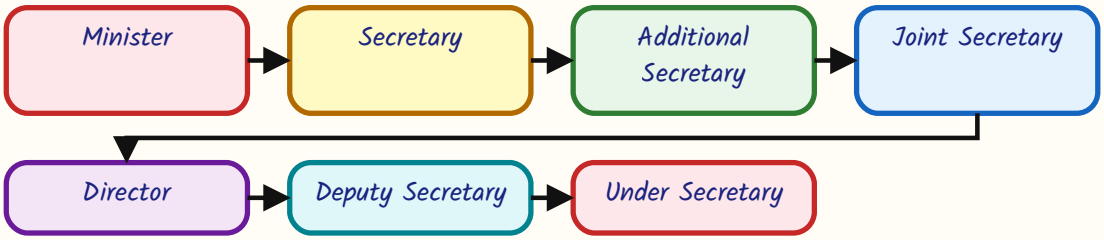
Also under it

→ Principal Scientific Adviser's office
→ DBT Mission
→ National Authority, Chemical Weapons Convention
→ Directorate of Public Grievances

Cabinet Secretary: "eye and ears" of the PM; conveys the President's messages to PM; helps prepare the Cabinet agenda; "general factotum". Tenure: ARC-1 wants 3 years; UPA (2004-09): 2 years fixed + 2 extension.

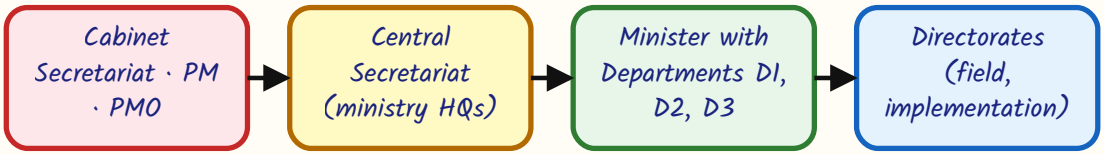
Class vs handout: class names T.V. Somanathan as present Cabinet Secretary; handout says Rajiv Gauba (follow class for the current holder). Class ties 2-year fixed tenure to UPA 2004-09; handout says since 2010 (check).

🎯 Ranks in a ministry (Home example; Director: class letter D, verify)



PMO (class): "full-fledged department": MoS, Principal Secretary, NSA, media adviser; names in class P.K. Mishra, Shaktikanta Das. Reason: a minister needs a PA, the PM needs a larger institution.

👥 Central Secretariat structure



⚡ EMERGENCY POWERS (HANDOUT HEADING EMPTY)

Emergency

→ Art 352 national emergency: war, external aggression, armed rebellion; FRs suspendable except Arts 20, 21
→ Arts 356, 365 President's Rule
→ Art 360 financial emergency: salaries of all, even judges, can be cut

More Bills needing President's prior recommendation: expenditure from Consolidated Fund; boundary change or new State; meaning of "agricultural income"; money distribution to States; surcharge for Centre. A State Bill restricting trade needs his previous sanction.

ELECTIONS 1952–2022 (SELECTED)

Year	President winner (vote %)	Main rival
1952, 1957	Dr Rajendra Prasad (83.81; 99.35)	K.T. Shah (1952); N.N. Das (1957)
1962	Dr S. Radhakrishnan (98.24)	Ch. Hari Ram
1967	Dr Zakir Husain (56.23)	K. Subba Rao
1969	V.V. Giri (50.22)	N. Sanjeeva Reddy
1974	Fakhruddin Ali Ahmed (80.18)	Tridev Chaudhuri
1977	N. Sanjeeva Reddy (unopposed)	None
1982	Giani Zail Singh (72.73)	H.R. Khanna
1992	Dr Shankar Dayal Sharma (65.86)	George Swell
1997	K.R. Narayanan (94.97)	T.N. Seshan
2002	Dr A.P.J. Abdul Kalam (89.58)	Laxmi Sehgal
2007	Pratibha Patil (65.82)	B.S. Shekhawat
2012	Pranab Mukherjee (68.12)	P.A. Sangma
2017	Ram Nath Kovind (65.65)	Meira Kumar
2022	Droupadi Murmu (64.03)	Yashwant Sinha

Year	VP winner	Runner-up	Votes
1952, 1957	Dr S. Radhakrishnan	Unopposed	None
1962	Dr Zakir Husain	N. Samant Singh	568 vs 14
1967	V.V. Giri	Prof. Habib	486 vs 192
1969	G.S. Pathak	H.V. Kamath	400 vs 156
1974	B.D. Jatti	N.E. Horo	521 vs 141
1979	M. Hidayatullah	Unopposed	None
1984	R. Venkataraman	B.C. Kambley	508 vs 207
1987	Dr S.D. Sharma	Unopposed	None
1992	K.R. Narayanan	Kaka Joginder Singh	700 vs 1
1997	Krishna Kant	Surjeet Singh Barnala	441 vs 273
2002	B.S. Shekhawat	Sushil Kumar Shinde	454 vs 305
2007, 2012	Mohd. Hamid Ansari	Najma Heptullah; Jaswant Singh	455 vs 222; 490 vs 238
2017	Venkaiah Naidu	Gopal Krishna Gandhi	516 vs 244
2022	Jagdeep Dhankhar	Margaret Alva	528 vs 182

TIMELINE

1947 PMS created

1954 PEPSU: first absolute veto

1969 Giri acts; Hidayatullah

1971 24th Am; U.N.R. Rao

1974 Shamsher Singh

1976 42nd Am

1977 PMO; Reddy unopposed

1978 44th Am

1987 D.C. Wadhwa

1992 70th Am

1997 S.P. Anand; Narayanan

2003 91st Am

2010 Cab. Secy tenure

2014 Shatrughan Chauhan

2019 CC Employment and Skill

2022 MLA vote UP 208

Answer frame: President is the nominal head, elected indirectly; real power with Council under Art 74 and Art 75(3); powers (vetoes, ordinance, pardon) are used on advice, with discretion only in narrow cases. Size of Cabinet vs efficiency: 15% cap (91st Am). ✅

Recall drill: cover and answer

Who is in the Electoral College? Who is excluded?	Elected MPs and MLAs (incl. Delhi, Puducherry); nominated members, MLCs excluded	Value of MLA vote? MP vote 2022?	1971 Census population per elected MLAs (84th Am); MP 700 (UP 208, Maharashtra 175, Sikkim 7)
Who decides disputes on President election?	Supreme Court (Art 71); 44th Am 1978 restored after 39th Am 1975	Ground and procedure of impeachment?	Violation of Constitution (Art 61); 1/4 signatures, 14 days notice, 2/3 of total membership in each House
Three vetoes and their cases?	Absolute (PEPSU 1954, MPs salary 1991); suspensive (Kalam 2006); pocket (Zail Singh 1986)	Ordinance: duration and cases?	Six weeks after reassembly (about 6 months 6 weeks); Cooper 1970, A.K. Roy 1982, Wadhwa 1987
Five forms of clemency?	Pardon, commutation, remission, respite, reprieve (SCRAP)	Which Am made advice binding? Allowed one reconsideration?	42nd (1976) binding; 44th (1978) once
VP removal: where and how?	Resolution only in Rajya Sabha, effective majority of then members; Lok Sabha simple majority	15% cap and ranks of ministers?	91st Am 2003 (incl. PM); ranks by convention, not Constitution
Cabinet in the Constitution?	Only Art 352(3), by 44th Am 1978	Cabinet Secretary and PMO facts?	11th precedence, 2-year minimum tenure since 2010; PMS 1947, PMO 1977, residual legatee
Art 55 formula: MLA vote and MP vote?	MLA: (1971 pop ÷ elected MLAs) ÷ 1000, round up if remainder 500+; MP: total MLA votes ÷ elected MPs	Why clemency? (teacher)	HONE: harsh punishment, obsolete law, new facts, error of court
Shatrughan Chavhan 2014 safeguards?	No solitary confinement; 14 days after last remedy; mental-health check; post-mortem; delay commutes	Ordinances per 10 Bills (first 30 yrs / next 30 / 16th LS)?	1 / 2 / 3.5

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

PM = Prime Minister — Head of the Union government

VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

PMO = Prime Minister's Office — Secretariat supporting the Prime Minister

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

RS = Rajya Sabha — Council of States; the upper House of Parliament

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ECI = Election Commission of India — Constitutional body (Art 324) that conducts elections

UPSC = Union Public Service Commission — Constitutional body (Art 315) that recruits for the Union services

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

CJI = Chief Justice of India — Head of the Supreme Court

HC = High Court — State-level constitutional court (Art 214)

NITI = National Institution for Transforming India — Government policy think tank that replaced the Planning Commission in 2015

CM = Chief Minister — Head of a State government

CCEA = Cabinet Committee on Economic Affairs — Cabinet committee that approves MSP and major economic decisions

CVC = Central Vigilance Commission — Apex vigilance body against corruption in central services

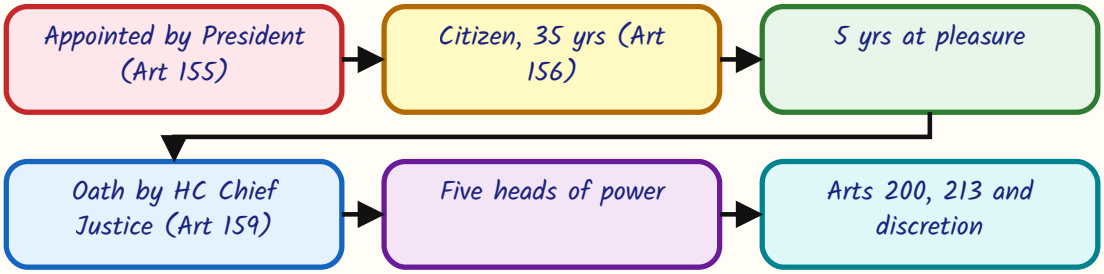
CEC = Chief Election Commissioner — Head of the Election Commission

GOVERNOR

PYQ Prelims 2025 (x2), 2019 (x2), 2018, 2015, 2014, 2013 · Prelims (Sarkaria) · Mains 2022, 2018

✎ *The Governor is the nominal head of a State and the Centre's agent; know appointment and its critics, term and immunities, the five heads of power, Arts 200 and 213, discretion, and the President versus Governor tables.*

At a glance: the route



Dual role: (1) head of the State, (2) link and agent of the Union. Part VI, Arts 153–167 = Governor, CM, Council of Ministers, Advocate-General. Parliamentary form in States; Governor = constitutional head like the President; Art 154 vests executive power in him, but he is only nominal; real authority = Council under the CM.

E-L-F-J-D — Five heads of power: Executive, Legislative, Financial, Judicial, Discretionary. "Every Lazy Fox Jumps Daily." (Handout adds a sixth heading, special responsibilities, under discretion.)

⚡ How authority is split

→ Formal: executive power in Governor (Art 154), directly or through officers
→ Real: Council under CM aids and advises (Art 163), responsible to Assembly (Art 164)
→ Agent role: acts as Union's link and agent

Source conflict (ch 12): that chapter says executive power is "vested in the Council of Ministers"; Governor chapter says Art 154 vests it in the Governor, exercised through the Council. Rule: formally Governor (Art 154), in practice Council under CM.

🗳 APPOINTMENT (ART 155)

🗳 Appointment

→ President by warrant under hand and seal; not elected; nominated by Union executive

🌐 Convention
→ President consults CM
→ appointee not from the same State
→ both conventions violated at times

→ One person, two or more States: 7th Am. Act, 1956
→ Constituent Assembly: considered direct election (American model), adopted Canadian model; Draft Constitution had direct election on universal adult suffrage

CLASS · Governor: Constituent Assembly options, Sarkaria, service chiefs

Method considered	Fate
Election by Legislative Assembly	Rejected
Nomination by Centre from a panel by the Assembly	Rejected
Direct election (Draft Constitution)	Dropped later
Nomination by Centre	Accepted (class: Rajeshwar Prasad amendment, verify)

Sarkaria extras: amend Art 155 for effective consultation with the CM; also consult LS Speaker and VP; avoid active politicians, especially where State party differs from Centre's; wide political and social background, understanding of economy and polity. Rameshwar Prasad (2006): evolve norms on who and how Governors are appointed.

Retired service chiefs and bureaucrats: (1) politicisation: serving officer eyes a post-retirement lure, conflict of interest, quid pro quo (2) training makes them rigid, politics needs flexibility. Remedy: cooling-off period of 2 years after retirement.

NOMINATED VERSUS ELECTED

Against nomination (6)

→ Outsider: unfamiliar with local culture, language, ethos
→ Friction with CMs of opposition States (West Bengal, Goa named)
→ Erosion of federal principles
→ Rehabilitation centre: retired politicians, election losers
→ Mass removals when Centre changes
→ Interference in State politics, destabilising governments

Against election (5)

→ Nominal head like President; election serves little purpose
→ Potential friction with CM: two popular mandates
→ Manifesto without authority
→ Loss of central control: nominee = channel of coordination; unity amid separatism
→ Second-rank candidate; CM backs own nominee; elected Governor belongs to a party, not neutral

O-F-E-R-M-I – Six against nomination: Outsider, Friction, Erosion of federalism, Rehabilitation centre, Mass removals, Interference: "Old Foxes Enjoy Raj Bhavan Mostly Idle".

N-P-M-L-S – Five against election: Nominal head, Potential friction, Manifesto without authority, Loss of central control, Second-rank candidate: "No Poll Means Less Strife".

COMMISSIONS ON THE GOVERNOR PYQ 2019

Body	Points
ARC-I (1966)	not burnt-out politicians with long partisan years; no lifelong loyalty to one party; no election losers; exclude doubtful integrity (criminal records, corruption); appointment needs approval of both Houses of Parliament; Leaders of Opposition in both Houses consulted
Sarkaria (1983)	first central commission on Centre-State relations; observed: usually no CM consultation or mere formality; CM objected yet same person appointed; Governors appointed before State government formed. Also wanted: eminent, from outside State, detached from local politics, not a ruling-party politician posted to an opposition State
NCRWC (2002)	appointment on advice of high-level committee: PM, Union Home Minister, Lok Sabha Speaker, CM of the State

P-H-S-C — NCRWC committee: PM, Home Minister, Speaker, CM: "Put Home Safe, Call".

Source conflict (Prelims PYQ, year not given): "eminent outsider, detached figure" is keyed to Sarkaria (1983), though the notes list that advice under ARC-I 1966 and Sarkaria only records observations. Use the key: Sarkaria. NCRWC dated 2002 in notes, 2000 in the PYQ option: same body.

👑 Who becomes Governor (Sarkaria)

→ Politicians (ruling party at Centre, active and retired)
→ Retired bureaucrats
→ Retired service chiefs (Defence, Naval, Army)
→ Social activists (rare)
→ Academicians (occasional)
→ Retired judges (few)

ESCAPE — Ex-bureaucrats · Social activists · Chiefs of armed services · Academicians · Politicians · Ex-judges. Raj Bhavan = comfortable ESCAPE for retirees. (Order rearranged; groups unordered.)

JUDICIAL INTERPRETATION ON APPOINTMENT

PYQ Mains 2018

Case	Held
S.R. Bommai v. Union of India (1994)	Governors crucial for Centre-State balance; cautioned against politically affiliated or non-objective appointees; partisan behaviour distorts federal governance
Rameshwar Prasad v. Union of India (2006)	Centre must ensure impartiality and conventions; misusing office to influence government formation or impose President's Rule (Art 356) violates basic spirit of the Constitution
B.P. Singhal v. Union of India (2010)	President appoints and removes, but with constitutional propriety, non-arbitrariness; "pleasure" (Art 156) not absolute; no dismissal for political disagreement or change of party at Centre; office is not employment under the Union, a constitutional post

B-R-S — Case order oldest to newest: Bommai 1994, Rameshwar 2006, Singhal 2010: "Big Red Stamp".

Lakshmikanth differs: cites Surya Narain (1981): President's pleasure not justiciable, Governor has no security of tenure. Handout cites B.P. Singhal (2010). Use B.P. Singhal for the exam.

Removal practice: 1989 V.P. Singh government asked all Governors to resign; 1991 Narasimha Rao government changed 14 Governors. A Governor can be transferred or reappointed. Hargovind Pant (1979): office is not employment under Central government, an independent constitutional office. ⭐

🎓 TERM, QUALIFICATIONS, OATH, IMMUNITIES PYQ 2025 PYQ 2018 PYQ 2013

Item	Rule
⏳ Term (Art 156)	during pleasure of President; normal 5 years, until successor takes charge; may resign to President; may be transferred or reappointed
🎓 Qualifications (Art 156)	only two: citizen of India, 35 years completed. Conventions (outsider, CM consulted) violated at times
Conditions (Art 158)	not MP or State legislator (vacates seat if so); no office of profit; Raj Bhavan and emoluments by Parliament law (Governor's Emoluments Act, 1982); two or more States: shared as President decides; emoluments not reduced during term
Oath (Art 159)	by High Court Chief Justice (or senior-most judge): preserve, protect, defend the Constitution and the law; serve the people of the State
Immunity (Art 361)	official acts: personal immunity; no criminal proceedings during term, even personal acts, no arrest or imprisonment; civil proceedings for personal acts only after 2 months' notice
Art 160	President can provide for contingency (e.g. death of Governor); High Court Chief Justice may temporarily discharge functions, same oath
💰 Salary	raised from Rs 1.10 lakh to Rs 3.50 lakh per month (Finance Act 2018, effective 1 Jan 2016, amending 1982 Act)

P-F-S-R – Tenure: Pleasure, Five years, Successor takes charge, Resign to President: "Put Forward Some Resignation".

PYQ 2018 and 2025: "no criminal proceedings" true and "emoluments not diminished" true: appear together as the correct pair. PYQ 2013: no procedure for removal of a Governor in the Constitution. ⭐

Source conflict: Lakshmikanth lists the qualification under Art 157; handout says Art 156. Other Arts: 160 contingencies, 162 extent of State executive power, 165 Advocate-General, 176 special address, 201 reserved bills.

🚪 CLASS · Removal of Governor: Singhal grounds, three bodies

B.P. Singhal (2010): no removal on arbitrary grounds, courts will intervene. Valid grounds: corruption, mental or physical infirmity, conduct unbecoming of a Governor. ⭐

Body	Recommendation
🗳️ Rajamannar Committee (1969, T.N.)	Two grounds: misbehaviour (corrupt, unethical) and incapacity, after inquiry by the SC
Sarkaria	Five-year tenure disturbed only for extremely compelling reasons; Governor given an explanation; reviewed by a committee; President acts on its report; grounds laid before Parliament
Punchhi	Fixed 5 years; impeachment as for President, mutatis mutandis; quit party on appointment, never a party office-bearer; no other post or election except VP and President; transfer only with consent; immune from GoI instructions except the President

Open question: should the Governor's post be abolished? ✅

👥 CONSTITUTIONAL POSITION: ARTS 154, 163, 164

Art	Rule
154	executive power in Governor, directly or through subordinates; formal head
163	Council headed by CM aids and advises, except where he must act in discretion; ministerial responsibility
164	Council collectively responsible to Legislative Assembly; real power with elected government

	Governor	President
Discretion	Constitution explicitly allows discretion; no amendment made, not bound in every situation	None mentioned
Binding advice	not bound where discretion permitted	bound by Council since 42nd Am. (1976)

Other	no vice-governor in a State; no diplomatic, military or emergency powers	Vice-President exists; has such powers

D-B — Two differences: Discretion (Governor) and Binding advice (President since 42nd Am.): "Different But similar".

CLASS · Parallel Articles, position, two hats

Governor	President	Subject
154	53	Executive power
161	72	Pardon
164	75	Ministers
166	77	Conduct of business
167	78	Information from CM / PM

Vague wording of Art 163 opens the discretionary domain. Calling Governor "equal and same" as President is a misconception that invites abuse: President is more secure (no arbitrary removal); Governor can be transferred or removed easily. Appointment and removal lie with the Union; the Governor wears two hats.

Two hats

Union's representative

→ Fifth and Sixth Schedule areas

→ Art 355 constitutional governance in State; Art 200

→ Fortnightly (15-day) reports to Centre; Central Administrative Directions

→ Constitutional head of State

→ Raghukul Tilak (1979) (Hargovind Pant): not Union's employee; independent constitutional authority

POWERS: EXECUTIVE

Type	Powers
Formal	actions in his name; rules on authenticating orders; rules for transaction and allocation of business among Ministers
Appointing	CM and on his advice other Ministers (pleasure); Tribal Welfare Minister in Chhattisgarh, Jharkhand, Madhya Pradesh, Odisha (Bihar excluded by 94th Am., 2006); Advocate-General (fixes pay, pleasure); State Election Commissioner (removal only like HC judge); SPSC Chairman and members (removable only by the President)
Supervisory	calls for information from CM (Art 167); can require CM to place a one-minister decision before the Council; can recommend President's Rule (Art 356)
Educational	Chancellor of State universities: appoints Vice-Chancellors, presides at convocations

C-M-A-E-S — Governor appoints: CM (and Ministers), Minister tribal welfare (4 States), Advocate-General, State Election Commissioner, SPSC: "Cats Meet Angry Elephants Softly". SPSC removal belongs to the President.

CLASS · Governor as Chancellor; more appointments

Chancellor: education = CL Entry 25 and UL Entry 66 (standards); British Chancellor appoints the VC. Questions: statutory powers outside the Constitution? acts on CoM advice? Punchhi opposed adding such roles (mess, controversy). Class cites a 1997 case (name uncertain): Governor does not act on CoM advice as Chancellor. Governor also appoints SFC and SHRC members.

POWERS: LEGISLATIVE PYQ 2019 PYQ 2015

Governor is an integral part of the State Legislature (Art 168); powers mirror the President's; mostly on ministerial advice, discretion in some matters (e.g. reserving Bills).

Power	Details
Summon, prorogue, dissolve (Art 174)	on Council's advice. Nabam Rebia (2016): power to summon is not solely his; exercised with aid and advice of Council
Address	first session after each general election and first session of each year (PYQ 2019)
Messages (Art 175)	to one or both Houses on a pending Bill or any matter
Presiding officers	Speaker and Deputy both vacant: appoints an Assembly member to preside; likewise Council member if Chairman and Deputy vacant
🗳️ Nomination (Art 171)	one-sixth of Legislative Council: literature, science, art, cooperative movement, social service
🎓 Disqualification (Art 192)	decides disqualification (other than Tenth Schedule) in consultation with Election Commission
Reports laid	State Finance Commission, SPSC, CAG on State accounts
Anglo-Indian	before 2020 nominated one Anglo-Indian member to Assembly; 104th Am. Act 2019 ended it

L-S-A-C-S — Council nominees: Literature, Science, Art, Cooperative movement, Social service: "Let Some Artists Come Soon".

📜 ASSENT TO BILLS: ARTICLE 200

📜 Four options on a State Bill

→ 1 Assent: becomes Act
→ 2 Withhold: Bill fails
→ 3 Return (not a Money Bill): if passed again, with or without amendment, he must assent: suspensive veto
→ 4 Reserve for President: referential veto, not available to the President

S-W-A-T — Governor's options: Send to President (reserve), Withhold, Assent, Throw back (return): the Governor can SWAT a Bill away or let it through. (Unordered.)

Reservation	Cases
Mandatory	Bill endangering the position of the High Court (Art 200, second proviso)
Discretionary	(i) ultra vires the Constitution; (ii) contrary to DPSPs; (iii) against larger national interest; (iv) of grave national importance; (v) compulsory acquisition of property under Art 31A (before 44th Am.)

U-D-N-G-A — Discretionary reservation: Ultra vires, DPSP-contrary, National interest, Grave importance, Art 31A: "Under Discussion, No Governor Agrees".

If the President returns a reserved Bill, the House must reconsider it within 6 months. ⭐ Once reserved, the Governor has no further role.

⚖️ CLASS · Sitting on Bills: 2023 cases, 2025 timelines, Reference

Three ways to sit on a Bill (Art 200): no assent, no reservation, no return. 💡

Case	Holding
👑 State of Punjab v Governor (2023)	4 Bills; Governor called the session illegal. SC: Speaker may re-convene a session not prorogued; Governor cannot sit on Bills indefinitely
👑 State of T.N. v Governor (2023)	Governor returned a Bill, Assembly re-adopted it, he then reserved it for the President; reservation belongs at the first instance

📰 Class · 2025 SC timelines on assent: no indefinite pocket veto.

SC 2025 timeline	Limit
👑 Withhold and reserve for President on CoM advice	1 month

📜 Withhold assent against advice: return to legislature	3 months
👑 Reserve for President against advice	3 months
📜 Re-adopted Bills	No reservation: deemed assent
👑 President	Decide in 3 months; longer delay reasoned and communicated to State
⚠️ Failure by either	State can approach the court
👥 Reserved as unconstitutional	President should seek SC opinion and ordinarily accept it

📰 Class · 2025 Art 143 Reference, 5-judge opinion: (1) Governor/President cannot be bound by timelines (2) courts cannot deem assent (3) broad discretion under Arts 200/201, which courts cannot usurp (4) assent decisions generally not justiciable, yet prolonged delay that thwarts the people's will is not permissible.

Open question (teacher): judgment and Reference opinion point opposite ways: which prevails? A review petition would have been the route; Govt chose Art 143.

📜 ORDINANCE: ARTICLE 213 PYQ Mains 2022

Conditions

→ Legislature not in session

→ Governor personally satisfied immediate action needed

→ only within State's legislative competence; beyond it void ab initio

⚖️ Prior Presidential instruction needed (3 cases, proviso to Art 213(1))

→ a Bill with same provisions needed President's previous sanction

→ he would think it necessary to reserve such a Bill

→ a similar Act invalid unless reserved and assented

Source conflict: bullets say only when both Houses are not in session; comparison table says when either House is not in session (a law needs both Houses; mirrors President). Use the table version; handout is inconsistent.

S-R-I – Three cases: Sanction, Reserve, Invalid without assent: "State Rules Instruct".

📜 Life of an Ordinance

→ Promulgated on Council's advice when Legislature not in session

→ Laid before Legislature on reassembly

→ Ceases 6 weeks from reassembly, unless earlier disapproved or replaced by State law; Houses meeting on different dates: count from later date (Expl. to Art 213(2))

→ Governor may withdraw any time

→ same force as State Act; Art 213(3): provision invalid in State law is void in Ordinance

Art 254 link: Ordinance on a Concurrent List matter conflicting with Parliament's law is void to extent of repugnancy; if promulgated with prior Presidential instructions it is treated as a reserved and assented State law and prevails in the State (proviso to Art 213(3) with Art 254(2)); Parliament can still override later.

Case	Held
🗺️ D.C. Wadhwa v. State of Bihar (1987)	re-promulgation without placing before Legislature violates constitutional morality and legislative supremacy; reviewable for mala fide intent or lack of immediate necessity
🗺️ Krishna Kumar Singh v. State of Bihar (2017)	satisfaction must be real, not mechanical; rights created by a lapsed Ordinance do not survive automatically

Lakshmikanth differs: D.C. Wadhwa dated 1986 (handout 1987). Bihar Governor issued 256 ordinances in 1967–81, kept alive 1 to 14 years by repromulgation; Court said this violates the Constitution. Use handout year.

⚡ FINANCIAL AND JUDICIAL POWERS PYQ 2013

Financial	Rule
Art 202	ensures Annual Financial Statement (Budget) is laid
Art 207	Money Bill introduced only with his prior recommendation
Demands	no demand except on his recommendation
Art 267(2)	controls Contingency Fund; advances for unforeseen expenditure
Arts 243-I, 243-Y	constitutes State Finance Commission every 5 years; lays report and Action Taken Report
Reports	CAG report; SFC recommendations on local finances

Judicial	Power
161	pardon, reprieve, respite, remission, suspend, remit, commute: offences against State-power laws
Art 217(1)	consulted by President for HC Chief Justice and Judges (does not appoint)
233	appoints, posts, promotes District Judges, with HC
234	appoints others to State judicial service, with SPSC and HC

B-M-D-C-F — Financial five: Budget, Money Bill, Demand for grants, Contingency Fund, Finance Commission: "Buy More Dates, Cash First".

🤝 DISCRETION AND SPECIAL RESPONSIBILITIES PYQ 2025 PYQ 2014

Explicit discretion	Matters
👑 Independent of Ministers	reservation of Bills (Art 200); administrator of adjoining UT (Art 239); Sixth Schedule States (Assam, Meghalaya, Tripura, Mizoram): royalty share to Autonomous District Councils
🤝 Special responsibilities	Arts 371, 371A–J: consults Council, decision carries special responsibility

Implicit (situational)	Handout wording
Art 356	report recommending President's Rule
🏛️ Hung Assembly	appoints CM when no majority; also on CM's sudden death with no successor
🚪 Dismissal	of Council that cannot prove Assembly confidence
🔧 Dissolution	of Assembly if Council lost majority
Art 167	seeking information from CM
📜 Legislative	messages; suspensive or pocket veto over Bills
🗺️ Centre–State conflict	acts at discretion until Union instructions arrive

H-A-R-D — Situational, crisis: Hung Assembly (CM; also CM's sudden death) · Axe the Council without confidence · Report for President's Rule (356) · Dissolve Assembly. A crisis is HARD for a State. (Part 1 of 2)

M-I-C — Situational, routine: Messages and suspensive or pocket veto · Information from CM (167) · Centre–State conflict discretion. Speaks through the MIC. (Part 2 of 2; completes seven.)

👥 Constitutional discretion list (handout section 5)

→ administrator of adjoining UT
→ recommending President's Rule (Art 356)
→ reserving a Bill for the President
→ amount payable to autonomous tribal areas
→ seeking information from CM (Art 167)

U-R-B-T-I — "Under Raj Bhavan The Inspector": UT administrator, Rule of President (356), Bill reserved, Tribal area amount, Information from CM.

Source conflict: lists differ: Art 356 and Art 167 are implicit in one place, constitutional discretion in another; Sixth Schedule item = royalty share in one place, peace and coordination (Assam, Para 18(2)) in the special-responsibility list. PYQ 2014: Art 356 report and reserving Bills are discretionary; appointing Ministers and framing business rules are not. PYQ 2025: Constitution explicitly mentions discretion; the President cannot of his own reserve a State Bill. Art 163(2),(3): his decision on discretion is final; ministers' advice not enquired into by courts.

State	Special responsibility
Maharashtra (Art 371(2))	Development Boards for Vidarbha and Marathwada
Gujarat (Art 371(2))	Development Boards for Saurashtra and Kutch
Nagaland (Art 371A(1)(b))	final authority on law and order in Naga Hills-Tuensang area during disturbances
Assam (Sixth Sch., Para 18(2))	peace, coordination, law implementation in tribal areas under ADCs
Manipur (Art 371C)	oversees hill areas' administration; reports to President
Sikkim (Art 371F)	peace, social and economic advancement of diverse groups
Arunachal (Art 371H)	individual judgment on law and order when necessary
Karnataka	Hyderabad-Karnataka region development (board added by 98th Am. 2012)
Hyderabad city	security and coordination between two States under AP Reorganisation Act, 2014

M-G-N-A-M-S-A — "Mighty Governors Naturally Assume Many Special Assignments": Maharashtra, Gujarat, Nagaland, Assam, Manipur, Sikkim, Arunachal (handout order).

CLASS · Floor test, prosecution sanction, dismissing a CM

Art 371J (Karnataka): development board for 6 backward districts of Hyderabad-Karnataka. Bommai (1994): Governors acted differently in like cases, so any doubt on a CM's majority is settled on the Assembly floor (floor test compulsory; composite floor test also read).

Prosecution of a CM facing corruption: Governor can sanction under Sec 197 CrPC and Sec 19 PC Act. Governor may dismiss a CM outright if he: (1) undermines national unity (2) tries to make the State independent (3) negotiates with a foreign country to secede.

PRESIDENT VERSUS GOVERNOR

Veto on Bills	President	Governor
Ordinary Bill	3 options: assent, withhold, return	4: assent, withhold, return, reserve
Returned and repassed	bound to assent (suspensive)	bound to assent (suspensive)
Reserved by Governor	3 choices: assent, withhold, return; if repassed, not bound to assent	no further role
Money Bill	2: assent or withhold; cannot return	3: assent, withhold, reserve; cannot return
Money Bill reserved	2 options; decision final	no further role

Why Money Bills pass: every Money Bill needs the executive's prior permission (President's at Centre, Governor's in State), so assent is normal.

Ordinance	President	Governor
When	either House not in session	unicameral: Assembly not in session; bicameral: either House (see conflict above)

Extent, force	co-extensive with Parliament; force of Act	co-extensive with State Legislature; force of State Act
Discretionary?	No; advice of Council under PM	No; advice of Council under CM
⏳ Duration	6 weeks from reassembly; earlier if both Houses disapprove	6 weeks; earlier if Assembly disapproves, Council agrees where there is one
Withdrawal	any time	any time
Special restriction	None	3 cases need prior President instructions

Pardon	President	Governor
Offences	Central or Parliament law	State law
Death sentence	full pardon, reprieve, respite, suspension, remission, commutation; only authority to pardon death	no pardon; only suspend, remit, commute
⚖️ Court-martial	can pardon etc.	no power

D-C — Governor's pardon limits: Death-sentence pardon and Court-martial barred: "Don't Cross".

1956 7th Am.: one Governor for 2+ States

1966 ARC-I

1976 42nd: President bound

1982 Emoluments Act

1983 Sarkaria

1987 Wadhwa

1994 Bommai

2002 NCRWC

2006 Rameshwar; 94th

2010 Singhal

2014 AP Reorg. Act

2016 Nabam Rebia

2017 K.K. Singh

Recall drill: cover and answer

Qualifications of a Governor? Term? (Art 156)	Citizen of India and 35 years; 5 years at President's pleasure, until successor takes charge	Who administers the Governor's oath? Which Art?	High Court Chief Justice (or senior-most judge); Art 159
Art 361 immunity? (Prelims 2018, 2025)	No criminal proceedings during term; civil for personal acts after 2 months' notice; emoluments not reducible (Art 158)	Four options under Art 200?	Assent, withhold, return (not Money Bill; must assent if repassed), reserve for President
Art 213 ordinance: life and the 3 cases?	6 weeks from reassembly; prior President instruction if Bill needed sanction, would be reserved, or Act invalid unless assented	Which discretionary powers? (Prelims 2014)	Art 356 report and reserving Bills yes; appointing Ministers and framing business rules no
Governor's pardon limits vs President?	No pardon of death sentence (only suspend, remit, commute); no court-martial power	Cases: Bommai, Rameshwar, Singhal, Wadhwa, Nabam Rebia?	1994, 2006, 2010, 1987, 2016
NCRWC committee for Governor appointment?	PM, Home Minister, Speaker, CM of State	Pay rise of Governor (2018 Act)?	Rs 1.10 lakh to Rs 3.50 lakh per month, effective 1 Jan 2016
SC 2025 timelines for Governor on Bills?	1 month (on CoM advice); 3 months (against advice or reserving); President 3 months; re-adopted Bills deemed assented	Punchhi on removal of Governor?	Fixed 5 years; impeachment like President (mutatis mutandis); transfer only with consent

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CM = Chief Minister — Head of a State government

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

HC = High Court — State-level constitutional court (Art 214)

NCRWC = National Commission to Review the Working of the Constitution — Set up in 2000 under Justice M. N. Venkatachaliah

PM = Prime Minister — Head of the Union government

SPSC = State Public Service Commission — State counterpart of the UPSC

VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

UT = Union Territory — Area administered directly by the Union government

AP = Andhra Pradesh — State in south India

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

PSC = Public Service Commission — Constitutional recruitment body (UPSC for the Union, SPSC for States)

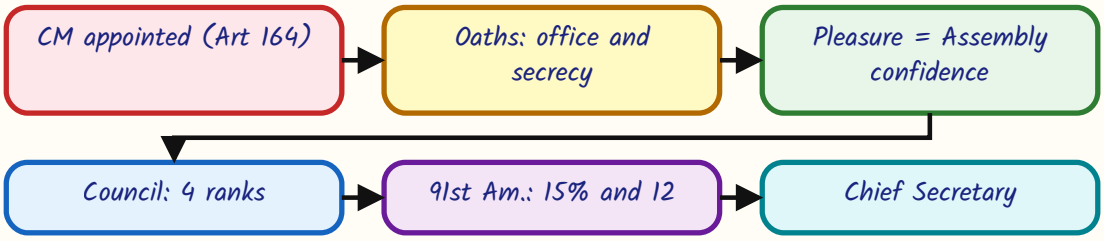
SHRC = State Human Rights Commission — State counterpart of the NHRC

CHIEF MINISTER AND STATE EXECUTIVE

PYQ Prelims 2016

The Governor reigns, the CM rules: how the CM is appointed (hung Assembly, non-members), oath, term and powers, the Council of Ministers (ranks, 91st Am. cap, responsibility), Cabinet and Chief Secretary.

At a glance: the route



Governor = nominal, de jure, constitutional head. CM = real, de facto head, like the PM at the Union. Executive power is described as resting with the Council, but the CM plays the central, commanding role.

Source conflict: this chapter says executive power is "vested in the Council of Ministers"; the Governor chapter says Art 154 vests it in the Governor, exercised through the Council. Rule: formally Governor (Art 154), in practice Council under the CM.

APPOINTMENT OF THE CM (ART 164)

Situation	Practice
1 Normal	one party has absolute majority: Governor must appoint its leader; purely formal
2 Hung Assembly	limited personal discretion: usually invites largest party or post-poll coalition; appointee proves majority on floor, generally within a month or period Governor specifies; legitimacy from legislative confidence
3 Death of sitting CM	no immediate successor: Governor may use individual judgment; conventionally ruling party elects new leader quickly, whom he must appoint
4 Non-legislator (Art 164(4))	may be appointed but must be elected within 6 months or ceases to hold office automatically

N-H-D-N — Four situations: Normal majority, Hung Assembly, Death of CM, Non-member: "No Household Disputes Now".

Six-month rule: non-member CM or minister gets 6 months to get elected, else out (Arts 164(4) and 164(1)(f) in handout). Proof of majority: Constitution does not require it before appointment; Governor appoints first, asks him to prove majority within a reasonable time; final authority = Legislature. ⭐

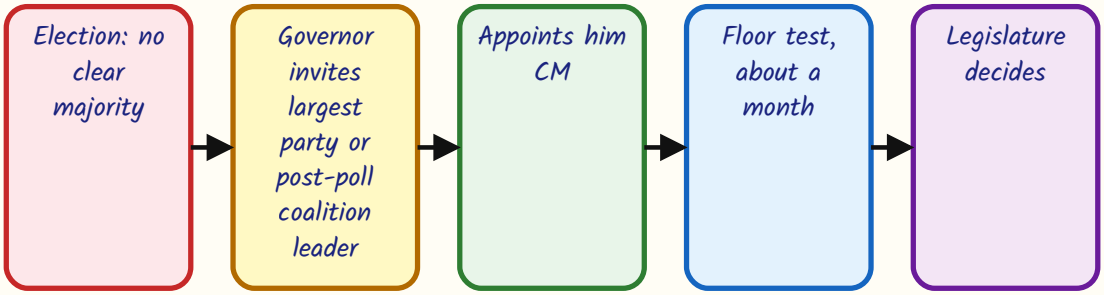
⚖️ B.R. Kapoor case (2001)

→ Qualification: one not qualified to contest cannot use Art 75(5) and Art 164(4)

→ No arbitrary appointment: may appoint competent person who lost an election; person unable to contest due to other constitutional commitments; experts

→ No repeats: no repeat appointment after the 6 months expire

🏛️ Hung Assembly path



Sarkaria on choosing a CM: Governor's task is to see a government is formed, not one whose policies he likes; single party with absolute majority: its leader asked automatically. Order if no majority: (1) pre-poll alliance, (2) largest single party with support of others incl. independents, (3) post-poll coalition with all partners in government, (4) post-poll alliance with some partners supporting from outside. A CM not leading an absolute-majority party should seek confidence vote within 30 days; if majority contested, test it on the House floor. S.R. Bommai (1994): CM cannot be dismissed while he has majority support; many Governors violated this by dismissing without floor test. ✅

Membership: CM can sit in either House; convention picks from Assembly, but Council members (Uttar Pradesh and Bihar named) have been CMs. ⭐

⏳ OATH, TERM AND SALARY

Oath	Content
Office (Art 164(3))	bear true faith and allegiance to Constitution; uphold sovereignty and integrity of India; discharge duties faithfully and conscientiously; do right to all without fear or favour, affection or ill will
Secrecy	not to communicate matters known as Minister to unauthorised person, except for due discharge of duties

B-U-F-D — CM's oath of office: Bear true faith · Uphold sovereignty · Faithfully discharge duties · Do right to all. Brave Upright Fair Dealings. (Both oaths administered by Governor.)

⏳ Term and pay

→ No fixed term; during Governor's pleasure (Art 164) = only while he has Assembly confidence

→ majority support: Governor cannot dismiss; on losing confidence must resign or may be dismissed

→ Salary set by State Legislature, plus MLA salary: sumptuary allowance, free residence, travelling allowance, medical and other facilities

TRAM — CM's perks: Travelling allowance, Residence free, Allowance sumptuary, Medical and other facilities. (Unordered.)

⚡ POWERS OF THE CM

Relation	Powers
🏛️ Council	Governor appoints only persons CM recommends; allocates, reshuffles portfolios; asks a minister to resign or advises dismissal; presides; guides, coordinates, controls. His resignation or death collapses whole Council; another minister's only creates a vacancy
👑 Governor (Art 167)	channel between Governor and Council; communicates decisions on administration and legislative proposals; furnishes information called for; submits a one-minister matter for Council reconsideration if Governor requires; advises on Advocate-General, SPSC members, State Election Commissioner
📜 Legislature	advises on summoning, proroguing, dissolving; can recommend dissolution any time; announces policies; keeps House informed
👑 Executive	supervises Secretariat headed by Chief Secretary; oversees senior appointments; leads civil service on discipline, efficiency, morale; influences PSU, Board, Commission appointments

C-G-L-E-O — Heads of CM's powers: Council, Governor, Legislature, Executive, Other. Chief Guides Legislature Executive Others. (Handout order.)

Other role	Detail
🗺️ State Planning Board	Chairman
🏛️ Zonal Council	Vice-Chairman by rotation, 1 year at a time (Union Home Minister chairs all zonal councils)
🏛️ Inter-State Council, NITI Aayog Governing Council	ex-officio member (both headed by PM)
Others	chief spokesperson; crisis manager-in-chief (political); hears grievances; political head of State services

CM falls = Council falls. CM resigns or dies: entire Council goes. Any other minister: only a vacancy.

👑 GOVERNOR AND CM: ARTS 163, 164, 167

Art	Rule
163	Governor acts on aid and advice of Council under CM. Two exceptions: where Constitution requires discretion (e.g. CM when no majority) and special responsibilities (e.g. Sixth Schedule areas, reserving Bills). Art 163(2),(3): his decision on discretion is final; advice not enquired into by courts. Shamsher Singh (1974): his "satisfaction" = satisfaction of Council
164	(a) CM appointed by Governor; (b) other ministers on CM's advice; (c) pleasure, in practice Assembly confidence; (d) collective responsibility to Assembly; (e) oaths by Governor; (f) non-member minister ceases after 6 consecutive months. Art 164(1B) (91st Am.): defection-disqualified legislator also disqualified as minister
167	CM communicates decisions and proposals; gives information; submits matters for reconsideration
Art 166	all executive action in Governor's name; authenticated order cannot be questioned as not made by him
Art 177	minister may speak in either House and committees but vote only in his own House

A-A-C — Three Articles: Aid and advice (163), Appointment and tenure (164), Communication duties of CM (167): "All Act Closely".

Legitimacy: appointments are in the Governor's name, political legitimacy rests with the CM. Tribal welfare minister: originally Bihar, MP, Odisha; 94th Am. 2006 freed Bihar, added Chhattisgarh and Jharkhand; may also handle SC and backward-class welfare. ⭐

🏛️ COUNCIL OF MINISTERS: RANKS

Constitution outlines principles in Art 163 (status) and Art 164 (appointment, tenure, responsibility, qualifications, oath, salaries); it does not classify ministers into ranks: tiers are convention (British pattern). 💡

Rank	Role
👑 Chief Minister	head; leader of majority party or coalition; others on his advice; portfolios, presides, links Governor and ministers

👑 Cabinet Ministers	senior; head key departments (Home, Finance, Education, Health, Agriculture, Industries); form the Cabinet, supreme decision-making; frame policy, introduce Bills; collectively responsible
👑 Ministers of State	middle; some independent charge (e.g. Tribal Welfare, Small Industries, Tourism), others attached to Cabinet Ministers; not in Cabinet unless invited
👑 Deputy Ministers	junior-most; no independent charge; attached to Cabinet Ministers; pilot Bills, answer questions; political balancing (caste, region)

C-C-M-D – Chief Minister, Cabinet, Ministers of State, Deputy: Chief Commands Many Deputies; "Cool Cats Meet Daily". A Deputy CM may sit in Council (local politics); States have departments, not ministries.

👥 APPOINTMENT, TENURE AND SIZE

Topic	Rule
🗳️ Appointment	Governor appoints CM and ministers on CM's advice; Governor has no discretion on other ministers except rare cases (hung Assembly)
⏳ Tenure	no fixed tenure; Governor's pleasure (Art 164) exercised on CM's advice; no-confidence vote: whole Council resigns
Oath	Art 164(3) and Third Schedule; office and secrecy for every minister
💰 Salary	State Legislature (Art 164(5)); until then Second Schedule; equal to MLA plus sumptuary allowance by rank, residence, travel, medical
Collective	Council collectively responsible; loss of majority: entire Council steps down
Individual	CM may advise removal of a minister who loses his confidence

📜 91st Amendment Act, 2003

→ Ceiling: not more than 15% of Assembly strength
→ Floor: not less than 12 including CM
→ Aim: stop oversized ministries (appeasement), lighten exchequer

Handout notes

→ UP, West Bengal, Orissa still have disproportionately large Councils
→ 2nd ARC: no blanket 15% norm; link strength to Assembly size

🏛️ CLASS · ARC-2 sliding cap on State Council

Why 91st Am (2003) set 15%: States like UP and West Bengal had oversized Councils. 73rd and 74th Am devolved powers to PRIs and ULBs, which should shrink Councils.

ARC-2 scheme (not implemented)	Cap on Council
🏛️ Assembly 200+	10%
🏛️ Assembly 80–200	12%
🏛️ Assembly below 80	15%

🤝 COLLECTIVE AND INDIVIDUAL RESPONSIBILITY

Collective (Art 164(2))

→ Council = team; one minister's decision is the Council's

→ no-confidence: whole ministry incl. CM resigns

→ motion against one minister = loss of confidence by all

→ stops public opposition to policy while in office

→ Cabinet decisions bind all ministers; one who cannot defend must resign

Individual

→ each answers for his department

→ inefficiency, corruption, policy violation: CM asks resignation, else advises dismissal

→ Council that lost confidence can advise dissolution; Governor may refuse

No legal responsibility	Detail
Scope	ministers not legally responsible for Governor's official acts or advice under Art 163
Britain vs India	Britain: ministerial countersignature makes ministers liable; India: none
Result	cannot be prosecuted or sued for advice; accountability political, not legal; Governor's acts stay valid

C-I-N – Three responsibilities: Collective, Individual, No legal liability: "Council Is Not sued".

🗳️ COUNCIL POWERS, CABINET, COMMITTEES

Sphere	What it does
👑 Executive	implements laws; supervises police, education, health, agriculture, industries, welfare; policies; coordinates ministries
📜 Legislative	introduces most Bills, esp. Money Bills (need its prior approval); manages debates; in power only with majority
Advisory	advises Governor except discretion: Ordinance-making; appointments (Advocate-General, State Election Commissioner, SPSC); dissolution on its recommendation
Financial	prepares and presents annual budget; revenue, expenditure control; no Money Bill or demand without approval

LEAF – Legislative, Executive, Advisory, Financial: the Council is the LEAF through which governance feeds. (Order rearranged; unordered.)

Cabinet

→ smaller, most powerful part; cabinet-rank ministers only; supreme executive authority

→ policy, coordination, advises Governor, crisis management, budget, senior appointments

🗳️ Cabinet committees

→ created by CM; number, names, composition vary

→ standing (permanent) or ad hoc (temporary)

→ sometimes decide on their own; Cabinet can review and revise

🎯 CHIEF SECRETARY PYQ 2016

Point	Detail
Cadre	generally senior-most IAS officer of State cadre; topmost executive officer, principal adviser
🗳️ Appointed by	Chief Minister, holds office at CM's pleasure; formally in Governor's name
⏳ Tenure	No fixed tenure; continuity by convention

PYQ 2016 trap: "appointed by Governor" (false) and "fixed tenure" (false): answer **(d) neither**. Appointment is in the Governor's name but made by the CM.

Six functions	Detail
Principal Adviser to CM	administration, policy implementation, coordinates departments
Head of State civil services	executive head of Secretariat; secretaries report to him
Secretary to the Cabinet	agenda, minutes, ensures implementation
Centre–State liaison	main channel with Union incl. centrally sponsored schemes
Crisis manager	relief, disasters, law and order crises
Guardian of discipline	efficiency, integrity of civil servants; transfers and postings of senior officers

A–H–S–L–C–G — "All Hands Stay Loyal, Calm, Guided": Adviser, Head, Secretary to Cabinet, Liaison, Crisis manager, Guardian of discipline. Role: authority and neutrality; links political executive and permanent civil service.

1950
Arts 163, 164, 167

2001
B.R. Kapoor

2003
91st Am.: 15%, 12

2006
94th Am.

2016
Chief Secretary PYQ

Recall drill: cover and answer

Who appoints the CM? Which Article?	Governor, Art 164(1); leader of majority; in hung Assembly largest party or coalition proves majority	Non-member CM: how long?	6 months to be elected (Art 164(4)); B.R. Kapoor (2001): no repeat appointment
91st Amendment (2003) numbers?	Council max 15% of Assembly, min 12 including CM	Four ranks of ministers?	CM, Cabinet Ministers, Ministers of State, Deputy Ministers (convention)
Who is appointed by whom: Chief Secretary? (Prelims 2016)	By the CM, not Governor; no fixed tenure; answer (d) neither	What happens if CM resigns or dies?	Entire Council falls; other minister: only a vacancy
Collective responsibility Article?	Art 164(2): Council to Assembly; no legal responsibility (no countersignature)	Sarkaria order if no majority?	Pre-poll alliance, largest party with support, post-poll coalition all in government, post-poll alliance with outside support
CM roles outside the State?	Zonal Council vice-chair by rotation; Inter-State Council and NITI Aayog GC ex-officio member; State Planning Board chair	ARC-2 cap on State Council by Assembly size?	200+: 10%; 80–200: 12%; below 80: 15%

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CM = Chief Minister — Head of a State government

PM = Prime Minister — Head of the Union government

SPSC = State Public Service Commission — State counterpart of the UPSC

NITI = National Institution for Transforming India — Government policy think tank that replaced the Planning Commission in 2015

PSU = Public Sector Undertaking — Company owned mainly by the government

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ARC = Administrative Reforms Commission — Commission recommending reforms in public administration (1st in 1966, 2nd in 2005)

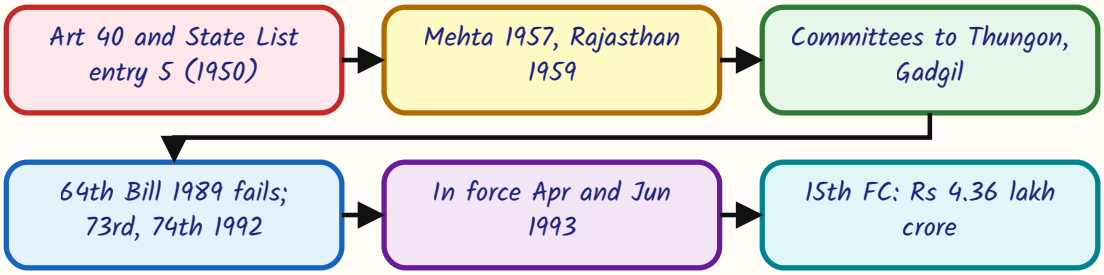
LOCAL SELF-GOVERNMENT

PYQ Prelims 2017, 2016 (x2), 2015, 2013 (x2), 2012, 2011 (x2) · Mains 2024 (x2), 2022, 2020, 2019, 2018, 2017, 2015, 2013

Rural and urban local government in one walk: committees, 73rd (Part IX, 29 subjects) and 74th (Part IX-A, 18 subjects) Amendments article by article, money, problems, and the 15th Finance Commission's record grants.

Current affairs · verify dates
Defining Urban Areas in India
MoHUA told a parliamentary panel that census-town criteria do not capture the scale of urbanisation ... (full: CA pages at the end)

At a glance: the route



	73rd Am. (rural)	74th Am. (urban)
Part	IX, Arts 243–243O	IX-A, Arts 243P–243ZG
Schedule	Eleventh: 29 subjects (Art 243G)	Twelfth: 18 items (Art 243W)
In force	24 April 1993	1 June 1993
Failed Bill	64th (1989)	65th Nagarpalika (1989)
Bodies	Gram Panchayat, Panchayat Samiti, Zila Parishad	Nagar Panchayat, Municipal Council, Municipal Corporation

ORIGINAL CONSTITUTION PYQ 2017

Local self-government: administration of a small locality by a body representing inhabitants; fair autonomy; raises part of its revenue locally; spends on local services. Gandhi: Gram Swaraj, "India lives in her villages". Prelims 2017: best explained as democratic decentralisation.

Provision	Content
Art 40 (DPSP, Part IV)	State shall organise village panchayats, give powers needed as units of self-government
State List, entry 5	local self-government is a State subject

Importance versus status: importance = Art 40 + entry 5 (1950); status = Part IX via 73rd Am. (1992). Art 40 was only directive; implementation left to States.

CLASS · LSG: significance and evolution

Teacher: LSG is the closest and oldest form of government, yet a "misnomer": a 3-tier body, not a comprehensive government (State and Centre are also elected by us), so no separate "oneness" for accountability.

Significance of LSG (9)

→ Grassroots democracy: Nehru, "Democracy at the top cannot succeed unless it is built on a strong foundation from below"
→ School of democracy: training ground for future leaders
→ better at basic services: local interest, local knowledge
→ more economical: spending is seen by locals, more vigilance

→ relieves upper levels, who focus on broad policy
→ two-way channel between people and higher government
→ taps human and material resources: vital for national progress
→ indispensable for decentralised planning
→ real participation: direct democracy

Period	Class points
Ancient	urban local government in Indus-Harappan cities; Vedic Gramini, Granika (village headman); Pataliputra: 30-member board in 6 committees of 5 for city administration
Cholas	Uttaramerur (T.N.) copper-plate inscriptions, 9th-10th c.: LSG on democratic lines; candidate age 35-70, own house on own land, not a debtor
Medieval	setback: invasions, heavy centralisation
British	traces in urban LG; aims: (1) prevent disaffection among natives (2) relieve imperial finances: local problems from local resources, serve imperial interests (3) wider taste for British manufactures
Madras 1687	first Municipal Corporation, nominated members only (handout dates 1688)

🎯 EVOLUTION OF PANCHAYATI RAJ PYQ 2016

👫 From Mehta to first panchayats

→ Community Development Programme (1952), National Extension Service (1953): needed a check
→ Balwant Rai G. Mehta Committee (1957): "democratic decentralization"; appointed Jan 1957, reported Nov 1957
→ NDC (Jan 1958): accepted, States may choose own model if core principles uniform; Zila Parishad "advisory, coordinating, supervisory"
→ 2 Oct 1959: Rajasthan first, Nagaur; Andhra Pradesh same year

State variation	Example
Tiers	Rajasthan 3, Tamil Nadu 2, West Bengal 4
Rajasthan-AP model	Panchayat Samiti stronger; block = planning unit
Maharashtra-Gujarat model	Zila Parishad dominant; district = primary planning unit
Nyaya Panchayats	judicial panchayats for minor civil and criminal cases in several States

R-T-W – Tiers by State: Rajasthan 3, Tamil Nadu 2, West Bengal 4: "Roads To Work": 3, 2, 4.

Period	Phase	Notes
1959-65	Ascendency	some developments
1965-69	Stagnation	no development
1969-77	Decline	heavy centralisation; States bypassed; Emergency 1975-77
1977 on	Revival	Janata party appointed Ashok Mehta Committee
1992	New Magna Carta	73rd and 74th Ams gave constitutional status

A-S-D-R-N – Phases: Ascendency, Stagnation, Decline, Revival, New Magna Carta: "Ants Sing Dull Rhythmic Notes".

CLASS · Community Development Programme (1952)

CDP 1952

→ modelled on the USA Extension Services Programme; with NGO Ford Foundation and GoI
→ comprehensive rural development and reconstruction; people's participation, not bureaucracy alone

🆕 Block = new unit of development

→ revenue units: District, Sub-division, Tehsil
→ development units: Block, Village

COMMITTEES ON PANCHAYATI RAJ PYQ 2015 PYQ Mains 2017

Committee	Key recommendations	Impact
Balwant Rai Mehta (1957)	3 tiers (GP, Panchayat Samiti, Zila Parishad) linked by indirect elections; GP directly elected; Samiti = executive; ZP = advisory and supervisory; District Collector chairs ZP; genuine, progressive transfer of power and resources	foundation; Rajasthan first
Ashok Mehta (1977)	2 tiers: Zila Parishad (primary planning unit) and Mandal Panchayat (15,000–20,000 population); SC/ST seats by population; parties to take part; social audits; State Panchayati Raj Commission; District Planning Committee; constitutional recognition. Appointed Dec 1977, report Aug 1978, 132 recommendations; ZP executive body; compulsory taxation powers; superseded body: election within 6 months; Nyaya Panchayats under qualified judge	not implemented: Janata Govt fell (1979); PR as decentralised planning
G.V.K. Rao (1985)	ZP = principal planning body; DRDA merged with ZP; strengthen block administration. Development bureaucratised, "grass without roots"; District Development Commissioner as ZP chief executive; elections overdue in 11 States	district focal point; influenced 73rd Am.
L.M. Singhvi (1986)	constitutional recognition; new Part for PR; regular elections via State Election Commissions; Nyaya Panchayats; Gram Sabha as foundation. Gram Sabha = "embodiment of direct democracy"; tribunals for election disputes	most went into 73rd Am.
P.K. Thungon (1988)	3 tiers; elections every 5 years; reservation SC, ST, women; SFCs and SECs. District Collector as ZP CEO; max supersession 6 months	basis of 64th Am. Bill (1989)
Gadgil (1988)	constitutional status; 3 tiers all directly elected; fixed 5-year tenure; reservation; constitutional subject list; taxes plus SFC; State Election Commission	core of 73rd Am.

B-A-G-L-T-G — Committees in order: Bapu Asked: Give Locals Their Governance: Balwant Rai Mehta 1957, Ashok Mehta 1977, G.V.K. Rao (GVK) 1985, L.M. Singhvi 1986, Thungon 1988, Gadgil 1988.

Contrast: Mehta 1957 = 3 tiers, Samiti executive block. Ashok Mehta 1977 = 2 tiers, district primary, Mandal Panchayat replaces block.

Source conflict: Ashok Mehta dated 1977 in PR sections, 1978 in urban committees list. Use 1977 (Lakshmikanth: appointed 1977, report 1978; G.V.K. Rao appointed 1985, report 1986; use handout years).

Post-1992 PR committee	Chairman	Appointed	Reported
⚡ Task Force on Devolution of Powers to PRIs	Lalit Mathur	2001	2001
Expert Group on Planning at Grassroots	V. Ramachandran	2005	2006
Task Force: Manual for District Planning	Rajwant Sandhu	2008	2008
Committee on Restructuring of DRDA	V. Ramachandran	2010	2012
Expert Committee on Leveraging Panchayats	Mani Shankar Aiyar	2012	2013

CLASS · Committees: extra points

Committee	Class extras
Balwant Rai Mehta (appointed by NDC, 1957)	local legislators nominated to ZP; Collector chairs ZP; political parties debarred from PR elections; "vertical representation". Impact: some States went 2-tier or 4-tier, set up Nyaya Panchayats, made ZP executive
Ashok Mehta (1977, Janata)	parties allowed to contest for accountability: West Bengal 1978 allowed it, some States do not; separate Ministry of PR in every State
G.V.K. Rao (1985)	= CARD (Committee to Advise on Administrative arrangements for Rural Development); ZP CEO as District Development Commissioner, status above DM; DRDA (IRDP from 1978) merged with ZP; ZP manages all rural development programmes
L.M. Singhvi (1986)	Nyaya Panchayats for a cluster of villages (justice at grassroots); PR tribunals for election and dissolution disputes

Parastatal (DRDA etc.): fully or partly state-owned, autonomous or partly autonomous body set up by statute or as a cooperative society for a specific purpose.

📜 ROAD TO THE 73RD AMENDMENT

Government	Attempt
Rajiv Gandhi (1989)	64th Am. Bill: 3 tiers, regular elections, reservation SC/ST/women, SFC and SEC, protection from dissolution. Lok Sabha passed Aug 1989; Rajya Sabha rejected (feared centralisation)
V.P. Singh (1990)	June 1990 two-day CMs' conference; fresh Bill in Lok Sabha Sept 1990; government fell, Bill lapsed
Narasimha Rao (1991–92)	redrafted without centralising clauses; Bill Sept 1991; passed Dec 1992

📜 73rd Amendment Act, 1992

→ Lok Sabha 22 Dec 1992, Rajya Sabha 23 Dec 1992; ratified by 17 State assemblies

→ assent 20 April 1993; in force 24 April 1993

→ added Part IX (243–243O) and Eleventh Schedule (29 subjects)

→ States had one year to pass laws; most did in 1993 and 1994

→ operationalised Art 40; justiciable; representative to participatory democracy

R-V-N — Leaders: Rajiv (64th, 1989), V.P. Singh (1990 Bill, lapsed), Narasimha Rao (73rd, 1992): "Road Via New-delhi".

🎯 73RD AM.: ARTS 243 TO 243O PYQ 2011 PYQ 2016

Art	Rule
💡 243 Definitions	district; Gram Sabha (persons on electoral rolls of a village in Panchayat area); intermediate level (between village and district, Governor specifies); Panchayat; village (Governor specifies); population (last census)
243A Gram Sabha	base of the pyramid: all registered voters; village assembly
👥 243B Constitution	uniform 3 tiers; State population below 20 lakh may skip intermediate tier
👥 243C Composition	all members directly elected; village chairpersons per State law; intermediate and district chairpersons indirectly elected from among members
Art 243D Reservation	SC/ST proportional; women one-third of seats and chairperson posts (incl. SC/ST women); Backward Classes at State's discretion; exception Arunachal Pradesh (83rd Am., 2000). SC/ST reservation lasts as long as Art 334 (till 2030)
⏳ Art 243E Duration	5 years; election within 6 months of dissolution; reconstituted body serves remainder only (PYQ 2016); if under 6 months left, no fresh election
🎓 Art 243F Disqualification	ineligible for State Legislature or under State laws; minimum age 21; disputes to authority designated by State Legislature
⚡ 243G Powers	devolution for economic development and social justice incl. 29 subjects. Kerala People's Plan: up to 40% of State plan funds
💰 243H Taxes and funds	levy, collect, appropriate taxes; assign State taxes; grants-in-aid; create funds
💰 243I Finance Commission	Governor constitutes SFC every 5 years; report with Action Taken Report before Legislature
243J Audit	States legislate for accounts and audit
🗳️ 243K Elections	State Election Commission, State Election Commissioner appointed by Governor, removed only like an HC judge; conducts Panchayat and Municipality elections
243L UTs	applies with modifications by President
243M Exempt areas	Nagaland, Meghalaya, Mizoram; Scheduled and tribal areas; hill areas of Manipur; Darjeeling district. Parliament passed PESA 1996
243N Continuance	existing laws valid 1 year after 24 April 1993
⚖️ 243O Bar on courts	no court interference in electoral matters; only election petitions

G-C-C-R-D-D-P-T — Arts 243A to H: Gram Councils Compose Reserved, Durable, Disciplined, Powerful Taxers: Gram Sabha, Constitution, Composition, Reservation, Duration, Disqualifications, Powers, Taxes.

F-A-E-U-E-C-B — Arts 243I to O: Finance Commission, Audit, Elections, UTs, Exemptions, Continuance, Bar on courts: "Taxes Fund Accounts; Elections Unite; Exempt areas Continue Barring courts".

H-A-N-D — Art 243M exempt: Hill areas of Manipur, Areas Scheduled and tribal, Nagaland, Meghalaya, Mizoram, Darjeeling. Part IX does not lend a HAND. (Unordered.)

Numbers: 20 lakh, one-third women, 5 years, 6 months, 21 years, 1 year (continuance), 24 April 1993. Art 243(b): defines Gram Sabha.

Typo: handout writes Art 243B as "2438" in the Panchayat definition; use 243B.

🎯 CLASS · Art 243D: worked example, OBC seats; Art 243O

Panchayat of 9 seats	Split
👫 SC seats (by SC population), say 3	1/3 for women = 1 SC woman + 2 SC men
👫 Women overall = 1/3 of 9 = 3	includes SC/ST women: 1 SC woman + 2 other women

Teacher: reservation share changes by level (village, block, district) with each level's own SC population; chairperson posts rotate, rotation after 5 years; Backward Classes at State's discretion, also for chairperson.

OBC in local bodies: Parts IX and IX-A mandate only SC, ST and 1/3 women; OBC quota is the State's option. Vikas Kishanrao Gawali (2021): (1) set up a dedicated commission on backwardness and OBC representation in local bodies; (2) fix OBC seat proportion local body-wise on its recommendation; (3) SC + ST + OBC seats together not above 50%.

Art 243O bars courts in electoral matters (cf. Art 329(a), delimitation; teacher: read "gerrymandering"). Kishore Chandra Rathore (2024): SC held delimitation and population balancing is open to judicial review for arbitrariness and mala fide intent.

📜 CLASS · Significance of the 73rd Amendment (teacher: 6)

73rd CAA: why it matters

→ new respectability to local bodies
→ regular elections: suppressing Panchayats now difficult
→ independent SFC and State Election Commission
→ own functional domain (Sch XI, XII); earlier at State's mercy
→ weaker sections: "silent revolution", rise of the newly enfranchised
→ "biggest democracy" gains substance: millions of new representatives; citizens per representative: PRI 340, Municipalities 560

🎯 GRAM SABHA AND PESA PYQ 2012 PYQ 2013

⚡ Gram Sabha powers

→ approves GP annual plans and budgets
→ reviews development and welfare schemes
→ social audits (e.g. MGNREGA Sec 17)
→ identifies beneficiaries: housing, pensions, subsidies
→ Backing: State laws (MP Gram Swaraj Adhiniyam, Kerala People's Plan Campaign), MGNREGA, PESA. Kerala, Rajasthan: plans and audits

A-I-R-S — Gram Sabha: Approves plans, Identifies beneficiaries, Reviews schemes, Social audits: villagers AIR their views. (Unordered.) "All Residents See Improvements."

📜 PESA Act, 1996 (assent 24 Dec 1996)

→ extends Gram Sabha powers to Scheduled Areas (Fifth Schedule); 10 States have them
→ approve projects, manage minor water bodies, protect tribal culture; approves plans, identifies beneficiaries
→ STs not less than one-half of seats and all chairperson posts; State may nominate unrepresented STs up to one-tenth

→ Gram Sabha owns minor forest produce; consulted before land acquisition

→ PYQ 2013: not an objective: create autonomous regions in tribal areas. FRA 2006: Gram Sabha initiates process (Prelims)

Examples: Himachal Pradesh and Sikkim functional 3-tier; Goa 2-tier; Bihar and Rajasthan expanded women's reservation to 50%.

In the news · July 2026 (verify dates) VB-G RAM G Act, 2025 replaced MGNREGA: 125 days, Viksit GP Plans, six-monthly social audits. Concern: priority areas may crowd out Gram Sabha needs.

In the news · July 2026 (verify dates) Low Gram Sabha participation: NIRD study: 55.5% cite livelihood constraints. PESA 1996 adds tribal powers; Niyamgiri Gram Sabhas rejected mining in 2013.

⚡ CLASS · Gram Sabha: functions, issues, fixes

Also considers Panchayat budget, audit reports, annual administration report (varies by State). Recall power (remove or replace post-holders before term) in Chhattisgarh and M.P.

⚠ Issues (6)

→ unwieldy size (some 10,000 people)

→ villagers lack knowledge of the body

→ prolonged meetings, endless talk

→ fictitious meetings on paper (2 a year due)

→ poor women's participation

→ class, caste, gender divides

🔧 Suggestions (4)

→ involve credible NGOs

→ mandatory provisions to hold meetings

→ information flow from GP to GS (grants, funds)

→ redesign GS-GP link: small Ward Sabha forms the GS, cutting its size

📜 COMPULSORY AND VOLUNTARY PROVISIONS

Mandatory (6)

→ constitutional status (Arts 243-243O)

→ regular elections every 5 years (Art 243E)

→ SC/ST and women reservation (Art 243D(3), 243T)

→ Gram Sabha (Art 243A)

→ State Election Commission (Art 243K)

→ State Finance Commission (Art 243I)

→ also: minimum age 21; voting rights for chairperson and all members; indirect election of intermediate and district chairpersons

Voluntary (5)

→ devolution (243G), largely State discretion

→ GP structure, size, intermediate tier

→ merging villages or new Panchayats

→ extra reservation (backward classes, minorities)

→ assigning State schemes to PRIs

→ also: MPs and MLAs in Panchayats; how village chairperson is elected

C-R-R-G-S-S — Six mandatory: Constitutional status, Regular elections, Reservation, Gram Sabha, SEC, SFC: "Cats Run Round Grassy Slopes Silently".

Even Art 243G is left largely to States: why devolution varies and the 4Fs are not realised. ⭐

📰 **In the news · July 2026 (verify dates)** **Maharashtra Women Farmers Empowerment Act, 2026:** Gram Sabha issues Woman Farmer Certificates regardless of land title; first State law recognising women as farmers.

📰 **In the news · Aug 2026 (verify dates)** **Parliamentary Standing Committee on 73rd Am.:** tiers work in silos; State parallel bodies bypass Panchayats. Art 243B: States up to 20 lakh may skip intermediate tier.

📜 CLASS · Three kinds of Part IX provisions

Teacher: Part IX has 3 types of provisions: mandatory · with flexibility in implementation · optional (voluntary). ⭐

🗺️ ELEVENTH SCHEDULE: 29 SUBJECTS PYQ 2012

Theme (memory aid)	Subjects
Poverty-free, livelihoods (11)	1 poverty alleviation; 2 agriculture incl. extension; 3 animal husbandry, dairying, poultry; 4 fisheries; 5 PDS; 6 technical and vocational training; 7 markets and fairs; 8 khadi, village and cottage industries; 9 minor forest produce; 10 small scale industries incl. food processing; 11 rural housing
Healthy (3)	12 health and sanitation incl. hospitals, PHCs, dispensaries; 13 family welfare; 14 adult and non-formal education
🧒 Child friendly (2)	15 education incl. primary and secondary; 16 women and child development
Water sufficient (2)	17 minor irrigation, water management, watershed; 18 drinking water
Clean and green (4)	19 non-conventional energy; 20 fuel and fodder; 21 social and farm forestry; 22 land improvement, reforms, consolidation, soil conservation
👥 Self-sufficient infrastructure (4)	23 roads, culverts, bridges, ferries, waterways; 24 rural electrification; 25 maintenance of community assets; 26 libraries
Socially secured (2)	27 social welfare incl. handicapped and mentally retarded; 28 weaker sections, SCs and STs
Good governance (1)	29 cultural activities

P-H-C-W-C-S-S-G — Theme order: Poverty-free, Healthy, Child-friendly, Water-sufficient, Clean-green, Self-sufficient infrastructure, Socially secured, Good governance: "Poor Hens Can't Walk Clean, So She Goes". Count: 11+3+2+2+4+4+2+1 = 29.

Handout alert: theme labels are flattened in the PDF; the 29 subjects and order are certain; theme grouping is a memory aid, not tested wording.

💰 FUNDS FOR PRIs

Source	Components
💰 Own Source Revenue (OSR)	house, property, professional, market, water, lighting taxes; user charges; tolls and licences (cattle registration, shops, fairs, haats); non-tax income from ponds, markets, ferries, common lands
🗺️ State transfers	assigned or shared revenues (land revenue, excise, motor vehicle tax, entertainment tax); grants-in-aid; SFC devolution
Central transfers	Central FC grants (earmarked since 10th FC; 15th FC 2021-26: Rs 2.36 lakh crore rural); CSS: MGNREGA, PMAY-G, NRLM, Jal Jeevan Mission, SBM (Gramin); central sector schemes
💰 Borrowings, others	borrowings (State approval, rare); donor, CSR, NGOs; community contributions (labour under MGNREGA, donations)

O-S-C — Three big buckets: Own revenue, State transfers, Central transfers (plus borrowings): "Our State Cares". 2nd ARC: only Gram Panchayats have real tax domain; Central FC grants (Art 280), SFC (Art 243-I); intermediate and district tiers rely on tolls, fees, non-tax.

Source conflict: 15th FC rural grant Rs 2.36 lakh crore in Panchayat sections, Rs 2.4 lakh crore in the 15th FC section (rounded). Period 2021-26.

💰 CLASS · PRI funds: extras

Art 280(3)(bb) Panchayats and 280(3)(c) Municipalities (added by the 1992 Amis): Central Finance Commission recommends measures to augment the State Consolidated Fund so as to supplement local-body resources, based on SFC recommendations. Own-source: Art 276 = professional tax.

Scheme type	Who implements / pays	Examples
Centrally Sponsored (CSS)	implemented by local bodies; Centre may fund only partly	MGNREGA, Jal Jeevan Mission
Central Sector	implemented by Centre only, 100% Centre-funded	capacity building, PM Jan Dhan Yojana

⚠️ CHALLENGES AND WAY FORWARD

PYQ Mains 2020 PYQ Mains 2019

Challenge	What happens
Devolution (4Fs)	3Fs: Functions, Functionaries, Funds, now 4th F Functionality; duties without staff or funds; SFC recommendations unimplemented
Bureaucratic control	sarpanches seek approvals from block or district officials
💰 Tied funding	earmarked scheme funds, one-size-fits-all
💰 Grant dependence	weak fiscal accountability, lower demand for social audits
💰 Reluctance to tax	fear of backlash; own revenue low
Weak Gram Sabha	powers not defined; inactive or ritualistic; marginalised lose forum
Parallel bodies	mission cells, societies, agencies bypass PRIs; elite capture
👥 Infrastructure, digital divide	few secretaries, buildings, IT; limited training; few GPs digital

D-B-T-O-R-W-P-I — Eight challenges: Devolution, Bureaucratic control, Tied funding, Over-dependence on grants, Reluctance to tax, Weak Gram Sabha, Parallel bodies, Infrastructure: "Dogs Bark Till Owners Return With Pet Iguanas".

Best practice	Example
Participatory planning (Gram and Ward Sabha)	Kerala Kudumbashree links PRIs and women SHGs
Transparency, digital (e-GramSwaraj, PFMS)	Rajasthan e-Panchayat
Social audits	Andhra Pradesh: mandatory via Gram Sabhas
Capacity building	MoPR State Resource Centres
👫 Women and marginalised	Panchayat Se Parliament 2.0
Local initiatives	Maharashtra Panchayat-led watershed management
Monitoring, awards	Rajasthan Rajiv Gandhi Panchayat Sashaktikaran Abhiyan

Mains frame: three blocks: Functions-Functionaries-Funds (devolution), control (bureaucracy, tied funds, parallel bodies), capacity (Gram Sabha, digital, training); add 2-3 examples above. ✅

📰 In the news · Aug 2026 (verify dates) PDI versus PAI: PDI (MoPR with IIPA) measures State devolution of power, money, staff; PAI scores Gram Panchayat outcomes on nine SDG themes. Gram Sabha is not a tier.

🗺️ CLASS · State control of PRIs: need and means

Teacher: "Where the spur and rein are required, the State uses a sledge hammer." ⭐

Need (3)

→ PRIs are created, funded, empowered by the State

→ balance regional development; avoid "parish pump" attitude (parochial, own needs only, harm to neighbouring villages)

→ State gives funds, administration, technical help, so it may control

Means (10)

→ key officials are State appointees: Panchayat Secretary, BDO, ZP CEO

→ supersession, premature dissolution (even on Act loopholes)

→ suspends and removes elected members

→ suspends PRI resolutions

→ vertical budget approval

→ binding directions (no option to reject)

→ audit; enquiries into PRI affairs

→ State fixes max and min powers

→ tied grants

👫 CLASS · Evaluation after 1992; Rajbala (2015); women in PRIs

⚖️ No pan-India verdict possible

→ unequal empowerment across States

→ PRIs not fully autonomous: power derived from State

→ many objectives (political consciousness, democratisation, development)

⚠️ Problems

→ lack of politico-bureaucratic will: State leaders see PRIs as a threat to their power

→ triangle of Patriarchy, Feudalism, Casteism: landowners control local bodies; casteism blocks backward-class empowerment

Caste still plays

→ Art 243D not fully implemented

→ creamy layer gains more

→ proxy candidates: "Sarpanch Pati"

→ violent backlash against backward classes

→ 5-year rotation too short to build lasting ties

→ restrictive State qualifications; recall misused

Rajbala (2015), Haryana: SC upheld educational norms for Panchayat candidates (men 10th pass, women 8th pass; SC norms lower, class note partly unreadable); also functional toilet at home, no arrears to cooperative bank or electricity, not accused of offence punishable with 10 years or more. Result: about half of rural women, 68% of SC women, 41% of SC men disqualified. (Right to vote and contest as Constitutional Rights: see Ch 24.)

📜 Impact on women

→ in 5 years about 3 million women contested, 1 million elected
→ more Gram Sabha participation (women-headed GPs)
→ more spending on women welfare
→ better against social evils
→ "Panchayat Pati" declined in a few States

⚠️ Problems of women (8)

→ dual burden: home and Panchayat
→ lack of security
→ low information, literacy
→ Panchayat Pati
→ little public exposure
→ restrictive qualifications, e.g. 2-child norm (Javed, 2003)
→ rarely elected from general seats
→ rotation every 10 years, not 5 (class: T.N., Karnataka)

Developmental impact	Class examples
📚 Agriculture	Karnataka schemes failed (no technical help); Gujarat, T.N. PRIs raised output
📜 Weaker sections	committees from local bodies planned, not effective
📚 Education	primary and secondary given to PRIs in many States, uneven
⚖️ Verdict	political development rose more than development

CLASS · Panchayat Advancement Index (PAI)

PAI: scores about 2.6 lakh Gram Panchayats; "we localise SDGs at GP level"; 9 broad indicators in 3 groups: infrastructure (road, electricity, water), socio-economic (health, education, poverty), environmental sustainability (clean, green village). 💡

Category	Score	Share of GPs (class finding)
A+ Achievers	above 90%	0%
A Front runners	75-90%	0.3%
B Performers	60-75%	35%
C Aspirants	40-60%	61%
D Beginners	below 40%	2.7%

Class vs handout: class says 9 indicators in 3 groups; handout CA says PAI covers nine SDG themes (check; same nine).

🎯 URBAN LOCAL GOVERNMENT: EVOLUTION PYQ Mains 2024

1688 Madras corporation (charter 30 Dec 1687; began 29 Sep 1688)

1726 Bombay, Calcutta

1870 Mayo: local revenue

1882 Ripon: Magna Carta

1907-09 Hobhouse Royal Commission

1919 Dyarchy: transferred

1924 Cantonments Act

1935 Provincial subject

M-R-H-D-C-P – Landmarks: Mayo 1870, Ripon 1882, Hobhouse 1907-09, Dyarchy 1919, Cantonments Act 1924, Provincial subject 1935: "Many Rulers Heard Dull Council Proposals".

Two Magna Cartas: Ripon 1882 = "Magna Carta of Local Self-Government" (colonial, "father of local self-government"); 1992 = New Magna Carta phase. Hobhouse chaired 1907 Royal Commission on Decentralisation, report 1909. Ministries: Housing and Urban Affairs (policy), Defence (Cantonment Boards), Home Affairs (UTs). Dyarchy: GoI Act 1919 local self-government transferred subject under Indian ministers.

🏛️ CLASS · Urban LG: background

Teacher: urban areas give about 65% of India's GDP, yet urban space was neglected by State and Centre. National Commission on Urbanisation (1985, Charles Correa) was the first; its recommendations went into Part IX-A; no 2nd Commission yet. Grass-root planning: DPC and MPC.

🎯 74TH AM.: PART IX-A PYQ 2016 PYQ 2011

Road to 74th Am.

→ 1989 Rajiv Gandhi: 65th Am. Bill (Nagarpalika); introduced Aug 1989, passed LS, defeated in RS Oct 1989, lapsed
→ 1990 V.P. Singh: revised Bill, lapsed with LS dissolution
→ 1991 Narasimha Rao: Municipalities Bill
→ 74th Am. Act 1992: in force 1 June 1993; Part IX-A, Arts 243P-243ZG; Twelfth Schedule 18 items (Art 243W); municipalities third tier, justiciable

Art	Rule
💡 243P Definitions	Metropolitan area: population 10 lakh or more, one or more districts, two or more Municipalities or Panchayats or contiguous areas, Governor specifies; Committee under 243S; Municipality under 243Q
👥 243Q Constitution	(a) Nagar Panchayat: transitional area; (b) Municipal Council: smaller urban area; (c) Municipal Corporation: larger urban area
👥 243R Composition	directly elected from wards; State decides chairperson; may include non-voting experts, MPs and MLAs of area, chairpersons of committees other than wards committees
🗳️ 243S Wards Committees	population above 3 lakh must constitute; States may create others
243T Reservation	SC/ST proportional; one-third women incl. SC/ST women; backward classes at State option; SC/ST time-bound per Art 334
⏳ 243U Duration	5 years; election before expiry or within 6 months of dissolution; remaining term; hearing before dissolution; amending laws cannot dissolve prematurely
🎓 243V Disqualification	State laws or Legislature election laws; disputes to State authority
⚡ 243W Powers	self-government; economic development and social justice incl. 18 Twelfth Schedule items
💰 243X Taxes and funds	levy taxes, duties, tolls, fees; assign State taxes; grants-in-aid from State Consolidated Fund; funds
💰 243Y Finance Commission	SFC every 5 years; Central FC may suggest measures to augment municipal resources
243Z Audit	States legislate accounts and audit
🗳️ 243ZA Elections	State Election Commission (Art 243K) controls rolls and elections
243ZB UTs	modifications by President; 2001: 243ZD and 243ZE do not apply to NCT of Delhi
243ZC Exempt areas	Scheduled and tribal areas, Darjeeling Gorkha Hill Council; Parliament may extend
Art 243ZD DPC	consolidates Panchayat and Municipality plans; four-fifths elected, in proportion to rural-urban population
243ZE MPC	drafts metropolitan plans; two-thirds elected; spatial planning, resource sharing, infrastructure, environment

T-S-L — Three municipalities: Transitional = Nagar Panchayat, Smaller = Council, Larger = Corporation: "Tea, Snow, Lake": small to large.

Numbers: DPC 4/5 elected; MPC 2/3 elected; ward committees above 3 lakh; metropolitan area 10 lakh; no intermediate tier below 20 lakh (rural). Area type depends on population, density, revenue, non-agricultural jobs, economic importance; industrial township need not have municipality.

Source conflict: Art 243V worded "persons aged 21–25 eligible" in the PDF; Panchayat rule (243F) minimum age 21. Quote **21 years** for Prelims.

CLASS · Part IX-A: extra points

Art 243Q: caution before labelling Nagar Panchayat

→ urban **administration cost** is high
→ urban **tax rates** are high
→ ongoing rural programmes may stop
→ **Gram Sabha stops** (shift from Part IX to IX-A)

Criteria (Governor notifies) → population, density, non-agricultural activity, economy

→ **no hierarchy** among municipalities (unlike 3-tier PRIs): each type suits a different area

Art 243Q proviso: a **private industrial township** gets no LSG, it manages itself. Example: **Tata Nagar steel township** (Jamshedpur). Not in the original; 500+ such townships now. **Art 243R:** non-voting persons with special knowledge are **Aldermen**.

Part IX-A	= Part IX	Subject
243T	243D	reservation
243U	243E	duration
243V	243F	disqualification
243W	243G	powers
243X	243H	taxes
243Y	243I	Finance Commission (same FC)
243Z	243J	audit
243ZA	243K	elections (same SEC)
243ZB	243L	application to UTs

Difference in 243T: PRIs give women 1/3 of chairperson posts and SC/ST chairpersons by State population share; in ULBs chairperson reservation follows **State law** (bound by Art 334). **243W(b):** powers of committees (ward committees) are decided by the State.

Art 243ZC: Part IX reached Scheduled Areas by **PESA 1996**; Part IX-A has **not**: the **2001 MESA** bill (Municipalities Extension to Scheduled Areas) was not passed.

243ZD/ZE: DPC chairperson is chosen by its members (class); chairperson forwards the district development plan to the State Government. Class remark: Part IX and IX-A reflect an "**artificial dichotomy**" between rural and urban development.

🗺️ TWELFTH SCHEDULE AND TYPES OF ULBs

Handout alert: only 16 items are named (urban planning, land regulation, economic and social development, roads, water supply, sanitation, fire services, urban forestry, slum improvement, amenities, culture, burials, animal welfare, vital statistics, public amenities, slaughterhouses and tanneries). Remember the count 18; do not force the list to 18.

Type	Description
Municipal Corporation	large cities; State laws (Parliament Acts in UTs); council with elected councillors plus nominated experts; Mayor largely ceremonial; Standing Committees; Municipal Commissioner (usually IAS) chief executive
Municipality	smaller towns; Chairperson holds real executive power; CEO manages administration
📦 Notified Area Committee	fast-developing area; entirely nominated; powers like municipality
📦 Town Area Committee (TAC)	transitional; limited services (roads, drainage, lighting, conservancy); elected, nominated or mixed
Cantonment Board	Defence Ministry; Cantonments Act, 2006 (replaced 1924 Act); elected plus nominated; Station Commander ex-officio President; 62 boards
Township	enterprise employees' colony; Town Administrator; no elected members
🧑‍🤝‍🧑 Port Trust	Parliament Acts; elected plus nominated; Chairman an official
💡 Special Purpose Agency	State law or executive order; single function (planning, housing, water, sewerage, electricity, transport, pollution); independent of territorial ULBs

CAMP-MATS — Eight types: Cantonment Board, Area Committee Notified, Municipal Corporation, Port Trust · Municipality, Area Committee Town, Township, Special Purpose Agency. Pitch the CAMP, lay the MATS. (Order rearranged; unordered.)

Cantonment category	Civil population
I	above 50,000
II	10,000 to 50,000
III	2,500 to 10,000
IV	below 2,500

Who is elected: fully nominated = Notified Area Committee; no elected members = Township; elected plus nominated = Cantonment Board, Port Trust, Corporation council. ⭐
Mayor: one-year renewable term in most States.

Bombay pattern
→ Mayor ceremonial
→ Municipal Commissioner (bureaucrat) executive power
→ appointment and transfer by State

Howrah/ Calcutta pattern
→ Mayor holds executive power, Commissioner under him
→ more democratic accountability; recommended by 2nd ARC

CLASS · Bombay vs Howrah/Calcutta pattern

Point	Bombay pattern	Howrah/Calcutta pattern
Followed by	most States; Municipal Corporation	Mayor is real executive; Commissioner under Mayor
Basis	executive-deliberative dichotomy	ARC-2 recommended
⚡ Roles	bureaucrats/IAS implement plans and policies; Mayor = presiding officer, ceremonial, discusses and passes local needs	Mayor decides
Accountability	"down": Commissioner answers to the State, citizens cannot remove him	"up" (class label)

COMMITTEES ON URBAN GOVERNANCE PYQ Mains 2024

Body	Contribution
Ripon (1882)	Magna Carta; participation, Indian representation, financial decentralisation
Local Finance Enquiry Committee (1949–51), P.K. Wattal	more local revenue via property tax and grants-in-aid
Taxation Enquiry Commission (1953–54), John Matthai	expand municipal tax base; States share taxes
Balwant Rai Mehta (1957)	mainly PR; stressed urban bodies for planning
Ashok Mehta (handout 1978)	integrate urban and rural planning at district level
National Commission on Urbanisation (1985–88), C.M. Correa	urbanisation as growth driver; town categories; National Urbanisation Policy; metropolitan planning
G.V.K. Rao (1985); L.M. Singhvi (1986)	decentralised planning; constitutional recognition incl. municipalities
2nd ARC (2007)	"Local Governance": capacity, financial autonomy, e-governance, effective MPCs
HPEC on Urban Infrastructure (2011), Isher Judge Ahluwalia	Rs 39 lakh crore over 20 years; user charges, municipal bonds, PPPs
15th Finance Commission	Rs 1.21 lakh crore for ULBs tied to property tax and service reforms; performance grants (solid waste, air quality)

L-T-N-C-H — Urban inquiry order: Local Finance Enquiry 1951, Taxation Enquiry 1953–54, National Commission on Urbanisation 1985, Constitutional amendment 1992, HPEC 2011: "Long Tasks Need Careful Help".

Other urban committee	Chairman
Training of Municipal Employees (1963–65)	Nur-Ud-din Ahmed
Rural-Urban Relationship (1963–66)	A.P. Jain
Augmentation of Financial Resources of ULBs (1963)	Rafiq Zakaria
Service Conditions of Municipal Employees (1965–68)	B.S. Murthy
Budgetary Reform in Municipal Administration (1974)	Girijapati Mukharji
Study Group on Constitution, Powers of ULBs (1982)	K.N. Sahaya

Best-practice ULB	Known for
Surat	waste management, sanitation, Swachh Survekshan
Indore	solid waste; topped Swachh Survekshan
Pune	first city to issue municipal bonds
Ahmedabad	planning, GIS property tax, e-governance
Chandigarh	service delivery, citizen forums
Bhubaneswar	smart city, GIS, sustainable mobility
Kochi	decentralised governance; PPPs in water, waste

Source conflict: 15th FC urban figure appears as Rs 1.21 lakh crore (2020–25 in one place), Rs 1.2 lakh+ crore (2021–26), Rs 1.2 lakh crore. Same grant: use 2021–26, about Rs 1.2 lakh crore.

FUNDS FOR ULBs

Source	Details
Own	property tax (major); profession, entertainment, advertisement, vehicle taxes; user charges, licence, rent, market fees
State	SFC transfers; assigned revenues (motor vehicle tax, entertainment duty, surcharge on stamp duty); grants-in-aid
Central	15th FC Rs 1.2 lakh+ crore 2021–26; CSS: Smart Cities, AMRUT, SBM, PMAY-Urban
Market	borrowings, municipal bonds (Pune, Ahmedabad, Indore); institutional loans (HUDCO, banks, World Bank, ADB); PPP
Development charges	impact fee or betterment levy; fees for approvals and land-use conversion
Innovative	land monetisation; TDR (Transfer of Development Rights); user-fee projects (waste-to-energy, parking, BRT)

Source conflict: handout cites urban SFC under "Art 243-I" (the Panchayat article); urban SFC is Art 243Y. Use 243Y.

RBI 2024–25 report	Finding
💰 Fiscal capacity	ULBs generate only 0.6% of GDP
Transfers	over two-thirds of income is Central and State transfers
Bonds	municipal bonds only 0.09% of corporate bond issuance
Management	most lack standard accounting; many cash-based

💰 CLASS · ULB finance: property tax immunity

Property tax is poorly collected and cannot be levied on government buildings: Art 285 (Union property exempt from State and local tax), Art 289 (State property exempt from Union tax); allowed only by law (Parliament). Called immunity of instrumentalities. 💡

🏛️ PERSONNEL, TRAINING, CENTRAL COUNCIL

System	Meaning	States
Separate	each ULB own staff, not transferable; local autonomy but limited mobility; most common	most States
Unified	State-wide municipal cadre, transferable across ULBs; standard rules; dilutes local control	AP, Tamil Nadu, UP, Rajasthan, MP
Integrated	merged with State civil service; transferable across ULBs and departments; municipal autonomy overshadowed	Odisha, Bihar, Karnataka, Punjab, Haryana

S-U-I – Separate = own staff, Unified = State-wide ULB cadre, Integrated = merged into State service. Control order: ULB, State municipal cadre, State civil service.

1927
AIILSG: All-India Institute of Local Self-Government, Mumbai

1967
CUES, New Delhi (Nur-Ud-Din Ahmed Cttee)

1968
Regional Centres: Kolkata, Lucknow, Hyderabad, Mumbai

1976
NIUA

1985
HSMI: Human Settlement Management Institute

A-C-R-N-H – Training order: AIILSG 1927, CUES 1967, Regional centres 1968, NIUA 1976, HSMI 1985: "All Cities Require New Hands".

🏛️ Central Council of Local Government

→ set up 1954 under Art 263 by Presidential Order
→ first "Central Council of Local Self-Government"; "self-government" dropped in 1980s
→ urban and rural till 1958; since then urban only; advisory
→ Members: Union Minister for Urban Development (Chairman) and State ministers for local government

⚡ Functions

→ formulate and recommend policies
→ propose legislation for ULBs
→ Centre-State cooperation
→ common programmes of action
→ advise on Central assistance
→ review performance of ULBs with Central support

⚠️ CLASS · Problems of urban administration (14)

⚠️ Problems 1–7

→ haphazard urbanisation: migration, overcrowding, slums, housing and water shortage

→ health: few clinical services, community health ignored

→ urban poor worse off than rural poor

→ traffic: pedestrianisation, congestion levy, public transport only, costly parking

→ pollution

→ power and water shortage

→ crime, especially against women

⚠️ Problems 8–14

→ massive corruption

→ poor devolution of the 3 Fs (funds, functions, functionaries)

→ weak capacity building

→ no urban way of life

→ lack of quality leadership

→ focus shifted to rural areas

→ **institutional jungle:** 11 bodies at municipal level, e.g. Delhi: MCD + DDA + Centre + Delhi Govt

💰 15TH FINANCE COMMISSION AND LOCAL BODIES

Component (2021–26)	Amount
Total	Rs 4.36 lakh crore (highest ever); nearly 4.2% of divisible pool
Rural local bodies	Rs 2.4 lakh crore
Urban local bodies	Rs 1.2 lakh crore
💰 Health grants via local bodies	Rs 70,051 crore (first dedicated): Sub-Centres and PHCs to Health and Wellness Centres, diagnostics, block public health units, urban UPHCs

Source conflict: 2.4 + 1.2 + 0.70051 = about Rs 4.30 lakh crore, not 4.36. Quote headline 4.36 and components as given.

Untied 40%

→ local priorities, Gram Sabha resolutions: streetlights, small roads, culverts

→ repair of GP buildings, drainage, sanitation

→ local innovations (rainwater pits, markets, CCTV)

→ community facilities, sports grounds; minor emergencies

Tied 60%

→ **Drinking water** (Jal Jeevan Mission): taps, recharge, rainwater harvesting, quality testing, maintenance

→ **Sanitation** (ODF+, ODF++): solid waste, greywater, faecal sludge, drainage, sanitation workers

Rule	Detail
Distribution (non-health)	90% population (2011 Census), 10% area
GP / Block / District share	70–85% / 10–25% / 5–15%
👫 1st instalment	automatic if entry conditions met
2nd instalment	at least 50% of previous used; Grant Transfer Certificates; online accounting via PFMS
Penalty	State not constituting and acting on SFCs: no grants to any local body after March 2024
Planning	Village Action Plan (VAP) (5-year: water sources, greywater, O&M) feeds GPDP integrating JJM, SBM-G, MGNREGS, DMF

A-P-S — Entry conditions: Accounts online (eGramSwaraj, AuditOnline), Property tax reforms (urban), SFC constituted, report tabled, acted on: "All Panchayats Submit".

Why transformative: largest fund flow; WASH emphasis (60%); digital accounts (eGramSwaraj, PFMS, AuditOnline); autonomy with accountability; health decentralised; SFCs enforced, strengthening fiscal federalism. ✅

In the news · Sep 2026 (verify dates) **Defining Urban Areas:** MoHUA told a parliamentary panel that census-town criteria do not capture the scale of urbanisation.

1957
Mehta

1959
Nagaur, 2 Oct

1977
Ashok Mehta

1985-88
Rao, Singhvi, Thungon, Gadgil

1989
64th, 65th fail in RS

1992
Dec: 73rd, 74th pass

1993
24 Apr, 1 Jun in force

1996
PESA

2000
83rd Am.

2021-26
15th FC

Recall drill: cover and answer

73rd vs 74th: Part, Schedule, count, in force?	Part IX, 11th Sch, 29, 24 Apr 1993 vs Part IX-A, 12th Sch, 18, 1 Jun 1993	Which Article/entry before 1992? (Prelims 2017)	Art 40 (DPSP) and State List entry 5; democratic decentralisation
First Panchayati Raj State and date?	Rajasthan, Nagaur, 2 Oct 1959; then Andhra Pradesh	Mehta 1957 vs Ashok Mehta 1977?	3 tiers, Samiti executive vs 2 tiers, ZP primary, Mandal Panchayat 15,000-20,000
Panchayat: age, term, re-election, skip tier? (Prelims 2016)	21 years; 5 years; within 6 months, remainder only; State below 20 lakh may skip intermediate tier	Art 243M exempt areas?	Nagaland, Meghalaya, Mizoram; Scheduled and tribal areas; Manipur hills; Darjeeling
DPC, MPC, ward committee, metropolitan area numbers?	DPC 4/5 elected (243ZD); MPC 2/3 (243ZE); wards committees above 3 lakh (243S); metropolitan 10 lakh (243P)	Six mandatory provisions?	Constitutional status, 5-year elections, SC/ST and women reservation, Gram Sabha, SEC, SFC
15th FC local body grants?	Rs 4.36 lakh crore 2021-26; 90:10 population:area; 40:60 untied:tied; health Rs 70,051 crore	Urban SFC Article? Central Council basis?	Art 243Y; Central Council under Art 263 (1954), urban only since 1958
Vikas Kishanrao Gawali (2021): OBC local-body conditions?	dedicated commission; seats fixed local body-wise; SC+ST+OBC within 50%	Rajbala (2015) result?	SC upheld education norms; about half of rural women, 68% SC women, 41% SC men disqualified
PAI score bands and where most GPs fall?	A+ above 90, A 75-90, B 60-75, C 40-60, D below 40; C 61%, B 35%	Why careful before labelling an area Nagar Panchayat (243Q)?	higher admin cost and tax, rural programmes stop, Gram Sabha ceases

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ST = Scheduled Tribes — Tribal groups listed under Art 342

OBC = Other Backward Classes — Socially and educationally backward groups eligible for reservation (Art 15(4), 16(4))

PESA = Panchayats (Extension to Scheduled Areas) Act, 1996 — Gives Gram Sabhas special powers in Fifth Schedule areas

MGNREGA = Mahatma Gandhi National Rural Employment Guarantee Act, 2005 — Legal guarantee of 100 days of wage work to rural households

ARC = Administrative Reforms Commission — Commission recommending reforms in public administration (1st in 1966, 2nd in 2005)

DPSP = Directive Principles of State Policy — Part IV (Arts 36–51): goals the State should pursue; not enforceable in court

LG = Lieutenant Governor — Administrator of certain Union Territories

AP = Andhra Pradesh — State in south India

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

SDG = Sustainable Development Goals — 17 UN goals to be met by 2030

GDP = Gross Domestic Product — Total value of goods and services produced within a country in a year

RS = Rajya Sabha — Council of States; the upper House of Parliament

GIS = Geographic Information System — Mapping technology for spatial data

NGO = Non-Governmental Organisation — Private voluntary body working for social causes

DM = District Magistrate (or Disaster Management, by context) — Head of district administration; in GS3, the DM Act, 2005 sets up disaster bodies

JUDICIARY

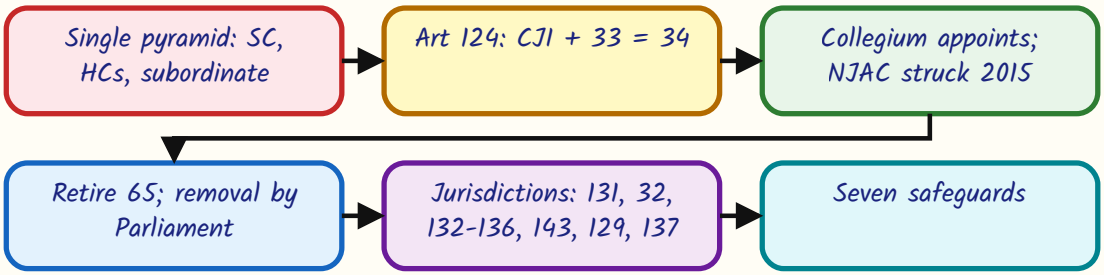
PYQ No PYQs quoted in the source

The Supreme Court from top to bottom: appointment and removal, every jurisdiction article by article, doctrines it uses, independence, and comparison with UK and US courts.

Current affairs · verify dates

Article 142 (quick update)
The Supreme Court invoked Article 142 to quash FIRs against students in the NEET-UG 2026 protests. Relief did not cover persons with serious criminal antecedents.

At a glance: the route



Single, unified judicial system (unlike separate state and federal courts): Supreme Court apex, guardian of the Constitution, final interpreter; High Courts; district and subordinate courts; higher courts supervise lower. SC established 28 January 1950. Succeeded Federal Court of India (GoI Act 1935); replaced Privy Council. Arts 124–147, Part V.

COMPOSITION (ART 124)

Strength

→ CJI + as many judges as Parliament decides by law

→ present: 1 + 33 = 34; last raised by SC (Number of Judges) Amendment Act, 2019

→ Art 124(1) originally: not more than 7 other judges until Parliament decides

Provision	Excl. CJI	Incl. CJI
Art 124 (original)	7	8
Act 1956	10	11
Amendment Act 1960	13	14
Amendment Act 1977	17	18
Amendment Act 1986	25	26

Amendment Act 2008	30	31
Amendment Act 2019	33	34

In the news · Aug 2026 (verify dates) **SC strength raised to 37:** SC (Number of Judges) Amendment Act, 2026 raises strength from 33 to 37 excluding CJI. Art 124(1) lets Parliament fix number; Art 124(3) distinguished jurist route never used.

CLASS · SC strength: 18 May ordinance

Class · 18 May ordinance Strength raised 34 to 38 (CJI + 37 puisne; puisne = junior judge) first by ordinance of 18 May; the 2026 Act (handout CA above) states the same rise as 33 to 37 excluding CJI.

APPOINTMENT AND THE COLLEGIUM

Art 124(2): President appoints every judge after consultation with SC and HC judges as he deems necessary; consulting the CJI is obligatory. **Early practice (1950 to early 1980s):** President on advice of Union Council of Ministers after consulting CJI; CJI's opinion not binding; executive major role.

Stage	Case	Held
First Judges (1982)	S.P. Gupta v. Union of India	"consultation" is not "concurrence"; President not bound by CJI; executive primacy
Second Judges (1993)	Supreme Court Advocates-on-Record Association v. Union of India (constitution bench)	consultation = concurrence; judiciary primacy; CJI with two senior-most judges: basis of collegium
Third Judges (1998)	President's opinion under Art 143	collegium of 5: CJI + four senior-most; if even two judges disagree, CJI should not send recommendation
Fourth (2015)	NJAC verdict	called the Fourth Judges Case

G-A-C — Gupta 1982 = executive, Advocates-on-Record 1993 = judiciary, Collegium of five 1998 (Art 143): "Government Asks, Court decides." Years **82-93-98**: collegium grows from 3 to 5.

Lakshmikanth differs: dates S.P. Gupta as **1981** (handout 1982). Use handout.

NJAC

→ **99th Am. Act, 2014**: National Judicial Appointments Commission, judiciary and executive members

→ **2015: SC struck it down**: violated independence of judiciary, part of **basic structure**; collegium continues

Process today

→ **Collegium** (CJI + 4 senior-most) recommends for appointment or transfer

→ **Union Law Ministry** receives

→ **PM** advised by Ministry advises President

→ **President** appoints SC and HC judges

In the news · July 2026 (verify dates) **Appeals to two-judge HC bench:** under the 2026 exams amendment appeals lie to a two-judge HC bench within 30 days, decided within 3 months; P. Ramachandra Rao (2002) doubts rigid trial limits.

In the news · Aug 2026 (verify dates) **Tribunals Reforms Act 2026:** repeals 2021 Act after Madras Bar Association ruling; creates National Tribunals Commission (chair, 2 judicial, 2 technical members); members serve 5 years or until 67.

CLASS · Collegium, NJAC, MoP, critique

Appointment	Collegium
⚖️ SC judges	5 = CJI + 4 senior-most (Second case 1993: 3 = CJI + 2)
⚖️ HC judges	3 = CJI + 2 senior-most
Transfer	same 5-member collegium consults the 2 HC Chief Justices (judge's old and new HC)

Teacher's order: S.P. Gupta 1982 = First; Advocates-on-Record 1993 = Second (CJI primacy); the Third case explained how the procedure works. First case: "consultation" = effective consultation, not CJI concurrence; Government decides who becomes judge. ⭐

Class vs handout: class notes say any 2 judges can veto and the CJI alone can veto; handout has only "if two judges disagree, CJI should not send the recommendation" (check).

NJAC (99th Am. 2014)

→ Arts 124A, 124B, 124C + NJAC Act

👥 6 members
- → CJI
- → 2 SC judges
- → Law Minister
- → 2 eminent persons

→ any 2 members can veto

→ recommends the senior-most SC judge as CJI if fit

4th Judges Case (2015): SC AORA v. UOI rejected the NJAC set-up. Memorandum of Procedure (MoP) (class notes: first issued 1947, verify): CJI appointed by seniority. 💡

⚖️ MoP: SC judges

Collegium recommends → Law Minister (+ IB report) → PM → President approves

⚖️ MoP: HC judges (arrows partly unclear in class notes)

HC CJ + 3-member collegium: list of probables → Governor and CM → Law Minister (IB report)

SC 3-member collegium → PM and President

Reforms needed in collegium: transparency, appointment criteria, a secretariat, time-bound process. ⭐

Mains frame: critique of the collegium (teacher flagged). Intro: judges appoint judges since 1993. Points: (1) delay: 2023 HC sanctioned strength 1114, vacant 324 (2) opacity: procedure, criteria, reasons for rejection not public (3) "consultation" in Art 124 read to give judiciary a monopoly (4) CJI opinion was already convention till 1993: of 348 recommendations only 7 rejected, so no collegium needed (5) executive-era appointments were of the best; collegium brought "corrupt judges" (J.S. Verma noted, as the author of the 1993 judgment he is said to have called it a failure: class note ambiguous, verify) (6) federal judiciary eroded. Close: fix with MoP reform, secretariat, timelines. ✅

🗳️ APPOINTMENT OF THE CJI

Period	Practice
1950–1973	senior-most judge conventionally CJI (unwritten seniority rule)
1973	convention ignored: A.N. Ray (fourth in seniority) superseded Shelat, Hegde, Grover (resigned after Kesavananda Bharati)
1977	M.H. Beg superseded H.R. Khanna (resigned after dissent in ADM Jabalpur 1976)
Since 1977	senior-most strictly appointed; established custom (Second Judges Case: senior-most alone)

Constitution does not require seniority. Formally President appoints on recommendation of outgoing CJI after consultation within judiciary. Both supersessions criticised as executive interference. ⭐

R-B — Supersession: Ray 1973 (over three), Beg 1977 (over Khanna): "Rules Broken twice".

Lakshmikanth differs: prints the judge who superseded Khanna as M.U. Beg; handout says M.H. Beg. Use handout.

🎓 QUALIFICATIONS, OATH, SALARY

Art 124(3): citizen plus any one	Requirement
⚖️ Judge	HC judge (or two or more in succession) at least 5 years
Advocate	HC advocate (or more) at least 10 years
🧑‍⚖️ Jurist	distinguished jurist in President's opinion

5-10-J — Qualifications: Judge 5 years, Advocate 10 years, Jurist by President's opinion: "5, 10, Jurist". No minimum age is fixed.

💰 Oath (Art 124(6)) and salary (Art 125)

→ oath before entering office, by President or person he authorises: faith and allegiance, uphold sovereignty and integrity, duties without fear or favour, affection or ill-will, uphold Constitution and laws

→ salary by Parliament law (until then Second Schedule); allowances, leave, pension too

→ cannot be reduced to disadvantage after appointment (see Financial Emergency exception below); retired judges: 50% of last salary as pension

Post (SC Judges Act, 1958)	Salary per month (approx.)
CJI	2.8 lakh
⚖️ SC puisne judge	2.5 lakh
HC Chief Justice	2.5 lakh
⚖️ HC puisne judge	2.25 lakh

Handout alert: Art 125 protection stated without exception; Independence section says conditions cannot change to disadvantage "except during a Financial Emergency". Write the safeguard and add the exception.

⏳ TENURE AND REMOVAL

⏳ Tenure (Art 124(2)–(4))

→ office until age 65

→ resign in writing to President, or vacate on appointment to another constitutional post (e.g. President, Governor)

→ age disputes: authority and manner set by Parliament

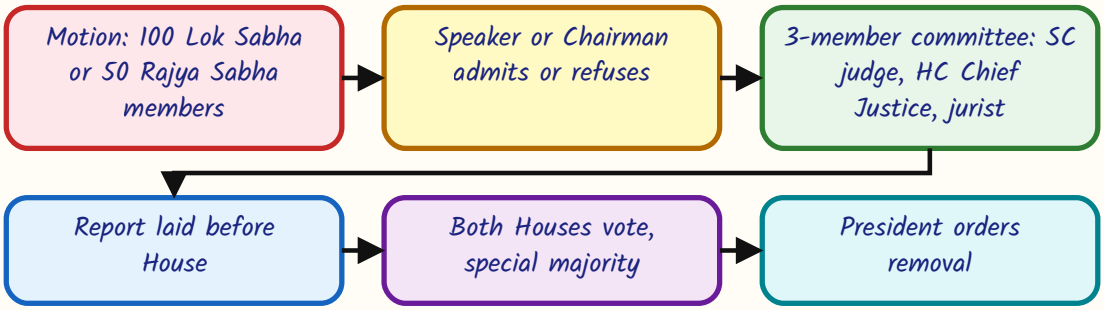
🚪 Removal (Art 124(4))

→ only by President on motion of both Houses

→ only 2 grounds: proved misbehaviour, incapacity

→ special majority in each House: majority of total membership and two-thirds present and voting

⚖️ Judges (Inquiry) Act, 1968



H-F-T – Impeachment numbers: Hundred in LS, Fifty in RS, Three-member committee: "How Few They need!" (100, 50, 3).

No SC judge ever removed. V. Ramaswami (1991–93): committee found him guilty, but motion failed in Lok Sabha as Congress abstained. Constitution does not use the word "impeachment" for judges (only for the President).

🚪 CLASS · Removal in practice

No judge removed so far; usually the judge resigns before the proceeding starts (some jurists want the inquiry completed even after resignation). Presiding officer may set up the committee; the third member may be an eminent law professor, none appointed yet.

⏳ ACTING, AD HOC, RETIRED JUDGES (ARTS 126–128)

Art	Rule
Art 126 Acting CJI	President appoints one of the other judges when CJI office vacant or CJI unable to act; ends when CJI resumes
⚖️ 127 Ad hoc judge	HC judge where no quorum; CJI with President's consent, after consulting HC Chief Justice; all powers of SC judge; must be SC-qualified, priority to SC sittings
⏳ Art 128 Retired judge	retired SC or HC judge; CJI with prior consent of President and of the judge; allowances by President; not otherwise deemed a judge

A-A-R – Acting CJI, Ad hoc judge, Retired judge: "Act, Ad-hoc, Retired" in article order.

📰 **In the news · Aug 2026 (verify dates)** Tribunal system report: Standing Committee reviewed ITAT, RCT, TDSAT, NGT, NCLT: vacancies, 95% contractual staff in NCLT, weak IT. Tribunals rest on Part XIV-A (Arts 323A, 323B).

📝 SEAT, PROCEDURE, BENCHES (ARTS 129–130, 145)

Topic	Rule
Seat (Art 130)	New Delhi; CJI with President's approval may sit elsewhere
📝 Procedure (Art 145)	own rules with President's approval
Open justice, language	open court unless directed; proceedings and records in English
⚖️ Court of Record (Art 129)	decisions binding precedent on lower courts
⚖️ Single Judge	rare; procedural matters
Division Bench	2 or 3 judges; regular cases, appeals, writs
👥 Constitution Bench	5 or more; substantial constitutional question (Art 145(3)); Art 143 references also need at least 5

Benches 1 – 2/3 – 5+. CJI determines the roster and allocates benches. Judgments by majority; judges may dissent.

CLASS · Art 130 regional benches; Arts 145, 146

Regional benches debate (Art 130)

→ SC sits at Delhi or places the CJI picks with President's approval
→ farther from Delhi, fewer cases filed (distance cuts access)
→ For: physical proximity, access to justice
→ Against (SC not convinced): hurts integrity of the court; consistency of decisions

🔧 Suggestion

→ separate Constitutional Court (no regular case allocation)
→ 4 Cassation benches: Mumbai, Delhi, Chennai, Kolkata

Art 145 and 146	Class points
AOR	only an Advocate-on-Record can file in the SC (rule of 1966); anyone may argue; AOR needs an exam
Rules cover	practitioners, appeals, FRs, Art 134 appeals, review, 139A, costs and fees, bail and stay, frivolous appeals (summary decision), Art 317(1) inquiries (PSC member removal)
⚖️ Open court	judgments and Art 143 opinions strictly in open court
Art 146 staff	CJI appoints officers and servants (President may mandate an outside candidate; UPSC consulted); service rules by CJI subject to law; pay, leave, pension rules need President's approval; all costs charged on Consolidated Fund, fees go to CFI

🏛️ ORIGINAL JURISDICTION: ART 131

Jurisdiction in Arts 131 to 139A. Original = heard directly, no prior HC. 💡

🏛️ Exclusive original (Art 131)

→ 1 Government of India vs one or more States
→ 2 GoI and one or more States vs one or more other States
→ 3 two or more States, only if dispute involves a question of law or fact on which existence or extent of a legal right depends
→ handout examples: Cauvery (Tamil Nadu vs Karnataka), State boundaries
→ political questions out; private citizen cannot sue; first suit: West Bengal vs Centre (1961), Coal Bearing Areas Act 1957, dismissed

Excluded matter	Detail
👥 Pre-Constitution agreements	treaty, covenant, engagement, sanad before commencement
🧑‍🤝‍🧑 Treaties excluding SC	expressly say SC has no jurisdiction
🗺️ Inter-State water disputes	Inter-State Water Disputes Act, 1956
💰 Finance Commission matters	Art 280 adjustments
Certain expenses, pensions	e.g. sharing defence or administrative expenses
Ordinary commercial disputes	between Centre and a State
Recovery of damages	State claims against Centre

📌 Source conflict: Cauvery is given as an Art 131 example, yet inter-State water disputes are excluded (Act of 1956). Use the exclusion list for the rule, Cauvery only as the handout's illustration.

⚡ WRIT JURISDICTION: ART 32

Art 32: every citizen can approach SC directly to enforce Fundamental Rights; Dr B.R. Ambedkar: "heart and soul of the Constitution"; directions, orders or writs, including five. 💡

Writ	Meaning	Use
Habeas Corpus	"to have the body"	produce illegally detained person; weapon for personal liberty
Mandamus	"we command"	directs public authority to do duty; not against President, Governors, private individuals
Prohibition	(none given)	higher court tells lower court to stop beyond jurisdiction or against natural justice; preventive, before judgment
Certiorari	"to be certified"	quashes order of lower court acting without jurisdiction or due process; preventive and corrective
Quo Warranto	"by what authority"	inquires into legality of claim to public office; removes unlawful holder

H-M-P-C-Q — Writs: Habeas, Mandamus, Prohibition, Certiorari, Quo warranto: "Hot Masala Puffs Cost Quite a lot".

Basis	SC (Art 32)	HC (Art 226)
💡 Nature	itself a Fundamental Right	constitutional power, not FR
Scope	FRs only	FRs and other legal rights
🗺️ Territory	throughout India	own territory; may reach outside if cause of action partly arises
Discretion	cannot refuse genuine petition	may refuse if alternative remedy
⚡ Jurisdiction	original, not exclusive; shared with HCs	original, concurrent with SC for FRs; wider writ power
📬 Writs	all five	same five
💡 Significance	"heart and soul"	"first line of defence"

⚡ APPELLATE JURISDICTION: ARTS 132-136

Art	Matter	Rule
Art 132	Constitutional	HC judgment, decree, final order with substantial question on interpreting Constitution; HC certifies
133	Civil	HC certifies substantial question of general importance; Rs 20,000 limit removed by 30th Am. Act, 1972
134	Criminal	see below
134A	Certificate	after judgment HC may certify fitness: gateway for civil and constitutional appeals
136	Special leave	discretionary; any court or tribunal except military courts

C-C-C — Constitution 132, Civil 133, Criminal 134: one, two, three after 131.

Criminal appeals (Art 134)

→ HC (1) reverses acquittal and sentences to death; (2) withdraws case from subordinate court, tries, convicts; (3) certifies fit

→ first two: appeal of right, no certificate; HC reverses conviction and acquits: no automatic right

→ 1970 expansion: also where HC reverses acquittal and sentences to life or at least 10 years, or takes over case, convicts, sentence life or 10+ years

Special leave (Art 136)	Meaning
Discretionary	not of right
Any stage	final decision or interlocutory order
Any subject	constitutional, civil, criminal, tax, labour, revenue, professional conduct
⚖️ Any court or tribunal	not only HCs (except military)

Used for gross injustice or violation of due process; exceptional, residual power, used sparingly: grave miscarriage, glaring error of law, general public importance. ⭐

CLASS · Appeals: Letters Patent, 134A, 136

Letters Patent route

Single judge, HC → 2-judge bench, HC (Letters Patent Appeal) → Supreme Court

Art 134A: every HC passing judgment, decree, final order or sentence under 132(1), 133(1), 134(2) decides quickly whether to certify under 134(1)(c). Two ways: suo motu by the HC, or oral application by the aggrieved party right after the judgment.

Art 136 (marked Imp): nearly 80% of cases pending in the SC are special leave petitions.

⚡ ADVISORY JURISDICTION: ART 143

Clause	Subject	Court's duty
143(1)	question of law or fact of public importance; substantial constitutional question	may tender or refuse; not binding but high authority
143(2)	disputes from pre-Constitution treaties, covenants outside Art 131	must tender opinion

(1) = may, (2) = must. Pre-Constitution disputes barred from Art 131 come via 143(2). Fifteen references so far.

No.	Year	Subject
1	1951	Delhi Laws Act
2	1958	Kerala Education Bill
3	1960	Berubari Union
4	1963	Sea Customs Act
5	1964	Keshav Singh (legislature privileges)
6	1974	Presidential Election
7	1978	Special Courts Bill
8	1982	J&K Resettlement Act
9	1992	Cauvery Water Disputes Tribunal
10	1993	Rama Janma Bhumi case
11	1998	Consultation process of CJI (Third Judges Case)
12	2001	Natural gas and LNG: Centre-State competence
13	2002	EC decision deferring Gujarat Assembly elections
14	2004	Punjab Termination of Agreements Act
15	2012	2G spectrum verdict, auction of natural resources

D-K-B-S-K — First five: Delhi Laws, Kerala Education, Berubari, Sea Customs, Keshav Singh: "Don't Keep Big Secrets, Kid" (1951, 58, 60, 63, 64).

CLASS · Arts 139-143: additions

Art	Class meaning
139	Parliament may confer power to issue directions, orders or writs for purposes other than those in Art 32(2)
139A	SC withdraws cases from HCs with the same substantial question of law, or transfers a case between HCs for ends of justice
140	Parliament may give supplemental powers so SC exercises original jurisdiction more completely
142	any order or decree needed for complete justice in a pending matter; enforcement of decrees
143	purpose: government wants a legal opinion before acting, the matter need not reach court; 143(2): dispute under proviso to Art 131, SC "shall" opine

Class vs handout: class defines Art 139 as above; handout table says "139: Centre-State agreements" (check).

⚖️ COURT OF RECORD AND CONTEMPT: ART 129

⚖️ Court of Record

→ preserves records as permanent evidence and precedent; cannot be questioned in any court

→ power to punish contempt: in 1991 covers itself, HCs, subordinate courts, tribunals

→ Contempt of Courts Act, 1971 on H.N. Sanyal Committee (1961)

Kinds

→ Civil: wilful disobedience of order, judgment, undertaking

→ Criminal: scandalises or lowers court; prejudices proceedings; obstructs justice

Point	Rule
Not contempt	fair and accurate reporting, innocent publication, reasonable criticism
Punishment	simple imprisonment up to 6 months, or fine up to Rs 2,000, or both
⚠️ Limitation	none after 1 year
Exemption	Nyaya Panchayats, village courts

S-O-T — Contempt numbers: Six months, One year, Two thousand: "Silence Often Tranquil".

⚖️ CLASS · Contempt: law, issues, cases

⚖️ Courts of Record: SC Art 129, HC Art 215

→ acts and proceedings recorded as permanent memory

→ precedent for lower courts

→ punish own contempt

📜 Law on contempt

→ Union List entry 77 (SC)

→ Concurrent List entry 14 (other courts)

→ purpose: shield courts from motivated attacks; protect independence

Issue with contempt power	Point
Natural justice	Nemo judex in causa sua (judge is the injured party); audi alteram partem (unheard party: ex parte); no extraneous influence, even the judge's ideology; reasons given; justice seen to be done. Recusal = judge withdraws over conflict of interest
💡 Vague definition	criminal contempt is loosely defined
⚠️ Fair criticism	can be punished: criticise the judgment, not the Judge
Mens rea	real intent not considered

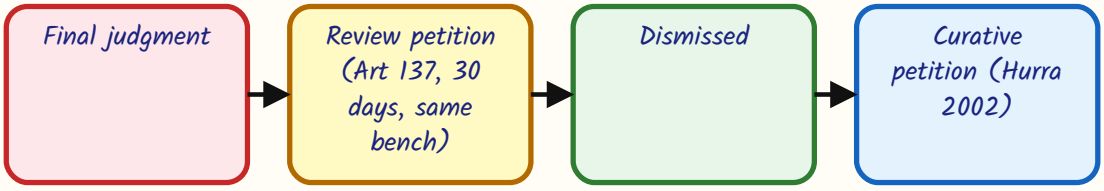
Case or change	Holding
Spycatcher (UK, 1987)	House of Lords banned the book even after the world read it; a newspaper mocked the Lords ("You old fools"); Lord Templeton did not treat opinion as contempt (as noted)
Mulgaonkar (1978)	balance free criticism with judicial independence; press gets free play within reasonable limits; judges should not be hypersensitive
📜 2006 amendment (1971 Act)	truth is a valid defence (if evidence against judges is valid)

Who can start contempt: (1) suo motu (2) Attorney General notice (SC) (3) Advocate General notice (HC) (4) a private person needs consent of the AG / Advocate General. ⭐

JUDICIAL REVIEW, REVIEW, CURATIVE

Judicial review: examines constitutionality of laws and executive orders (Centre and States); inconsistent: ultra vires, null and void; SC = guardian of the Constitution, cornerstone. Began with Marbury v. Madison (1803), USA; in India given by the Constitution, basic feature. Sources: Arts 13, 32, 131–136, 226, 227. Grounds: violates FRs, outside competence, repugnant to Constitution. Ninth Schedule (Art 31B; First Am. 1951; 13 Acts then, 282 now): laws added after 24 April 1973 open to review (Kesavananda 1973, Waman Rao 1980, I.R. Coelho 2007).

⚖️ Correcting a judgment



Review (3 grounds)	Curative (4 grounds)
🆕 new and important evidence	violation of natural justice
error apparent on face of record	prevent gross miscarriage of justice
any other sufficient reason	cure bias or procedural irregularity
–	prevent abuse of judicial process

Art 137: review of own judgment, within 30 days, same bench; Court may dismiss or issue notice. Curative: last remedy, Rupa Ashok Hurra v. Ashok Hurra (2002). "R-3, C-4: alphabet order, number order."

⚖️ 13 DOCTRINES OF INTERPRETATION

Doctrine	Principle	Case
Severability	only unconstitutional part invalid if separable	R.M.D.C. v. UoI (1957)
Waiver	FRs cannot be waived (public interest)	Basheshar Nath v. CIT (1959)
Eclipse	law inconsistent with FRs inoperative, not dead	Bhikaji Narain Dhakras v. State of M.P. (1955)
🗺️ Territorial Nexus	extraterritorial State law if sufficient nexus	State of Bombay v. R.M.D.C. (1957)
Pith and Substance	true nature decides validity amid overlap	State of Bombay v. F.N. Balsara (1951)
📜 Colourable Legislation	indirectly doing what cannot be done directly	K.C. Gajapati Narayan Deo v. State of Orissa (1953)
⚡ Implied Powers	powers essential to express powers implied	Re Delhi Laws Act (1951)
Incidental and Ancillary	powers needed to make legislation effective	State of Rajasthan v. G. Chawla (1959)
Precedent	decisions binding; certainty	Bengal Immunity Co. v. State of Bihar (1955)
Occupied Field	Parliament legislates on Concurrent matter: State law void to repugnancy (Art 254)	Tika Ramji v. State of U.P. (1956)
Prospective Overruling	applies to future cases only	I.C. Golaknath v. State of Punjab (1967)
Harmonious Construction	read conflicting provisions to give effect to both	G. Chawla (1959) and Venkataramana Devaru v. State of Mysore (1958)
Liberal Interpretation	FRs read liberally	Maneka Gandhi v. Union of India (1978)

S-W-E-T-P-C-I – First seven: Severability, Waiver, Eclipse, Territorial nexus, Pith and substance, Colourable, Implied. Strict Wigs Examine The Precise Constitutional Intent.

I-P-O-P-H-L – Last six: Incidental and ancillary, Precedent, Occupied field, Prospective overruling, Harmonious, Liberal. Impartial Persons Often Prevent Hasty Laws.

Year pairs: 1955 Eclipse and Bengal Immunity; 1957 Severability and Territorial Nexus; 1951 Pith and Substance and Delhi Laws; 1959 Waiver and Chawla. FR doctrines: "Save What Exists"; law-making: "The Parliament Checks Overreach". ⭐

Handout alert: G. Chawla (1959) is the case for both Incidental and Ancillary Powers and Harmonious Construction; Harmonious also cites Devaru (1958). Give both for Harmonious.

👥 CLASS · Art 13: pre-constitutional laws

📜 Pre-1950 laws

→ Art 372 (class): pre-constitutional laws are void if they violate FRs

📜 Eclipse (Bhikaji 1955): law not dead, only eclipsed

→ FRs are prospective (from 26 Jan 1950)
→ legal continuity
→ law still works for foreigners; some rights are for citizens only

Severability

→ sever the offending sections, rest operates
→ if surgical separation impossible, whole law goes

Class vs earlier notes: "law" in Art 13(2): narrow = ordinary law; broad = ordinary law + Constituent Amendment Law; class prefers the broader meaning. Ch 5 notes: amendments are not "law" but reviewable on Basic Structure (check).

⚡ OTHER POWERS AND INDEPENDENCE

Power	Rule
🗳️ President and Vice-President elections	original, exclusive, final jurisdiction (Act of 1952)
👥 UPSC and SPSC members	on President's reference inquires; recommends removal, binding
Art 139A	transfer cases between HCs, or withdraw and decide itself
Art 141	law declared binds all courts; decrees enforceable country-wide
Superintendence	judicial superintendence over all courts and tribunals
Arts 138, 139	138: Parliament may extend for Union List matters; 139: Centre-State agreements

S-A-F-E — Four main: States' disputes (original, 131), Advisory (143), Final appeal (132–136), Enforcement of rights (writ, 32). (Part 1 of 2.)

C-U-R-E — Court of Record (129), Undo unconstitutional laws (judicial review), Review and curative (137), Explain the Constitution (interpretation). (Part 2 of 2.)

Safeguard (7)	How it protects
🗳️ 1 Appointment	President with senior judges (collegium); limits executive
⏳ 2 Security of tenure	removal only by impeachment under Art 124(4)
3 Fixed service conditions	by Parliament; no change to disadvantage, except Financial Emergency
4 Expenditure charged	on Consolidated Fund of India; non-votable
5 Conduct not discussed	by Parliament or State Legislatures, except impeachment
⏳ 6 Ban on post-retirement practice	cannot practise before any court or authority in India
⚡ 7 Jurisdiction not curtailed	Parliament may expand (Arts 138, 139), not reduce

ASSURED — Appointment · Security of tenure · Service conditions · Unshrinkable jurisdiction · Retirement: ban on practice · Expenditure charged · Discussion barred. Court's independence is ASSURED. (Order rearranged.)

Lakshmikanth differs: lists **nine** safeguards (adds contempt power and CJI's freedom to appoint staff). Handout lists seven: answer with seven. **Activism, PIL (Lakshmikanth):** activism from mid-1970s (Krishna Iyer, Bhagwati, Chinnappa Reddy, Desai); PIL early 1980s relaxes **locus standi**; 1988 guidelines (changed 1993, 2003): bonded labour, children, custodial cases, atrocities on women, environment; landlord-tenant, service, medical admissions not entertained.

CLASS · Independence: why, extras, NJPC

Mains frame: why independence is required. Intro: judiciary guards the Constitution. Points: (1) checks and balances, separation of powers (2) **government is the biggest litigant** (3) shield the Constitution from unwarranted invasion by Parliament or executive (4) rule of law (5) citizens' democratic rights (6) norms of federal polity (7) check the four "-feasances". Close: without it, rights are unenforceable. (Class notes skip point 7 of the teacher's numbering.)

Feasance	Meaning
Malfeasance	abuse of power
Misfeasance	bona fide error
Overfeasance	beyond jurisdiction
Nonfeasance	failure to act within jurisdiction

Arts 121 and 211: Parliament and State Legislature cannot discuss judges' conduct except on a removal resolution. Teacher's extras: contempt power, judicial primacy in appointments and transfers, independence of subordinate judiciary.

Class vs handout: class says an SC judge cannot practise after retirement, but an HC judge **can** practise in the SC and in an HC where he was not a judge; handout safeguard 6 says no practice before any court (check).

National Judicial Pay Commission	Detail
1st NJPC	1996, Justice Jagannatha Shetty
2nd NJPC	2017, Justice Venkatarama Reddy
All India Judges Association v. UOI (2024)	every HC to set up a body of 2 HC judges to review implementation of the SNJPC; district judges are **not State employees** but holders of public office wielding judicial power; no equation with executive officers

COMPARISON: INDIA, UK, USA

Benchmark	India	UK	USA
1 Basis	written; Arts 124–147, 214–237	unwritten; common law; Parliament sovereign	written (Art III); SC and inferior courts
2 Structure	single integrated hierarchy	no unified system; England and Wales, Scotland, N. Ireland	federal: 94 District, 13 Circuit Courts, SC; parallel state courts
3 Judicial review	limited; Basic Structure	absent; cannot strike Acts	very wide
4 Appointment, tenure	President after collegium; retire 65 (SC), 62 (HC); Parliament removes	Monarch on Judicial Appointments Commission; till 75	President with Senate consent; life "good behaviour"; impeachment
5 Subordinate control	HCs control posting, promotion, discipline (Art 235)	HCs supervise magistrates; decentralised	Circuit Courts and Judicial Conference; dual control
6 Jurisdiction	original: Centre-State; appellate; advisory (Art 143)	High Court and Court of Appeal; UK Supreme Court final appeal	broad original on federal questions; appeals via Circuits
7 Procedure, jury	procedure established by law; jury mostly abolished	active criminal jury; Common Law	due process (substantive and procedural); strong jury
8 Independence	tenure, service conditions, separation (Art 50)	conventions; limited parliamentary oversight	life tenure, financial autonomy; impeachment, Senate confirmation
9 Review and interpretation	constrained by Basic Structure	interpret, cannot invalidate	(text cut off in source)

Source gap: text ends mid-row 9 (UK cell cut at "sovereignty of", US cell missing). No High Court, subordinate court or tribunal section in the handout; chapter covers SC and comparison only. **Numbers:** India 65 (SC) and 62 (HC); UK 75; US life.

Point	Indian SC	American SC
🏛️ Original	federal cases only	federal plus naval, maritime, ambassadors
Appellate	constitutional, civil, criminal	constitutional only
Special leave	very wide (except military)	none
Advisory	yes	no
Judicial review	limited	very wide
🛡️ Protects rights by	"Procedure established by law"	"Due process of law"
⚡ Jurisdiction	can be enlarged by Parliament	only what Constitution confers
Control over HCs	judicial superintendence (integrated)	none (double system)

High Court	Year	Jurisdiction	Seat
Calcutta	1862	West Bengal, Andaman and Nicobar	Kolkata (Port Blair, Jalpaiguri circuit)
Bombay	1862	Maharashtra, Goa, Dadra and Nagar Haveli and Daman and Diu	Mumbai (Nagpur, Panaji, Aurangabad)
Madras	1862	Tamil Nadu, Puducherry	Chennai (Madurai)
Allahabad	1866	Uttar Pradesh	Prayagraj (Lucknow)
J&K and Ladakh	1928	J&K, Ladakh	Srinagar and Jammu
Punjab and Haryana	1947	Punjab, Haryana, Chandigarh	Chandigarh
Gauhati	1948	Assam, Nagaland, Mizoram, Arunachal	Gauhati (Kohima, Aizawl, Itanagar)
Rajasthan	1949	Rajasthan	Jodhpur (Jaipur)
Kerala	1956	Kerala, Lakshadweep	Ernakulam
Madhya Pradesh	1956	Madhya Pradesh	Jabalpur (Gwalior, Indore)
Delhi	1966	NCT of Delhi	New Delhi
Andhra Pradesh	2019	Andhra Pradesh	Amaravati

📰 **In the news · Sep 2026 (verify dates)** **Regional languages in HCs:** Tamil Nadu Assembly resolution urging Centre to recognise Tamil with English as principal language of the Madras High Court. **Art 142:** SC invoked it to quash FIRs against students in NEET-UG 2026 protests.

28 Jan 1950 SC set up

1951 Delhi Laws ref.

1952 President elections Act

1958 Judges Salaries Act

1961 Sanyal Cttee

1968 Judges Inquiry Act

1971 Contempt Act

1972 30th Am.

1973 Ray CJI

1977 Beg over Khanna

1982 Gupta

1991 Contempt scope

1993 Second Judges

1998 Third Judges

2002 Hurra

2014 99th Am.

2015 NJAC struck

2019 34 judges

⚖️ CLASS · High Court benches

Type	Meaning	Examples
Regular (permanent)	permanent set-up beyond principal seat	Bombay: Mumbai + Nagpur, Aurangabad · Allahabad + Lucknow · MP: Jabalpur + Gwalior, Indore · Madras + Madurai · Karnataka: Bangalore + Dharwad, Kalaburagi · Rajasthan: Jodhpur + Jaipur · Gauhati + Aizawl, Itanagar, Kohima
Circuit (temporary)	judges travel from principal seat, return after disposing matters	Calcutta HC at Port Blair

Why

→ easy access in large or populous States. Jaswant Singh Committee (1981): needs consent of the HC Chief Justice and the State government. Criteria: sizable population
→ features of a region
→ travel and communication
→ pendency at the principal seat.

🎯 CLASS · Mains frame: position of the SC

Q: What is the position of the SC under the Constitution? Points (teacher): (1) federal court (2) highest court of appeal (3) final interpreter of the Constitution (4) protector of Fundamental Rights (Art 32) (5) court of record. ✅

Recall drill: cover and answer

SC strength and Act? Who sets it?	1 CJI + 33 = 34; Parliament by law; Amendment Act 2019 (Art 124)	Three Judges Cases?	1982 Gupta (executive primacy); 1993 Advocates-on-Record (concurrence, judiciary); 1998 Art 143 opinion (collegium of 5)
NJAC: Act and fate?	99th Am. 2014; struck down 2015 (basic structure); collegium continues	Qualifications under Art 124(3)?	Citizen plus: HC judge 5 yrs, HC advocate 10 yrs, or distinguished jurist
Removal numbers and ground?	Proved misbehaviour or incapacity; 100 LS or 50 RS; 3-member committee; special majority; Judges (Inquiry) Act 1968; retire at 65	Art 143(1) vs (2)?	(1) may refuse, not binding; (2) must tender (pre-Constitution disputes)
Five writs and the SC-HC difference?	Habeas, Mandamus, Prohibition, Certiorari, Quo Warranto; Art 32 FRs only, cannot refuse; Art 226 wider, may refuse	Review vs curative?	Art 137, 30 days, 3 grounds; Rupa Ashok Hurra (2002), 4 grounds
Contempt Act 1971 numbers?	6 months, Rs 2,000, 1 year limitation; Sanyal Committee 1961	Seven safeguards of independence?	Appointment, tenure, fixed conditions, expenditure charged, conduct not discussed, ban on practice, jurisdiction not curtailed
NJAC composition and veto?	6: CJI, 2 SC judges, Law Minister, 2 eminent persons; any 2 can veto; Arts 124A-C	Collegium size: SC, HC, transfers?	SC 5 (CJI + 4); HC 3 (CJI + 2); transfer also consults 2 HC Chief Justices
Jaswant Singh Committee 1981?	HC benches: consent of HC CJ and State; population, region, travel, pendency	Contempt: Mulgaonkar and 2006 change?	Mulgaonkar 1978 balances criticism and independence; 2006: truth is a valid defence

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

CJI = Chief Justice of India — Head of the Supreme Court

HC = High Court — State-level constitutional court (Art 214)

PM = Prime Minister — Head of the Union government

IB = Intelligence Bureau — India's domestic intelligence agency

RS = Rajya Sabha — Council of States; the upper House of Parliament

UPSC = Union Public Service Commission — Constitutional body (Art 315) that recruits for the Union services

PIL = Public Interest Litigation — Court case filed for the benefit of the public

CM = Chief Minister — Head of a State government

TDSAT = Telecom Disputes Settlement and Appellate Tribunal — Hears telecom disputes and appeals

NGT = National Green Tribunal — Specialised environment court (2010)

IT = Information Technology — Computing and digital technology (for example, the IT Act, 2000)

PSC = Public Service Commission — Constitutional recruitment body (UPSC for the Union, SPSC for States)

SPSC = State Public Service Commission — State counterpart of the UPSC

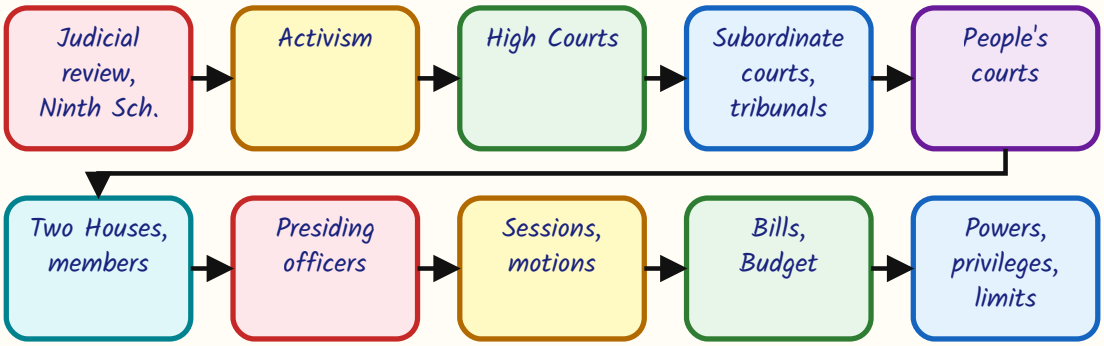
MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

PARLIAMENT

PYQ Prelims 2024, 2023, 2022, 2021, 2020, 2019, 2018, 2017, 2016, 2015, 2014, 2013, 2012, 2011, 2010, 2009, 2008, 2007, 2005, 2004, 2003, 2002, 2001, 1997 · Mains I (Khap Panchayats)

Handout chapter in two blocks: courts (judicial review, activism, High Courts, subordinate courts, tribunals, people's courts) and Parliament (Part V: two Houses, members, presiding officers, procedure, Bills, Budget, privileges, limits). Most repeated: Money Bill, RS powers, joint sitting, lapse, Speaker, funds.

At a glance: the route



Exam lens (handout only, no slides)

→ 71 Prelims PYQs (33 courts, 38 Parliament) + Mains. Most repeated: Money and Financial Bill (Arts 110, 117, 109: 2013, 2015, 2018, 2023, 2024)

→ RS powers Arts 249, 312 (2012, 2016, 2020, 2022)

→ joint sitting and lapse (2012, 2015, 2016, 2024), prorogation vs dissolution (2024)

→ Speaker/Dy Speaker (2012, 2017, 2022, 2024)

→ Consolidated Fund, Budget (2011, 2012, 2015, 2020), Office of Profit (2019)

→ Lok Adalat (2005, 2009, 2010), Gram Nyayalaya (2016), judicial review (2017), 1st Amendment (2023), Contempt (1997, 2022).

Remember it as	Fact
⚖️ HC judge	retire 62; removal motion 100 LS or 50 RS
MP age	30 RS, 25 LS
Vacate	10 days (two Houses), 14 days (State Leg.), 60 days (absence)
📜 Money Bill	LS only; RS returns in 14 days

Quorum	1/10 = 55 LS, 25 RS

Key term	Meaning
Collegium	CJI-led senior SC judges; Second (1993) and Third (1998) Judges Cases
⚖️ Court of record (Art 215)	judgments = permanent precedent; punishes own contempt
Lok Adalat	Sec 19, LSA Act 1987; compromise; award = civil decree, no appeal
Charged expenditure (Art 112(3))	on Consolidated Fund; discussed, not voted
Prorogation	President ends session (Art 85(2)); adjournment = sitting; dissolution = LS itself

🗺️ 1 · JUDICIAL REVIEW AND THE NINTH SCHEDULE PYQ

2017 PYQ 2023 PYQ 2018 PYQ 2012

Judicial review

→ courts test laws and executive orders against the Constitution; failing = ultra vires, null and void; also a legitimiser

→ first: Marbury v. Madison (1803), CJ John Marshall (US)

→ India: power flows directly from the Constitution; SC and HCs; part of basic structure

→ works only when validity is challenged in a case; courts = sentinels on the qui vive

Three levels

→ Legislative: Golaknath (1967), Kesavananda (1973)

→ Administrative: arbitrary orders, corruption, environment

→ Judicial decisions: review own judgments (Art 137)

⚡ Two functions

→ legitimise conforming action

→ protect Constitution from any organ ("interpretational and observer")

→ suo motu and PIL relax locus standi

Concept	Meaning	India
🏛️ Procedure established by law	valid if competent authority follows procedure, fairness irrelevant	Art 21; A.K. Gopalan (1950)
💰 Due process of law	law must be enacted and just, fair, reasonable	not explicit; Maneka Gandhi v. Union of India (1978) read fairness into procedure

🛡️ Rights widened by review

→ press freedom Art 19(1)(a)

→ protective discrimination fits equality

→ Education, Clean Environment in Art 21

→ trial delay = denial of justice; free legal aid, speedy trial

→ PILs: bonded labour, women, children

→ CNG in Delhi public transport, compulsory helmets ("living instrument")

Article	Role in review
13	law inconsistent with FRs void to that extent: bedrock
32, 226	writs in SC, HC (widened by PIL)
136	SC special leave to appeal
227	HC supervises lower courts
131	SC original: Centre–State disputes

SMPFIT – Supremacy of Constitution, Misuse prevented, Protect rights, Federal balance, Independence of judiciary, Tyranny prevented: "Strong Men Protect Fair Independent Trials" (six uses). Shortcut: Art 13 = base; 32, 226 = doors.

Ninth Schedule

→ 1st Amendment Act 1951 + Art 31B, PM Nehru
→ protects land reform, zamindari abolition laws from FR challenge
→ originally 13 Acts; now 281 laws (handout: about 66 added before 24 April 1973)

Case	Year	Principle
Kesavananda Bharati v. State of Kerala	1973	basic structure; violating laws not protected
Waman Rao v. Union of India	1981	laws added before 24 April 1973 protected; later reviewable
I.R. Coelho v. State of Tamil Nadu	2007	no blanket immunity; post-1973 laws struck down for Arts 14, 19, 21 or basic structure

Coelho (2007): five conclusions

→ 1 no law can destroy Basic Structure (amendment or 9th Sch.)
→ 2 impact and effect test: consequence violating basic features = invalid
→ 3 all additions after 24 April 1973 challengeable under Arts 14, 19, 21
→ 4 protection conditional, case by case
→ 5 upheld law not re-challengeable; struck law not revived by inclusion

NCRWC recommends

→ 9th Sch. only as last resort: agrarian reform, DPSP Arts 39(b), 39(c)
→ transparent inclusion with justification
→ institutional review mechanism

KWC – Kesavananda 1973, Waman Rao 1981, Coelho 2007: "Keep Watch, Courts decide"

2 · JUDICIAL ACTIVISM AND RESTRAINT

Judicial activism

→ assertive judiciary, law as living instrument
→ term: Arthur Schlesinger Jr., USA, 1947
→ India: mid-1970s, Krishna Iyer, P.N. Bhagwati, O. Chinnappa Reddy, after Emergency (1975–77)
→ basis: Art 32, Art 226 ("any other purpose"), Art 142 (complete justice)

KBC – Krishna Iyer, Bhagwati, Chinnappa Reddy: "Keen Bold Courts"

Feature	Example
Expansive Arts 14, 19, 21	Maneka Gandhi (1978)
PIL, liberal locus standi	poor, bonded labourers, prisoners, environment
Directions to fill vacuum	Vishaka v. State of Rajasthan (1997)
Accountability of authorities	Rule of Law
Dynamic interpretation	Navtej Johar (2018): decriminalised Sec 377 IPC

Activism vs dynamism: activism = assertive, may step into policy; dynamism = constructive reform-oriented reading without exceeding jurisdiction.

Landmark case	Contribution
Hussainara Khatoon v. State of Bihar (1979)	speedy trial, Art 21
Bandhua Mukti Morcha (1984)	abolition of bonded labour; widened PIL

M.C. Mehta (1987–1998)	environment; absolute liability
Vishaka (1997)	guidelines on workplace harassment (CEDAW) till 2013 Act
🧑‍🤝‍🧑 D.K. Basu v. West Bengal (1997)	arrest and custody guidelines
Prakash Singh (2006)	police reform: autonomy, fixed tenure, complaint authorities
Lalita Kumari v. U.P. (2014)	FIR mandatory, cognisable offences

HBMVDPL – Hussainara, Bandhua, M.C. Mehta, Vishaka, D.K. Basu, Prakash Singh, Lalita Kumari: "How Big Mighty Voices Demand Police Law" (1979, 1984, 1987–98, 1997, 1997, 2006, 2014)

Aspect	Judicial review	Judicial activism
💡 Meaning	examine constitutionality	proactive; fill policy gaps
💡 Nature	legal, procedural	creative, social-justice driven
💡 Purpose	constitutional supremacy	socio-economic rights
Approach	conservative: validity	dynamic: moral, policy reasoning
Outcome	strike down (Kesavananda 1973)	new guidelines (Vishaka 1997)
⚡ Role	guardian	catalyst
⚠️ Criticism	obstruction	legislative overreach

Relationship: review = foundation (Arts 13, 32, 226), activism = progressive form. Review ensures rule of law, activism rule of justice. Review = tool, activism = spirit. ✅

Why activism arose (Wadehra)

→ Constitutional supremacy (Arts 32, 226, 142)
→ Rule of Law (Art 14); separation of powers
→ transformative constitutionalism (Preamble, Part IV)
→ collapse of responsible governance
→ citizens' expectations; judicial zeal
→ legislative vacuum; Arts 21, 142

Kashyap's grounds

→ legislative paralysis; weak governments
→ political expediency
→ failure to protect rights (Subhash Kumar v. Bihar, 1991)
→ Emergency 1975–77
→ populism; justice as living concept (Art 38)
→ continuing mandamus (Vineet Narain, 1998)
→ voiceless via PIL, suo motu

Baxi's activators	Example
🛡️ Civil rights	A.K. Gopalan (1950) to Maneka Gandhi (1978)
Social-justice movements	Olga Tellis v. Bombay Municipal Corporation (1985): livelihood in Art 21
Consumer groups	Consumer Protection Act 1986
Bonded labour groups	Bandhua Mukti Morcha (1984); Bonded Labour (Abolition) Act 1976
Environmental (CSE)	M.C. Mehta 1987 absolute liability; Vellore Citizens' Welfare Forum (1996) polluter pays, precautionary
🛡️ Human rights	D.K. Basu 1997
🛡️ Child rights	M.C. Mehta v. Tamil Nadu (1996) hazardous child labour banned
🧑‍🤝‍🧑 Women	Vishaka 1997
Bar, media	SC Advocates-on-Record Assn. (2016): collegium transparency
Individuals	Kapila Hingorani, Prashant Bhushan, Subhash Kashyap: "people's court"

Seven fears (Baxi: "nervous rationalities")	Concern
Ideological	blurs review and legislation; Art 50; diesel ban, mining limits
Epistemic	no expertise: Kudankulam, Vodafone tax
Management	PIL, suo motu load; NJDG 2024: over 5.1 crore pending

Legitimation	unenforced orders erode authority
Democratic	unelected sideline elected: "judicial governance"
Biographical	post-retirement image; populism
Institutional overreach	Aravali Golf Club v. Chander Hass (2007)

IEMLDB – Ideological, Epistemic, Management, Legitimation, Democratic, Biographical: "In Every Matter Limit Dominant Bench" (7th = institutional overreach, Aravali)

Aravali Golf Club (2007)

→ judges cannot run government; no "emperors"
→ expertise lies with executive; discontent with other organs no excuse
→ overreach erodes faith in "last refuge"; no judicial adventurism
→ policy = executive and legislature; remedy = electorate

Handout alert: Aravali (2007) appears twice (six points in criticism, five in restraint); overlap, use as one set.

Aspect	Activism	Restraint
Philosophy	catalyst, constitutional morality	neutral arbiter; defer to legislature, executive
💡 Core idea	living document	no substituting policy preferences
💡 Objective	justice, rights, fill gaps	balance; prevent overreach
Approach	expansive (Art 21)	strict constructionism
Roots	post-WW II America; Warren Court (1953-69)	Montesquieu

Six assumptions of restraint

→ democratic accountability
→ doubtful origin of review (not explicit)
→ separation of powers
→ federal deference
→ pragmatic realism (appropriations, public trust)
→ judicial decorum

🗳️ 3 · HIGH COURTS: ORGANISATION, APPOINTMENT, TENURE PYQ

2007 PYQ 2005 PYQ 2001 PYQ 2003 PYQ 2008

⚖️ High Court

→ highest State authority below SC; superintendence over all subordinate courts
→ Art 214: one per State; Art 231: common HC for States or States + UT (Punjab and Haryana + Chandigarh; Gauhati)
→ 25 High Courts (2025); oldest: Delhi, Bombay, Madras, Calcutta, Allahabad
→ Art 216: Chief Justice + other judges as President deems necessary; strength varies
→ seat: State capital + permanent or circuit benches (Bombay HC: Nagpur, Aurangabad, Goa; MP HC Jabalpur: Indore, Gwalior)

🗳️ Appointment (Art 217)

→ by President
→ CJ: consult CJI and Governor
→ other judges: CJI, Governor, HC CJ
→ in practice Collegium (Second Judges 1993, Third 1998); President normally follows

🎓 Qualifications

→ citizen of India
→ 10 years judicial office or HC advocate (one or more HCs)

👑 Oath (Art 219) before Governor

→ faith and allegiance to Constitution
→ uphold sovereignty and integrity
→ perform duties faithfully
→ right to all, without fear or favour, affection or ill will

💰 Salary (Art 221)

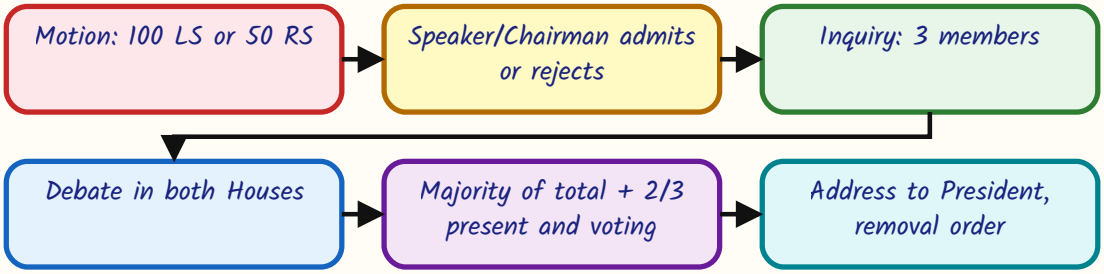
→ fixed by Parliament; till then Second Schedule; not reduced to disadvantage
→ 2018 Amendment Act: CJ ₹2.5 lakh/month, others ₹2.25 lakh

Shortcut HC basics: citizen, 10 years judge or advocate, President via Collegium (1993, 1998), retire at 62. ✅

⏳ Tenure and exit

→ no fixed term; retire 62 (Art 217); age dispute: President after CJI, final
→ resign in writing to President
→ vacate on appointment to SC or transfer

🚪 Removal of HC judge (same as SC): proved misbehaviour or incapacity, Art 217(1)(b), Judges (Inquiry) Act 1968



Inquiry committee: CJI or SC judge + a HC Chief Justice + distinguished jurist. No HC judge ever impeached. ⭐

Transfer (Art 222)

→ President after consulting CJI; compensatory allowance
→ 1977: only public interest, not punishment
→ 1994: subject to judicial review, only affected judge can challenge
→ Third Judges Case 1998: CJI consults collegium of four senior-most SC judges + CJs of both HCs

Provision	Art	Rule
Acting CJ	223	CJ vacant or unable: President appoints another judge
⚖️ Additional judges	224(1)	up to 2 years, arrears or temporary increase; after CJI, Governor, HC CJ
⚖️ Acting judges	224(2)	judge (not CJ) unable or numbers short: HC CJ with President's consent asks qualified person
⏳ Retired judges	224A	CJ with President's and judge's consent; serving judge's powers; not permanent

AAAR – Acting CJ (223), Additional (224(1)), Acting judge (224(2)), Retired (224A): "All Articles Arrive Right after 222" (222 = transfer)

Source conflict (PYQ 2007): PYQ key says a retired permanent HC judge cannot plead or act in any court; Independence section says he cannot practise in same HC or subordinate courts but may in SC or other HCs. Concepts: use the section; the PYQ: use its key.

Extras

→ SC decisions bind all courts (Art 141); HCs began 1862 (Calcutta, Bombay, Madras), Allahabad 1866
→ 7th Am (1956): common HC
→ of 25 HCs only 3 cover more than one State

→ Delhi only UT with own HC (1966); J&K and Ladakh share one
→ collegium for HC: CJI + two senior-most SC judges (Third Judges Case); 99th Am + NJAC Act (2014) struck down 2015 (Fourth Judges Case)
→ no minimum age, no "distinguished jurist" route for HC
→ pension 50% of last salary, charged on Consolidated Fund of India.

👥 CLASS · HC set-up, strength, age

Article (class bare-act list)	Subject
214	a High Court for each State
231	common HC for two or more States / State + UT

Delhi HC 1966; before that Delhi came under the Punjab and Haryana HC. J&K and Ladakh share one HC. 💡

Strength fixed by	How
⚖️ High Court (Arts 215, 216 in class note)	executive order of Govt of India is enough
⚖️ Supreme Court	only Parliament by law

Retirement age	Age
⚖️ Supreme Court	65
⚖️ High Court (Art 217)	62: raised by 15th Am 1963 from 60

Additional judges (Art 224): 2 years as additional judge is the experience route to a permanent HC judgeship. Class lists Arts 219, 222, 223, 224, 224A together. ⭐

Date check: class writes "before 99th AA, 2015" beside the Art 217 consultation list; the 99th Am / NJAC Act is dated 2014, struck down 2015.

⚡ 4 · HIGH COURTS: POWERS AND INDEPENDENCE PYQ

2022 PYQ 2014 PYQ 2012 PYQ 2001

⚡ HC jurisdiction

🏛️ 1 Original
→ election disputes (RPA 1951)
→ revenue matters
→ FR writs (Art 226)
→ constitutional cases withdrawn from subordinate courts
→ original civil in higher-value cases: Calcutta, Bombay, Madras, Delhi; original criminal of first three ended by CrPC 1973

📬 2 Writ (Art 226)
→ habeas corpus, mandamus, prohibition, certiorari, quo warranto
→ FRs + any other purpose: wider than Art 32, concurrent for FRs
→ reaches persons outside territory if cause of action arises within

→ 3 Appellate (table below)
→ 4 Supervisory (Art 227)
→ 5 Control (Arts 233–235)
→ 6 Court of record (Art 215)
→ 7 Judicial review

FORCE – HC original jurisdiction: Fundamental Rights (226), Original civil (Cal, Bom, Mad, Del), Revenue, Constitutional cases withdrawn, Election disputes (own mnemonic)

Appeal	Rule
🧑‍🤝‍🧑 First	from District/Additional District Courts: law and fact, amount above limit
Second	only substantial questions of law
⚖️ Intra-court	single judge to Division Bench
⚖️ From tribunals	Division Bench; Chandra Kumar (1997): tribunals under HC writ jurisdiction, HC first
Criminal	Sessions Court sentence above 7 years; death sentence must be confirmed by HC; others per CrPC 1973

Supervisory (Art 227)

→ superintendence over all courts and tribunals except military courts

→ powers: call for returns, frame rules and forms, regulate records and accounts, fix fees of clerks, sheriffs, officers, practitioners

→ judicial and administrative; revisional; suo motu; extraordinary, sparing use

When used

→ excess of jurisdiction
→ gross violation of natural justice
→ error of law
→ disregard of binding precedent
→ perverse findings
→ manifest injustice

⚖️ Control over subordinate courts (Arts 233–235)

→ Governor consults HC on District Judges and recruitment

→ HC manages posting, promotion, leave, transfer, discipline below District Judge

→ may withdraw constitutional cases

→ decisions bind all subordinate courts

⚖️ Court of record (Art 215)

→ permanent record, precedent, not challengeable below

→ punish contempt of itself and subordinate courts: Contempt of Courts Act 1971; no cognisance where act is already an IPC offence (IPC 1860)

→ inherent power to review own judgments

Judicial review

→ Centre and State laws and orders, Arts 13, 226; basic structure

→ grounds: violates Part III, beyond competence, repugnant to Constitution

→ 42nd Am (1976) tried to bar HCs on Central laws; 43rd Am (1977) restored

Ten safeguards of HC independence	Content
⏳ 1 Tenure	till 62; impeachment only
2 Service conditions	charged on State Consolidated Fund; no disadvantage; change only by Parliament
3 No practice	not in same HC or subordinates; may in SC or other HC
🗳️ 4 Appointment	President + CJI + others; Collegium
5 Transfer	President after CJI
6 Contempt	Art 215
📝 7 Own procedure	frames own rules
8 Separation	Art 50 (DPSP)
9 Conduct	not discussed in Parliament/Legislature except removal
10 Subordinate control	Art 235

TFPATCPSCA – Tenure, Fixed conditions, Practice ban, Appointment, Transfer, Contempt, Procedure, Separation, Conduct, Administrative: "Ten Famous Pillars Always Tall, Courts Pride, Safe Constitutional Authority"

Art 226 vs Art 32: HC = FRs + any legal right, wider, outside territory if cause arises within. SC = FRs only, concurrent. Shortcut C-B-M-D = original civil. Extras: CJ appoints own staff; jurisdiction cannot be cut by Parliament/Legislature; pay not changed to disadvantage except in financial emergency.

⚡ CLASS · HC jurisdiction: extras

🏛️ Original (class list)

→ electoral disputes
→ contempt matters
→ FR cases (Art 226)
→ admiralty (maritime law, law of the seas)
→ revenue. New against the notes: contempt and admiralty. Bombay, Calcutta, Madras + Delhi: original civil jurisdiction in higher-value cases.

👫 Appellate (most of HC work)

→ 1st appeal (from district and sub-courts): on law or fact
→ 2nd appeal: only question of law, not fact
→ state tribunals: HC appellate jurisdiction after L. Chandra Kumar (1997)

Supervisory Art 227; Sheriff = nominal position only (class).

⚖️ 5 · SUBORDINATE COURTS AND TRIBUNALS PYQ 2004

Branch	Court	Key points
Civil	District Judge	highest civil; Governor appoints with HC
	Sub-Judge / Civil Judge (Sr Div)	moderate suits; appeals from lower
	Munsif / Civil Judge (Jr Div)	minor disputes
	Family Courts	Act 1984; matrimonial, custody
	Small Causes	petty; decision final
Criminal	Sessions Court	highest criminal; any sentence, death confirmed by HC; appeals from magistrates
	Chief Judicial Magistrate (CJM)	up to 7 years
	Metropolitan Magistrate	Delhi, Mumbai, Chennai, Kolkata: Chief Metropolitan Magistrate
	First-Class Magistrate	up to 3 years or ₹10,000
	Second-Class Magistrate	up to 1 year or ₹5,000

One judge = District Judge (civil) and Sessions Judge (criminal), under HC. Every criminal case begins before a magistrate, who may commit serious cases to Sessions.

🗳️ Appointment (Arts 233-237)

→ District Judge: Governor after consulting HC; citizen, advocate or pleader 7 years, HC recommends (PYQ 2004 adds Union/State judicial service)
→ removal: Governor only on HC recommendation; Art 235 HC complete control; HC can suspend or demote after inquiry
→ Below District Judge (Civil Judge Jr Div, Munsif, Judicial Magistrate): State PSC exams; Governor appoints on HC recommendation; HC controls posting, promotion, transfer

⚖️ Tribunals: base

→ 42nd Am 1976: Part XIV-A, Arts 323-A, 323-B
→ 323-A: service matters; Parliament may set up; Administrative Tribunals Act 1985: three-tier system

Tribunal	Basis and appointment	Tenure, notes
CAT (Central)	Act 1985; Chair + Members (judicial, administrative); Search-cum-Selection Committee: CJI or SC judge nominee (Chair), two senior Secretaries, outgoing Chairperson or retired SC/HC judge	4 years or age 70 (Chairperson) / 67 (Member), min age 50, one re-appointment; Principal Bench New Delhi; civil-court powers; appeal "directly to SC, Sec 28" (see alert)

🗺️ SAT (State)	Sec 4; State Govt with President's approval; President with Governor and HC CJ; committee headed by HC CJ + Chief Secretary, SPSC Chair, one GoI Secretary	4 years renewable, 70, 67, min 50; Odisha, Karnataka, Maharashtra, MP keep; AP, Tamil Nadu abolished; challenge in HC (Arts 226, 227)
JAT (Joint)	Art 323-A(2)(b), Sec 12; two or more States by agreement + President's approval; committee headed by HC CJ of a participating State	rarely constituted; cooperative federalism

⚖️ Review of tribunals

→ S.P. Sampath Kumar (1987): upheld; must be effective substitutes for HCs

→ L. Chandra Kumar (1997): seven-judge bench; judicial review by HC and SC is basic structure; reviewable under Arts 226/227 and 32; struck clauses barring review in both articles

→ Madras Bar Association (2014, 2020, 2021): tenure must secure independence; minimal executive control; 2021 Act's 4-year tenure and 50-year minimum age under scrutiny

📜 Art 323-B: Parliament and State Legislatures

→ Taxation
→ Industrial and labour
→ Land reforms and ceilings
→ Elections to Parliament/Legislatures
→ Food procurement and distribution
→ Rent control and tenancy
→ Essential goods: production, supply, distribution
→ Other matters (8 in all)

TILEFREO — "Tribunals In Law Ensure Fair Resolution, Every Occasion" (T-I-L-E-F-R-E-O = eight 323-B subjects)

Basis	323-A	323-B
Source	42nd Am 1976	42nd Am 1976
🏛️ Who creates	Parliament only	Parliament and State Legislatures
Subject	service matters	taxation, labour, land, elections, rent
🎯 Examples	CAT, SAT, JAT	NGT, NCLT/NCLAT, AFT, ITAT, TDSAT, SAT
📜 Laws	Administrative Tribunals Act 1985 (Tribunals Reforms Act 2021)	NGT Act 2010, Companies Act 2013, AFT Act 2007
Appeal	direct to SC in service matters (handout)	varies: HCs or SC
💡 Aim	cut HC workload	expert adjudication

Source conflict (CAT appeal): handout says direct appeal to SC under Section 28, but Chandra Kumar (1997) puts tribunals under HC writ jurisdiction (Arts 226/227): HC first. Exam: use Chandra Kumar; keep Sec 28 only as handout wording.

CAT facts: 19 benches (17 at HC seats + Jaipur, Lucknow); no Vice-Chairman since 2006; sanctioned 1 Chairman + 69 Members; fee Rs 50; not bound by CPC; excludes defence forces, SC staff, Parliament secretariat staff. Art 323-A no tribunal hierarchy, 323-B allows one. Commercial Courts Act 2015: district Commercial Courts, HC Commercial Division and Appellate Division; specified value cut Rs 1 crore to Rs 3 lakh (2018); compulsory pre-institution mediation (Law Commission 253rd Report).

CAT bench	Jurisdiction
🆕 Principal, New Delhi	NCT of Delhi
Allahabad	UP (except Lucknow districts), Uttarakhand
Lucknow	UP (except Allahabad districts)
Hyderabad	Andhra Pradesh, Telangana

Madras	Tamil Nadu, Puducherry
Ernakulam	Kerala, Lakshadweep
Bombay	Maharashtra, Goa, Dadra and Nagar Haveli and Daman and Diu
Jodhpur / Jaipur	Rajasthan (split between them)
Chandigarh	Haryana, Himachal Pradesh, Punjab, Chandigarh
Jabalpur	MP, Chhattisgarh
Patna	Bihar, Jharkhand
Calcutta	West Bengal, Sikkim, Andaman and Nicobar
Guwahati	Assam, Meghalaya, Manipur, Tripura, Nagaland, Mizoram, Arunachal (14 of 19 shown)

CLASS · District judiciary and quasi-judicial bodies

Criminal ladder: Magistrate courts try the majority of criminal cases; Sessions Court = highest criminal court in the district; cases go Magistrate to Sessions. HC = main authority over district courts. Class bare-act list: Arts 233, 236, 234, 233A.

All India Judges Association case, 2025: minimum 3 years' practice as advocate needed to appear for the state judicial service examination.

Quasi-judicial bodies (QJP)

→ outside ordinary courts; given powers, duties like SC, HC, district courts

- ⚡ With adjudicatory power (decide like courts)
  - → Consumer Commission
  - → Information Commission
  - → Administrative Tribunals
- ⚡ Without adjudicatory power
  - → NHRC, NCST, NCBC
  - → judicial, administrative or expert members

1941
Income Tax Tribunal: first administrative tribunal

1976
42nd Am: Part XIV-A, Arts 323A, 323B

1997
Chandra Kumar: clause (d) of both struck; HC Division Bench (2 judges) hears

Under 323A (class): authorities outside the ordinary court system that interpret and apply laws when govt acts are challenged in formal suits or other established methods. R. Gandhi case: tribunals may be set up in areas beyond those in Art 323B (year not noted in class).

Why tribunals (class)	Point
a	growing technicality of govt functions
b	relief to ordinary courts
c	speedy judgement
also	faster procedures · laws applied in a socially relevant manner

🎯 6 · LOK ADALATS AND LEGAL SERVICES PYQ 2005 PYQ 2009 PYQ 2010

Lok Adalat (People's Court): Legal Services Authorities Act 1987; quick amicable compromise; Art 39A (equal justice, free legal aid). Act in force 9 Nov 1995; first post-Independence camp Gujarat 1982.

Level	Authority	Head	Function
National	NALSA	CJI	policy, coordination
🗺️ State	SLSA	HC Chief Justice	Lok Adalats across State
District	DLSA	District Judge	local disputes, awareness
Taluk	Taluk Legal Services Committee	Senior Civil Judge	mobile, grassroots

NSDT – NALSA (CJI), SLSA (HC CJ), DLSA (District Judge), Taluk (Sr Civil Judge): "Never Skip Due Trials"

⚡ Three functions at every level

→ free competent legal service
→ Lok Adalats
→ legal literacy. Free service includes court fees and process charges, lawyer, certified copies, appeal papers, translations.

📜 Section 12: who gets free aid

→ Women and children
→ SC/ST
→ Industrial workmen
→ Victims of disasters, violence, floods, droughts, earthquakes, industrial accidents
→ Disabled
→ Custody (protective homes, detention)
→ Trafficking, beggary victims
→ Economically weak: income up to ₹1,00,000 (₹5,00,000 before SC Legal Services Committee)

WSIVDCTE – "We Serve India's Vulnerable, Disadvantaged, Confined, Trafficked, Economically weak"

Ordinary Lok Adalat (Sec 19)

→ pending + pre-litigation disputes; SC to Taluk
→ Chair (serving or retired judicial officer) + 2 members (lawyers, social workers)
→ cases: civil, motor accident, cheque bounce (NI Act), compoundable criminal; not non-compoundable (murder, rape, grievous assault)
→ reference: mutual consent, one party applies, suo motu by court
→ powers of civil court (CPC 1908): summon, oath, documents, affidavits, public records; judicial proceedings
→ award: final, binding, civil decree, no appeal; needs consent; failure = back to court

Type	Features
National	NALSA 2015; quarterly; SC to Taluk on one day; 2025 dates: 8 March, 10 May, 13 September, 13 December
🗺️ State (Regular) Continuous	several consecutive days
Daily	busy places: traffic challans, small claims
Mobile	vans, rural areas
Mega	all courts of a State, one day
Permanent (PLA)	2002 Amendment; Secs 22A–22E; public utility, pre-litigation

Permanent Lok Adalat

→ Chair who is/was a District Judge (or higher) + 2 members; set up by Centre/State in consultation with HC CJ
→ Sec 22A jurisdiction: transport (rail, road, air); postal, telegraph, telephone; power, water, sanitation; insurance, banking, finance; public distribution; hospital/health (by interpretation); not non-compoundable offences
→ value limit: ₹1 crore (NALSA; was Rs 10 lakh, raised 2015)
→ conciliation first, adjudication next; award by majority (Sec 22E) final, binding, decree, no appeal; once applied, no court on that dispute
→ Interglobe Aviation v. N. Satchidanand (2011): dual jurisdiction; binding
→ Digital Lok Adalat (2022–2024): pre-filing, e-summons, tracking

Basis	Ordinary	Permanent
📜 Law	Sec 19	Secs 22A–22E

Disputes	pending or pre-litigation, consent	only pre-litigation, public utility
Method	compromise only	conciliation then adjudication
Award	binding, consent-based	binding even without consent
Adjudication	none	quasi-judicial
Appeal	none (Sec 21)	none; limited review
Frequency	occasional	continuous

💡 Significance

→ no court fee; fee refunded on settlement
→ speedy: over 1.5 crore cases in 2023 (NALSA)
→ cuts backlog; voluntary; economical; legal literacy

Limits

→ mutual consent needed
→ uneven conciliators
→ limited jurisdiction
→ no appeal
→ poor rural infrastructure
→ numbers over quality

Shortcut: Ordinary = Sec 19, consent, no adjudication. Permanent = Sec 22A–22E, public utilities, conciliation then adjudication, up to ₹1 crore. Award = decree, no appeal. ✅

Lakshmikanth differs: National Lok Adalats monthly, subject-wise (from 2015); handout says quarterly. Use quarterly in class; remember monthly idea.

CLASS · Legal aid: extras

LSA Act 1987 core functions also include undertaking social-justice litigation. Structure: NALSA, SLSAs, DLSAs, Taluk committee; Sec 19 = organisation of Lok Adalats (usually civil, compoundable cases). ⭐

Class vs handout (income limit): class says Rs 3 lakh for district and HC level (State govt) and Rs 5 lakh for the SC (Central govt); handout says Rs 1,00,000 general, Rs 5,00,000 for the SC committee (check).

⚖️ 7 · GRAM NYAYALAYAS, FAMILY COURTS, CONSUMER COMMISSIONS PYQ 2016 PYQ 2013

📜 Gram Nyayalayas Act 2008 (in force 2 Oct 2009)

→ background: village panchayats; 14th Law Commission (1958); Balwantrai Mehta Committee (1957); Justice P.N. Bhagwati Committee on Legal Aid (1977) "justice at doorstep"; Law Commission 114th, 120th, 213th; Arts 39A, 50
→ Sec 3: State with HC consultation, per intermediate panchayat or group; subordinate to HC
→ presiding officer: JMFC powers, State Judicial Service, appointed with HC
→ status (handout, 2024): 395 functional in 11 States

Aspect	Rule
👫 Civil (First Sch.)	property, tenancy; public resources use; contracts, debts; wages (Payment of Wages Act, Minimum Wages Act, MGNREGA); family; Domestic Violence Act 2005; Maintenance of Parents and Senior Citizens Act 2007; limit by State (₹25,000–₹1,00,000); conciliation first
Criminal (Sec 14; Second Sch.)	offence not above 2 years: assault, theft, mischief, nuisance, trespass, defamation; Protection of Civil Rights Act 1955, Bonded Labour (Abolition) Act 1976, Forest Act 1927, Environment (Protection) Act 1986, Motor Vehicles Act 1988, Weights and Measures Act 1976, Public Gambling Act 1867; summary trial; up to 2 years or fine
Compounding	where law allows

Appeals	civil: District Court; criminal: Sessions; within 30 days; final
Enforcement	like civil or criminal courts; via District/Taluk court

PYQ 2016: Gram Nyayalayas hear both civil and criminal; Act allows social activists as mediators/conciliators. Shortcut: Sec 3, JMFC, 2 years, 30 days appeal, 2 Oct 2009. ⭐

⚖️ Family Courts Act 1984

→ family and matrimonial disputes; reconciliation over adjudication; 1975 Committee on Status of Women; 59th Law Commission Report

→ set up by State with HC; towns with population above 1 million or where needed; over 750 (2024)

→ single judge (State + HC concurrence); counsellors, welfare officers; District Judge qualifications (Art 233)

→ evidence on affidavits; Indian Evidence Act 1872 not in full; orders = civil decrees; civil imprisonment or attachment possible

Sec	Content
7	exclusive: matrimonial causes (marriage, divorce, nullity, conjugal rights, separation); maintenance (Sec 125 CrPC); custody; family property; legitimacy, paternity
9	conciliation before adjudication, any stage
10	own procedure, natural justice
11	in-camera
13	no automatic right to lawyers
14	expert opinions
19	appeal direct to HC within 30 days; none against consent order

🛡️ Consumer Protection Act 2019

→ from reactive (1986 Act) to proactive: e-commerce, product liability, unfair trade practices

→ three tiers; Act: District, State, National

Aspect	District	State	National (NCDRC)
🏛️ Set up	State Govt	State Govt + Centre consult; capital	Centre; New Delhi
👥 Members	President + at least 2	President + at least 4 (one woman)	President (SC Judge) + 4 to 11 (one woman)
⏳ Tenure	4 years or 65	4 years or 67	4 years or 70
🗳️ Appointed by	State	State	Centre, CJI-led Selection Committee
Value	up to ₹50 lakh	₹50 lakh to ₹2 crore	above ₹2 crore
Appeals heard	none	from District, 45 days	from State and CCPA orders, 30 days
Further appeal	State	National	SC, 30 days
Revision	none	District acting beyond jurisdiction	State acting beyond jurisdiction
Review	own order, 30 days	own, or fraud/apparent error	own if ex parte or apparent error
Unfair contracts	void in individual case	void within State	nullify national-level
Transfer	none	between District in State	between State or across States

Shortcut: District up to ₹50 lakh, State up to ₹2 crore, National above. Ladder: District to State to National to SC. ✅

CLASS · Consumer protection: rights, CCPA, councils

Six consumer rights (class order)	Keyword
1	protection against goods and services hazardous to life and property
2	information on quality, quantity, purity, standard, price
3	access to a variety of goods and services at competitive prices
4	redressal against unfair and restrictive trade practices
5	to be heard; interests considered at appropriate fora
6	consumer awareness

Tiers: DCDRC (District), SCDRC (State), NCDRC (National) Consumer Disputes Redressal Commission; each can review; mediation option; complaint can be filed from anywhere (e-commerce).

Product liability and e-commerce

→ product liability: compensation for injury or property loss from faulty products; the three tiers can order it

E-commerce duties

→ give information: return, refund, exchange, warranty, grievance redress mechanism, country of origin

→ acknowledge complaint in 48 hours, redress in 30 days

CCPA powers (Central Consumer Protection Authority)

→ recall goods
→ recall misleading ads (penalties, also on endorsers)
→ class action suits
→ investigate large-scale violations
→ appeal against CCPA goes to the National Commission

Parens patriae: govt files the case where many affected persons cannot come together; e.g. govt case against Nestle.

Consumer Protection Councils (advisory, 3 tiers)

NCPC: Minister of Consumer Affairs → SCPC: State Minister → DCPC: headed by the DM → Advise govt on promotion and protection of consumer rights

Procedure number	Value
Limitation to file complaint	2 years
Online complaint	Jago Grahak Jago
Jail for offences	1 month to 3 years (with or without fine)
Disposal time	3 months (no testing) · 5 months (testing involved)

Consumer case	Holding
IMA v. V.P. Shantha, 1995	doctors and medical professionals covered by the Consumer Protection Act
Bar of Indian Lawyers v. D.K. Gandhi, 2024	about lawyers; class note says relief lies in regular courts (civil/ criminal); note partly unclear

👥 8 · PARLIAMENT AND COMPOSITION OF THE TWO HOUSES

PYQ 2012 PYQ 2013

🏛️ Parliament (Part V, Arts 79–122)

→ Westminster pattern; executive accountable to legislature
→ President + Rajya Sabha + Lok Sabha (Art 79)
→ President not a member of either House; assent needed; summons, prorogues, dissolves LS, addresses, ordinances
→ India: executive embedded ("President-in-Parliament"); USA: President separate, Congress two Houses (Senate, House of Reps)

PRL — President, Rajya Sabha, Lok Sabha: "Parliament Runs on Limbs: three, not two"

Art	Subject
79	Constitution of Parliament
80	Composition of RS
81	Composition of LS
82	Readjustment after each census (delimitation)
83	Duration: LS 5 years; RS permanent, 1/3 retire every 2 years
84	Qualification
85	Sessions, prorogation, dissolution of LS
86	President addresses both Houses
87	Special address: first session each year and after general election
89	Chairman (VP), Deputy Chairman of RS
93	Speaker, Deputy Speaker
94	Vacation, resignation, removal of Speaker/Deputy
95	Deputy or other member acts as Speaker
96	Speaker role in President's impeachment

🏛️ Rajya Sabha (Council of States)

→ max 250 = 238 States and UTs + 12 nominated (literature, science, art, social service)
→ now 245 = 229 States + 4 UTs + 12 nominated; Fourth Schedule
→ States: indirect, elected by elected MLAs, STV; broadly population-based (Tripura 1)
→ UTs: electoral college per UT, STV
→ nominated enrich debate, no elections

🏛️ Lok Sabha (House of the People)

→ max 552 = 530 States + 20 UTs + 2 Anglo-Indian
→ 104th Am 2020 ended Anglo-Indian nomination; extended SC/ST reservation ten years
→ now 543 elected = 530 States + 13 UTs
→ direct, universal adult franchise; age 18 (61st Am 1988, from 21)
→ UTs: UT (Direct Election to the House of the People) Act 1965

House	Maximum	Present
RS	250 (238 + 12)	245 (229 + 4 + 12)
LS	552 (530 + 20 + 2)	543 (530 + 13)

Shortcut: RS 245 (229+4+12), LS 543 (530+13): 2-4-5 and 5-4-3. ✅

Source conflicts: RS table says "245 maximum: 233 elected + 12"; use max 250, present 245. 104th Am dated 2019 in table, 2020 in text: use 2020. Lakshmikanth differs: LS max 550 (530+20), 543 now (524 States + 19 UTs); RS 245 = 225 States + 8 UTs + 12, only Delhi, Puducherry, J&K. Follow handout.

State	RS	LS	SC / ST (LS)
Uttar Pradesh	31	80	17 / –
Maharashtra	19	48	5 / 4

👫 West Bengal	16	42	10 / 2
Bihar	16	40	6 / –
Tamil Nadu	18	39	7 / –
Madhya Pradesh	11	29	4 / 6
Karnataka	12	28	5 / 2
Gujarat	11	26	2 / 4
Andhra Pradesh	11	25	4 / 1
Rajasthan	10	25	4 / 3
Odisha	10	21	3 / 5
Kerala	9	20	2 / –
🗳️ Total (RS incl. 12 nominated)	245	543	84 / 47

🏛️ CLASS · Rajya Sabha and Lok Sabha seats

RS original basis (1941 census): 1 seat per 1 million up to the first 5 million; then 1 more per 2 million. UT seats: Sec 27 RoPA 1950 (electoral college); 7th Am 1956: UTs also send members to the Council of States. 💡

House	Class split	Total
RS	225 States + 8 UTs (J&K 4, Delhi 3, Puducherry 1) = 233 elected + 12 nominated	245
LS max	530 States + 20 UTs	550
LS now	524 States + 19 UTs, all elected (UT seats: UT Direct Election Act 1965)	543

UT	LS seats
J&K	5
Delhi	7
Chandigarh, A&N, Lakshadweep, Puducherry, Ladakh	1 each (5)
Daman & Diu + Dadra & Nagar Haveli	2
Total	19

Class vs handout: class uses RS 225 + 8 UTs and LS 550 max (524 + 19 UT); handout main text says RS 229 + 4, LS max 552, 530 + 13 (check). UP has the most RS seats: 31.

👥 CLASS · Size of the House: inadequate representation

Year / country	Population : MPs
1971	54 crore : 543
2011	121 crore : 543
NEW 2026	140+ crore : 543 (about 1 MP per 25 lakh)
UK Commons	6.5 crore : 650

Unequal representation: Malkajgiri (Telangana) about 30 lakh vs Lakshadweep about 49,000. Against enlarging: harder to manage, less time to speak, more constituencies, more expenditure.

🗳️ 9 · ELECTORAL SYSTEM OF THE LOK SABHA

Constituencies

→ framework Arts 81, 82, 170

→ single-member territorial

→ parity between States: population to seat ratio uniform (Art 81(1)); States below 6 million exempt

→ parity within State; "population" = latest decennial census

⚠️ Delimitation and freeze

→ Art 82: Delimitation Commission; commissions 1952, 1962, 1972, 2002

→ 42nd Am 1976: seats and boundaries frozen at 1971 till 2000

→ 84th Am 2001: freeze till 2026; rationalise boundaries (1991 census) without changing State seat totals

→ 87th Am: basis updated to 2001 census

SC/ST reservation (Art 330)

→ in proportion to population; delimited like general seats
→ common electorate: all vote, candidate from category; may also contest general
→ meant for 10 years; extended; 95th Am 2009; 104th Am 2020

FPTP

→ single-member, highest votes wins
→ merits: accountability, simple, stable government
→ RS: PR with STV (Arts 80, 66)

Why PR rejected for LS

→ complexity for illiterate electorate
→ fragmentation, unstable coalitions
→ costly
→ parties not candidates
→ no by-elections

CICWN – Complexity, Instability, Cost, Weak link, No by-elections: "Careful Indians Chose Winner-takes-all Normally"

CLASS · Art 81 balances; Delimitation Commission

Art 81(2)	Balance
(a)	inter-state: LS seats per population
(b)	intra-state: population per constituency

Both rebalanced after each census by delimitation. Delimitation Commission: statutory body; headed by a retired SC judge; members Chief Election Commissioner and State Election Commissioner (class).

10 · DURATION AND CONTINUITY OF THE HOUSES

Rajya Sabha

→ first constituted 1952; permanent, no dissolution
→ 1/3 retire every 2 years; vacancy by election or nomination (Art 80(3))
→ 6-year term (RPA 1951; Constitution prescribes none); re-election indefinite
→ first RS: retirement by lottery

Lok Sabha (Arts 80, 83, 85, 352)

→ 5 years from first sitting (Art 83(2)); then automatic dissolution
→ early: President on Council of Ministers' advice (not judicially reviewable, handout)
→ Emergency (Art 352): extended by law, 1 year at a time, not beyond 6 months after emergency ceases

Dimension	Lok Sabha	Rajya Sabha
Anchor	Art 81; citizens	Art 80; States/UTs
Nature	dissolves 5 years or earlier	permanent; 1/3 every 2 years
Strength, tenure	543, 5 years	245, 12 nominated, 6 years
Election	FPTP; Art 326	STV, State legislatures
Logic	population-based	fixed State allocation
Presiding	Speaker, Deputy Speaker	VP ex-officio Chairman; Deputy Chairman elected
Dissolution	by President on Cabinet advice; govt responsible to it	none; no no-confidence
Bills	all, incl. Money	no Money Bill initiation; recommends only (Art 110)
Special	no-confidence; final on Budget	Art 249; Art 312

Joint sitting Art 108	numbers decisive (POTA 2002)	outnumbered
Reserved	131 SC/ST seats; 33% women (106th Am)	12 nominated

⏳ Why terms differ

→ 1 stability vs accountability
→ 2 federal vs popular
→ 3 emergency adaptation (Arts 83(2), 352)
→ 4 synergy; RS continues if LS dissolved
→ GST example: long federal debate aided by RS stability; land acquisition, environment

One-liners: RS = permanent, 6 years, 1/3 every 2 years. LS = 5 years, +1 year steps in Emergency (max 6 months after). ✅

Source conflict: handout cites Art 85 for dissolution on advice and Art 83(2) for term. Use: term = Art 83(2); sessions, prorogation, dissolution = Art 85.

Lok Sabha	Years	Remark
🧑‍🤝‍🧑 First	1952–1957	dissolved 38 days before term end
Fourth	1967–1970	dissolved 1 yr 79 days early
Fifth	1971–1977	extended twice, a year each; 5 yrs 10 months 6 days
Sixth	1977–1979	2 yrs 4 months 28 days
Seventh	1980–1984	20 days early
Ninth	1989–1991	1 yr 2 months 25 days
Eleventh	1996–1997	1 yr 6 months 13 days
Twelfth	1998–1999	1 yr 1 month 4 days
Thirteenth	1999–2004	253 days early

⏳ CLASS · Terms of the Houses: extras

1976
42nd Am: LS term 5 to 6 years

1978
44th Am: back to 5 years

RS term 6 years: Sec 154 RoPA 1951; one-third retire every 2nd year; first RS by draw of lots. "Proclamation of Emergency" = national emergency (Art 366(18)); LS extended 1 year at a time, never beyond 6 months after it ends. LS dissolves automatically after 5 years or sooner by the President. 💡

👥 11 · QUALIFICATIONS FOR MEMBERSHIP PYQ 2017 PYQ 2020

Art 84 (+ RPA 1951, Art 84(c))

→ citizen of India
→ oath or affirmation (before person authorised; see alert)
→ age: 30 RS, 25 LS
→ Parliament may add by law (Art 84(c))

RR — Rajya = older (30), Lok = younger (25): "Rajya Reviews, so it is Ripe"

RPA 1951 statutory

→ registered elector in any parliamentary constituency
→ pre-2003: RS candidate elector in same State; RP (Amendment) Act 2003 removed; SC 2006 upheld
→ reserved seat: only SC/ST; SC/ST may contest general too
→ nomination papers, security deposit, self-declarations (education, assets, liabilities, criminal)
→ Art 75(5): non-MP minister must be elected within 6 months
→ Art 80(1)(a): 12 nominated; eligibility judged at nomination/election; challenge at scrutiny or election petition (RPA Part VI)

📜 106th Am Act 2023: women's reservation

→ one-third in LS, State Assemblies, Delhi Assembly, including SC/ST seats

📜 Articles

→ 239AA amended: NCT Delhi
→ 330A inserted: LS
→ 332A inserted: State Assemblies
→ 334A inserted: after first census and delimitation

→ sunset 15 years after implementation (extendable); rotation after each delimitation; no effect on current House

⚠️ Challenges

→ census, delimitation delay; effective 2029 or later
→ no OBC sub-quota (SC "Triple Test")
→ Bill failed 6 times (1996–2010)
→ male incumbents displaced
→ 2021 Census delayed; delimitation 2027–28
→ patriarchy (2010 "wolf-whistling" remark); Sarpanch Pati

🔧 Way forward

→ prevent proxy candidates; real ministerial roles
→ Census (2025), Delimitation (2026–27) with oversight
→ training, funding, legal protection; Norway financing, France equity laws
→ Rwanda 61% women MPs, Mexico candidate quotas, Nepal mixed

Source conflicts: (1) oath under Art 84 "before person authorised by Election Commission", under Art 99 "President or his authorised person": use Art 99. (2) Women's reservation dates differ (2027–28/2029 vs 2025/2026–27): handout expectations, the rule is Art 334A (after census and delimitation).

Case	Holding
Mohinder Singh Gill v. CEC (1978)	Art 324 plenary power where law silent
🗺️ Lily Thomas v. Union (2013)	Sec 8(4) struck down; Sec 8(1), 8(2), 8(3) disqualify on conviction
🗺️ Lok Prahari v. Union (2018)	convicted cannot hold office; automatic disqualification
Abhiram Singh v. C.D. Commachen (2017)	appeal on religion, caste, community, language = corrupt practice, Sec 123(3)
Indira Nehru Gandhi v. Raj Narain (1975)	Allahabad HC: PM guilty of malpractice
Kanwar Lal Gupta v. Amar Nath Chawla (1975)	party spending counts in candidate's expenses
N.P. Ponnuswami v. Returning Officer (1952)	no intervention mid-process; election petition after (Art 329(b))
🗺️ Kuldip Nayar v. Union (2006)	open ballot in RS upheld
🗺️ PUCL v. Union (2003)	right to know candidate info; PUCL (2013): NOTA

MLLAIKNP – Mohinder, Lily, Lok Prahari, Abhiram, Indira, Kanwar, N.P. Ponnuswami, Kuldip, PUCL: "Many Laws Let All Indians Know New Knowledge Publicly"

🏛️ CLASS · Women in Parliament: data, quota history, 106th Am

Women MPs	Figure
18th LS	74 (14%)
17th LS	78 (15%)
🏛️ Rajya Sabha	about 10%
🗺️ State Assemblies	average 9–10%
🏛️ Global average (apex houses)	26%

⚠️ Women MPs: who and issues

→ mostly from political families; some student politics; upper-class professionals (lawyers)

→ few grassroots activists (e.g. Brinda Karat)

→ women's movement divided: outside groups (atrocities, violations) vs MPs who put party interest first

🏛️ Quota history

→ Constituent Assembly: most women members opposed quota (stigma, hope, party sensitivity, clean politics)

→ expectations unmet: debate revived 1990s; Bills 1996, 1998, 1999 lapsed

📜 108th Am Bill 2008

→ passed by RS 2010, lapsed with 15th LS

→ 1/3 seats; 1/3 sub-quota SC/ST; rotation

106th Am (Nari Shakti Vandan Adhiniyam) 2023: class adds

→ 1/3 of SC/ST reserved seats go to women; applies to LS, State Assemblies, Delhi

→ effective only after census + delimitation; rotation after each delimitation

→ 15 years, Parliament can extend by law

📜 Articles

→ 330A LS 1/3

→ 332A State Assemblies

→ 334A commencement, after delimitation, up to 15 years

→ 239AA NCT Delhi 1/3

→ Puducherry: Govt of UTs Act 1963 amended 2023; J&K: J&K (Reorganisation) Second Amendment Act 2023: 1/3 each

→ class reform demand: implement without waiting for delimitation (not 2029 otherwise)

⚠️ Issues with women's quota

→ perpetuates unequal status; proxy candidates; resistance to women on general seats

→ restricts voter choice (popular men barred)

→ palliative, short-term; ignores socio-economic roots

→ rotation cuts incentive to nurture a constituency

→ Bill silent on Upper House quota

Teacher's writing task (frame built from class points): (1) Quality of Opposition: intro = role (accountability, alternatives, agenda); 3–5 problems (composition, reactive, short-term pay-offs, disunity, weak parties); close = shadow-cabinet-like specialisation. (2) Women's representation: intro = 14% vs 26% global; measures = quota with rotation fixes, party tickets, grassroots training, curb proxies; close = Rwanda-style norm. ✅

👥 12 · DISQUALIFICATIONS FOR MEMBERSHIP PYQ 2019 PYQ 2020

Grounds: Arts 102 and 191, RPA 1951, Tenth Schedule. 💡

Art 102(1)	Ground	Detail
(a)	Office of profit (Union/State) unless exempted	ministers (Art 75); Parliament (Prevention of Disqualification) Act 1959
(b)	Unsound mind	declared by court
(c)	Insolvent, undischarged	
(d)	Citizenship lost / foreign citizenship / foreign allegiance	
(e)	Law of Parliament	RPA 1951

OUICL – Office, Unsound, Insolvent, Citizenship, Law: "Our Union Insists on Clean Parliamentarians" / "Only Upright Individuals Can Legislate"

Office of profit

→ Arts 102(1)(a), 191(1)(a): separation of legislature and executive

→ Art 103: President decides after EC opinion (binding), final

→ 1959 Act: lists exempt offices; amended 5 times; no limit on exemptions

→ Pradyut Bordoloi v. Swapan Roy (2001): four criteria

Four tests

→ Govt appoints and removes

→ financial remuneration

→ executive/administrative powers

→ influence under govt control

→ Guru Gobinda Basu tests: source, control, remuneration; even one norm may suffice

Instances

→ 2025: Karnataka HC notices, 42 legislators as board heads

→ 2022: Jharkhand CM, stone mining lease

→ 2018: 20 Delhi MLAs disqualified (parliamentary secretaries)

→ 2006: President Kalam suspensive veto on Office of Profit Amendment Bill

Source conflict: Bordoloi has four criteria in one place, three norms in another. Use four, remember "one norm is enough".

Current affairs · July 2026 Exams Amendment Act: President assented to Public Examinations (Prevention of Unfair Means) Amendment Bill, 2026 (amends 2024 Act); Nilekani-led six-member task force on exam system.

RPA section	Ground	Period
8	conviction: promoting enmity (Sec 153A IPC), bribery, corruption, terrorism, Prevention of Corruption Act, Protection of Civil Rights Act	sentence 2 years or more: from conviction + 6 years after release
8A, 123	corrupt practice in elections	up to 6 years from order
10A	no election expense account in time	3 years
9A	interest in govt contract/supply/service	disqualified
10	director, agent, employee in corporation with Govt 25% shares	disqualified
9	dismissal for corruption or disloyalty	5 years
(social)	untouchability (PCR Act 1955), dowry (1961), sati (1987)	disqualified

Preventive detention is not a ground. Sec 8(3): 2 years or more, from conviction + 6 years. Old Sec 8(4): sitting member safe if appeal within 3 months; struck down in Lily Thomas (2013): now immediate.

CCECD – Conviction (8), Corrupt practice (8A, 123), Expenses (10A), Contract (9A), Dismissal (9): "Courts Checked Each Candidate's Dues"

Anti-defection (Tenth Schedule)

→ 52nd Am 1985; strengthened 91st Am 2003

→ decided by Presiding Officer, not President

Grounds

→ 1 voluntarily gives up party membership

→ 2 votes or abstains against whip without permission

→ 3 independent joins a party after election

→ 4 nominated member joins a party after 6 months

→ Kihoto Hollohan v. Zachillhu (1992): Speaker's decision subject to judicial review

Who decides	What	Note
President (Art 103)	Constitution and parliamentary-law grounds	after EC opinion, binding
Presiding Officer	defection (Speaker LS / Chairman RS)	judicial review (Kihoto Hollohan)

CLASS · Office of profit and RoPA sections

Why office of profit bars

→ MP/MLA as chairperson of a PSU may hamper work as member

→ compromises duty to question govt on public issues

→ ministers exempt; Parliament and States may list exempt posts by law

Class · 2005-06 Jaya Bachchan disqualified (2005) as chairperson of UP Film Development Corporation (UPFDC), not on the exempt list; class also cites Speaker Somnath Chatterjee as holding an office of profit. 2006: Office of Profit (Amendment) Bill to cover all MPs' posts retrospectively; Joint Committee on Offices of Profit: 10 LS + 5 RS; Kalam used the suspensive veto. Teacher: if even one norm is met it is an office of profit.

Class vs handout: class says Prevention of Disqualification Act 1956; handout says 1959 (check).

RoPA section	Class detail
8(1)	very heinous offence (untouchability, NDPS Act, rape): instant disqualification, even on a fine
8(2)	dowry, food adulteration
8(3)	other offences, 2+ years jail: instant removal + 6 years ban
8A	corrupt practices: up to 6 years; decided by President on EC opinion (Governor for States)
8(4)	appeal within 3 months saved sitting member: Lily Thomas 2013 struck it (discrimination)

13 · VACATING OF SEATS, OATH AND SALARIES

Dual membership	Rule
Elected to both Houses of Parliament	intimate in 10 days, else RS seat vacated
Sitting member of one House elected to other	first seat vacant
Two seats in same House	vacate one, else both (Sec 68 RPA)
Parliament + State Legislature (Art 101(2))	resign State seat in 14 days, else parliamentary seat vacant

Other ways (Art 101, RPA, conventions)

→ Disqualification: Art 102 or law; President after EC (Art 103); 1959 Act

→ Resignation: in writing to Chairman/Speaker; vacant when accepted; check voluntary; Rule 240 refuse if coerced; 2019 resignations examined

→ Absence (Art 101(4)): 60 consecutive days without permission; House declares vacant; prorogued or adjourned more than 4 consecutive days excluded

→ Other: election void by HC (appeal to SC Sec 116A); expulsion (Arts 105, 122; 2005 cash-for-query); elected President (Art 58) or VP (Art 66); appointed Governor (Art 158(2))

→ Disqualified candidate elected: RPA Sec 80–84 election petition to HC; SC final under Art 136

DDRAOEPG — Double membership, Disqualification, Resignation, Absence, Other (void election), Expulsion, President/VP election, Governor: "Don't Dally, Report All Office Exits, Please, Gentlemen"

Numbers: 10 days (both Houses), 14 days (Parliament + State), 60 days (absence), 4 days (exclusion), 3 months (old 8(4)). Penalty ₹500/day for sitting or voting without oath, while disqualified or prohibited. ✅

🗺️ Oath (Art 99; Third Schedule)

→ before taking seat; before President or person authorised by President

→ (1) faith and allegiance to Constitution (2) uphold sovereignty and integrity (3) faithfully discharge duty

→ only then full member: vote, debate, privileges

💰 MPs' salary (Art 106)

→ Salary, Allowances and Pension of Members of Parliament Act 1954

→ March 2025: 24% hike, retrospective 1 April 2023; first since 2018

→ 2018 Finance Act: auto-revision by Cost Inflation Index (IT Act 1961) every 5 years; 2025 first under it

→ average package about ₹2.5 lakh/month

→ perks: air and train travel (self, spouse), residence or allowance, family concessions, medical, communication, staff, vehicle advance, offices, electricity and water

Item	Old	New
💰 Basic salary / month	₹1,00,000	₹1,24,000
💰 Daily allowance	₹2,000	₹2,500
Pension former MPs / month	₹25,000	₹31,000
Pension increment per year beyond 5	₹2,000	₹2,500
💰 Constituency allowance	n/a	about ₹87,000
💰 Office expense allowance	n/a	about ₹75,000

💰 Presiding officers' pay

→ Salaries and Allowances of Officers of Parliament Act 1953; charged on Consolidated Fund of India

→ RS Chairman (VP): ₹4 lakh/month

→ Speaker, Dy Speaker, Dy Chairman: as MPs + extras; sumptuary: Speaker = Union Cabinet Minister, deputies = Minister of State

MO — MPs = 1954 Act, Officers = 1953 Act: "Members fifty-four, Officers fifty-three"

Lakshmikanth differs: only RS Chairman gets Rs 4 lakh (2018, from Rs 1.25 lakh); Speaker, Dy Speaker, Dy Chairman get MP salary + sumptuary allowance (Speaker Rs 2,000 Cabinet rate; deputies Rs 1,000 MoS rate). Handout says Speaker ₹4 lakh too: use handout in class.

🏛️ 14 · SPEAKER AND DEPUTY SPEAKER PYQ 2012 PYQ 2017 PYQ 2022 PYQ 2024

Presiding officers

→ LS: Speaker + Deputy Speaker; RS: Chairman (VP) + Deputy Chairman

→ each House: panel of chairpersons / vice-chairpersons

🗳️ Speaker: election and tenure

→ elected by LS members from themselves; President fixes date

Vacates if

→ ceases to be member

→ resigns in writing to Deputy Speaker

→ removed by majority of all the then members (effective), 14 days notice; motion admitted with 50 members

→ life of House (5 years); continues after dissolution till new Speaker; vacates just before first meeting of new LS (Art 94(2))

🏛️ Speaker Pro Tem

→ President appoints newly elected member (usually senior-most) and administers oath

→ administers oath to members (Art 99), presides till Speaker elected; helps form panel

→ ceases on election of Speaker (Art 93)

⚡ Speaker: powers

→ head, spokesperson, guardian of privileges; Constitution, Rules of Procedure, conventions

→ order, decorum; final interpreter of Constitution, Rules, precedents in the House

→ adjourn or suspend without quorum (1/10)

→ casting vote only on tie; no first vote

→ presides joint sitting (Art 108); secret sitting on Leader of House's request

→ Money Bill certificate (Art 110) final, endorsed before transmission

→ Tenth Schedule decisions (Kihoto Hollohan 1992: reviewable)

→ ex-officio Chairman: Indian Parliamentary Group, Conference of Presiding Officers

→ appoints chairpersons of all LS committees; chairs BAC, Rules, General Purposes

Independence

→ removal only by majority of total membership, 50 to admit

→ salary: 1954 Act, Consolidated Fund; ₹4,00,000/month (2018 Rules)

→ conduct discussed only on substantive motion; rulings beyond courts (Art 122)

→ precedence: rank seven with CJI, above Cabinet Ministers except PM, Dy PM

→ India: retains party membership (UK: resigns); "Speaker" from Britain (summed up views to King)

🏛️ "Once a Speaker, Always a Speaker"

For

→ Speaker from ruling party, needs it to be re-elected

→ protects MPs' rights (Nehru, Mavalankar)

→ fair anti-defection: SC told Telangana Speaker to decide on 10 MLAs in 3 months

→ UK: Sir Lindsay Hoyle re-elected unopposed 2024

🧑‍🤝‍🧑 Against

→ career disincentive; shrinking talent

→ weak neutrality conventions
→ judicial overhang
→ executive influence on isolated Speaker
→ reduced accountability

🔧 Way forward

→ codify neutrality (resign party, no active politics, supermajority removal)
→ independent tribunal for anti-defection
→ UK conventions; training

🌐 Global

→ UK: resigns party, re-elected across governments
→ Canada: secret ballot
→ Australia: party-affiliated, casting vote only

Mavalankar: Speaker "belongs to all the members or belongs to none". Nehru: Speaker is "symbol of the nation's freedom and liberty". ⭐

LS	Speaker	Tenure
👫 1st	G.V. Mavalankar	1952–1956 (died)
👫 1st	Ananthasayanam Ayyangar	1956–1957
2nd	Ananthasayanam Ayyangar	1957–1962
3rd	Hukam Singh	1962–1967
4th	Neelam Sanjiva Reddy	1967–1969 (resigned)
4th	Gurdial Singh Dhillon	1969–1971
5th	Gurdial Singh Dhillon	1971–1975 (resigned)
5th	Bali Ram Bhagat	1976–1977
6th	Neelam Sanjiva Reddy	1977 (resigned)
6th	K.S. Hegde	1977–1980
7th	Balram Jakhar	1980–1985
8th	Balram Jakhar	1985–1989
9th	Rabi Ray	1989–1991
10th	Shivraj Patil	1991–1996
11th	P.A. Sangma	1996–1998
12th	G.M.C. Balayogi	1998–1999
13th	G.M.C. Balayogi	1999–2002 (died)
13th	Manohar Joshi	2002–2004
14th	Somnath Chatterjee	2004–2009
15th	Meira Kumar	2009–2014
16th	Sumitra Mahajan	2014–2019
17th	Om Birla	2019–2024
18th	Om Birla	2024–present

MB – Died in office: Mavalankar (1st), Balayogi (13th): "Men Behind the Chair". Resigned: Reddy (1969, 1977), Dhillon (1975): "Reddy Departed". 📌

🏛️ Deputy Speaker

→ elected by House (Art 93) after Speaker; Speaker fixes date; life of House
→ vacates: ceases member; resigns to Speaker; removal by majority of all then members, 14 days
→ acts as Speaker with all powers incl. joint sitting; not subordinate; responsible to House
→ unique: when member of a committee, automatically its chairman
→ no first vote, casting vote; does not preside during own removal but may speak; ordinary member while Speaker presides; pay Consolidated Fund

→ Convention: up to 10th LS both from ruling party; since 11th LS Deputy from main opposition

1919 GoI Act: President, Deputy President of Central Legislative Assembly

1921 Governor-General presided before

1925 Vithalbhai J. Patel: first Indian, first elected Speaker

1935 GoI Act: titles Speaker, Deputy Speaker

1946–56 Mavalankar (Ayyangar Deputy)

First holders: Frederick Whyte (first Speaker), Sachidanand Sinha (first Deputy) of Central Legislative Assembly. Panel of Chairpersons: Speaker nominates up to ten; presides in absence of Speaker and Deputy; if both offices vacant the panel cannot preside: President appoints a member.

Source conflicts: Mavalankar 1952–1956 as LS Speaker, 1946–1956 counting Constituent Assembly (Legislative) and provisional Parliament. Speaker salary: Speaker section says ₹4 lakh, salary section says MP-equivalent (only Chairman named): use ₹4 lakh for Speaker and Chairman.

CLASS · Speaker: removal history, powers, "once a Speaker"

1954 G.V. Mavalankar

1966 Hukam Singh

1987 Balram Jakhar

2026 Om Birla (as written in class)

Removal motions against Speakers: all defeated. Speaker action to maintain order cannot be questioned in any court (Art 122).

⚡ Speaker: more powers (class)

→ orders Marshals to evict members
→ final say on Money Bills and all anti-defection cases
→ expunges unparliamentary remarks; decides who holds the floor
→ schedules agenda via Business Advisory Committee; decides points of order
→ admits motions, resolutions, questions; custodian of rights and privileges
→ chairs conference of presiding officers

AIPOC (All India Presiding Officers' Conference): 1st at Shimla, 1921; 2026 Lucknow = 86th.

Speaker's independence (class list)	Note
Speaks only for opinion	casting vote only in a deadlock
ADL exemption	may resign from party after election as Speaker
💰 Salary	charged expenditure
Conduct	discussed only on removal motion
Precedence	7th rank, Table of Precedence

📝 Still not fully secure: next steps

→ withdraw Speaker's ADL powers
→ convention "once a Speaker always a Speaker"
→ UK: Speaker may serve a 2nd term and no rival candidate is fielded against him in the next Commons election
→ 1925 Vithalbhai Patel (first Indian Speaker); V.S. Page Committee 1967 recommended the same convention for India
→ even after a 2nd term Speakers get Governor-type posts: so no political appointment of a former Speaker

Class vs handout (Art 97 pay): class follows **Lakshmikanth**: RS Chairman Rs 4 lakh; Speaker = MP salary + Cabinet Minister allowances; Dy Chairman and Dy Speaker = MP salary + MoS allowances. Handout gives Rs 4 lakh to the Speaker too (check).

🎯 15 · CHAIRMAN, DEPUTY CHAIRMAN, LEADERS PYQ 2015 PYQ 2013

RS Chairman

→ **Art 64:** VP ex-officio; not a RS member: no first vote, **casting vote (Art 100(1))**

→ **Art 65(2):** VP acting as President does not perform Chairman's duties; **Art 65(3):** gets President's emoluments

→ only Speaker: decide **Money Bill (Art 110(3))**, preside **joint sitting (Art 118)**

→ removal: only as VP, **Art 67(b)**: RS effective majority + LS agrees

→ pay: 1953 Act, **₹4,00,000**/month; **Art 90(b)**: cannot preside during own removal, may speak, no vote

Deputy Chairman

→ **Art 89(2)**; elected from members, simple majority present and voting

→ vacates (**Art 90**): ceases member; resigns to Chairman; removed by majority of all then members, 14 days

→ Chairman's powers when presiding; casting vote; **Art 97** pay Consolidated Fund

Panel of Vice-Chairpersons: Chairman nominates; procedural not constitutional; if both offices vacant no panel member presides; **Art 91(1)**: President appoints a RS member to act.

Aspect	Speaker	RS Chairman
🗳️ Selection	elected by LS from members; keeps party	ex-officio VP; not RS member
⏳ Term	5 years; stays after dissolution till successor	while VP
🚪 Removal	majority of all members	only as VP (Art 67(b))
📜 Money Bills	decides (Art 110), final	no such power
Joint sitting	presides (Art 118)	does not preside
Casting vote	tie only (Art 100)	same
Rules	final interpreter in LS	same in RS
Discipline	suspend or expel unruly	limited scope
🗳️ Committees	constitutes, appoints chairpersons	Dy Chairman, RS committee members
Secretariat	head of LS Secretariat; Indian Parliamentary Group	head of RS Secretariat
Basis	Arts 93–96	Arts 64, 89
Oath	as per Rules	none separate (VP oath, Art 69)
Resigns to	Deputy Speaker	Deputy Chairman
Absence	Deputy Speaker (not subordinate)	Deputy Chairman
Discretion	Tenth Schedule	limited, procedural
Privilege	conduct only by substantive motion	same

Handout error: table says Speaker "can withhold assent". Assent is the **President's** act (Art 111); Speaker certifies Money Bills, corrects errors in certified Bills.

MJ – "Mark Judges' words: Speaker only" = **M**oney Bill (110) + **J**oint sitting (118). Shortcut: deputy always receives principal's resignation and vice versa.

Secretariat

→ each House independent; some common posts; service conditions by Parliament

→ **Secretary-General:** permanent, non-political, appointed by presiding officer, status = **Cabinet Secretary**

📜 Leaders (from Rules, statute, convention)

🏛️ Leader of the House

→ Rule 2 LS Rules: PM if LS member, else minister (LS member) he nominates; RS: minister member of RS

→ schedules govt business; Deputy Leader possible; US: Majority Leader

Leader of Opposition

→ largest opposition party with 1/10 House strength

→ Salary and Allowances of Leaders of Opposition in Parliament Act 1977; first recognised 1969

→ Cabinet Minister rank, Consolidated Fund; member of Selection Committees: CVC, CBI Director, Lokpal

→ UK: Shadow Cabinet; Ivor Jennings "alternative Prime Minister"

Party Whip

→ convention only (British); not in Constitution, Rules or statute

→ attendance, party line (confidence motions, Money Bills Art 110, amendments Art 368), whip notices

→ defiance: Tenth Schedule (52nd Am 1985); Speaker/Chairman under Paragraph 6; review Art 136 or 226

LLW — Leader of House, Leader of Opposition, Whip: "Leaders Lead, Whips Warn"

CLASS · Arts 92 and 96: voting while removal is pending

Officer	While his removal resolution is considered
RS Chairman (Art 92)	cannot preside; can speak and take part but cannot vote
RS Deputy Chairman	speaks, takes part and votes as an ordinary member (first instance only); no casting vote
🏛️ LS Speaker (Art 96)	cannot preside; can speak and vote in first instance; no casting vote in these proceedings

Marked "Imp" in class: Arts 88, 89, 93, 94. Art 88: ministers and AG speak in both Houses; non-member ministers and the AG have no vote. ⭐

CLASS · Leader of Opposition: the 10% rule

10% criterion: Direction 121 by first Speaker G.V. Mavalankar. Why 10%: equals quorum, so opposition can hold a sitting if ruling party is absent. UK = Shadow PM. ⭐

1952–69
no LoO

1969
Ram Subhag Singh (Cong-O), LS

1971–77
none

1980–84
none

1989–2014
9th–15th LS: LoO

16th, 17th LS
none qualified

Issue: a Speaker's direction cannot override a law of Parliament (1977 Act). Law-made bodies (NHRC, CVC, CBI Director, CIC, Lokpal, ECI) need LoO on selection panels: if none, leader of single largest opposition party sits. LoO presents lapses and alternatives but cannot enforce; answerable to the whole nation.

⚡ CLASS · Role of opposition and its problems

⚡ Role (5)

→ hold govt accountable
→ question, sometimes confront
→ shape public opinion
→ alternative views
→ shape govt agenda

⚠️ Problems securing effective opposition

→ party composition of LS
→ reactive, depends on media for information
→ short-term pay-off issues; governance neglected
→ lack of unity
→ flimsy parties: no shadow cabinet (UK), no ideological filters, unstable affiliation

CLASS · Secretary-General, recognised party, whips

Art 98: each House has its own secretariat. Secretary-General = rank of Cabinet Secretary; appointed by presiding officer after consulting Leader of House + LoO; all notices addressed to S-G; custodian of papers and records. 💡

Leaders and Chief Whips Act 1998	RS	LS
Recognised group	15 to 24 members	30 to 54
🧑‍🤝‍🧑 Recognised party (not the EC test)	25 or more	55 or more

Whip	Binding?
One-line	non-binding notice; may abstain
Two-line	attendance compulsory; vote optional
Three-line	binding: attend and vote as directed

All India Conference of Chief Whips: Ministry of Parliamentary Affairs; 1st Indore 1952; 18th Udaipur 2018. 💡

🏛️ 16 · SESSIONS, QUORUM, VOTING, MAJORITIES PYQ

2024 PYQ 2016 PYQ 2015 PYQ 2012

🏛️ Sessions (Art 85(1))

→ President summons; gap at most 6 months: at least 2 a year (typically 3)
→ session = first sitting to prorogation (LS: or dissolution); gap = recess
→ sittings: 11 am–1 pm, 2 pm–6 pm

Session	Months
💰 Budget	February to May
Monsoon	July to September
Winter	November to December (often private members' Bills)

Term	Adjournment	Suspension	Prorogation	Dissolution
💡 Meaning	sitting ends till next hour/date	short pause in sitting	ends session	ends LS life
⚡ Authority	Speaker/ Chairman	Speaker/ Chairman	President (Art 85(2))	President on Cabinet advice
Effect on business	carries to next sitting	same sitting resumes	Bills unaffected, notices lapse (text); table: lapses, re-introduce	all lapses except Bills passed by both Houses awaiting assent
🎯 Example	Monsoon 2023, Manipur	2020 LS, Delhi violence	May 2023 Budget Session	May 2019 16th LS

Adjournment sine die: no date fixed, presiding officer; the President prorogues. **Dissolution:** LS only, **irrevocable (Art 83(2))**, after 5 years (**Art 352** extension) or early by President. Britain: prorogation ends all pending business.

🔧 Lapse on dissolution

→ all pending LS business: Bills, motions, committee reports

→ Bill pending in LS; Bill passed by LS, pending RS (PYQ 2024)

Survive

→ Bill pending in RS, not passed by LS

→ passed by both, awaiting assent

→ returned by President for reconsideration

→ Bill with joint sitting already notified

Source conflict: text says Bills survive prorogation (notices lapse); table says business lapses but Bills can be re-introduced: use text. Dissolution: RS-originated Bill pending in RS survives; LS-passed Bill pending in RS lapses.

ASPD — Adjournment, Suspension, Prorogation, Dissolution: "All Sessions Pause, Die". Speaker/Chairman = sitting; President = session (prorogue) and House (dissolve).

Quorum (Art 100(3)): 1/10 total = **55 LS**, **25 RS**. **Voting:** majority of present and voting excluding presiding officer; casting vote on tie. UK Commons: Speaker neutrality; Canada: House Leaders schedule business.

Method	Features
Voice vote	"Aye"/"No"; Speaker judges loudness; routine
Division	numbers after challenged voice vote: Automatic Vote Recording (EVS) buttons; physical lobbies; head count by tellers
Slips	Yes/No/Abstain; when system fails (amendments)
Secret ballot	rare; in-House elections

👑 Language, ministers, lame duck

→ **Art 120:** Hindi and English; mother tongue with translation; **Official Languages Act 1963**

→ **Art 88:** ministers and **Attorney General** take part in either House, committees, joint sittings, no vote; non-member minister **6 months** (Art 75(5))

→ **Lame-duck session:** after new LS elected, before first meeting; defeated members

Majority	Meaning	Used for
Simple	50% + 1 of present and voting	most business, Money Bills
Absolute	50% + 1 of total strength	forming government
Effective	majority of total minus vacancies ("then members")	removal of VP (RS), Speaker (LS)
Special 1	2/3 present and voting + majority of total	Constitution Amendment, removal of judges, CAG
Special 2	2/3 present and voting	Art 312, Art 249
Special 3	2/3 of total membership	impeachment of President (Arts 61, 62)

SEAS — Simple, Effective, Absolute, Special (shallow to deep) (own mnemonic). Handout: "Some Actors Enter Stage" (Simple, Absolute, Effective, Special).

Shortcut: Effective majority + 14 days' notice removes Speaker, Deputy Speaker, Chairman (as VP), Deputy Chairman; Speaker motion also needs **50** to admit. ✅

CLASS · Voting by division

Voice vote (informal): Ayes and Noes. Division (formal, when close): AVRE buttons (Y, N, Abstain), or slips, or head count: Ayes to the right lobby, Noes to the left. More democratic since citizens get to know each vote. Third mode: secret ballot. Quorum = 1/10.

CLASS · Suspension of MPs, expunging, secret sitting

👥 Disciplining a member

→ Naming: PO draws House's attention to unruly member

→ Rule 373 (LS): Speaker directs withdrawal for the day; Rule 255 (RS) similar

🚪 Long suspension

→ before 2001: House collectively suspended

→ after 2001: Rule 374-A (LS) (digits unclear, verify): named member auto-suspended 5 sittings or rest of session

→ revoked only by House resolution, not Speaker

→ RS Chairman has no power to suspend

Period	MPs suspended
2006–2014	51
2015–2022	139
🏛️ Winter Session 2023	143

Ashish Shelar case, 2022: Maharashtra Assembly (MVA govt) suspended 12 BJP MLAs for 1 year (2021); SC held it unconstitutional: suspension cannot exceed the remainder of the session.

Effects: cannot enter House, loses minister's reply to his question, cannot give notice.
Problems: Bills passed without debate; constituency unrepresented; chills free speech.

Device	Rule and detail
Expunging remarks	LS Rule 380, RS Rule 261; Speakers publish lists of unparliamentary words (list recently issued)
Secret sitting	LS Rule 248 (RS rule unclear); outsiders, media, gallery barred; first in 1948 (class page names M.S. Aney, verify); Chhattisgarh Assembly 2007

🔧 CLASS · Prorogation and dissolution: what survives

Prorogation: pending business shifts to next session. Dissolution: all pending LS business lapses, including LS-passed Bill pending in RS. Do not lapse: assurances pending with Committee on Government Assurances; Bills passed by both Houses awaiting assent; Bills returned by President; Bills where joint sitting was already called.

17 · QUESTION HOUR, ZERO HOUR, MOTIONS PYQ 2014 PYQ 2012

Question Hour

→ start of day; not in Constitution; Rules; Speaker/Chairman

Types

→ Starred (*): oral, supplementaries

→ Unstarred: written, none

→ Short Notice: under 10 days, oral, urgent

→ RS: over 60% of QH time lost recently

Zero Hour

→ informal; urgent matters without notice

→ right after QH to regular agenda; introduced 1962

→ LS Rule 377; RS Rule 180–E; with permission

→ 182 matters raised in LS, Winter Session 2024

Motions

→ formal proposal; general-importance matter needs Speaker/Chairman consent

Substantive

→ independent, self-contained

→ e.g. impeach President (Arts 61, 111), remove CEC

Substitute

→ alternative to original; supersedes if adopted

Subsidiary

→ depends on main: ancillary, superseding, amendment

Closure	How
Simple	matter sufficiently debated; debate ceases, vote
Compartments	clauses grouped; each group debated, one vote
Kangaroo	only key clauses debated, rest deemed passed
Guillotine	time short: discussed and undiscussed clauses voted together; budget, large Bills

SCKG – Simple, Compartments, Kangaroo, Guillotine: "Some Cats Keep Going"

Motion	Key points
Privilege	against minister for breach (withholding facts, false info); Arts 105, 118
Calling attention	urgent matter, minister's statement; Indian innovation 1954
Adjournment	definite urgent matter; 50 MPs to admit (LS); not in RS; element of censure; at least 2 h 30 min debate
No-confidence	opposition; Art 75 collective responsibility to LS; passed = govt resigns
Confidence	by govt to prove majority; negatived = falls
Censure	disapproval without necessarily removing ministry
Motion of Thanks	after President's Address (Art 87); must pass; rejection = loss of confidence
No-Day-Yet-Named (NDYN)	admitted, no date; BAC and Leader of House schedule
Dilatory	to delay; may be put to vote or declined

Point of Order	breach of Rules/Constitution (Arts 118, 122); no debate
Half-an-Hour Discussion	detailed elucidation; up to 3 days a week; no motion or vote
⏳ Short Duration Discussion	"two-hour"; up to 2 a week; 1953; no vote
Special Mention	matters fitting no device; LS: Notice (Mention) Rule 377; flexible in RS

Handout alert: Rule 377 appears for Zero Hour and for LS Special Mention, not separated. Remember Rule 377 (LS) for both; Rule 180-E for RS Zero Hour.

Censure	No-confidence
🗺️ must state reasons	no reasons
🏛️ individual, group or whole council	entire council only
specific policies	tests LS confidence
🏛️ council need not resign	council must resign

NCMT — No-confidence, Confidence, Motion of Thanks (if lost) topple a government: "No Confidence, Ministry Topples"

Resolution	Mover	When
👥 Private Member's	non-minister MPs	alternate Fridays, afternoon
Government	ministers	Monday to Thursday
Statutory	minister or private member	mandated by law or Constitution

Resolution: expresses House opinion; all voted; mover cannot withdraw without leave; all resolutions are substantive motions. **Youth Parliament Scheme:** Fourth All India Whips Conference; Ministry of Parliamentary Affairs; mock QH, debates in schools.

Extra: Censure and no-confidence: adjournment motion and no-confidence both need 50 members' support.

🏛️ CLASS · Question Hour: origin, colours, utility, problems

Interpellation via Question Hour: Indian Councils Act 1892. First hour, about 11 to 12. No Question Hour: President's address; Budget day; (holiday/extended sitting, class wording unclear). First suspension ever: Monsoon Session 2020.

Question	Class detail
Starred	oral answer, supplementaries; list on GREEN paper
Unstarred	written reply, no supplementaries; WHITE paper
Short notice	urgent public importance; notice under 10 days
👥 To private members	only on their own Bill, resolution or motion; if evaded, petition to presiding officer, whose decision is final

Utility

- → deterrent on govt
- → accountability of ministers and civil servants
- → exposes lapses; shapes opinion
- → tool to know govt stand
- → tool to embarrass govt

⚠️ Problems

- → only 30–45% answered; 15th LS about 10% (class figure, verify)
- → "cash for query" scams; absenteeism
- → first casualty of disruption (well, slogans)
- → about 70% of questions obtainable via RTI
- → fix: Hamid Ansari suggested shifting to 3 PM

CLASS · Zero Hour: class details

Unwritten, not in rules, convention only; no point of order allowed. Regular since the 1960s, fills gap before 1 PM lunch. Matter needs no notice but notice by 10 AM to presiding officer for time management. Minister replies if present. 15 min to 1 hour, timing by Speaker/Chairman.

Class vs handout: class writes RS rule as "180AA" (special mention); handout says RS Rule 180-E (check). LS Rule 377 agrees.

CLASS · Motions: classification, admission, no-confidence, trust

Motion	Class meaning and example
Substantive	self-contained: no-confidence, adjournment
Subsidiary	arises from an earlier motion: referring a Bill to committee
Substitute	replaces an existing motion with an alternative
Closure	ends debate, immediate vote: simple, kangaroo, compartments, guillotine
Privilege	against a minister giving misleading or false information
Dilatory	to delay or postpone House business
No Day Yet Named	admitted, but no date appointed
Censure	LS only; specific reasons; individual minister or whole govt

Adjournment motion (Rule 56): 7 conditions

- → urgent, national importance
- → govt responsibility
- → no privilege question
- → specific
- → no revival of same-session debate
- → not sub-judice
- → support of 50 LS MPs
- → then admission by Speaker; min 2.5 hrs; if passed = censure of govt

No-confidence motion

- → not named in Constitution: Art 75(3) + Rule 198

Conditions

- → LS only; once per session
- → against whole government
- → 50 members support; no grounds needed

- → if admitted: debate and vote within 10 days

History: first 1963 by Acharya Kripalani vs Nehru; 27 since independence (15 vs Indira Gandhi); none succeeded. Vajpayee, Deve Gowda, V.P. Singh fell on the trust vote, not a no-confidence motion.

Trust vote (confidence motion)

- → sought by govt/PM to prove LS majority
- → under Rule 184 (debate with vote); Rule 193 = debate without vote

PMs

- → Charan Singh: resigned unfaced 1979
- → V.P. Singh: lost 1990
- → Vajpayee: resigned 1996; lost by one vote 1999
- → Deve Gowda: lost 1997

🔧 CLASS · Resolutions and short devices

Resolution states House opinion; all resolutions are voted (some motions pass without a vote). Statutory resolutions: removal of judges, CAG. Half-hour: 3 days a week, clarifies a minister's answer. Short duration: 2 days a week, 1–2 hours. Calling attention: Indian innovation. 💡

📜 18 · BILLS: ORDINARY, MONEY, FINANCIAL (Art 117), JOINT SITTING

PYQ 2013 PYQ 2015 PYQ 2018 PYQ 2023 PYQ 2024 PYQ 2012

Bill type	Meaning
🏛️ Original	fresh proposal
📜 Amendment	amend existing (Citizenship Amendment Bill)
Consolidating	scattered provisions in one law (GST Bill, Direct Tax Code demand)
📜 Expiring-laws continuance	extend sunset-clause laws
📜 Replace ordinances	ordinance to permanent law
Money, financial, ordinary	see below
👥 Constitution Amendment	Art 368
Repealing	repeal law

📜 Public (Govt) Bill

→ minister; 7 days notice

→ Cabinet backed, priority; ordinary, financial, constitutional (Arts 107–111)

👥 Private Member's Bill

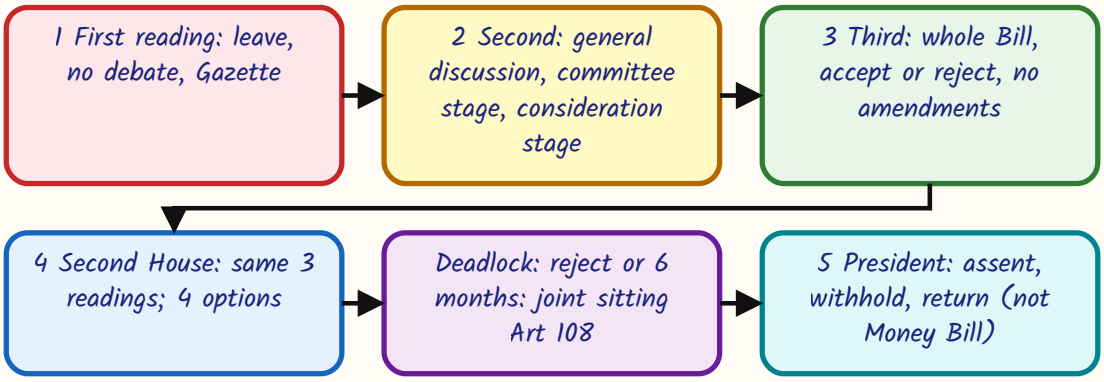
→ non-minister; 1 month notice

→ alternate Fridays in LS; last one passed in 1970s

→ needs bipartisan support

Type	Subject	Introduced	Key
Ordinary	non-financial	either House	both Houses before assent
Money	only tax, expenditure, borrowing, appropriation	only LS, President's recommendation	RS recommends within 14 days; cannot reject/ amend
Financial	other financial	either House	equal powers
👥 Constitution Amendment	amend Constitution	either House	special majority; some need half of State legislatures

📜 Ordinary Bill: from introduction to Act (Art 111)



Second House options: pass, pass with amendments, reject, no action ("Parliament Processes Rightly, Never idle"). President returned Bill passed again: must assent (suspensive veto). Three readings: First = introduction, Second = details (General, Committee, Consideration), Third = whole. 💡

Source conflict: text: President can return except Money Bills; table: except Constitution Amendment Bills. Use: Money Bill cannot be returned; Constitution Amendment Bill: no refusal of assent; ordinary Bill: all three options.

📜 **Money Bill (Art 110)**

→ exclusively finance; exhaustive list: **taxes** (impose, alter, abolish) · **borrowing** · Consolidated and Contingency Funds (custody, payment, withdrawal) · **appropriation** · **charged expenditure** · receipt, custody, **audit** of public money

→ incidental connection still counts; **fines, licence or service fees, local taxes** not Money Bill on that account

→ **Speaker certificate Art 110(3): final**; endorsed on transmission

→ only LS, on President's recommendation (Arts 110, 117)

RS (Art 109)

→ recommend only; return in **14 days**

→ LS accepts or rejects any; rejected = passed in original form

→ no return in 14 days = deemed passed as LS sent

→ **Art 111:** President assents or withholds, **cannot return**

Basis	Ordinary	Money
📜 Provision	Arts 107–111	Art 110
Subject	non-financial	exclusively financial
🏛️ House	either	only LS
👑 President's recommendation	not required	mandatory (table cites 110(3))
Who introduces	minister or private member	only minister
⚡ RS role	equal; delay up to **6 months** (Art 108)	recommendations, 14 days
🏛️ Speaker certificate	no	yes, final (table: Art 110(4))
Deadlock	joint sitting Art 108	none; LS final
RS time	6 months	14 days then deemed passed
Assent	give, withhold, return	give or withhold; no return
Rejection in LS	may lead to resignation	defeat = loss of confidence
Summary	co-equal	LS exclusive financial control

Source conflict: Speaker certificate cited as Art 110(3) (Speaker, Chairman, Money Bill text) and 110(4) (table). Use **110(3)**.

Feature	Financial Bill (I)	Financial Bill (II)
📜 Article	117(1)	117(3)
Content	Art 110 matters + other provisions (hybrid)	expenditure from Consolidated Fund, no Art 110 matter
Introduced	only LS	either House
👑 President's recommendation	before introduction	before consideration/passage
RS	can discuss, amend, reject	as ordinary Bill
Joint sitting	yes (Art 108)	yes

All Money Bills are Financial Bills; not all Financial Bills are Money Bills. FB(I): no tax amendment without President's recommendation. 💡

LRSJ – Lok Sabha only, Rajya Sabha 14 days, Speaker certifies, Joint sitting never: "Lords Return Sealed Judgments"

Shortcut: Money Bill = Art 110 only, LS only, 14 days, no joint sitting. FB(I) = 110 + more, LS only, RS full powers. FB(II) = spends only, either House, recommendation at consideration. ✅

Joint sitting (Art 108)

Deadlock

→ (a) other House rejects
→ (b) final disagreement on amendments
→ (c) no action for 6 months (prorogued/adjourned over 4 days excluded)

→ President summons; passed by majority of present and voting: favours LS

Rules

→ presides: Speaker, then Deputy Speaker, then RS Deputy Chairman; RS Chairman does not
→ LS Rules; quorum 1/10 of both Houses
→ only ordinary and financial Bills; not Money, not Constitution Amendment
→ amendments: only the cause of deadlock or delay
→ after notice neither House proceeds
→ LS dissolved after notice: sitting held; before: Bill lapses

1960
Dowry Prohibition Bill

1977
Banking Service Commission (Repeal) Bill

2002
Prevention of Terrorism Bill (POTA)

DBP – Dowry (1960), Banking Service Commission Repeal (1977), POTA (2002): "Down By POTA". Rare, last resort.

CLASS · Notice, readings, joint sitting, Art 110 clauses

Notice: Govt (public) Bill 7 days, only 1 day if already published in the Gazette; Private Member Bill 1 month. 2nd reading: general and detailed discussion mandatory; select committee, joint committee, circulation for opinion optional.

Joint sitting: class point	Detail
Art 118	each House makes its own rules; for a joint sitting the President, after consulting RS Chairman and Speaker, makes rules (118(4))
RS rejected / 6 months idle	only amendments that necessarily caused the delay
📜 Passed with amendments the first House rejected	those amendments + the disagreed provisions may be amended again
Chairman of RS	never presides; no joint sitting for Constitution Amendment Bills

Class vs handout (joint sitting years): class gives Dowry Prohibition 1961, Banking Service Commission 1978, POTA 2002; handout gives 1960, 1977, 2002 (probably Bill year vs sitting year: verify).

📜 MONEY BILLS: Art 110 (Union) · Art 199 (State Assembly)

→ Clause 1 Criteria: (a) tax changes (b) borrowing (c) Consolidated / Contingency Fund custody (d) appropriation (e) charged expenditure (f) public accounts, audit (g) incidental matters
→ Clause 2 Exclusions: only fines or penalties, licence/service fees, local-body taxes
→ Clause 3 Decider: LS Speaker, final
→ Clause 4 Proof: Speaker's signed certificate when moved

Class vs handout: class reads decider = 110(3), certificate = 110(4); handout cites 110(3) for the certificate (check). Money Bill: only Art 110, only LS, President's recommendation, RS no power.

Financial Bill	Class example
⚡ Class 1 (Art 117(1)): Art 110 matters + more; LS only, President's recommendation; RS ordinary-bill-like power	Central Road Fund Bill (road cess + road works)

💰 Class 2: expenditure from Consolidated Fund; either House; recommendation needed at 2nd reading, not at introduction	Supreme Court (Number of Judges) Act 1956: more judges, higher salary bill

💰 19 · UNION BUDGET, GRANTS AND FUNDS PYQ 2024 PYQ 2020 PYQ 2015 PYQ 2012 PYQ 2011

💰 Budget = Annual Financial Statement (Art 112)

→ FY 1 April to 31 March; word "budget" not in Constitution

→ contents: revenue and capital receipts and expenditure; fiscal proposals; past year review; ways and means

Dual to one

→ until 1924 combined

→ 1924–2017 separate Railway Budget (Acworth Committee 1921)

→ 2016 Bibek Debroy Committee: merge

→ 2017 merged

Debroy arguments

→ Railway share not more than 4%

→ political exercise of sops

→ placate coalition partners

Rule	Article
🏛️ President lays statement before both Houses	112
💰 No demand for grant without President's recommendation	113 (handout also cites 266)
💰 Money from Consolidated Fund only by law	266
💰 Tax Money Bills: LS only, President's recommendation	110, 117
💰 No tax except by law	265
Charged expenditure: discuss, not vote	112(3)
📜 Appropriation Bills	114
💰 Consolidated and Contingency Funds	266–267

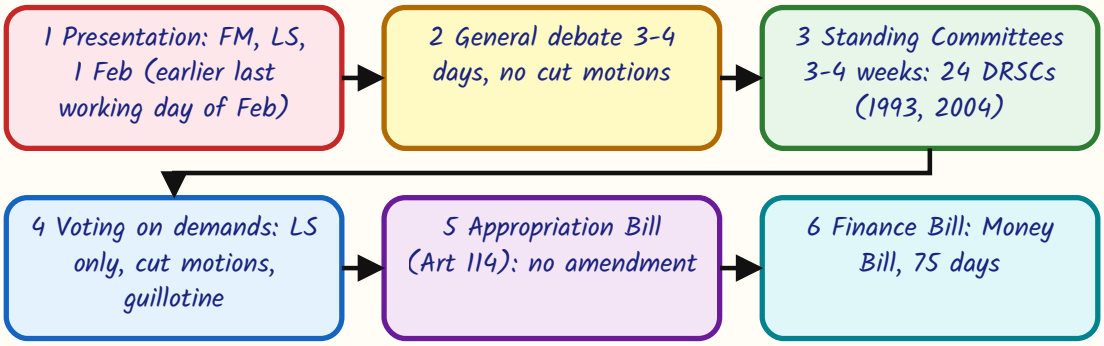
LS alone votes demands; RS recommends in 14 days; Money Bills cannot start in RS; Parliament can reduce or abolish a tax, not increase. Charged: automatic, discussed not voted, protects constitutional bodies and debt. Voted: demands for grants. 💡

No.	Item charged on Consolidated Fund
1	President's emoluments
2	Speaker, Dy Speaker, Chairman, Dy Chairman salaries
3	SC judges pay, allowances, pensions; HC judges' pensions
4	CAG: salary, allowances, pension, office
5	UPSC Chair and members: pay, pensions, admin
6	administration of SC, CAG, UPSC
7	Debt service: interest, sinking fund, redemption (Art 112(3)(c))
8	court judgments, decrees, awards (incl. arbitral) against GoI
9	any item declared by Parliament

Also: VP emoluments, Union and State PSC members (Art 322). Related: Arts 148, 149 (CAG), 52–55, 124, 315. 💡

PSJCUD — President, Speaker and presiding officers, Judges, CAG, UPSC, Debt: "Parliament Shields Judges, CAG, UPSC and Debt" 📌

Six stages of the Budget



RS gets budget, discusses but cannot vote. FM has right of general reply. Finance Bill: amendments to reduce or abolish taxes allowed; passed and assented within 75 days (Provisional Collection of Taxes Act 1931). Vote on account: interim, typically 2 months, about 1/6 of estimates.

PGSVAF – Presentation, General, Scrutiny, Voting, Appropriation, Finance: "Pocket Guards Savings Via Annual Finance" / "Parliament Gets Set, Votes, Authorises, Funds"

Cut motion	Effect
Policy cut	disapproves policy; demand to Re 1
Economy cut	specific reduction or omission
Token cut	airs grievance; reduces by ₹100

Admissible: single demand; no defamation or law amendment; not charged expenditure, trivial, or sub judice; rarely succeed. Documents: Budget Speech, AFS (Art 112), Demands for Grants, Appropriation Bill, Finance Bill, FRBM Act statements (Macro-Economic Framework, Fiscal Policy Strategy, Medium-Term Fiscal Policy), Expenditure and Receipts Budget, Expenditure Profile, Outcome Budget, Budget at a Glance, Memorandum on Finance Bill, Economic Survey (day or two before).

Source conflict: Acworth Committee 1921 vs "until 1924" combined: use Acworth 1921, dual 1924–2017. Charged list shows HC judges' pensions only; use the list.

Special grant	When
Supplementary	Appropriation Act amount insufficient; LS votes
Additional	new service not in budget; LS votes
Excess	spent more than authorised; after FY; PAC examines first
Vote of Credit	unexpected, cannot estimate (disaster, war); blanket
Exceptional	specific purpose outside regular services; one-time
Token	nominal Re 1; new service; reappropriation

Procedure as ordinary budget; RS can recommend not enforce; Arts 112 and 114.

SAEVET – Supplementary, Additional, Excess, Vote of credit, Exceptional, Token: "Students Always Expect Very Easy Tests"

Fund	Art	Purpose, operation, control	Examples
Consolidated Fund of India	Art 266(1)	all revenues (tax, non-tax), loans (T-bills, market loans, ways and means), repayments; spending only with appropriation; high control	ministers' salaries, defence, subsidies
Public Account of India	266(2)	money in trust (PF, judicial and departmental deposits, savings bank); executive operates without appropriation; low control	PF, judicial deposits, remittances

💰 Contingency Fund of India	Art 267(1) (Parliament may set up)	urgent unforeseen; Contingency Fund of India Act 1950; President's disposal, Finance Secretary custodian; regularised afterwards	disaster relief, emergency defence

CPC — Consolidated 266(1), Public Account 266(2), Contingency 267: "Cash Parked, Cash Called"

Control ladder: CFI = Parliament approves first. Contingency = executive spends, Parliament approves after. Public Account = executive operates, Parliament informed. ✅

💰 CLASS · Funds and charged expenditure: extras

	Union	State
💰 Contingency Fund	created by Parliament; Finance Secretary holds for the President (Act 1950)	created by State Legislature; Governor operates
Use	urgent unforeseen events: disasters, wars; advance before approval	unforeseen State crisis
Refill	ex-post-facto approval, then recoupment from Consolidated Fund (Art 266)	same

Public Account: govt acts as a banker (small savings, PF, deposits); repaid to citizens; moved by executive action, no vote. Consolidated Fund: every withdrawal needs prior legal approval (Appropriation Act). 💡

Charged expenditure: extra example CVC Act 2003 (CVC + 2 VCs). Three reasons: preserve independence of posts; preserve fiscal credibility; (third reason unreadable in class note). Charged = not votable, automatic withdrawal; proposed = votable, needs Appropriation Bill. ⭐

The Budget	Branch
💡 By purpose	Revenue Budget (running costs) · Capital Budget (asset building)
By approval	Charged (non-votable, guaranteed) · Proposed (votable, demands for grants)

💰 CLASS · Financial year and railway budget

Fact	Class note
Indian FY	1 Apr to 31 Mar: 3/4 in one calendar year, 1/4 in the next
🌐 World	~150 countries use calendar year; USA 1 Oct to 30 Sep
🏛️ History	annual budgets from 1860; FY began 1 May till 1866; 1 April from 1867-68
Why April FY is poor (ARC-1)	kharif output unknown; capital works cannot start after May-June (monsoon)
🔧 Reform	2016 Shankar Acharya committee: calendar year (not adopted); ARC: FY from November
💰 Railway budget	until 1924 combined, separated on Acworth Committee; 1924-2017 presented 3-4 days earlier (railways = commercial, revenue-earning); Bibek Debroy 2016: merge

💰 CLASS · Budget stages, cuts, closures

Stages Arts 112-117, 6 or more. General discussion = "hangover of the past": British-era chambers could only discuss; today whole budget is voted in LS except charged items (discussed only). Committee stage: ministry budgets to departmental committees ~1 month, House not sitting; 24 committees, 31 members (10 RS + 21 LS) (class note partly unclear). 💡

Cut motion	Class example
Economy	demand far above actual need
Token	grievance on record: no leprosy provision in Health Ministry, Rs 100 cut
Policy	amounts to no-confidence; if passed demand cut to Re 1

Guillotine: ~26 days to discuss; Speaker cuts debate at the set time and all remaining demands are voted undiscussed (device from the French Revolution): accountability suffers. A demand once passed becomes a grant.

Closure	Class note
Simple	sufficiently discussed: most democratic
Kangaroo	only important clauses discussed
Compartments	similar sections grouped
Guillotine	all, even undiscussed, put to vote: most undemocratic; used in Budget

USA filibuster: unlimited debate (Senate).

CLASS · Appropriation, Finance Bill, special grants

Appropriation and Finance Bills

→ Appropriation Bill: all grants + charged items = total outlay; LS accepts or rejects, cannot amend; becomes Act; legal authority to withdraw from CFI

→ Finance Bill: tax proposals; becomes Finance Act; the two Acts = financial law for the year

→ Parliament cannot raise a tax on its own: executive proposes (direct: income tax; indirect: GST, customs), Parliament approves

→ indirect-tax change on 1 Feb applies from midnight so dealers cannot pocket stock profit

→ Provisional Collection of Taxes Act 1931 (class adds "renewed 2023", verify): collect at new rate for 75 days; refund if Parliament does not approve

Grant	Class addition
Vote on Account	after limited discussion; ~1/6 of outlay, 2 months; govt not "penniless" (typically by May)
Vote of Credit	"blank cheque" for unforeseen demands (e.g. war); approval after spending
Excess	end of FY; PAC approves, LS votes; frequent excess = weak financial control
Exceptional	one-off: e.g. hosting foreign dignitaries after a major leader's death
Token	authorises re-appropriation beyond executive competence

CLASS · Budget sectors and six-tier accounts

Budget: 4 sectors

→ General services (defence, fiscal)
→ Social/community (health, education)
→ Economic (industry, transport)
→ Grants-in-aid and others

Tier	Head	Example
1	Major head = function	Education
2	Sub-major = sub-function	Primary education
3	Minor = programme	Govt primary school
4	Sub head = scheme	scheme
5	Detailed sub head = sub-scheme	Salary and allowances
6	Object head = object of spending	TA, DA

Re-appropriation: shifting money from a head with surplus to one with deficit. Higher tier: Parliament approval through a token demand of Re 1; lower tier: executive via Finance Ministry. Class example: Rs 100 cr = A 50 + B 50; B = C 30 + D 20; D = E 10 + F 5 + G 5.

FRBM Act 2003: class lists 4 statements with the budget: Medium-term Fiscal Policy, Medium-term Expenditure Framework (extra), Fiscal Policy Strategy, Macro-economic Framework. Handout lists three.

⚡ 20 · ROLE OF PARLIAMENT: LAWMAKING AND CONTROL PYQ

PYQ 2016 PYQ 2013

⚡ Legislative authority

→ Union List: exclusive, 98 subjects (handout), Seventh Schedule, Art 246(1)
→ Concurrent: 52; Parliament prevails (Art 254)
→ State: 59; Parliament only in special situations
→ Residuary: in no list

Parliament on State List	Article
🏛️ Rajya Sabha resolution	249
National Emergency	250
🗺️ Two or more States request	252
🌐 International treaties	253
👑 President's Rule	356

RESTP – Rajya Sabha (249), Emergency (250), States' request (252), Treaties (253), President's Rule (356): "Rush Every State To Parliament"

📜 Other lawmaking

→ Ordinance (Art 123): approved within 6 weeks of reassembly, else lapses
→ Delegated legislation: Parliament frames, executive details, Parliament scrutinises

👑 Control over executive (Arts 75, 77)

→ tools: QH, Zero Hour, Half-an-Hour, Short Duration, Calling Attention, Adjournment, Censure, No-Confidence
→ Collective responsibility (Art 75(3)): no-confidence = whole council resigns
→ Individual: each minister for ministry
→ Parliament decides who governs; confidence lost = resign; electorate decides

Five ways LS shows lack of confidence

→ Motion of Thanks not passed
→ Money Bill rejected
→ Censure motion
→ Adjournment motion
→ Cut motion (+ formal no-confidence)

MRCAC – "Ministers Risk Censure, Adjournments, Cuts"

⚡ CLASS · Functions, control means, inadequacies

Extra functions (class): national unity (microcosm), link people–govt, quasi-judicial, electoral, organ of information (RTI Act gives citizens authentic information). Control means: QH, Zero Hour, President's speech, debates, budget, committees, privileges. 💡

🆕 10 inadequacies of control (* = new in class)

→ *technical govt, layman Parliament
→ *committee problems
→ delegated legislation
→ *falling debate quality
→ *QH: absenteeism, cash-for-query, disruption
→ *few sittings
→ *fragmented opposition
→ *majority and leadership shifted to executive (creation dominates creator)

→ ordinances
→ guillotine

21 · FINANCIAL, CONSTITUENT, JUDICIAL, ELECTORAL POWERS

PYQ 2008 PYQ 2013

Financial

→ Art 265 no tax without law; Art 266, 266(3) no spending without approval; Art 112; handout cites Arts 110, 112, 113, 266, 279

- **Pre-expenditure** → budget, Appropriation and Finance Bill, demands scrutiny, cut motions
- **Post-expenditure** → PAC (accounts, compliance), Estimates Committee (economy, efficiency), COPU (PSUs)

→ Annual grant: unspent funds lapse (Rule of Lapse); March Rush

Constituent (Art 368)

→ only Parliament initiates; States cannot (except Art 169: Council creation/abolition request)

Modes

→ Simple majority: ordinary and technical provisions
→ Special majority: total membership majority + 2/3 present and voting
→ Special + States: plus at least half of State legislatures (federal features: Union–State powers, State representation, boundaries)

→ Limits: Basic Structure (Kesavananda 1973); Minerva Mills v. Union of India (1980)

Judicial function	Article	Process
Impeach President	61	violation of Constitution; either House; notice by 1/4 of initiating House; 2/3 of total of both Houses
Remove VP	67 read with 66	initiated in RS; resolution (see alert)
Judges SC/HC	124(4), 124(5), 217(1)	proved misbehaviour or incapacity; both Houses, 2/3 present and voting
CEC, ECs	324	recommend removal
CAG	148	recommend removal
Protect privileges	105	censure, fines, imprisonment

Source conflict: VP removal here "majority of total membership of both Houses"; Chairman section: effective majority in RS + LS agrees (Art 67(b)); Lakshmikanth: RS effective, LS simple. Use RS effective + LS simple. Judges: special majority = both (total majority and 2/3 present and voting).

Electoral role	Detail
President (Arts 54–55)	elected members of both Houses + elected MLAs of States and UTs (handout); STV
VP (Arts 66–67)	members of both Houses only; STV
Own officers	LS: Speaker, Deputy (Art 93); RS: Deputy Chairman (Art 89)
Election laws (Art 324)	President, VP, both Houses, State legislatures

Key election laws

→ Presidential and VP Election Act 1952
→ RPA 1950: rolls, qualifications, disqualifications
→ RPA 1951: conduct, offences, disputes

PRR – P&VP 1952, RPA 1950 (rolls), RPA 1951 (conduct): "People Read Rolls"

Other power	Provision	Content
Apex deliberation	Art 79	highest national forum
Emergencies	Arts 352, 356, 360	National, State, Financial: Parliament approves or revokes
🏛️ Councils	Art 169	Assembly resolution; Parliament enacts
🗺️ State boundaries, names	Art 3	Bill after consulting State Legislature (view not binding)
Higher judiciary	Arts 124, 214, 225, 231	organisation, jurisdiction; common HC

LEFCJEM – Legislative, Executive control, Financial, Constituent, Judicial, Electoral, Miscellaneous (seven functions): "Law-makers Examine Funds, Change the Constitution, Judge, Elect, Manage emergencies"

CAG (Art 148): Parliament recommends removal to safeguard audit independence. 💡

⚡ 22 · RAJYA SABHA: PARITY, INFERIORITY, SPECIAL POWERS PYQ

2012 PYQ 2016 PYQ 2020 PYQ 2022

Zone	Powers
🛡️ Equal	ordinary laws and Constitution Amendment (Art 368); President election and impeachment (Arts 52–61); VP election and removal (removal initiated only in RS, Art 67); removal of SC/HC judges, CEC, CAG (Arts 124, 217, 148, 324); ordinances (Art 123) and emergencies (Arts 352, 356, 360); Finance Commission, UPSC, CAG reports; expand SC and UPSC jurisdiction; PM and ministers from either House
Inferior	Money Bill only LS (Art 110); RS recommends, LS decides in 14 days (handout 110(3)); budget: discuss, not vote (Arts 112–114); no-confidence only LS (Art 75(3)); Council responsible only to LS; joint sitting LS numbers prevail
Special	Art 249: 2/3 resolution, State List; Art 312: All-India Services; initiate VP removal (Art 67); emergency approval when LS dissolved (Arts 352, 356, 360)

SAVE – State List law (249), All-India Services (312), VP removal initiation (67), Emergency approval when LS dissolved (own mnemonic). Handout: "States Always Voice Exclusively".

Shortcut: equal in ordinary law, amendments, impeachment, ordinances; inferior in money and confidence; unique in Art 249, Art 312, VP removal. ✅

💡 CLASS · LS and RS special features; second chamber; RS critique

LS special

→ Council responsible to LS (Art 75(3))
→ Money Bills
→ joint sitting: Speaker presides, numbers favour LS
→ predominates in joint committees
→ can revoke National Emergency (Art 352, class)

RS special

→ no dissolution; 1/3 retire every 2 years
→ RPA 1951: Sec 154 (RS) and Sec 156 (Council) fix 6-year term
→ continuity: composition does not change overnight

Why a second chamber

→ tradition (House of Lords)
→ federalism (RS, US Senate)
→ review: calm, stops hurried law
→ functional representation: LS territorial; RS class/occupation; 12 nominated experts
→ groups otherwise unrepresented

Utility: senior statesmen; "House of Correction" vs LS "House of Passions"; guards Constitution from being a plaything of ruling party; Council of States in union decisions; intellectuals.

Critique of RS

→ not as weak as Lords, not as strong as US Senate
→ non-federal: domicile rule removed 2003; nominees; weak money powers; unequal state seats; UTs represented
→ party representation replaced states' voice
→ revisory role: only 3 deadlocks in 75 years
→ "pale shadow of LS"; Hamid Ansari: "Federation of Anarchists" (as noted)
→ could not stop 42nd Am ("mini Constitution")
→ ordinary Bills passed as Money Bills bypass RS

23 · PARLIAMENTARY PRIVILEGES PYQ 2022 PYQ 1997

Privileges: rights of Houses, committees, members; extend to Attorney General, Union Ministers (Art 105); not the President.

Collective

→ publication: 44th Am 1978 press may report true proceedings (not secret sittings)
→ exclude strangers, secret sessions
→ own procedure rules
→ punish breach: reprimand, admonition, imprisonment, suspension, expulsion
→ immediate information of arrest, detention, conviction
→ summon witnesses and papers; inquiries
→ Art 122 courts cannot question proceedings
→ no arrest or legal process in precincts without presiding officer's permission

Individual

→ civil arrest immunity: session + 40 days before and after; not criminal or preventive detention
→ free speech in House and committees (Art 105)
→ no court proceedings for statements
→ exempt from jury service
→ may refuse to appear as witness in sessions

ASJ – Arrest (civil, 40 days), Speech (Art 105), Jury exemption: "All Speak Justly"

Breach vs contempt

→ Breach: violation of a specific right or immunity; punishable by House (Art 105); may be contempt
→ Contempt of House: broader; any act or omission obstructing or lowering House (e.g. disobeying lawful order)

Six sources

→ 1 Constitution: Art 105(1) speech, publish; others like House of Commons on 26 Jan 1950

→ 2 44th Am (1978): reference to privileges as on 20 June 1979 until defined
→ 3 Statutes: no exhaustive law yet
→ 4 Rules of Procedure
→ 5 Conventions
→ 6 Judicial interpretations

CASRCJ – Constitution, Amendment (44th), Statutes, Rules, Conventions, Judgments: "Courts Allow Some Rights, Carefully Judged"

Source note: 44th Am dated 1978 (Act) but privilege reference date is 20 June 1979: both as handout writes; do not mix. Shortcut: 40 days before and after session (civil arrest only).

🏛️ 24 · LIMITS ON PARLIAMENT: SOVEREIGNTY AND WEAK OVERSIGHT

🏛️ Britain: parliamentary sovereignty

→ supreme legal authority; any law
→ A.V. Dicey: (1) unlimited power (De Lolme: everything but change sex) (2) no distinction ordinary vs constitutional law (3) no judicial review

Limit	India	Britain
👥 1 Written Constitution	codified; legislative and constituent powers distinct; some amendments need half of States (Art 368)	unwritten
👥 2 Federal structure	Arts 245–255; Arts 246–254; State List only exceptions (249, 250, 252, 253, 356)	unitary
3 Judicial oversight	review (Art 13); SC, HCs	courts cannot question Acts
💰 4 Fundamental rights	Part III (Arts 12–35); Art 13(2) void	no codified charter

Indian Parliament is closer to US Congress: written Constitution, federal division, judicial review, Bill of Rights. Basic structure also limits amendments. ✅

WFJF – Written Constitution, Federalism, Judicial review, Fundamental rights: "We Face Judges' Firmness"

Why oversight is weak

→ size and complexity; technical budget documents; members lack finance expertise (Arts 112, 266)
→ executive dominance: majority, agenda; Parliament ratifies
→ post facto control (PAC, Estimates, COPU); guillotine
→ delegated legislation
→ ordinances (Art 123)
→ political: majority, weak opposition, symbolic oversight, falling decorum
→ reforms: committees, financial scrutiny, opposition role

SEPDGO – Size, Executive dominance, Post-facto, Delegated legislation, Guillotine, Opposition weakness: "Silent Executives Pass Dull Guillotined Opposition"

MPs' pay debate: 24% hike (March 2025, first under Cost Inflation Index formula) revived debate: accountability, attendance, productivity vs competitive pay to attract talent. 💡

1803 Marbury v. Madison	**1919** GoI Act: Central Leg. Assembly offices	**1925** V.J. Patel Speaker	**1935** Speaker titles
1947 Schlesinger: activism	**1950** Gopalan; privileges	**1951** 1st Am: 9th Sch.	**1952** RS, Mavalankar, Delimitation
1953 Short Duration Disc.	**1954** Calling attention	**1957–58** Balwantrai Mehta; 14th Law Commission	**1960** Joint sitting Dowry
1962 Zero Hour	**1967** Golaknath	**1969** LoP recognised	**1973** Kesavananda; CrPC
1975–77 Emergency: activism	**1976** 42nd Am: 323-A/B; freeze	**1977** Joint sitting; LoP Act; transfers	**1978** 44th Am; Maneka
1979 Hussainara	**1981** Waman Rao	**1984** Family Courts; Bandhua	**1985** AT Act; 52nd Am
1987 LSA Act; Sampath Kumar	**1988** 61st Am: 18	**1992** Kihoto Hollohan	**1993** Second Judges; DRSC
1997 Chandra Kumar; Vishaka		**1998** Third Judges	
2001 84th Am: freeze to 2026	**2002** Joint sitting POTA; PLAs	**2003** RPA; 91st Am	**2006** SC upholds; Kuldip Nayar
2007 Coelho; Aravali	**2008** Gram Nyayalayas Act	**2013** Lily Thomas	**2015** National Lok Adalats
2017 Railway Budget merged	**2018** CII pay; Navtej	**2019** CPA 2019	**2020** 104th Am
2021 Tribunals Reforms Act	**2023** 106th Am	**2025** 24% pay hike	

🏛️ CLASS · Sovereignty vs supremacy; problems of Parliament

Teacher's line: India practises parliamentary supremacy, not parliamentary sovereignty. ⭐ Sovereignty = uncontrolled law-making, courts cannot strike laws; UK: no constitutional/ordinary distinction, yet a "myth" given conventions and public opinion. India adds a 5th limit: Basic Structure (Art 13(2) is the 4th).

Sitting days	Class data
1950s	127 days
👫 last 10 years	67 days
🔧 Recommended	120 LS, 100 RS

Calendar: UK/USA have a pre-set, pre-announced calendar; India's ruling party controls timing. Suggestion: Parliament convened on written notice of a set % of MPs (class figure unclear, 30%?). 💡

Disruption

→ Nehru era: tolerance for debate; later brute majorities
→ methods: storming the well, slogans, walkouts

→ 15th LS: most disrupted, 40% time wasted, 179 Bills
→ opposition complains: no role in House agenda or rules (Rules 184, 193)

Instability and fixes

→ stable to 1989; unstable 1989–99 (5 elections: 1989, 91, 96, 98, 99)
→ 1999–2014 NDA vs UPA bipolar; 2014 single-party majority
→ fix 1: Rule 198 change, no-confidence once a year
→ fix 2: constructive no-confidence (Germany, Art 67 Basic Law): replacement must be agreed first

🏛️ CLASS · Expenses on Parliament

💰 Salaries: Arts 106 and 195

→ Art 106: Parliament fixes by law; till then Constituent Assembly rates
→ Art 195: State legislatures fix; till then Provincial Assembly rates
→ Salary, Allowances and Pension of MPs Act 1954; Joint Committee (10 LS + 5 RS)
→ 2018: revision every 5 years by Cost Inflation Index

2025 (class)	Old	New
💰 Constituency allowance	70K	87,000
💰 Office allowance	60K	75,000
💰 Daily allowance	2K	2,500
Pension (after 5 yrs)	25K	31K; plus 2.5K per extra year (was 2K)

Country	Parliament cost (class)
India	Rs 1,000–1,500 cr a year
Japan	USD 1.71 bn
USA	USD 5–12 bn; Senate salary USD 174,000
UK	IPSA recommends pay and allowances

LARRDIS (Library, Reference, Research, Documentation and Information Service): helps MPs; 231 staffers. Basic salary Rs 1.24 lakh/month. 💡

Recall drill: cover and answer

Judicial review: first case, and Indian base Article?	Marbury v. Madison (1803); Art 13, with 32 and 226	Ninth Schedule: Article, Act, cut-off date, key cases?	Art 31B, 1st Am 1951; 24 April 1973; Kesavananda 1973, Waman Rao 1981, Coelho 2007 (no blanket immunity)
HC judge: age, removal motion, majority?	62; 100 LS or 50 RS members; total majority + 2/3 present and voting; Judges (Inquiry) Act 1968	Arts 223, 224(1), 224(2), 224A?	Acting CJ; Additional (up to 2 years); Acting judge; Retired judge
Chandra Kumar 1997 held?	Seven judges; judicial review of tribunals is basic structure; HC first (Arts 226/227)	Lok Adalat: Act, award, PLA sections and limit?	LSA Act 1987, Sec 19; decree, no appeal; Secs 22A–22E; up to ₹1 crore
Consumer Commission value limits?	District up to ₹50 lakh; State to ₹2 crore; National above	RS and LS strengths, ages?	RS max 250, now 245 (229+4+12), age 30; LS max 552, now 543 (530+13), age 25
Quorum; vacate days?	1/10 = 55 LS, 25 RS; 10 days, 14 days, 60 days	Money Bill: Article, RS time, who certifies?	Art 110; 14 days; Speaker (110(3)), final; no joint sitting, no return by President
Joint sitting: Article, who presides, excluded Bills, examples?	Art 108; Speaker; Money and Constitution Amendment; 1960 Dowry, 1977 Banking, 2002 POTA	RS special powers?	Art 249 (2/3), Art 312, VP removal initiation, emergency approval when LS dissolved
Budget: stages, Finance Bill limit, vote on account?	Six stages; 75 days; 2 months, about 1/6	Three funds and Articles?	Consolidated 266(1), Public Account 266(2), Contingency 267
Privilege: civil arrest window; source dates?	40 days before and after; 44th Am 1978; 20 June 1979	HC strength vs SC strength: who changes it?	HC: executive order of GoI (class); SC: only Parliament by law
Speaker removal motions so far?	Mavalankar 1954, Hukam Singh 1966, Balram Jakhar 1987, Om Birla 2026 (class); all defeated	CCPA powers and appeal?	Recall goods, recall misleading ads, class action, investigations; appeal to NCDRC
Consumer complaint: limitation, jail, disposal time?	2 years; 1 month to 3 years; 3 months (no testing) / 5 months (testing)	Adjournment motion: rule, supporters, minimum debate?	Rule 56; 50 LS MPs; 2.5 hours; LS only
First no-confidence motion, and how many succeeded?	1963 Kripalani vs Nehru; 27 so far, none succeeded	Recognised party vs group (Act 1998)?	Party: 55 LS / 25 RS; group: 30–54 LS / 15–24 RS
Ashish Shelar case 2022 held?	One-year suspension of 12 BJP MLAs unconstitutional; limit = rest of session		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

RS = Rajya Sabha — Council of States; the upper House of Parliament

HC = High Court — State-level constitutional court (Art 214)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

CJI = Chief Justice of India — Head of the Supreme Court

RPA = Representation of the People Act — Laws on conduct of elections and disqualification (1950 and 1951)

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

PM = Prime Minister — Head of the Union government

UT = Union Territory — Area administered directly by the Union government

ST = Scheduled Tribes — Tribal groups listed under Art 342

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

PIL = Public Interest Litigation — Court case filed for the benefit of the public

NALSA = National Legal Services Authority — Statutory body providing free legal aid

CCPA = Central Consumer Protection Authority — Regulator under the Consumer Protection Act, 2019

UPSC = Union Public Service Commission — Constitutional body (Art 315) that recruits for the Union services

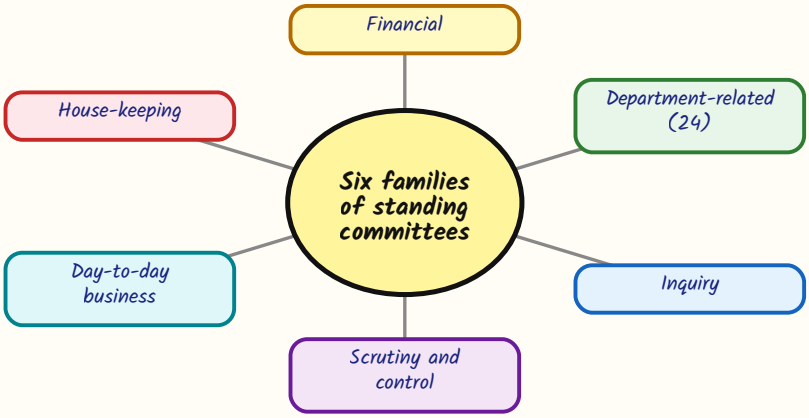
IPC = Indian Penal Code, 1860 — Old criminal code, replaced by the BNS

PARLIAMENTARY COMMITTEES

PYQ Prelims 2018, 2017, 2014, 2013 · Mains 2017, 2018, 2021, 2023

✎ *Small committees do the detailed work Parliament cannot do on the floor: money (PAC, Estimates, COPU), ministries (24 DRSCs), inquiry, scrutiny, business, housekeeping; know every size, chair and year.*

At a glance



Handout stresses

→ exact member counts, chairmen, founding years
→ PAC vs Estimates vs COPU
→ DRSC 24 = 16 LS + 8 RS, 31 = 21 + 10, 1 year, 1993
→ forums vs committees (4 differences). PYQs: 2013 PAC 22 (15+7), not 25 LS; scrutinises Appropriation and Finance Accounts, CAG report
→ 2014 largest = Estimates (30) (beats PAC and COPU 22, Petitions 15)
→ 2018 delegated rules = Subordinate Legislation
→ 2017 collective responsibility. Mains: PAC and accountability (2017), usefulness and Estimates (2018), DRSCs (2021), committee system (2023).

1 · WHY COMMITTEES AND WHAT MAKES ONE

Position

→ Constitution mentions committees but fixes no composition, tenure, functions
→ Art 118: Rules of Houses decide; Houses regulate internal functioning
→ detailed scrutiny, evidence, clause-by-clause study, reports

Four tests of a parliamentary committee

→ (a) appointed or elected by House, or nominated by Speaker/Chairman
→ (b) works under Speaker/Chairman
→ (c) reports to House or Speaker/Chairman
→ (d) secretariat from LS or RS

AFRS – Appointed, Functions under Speaker, Reports, Secretariat: "Always Follow Rules, Sir"

CLASS · Origin and appointment of committees

Committees began → Montford reforms, GoI Act 1919

Five sources

- → Rules of the House (PAC, Estimates)
- → Art 344: Official Language Commission, Joint, 30 = 20 LS + 10 RS, PR + STV
- → Law: Salaries and Allowances of MPs Act 1954, Joint, 10 LS + 5 RS
- → Motion or resolution: usually ad hoc
- → Inherent power of the presiding officer: temporary committees; a joint one by communication between the two presiding officers

Appointment	Which committees
Election (PR + STV)	Estimates, PAC, COPU, Welfare of SCs/STs, Official Language
Nomination	by presiding officer after consulting Leader of the House and Leader of Opposition
Motion	ad hoc committee; names sometimes already in the motion

Quorum of a committee = 1/3 of its total members. ⭐

2 · CLASSIFICATION

Standing

- → permanent or recurrent
- → constituted often yearly
- → continuing

Ad hoc

- → temporary, one purpose
- → cease when task done
- → two kinds: Inquiry, Advisory

Family	Concern	Committees
Financial	financial scrutiny	PAC; Estimates; COPU
Department-related	ministry-wise (24)	DRSCs
Inquiry	petitions, privilege, ethics	Petitions; Privileges; Ethics
Scrutiny and control	assurances, subordinate legislation, social	Govt Assurances; Subordinate Legislation; Papers Laid; SC/ST Welfare; Empowerment of Women; Joint Cttee Offices of Profit
Day-to-day business	timetable, procedure	BAC; Private Members' Bills and Resolutions; Rules; Absence of Members
House-keeping	facilities	General Purposes; House; Library; Joint Cttee Salaries and Allowances of MPs

FDISBH – Financial, Department-related, Inquiry, Scrutiny, Business, House-keeping: "Fat Dogs In Slow Buses Honk" / "Fiscal Duty Includes Strict Business Housekeeping"

GOSPEL – Scrutiny and control: Government Assurances, Offices of Profit, SC/ST welfare, Papers Laid, Empowerment of Women, Legislation (Subordinate) (own mnemonic)

3 · AD HOC COMMITTEES

🏛️ 1 Inquiry: motion in House(s) or by Speaker/ Chairman; public or administrative concern

- → Railway Convention Committee (Railways and general revenues)
- → Committee on MPLADS
- → Joint Cttee on Security in Parliament Complex
- → Provision of Computers to Members and Political Parties
- → Food Management in Parliament House Complex
- → Installation of Portraits/Statues of National Leaders
- → Joint Cttee on Maintenance of Heritage Character of Parliament House Complex
- → Violation of Protocol Norms and Contemptuous Behaviour of Govt Officers with Members
- → Welfare of Other Backward Classes
- → Inquire into Improper Conduct of a Member

2 Advisory: Select and Joint Committees on Bills (legislative only)

- → Bill introduced and discussed
- → motion adopted: Select (one House) or Joint (both; other House nominates)
- → clause-by-clause; amendments; expert evidence
- → report; minutes of dissent

IA — Inquiry (public/administrative concern) and Advisory (Bills only): "I Ask, Advise"

🎯 CLASS · JPC examples (corruption and scams)

Year	Joint Parliamentary Committee on
1987	Bofors scandal
1992	Harshad Mehta scam
2001	Ketan Parekh scam
2004	Pesticides in colas (after Centre for Science and Environment report)
2011	2G scam
2013	AgustaWestland helicopter purchase (year as written)

4 · PUBLIC ACCOUNTS COMMITTEE PYQ 2013

PAC	Detail
🧑‍🤝‍🧑 First	1921, GoI Act 1919
👥 Members	22 = 15 LS + 7 RS
🗳️ Election	yearly, PR by STV; all parties
👑 Ministers	cannot be members
Chairman	Speaker appoints from LS; since 1967 by convention Opposition (before 1966-67 ruling party)

Core job

- → CAG audit reports (President lays, Art 151); CAG three reports: Appropriation Accounts, Finance Accounts, Public Undertakings
- → spending matches grants; authorised purposes; re-appropriation rules; corporations and autonomous bodies; receipts and stores; excess expenditure
- → CAG = "guide, friend and philosopher"
- → checks economy, prudence, propriety: waste, loss, corruption, extravagance, nugatory expenses
- → not executive: only Parliament decides on findings

ASSURE — Appropriation and Finance Accounts, State corporations, Stores and receipts, Use of funds, Re-appropriation, Excess (own mnemonic)

Limits

- → post-expenditure, no policy
- → no day-to-day administration
- → advisory; cannot disallow or order

→ Ashok Chanda: "powerful force in the control of public expenditure"

COS – CAG friend, Opposition chair since 1967, STV 22 (15+7): "Cats Often Sleep"

⚡ CLASS · PAC: powers, merits, weakness

PAC extras

→ first headed by the Finance Minister; ministers barred after reconstitution; Opposition chair since 1967, British convention

→ if RS does not send its 7, PAC still functions (treated as an LS committee)

→ Powers: scrutinise CAG report, rule compliance, excess demands, authority for expenditure; enforce production of documents and records; question civil servants

Merits

→ deterrent on financial misconduct

→ reports shape public opinion

→ Action Taken Report (ATR) shows govt view

→ about 3/4 of recommendations accepted since independence

⚠ Weaknesses

→ deterrent feeble (scams)

→ only a post-mortem

→ huge gap between scam and scrutiny: thousands of CAG audit paras, overburdened 22-member PAC

5 · ESTIMATES COMMITTEE PYQ 2014

Estimates	Detail
🏛 Origin	Standing Financial Committee 1921; constituted 1950 on Finance Minister John Mathai
👥 Members	25 initially (raised to 30 in 1956), now 30, all LS
🗳 Election	yearly, STV
👑 Ministers	barred
Chairman	Speaker appoints; usually ruling party

⚡ Functions

→ economies, efficiency

→ alternative policies

→ money well spent within policy

→ reforms in presentation of estimates

→ "continuous economy committee"; need not examine all estimates; Parliament need not wait for its report to vote demands

Limits

→ after Parliament votes

→ no question on policy

→ advisory

→ few ministries a year

→ no CAG help

→ post-mortem

Memory line: PAC chair = Opposition (since 1967); Estimates chair = ruling party; Estimates = LS only. ✅

CLASS · Estimates Committee: extras

Estimates

→ also called twin sister of PAC, continuous economy committee, standing committee on administrative reports
→ reviews 5–6 ministries a year; analyses expenditure trends; proposes administrative and efficiency reforms
→ no question on policy unless wasteful: then suggests alternative policy
→ govt acceptance about 97%

6 · COMMITTEE ON PUBLIC UNDERTAKINGS (COPU)

COPU	Detail
Founded	1964, Krishna Menon Committee
👥 Strength	15 (10 LS + 5 RS); 1974: 22 (15 + 7)
🗳️ Election	yearly, STV
⏳ Term	1 year
👑 Ministers	ineligible
Chairman	Speaker appoints from members

⚡ Functions

→ reports and accounts of specified PSUs; CAG reports (Art 151)
→ sound commercial principles
→ tasks Speaker allots (like PAC, Estimates)

Outside remit

→ major govt policy
→ day-to-day administration
→ matters under special statutory machinery

Constraints

→ only 10–12 undertakings a year
→ post-facto
→ members not experts
→ advisory

Point	PAC	Estimates	COPU
Founded	1921	1950 (roots 1921)	1964
👥 Strength	22 (15+7)	30, all LS	22 (15+7), 15 in 1974
Chairman	Opposition since 1967	usually ruling party	Speaker appoints
Focus	CAG reports, past spending	economy, efficiency	PSUs
CAG help	yes	no	CAG reports, no help stated

PEC – PAC, Estimates, COPU: "Please Economise Carefully"; founding order 1921, 1950, 1964: "Pennies Examined Carefully". 22–22–30: only Estimates LS only; all: no ministers, yearly STV, advisory.

⚠️ CLASS · COPU: report types and weakness

COPU

→ last of the three financial committees (1964); annually elected; PR + STV; written as a committee of the House of the People

Two report types

→ Vertical: through a report on one PSU
→ Horizontal: a specific issue across the whole public sector

→ tests whether PSUs followed sound business and commercial principles
→ Weakness: each PSU gets its turn only after 7–8 years; cannot probe all thoroughly

7 · DEPARTMENT-RELATED STANDING COMMITTEES PYQ 2021 PYQ 2023

DRSC

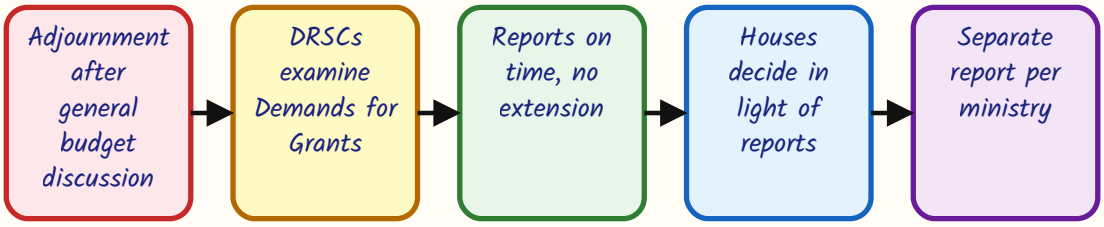
→ 1993 on LS Rules Committee recommendation; 2004 expanded to 24; "miniature Parliaments"
→ inaugurated 31 March 1993 by VP K.R. Narayanan; 1989 experiments: Agriculture, S&T, Environment and Forests
→ 24 = 16 LS + 8 RS; 17 set up 1993 + 7 in 2004
→ 31 members = 21 LS (Speaker nominates) + 10 RS (Chairman nominates); 13th LS: 45 (30+15), cut July 2004
→ ministers cannot be members; 1 year; basis Art 118

Function	Example
Demands for Grants	Standing Committee on Finance: GST Act review (2016)
Bills	Select Committee on Surrogacy Bill (2019), note: Select, ad hoc, not a DRSC
Annual reports, policy	Health: COVID-19 vaccine strategy
Stakeholders	National Medical Commission Bill
Continuous oversight	Rural Development: PMGSY

Limits

→ no day-to-day administration
→ avoid subjects before other committees
→ advisory
→ DRSC reports on grants: no cut-motion-like suggestions

Demands for Grants procedure (ACRHSA: "A Careful Review Helps Spending")



Bills: only introduced Bills; principles and provisions; report within fixed time.
Advantages: non-partisan; flexible; continuous oversight; financial discipline; wider participation; experts; stronger Opposition and RS. **Lakshmikanth:** ministries largely accept recommendations; four yardsticks (accountability, publication, effect on House and public, influence on govt).

Source conflict: Consultative section says DRSCs began with 45 members in 13th LS, cut to 31 in July 2004; DRSC section says set up 1993, expanded 2004 to 24. Use 24 committees, 31 members (21+10).

Current affairs · Aug 2026 **Standing committee reports:** DRSCs tabled reports on ADR, tribunals (Personnel, Public Grievances, Law and Justice) and cyber crime (Home Affairs).

RS DRSC (all 8)	Ministries
Commerce	Commerce and Industry
Home Affairs	Home Affairs; Development of North-Eastern Region
Education, Women, Children, Youth and Sports	Education; Youth Affairs and Sports; Women and Child Development
Industry	Heavy Industries; MSME

🧑‍🤝‍🧑 Science and Technology, Environment, Forest and Climate Change	S&T; Space; Earth Sciences; Atomic Energy; Environment
📚 Transport, Tourism and Culture	Civil Aviation; Road Transport; Ports, Shipping; Culture; Tourism
Health and Family Welfare	Health; AYUSH
📬 Personnel, Public Grievances, Law and Justice	Law and Justice; Personnel, Pensions

LS DRSC (12 of 16)	Ministries
💰 Agriculture, Animal Husbandry and Food Processing	Agriculture; Fisheries, AH, Dairying; Food Processing; Cooperation
Communications and IT	Communications; Electronics and IT; I&B
Defence	Defence
Energy	New and Renewable Energy; Power
External Affairs	External Affairs
💰 Finance	Finance; Corporate Affairs; Planning (NITI Aayog); Statistics
Labour, Textiles and Skill Development	Labour; Textiles; Skill Development
Railways	Railways
Water Resources	Jal Shakti
Rural Development and Panchayati Raj	Rural Development; Panchayati Raj
Coal, Mines and Steel	Coal; Mines; Steel
⚡ Social Justice and Empowerment	Social Justice; Tribal Affairs; Minority Affairs

ACRHSA — Adjournment, Committees examine, Report on time, Houses decide, Separate report: "A Careful Review Helps Spending" (own mnemonic)

🧑‍🤝‍🧑 CLASS · DRSC: accountability and limit

🧑‍🤝‍🧑 DRSC extras

→ 1993, Narasimha Rao govt; 17 at first; nominated, not elected

→ budget role: 3rd stage of budgeting; scrutiny of estimates, annual reports, long-term policy documents

→ Accountability: minister must present a 6-month statement on implementing DRSC recommendations

→ Limit: less expert help than PAC (backed by CAG)

🗳️ 8 · INQUIRY COMMITTEES

Committee	Role	LS	RS
📬 Petitions	citizens' grievances; petitions on Bills; representations	15	10
Privileges	dignity; breach, contempt; semi-judicial	15	10
Ethics	code of conduct; misconduct	15	10

Ethics: RS 1997, LS 2000. Authority: Art 118. "People Plead, Ethics decides." All 15 + 10. 💡

🏛️ CLASS · Ethics Committee: history

1996 idea mooted: AIPOC

1997 RS sets up

2000 LS: ad hoc

2015 LS: permanent

Role: code of conduct of MPs; investigates indiscipline or violation of decorum; suggests action. Complaint by members, or by outsiders with evidence. 💡

9 · SCRUTINY AND CONTROL COMMITTEES PYQ 2018

Committee	Year	Strength	Job
Government Assurances	1953	LS 15, RS 10	ministers' promises fulfilled in time
Subordinate Legislation	1953	15 each House	rules, regulations, bye-laws, sub-rules follow parent Act (PYQ 2018)
Papers Laid on the Table	1975	LS 15, RS 10	papers conform; not notifications (those: Subordinate Legislation)
Welfare of SCs and STs	none stated	30 = 20 + 10	National Commissions' reports; Arts 17, 46, 338–338A
Empowerment of Women	1997	30 = 20 + 10	NCW reports; Arts 14, 15(3), 39(a)
Joint Cttee on Offices of Profit	none stated	15 = 10 + 5	bodies disqualifying; Art 102(1)(a)

GSPSWO – Government Assurances, Subordinate Legislation, Papers Laid, SCs and STs, Women, Offices of Profit: "Good Students Prefer Short Written Outlines". 1953 = Assurances + Subordinate Legislation; 1975 Papers; 1997 Women.

CLASS · Scrutiny committees: one-liners

Papers Laid on the Table: also checks undue delay by govt in tabling reports.
Subordinate Legislation: instruments must fit the letter and spirit of the parent law Parliament made.

10 · DAY-TO-DAY BUSINESS COMMITTEES

Committee	Job	LS	RS
Business Advisory (BAC)	programme and time; govt–opposition coordination	15; Speaker chairs	11; Chairman (VP) chairs
Private Members' Bills and Resolutions	classifies, allots time	15; Deputy Speaker chairs	none (RS BAC does similar)
Rules	recommends rule changes	15; Speaker chairs	16; Chairman chairs
Absence of Members	leave; absence 60+ days	15	none; House itself

BPRA – BAC, Private Members, Rules, Absence: "Brave Pilots Rarely Absent". Private Members and Absence: LS only.

11 · HOUSE-KEEPING COMMITTEES

Committee	Job	Strength
General Purposes	matters under no other committee	presiding officer chairs; members: Deputy, panel of chairpersons, DRSC chairs, party leaders
House	MPs' accommodation, food, medical in Delhi	LS 12, RS 10
Library	Library, research	9 = 6 LS + 3 RS
Joint Cttee Salaries and Allowances of MPs	under 1954 Act	15 = 10 + 5

GHLS – General Purposes, House, Library, Salaries: "Good Houses Lack Servants"

12 · NUMBERS AT A GLANCE

Committee	LS	RS	Note
PAC	15	7	22
Estimates	30	none	30
COPU	15	7	22
👫 DRSC (each)	21	10	31
📬 Petitions, Privileges, Ethics	15	10	separate per House
Govt Assurances, Papers Laid	15	10	separate
📜 Subordinate Legislation	15	15	one per House
👫 SC/ST Welfare, Women	20	10	30
Offices of Profit	10	5	15
BAC	15	11	
👥 Private Members, Absence	15	none	LS only
Rules	15	16	
🏛️ House	12	10	
Library	6	3	9
💰 Salaries and Allowances	10	5	15
🏛️ Parliamentary Forum	21	10	31

Pattern: most 15 LS + 10 RS. Joint 15: 10+5. Joint 30: 20+10. Exceptions: BAC RS 11, Rules RS 16, House LS 12, Library 9. ✅

13 · PARLIAMENTARY FORUMS PYQ 2017

Forums

→ idea of LS Speaker **Somnath Chatterjee** (UPA-1): MPs ill-informed on technical matters; platform with departmental and outside experts; integrated database

→ **31 = 21 LS + 10 RS**; **5 years**; about **8** forums

→ presided by LS Speaker, except **Population and Public Health**: RS Chairman

Committees	Forums
statutory sanction	Speaker's initiative (UPA-1)
👥 ministers cannot be members	ministers can
can enforce records, summon civil servants	no such power
Action Taken Report required	not required

SMPA – Sanction, Ministers, Powers, Action Taken Report: "Some Members Push Ahead"

Handout alert: forum list is blank and LS figure garbled "2 1": read 21 + 10 = 31; no forum names given.

CLASS · The eight Parliamentary Forums

#	Forum on	#	Forum on
1	Water conservation and management	5	Global warming and climate change
2	Children	6	Disaster management
3	Youth	7	Artisans and craftspeople
4	Population and public health	8	MDG to SDG

Presiding: LS Speaker presides over 7; RS Chairman only over **Population and Public Health** (class list of 8; fills the blank list in the handout). ⭐

14 · ADVANTAGES AND CRITICAL EVALUATION

Five advantages

→ deeper deliberation: PAC 22 vs Houses of 543 and 245

→ technical expertise, outside experts

→ stakeholder participation

→ inadequate sittings: Parliament about 67 days a year; committees all year

→ inter-party consensus: PR membership, closed-door

Five flaws

→ inadequate expert help (PAC has CAG)

→ floating membership

→ members' background ignored

→ party lines

→ declining referrals: 71% of Bills to committees (15th LS), only about 16% examined (17th)

DESIF – Deliberation, Experts, Stakeholders, Inadequate sittings, Forge consensus: "Deep Expert Studies Improve Final laws". Flaws IFBMD: "I Find Bills Missing Debate".

Trap: 71% (Bills sent, 15th LS) vs 16% (Bills examined, 17th LS): quote handout wording.

CLASS · Bills to committees; trends in working of Parliament

15th LS	16th LS	17th LS
71% of Bills to committees	27%	16%

Class vs handout: class reads 71% / 27% / 16% all as share of tabled Bills sent to committees (handout words 16% as examined); 27% for the 16th LS is the extra. Check wording.

Trend	Class points
Committees	large majorities dominate nominations; coalition era (1989–2014) gave balance; after 2014 single-party dominance cut referrals
Private Members' Bills	only 14 passed since 1970, none recently (as written); 1952 Muslim Wakf Bill (Syed Md. Kasmi, as written); 1970 SC (Enlargement of Criminal Appellate Jurisdiction) Act. Introductions 372 (15th LS) to about 900 (16th); under 4% debated; used for political statements or to embarrass govt
Chair's rulings	coalition era: Speaker checked govt, protected Opposition; post-2014 adverse rulings reversed by strong majority
Meetings behind the chair	informal leaders' meetings in Speaker's chamber to break deadlock; rise with disruptions
Many parties	37 parties in 17th LS, 41 in 18th; fragmentation hinders consensus; govt leans on ordinances

15 · CONSULTATIVE COMMITTEES AND INDIAN PARLIAMENTARY GROUP

Consultative Committee	Detail
Status	non-statutory, advisory, joint
Constituted by	Ministry of Parliamentary Affairs, Art 118 guidelines
Membership	voluntary; party nominations
Size	max 30, min 10
Chair	Minister or Minister of State
Tenure	life of LS; fresh after each general election
Railway zones	informal ones for all zones (Art 77)

Not parliamentary committees: fail the four tests. **History:** Railway Convention Committee 1949 (dividend to General Revenues; from 1971 Railways' working and financial performance).

MTL – Minister chairs, Ten to thirty, Life of LS: "Ministers Talk Locally"

Indian Parliamentary Group (IPG)

→ formed 1949, autonomous

→ Speaker ex-officio President; Deputy Speaker and RS Deputy Chairman vice-presidents; LS Secretary-General is its Secretary-General; ex-MPs associate members

→ National Group of IPU (179 parliaments); India Branch of CPA; delegations: members of 6 months

→ Outstanding Parliamentarian award 1995

1921 PAC

1949 Railway Convention; IPG

1950 Estimates

1953 Assurances; Subord. Legis.

1954 MPs pay Act

1964 COPU

1967 PAC Opposition chair

1974 COPU to 22

1975 Papers Laid

1993 DRSC, 31 March

1997 Women; RS Ethics

2000 LS Ethics

2004 DRSC 24, 31

CLASS · IPG, IPU and CPA

Body	Class facts
Indian Parliamentary Group	set up 1949 by Constituent Assembly resolution; Speaker is President; open to MPs and all ex-MPs. Does: contact between MPs and ex-MPs; debates, seminars; foreign visits of MPs
IPU	Inter-Parliamentary Union; HQ Geneva; IPG = its national group
CPA	Commonwealth Parliamentary Association; HQ London

Class · Jan 2026 28th CPA Conference of Presiding Officers: New Delhi, chaired by Om Birla (name partly illegible in class note, verify); 61 presiding officers attended.

Recall drill: cover and answer

Four tests of a parliamentary committee?	Appointed/nominated, works under Speaker/Chairman, reports to House, secretariat from House	PAC: year, strength, chair, CAG report types?	1921; 22 (15+7); Opposition since 1967; Appropriation, Finance, Public Undertakings
Largest committee? Which are LS only?	Estimates (30); Estimates, Private Members, Absence of Members	COPU: year, committee, strength?	1964, Krishna Menon Committee; 15 then 22 in 1974
DRSC numbers, year, tenure?	24 (16 LS + 8 RS); 31 (21+10); 1 year; 1993, expanded 2004	Which committee checks rules and bye-laws?	Subordinate Legislation (1953)
Committees vs forums: four differences?	Sanction, ministers, powers, Action Taken Report	Consultative Committee size, chair, tenure?	10 to 30; Minister; life of LS
Referral decline figures?	71% (15th LS) to about 16% (17th LS)	Ethics Committee history?	idea AIPOC 1996; RS 1997; LS 2000 ad hoc; permanent 2015
Share of recommendations accepted: PAC and Estimates?	PAC about 3/4; Estimates about 97%	Which forum does RS Chairman preside over; how many does Speaker?	Population and Public Health; 7 of 8
Parties in 17th and 18th LS?	37 and 41		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

RS = Rajya Sabha — Council of States; the upper House of Parliament

PAC = Public Accounts Committee — Parliamentary committee that examines CAG audit reports

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ST = Scheduled Tribes — Tribal groups listed under Art 342

PSU = Public Sector Undertaking — Company owned mainly by the government

VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

IT = Information Technology — Computing and digital technology (for example, the IT Act, 2000)

MPLADS = Members of Parliament Local Area Development Scheme — Gives each MP an annual fund for local development works

JPC = Joint Parliamentary Committee — Committee with members from both Houses for a specific inquiry

GST = Goods and Services Tax — Common indirect tax on goods and services; policy by the GST Council (Art 279A)

ADR = Association for Democratic Reforms — NGO working on electoral and political reform

NITI = National Institution for Transforming India — Government policy think tank that replaced the Planning Commission in 2015

NCW = National Commission for Women — Statutory body under the NCW Act, 1990 for women's rights

SDG = Sustainable Development Goals — 17 UN goals to be met by 2030

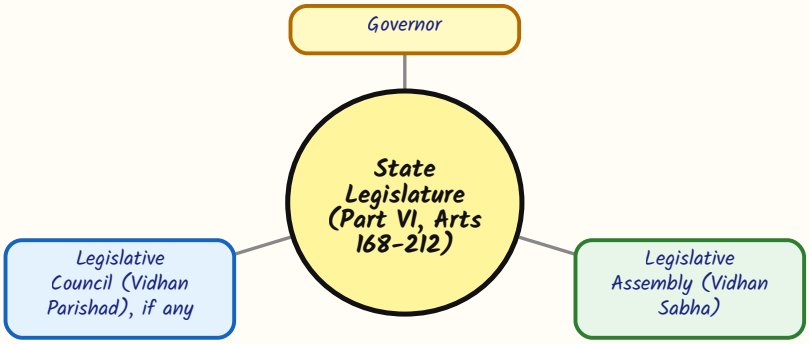
ATR = Action Taken Report

STATE LEGISLATURE

PYQ Prelims 2025, 2021 (x2), 2019, 2018, 2015 · Mains 2001, 2021, 2023 (x2)

✎ *How a State law-making body is built (Assembly, optional Council), who sits, who presides, how Bills and Money Bills pass, why the Council is junior to the Assembly, privileges.*

At a glance



PYQs: 2015 Council not larger than half of Assembly (one-third max), Chairman elected by members: both false · 2018 Speaker vacates on ceasing to be member (a) · 2019 Governor's customary address correct, (c) both · 2021 (b) parole; "State" definition (a). Hooks: Assembly and Council minimums, five Council categories, 60-day absence, Rs 500 penalty, quorum, six-month rule, Arts 169, 199, 200. Mains: centre's "absolute veto" (2001), Councils (2021), presiding officers (2023), Art 356 (2023). Remember: Assembly 500/60, age 25, 5 years; Council 1/3, min 40, age 30, permanent; delay 3+1 = 4 months; Money Bill 14 days; no joint sitting.

👥 1 · STRUCTURE

📜 State Legislature

→ laws on State List + Concurrent List; Arts 168–212, Part VI
→ Unicameral: Assembly only; Bill straight to Governor
→ Bicameral: Assembly + Council; Bill goes to second House

Terms: Continuing chamber = Council, never dissolved. Suspensive veto = Governor returns, passed again, must assent. Casting vote = presiding officer on tie.

🏛️ 2 · GOVERNOR AND THE HOUSES

Governor's function	Article
📜 Integral part of Legislature	168
Summon and prorogue	174
🏛️ Dissolve Assembly	174(2)(b)
🗳️ Address: first session after general election and start of each year	176
Assent: give, withhold, return	200

🏛️ Council vs Assembly

→ Money: Assembly supreme; Council recommends only
→ Ordinary Bills (Art 197): Council delays 3 months + 1 month, then deemed passed
→ Accountability: no no-confidence in Council; executive responsible to Assembly alone

SAD — Governor's links: Summon and prorogue, Address, Dissolve (Assembly only): "Someone Always Directs"

📜 3 · LEGISLATIVE ASSEMBLY

🏛 Assembly

→ direct, universal adult franchise, territorial constituencies (Art 170; suffrage Art 326); one member each

→ smaller States/UTs (Goa, Mizoram, Puducherry) have smaller Assemblies

Point	Rule
Maximum	500
Minimum	60
Arunachal Pradesh, Sikkim, Goa	min 30
Mizoram	min 40
Nagaland	min 46
Sikkim and Nagaland	some members elected indirectly

Source conflict: text gives minimums 30, 40, 46, but seat table shows Arunachal 60, Goa 40, Sikkim 32, Mizoram 40, Nagaland 60. Legal minimum: the rule; actual seats: the Section 15 table.

⚠ Delimitation (Arts 170(3), 327)

→ 42nd Am 1976 froze inter-State seats at 1971 level till 2000

→ 84th Am 2001: freeze till first census after 2026; internal rationalisation

→ 87th Am (2003): 2001 census; Acts 1952, 1962, 1972, 2002

Reservation

→ Art 332: SC/ST in proportion; only they contest; all vote; first 10 years (to 1960), renewed, now to 2030 (104th Am 2019)

→ Art 333: Governor nominated 1 Anglo-Indian; ended by 104th Am, effective Jan 2020 (95th Am 2009 extended to 2020; ceased 25 Jan 2020)

MMS — Max 500, Min 60, Small exceptions 30, 40, 46: "More Members, Some smaller"

State	Assembly	SC	ST
Uttar Pradesh	403	85	–
👫 West Bengal	294	68	16
Maharashtra	288	29	25
Tamil Nadu	234	44	2
Bihar	243	38	2
Madhya Pradesh	230	35	47
Karnataka	224	36	15
Rajasthan	200	34	25
Punjab	117	34	–
Odisha	147	24	33
Arunachal Pradesh	60	–	59
Nagaland	60	–	59
Mizoram	40	–	38

🗺 CLASS · Art 170: small-State exceptions and readjustment

State	Minimum	Article	Seats now
Nagaland	46	371A (clause 1(h))	60
Mizoram	40	371G	40
Sikkim	30	371F	32
Arunachal Pradesh	30	371H	60
Goa	30	371I	40

Class vs handout: class note writes Mizoram 371F / 32 seats and Sikkim 371G / 40 seats (columns swapped); table here is corrected (check). Sub-clause letters unclear in class, so omitted.

Readjustment rules

→ after **every census**; Parliament fixes the authority

→ effective only on **dissolution** of the Assembly; President names the date

→ boundaries on **2001 census**; total seats on **1971 census** (frozen, 84th Am)

4 · LEGISLATIVE COUNCIL

Council (Art 171)

→ revision and review; **not more than 1/3** of Assembly, **not less than 40**

→ continuing: no dissolution; **1/3 retire every 2 years**

→ delays non-Money Bills at most **4 months**

→ **Art 169:** Parliament creates/abolishes on Assembly resolution (special majority: total + 2/3 present and voting; Act by simple majority, not Art 368)

Constituency	Share
Graduates	1/12 (3 years' standing)
Teachers	1/12 (3 years, not below secondary)
Local authorities	nearly 1/3
Assembly members	nearly 1/3 (persons not members)
Governor nominates	remainder: literature, science, art, cooperative movement, social service

ANGLE – Assembly members, Nominated, Graduates, Local authorities, Educators (own mnemonic). Handout: "Good Teachers Lead All Nations". 5/6 indirect, 1/6 nominated, STV.

Council (six)	Seats
Andhra Pradesh	58
Bihar	75
Karnataka	75
Maharashtra	78
Telangana	40
Uttar Pradesh	100

ABKMTU – AP 58, Bihar 75, Karnataka 75, Maharashtra 78, Telangana 40, UP 100: "Any Bicameral King Must Tolerate Upper-houses"

Source conflict: text names 5 States (omits UP); table shows UP 100: use six. Gujarat cell blank. Handout says Punjab and West Bengal abolished (1969). Lakshmikanth: six bicameral States.

Council history

→ AP created 1957, abolished 1985, revived 2007 (2005 Act)

→ Tamil Nadu abolished 1986; TN Act 2010 never in force (2011 request)

→ Punjab, West Bengal abolished 1969

→ J&K Council abolished by 2019 Reorganisation Act

→ Madhya Pradesh: 7th Am (1956) provides, notification never made

In favour

→ expertise

→ forum for specialists

→ revising chamber

Against

→ cost

→ delay

→ limited legitimacy (indirect, nominated); "white elephant"

Why weaker than RS: RS reflects federalism; Council mixed; British pattern (Lords delay ordinary Bill one year, Money Bill one month). **Lakshmikanth differs:** Council not even revising, only dilatory or advisory; exam: "delay up to four months".

CLASS · Council: who elects, who presides, utility

Constituencies

→ local bodies, graduates and teachers (3 years' standing each) elect through territorial constituencies
→ MLA quota (1/3) has no territorial constituency
→ Governor nominates 1/6: arts, literature, science, cooperative movement, social service
→ Parliament may provide composition by law

	Rajya Sabha	Legislative Council
Chair	Vice-President, ex officio, not a member	Chairman chosen by the Council from its own members (Art 182); no Governor role

Class vs handout: class bicameral list also names Madhya Pradesh (Council on paper since 1956, 7th Am, not active) and Tamil Nadu (DMK for a 2nd chamber, AIADMK against; 2010 move countered). Handout counts six; use six.

Art 169 resolutions pending in Parliament: West Bengal (2021); Odisha, Assam, Rajasthan (2018). J&K: LA + LC as a State; as a UT only LA.

Council: nature and merit

→ dilatory chamber: advisory or delaying, no veto; RS is the federal chamber, Council structurally weak

2nd ARC

→ every State should have a Council
→ members wholly elected by local bodies (to voice institutions)

Utility (6)

→ senior politicians and statesmen
→ stops hasty legislation
→ useful suggestions
→ experts (nominated)
→ special interests represented
→ shares burden of holding govt accountable

Criticism (3)

→ delays legislation
→ very expensive
→ parking ground for defeated politicians and colleagues of the ruling party

5 · DURATION

	Assembly	Council
Nature	not continuing	permanent (Art 171(2) as cited)
Term	5 years from first meeting (Art 172(1))	6 years each; 1/3 retire every 2 years
Dissolution	automatic; early by Governor Art 174(2)(b) on advice (exception: Art 356)	none
Emergency (Art 352)	extend 1 year at a time, max 6 months after; re-elect within 6 months (1975–77)	continuity

Example: first meeting 1 March 2020 = expiry 28 February 2025. Council of 90: 30 retire every 2 years; re-election any number of times. **Key Articles:** 171(2), 172, 174(2)(b), 352.

DCBE – Democratic accountability, Continuity, Balanced governance, Emergency flexibility: "Don't Cancel Basic Elections"

👥 6 · MEMBERSHIP

🎓 Qualifications

→ Art 173(1): citizen; oath before person authorised by Election Commission
→ age 25 Assembly, 30 Council
→ RPA 1951: elector in State; Council nominee must reside in State; reserved seat SC/ST (may contest general)

🎓 Disqualifications (Art 191)

→ Office of profit (except minister or State-exempted)
→ Unsound mind (court)
→ Insolvent undischarged
→ Citizenship lost: foreign citizenship, allegiance
→ Parliament's law

OUICP — "Our Unruly India Can't Pass"

RPA 1951: (1) election offences, corrupt practices (2) conviction with 2 years or more (not preventive detention) (3) expense accounts late (4) govt contracts (5) director/agent in corporation with 25%+ Govt share (6) dismissal for corruption/disloyalty (7) enmity, bribery (8) untouchability, dowry, sati.

Decides	Who
🎓 Ordinary disqualification	Governor after EC opinion (Art 192)
🗺️ Defection (Tenth Schedule)	Speaker (Assembly) / Chairman (Council); judicial review (SC 1992)

7 · OATH AND VACATION OF SEATS

Oath (Art 188)

→ before Governor or authorised person; faith, sovereignty, faithful discharge
→ no vote or participation, no privileges until oath
→ ₹500/day penalty (Art 193) for sitting or voting without oath, or while disqualified or prohibited
→ pay by State Legislature

Vacation	Rule
👥 Dual membership	not both Houses; one falls vacant under State law
🎓 Disqualification	Constitution, RPA 1951, Tenth Schedule
Resignation	to Speaker/Chairman; when accepted
Absence	60 consecutive days without permission
Other	election void; expelled; elected President or VP; appointed Governor

DDRAO — Dual, Disqualification, Resignation, Absence (60 days), Other: "Dogs Don't Remain Absent Often"

🎯 8 · PRESIDING OFFICERS PYQ 2015 PYQ 2018

Point	Speaker	Dy Speaker	Chairman (Council)	Dy Chairman
🗳️ Elected by	Assembly (Art 178)	Assembly, after Speaker	Council (Art 182)	Council (Art 182)
Resigns to	Deputy Speaker	Speaker	Dy Chairman	Chairman
🚪 Removal	majority of all members, 14 days	same	same	same
Vacates also	ceasing member	same	same	same

⚡ Speaker's eight powers

→ Order: final, binding
→ Interprets Constitution, rules, precedents within House
→ Adjourn or suspend without quorum

→ Voting: casting only
→ Secret sittings (Leader of House's request)
→ Money Bill decision final (Art 110 as cited; Art 199)
→ Disqualification (Tenth Schedule)
→ Committees: appoints chairpersons; chairs BAC, Rules, General Purposes

OIAVSMDC – "Our Intelligent Assembly Values Silent Major Debates Closely"

Others

→ **Deputy Speaker:** all Speaker's powers when absent or vacant
→ **Panel of chairpersons:** Speaker nominates; presides if both absent
→ **Chairman:** like Speaker; **cannot decide Money Bill**
→ **Deputy Chairman** acts; **panel of vice-chairmen** by Chairman
→ pay: State Legislature; State Consolidated Fund

Resign-to-the-other: Speaker to Deputy; Deputy to Speaker; Chairman to Deputy Chairman; Deputy to Chairman. ✅

Source conflict: one place says removal by special majority; presiding-officer sections say majority of all members after 14 days (effective): use effective majority. Lakshmikanth same.

🏛️ 9 · SESSIONS

Topic	Rule
Summon	Governor, Art 174(1); max 6 months gap; 2 sessions a year
Adjournment	temporary; session continues
Sine die	indefinite; Speaker/Chairman
Prorogation	ends session; Governor notifies (also during session)
🔧 Dissolution	Assembly only (Art 174(2)); 5 years or early
Quorum	10 or 1/10, whichever is higher (Art 189)
Voting	simple majority present and voting; casting vote
Language	State language, Hindi or English; mother tongue; English decision after 15 years (1965)
👑 Ministers, Advocate General	take part in either House, no vote; non-member minister 6 months (Art 164(4))

🔧 Lapse on dissolution

→ pending in Assembly
→ passed by Assembly, pending in Council

No lapse

→ pending in Council, not passed by Assembly
→ assented by Governor/President
→ returned by President for reconsideration

APCGR – Assembly-pending lapses, Passed-by-Assembly pending in Council lapses, Council-pending survives, Governor/President assent valid, Returned survives: "Assembly Perishes, Council Gets Reprieve"

SAPD – "Some Assemblies Pause, Die": Summon, Adjourn, Prorogue, Dissolve

📜 10 · ORDINARY BILLS

📜 Ordinary Bill

→ either House; minister or private member; three readings: First (introduction), Second (clause-by-clause), Third (vote)

🏛️ Council's four options

→ pass
→ amend and return
→ reject
→ no action

→ rejects, unacceptable amendments, or silent 3 months: Assembly passes again; Council again rejects or delays 1 month: deemed passed
→ 4 months (3+1); no joint sitting; Council-origin Bill rejected by Assembly lapses

PART – Pass, Amend, Reject, Take no action: "Council plays only a PART" (memory aid)

👑 Governor (Art 200): four

→ Assent, Withhold, Return, Reserve: "Always Weigh Rules Rigorously"
→ returned and passed again: must assent (suspensive veto)

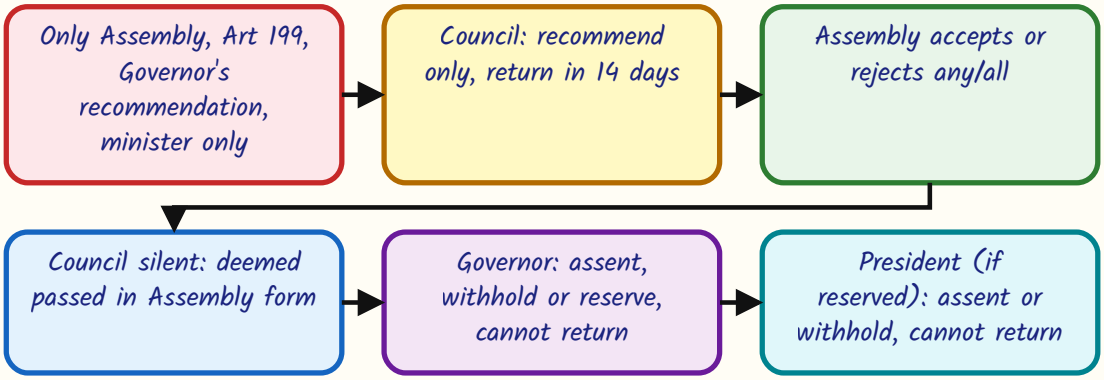
📜 President (Art 201) on reserved Bills

→ assent, withhold, or return; House must repass in 6 months
→ unclear whether President must assent after reconsideration
→ "All Will Return"

Sarkaria Commission (1983–88) reservation: must reserve: Bills cutting HC powers, tax on water or electricity (Art 288), Art 360. May reserve: Arts 31A, 31C, Art 254, Art 304. Other cases Governor decides (Art 200). 💡

📜 11 · MONEY BILLS

📜 Money Bill in a State



Source conflict: handout cites Art 199 (origin), Art 110 (Speaker), table 198 = procedure, 199 = definition. Use: 198 procedure; 199 definition and Speaker final; Art 110 is Union level.

Shortcut: only Assembly, only minister, only on Governor's recommendation; Council 14 days, advise only; Governor cannot return. ✅

12 · PARLIAMENT vs STATE LEGISLATURE

Aspect	Parliament	State Legislature
Deadlock	joint sitting Art 108	none; Assembly prevails
Upper House delay	RS 6 months	Council 4 months (3+1)
Primacy	theoretically equal	Assembly dominates
Money Bills	LS only; President's recommendation (Arts 109–111)	Assembly only; Governor's (Art 198–199)
Upper House origin	either House	Council Bill rejected by Assembly lapses

Common	Same
Ordinary Bill	either House; minister or private member; three readings
Passed	both Houses agree
Money Bill	upper returns in 14 days; silence = deemed passed
Assent	Governor may not return Money Bill; President only assent/withhold
Private members	cannot introduce Money Bills

Union deadlock: second House rejects, unacceptable amendments, or no action in 6 months.

13 · POSITION OF THE COUNCIL

Parity

- → ordinary Bills (Assembly prevails)
- → Ordinances (Art 213): both Houses
- → Ministers (Art 164): either House, responsible to Assembly
- → reviews State Finance Commission, State PSC, CAG reports
- → PSC jurisdiction expansion

Subordination (nine)

- → Money Bills: 14 days, suggestions
- → Speaker decides status (Art 199)
- → Ordinary Bills overridden; 4 months; not revising chamber
- → Finance: no vote on grants
- → Control: no no-confidence
- → Bills from Council lapse
- → Elections: no part in President or RS
- → Amendments: Assembly prevails in ratification
- → eXistence: Art 169, on Assembly's recommendation

MSOFCBEAX – "My Small Old Father Can't Beat Every Angry X-ray"

14 · PRIVILEGES

Houses, committees, members; extend to State ministers and Advocate-General, not Governor.

Collective

→ publish, restrain publication
→ exclude outsiders, secret sittings
→ rules, adjudicate breaches
→ punish: reprimand, admonition, imprisonment, suspension, expulsion
→ told at once of arrest, conviction, release
→ inquire, summon
→ courts cannot question
→ no arrest in precincts without permission

Individual

→ civil arrest immunity session + 40 days before and after
→ speech Art 194(1)
→ jury exemption
→ refuse witness

ASJW — Arrest, Speech, Jury, Witness: "All Speakers Joke Wisely"

👥 15 · STRENGTH OF ASSEMBLIES AND COUNCILS

State/UT	Assembly	Council
Andhra Pradesh	175	58
Arunachal Pradesh	60	–
Assam	126	–
Bihar	243	75
Chhattisgarh	90	–
Goa	40	–
Gujarat	182	blank
Haryana	90	–
Himachal Pradesh	68	–
Jharkhand	81	–
Karnataka	224	75
Kerala	140	–
Madhya Pradesh	230	–
Maharashtra	288	78
Manipur	60	–
Meghalaya	60	–
Mizoram	40	–
Nagaland	60	–
Odisha	147	–
Punjab	117	–
Rajasthan	200	–
Sikkim	32	–
Tamil Nadu	234	–
Telangana	119	40
Tripura	60	–
Uttarakhand	70	–
Uttar Pradesh	403	100
🧑‍🤝‍🧑 West Bengal	294	–
Delhi (UT)	70	–
J&K (UT)	90 (Lakshmikanth 83: 107 minus 24 PoK)	–
Puducherry (UT)	30	–

Biggest Assembly UP 403; smallest Puducherry 30. ✅

16 · KEY ARTICLES 168 TO 212

Group	Articles
👥 Constitution	168 Legislatures; 169 Councils; 170 Assemblies; 171 Councils; 172 Duration; 173 Qualification; 174 Sessions, prorogation, dissolution
👑 Governor, ministers	175 right to address; 176 special address; 177 ministers, Advocate-General speak, no vote
Officers	178 Speaker, Dy; 179 vacation, removal; 180 acting Speaker; 181 not preside in removal; 182 Chairman, Dy; 183 vacation; 184 acting Chairman; 185 not preside; 186 salaries; 187 secretariat
Business	188 oath; 189 voting, quorum, vacancies
🎓 Disqualification	190 vacation of seats; 191 disqualifications; 192 Governor decides; 193 penalty
Privileges	194 powers, privileges; 195 salaries and allowances
📝 Procedure	196 Bills; 197 Council restriction on non-Money Bills; 198 Money Bill procedure; 199 definition; 200 assent; 201 reserved for President
Financial	202 AFS; 203 estimates; 204 Appropriation; 205 supplementary; 206 vote on account, exceptional; 207 financial Bills
General	208 rules; 209 Parliament may regulate; 210 language; 211 restriction on discussion; 212 courts not to inquire

LCAP – Legislature (168–174), Chairs (178–187), Assent (200–201), Privileges (194): "Let Chairs Assent Privileges"

Source note: Art 176 table says first session each year; text adds after each general election: learn both.

1950 Part VI

1965 English decision

1975–77 Emergency extensions

1976 42nd Am freeze

1992 SC defection review

2001 84th Am

2019 104th Am

CLASS · Articles 177, 189, 210: one-liners

Art	Class point
177	minister and Advocate-General may speak, attend, take part in any House or legislative committee; no vote except in the House where a member
189	Houses act despite vacancies; quorum 10 or 1/10
210	language in State legislature: State's official language(s), Hindi or English; mother-tongue exception; same as Art 120 for Parliament

Recall drill: cover and answer

Assembly max, min, age, term?	500, 60, 25, 5 years (Art 172(1))	Council size, age, retirement, term?	Not more than 1/3 of Assembly, min 40; 30; 1/3 every 2 years; 6 years
Council categories and shares?	Graduates 1/12, Teachers 1/12, Local authorities ~1/3, Assembly ~1/3, Governor nominates rest	Who has a Council and Article for creation?	AP 58, Bihar 75, Karnataka 75, Maharashtra 78, Telangana 40, UP 100; Art 169
Council delay on ordinary Bill; joint sitting?	3 + 1 = 4 months; no joint sitting	Money Bill in a State?	Assembly only, Governor's recommendation; Council 14 days; Governor cannot return
Governor Art 200 options; President Art 201?	Assent, withhold, return, reserve; assent, withhold, return (6 months)	Quorum; absence; penalty?	10 or 1/10; 60 days; ₹500 a day
Who decides disqualification vs defection?	Governor with EC opinion; Speaker/Chairman	Dissolution: which Bills lapse?	Assembly-pending and Assembly-passed pending in Council lapse; Council-pending survive

🔤 **Quick brief: abbreviations, schemes, bodies** (expansions from notes where given; briefs are general knowledge, verify)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

RS = Rajya Sabha — Council of States; the upper House of Parliament

UT = Union Territory — Area administered directly by the Union government

ST = Scheduled Tribes — Tribal groups listed under Art 342

RPA = Representation of the People Act — Laws on conduct of elections and disqualification (1950 and 1951)

AP = Andhra Pradesh — State in south India

PSC = Public Service Commission — Constitutional recruitment body (UPSC for the Union, SPSC for States)

ARC = Administrative Reforms Commission — Commission recommending reforms in public administration (1st in 1966, 2nd in 2005)

VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

HC = High Court — State-level constitutional court (Art 214)

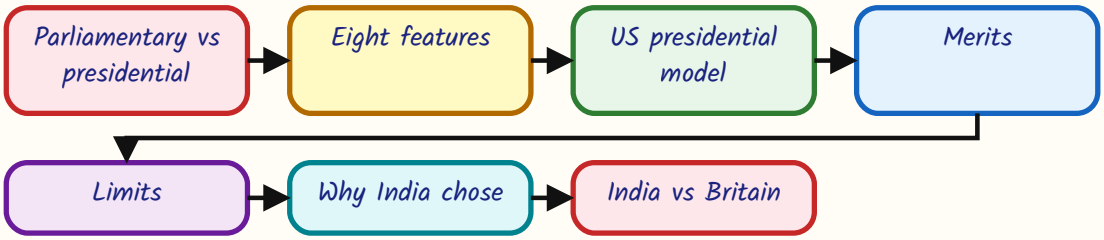
CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

⚖ PARLIAMENTARY SYSTEM ⚖

PYQ Prelims 2021 (x2), 2020, 2015, 1998 · Mains 2024, 2023

✎ *How cabinet-style government works (Arts 74, 75, 163, 164), how it differs from the US presidential model and from Britain, why the framers chose it, merits and limits.*

At a glance: the route



Handout stresses

→ 8 features with Arts 74, 75(3), 75(5), 85

→ 7-point presidential vs parliamentary table

→ six reasons, seven differences from Britain. PYQs: 2015, 2020: what makes it parliamentary = responsibility to LS (Council of Ministers responsible to LS); 1998: India differs by judicial review; 2021: (c) both, British Parliament sovereign, Indian limited; 2021: (a) one citizenship. Mains: 2024 cabinet system vs parliamentary supremacy; 2023 British vs Indian sovereignty. Remember: Art 74 aids and advises; Art 75 ministers answer to LS; States Arts 163–164; responsibility over stability.

Key term	Meaning
De jure / de facto	nominal = President; real = PM + Council
🤝 Collective responsibility	whole Council answers to LS (Art 75(3))
Westminster model	parliamentary government
Primus inter pares	first among equals; now "prime ministerial government" (Crossman, Mackintosh)
👥 Double membership	ministers in legislature and executive
Kitchen Cabinet	US President's informal advisers; answer only to him
⚡ Fusion of powers	Bagehot's "hyphen"
Shadow cabinet	British Opposition team; India has none

1 · WHAT IT IS

🏛️ Parliamentary	→ executive accountable to legislature → cabinet, responsible, Westminster model; UK origin → Britain, India, Japan, Canada → Union: Arts 74, 75; States: Arts 163, 164
👑 Presidential	→ executive independent, fixed term → fixed executive, non-responsible government → US, Brazil, Russia, Sri Lanka

BIJC — Parliamentary: Britain, India, Japan, Canada: "Ballots Install Judicious Cabinets". Presidential UBRS: US, Brazil, Russia, Sri Lanka: "Unified Bosses Rule Singly".

Cabinet and PM	→ Ivor Jennings: cabinet system; cabinet = core; stays while it has confidence → PM: primus inter pares to "prime ministerial government" (Crossman and Mackintosh) → names: Cabinet, Responsible, Westminster: "Cabinets Run Westminster"

US: Constitution 1787; model with strict separation. 💡

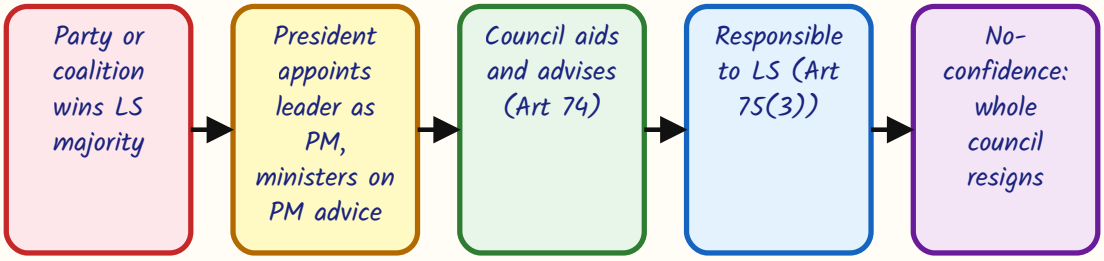
🎯 2 · EIGHT FEATURES IN INDIA PYQ 2020 PYQ 2015

#	Feature	Content
1	Nominal and real executive	President nominal; PM real; Art 74: Council with PM aids and advises, President bound
2	Majority party rule	majority party or coalition in LS; President appoints leader as PM; ministers on PM's advice; no majority: coalition
3	Collective responsibility	Art 75(3): to LS; one unit; no-confidence = whole council resigns
4	Political cohesion	one party; coalitions by consensus
5	Double membership	non-member minister must become MP in 6 months (Art 75(5))
6	Leadership of PM	leader of council, party, legislature; represents nationally and abroad
7	Dissolution of lower house	President on PM's advice (Art 85)
8	Secrecy	oath of secrecy administered by President

NMCCDLDS — Nominal-real, Majority, Collective, Cohesion, Double, Leadership, Dissolution, Secrecy: "No Minister Can Commit Double Life During Session"

Articles: 74 = aid and advise. 75(3) = collective responsibility. 75(5) = six months. 85 = dissolve LS. 163–164 = States. ✅

Government formed and falls



👑 3 · PRESIDENTIAL SYSTEM (USA) PYQ 2020 PYQ 2015

👥 US structure

→ unified head of State and Government
→ fixed 4 years, electoral college; removal only by impeachment
→ cabinet/Kitchen Cabinet appointed by President, answer only to him, need not be legislators

#	Feature	Content
11	Separation of powers	three organs independent
12	Non-responsibility	not accountable to Congress; not members
13	Non-dissolution	cannot dissolve House of Reps
14	Centralised executive	cabinet only advisory
15	Fixed tenure	stability; rigid in crises
16	Electoral college	indirect; mandate separate from legislature

Handout numbers these 11 to 16 (continuing earlier list).

Source conflict: "Distinction" paragraph says US head directly elected; features list says indirect (electoral college). Use indirect.

Feature	USA	India
Relation	independent	dependent on legislature
🗺️ Head of State and Govt	same (President)	separate: President, PM
⏳ Tenure	fixed (4 years)	depends on confidence
🚪 Removal	impeachment only	no-confidence in LS
🤝 Cabinet responsibility	to President only	collective, to LS
🔧 Dissolution	not possible	PM advises President, LS
👥 Membership	not legislators	both

Parliamentary = fusion of powers, flexible; presidential = separation, stable. ✅

SNNCFE – Separation, Non-responsibility, Non-dissolution, Centralised, Fixed tenure, Electoral college: "Six New Names Came From Europe"

Point	Parliamentary	Presidential
👑 Executive	dual	single
Basis	majority party rule	separate election, fixed term
🏛️ To House	collective responsibility	non-responsibility
Team unity	homogeneity	may not exist
Seats	double membership	single
Leader	PM leadership	President domination
🏛️ Lower House	dissolvable	no dissolution
⚡ Powers	fusion	separation
Merits	harmony; responsible govt; no despotism; wide representation	stable; definite policies; separation; experts

Demerits	unstable; no continuity; against separation; amateurs	conflict; non-responsible; autocracy; narrow

Lakshmikanth: separation of powers from Montesquieu's The Spirit of Laws (1748); K.T. Shah favoured presidential in Constituent Assembly; his Table 13.1 lists fusion as 8th feature, handout secrecy: use secrecy. LK says ministers responsible to Parliament, particularly LS: write Lok Sabha (Art 75(3)).

⚡ CLASS · Separation of Powers (SOP)

SOP: Montesquieu (18th c., French): Law-making, Execution, Judging by separate bodies = checks and balances. Benefits: no absolute power; protects democracy and rights; division of labour and specialisation; public trust; constructive friction, better decisions.

India overlaps (class): judges appointed by President, removed by Parliament (2/3, impeachment); judicial review of govt; Parliament questions executive (Question Hour).

CLASS · Ten exceptions to SOP in India

#	Exception	Class point
1	Fusion of L and E	ministers sit in Parliament; must be MPs; political executive (PM-CoM) above permanent executive (bureaucracy)
2	Delegated legislation	Parliament gives skeleton or broad policy (the "helmet"); executive fills shape and size by rules, regulations, bye-laws
3	Administrative adjudication	tribunal = judicial + administrative experts; e.g. income tax (technical); CAT, SAT
4	Judicial law-making	Vishaka 1997 guidelines till Parliament legislates; fills gaps, protects FRs
5	Independent regulators	TRAI: makes rules (legislative), enforces (executive), penalises (judicial)
6	Ordinances	President (on PM) and Governor (on CM) when House not sitting
7	Clemency	Art 72 President, Art 161 Governor: pardon = acts as judge
8	Art 143	only the President seeks SC advisory opinion on public importance or law
9	President, VP, CJI	VP acts in vacancy of President; both vacant: CJI acts (article number unclear in class note)
10	MPLADS	Rs 5 cr per MP per year (25 cr in 5 years); MPs act as executives; Narasimha Rao 1993

Why rigid SOP is impossible

→ administration grows technical
→ speed and efficiency
→ power is a means to public welfare, not property (B.M. Bakshi, class note unclear)

📜 Articles showing some separation

→ 50: separate judiciary from executive in public services
→ 121: no discussion in Parliament on conduct of SC/HC judges
→ 211: same in State Legislature
→ 361: no criminal proceeding against President/Governor in term

4 · ADVANTAGES

Merit	Content
Harmony	ministers are MPs; quicker laws; shared mandate
🤝 Responsible govt	collective to LS (Art 75): QH, debates, adjournment, no-confidence
⚡ Check on arbitrary authority	power shared; no-confidence vs despotism
Ready alternative	President (Art 75) invites another party; Jennings: LoP alternative PM
Broad representation	regional, gender, minority ministers

CHARM – Checks, Harmony, Alternative government, Responsible, Mass representation (own mnemonic). Handout: "How Really Can All Be heard?"

⚠️ 5 · LIMITATIONS

Limitation	Content
Instability	Art 75 confidence; short-lived: Morarji Desai, Charan Singh, V.P. Singh, Chandra Sekhar, Deve Gowda, I.K. Gujral
No policy continuity	Janata (1977–79) reversed Congress policies; Indira Gandhi 1980 returned its own
Cabinet dominance	Laski, Ramsay Muir: "dictatorship of the cabinet" (How Britain is Governed); Indira, Rajiv eras
⚡ Fusion of powers	Bagehot: cabinet = hyphen joining buckle
Non-experts	ministers from MPs (Art 75); time on party and Parliament
Coalition, regionalism	compromise, inflated cabinets, delays

Cure: anti-defection law, coalition consensus, institutional reform. Chain: fractured multiparty system, defection or coalition quarrel, loss of LS confidence, govt falls, reversals. 💡

Source conflict: limitations says PM picks only MPs (Art 75); comparison says non-member via Art 75(5) in 6 months. Use six-month rule; "only MPs" is usual practice.

SPRUCE – Separation limited, Policy continuity, Regionalism, Unstable, Cabinet concentration, Experts left out (memory aid). Handout: "I Pity Cabinets Facing Noisy Coalitions".

MCVCDG – Morarji, Charan Singh, V.P. Singh, Chandra Sekhar, Deve Gowda, Gujral: "Many Cabinets Vanished, Collapsing, Dwindling Governments"

6 · WHY INDIA CHOSE IT

#	Reason	Content
1	Historical familiarity	GoI Acts 1919, 1935; K.M. Munshi: decades of experience
2	Responsible government	Ambedkar: stability and accountability not equal; US stability, British responsibility; chose responsibility
3	No deadlock	US Congress–President clashes; India in 1947 new, diverse, could not risk it
4	Diverse society	ministerial representation; coalitions; integration
5	Flexibility	opposition can govern without dissolution
6	Endorsement	Swaran Singh Committee (1975): working effectively, no presidential model

HRDDFE – History, Responsibility, Deadlock avoided, Diversity, Flexibility, Endorsement: "He Really Debated Deeply, Finally Endorsed"

Ambedkar's trade-off: stability (presidential) vs responsibility (parliamentary): framers picked responsibility. ✅

🎯 7 · INDIA vs BRITAIN PYQ 2021 PYQ 1998 PYQ 2023

#	Point	Britain	India
1	Head of State	hereditary monarch	elected President (Art 52); republic
2	Supremacy	parliamentary sovereignty	written Constitution supreme (Art 13); judicial review, Part III, Seventh Schedule
3	PM's House	Commons only	either House (Arts 75(5), 164(1))
4	Ministers	only elected MPs	non-member for 6 months (Art 75(5))
5	Legal responsibility	ministers countersign monarch	no countersigning; binding advice (Art 74(1))
6	Shadow cabinet	yes	none; LoP (Arts 100, 113 as cited); PAC, Estimates
7	Federal, plural	unitary	Union–State (Arts 163–164)

RSPMLSF – Republic, Supremacy of Constitution, PM either House, Ministers outside 6 months, Legal responsibility, Shadow cabinet absent, Federal: "Red Scooters Pass Many Long Shiny Ferries"

PYQ link: 2021 key: statements 1 (British Parliament sovereign, Indian limited) and 2 both correct; 1998 answer: judicial review. Advice binding: 42nd (1976) and 44th (1978) Amendments. Three PMs from RS: Indira Gandhi (1966), Deve Gowda (1996), Manmohan Singh (2004). Collective responsibility: "swim and sink together".

Current affairs · Aug 2026 PM: UK vs India: UK PM traditionally a Commons member; Indian PM from either House. UK courts cannot strike down Acts; Indian courts can.

Handout alert: "Opposition Leader (Article 100, 113)" quoted as written; remember: India has LoP but no formal shadow cabinet.

Period	Coalition	PM (party)
1977–79	Janata Party	Morarji Desai (Congress (O))
1979–80	Janata Party (Secular)	Charan Singh (Janata (S))
1989–90	National Front	V.P. Singh (Janata Dal)
1990–91	Janata Dal (Socialist) / Samajwadi Janata Party	Chandra Shekhar (Janata Dal (S))
1996–97	United Front	H.D. Deve Gowda (Janata Dal)
1997–98	United Front	I.K. Gujral (Janata Dal)
1998–99	BJP-led coalition	A.B. Vajpayee (BJP)
1999–2004	NDA	A.B. Vajpayee (BJP)
2004–09	UPA	Manmohan Singh (Congress)
2009–14	UPA-II	Manmohan Singh (Congress)
2014–19	NDA	Narendra Modi (BJP)
2019 onwards	NDA	Narendra Modi (BJP)

1787 US Constitution

1919 GoI Act

1935 GoI Act

1975 Swaran Singh Cttee

1977–79 Janata reversals

1980 Indira returns

Recall drill: cover and answer

Eight features and Articles?	Nominal–real (74), majority rule, collective responsibility (75(3)), cohesion, double membership (75(5): 6 months), PM leadership, dissolution (85), secrecy	What makes India parliamentary?	Council of Ministers responsible to the Lok Sabha
Presidential vs parliamentary: tenure, removal, dissolution?	Fixed 4 years, impeachment, none vs confidence-based, no-confidence, PM advises dissolution	Five merits? Six limits?	CHARM; instability, no continuity, cabinet dominance, fusion, non-experts, coalitions
Why India chose it? Ambedkar?	Six reasons; responsibility over stability; Swaran Singh Committee 1975	Seven differences from Britain?	Republic, constitutional supremacy, PM either House, non-member minister 6 months, no countersign, no shadow cabinet, federal
Three PMs from Rajya Sabha?	Indira Gandhi 1966, Deve Gowda 1996, Manmohan Singh 2004	1998 PYQ answer?	Judicial review
Exceptions to separation of powers: name six?	Fusion, delegated legislation, adjudication, judicial law-making (Vishaka 1997), regulators (TRAI), ordinances	Articles showing some separation?	50, 121, 211, 361

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

PM = Prime Minister — Head of the Union government

IT = Information Technology — Computing and digital technology (for example, the IT Act, 2000)

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

TRAI = Telecom Regulatory Authority of India — Regulator of the telecom sector

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

CJI = Chief Justice of India — Head of the Supreme Court

CM = Chief Minister — Head of a State government

MPLADS = Members of Parliament Local Area Development Scheme — Gives each MP an annual fund for local development works

HC = High Court — State-level constitutional court (Art 214)

PAC = Public Accounts Committee — Parliamentary committee that examines CAG audit reports

RS = Rajya Sabha — Council of States; the upper House of Parliament

SOP = Separation of Powers

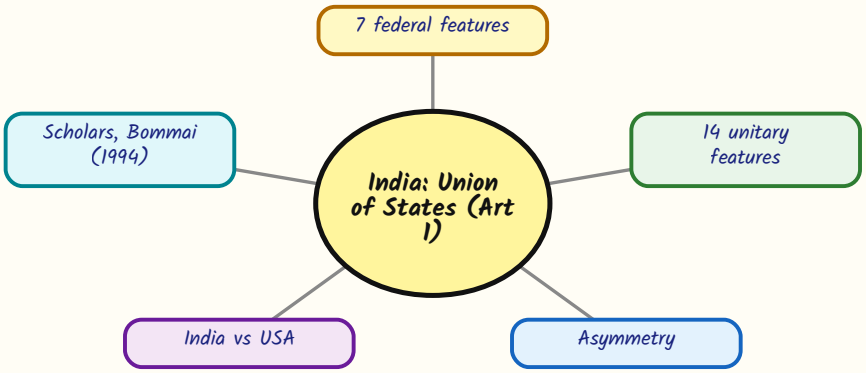
BJP = Narendra Modi

FEDERAL SYSTEM

PYQ Prelims 2021, 2017 · Mains 2022 (with 2020, 2019, 2015, 2014, 2013 themes)

✎ *Unitary vs federal government; India as a Union of States with a strong Centre: 7 federal and 14 unitary features, asymmetry, comparison with the USA, scholars and Bommai.*

At a glance



Handout stresses

→ 9-row federal vs unitary table, 10-row India vs USA

→ 7 federal + 14 unitary features with Articles

→ Bommai (1994): federalism basic feature. PYQs: 2017 "result of an agreement among federating units" is not a feature (d); 2021 federal essential = independence of judiciary (a). Mains: 2022 centralisation vs State autonomy; themes 2020 cooperation, competition, confrontation; 2019 cooperative federalism; 2015 strong Centre vs basic feature; 2013 water disputes. Hooks: Art 1, Art 3, Art 5, Arts 248, 254, 249.

🗺️ 1 · UNITARY vs FEDERAL

Unitary

→ central authority supreme; regional bodies subordinate agencies

→ UK, France, Japan, China, Italy

🗺️ Federal

→ constitutional division between national and regional; both from Constitution

→ USA, Canada, Switzerland, Australia, Russia, Brazil, Argentina

→ units: States, Provinces, Cantons, Republics

#	Basis	Federal	Unitary
1	Structure	two levels, both from Constitution	one centre; regional subordinate
2	Source	Constitution divides; autonomy	national govt sole; delegates or withdraws
3	Constitution	written, codified	written (France) or unwritten (UK)
4	Distribution	constitutional demarcation	no division
5	Supremacy	Constitution	Parliament (UK)
6	Amendment	rigid; both levels	flexible; centre alone
7	Judiciary	independent; settles Centre–State disputes	may or may not be
8	Legislature	usually bicameral	uni- or bicameral
9	Examples	USA, Canada, Australia, India, Switzerland	UK, France, Japan, China, Italy

Federation from Latin foedus (treaty, covenant). Federal: independent, coordinate; unitary: dependent, subordinate. 💡

SDWSRJB — Structure two-tier, Distribution, Written, Supremacy, Rigidity, Judiciary, Bicameral: "Some Dancers Wear Silver Red Jackets, Bravo!"

Shortcut: Federal = two levels, both from Constitution, rigid, written. Unitary = one centre, delegates downward, flexible. ✅

👥 2 · INDIA: UNION WITH FEDERAL STRUCTURE

"Union of States": dual polity + single citizenship, strong Centre, emergency powers: flexible not rigid. 💡

📰 *Current affairs · July 2026* Western Ghats ESA: Centre re-issued draft notification for 56,825.7 sq km ESA across six States; Karnataka and Kerala oppose demarcation, stalling final notification (federal gridlock).

Integration (coming together)

→ independent units join

→ USA: 13 colonies 1787 after Revolution (1775–1783), now 50

Disintegration (holding together)

→ unitary state grants powers

→ Canada: 4 provinces 1867, now 10

🗺️ "Union of States" (Art 1)

→ no word "federation"

→ Ambedkar: not an agreement among sovereign States; units cannot secede

→ result: indestructible Union, States autonomous in sphere

→ why federal: geography, diversity; unity with autonomy

Canada, not USA

→ formed by disintegration
→ term Union, indissoluble
→ centralising: residuary powers, reorganisation, emergency; US = treaty among states

DUC — Disintegration, Union, Centralising: "Delhi Understudied Canada" / "Canada Does Union"

🗺️ 3 · SEVEN FEDERAL FEATURES PYQ 2021

#	Feature	Content
1	Dual polity	Union: defence, foreign affairs, currency, communications, inter-state trade (Art 246); States: public order, agriculture, health, local government, police
2	Written Constitution	originally Preamble, 395 Articles, 8 Schedules; now (2025) about 470 Articles, 25 Parts, 12 Schedules
3	Division of powers	Seventh Schedule: Union 98, State 59, Concurrent 52; Art 254 Union prevails; residuary Union (Art 248)
4	Supremacy	judicial review (Arts 13, 32, 226)
5	Rigidity	federal amendments: special majority + half of State legislatures (Art 368)
6	Independent judiciary	SC: review + Union–State, State–State disputes (Art 131); tenure, conditions
7	Bicameral	RS represents States; protects State interests (Arts 80, 249)

DWDSRIB — Dual polity, Written, Division, Supremacy, Rigidity, Independent judiciary, Bicameral: "Dear Writers, Don't Skip Reading Indian Books" / "Dual Wheels Drive Strong Republic In Balance"

Anchors: powers 246, 248, 254; judiciary 13, 32, 226, 131; amendment 368; House of States 80, 249. ✅

Source conflict: lists 98, 59, 52 here; Schedules chapter 97, 61, 52. Use 98, 59, 52; check class notes. Original: Union 97 (now 98), State 66 (now 59), Concurrent 52 (originally 47). Amendments since 1951 deleted about 20 Articles and Part VII, added about 95 Articles, four Parts (IVA, IXA, IXB, XIVA), four Schedules (9 to 12). US originally 7 Articles, Australia 128, Canada 147.

🎯 4 · FOURTEEN UNITARY FEATURES PYQ 2017

#	Feature	Content
1	Strong Centre	Union List larger; Arts 246, 254, 248
2	States destructible	Parliament alters area, boundaries, name by simple majority (Art 3); Union indestructible
3	Single Constitution	Arts 245, 246; exception J&K until 2019
4	Flexible amendment	Parliament alone mostly (Art 368)
5	Unequal representation	RS by population (Art 80); US Senate equal
6	Emergency	Arts 352–360
7	Single citizenship	Art 5
8	Integrated judiciary	Arts 124–237
9	All-India Services	IAS, IPS, IFS (Arts 312–323)
10	Centralised audit	CAG Arts 148–151; no State consultation
11	Parliament over State List	Art 249: RS resolution, national interest, no amendment
12	Governor central agent	Art 155; pleasure; reserves Bills; Canadian pattern
13	Integrated elections	EC, Art 324
14	Presidential veto	Art 200: absolute veto on reserved Bills

SURFACE — Unitary 1–7: Single citizenship, Unprotected states (Art 3), Representation unequal, Flexible amendment, Authority of Centre, Constitution single, Emergency (memory aid)

SPECIAL – Unitary 8–14: Services (AIS), Presidential veto, Election machinery, Centralised audit (CAG), Integrated judiciary, Agent: Governor, Law on State List (249) (memory aid; Alexandrowicz sui generis)

Handout mnemonic: "Seven Sailors Sang Four Useful English Songs I Added Carefully Perfect Guitar Endings Vividly". **Shortcut:** Lists, Land (Art 3), Law (one Constitution, judiciary, citizenship), Leaders (Governor, AIS, CAG, EC), Crisis, Council (RS by population).

Governor's reservation and "absolute veto" cited to Art 200: quote as handout. President may withhold even on re-submission. Lakshmikanth: AIS violate federalism; Centre alone can initiate amendment (US states too); RS seats 1 to 31 per State, US Senate 100 (two each).

🗺️ 5 · FORMS OF FEDERALISM

Form	Meaning
Cooperative	share functions, coordinate
Collaborative	jointly design, implement, monitor
Competitive	States compete for investment
💰 Fiscal	taxing powers, expenditure, transfers
Asymmetric	unequal powers or status
Holding-together	unitary decentralises (India)
Coming-together	independent units join (USA)

CCCFAHC – "Cats Can Climb Fences After Hot Chases"

🗺️ 6 · ASYMMETRIC FEDERALISM

Dimension	Vertical (Centre–State)	Horizontal (State–State)
💡 Nature	Union dominance	unequal autonomy, resources
📜 Legislative	Union List larger; residuary Art 248	special provisions Arts 371A–H, J
Emergency	Arts 352, 356, 360; Uttarakhand 2016, Maharashtra 2019	J&K pre-2019; NE with AFSPA
Financial	Union buoyant taxes; Finance Commission; Art 293 borrowing	FC and GST Council uneven; NE and poorer States higher shares; 15th FC performance criteria
Political status	Governors politicised	UTs Delhi, Puducherry limited; J&K downgraded post-2019
Economic	fiscal centralisation	Maharashtra, Tamil Nadu draw investment; BIMARU rely on transfers

NLEFPE – Nature, Legislative, Emergency, Financial, Political, Economic: "New Leaders Even Fight Poor Economies"

7 · INDIA vs USA

Dimension	India	USA
💡 Nature	quasi-federal (Wheare)	true dual federalism
Source	creations of Parliament	States pre-existed, created Union
🏛️ Creation	Parliament (Arts 3, 4) without consent	indestructible and equal
Distribution	three lists; residuary Union	two-fold; residuary States
Supremacy	Centre prevails (Arts 249, 250, 254)	both supreme in spheres
Judiciary	reinforces Union tilt (Bommai)	neutral umpire (McCulloch v. Maryland)
📜 Amendment	mainly Parliament (Art 368)	2/3 Congress + 3/4 States; States can propose
Emergency	Union overrides	none
💰 Citizenship, finance	single; Centre taxes	dual; State fiscal autonomy
Heads	Governor appointed (Canadian)	elected

US = "indestructible Union of indestructible states"; India = "indestructible Union of destructible states". Absolute veto, not suspensive, over reserved State Bills.

NSCDSJAEC — Nature, Source, Creation, Distribution, Supremacy, Judiciary, Amendment, Emergency, Citizenship–finance: "No Sister Cares Deeply Since July As Every Cousin"

8 · EVALUATING THE FEDERAL CHARACTER

Scholar	View
K.C. Wheare	quasi-federal: unitary state with subsidiary federal features
K. Santhanam	financial dependence, Planning Commission; practically unitary
Paul Appleby	"extremely federal"
Morris Jones	"bargaining federalism"
Ivor Jennings	"federation with strong centralising tendency"; also "mainly federal, unique safeguards for national unity and growth"
Granville Austin	cooperative federalism; "designed to meet India's peculiar needs"; diversity with strength at Centre
Alexandrowicz	sui generis
Ambedkar	dual polity; Arts 245–255; unitary or federal as circumstances need

WSAMJAAA — Wheare quasi, Santhanam unitary, Appleby extremely federal, Morris Jones bargaining, Jennings strong centre, Austin cooperative, Alexandrowicz sui generis, Ambedkar dual polity: "Why So Angry, Mr Jones? Austin Asked Ambedkar"

S.R. Bommai v. Union of India (1994)

- → federalism = basic feature
- → States supreme in own spheres; "not satellites or agents of the Centre"
- → emergency: exceptions, not norm
- → Art 356: procedural limits on President's Rule
- → federalism a matter of principle, not administrative convenience; "Greater power to the Centre does not make States mere appendages"

Federalism at work

- → Belgaum: Maharashtra and Karnataka
- → Cauvery: Art 262, Inter-State River Water Disputes Act
- → regional parties: Tamil Nadu, Andhra Pradesh, West Bengal
- → new States: Jharkhand, Mizoram, Telangana
- → fiscal devolution demands; Planning Commission replaced by NITI Aayog 2015

Article	Provision
1	Union of States
245–255	legislative distribution (246), Seventh Schedule
262	inter-state water disputes
263	Inter-State Council
352–360	emergencies
368	amendment; State ratification

Source conflict: Jennings quoted two ways: use "federation with a strong centralising tendency" for centralising questions. Ambedkar in CA: Union not a league of states, nor States agencies; Centre cannot alter partition line by own will; States not mere municipalities. Special majority = 2/3 present and voting + majority of total of each House.

Quote	Speaker
Dual polity	Ambedkar
Quasi	Wheare
Cooperative	Austin
Bargaining	Morris Jones
Sui generis	Alexandrowicz

Appendages	Bommai

Ambedkar: "India is a Union of States, not a league of States. The federation is not the result of an agreement, nor can States secede." Wheare: unitary with subsidiary federal features. Austin: federation for diversity with strength at the Centre. ✅

1775–83 American Revolution

1787 USA federation

1867 Canada

1950 395 Arts, 8 Sch.

1994 Bommai

2016 Uttarakhand

2019 J&K; Maharashtra

2025 ~470 Arts, 25 Parts, 12 Sch.

Recall drill: cover and answer

Why "Union of States" (Art 1)?	Not an agreement among States; no secession (Ambedkar); indestructible Union	Seven federal features?	Dual polity, written Constitution, division of powers, supremacy, rigidity, independent judiciary, bicameral
Fourteen unitary features: key Articles?	Art 3, Art 5, Arts 352–360, Art 249, Art 155, Art 200, Arts 312–323, Art 324, Arts 148–151	List counts?	Union 98, State 59, Concurrent 52 (handout); original Union 97, State 66, Concurrent 47
Wheare, Austin, Morris Jones, Alexandrowicz, Appleby?	Quasi-federal, cooperative, bargaining, sui generis, extremely federal	Bommai 1994 held?	Federalism basic feature; States supreme in sphere; Art 356 limited
PYQ 2017 and 2021?	Agreement among units is not Indian; independent judiciary is the federal essential	India vs USA: creation, amendment, emergency, citizenship?	Parliament can alter States; mostly Parliament; Union override; single vs dual

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

RS = Rajya Sabha — Council of States; the upper House of Parliament

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

AIS = All India Services — IAS, IPS and Indian Forest Service, created under Art 312 and shared by Union and States

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

IPS = Indian Police Service — All India Service for police officers

AFSPA = Armed Forces (Special Powers) Act, 1958 — Gives armed forces special powers in areas declared "disturbed"

GST = Goods and Services Tax — Common indirect tax on goods and services; policy by the GST Council (Art 279A)

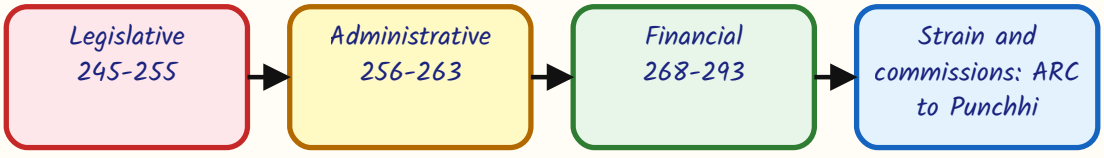
NITI = National Institution for Transforming India — Government policy think tank that replaced the Planning Commission in 2015

⚖ CENTRE-STATE RELATIONS ⚖

PYQ Prelims 2012

✎ *How law-making (Arts 245-255), administration (256-263) and money (268-293) are shared between Union and States, the Centre's controls, the cooperative machinery, and the commissions (ARC to Punchhi) that shaped the debate.*

🗺 At a glance: three relations, one tilt to the Centre



FRAMEWORK: THREE RELATIONS

🏛️ Parliamentary govt inside a federal frame

→ Legislative: who makes laws (Arts 245–255)
→ Administrative: who executes, Centre supervises (Arts 256–263 and others)
→ Financial: who taxes, shares, spends (Arts 268–293)
→ Legislative scheme = three-fold division, Seventh Schedule; Art 246 key; residuary to Union

L-A-F

→ Law, Administration, Funds. Bands: 245–255
→ 256–263
→ 268–293.

📰 In the news · Aug 2026 (verify dates) Health to Concurrent List: 15th FC High Level Group on Health recommended shifting health to the Concurrent List and an All India Medical and Health Service under Art 312.

📜 LEGISLATIVE RELATIONS: TERRITORY AND LISTS (Part XI, 245–255) PYQ 2012

🗺️ Territorial reach (Arts 245–246)

→ Parliament: whole or any part of India; extra-territorial effect allowed (citizens and property abroad)
→ State legislature: whole or part of its own State

🏛️ Exceptions to Parliament

→ Art 240: President regulations for certain UTs (force of Acts)
→ Fifth and Sixth Schedules (Art 244): Governor or President modifies or excepts central laws in Scheduled and tribal areas
→ Art 246(4): Parliament can legislate on any subject for territories not part of a State (UTs, acquired territories); eg Ladakh

List	Who	Items (handout)	Examples
🗺️ Union (I)	Parliament exclusively	98 (originally 97)	Defence, foreign affairs, atomic energy, banking, currency, communication, inter-state trade; census, audit, insurance
🗺️ State (II)	States, normally	59 (earlier 66)	Police, public health, agriculture, markets, local govt, public order; prisons, fisheries, theatres, gambling
🆕 Concurrent (III)	Both	52 (up from 47)	Criminal law, marriage, bankruptcy, education, labour welfare, electricity, forests, population control; civil procedure, planning, drugs, newspapers

🎯 Handout examples

→ Nuclear energy: Atomic Energy Act 1962
→ Defence forces: Art 53
→ Police, public order = State List Entries 1, 2 (Parliament may legislate in a national emergency)
→ Education: NEP 2020, implemented by States

🧑‍🤝‍🧑 List numbering still shows old last entries

→ Union ends at 97 but has 98 (2A, 92A, 92B added; 33, 92, 92C omitted)
→ State ends at 66 but has 59 (11, 19, 20, 29, 36, 52, 55 omitted)
→ Concurrent ends at 47 but has 52 (11A, 17A, 17B, 20A, 33A added)

Source conflict (counts): Schedules chapter says Union 97, State 61, Concurrent 52. This chapter: **98, 59, 52** (97, 66, 47 earlier). Quote 98–59–52 from this handout.

Source conflict (42nd Am 1976): this chapter says **five** subjects moved State to Concurrent; Schedules chapter lists four (education, forests, wildlife, weights and measures). Use five.

E F W W A — Every Forest Welcomes Wild Animals: **E**ducation · **F**orests · **W**eights and measures · **W**ild animals and birds protection · **A**dministration of justice (except SC and HCs). 42nd Am 1976 moved these five from State List. (Order free; memory aid, not from the handout.)

Hierarchy and conflict

→ Union List prevails over State and Concurrent; Concurrent over State

→ **Art 254(1)**: Central law overrides State law on Concurrent subject

→ **Art 254(2)**: State law with **Presidential assent** prevails in that State; Parliament can still override later

→ Eg **Kerala Professional Colleges Act 2006**: assented, later superseded by central NEET regulations

Special points

💰 **GST**

→ **101st Am 2016**: **Art 246A** concurrent power

→ **Art 269A**: Parliament exclusive on inter-state GST

→ **Art 279A**: GST Council, joint forum

Residuary (Art 248)

→ Law-making and taxation on unlisted subjects (digital currencies, space tech, cybersecurity named)

In the news · Aug 2026 (verify dates) **Births and Deaths:** Registration of Births and Deaths (Amendment) Act 2026 amends Sec 13(3) of the 1969 Act to encourage timely reporting. Concurrent List subject.

In the news · Aug 2026 (verify dates) **MMDR Act and federalism:** MMDR Amendment Act 2026 criticised by Jharkhand and Odisha for cutting fiscal autonomy; seen as against SC 2024 ruling that States can tax mineral rights.

In the news · July 2026 (verify dates) **Exams Act and Concurrent List:** education on Concurrent List via 42nd Am (1976); 2026 amendment requires every State/UT to designate a Court of Session; Centre may refer cases to central agencies.

🏛 Origin and comparison

→ Lists from **GoI Act 1935**: Federal, Provincial, Concurrent *PYQ 2012*

→ 1935: residuary with **Governor-General**; Constitution: **Parliament**, **Canadian** model

→ USA: single enumeration of federal powers, residuary to States; Australia similar

→ India: **double enumeration plus concurrent field**

U-S-C

→ **U**nion = uniformity (defence, currency)

→ **S**tate = local diversity (police, agriculture)

→ **C**oncurrent = cooperation: "Union Serves Country". Numbers **98**

→ **59**

→ **52**.

⚖️ CLASS · Art 245–254: extra-territorial law, doctrines, reading the Lists

Extra-territorial law: operates beyond India (e.g. laws for NRIs); Maritime Zones Act 1976 covers territorial waters, continental shelf, EEZ. Residuary: subject in no list = Entry 97, Union List. Art 246: Union List to Union; Concurrent to both; State List to State.

Doctrine / rule	Case	Point
🗺️ Territorial nexus	State of Bombay v. RMDC, 1957	State law may reach outside only with sufficient nexus
Pith and substance	F.N. Balsara, 1951	State law valid if in essence on a State subject; trespass on Union List incidental, and Union power unaffected
📜 Colourable legislation	Gajapati Narayan Deo	"wrong use" of power
Same in substance (Art 254)	Bharat Shanti Lal, 2008	Concurrent subject: same content and result, only layout of sections differs: State law valid, no repugnancy; SC raised the threshold of repugnancy

Class vs handout: class note writes Gajapati Narayan Deo as "1993"; handout gives 1953 (check).

⚡ Limits on legislative power (class list of 8)

→ Art 246
→ Art 13(2)
→ Art 245
→ prior sanction
→ Art 240
→ Schedules V and VI
→ colourable legislation
→ delegated legislation: basic policy must be passed and debated by Parliament; an essential function, so not for the bureaucracy

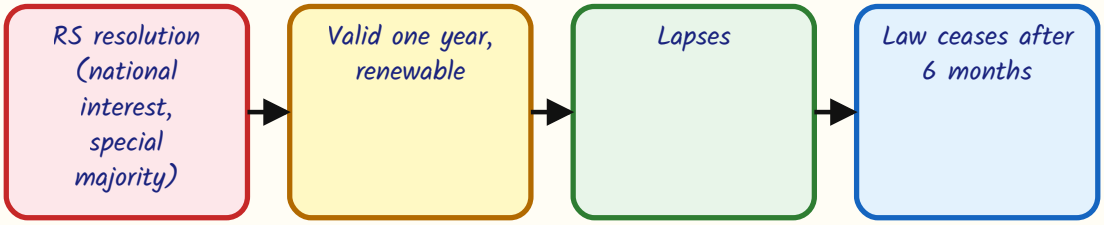
Interpreting the Lists

→ SC reads each entry liberally; a general word covers all reasonable subsidiary matters
→ similar subjects sit in different Lists: Union arms and ammunition; State police, public order, prisons; Concurrent criminal law and procedure
→ overlap: harmonise entries first; if not, Union List > Concurrent List, and (Union + Concurrent) > State List

🏛️ PARLIAMENT IN THE STATE FIELD: FIVE ROUTES

Art	Trigger	Effect and duration
249	Rajya Sabha resolution, special majority, national interest	Whole or part of India; resolution one year, renewable yearly; laws cease six months after lapse; States may legislate, Parliament law prevails on conflict
Art 250 (with 352)	National Emergency	Any State List entry for Emergency duration; laws end six months after it ceases; Central law overrides
252	Two or more State legislatures request	For requesting States; others may adopt by resolution; only Parliament amends or repeals. Prize Competitions Act 1955; Wildlife (Protection) Act 1972; Water (Prevention and Control of Pollution) Act 1974; Urban Land (Ceiling and Regulation) Act 1976; Transplantation of Human Organs Act 1994
Art 253	Implement treaties, conventions, agreements	State List matters. UN (Privileges and Immunities) Act 1947; Geneva Convention Act 1960; Anti-Hijacking Act 1982; TRIPS laws; environmental statutes
356	President's Rule in a State	Any State List subject for that State; laws continue after PR; State legislature may repeal, amend, replace

Art 249 life cycle



R N S I P – Rajya Nudges States, Inviting Parliament: Rajya Sabha (249) · National Emergency (250) · States' request (252) · International treaties (253) · President's Rule (356). (Memory aid, not from the handout.)

Duration rule: 249 and 250 laws end 6 months after trigger ends; 356 laws continue until State repeals; 252 only Parliament amends. Art 252: resolution = State abdicates its power.

Source conflict (Art 249 majority): text says special majority; Articles table says two-thirds of RS members; extras say two-thirds of members present and voting. Read as the RS two-thirds-type special majority.

Uses: pollution control, wildlife, transplantation, urban land, international conventions. Each route = Union acts for uniformity, with a check.

🎯 CLASS · Arts 252, 253 examples; Punchhi on treaties

Art	Class example
252	Clinical Establishments (Registration and Regulation) Act, 2010: adopted at the request of Sikkim, Himachal Pradesh, Mizoram (class note also shows "2001")
253	2011 Lokpal Bill (UPA-2): Lokpal at Union and State level, from India's ratification of the UN Convention against Corruption; later withdrawn

Punchhi: treaties that touch State List subjects should be negotiated with the States involved.

📜 CENTRAL CONTROLS OVER STATE LEGISLATION

Tool	Content
Reservation (Arts 200–201)	Governor reserves Bill (conflict with central law, DPSP, national interest). President: assent, withhold (absolute veto), or return for reconsideration (not a Money Bill). Eg Bills hitting HC powers or Union List entries
Sanction (Art 304(b))	Certain State Bills restricting trade, commerce, intercourse need President's prior approval; protects economic unity (Art 301)
Financial Emergency (Art 360)	State Money Bills and other financial laws reserved for President
🗺 Federal supremacy (246 with 254)	Union law prevails in overlap

TURF – Trade-restricting Bills need prior sanction (304(b)) · Union law prevails · Reservation of State Bills (200–201) · Financial Emergency: Money Bills reserved (360). (Memory aid, not from the handout.)

Sarkaria (1983–88): federal supremacy is "not a denial of federalism but a device to preserve unity amidst diversity". Rationale: cooperative federalism; handout cites MHA Report on Centre-State Relations (2023).

Art	Focus	Art	Focus
245	Territorial extent	251	Inconsistency: 249/250 laws vs State laws
246	Subject lists	252	Two or more States consent; others adopt

246A	GST	253	Treaties
247	Additional courts for Union laws	254	Conflict, Central law prevails unless assent
248	Residuary	255	President's recommendation or sanction = procedural only
249	RS two-thirds, national interest	250	During Emergency

245–255: Territory, Lists, GST, Courts, Residuary, Rajya Sabha, Emergency, Inconsistency, States' consent, Treaties, Conflict, Procedure only ("Ten Lucky Girls Came Round Rose Every Interesting Sunday To Catch Poems").

Other controls

→ Governor cannot make ordinance without President's instructions in certain cases (Art 213)

→ Concurrent executive power stays with States unless Constitution or Parliament gives Centre (eg Essential Commodities Act)

→ Centre cannot delegate legislative power; one State cannot ask Parliament to legislate on State subject

→ Art 258A came by 7th Am 1956; Art 257A (armed forces help) repealed

ADMINISTRATIVE RELATIONS (Arts 256–263)

⚡ Executive authority

→ Union: whole India on Union List; treaties (Art 73)

→ State: own territory, State List

→ Concurrent: Art 73(1)(a) State power extends unless Constitution or Parliamentary law gives Union

→ Eg RTE Act 2009, Environmental Protection Act 1986: joint

Chain of command

Art 256: obey Union laws → *Art 257: do not impede* → *Art 365: failure to comply* → *Art 356: President's Rule*

Union can direct States on	Content
Communications	Roads, bridges, ports, airways of national or military importance (border roads in NE and Ladakh)
Railways	Protect railways in State territory
👫 Linguistic minority education	Primary education in mother tongue (Art 350A)
🗺️ Scheduled Tribes welfare	State schemes (Eklavya Model Residential Schools, Tribal Sub-Plan)

CREW – Communication · Railways · Education (mother tongue, linguistic minorities) · Welfare of STs. Like a train CREW, States follow the Centre (Art 365 backs). (Memory aid, not from the handout.)

Examples of Art 356: Punjab (1980s), Uttarakhand (2016). Sarkaria 1983–88: obligations strengthen cooperative federalism. Second ARC (2007): directions help national schemes, reduce disparities.

🗺️ CLASS · Administrative relations: outline and Union ministries

Six aspects of administrative relations (class outline)

→ Central Administrative Directions (CADs): normal and emergency
→ mutual delegation: Arts 258, 258A
→ Art 261 full faith and credit
→ position of the Governor
→ All India Services
→ coordinating mechanisms

Normal-time directions: Arts 256, 257, 339(2), 347, 350A (class list). Emergency: 352, 356, 360; disobedience: Art 365. 💡

🗺️ Union ministries on State List subjects (MHA, Agriculture and Farmers' Welfare, Health and Family Welfare)

→ Not a breach of federalism: only basic functions

⚡ Nine functions

→ initiative and leadership
→ share best practice
→ national policy framework
→ research (ICAR, NDRI: State funds not enough)
→ foundational training (training of trainers)
→ financial support: CSS
→ evaluate CSS impact
→ inter-state coordination platform
→ liaison with international bodies

DELEGATION AND COOPERATION (258–263)

Route	Content
👑 Art 258: President to State	With State's consent, entrust Union functions, conditionally or not (CSS, disaster management, regional development)
🗺️ Art 258A: State to Union	With Union's consent, State (Governor) entrusts State functions to Union (border security, complex infrastructure)
📜 Parliament by law	Union List subject: Centre may entrust to State without consent
🗺️ State alone	Cannot confer powers on Centre unilaterally
259	Repealed: armed forces in Part B States
260	GoI functions in territories outside India, by agreement
261	Full faith and credit to public acts, records, judicial proceedings
262	Inter-state river disputes; Inter-State River Water Disputes Act 1956
263	Inter-State Council: first 1990; PM chairs; MHA oversees (Allocation of Business Rules 1961)
307 related	Authority for inter-state trade: none constituted

Delegation: agreement-based (both sides) vs legislative (only Parliament, no consent). CBI: works in a State only with State consent, unless judiciary orders. Joint programmes: PMAY, Poshan Abhiyaan, disaster management. Disaster Management Act 2005 and Water Disputes Act 1956 frame emergencies. ⭐

Source conflicts: (1) 258A: Governor entrusts with Union consent vs State govt with mutual consent: both mean State may hand functions to Union. (2) Inter-State trade authority: Art not named here; Punchhi links it to Art 307, List I Entry 42; none set up. (3) Art 261 is full faith and credit, not coinage (handout slip). 📌

261–263 + trade

→ Fish Wait Close To shore = Full faith 261
→ Water 262
→ Council 263
→ Trade authority (none).

ALL-INDIA SERVICES AND PSCs

All-India Services

→ Three: IAS, IPS, IFS; rotate between Union and State
→ Recruitment, training, ultimate control: Centre; day-to-day: States
→ ICS and Indian Police replaced by IAS, IPS after 1947; IFS 1966
→ Art 312: Parliament creates additional AIS if Rajya Sabha resolution (two-thirds)
→ Common rights, uniform pay: single integrated service

Why AIS	Content
Excellence	High governance standards
Uniformity	Consistent procedures
🗺️ Centre-State link	Disaster management, security, CSS (PMAY, Poshan Abhiyaan, MGNREGA)
Strategic posts	Officers execute key laws and programmes

Ambedkar (CA): dual polity, dual service in all federations; some posts strategic; States keep own services, plus an AIS with common qualifications, uniform pay; slight limit on State autonomy, justified. ⭐

PSCs (Part XIV, Arts 315–323)

→ State PSC: Governor appoints; removal only by President (Art 316)
→ Joint PSC (Art 315(2)): Parliament, on request of two or more States; President appoints
→ UPSC help (Art 320): on Governor's request, President's approval; specialised services; joint recruitment schemes

Source conflict (Art 312): one place says RS resolution, another two-thirds majority. Use: RS resolution (two-thirds). 📌

🛡️ INTEGRATED JUDICIARY, EMERGENCIES, SAFEGUARDS

Integrated judiciary

→ SC (Arts 124–147); HCs (Arts 214–231)
→ Art 231: common HC for two or more States or UTs (Maharashtra and Goa; Punjab and Haryana)
→ Art 217: President appoints HC judges after CJI and Governor; also transfers, removes
→ Aims: uniform interpretation, unitary frame in federal system, flexibility

Emergency	Effect on States
National (Art 352): war, external aggression, armed rebellion	Union directs States on any subject; States not suspended, autonomy curtailed
👑 President's Rule (Art 356)	President assumes State govt functions (incl. Governor's); Parliament laws continue after unless State alters
Financial (Art 360)	Union directs on financial propriety, incl. salary reductions

Safeguard	Content
Art 355	Union duty: protect each State against external aggression and internal disturbance; ensure govt per Constitution
👑 Governor (Art 155)	Appointed by President, at his pleasure; head of State and Union representative; reports to Centre
SEC (Art 243K)	Appointed by Governor; removable only by President

J-E-G-S: Judiciary integrated, Emergencies, Governor, State Election Commissioner ("Just Every Good State"). 💡

👥 EXTRA-CONSTITUTIONAL BODIES

Type	Bodies
Planning	NITI Aayog (2015) replaced Planning Commission; think tank for cooperative federalism
🏛️ Advisory councils	National Integration Council; Central Council of Health and Family Welfare; Central Council of Local Government
Regional	Zonal Councils (States Reorganisation Act 1956); North Eastern Council (statutory)
Professional	Central Council of Indian Medicine; Central Council of Homoeopathy; UGC
Conferences	Governors' (President presides); CMs' (PM); Chief Secretaries' (Cabinet Secretary); IGPs, Chief Justices, VCs, Home and Law Ministers

NZNC: NITI, Zonal, North Eastern, Conferences ("Nice Zebras Never Cry"). 💡

FINANCIAL RELATIONS (Part XII, Arts 268-293)

💰 Tax powers

→ Five mechanisms: tax division, Finance Commission, grants and transfers, funds and borrowing, audit

→ Art 246 + Seventh Schedule: Union List taxes to Parliament, State List to States

→ No tax entries in Concurrent List except GST

→ Residuary taxing: Art 248 (gift, wealth, expenditure tax)

→ Union taxes in 13 entries; State taxes in 18

→ Levy, collect, appropriate: Art 268 (Union levies, States collect and keep); Art 270 (Union levies, collects, shares)

💰 GST AND 80TH AMENDMENT

👫 101st Am 2016

→ Art 246A: concurrent power on GST

→ Art 269A: IGST on inter-state supplies, Parliament exclusive

→ Art 279A: GST Council (Union Finance Minister chairs); harmonised rates, exemptions, disputes

Subsumed

→ Centre: Central Excise, Additional Excise, Service Tax, Customs (CVD, SAD)

→ States: VAT/Sales Tax, Entertainment Tax (except local bodies), Entry Tax, Octroi, Purchase Tax, Luxury Tax

→ Art 268A (88th Am, service tax) and Union List Entry 92C deleted

💰 GST Council advises on

→ taxes to merge, goods exempted, model laws, turnover threshold, rates (floor, bands), special disaster rates

80th Am 2000

→ Alternative Scheme of Devolution, 10th FC: 29% of gross revenue of certain central taxes to States

→ Parity: corporation tax, customs, income tax

→ Retrospective from 1 April 1996

→ Art 272 deleted

Art	Limit on State taxation
Art 276	Profession, trade, calling, employment tax: max Rs 2,500 per person per year (was Rs 250 until 60th Am 1988)
286	No State tax on supply outside State or in import-export; Parliament sets inter-state rules
287	Limits State tax on electricity consumed by or sold to Union (or railways)
288	Exemptions for water or electricity authorities across river valleys

GST articles: Tax concurrent 246A, IGST 269A, Council 279A ("Tax Is Common"). 💡
Money numbers: 29% (80th Am), Rs 2,500, 41% (15th FC).

💰 DISTRIBUTION OF TAX RECEIPTS (268–271)

Art	Category	Content
268	Levied by Centre, collected and kept by States	Stamp duties on bills of exchange, cheques, insurance policies, share transfers
269	Levied and collected by Centre, assigned to States	Inter-State sale or purchase of goods (not newspapers); consignment in inter-State trade; not in Consolidated Fund of India
269A	GST on inter-State trade	IGST by Centre, shared on GST Council guidance; Parliament decides place of supply
270	Levied, collected by Centre, shared	All Union taxes except 268, 269, 269A, surcharge (271), specific cesses; on FC advice; backbone of transfers
Art 271	Surcharge	Parliament may levy on 269, 270 taxes; Centre alone keeps; none on GST
🗺️ State List	Levied, collected, retained by States	18 taxes

💰 State List taxes named

→ Land revenue; agricultural income tax; succession duty and estate duty on agricultural land
→ Taxes on lands, buildings, mineral rights, professions
→ Excise on alcohol, opium, narcotics (not medicinal)
→ Taxes on electricity, vehicles, road or inland waterway passengers
→ Entertainment, luxury, betting taxes (local bodies)
→ Stamp duties on non-Union subjects; fees on State List matters (not court fees)

SPISS – Stamp 268 · Proceeds assigned 269 · IGST 269A · Shared 270 · Surcharge 271 (order kept; source: Some People Invest Slowly) (own mnemonic)

Source conflict (Art 268): Articles table says stamp duties and excise on medicinal preparations, and calls 269 a pre-GST inter-State trade tax. Use the text list; remember the table's medicinal excise.

💰 CLASS · Taxes: cess, State duties, CST vs IGST, FRBM

Tax	Art	Applies to	Basis
💰 CST (Central Sales Tax)	269	inter-state goods outside GST	origin-based
💰 IGST	269A	inter-state goods and services under GST	destination-based

Class additions

→ Cesses and surcharges (Arts 270, 271): about 20% of Centre's tax revenue
→ Divisible pool (Art 270): all taxes except cess and surcharge (and 268, 269, 269A), shared on FC percentage
→ States still levy duties outside GST on: crude petroleum, petrol, high speed diesel, natural gas, ATF, alcohol for human consumption
→ grants-in-aid on FC advice; plan grants for five-year plans
→ FRBM Act 2003: caps fiscal deficit; States have own FRBM laws

💰 NON-TAX REVENUE, GRANTS, BORROWING

Union earns	States earn
Posts and telegraphs, railways, banking, broadcasting (AIR, Doordarshan), coinage and currency (seigniorage), CPSEs, escheat and lapse, dividends, fees, fines	Irrigation, forests, fisheries, State enterprises, escheat and lapse, fees from professional licences and educational institutions, fines

Grant	Content
Statutory (Art 275)	Needy States; different sums; charged to CFI; ST welfare and Scheduled Areas (eg Assam); on FC advice (Art 280)
Discretionary (Art 282)	Any public purpose, even beyond legislative powers; Union's discretion; plan targets
Temporary (Art 273)	In lieu of jute export duty, ten years from commencement: Assam, Bihar, Odisha, West Bengal (text); Articles table names West Bengal, Bihar, Assam

Borrowing	Rule
🗺️ Union (Art 292)	Within and outside India; no limit stated; credited to CFI; Parliament sets framework; MoF and RBI manage
🗺️ State (Art 293)	Within India only; no Union consent within limits; consent for outside India or beyond limits; FRBM norms; FC evaluates, recommends debt ceilings; MoF monitors

Conflicts: handout cites Art 261 for coinage (wrong: full faith and credit). Lakshmikanth on borrowing: Centre borrows inside or outside India within limits fixed by Parliament (no such law yet); State only within India, within limits of its legislature; State needs Centre consent if a Central loan or guarantee is outstanding. Handout: States may borrow abroad with Union consent. Use handout in class.

Grants: Statutory 275, Discretionary 282, Temporary 273 ("Sun Does Travel"). 💡

💰 FINANCE COMMISSION AND TAX IMMUNITIES

💰 Finance Commission (Art 280)

→ President constitutes every five years or earlier
→ Chairperson (public affairs) + at least one finance or economics member + others nominated
→ Independent; quasi-judicial; balancing wheel of fiscal federalism

⚡ Three functions

→ Distribute tax revenues (net proceeds)
→ Grants-in-aid (Art 275)
→ Fiscal consolidation advice
→ Also advises on panchayat and municipal resources via SFC reports (73rd, 74th Am)

→ 15th FC (2020–2025): 41% devolution (population, income distance, area, fiscal performance)
→ Art 281: recommendations laid before Parliament with explanatory memorandum

🛡️ Art 274 safeguard: Bill needs President's recommendation if it

→ imposes or varies taxes in which States interested
→ alters definition of agricultural income
→ affects principles of distribution
→ imposes surcharge for Centre

Net proceeds

→ Total minus cost of collection (Art 279)
→ CAG certifies; final and binding

Immunity	Content
🗺️ Union property (Art 285)	Exempt from State and local taxes; property = land, buildings, assets, shares, debts; sovereign or commercial; Parliament can modify; Union corporations and companies not automatically immune
🗺️ State property, income (Art 289)	Generally exempt from Union tax incl. commercial operations; Parliament may tax State commercial activity; local authorities, State corporations not immune
1963 advisory opinion	State immunity does not cover customs and excise

Emergencies and money

→ Art 352: President may modify or withhold tax transfers and grants; until end of financial year after Emergency ends
→ Art 360: financial propriety directions; salary cuts; State Money Bills reserved

Art	Focus	Art	Focus
272	Repealed (excise sharing, GST)	283	Custody of Consolidated, Contingency Funds, Public Account
274	Prior recommendation	284	Suitors' deposits, court fees
277	Saves pre-Constitution State or municipal taxes	290	Adjustments: expenses, pensions

278	Repealed (Dominion–Province)	290A	Devaswom Funds, Kerala and Tamil Nadu
279	Net proceeds calculation	292, 293	Borrowing: Union, States

Anchors

→ 268–271 tax split
→ 275 statutory grants
→ 280 FC
→ 282 discretionary
→ 285, 289 immunities
→ 292–293 borrowing. FC: Five years, Chair plus finance member, Distribute, Grants, Fiscal ("Five Cats Dance Gracefully Fast").

EVOLVING DYNAMICS AND STRAIN

Evolution

→ First two decades: cooperative, stable (Congress everywhere)
→ 1967 elections: Congress lost nine States, fragile Centre majority; non-Congress States resisted centralisation
→ Disputes: legislative competence, funds, discretion, Art 356, services, planning

Factor today	Content
🗺️ Political federalism	Regional parties, coalitions since late 1980s
Financial dependence	CSS and projects despite Arts 268–293
Judicial intervention	SC and HCs mediate
Institutions	Inter-State Council (263), Zonal Councils, NITI Aayog
Conflicts	Disparity, language, statehood demands

Nine strains

→ 1 Governors: Art 155, pleasure (Art 156), 356 and Art 200 role, dual role
→ 2 President's Rule misuse (Art 356)
→ 3 Central forces (Art 355)
→ 4 Finance: grants, devolution, CSS (268–282)
→ 5 Planning Commission (now NITI)
→ 6 All-India Services: Centre decides posting (Art 312)
→ 7 Reservation of Bills (Art 201)
→ 8 Media and inquiry commissions
→ 9 Encroachment on State List (Art 246)

Shortcut

→ People (Governor)
→ Power (356)
→ Police (355)
→ Purse (finance, planning)
→ Posts (AIS)
→ Papers (Bills, media, encroachment).

Lakshmikanth lists 14 tension areas, adding Governor appointment and dismissal, enquiry commissions against CMs, CSS, CBI and ED. ⭐

👑 COMMISSIONS: ARC, RAJAMANNAR, ANANDPUR, WEST BENGAL

Body	Facts
ARC 1966	Chair Morarji Desai, later K. Hanumanthayya; study team M.C. Setalvad (first AG); report 1969. Recommended Inter-State Council (263), non-partisan Governors (155–156), devolution, more finance, Central forces mainly on State request (355). Little action
Rajamannar	Set up 1969 by DMK Tamil Nadu govt; three members under Dr. P.V. Rajamannar (with Lakshmanswamy Mudaliar, P.C. Chandra Reddy); report 1971. Causes: Arts 356, 352, 360, one-party dominance, weak fiscal autonomy, Planning Commission. Wanted: Inter-State Council, permanent FC, statutory planning body, omit 356, 357, 365, residuary to States, move subjects to State List, abolish IAS, IPS, IFS. None implemented

Anandpur Sahib 1973 (Akali Dal, Punjab)

→ Centre limited to defence, foreign affairs, communications, currency
→ Residuary to States (Art 248); truly federal model

👫 West Bengal Memorandum 1977 (Communist-led)

→ "Union" replaced by "Federal"
→ Centre: defence, foreign affairs, currency, communications, economic coordination
→ Residuary to States; repeal 356, 357, 360
→ State consent for new States
→ 75% of Centre revenue to States
→ Equal powers for RS and LS; abolish AIS

A R A W S P – Autonomy Rarely Arrives Without Strong Pressure: ARC (1966, report 1969) · Rajamannar (1969, report 1971) · Anandpur Sahib (1973) · West Bengal (1977) · Sarkaria (1983, report 1988) · Punchhi (2007, report 2010). (Memory aid, not from the handout.)

SARKARIA AND PUNCHHI

Point	Sarkaria	Punchhi
🏛️ Set up	1983, three members, Justice R.S. Sarkaria (with B. Sivaraman, S.R. Sen)	April 2007, Justice Madan Mohan Punchhi (ex-CJI); Second Commission on Centre-State Relations
Report	1988; term extended four times	April 2010; 1,456 pages; 310+ recommendations; builds on Sarkaria, Second ARC, NCRWC
Stance	No major structural change; functional, cooperative federalism; strong Centre; "blood pressure at the Centre and anaemia at the periphery"	Restraint in State subjects; consensus on Concurrent List
Outcome	247 recommendations, 180 implemented incl. Inter-State Council (1990)	Governors from outside State, fixed five years; localised emergency

Sarkaria recommends	Content
🏛️ Inter-State Council	Permanent, under Art 263 (Inter-Governmental Council)
Art 356	Very limited, last resort
AIS	Strengthen; create more
Residuary	Taxation with Parliament; other to Concurrent List
Assent	President gives reasons when withheld
NDC	Rename National Economic and Development Council (NEDC)
🏛️ Zonal Councils	Revive
Armed forces	Centre may deploy without prior consent; consult
👫 Concurrent List	Centre consults States
👑 Governors	Consult CM in appointment; cannot dismiss majority ministries; protect five-year term
💰 Corporation tax	Net proceeds may be shared
👑 Inquiry commissions	None against State ministers unless Parliament demands
Surcharge	Specific purposes, limited periods
👑 FC and Planning Commission	Division reasonable
Three-language formula	Uniform
Media	Policy central, operations decentralised
RS, reorganisation	No change
👫 Linguistic minorities	Activate Commissioner

Sarkaria: Inter-State Council, Rule 356 last resort, AIS, Residuary, Assent reasons, NEDC, Zonal ("In Real Administration, Reform Always Needs Zeal").

Punchhi recommends	Content
👫 Concurrent List	Union-State consensus before legislating

Overlaps	Centre only where uniformity needed
🧑‍🤝‍🧑 ISC	Auditing and coordinating role
Assent	Art 201 six-month limit guides President
Treaties	Parliament legislates clearly (Entry 14, List I); FCs consider treaty cost
👑 Governors	Eminent, neutral, outside State, fixed five years, removal not at Centre's discretion; Art 163; no university chancellorships; may sanction prosecution of State ministers; impeachment like President; decide on assent or reservation within six months
🏛️ Hung assembly	CM proves majority on floor; order: pre-poll alliance, largest single party, post-poll coalition of all, post-poll alliance with outside support
Emergency (352, 355, 356)	Exhaust alternatives; localised emergency; Bommai guidelines into Art 356
Bodies	Empower Art 263 council and Zonal Councils; Empowered Committee of State FMs; cost-sharing in central laws
AIS	New services: health, education, judiciary, engineering
🏛️ Rajya Sabha	Equal seats for all States
Local bodies	Define PRI powers constitutionally
Resources	Mineral royalties revised every three years; remove professional tax ceilings; Inter-State Trade and Commerce Commission (Art 307, Entry 42), appeal to SC
Transparency	Annual independent assessment of fiscal legislation; upgrade FC Secretariat

Order

→ ARC 1966-69 = Setalvad
→ Rajamannar = DMK, TN, 1971
→ Sarkaria = 247 and 180
→ Punchhi = 1,456 pages, 310+, Governors from outside ("All Reports Seek Peace").

📰 *In the news · July 2026 (verify dates)* **States fund 40% of VB-G RAM G:** States must fund 40% (90:10 for NE and Himalayan States) with normative allocation; several States contest the shift.

Lakshmikanth differs: ARC (1969) made 22 recommendations and wanted Central forces "on request or otherwise" (handout: mainly on request). PR count: LK more than 125, handout about 134 (see Emergency chapter). LK adds a 12th cause of regional parties (see Parties chapter). Follow the handout in class.

📜 CLASS · Sarkaria and Punchhi on legislative relations

Commission	Class point
Sarkaria	Centre has monopolised the Concurrent List; over-centralised. Residuary power on taxation with Centre, other residuary subjects to Concurrent List
Punchhi	on Concurrent List Parliament should pass only a skeletal (broad) law; use Art 254(2) liberally

TIMELINE

1935 GoI Act: three lists

1950 Residuary to Parliament

1956 SRA, Zonal Councils; Art 259 repealed

1966–69 ARC; IFS 1966

1967 Congress loses 9 States

1971 Rajamannar report

1973 Anandpur Sahib

1976 42nd Am: five subjects

1977 West Bengal memo

1983–88 Sarkaria

1990 Inter-State Council

1996 80th Am applies from 1 Apr

2000 80th Am: 29%

2007–10 Punchhi

2015 NITI Aayog

2016 101st Am: GST

2020–25 15th FC: 41%

Recall drill: cover and answer

Three relations and Article bands?	Legislative 245–255, administrative 256–263, financial 268–293	Union, State, Concurrent items?	98, 59, 52 (earlier 97, 66, 47); 42nd Am 1976 moved five subjects
Five routes into State List?	249 RS, 250 Emergency, 252 States request, 253 treaties, 356 PR (RNSIP)	Art 256, 257, 365, 258, 258A?	Obey; do not impede; failure to comply; President to State; State to Union
GST articles and 80th Am numbers?	246A, 269A, 279A (101st Am 2016); 29% from 1 April 1996; professional tax cap Rs 2,500	Tax Articles 268 to 271?	268 States collect and keep; 269 assigned; 269A IGST; 270 shared; 271 Union surcharge, none on GST
Grants and borrowing Articles?	Statutory 275, discretionary 282, temporary 273; Union borrows 292, States 293 (within India)	Finance Commission facts?	Art 280, every five years; 15th FC 2020–25: 41%; Art 281 laid before Parliament
Sarkaria vs Punchhi?	Sarkaria 1983–88: 247 recommendations, 180 implemented, ISC 1990; Punchhi 2007–10: 1,456 pages, 310+, Governors from outside, localised emergency	Four autonomy demands in order?	ARC 1966–69, Rajamannar 1971, Anandpur Sahib 1973, West Bengal 1977 (75% revenue)
Pith and substance; colourable legislation cases?	F.N. Balsara 1951; Gajapati Narayan Deo (handout 1953)	CST vs IGST?	CST Art 269, origin-based, outside GST; IGST Art 269A, destination-based
Duties States keep outside GST?	crude petroleum, petrol, HSD, natural gas, ATF, alcohol for human consumption	Union List vs Concurrent vs State overlap rule?	harmonise; else Union > Concurrent; (Union + Concurrent) > State

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

GST = Goods and Services Tax — Common indirect tax on goods and services; policy by the GST Council (Art 279A)

ARC = Administrative Reforms Commission — Commission recommending reforms in public administration (1st in 1966, 2nd in 2005)

RS = Rajya Sabha — Council of States; the upper House of Parliament

AIS = All India Services — IAS, IPS and Indian Forest Service, created under Art 312 and shared by Union and States

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

NITI = National Institution for Transforming India — Government policy think tank that replaced the Planning Commission in 2015

HC = High Court — State-level constitutional court (Art 214)

MHA = Ministry of Home Affairs — Union ministry for internal security, Centre-State matters and disaster management

IPS = Indian Police Service — All India Service for police officers

UN = United Nations — World body of states founded in 1945 for peace, security and cooperation

PM = Prime Minister — Head of the Union government

CBI = Central Bureau of Investigation — Premier central investigating agency; derives powers from the DSPE Act, 1946

PSC = Public Service Commission — Constitutional recruitment body (UPSC for the Union, SPSC for States)

CJI = Chief Justice of India — Head of the Supreme Court

CM = Chief Minister — Head of a State government

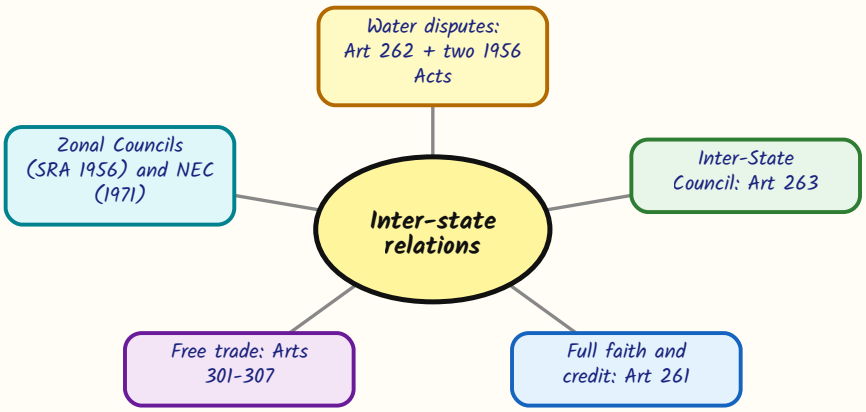
NEET = National Eligibility cum Entrance Test — Common medical entrance exam

INTER-STATE RELATIONS

PYQ Prelims 2024

Tools that keep States working together: water tribunals (Art 262), Inter-State Council (263), full faith and credit (261), free trade (301-307), Zonal Councils and the North-Eastern Council.

At a glance: five tools



CRAFT — Council (Inter-State, Art 263) · Regional Zonal Councils (statutory, 1956) · Adjudication of water disputes (262) · Full faith and credit (261) · Trade, commerce, intercourse free (301–307). (Memory aid, not from the handout.)

261 = Records, 262 = Rivers, 263 = Round table; then 301 onwards = trade. Zonal Councils statutory; Inter-State Council advisory.

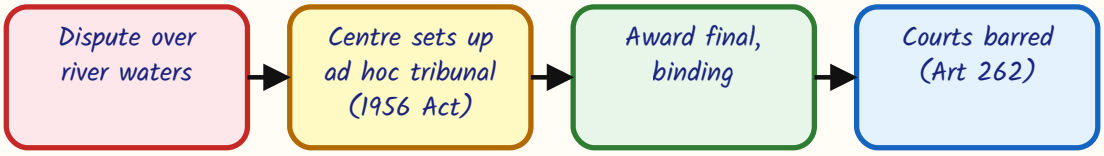
WATER DISPUTES: ART 262

Art 262: Parliament may adjudicate disputes on use, control, distribution of inter-state rivers or valleys, and exclude SC and all other courts.

	River Boards Act 1956	Inter-State Water Disputes Act 1956
Body	River boards, set up by Centre	Ad hoc tribunal

Nature	Primarily advisory	Decision final and binding
Trigger	On request of the States	Once referred, no court may interfere
Aim	Regulation, development, management; cooperative planning	Speedy and focused

How a dispute is settled



No.	Tribunal	Year	States
1	Krishna-I	1969	Maharashtra, Karnataka, Andhra Pradesh
2	Godavari	1969	Maharashtra, Karnataka, AP, Madhya Pradesh, Odisha
3	Narmada	1969	Rajasthan, Gujarat, MP, Maharashtra
4	Ravi and Beas	1986	Punjab, Haryana, Rajasthan
5	Cauvery	1990	Karnataka, Kerala, Tamil Nadu, Puducherry
6	Krishna-II	2004	Maharashtra, Karnataka, AP
7	Vansadhara	2010	Odisha, AP
8	Mahadayi	2010	Goa, Karnataka, Maharashtra
9	Mahanadi	2018	Odisha, Chhattisgarh

K G N R C K V M M – Keen Guides Never Reject Calm, Kindly Voiced Mutual Meetings: Krishna-I · Godavari · Narmada · Ravi-Beas · Cauvery · Krishna-II · Vansadhara · Mahadayi · Mahanadi. (Memory aid, not from the handout.)

Year clusters: 1969 = three; 1986; 1990; 2004; 2010 = two; 2018.

Why Art 262 matters

- → Safeguard for cooperative federalism; impartial, insulated from politics
- → Neutral platform for technical and legal claims
- → Balances Union and State interests; stops unilateral State action
- → Equitable, sustainable distribution; relieves constitutional courts
- → Why not courts: complex inter-state and public-interest questions, need technical, equitable, cooperative settlement

Challenge	Detail
Scarcity	Population, urbanisation, industry, climate change
Delay	Years or decades; Cauvery
Non-compliance	Centre may intervene under Arts 256 and 253
Complex management	Agriculture, ecology, hydroelectric
Politicisation	Technical issues become political

In the news · July 2026 (verify dates) **Cauvery:** CWMA (statutory body of 2018 under the 1956 Act) upheld CWRC order for Karnataka to release water to Tamil Nadu; Art 262 applies.

In the news · July 2026 (verify dates) **Reforming tribunals:** Cauvery tribunal took 28 years; 2002 amendment: 1-year constitution, 3-year award; 2019 Bill: single tribunal, Dispute Resolution Committee, data bank; Punchhi urged technical members.

INTER-STATE COUNCIL: ART 263

Art 263: President may create a consultative body in public interest; decides remit, organisation, procedure. Does not touch judicial functions or legislative distribution.

Clause	Task
(a)	Examine and advise on disputes between States
(b)	Study and discuss subjects of shared interest
(c)	Recommend, esp. better coordination

Advisory; binding legal disputes go to SC under Art 131. Trap: Sarkaria wanted the Council mainly for clauses (b) and (c); never say it binds States. ⭐

1983–88 Sarkaria: permanent forum (Inter-Governmental Council)

1990 ISC set up

1991 Secretariat, Secretary-level head

1996 Standing Committee, Home Minister chairs

2011 Secretariat also serves Zonal Councils

Member	Role
👑 Prime Minister	Chairs
🗺️ CMs of all States	Members
📜 CMs of UTs with legislatures	Members
Administrators of other UTs	Members
👑 Governors of States under President's Rule	Members
🗳️ Select Union Cabinet Ministers	Nominated by PM (six, incl. Home Minister)
Cabinet-rank or MoS (independent charge)	Permanent invitees (five)

PATRON — Prime Minister, chairman · All States' CMs · Territories with legislatures: CMs · Rule (President's Rule) States: Governors · Other UTs: Administrators · Nominated Union Cabinet Ministers. (Memory aid, not from the handout.) 📌

📝 How it works

→ Investigate and discuss, recommend, take up matters referred by Chair

→ Rules: at least three meetings a year; in camera; consensus, not majority

→ Standing Committee (1996): Home Minister, five Union Cabinet Ministers, nine CMs; processes items, follows up

→ Secretariat (1991): Secretary to GoI; agenda, research, coordination, monitoring

→ Set up by V.P. Singh (Janata Dal) govt, Order of 28 May 1990

Other Art 263 bodies

→ Central Council of Health and Family Welfare

→ Central Council of Local Government (earlier Central Council of Local Self-Government, 1954)

→ Four Regional Councils for Sales Tax (Northern, Eastern, Western, Southern)

→ Central Council of Indian Medicine, Central Council of Homoeopathy: by Acts of Parliament

👥 Strengths and limits

👥 Strengths

→ Predictable negotiation space

→ Policy convergence (disaster management, infrastructure, CSS)

→ Less litigation and coercion

Limits

→ Advisory, not enforceable

→ Needs political will

→ Sarkaria and Punchhi: more capacity, secretariat, follow-up

Dates: Sarkaria 1983–88, Council 1990, Secretariat 1991, Standing Committee 1996, Zonal link 2011. 💡

FULL FAITH AND CREDIT: ART 261

Art 261

→ Clause 1: public acts, records, judicial proceedings of Union and every State respected across India

→ Clause 2: Parliament lays down mode of proof and effect

→ Public acts = laws and executive actions; records = official books or registers; proceedings = judgments

→ Eg land records, birth or marriage certificates admissible

Civil	Criminal
⚖️ Final civil judgments executed anywhere in India without fresh suit	Not covered; one State's criminal judgments or penal laws do not automatically bind another

Civil travels, criminal stays home. Balances State autonomy with national coherence. ✅ Mnemonic: Acts, Records, Judicial proceedings, Parliament proves ("A Right Judgment Persists").

🎯 TRADE AND COMMERCE: ARTS 301-307 PYQ 2024

Art 301: trade, commerce, intercourse throughout India free; covers inter-state and intra-state; not absolute. Violated whether restriction at frontier or earlier/later stage. Eg Essential Commodities Act 1955 (petroleum, coal, iron and steel). USA analogue: Inter-State Commerce Commission. PYQ 2024: inter-state quarantine is a Union subject (Union List). ⭐

Art	Subject	Gist
Art 301	Freedom of trade	Free; inter-state and intra-state
Art 302	Parliament restricts	Public interest; no discrimination between States, except scarcity of essential goods
Art 303	Limits on legislatures	Union and State cannot discriminate or prefer one State
Art 304	State restrictions	Reasonable, public interest, President's prior approval; may tax goods from other States uniformly with local goods
Art 305	Saving of existing laws	Existing laws and State monopolies not invalidated
Art 306	Repealed	Had empowered certain Part B States
Art 307	Authority	Parliament may appoint for 301-304; none appointed

Source conflict (303, 304): prose lists 303 and 304 together as State restrictions; the Key Articles table gives 303 = limits on legislative powers, 304 = State restrictions with President's approval, 305 = saving. Use the table's Article numbers. Lakshmikanth titles differ (304 = Restrictions on trade among states; 305 = saving of laws incl. State monopolies); content same.

F P L S S R A — Free Parliament Limits States, Saving Repealed Authority: Freedom (301) · Parliament restricts (302) · Limits on legislatures (303) · State restrictions with President's sanction (304) · Saving (305) · Repealed (306) · Authority never appointed (307). (Memory aid, not from the handout.)

🏛️ ZONAL COUNCILS AND NORTH-EASTERN COUNCIL

Statutory, not constitutional: States Reorganisation Act 1956; five zones (geography, rivers, communications, language, culture, economy, security). Deliberative and advisory; aims: cooperation, coordination, emotional integration. 💡

Group	Members
Chairman	Union Home Minister, common to all five
Vice-chairmen	CM of each member State, rotating, one year each
👥 Members	CMs of zone States; two other ministers per State; Administrators of UTs
Advisors (no vote)	Planning Commission nominee (NITI Aayog as successor); Chief Secretary; Development Commissioner of each State

Function	Meaning
National integration	Counter regionalism, linguism, State-consciousness
Coordinate development	Large projects, uniform policy
⚠️ Post-reorganisation issues	Residual problems
🧑‍🤝‍🧑 Share best practices	Exchange ideas
Regional equilibrium	Political and economic balance

Council	Members	HQ
Northern (8)	Himachal Pradesh, Haryana, Punjab, Rajasthan, Delhi, Chandigarh, J&K, Ladakh	New Delhi
Central (4)	Uttar Pradesh, Uttarakhand, Chhattisgarh, Madhya Pradesh	Allahabad
Eastern (4)	Bihar, Jharkhand, West Bengal, Odisha	Kolkata
Western (5)	Gujarat, Maharashtra, Goa, Dadra and Nagar Haveli, Daman and Diu	Mumbai
Southern (6)	Andhra Pradesh, Telangana, Karnataka, Tamil Nadu, Kerala, Puducherry	Chennai

N A K M C — New Allies Keep Meeting Cordially: New Delhi (Northern) · Allahabad (Central) · Kolkata (Eastern) · Mumbai (Western) · Chennai (Southern). (Memory aid, not from the handout.)

Lakshmikanth: Central Council HQ = Prayagraj (same city as Allahabad, renamed); lists only a NITI Aayog nominee as advisor. Both right; use Allahabad for the mnemonic.

📜 North-Eastern Council (NEC Act 1971)

→ Eight: Assam, Manipur, Mizoram, Arunachal Pradesh, Nagaland, Meghalaya, Tripura, Sikkim (Sikkim joined 2002)

→ Came into existence 8 August 1972

→ Extra tasks: unified regional plan; review members' security and public order; harmonised socio-economic development

Three bodies, three bases

→ Inter-State Council: Art 263, President, 1990, PM chairs

→ Zonal Councils: SRA 1956, Home Minister chairs

→ NEC: NEC Act 1971

📰 **In the news · Aug 2026 (verify dates)** 31st Southern Zonal Council: met at Mahabalipuram under Union Home Minister; five Zonal Councils under SRA 1956, advisory, non-binding; North-East under North Eastern Council Act 1971.

🏛️ CLASS · Councils: extra facts

Body	Class facts
🏛️ North-Eastern Council	statutory, NEC Act 1971; members: CMs and Governors of the 8 States; chairperson + 3 members nominated by President
🏛️ National Integration Council	1962
💰 GST Council	Art 279A
NDC	no longer exists; replaced by the Governing Council of CMs, part of NITI Aayog

Class vs handout: class writes Zonal Councils as "1958, SRA Act"; handout: 1956 (check).

TIMELINE

1956 SRA; River Boards Act; Water Disputes Act

1969 Krishna-I, Godavari, Narmada

1971 NEC Act

1986 Ravi-Beas

1990 ISC; Cauvery

1991 ISC Secretariat

1996 Standing Committee

2004 Krishna-II

2010 Vansadhara, Mahadayi

2018 Mahanadi

Recall drill: cover and answer

Art 261, 262, 263?	Full faith and credit; water disputes; Inter-State Council	River Boards Act vs Water Disputes Act (1956)?	Boards advisory, on States' request; ad hoc tribunal, final, courts barred
Nine tribunals in order with years?	Krishna-I, Godavari, Narmada 1969; Ravi-Beas 1986; Cauvery 1990; Krishna-II 2004; Vansadhara, Mahadayi 2010; Mahanadi 2018	Inter-State Council: who, when, how?	PM chairs; 1990; advisory, in camera, consensus, three meetings a year; Standing Committee 1996; Secretariat 1991
Art 261 civil vs criminal?	Civil judgments run anywhere; criminal do not; Parliament decides proof and effect	Arts 301 to 307 in one line each?	Free; Parliament restricts; no discrimination; State restricts with President nod; saving; repealed; authority never formed
Zonal Councils: basis, chair, vice-chair?	SRA 1956 statutory; Union Home Minister; CM rotating one year	Zonal Council headquarters?	Northern New Delhi, Central Allahabad, Eastern Kolkata, Western Mumbai, Southern Chennai
Zone sizes?	Northern 8, Central 4, Eastern 4, Western 5, Southern 6	NEC: Act, members?	NEC Act 1971; eight States incl. Sikkim (2002)

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

NEC = North Eastern Council (or National Executive Committee, by context) — Advisory body for the North East; under the DM Act the NEC assists the NDMA

AP = Andhra Pradesh — State in south India

PM = Prime Minister — Head of the Union government

NITI = National Institution for Transforming India — Government policy think tank that replaced the Planning Commission in 2015

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

CM = Chief Minister — Head of a State government

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

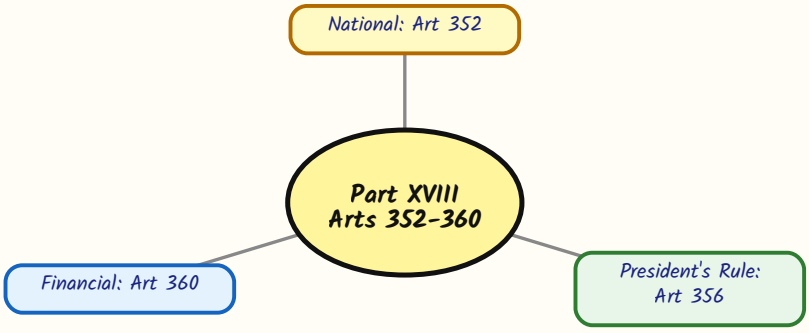
GST = Goods and Services Tax — Common indirect tax on goods and services; policy by the GST Council (Art 279A)

EMERGENCY PROVISIONS

PYQ Prelims 2022, 2021, 2018, 2017, 2007 · Mains 2023, 2018

✎ *Part XVIII (Arts 352-360): National Emergency, President's Rule and Financial Emergency, with the 38th, 42nd, 44th Am changes, Minerva Mills, Bommai and the Art 358 vs 359 contrast.*

At a glance: three emergencies



Emergency	Art	Trigger
National	352	War, external aggression, armed rebellion
👥 President's Rule (State or Constitutional)	356	State's constitutional machinery has broken down
Financial	360	Financial stability or credit of India (or any part) threatened

Anchors

→ 353 effects
→ 354 money sharing
→ 355 Union's duty
→ 357 Parliament legislates for State
→ 358 Art 19
→ 359 enforcement of rights
→ 359A repealed. "No Panic, Folks."

NATIONAL EMERGENCY: GROUNDS (ART 352)

Art 352

→ Security of whole nation or a part endangered; imminent danger also counts (pre-emptive)

Grounds and names

→ War, external aggression = External Emergency (original)
→ Armed rebellion = Internal Emergency (44th Am 1978)

→ "Internal disturbance" (1975-77) removed by 44th Am: ambiguous, wide

Amendment	Change
38th Am 1975	Different proclamations on different threats, even while one is in force; also tried to bar judicial review
42nd Am 1976	Emergency may cover whole territory or a region or State
44th Am 1978	Armed rebellion replaces internal disturbance; Cabinet's written recommendation; judicial review restored; stricter approval; Arts 20, 21 protected

38 many, 42 area, 44 safe. 💡

CLASS · Many National Emergencies at once

Art 352(9) (as cited in class): several National Emergencies may run together, each with its own 6-month clock and renewals, and each may rest on a different ground. ⭐

🛡️ JUDICIAL REVIEW AND CABINET SAFEGUARD

🛡️ Cabinet safeguard

→ Before 1978: 1975 proclamation without prior Cabinet consultation
→ 44th Am: only on written recommendation of Union Cabinet, not PM advice alone
→ "Cabinet" in Art 352 = PM + Cabinet-rank ministers; in 1975 told only after the proclamation

🗺️ Minerva Mills v. Union of India (1980)

→ Proclamations can be challenged; no longer a political question

Review if

→ mala fide
→ irrelevant or non-existent facts
→ absurd or perverse

📌 **AIM** — Absurd or perverse reasoning · Irrelevant or non-existent facts · Mala fide. Courts take AIM at a proclamation (Minerva Mills 1980). (Memory aid, not from the handout.)

⏳ APPROVAL, DURATION, REVOCATION

Life of a National Emergency

Proclamation on Cabinet written advice → *Both Houses approve within 1 month* → *Lasts 6 months* → *Renew 6 months at a time*

Details

→ If Lok Sabha dissolved: continues until 30 days from first sitting of new LS, if Rajya Sabha approved
→ Each approval or extension: special majority in both Houses = majority of total membership AND two-thirds of present and voting
→ Before 1978 could last indefinitely

Feature	Before 44th Am	Now
Initial approval	2 months	1 month
Extension	No periodic approval	Every 6 months
Voting	Simple majority	Special majority

1-6-6 and two-thirds: 1 month, 6 months first, 6 months each renewal. 💡

Revocation (Art 352(2), (7))

→ President: later proclamation, any time, no approval
→ Lok Sabha: resolution of disapproval obliges immediate revocation
→ Special sitting: one-tenth of LS members give written notice to Speaker (in session) or President (not in session): sitting within 14 days

	Disapproval	Approval of continuance
🏛️ House	Lok Sabha only	Both Houses
Majority	Simple	Special (Art 352(4))
Effect	Mandatory revocation	Continues 6 more months

EFFECTS OF NATIONAL EMERGENCY

Area	Rule
👑 Executive (Art 353(a))	Union directs any State on any subject (normally Arts 256, 257 only)
📜 Legislative (Art 353(b))	Parliament legislates on State List; State legislatures continue, subordinate; laws valid up to six months after; President ordinances on State subjects (Art 123); applies to all States (42nd Am). Parliament may also give powers and duties to Centre and officers outside Union List
Financial (Art 354)	President may alter tax-sharing, cut or cancel grants; until end of financial year in which Emergency ends; laid before Parliament

Life of LS and Assemblies (Arts 83(2), 172(1))

→ LS term (5 years) extended one year at a time; not beyond six months after Emergency

→ Same rule for State Assemblies

→ 5th LS (1971–77) twice extended; due to end 18 March 1976, extended to 1977, then 1978; dissolved 18 Jan 1977 after 5 years, 10 months, 6 days

	Art 358	Art 359
Scope	Only Art 19	Any specified FR except Arts 20, 21
Automatic?	Yes	No: Presidential Order
Grounds	War or external aggression only	War, aggression or armed rebellion
⏳ Duration	Whole Emergency	As Order specifies
Area	Entire country	Whole or part
Enforcement	Right itself suspended	Only remedy (court access) suspended

⭐ 358 Auto, 359 Order. Both protect only Emergency-related laws and matching executive action. When Emergency ends, Art 19 revives and inconsistent laws lapse, but no remedy for acts done during it; same after Art 359 Order ends. Art 359 Order laid before each House. Post-44th: Art 19 not suspended in armed-rebellion Emergency.

🗺️ CLASS · Neighbouring States and Art 172

Extra effects

→ Art 353: if one State is under NE and neighbouring States are affected, Union executive power reaches them too, though not under NE

→ Art 83 (LS term): one year at a time, never beyond 6 months after the Emergency ends

→ Art 172: same rule for the State Assembly, by Parliament's law

📌 Class vs handout: class cites "Art 252" for Parliament's full power on State List during NE; handout cites 353(b) and 250 (check).

🔧 HISTORICAL USE AND REFORMS

Year	Ground	Date	Note
1962	China war (NEFA, now Arunachal)	26 Oct 1962	Lasted till Jan 1968; no fresh one needed for 1965 war
1971	Indo-Pak war	3 Dec 1971	War-time; kept in force after
1975	"Internal disturbance"	25 Jun 1975	Most contentious; lifted 21 Mar 1977; made while 1971 one still in force

📌 C P I — Calm Peace Inside: China 1962 · Pakistan 1971 · Internal 1975. (Memory aid, not from the handout.)

⭐ 1962 and 1971 on external aggression; 1975 on internal disturbance. Both 1971 and 1975 revoked March 1977. Shah Commission (1977–78) by Janata govt: did not justify the 1975 declaration; 44th Am followed.

SCAR — Suspension barred for Arts 20, 21 · Cabinet written recommendation · Armed rebellion replaces internal disturbance · Review restored, approval harder (special majority, six-monthly). The four 44th Am safeguards. (Memory aid, not from the handout.)

Do not invent: handout gives an end date only for 1975 (21 March 1977); for 1971 it says only "kept in force thereafter" (extras say both revoked March 1977).

CLASS · Counts and a 2020 petition

Class tally: National Emergency 3 times (1962, 1971, 1975); Art 356 130+; Art 360 never. 1962–68 = longest; the 1965 Indo-Pak war needed no new proclamation. NE: Parliament approves imposition, but revocation needs no approval (President acts alone).

Class · 2020 1975 Emergency in the SC: petition (petitioner written as "94 ..." in class note, unclear) asked the Court to declare the 1975 Emergency unconstitutional; noted next to Minerva Mills 1980 (NE is reviewable).

PRESIDENT'S RULE: ART 356 PYQ 2018

Art 355: Union's duty to protect States and ensure governance per Constitution. Art 356: "government of the State cannot be carried on in accordance with the provisions of this Constitution". Constitution does not call it "emergency"; popularly State or Constitutional Emergency.

Basis	Detail
(a) Governor's report	President acts on it
(b) Any other information	Also sufficient (may act without report)
Art 365	State fails Union directions: may justify 356

Life of President's Rule

Proclamation (Art 356) → *Both Houses approve within 2 months* → *Lasts 6 months at a time* → *Max 3 years total*

Details

→ LS dissolved: RS approval keeps it up to 30 days from first sitting of new LS

→ Approval = simple majority of present and voting (not an amendment)

→ Revoked any time by later proclamation; no approval

Beyond one year (44th Am), both needed

→ National Emergency in force (whole country or whole or part of the State)

→ AND Election Commission certifies elections cannot be held

Footnote: 42nd Am (1976) raised 6 months to one year; 44th restored 6 months. Punjab PR (May 1987) allowed five years by 68th Am (1991). "E and E, both needed after year one."

Area	Consequence
Executive	President takes over State functions and Governor's powers; Council of Ministers dismissed; Governor administers with Chief Secretary or advisors
Legislative	Parliament exercises State legislature's powers; legislature suspended or dissolved; Parliament may delegate to President or other authority (Art 357); delegated laws can confer powers on Centre and officers

💰 Finance, ordinances	President may authorise expenditure from State Consolidated Fund when Parliament not in session (pending sanction); ordinances when Parliament not sitting
📜 Laws made	Outlive the Proclamation; State legislature may repeal, amend, re-enact
⚖️ High Court	President cannot assume HC powers or suspend its provisions
FRs	Not affected

💰 PYQ trap: not necessarily PYQ 2022 PYQ 2021 PYQ 2018 PYQ 2017

→ Not necessarily: dissolution of State Assembly (may be suspended); dissolution of local bodies

→ Always: Council of Ministers removed; State legislature's powers to Parliament; High Court untouched

PYQ 2018: under Art 356, the power of the State legislature is exercisable by or under Parliament. PYQ 2022: exclusive power of Lok Sabha incl. ratifying Emergency declaration (answer b, 2 only). "Council Packs, High court Holds." ⭐

🎯 USE, MISUSE AND REVIEW OF ART 356 PYQ 2023

Use

→ About 134 occasions since 1950, roughly twice a year; first Punjab 1951

Pattern

→ 1977: Janata govt, nine Congress States (Rajasthan, UP, MP, Punjab, Bihar, HP, Orissa, West Bengal, Haryana)

→ 1980: Congress, nine States (UP, Bihar, Rajasthan, MP, Punjab, Orissa, Gujarat, Maharashtra, Tamil Nadu)

→ 1992: three BJP-ruled States: MP, HP, Rajasthan (alleged non-implementation of ban on certain religious organisations)

→ 1994 Bommai: SC upheld one, not Nagaland (1988), Karnataka (1989), Meghalaya (1991)

Ambedkar hoped 356 a "dead letter"; later remark "Dr. Ambedkar is dead and the Articles are very much alive" credited to H.V. Kamath. ⭐

1975
38th Am: satisfaction final

1978
44th Am: review restored

1994
S.R. Bommai v. Union of India

Bommai (1994) principle	Content
Reviewable	Courts can examine
Reasoned satisfaction	Relevant material; extraneous, mala fide, perverse can be struck down
🗺️ Burden on Centre	Show relevant material
Scope	Relevance only, not correctness or sufficiency
📬 Remedies	Restore dismissed govt, revive legislature
📝 Procedure	Assembly suspended, not dissolved until Parliament approves; if refused, reactivate
📚 Secularism	Basic feature; anti-secular conduct can justify 356
🧑‍🤝‍🧑 Floor test	Loss of majority tested on the floor, not assumed
🗺️ Change at Centre	New party cannot automatically dismiss other parties' State ministries
Exceptional	Sparingly

Bommai: Reviewable, Reasoned, Burden on Centre, Scope, Remedies, Procedure, Secularism, Floor test, Change at Centre, Exceptional ("Right Rules Bind States; Revive Polity, Save Federal Constitution Every time"). 💡

Mains 2023 frame (reduced use since mid-1990s): Bommai (judicial review, floor test) and 44th Am (Cabinet and Parliament checks). ✅

Proper grounds (Sarkaria, Bommai)

→ Hung Assembly after elections
→ Majority party declines to form govt, no alternative
→ Resignation after losing confidence vote, no alternative
→ Deliberate defiance of lawful Union directions
→ Internal subversion
→ Physical breakdown (wilful refusal endangering security)

Improper uses

→ No exploration of alternatives
→ Governor's unverified assessment, no floor test
→ Punishing ministry after heavy LS defeat (1977, 1980 alleged)
→ Trivial disturbances
→ Administrative failure or corruption alone
→ No prior warning (except sudden emergency)
→ Intra-party disputes or extraneous purposes

FABRIC — Proper grounds: Failure of majority party to form govt · Assembly hung · Breakdown (State refuses duties) · Resignation, no alternative · Internal subversion · Constitutional directions defied. (Memory aid, not from the handout.)

TEARING — Improper: Trivial disturbances · Exploring alternatives skipped · Administrative failure or corruption alone · Response to LS defeat · Intra-party disputes · No prior warning · Governor's unverified view. (Memory aid, not from the handout.)

Lakshmikanth differs: PR count more than 125; handout about 134. Use 134 in class.

CLASS · Art 356: numbers and Sarkaria on abuse

1951	1950-65	1965-80	1987
Punjab: first	10 times	60 times	Punjab: 5 years

1990 on
sharp decline

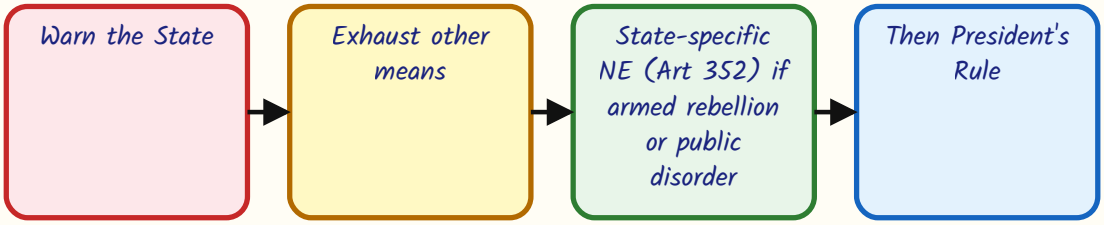
State-wise: Manipur 11 times; UP 10. Use and abuse tracked the rise of political divides in India. 💡

Sarkaria: observations

→ dozens of cases where a ruling party with clear majority was dismissed
→ examples: 1977 nine Congress States after LS defeat; 1976 Tamil Nadu and 1979 Manipur: "poor administration"
→ only 26 uses found justified (mostly State reorganisation)

ROAD — Report dictated by Centre (Governor's adverse report at Centre's behest) · Opposition not allowed to try forming govt · Assembly suspended or dissolved for ruling-party convenience · Definition missing for "breakdown of constitutional machinery". The four problems with Art 356. (own mnemonic)

Sarkaria: ladder before Art 356



Also Sarkaria: dead letter, rarely used; be patient when a State loses majority; imposition must rest on a speaking, public, evidence-based report. ⭐

CLASS · Bommai 1994: more guidelines; why 356 stays

S.R. Bommai (1994) extras

→ two basic features: federalism and democracy; 356 must strengthen both

→ strong evidence needed; courts examine it; if irrelevant, revive dissolved govt

→ no wholesale dismissal of State govts

→ Assembly not dissolved until Parliament approves; if refused, revived and govt restored

→ majority test in the House, not Governor's house; CM gets chance to prove it; then explore alternative govt

→ breakdown of constitutional machinery (State works against the Constitution) is not breakdown of administrative machinery (poor administration)

Art 356 cannot rest on	Can be used when
💰 poor administration; corruption allegation; no prior warning; Governor recommending without exploring alternatives; poor finances of the State	no govt formed even after fresh election and all options; State not following the Constitution (against secularism)

Why 356 is still needed (teacher): Indian Independence Act 1947 ended GoI Act 1935 as working Constitution; the India (Provisional Constitution) Order (class writes 1977, read as 1947, check) copied the 1935 Act minus Sec 93 (provincial emergency). Leaders held India together without it. Answer: the system is now used to the Article; removing it would leave a dangerous vacuum. 💡

PYQ frame: explain suspension and dissolution with reasons. Intro: Art 356 and Bommai 1994 (federalism, democracy basic). Points: (1) suspension: Assembly kept alive till Parliament approves, revived if refused (2) dissolution only after approval (3) test majority on the floor (4) misuse fell after 1990: coalition culture (Centre needs regional parties), Bommai, presidential checks, public awareness, media (5) NCRWC repeats Sarkaria and Bommai. Close: last resort, reasoned, reviewable. ✅

👑 NATIONAL EMERGENCY VS PRESIDENT'S RULE

Feature	National (352)	President's Rule (356)
Ground	War, aggression, armed rebellion	Machinery breakdown (any reason)
🗺️ State institutions	Continue; Centre gets concurrent powers	Executive dismissed; legislature suspended or dissolved
📜 Legislation	Parliament cannot delegate	May delegate to President or authority ("President's Acts")
⏳ Duration	No maximum; renew every 6 months	3 years
Scope	All States	Only that State
Majority	Special	Simple
FRs	Affected	Not affected
Revocation	LS can revoke by resolution	President only

Source conflict: comparison table says no parliamentary revocation for 356, text says President revokes without approval: consistent. PR ends only by later Presidential proclamation; National Emergency can also end by LS disapproval.

🎯 FINANCIAL EMERGENCY: ART 360 PYQ 2018 PYQ 2007

Art 360

→ Financial stability or credit of India or any part threatened; quasi-federal: unitary under stress
→ Review: 38th Am (1975) final; 44th removed, review allowed
→ Approval within 2 months, both Houses, simple majority
→ LS dissolved: RS approval keeps alive; LS approves within 30 days of reconstitution
→ No maximum, no renewal, until revoked by President (no approval)

	National	Financial
Approval	1 month	2 months
Renewal	6-month	None
Majority	Special	Simple

Effect	Content
💰 State finances	Union directs financial propriety, budget discipline
💰 Pay	Reduction for State employees; State Money Bills reserved for President
🗺️ Union	Cut in pay of Central employees; salary cuts for SC and HC judges

Never declared. Even 1991 BoP crisis handled by structural reforms, external borrowing (IMF), fiscal consolidation. H.N. Kunzru warned on State autonomy; Ambedkar cited US National Industrial Recovery Act 1933 (Great Depression). "Two No Simple Judges": 2 months, no limit, simple majority, judges' pay. ⭐

HOW EMERGENCIES ALTER THE ORDER

Unitary in crisis

→ Parliament legislates on State subjects, binding directions to State executives, FR protections can be cut; balance more unitary without amendment
→ Ambedkar: federal in normal times, unitary when necessity demands
→ Sarkaria and Punchhi: restraint, prior consultation

Limit	Examples
Formal	Cabinet recommendation (352); laying before Parliament; periodic approvals
Statutory, judicial	Courts examine validity and base facts
Political	Debates and commissions of inquiry afterwards

Art	Theme	Art	Theme
352	National Emergency	357	State legislature powers exercised by Parliament in PR
353	Expanded Union power	358	Art 19 auto-suspended (war, aggression)
354	Financial distribution modified	359	FR enforcement suspended by Order
355	Union duty to protect States	359A	Repealed; Punjab only
356	PR	360	Financial Emergency

Source conflict (Art 355): overview table says protect States from external aggression or internal disturbances; text says protect and ensure governance per Constitution. Use both.

Prelims takeaway: National Emergency	Reform
🚪 Internal disturbance removed	44th Am 1978
📬 Cabinet written advice	44th Am 1978
Area-specific	42nd Am 1976

Multiple proclamations	38th Am 1975
🧑‍🤝‍🧑 SC review	Minerva Mills (1980) and 44th Am

Constituent Assembly: critics Kamath (police state), K.T. Shah, T.T. Krishnamachari (constitutional dictatorship), Kunzru; supporters Alladi Krishnaswami Ayyar ("life-breath of the Constitution"), Mahabir Tyagi ("safety-valve"). Ambedkar admitted possible abuse. ⭐

TIMELINE

1950 Arts 352–360 in force

1951 First PR: Punjab

1962 26 Oct: China

1971 3 Dec: Indo-Pak

1975 38th Am; 25 Jun Emergency

1976 42nd Am

1977 21 Mar lifted; Janata PR in 9 States

1977–78 Shah Commission

1978 44th Am

1980 Minerva Mills

1992 PR: MP, HP, Rajasthan

1994 Bommai

Recall drill: cover and answer

Three emergencies and Articles?	National 352, President's Rule 356, Financial 360	National Emergency grounds and 44th Am change?	War, external aggression, armed rebellion; replaced internal disturbance; Cabinet written advice
38th, 42nd, 44th Am on Art 352?	38th multiple proclamations; 42nd area-specific; 44th safeguards	Approval, duration, majority of National Emergency?	1 month, both Houses, special majority; 6 months, renew 6 months each (1-6-6)
How can LS end an Emergency?	Simple majority disapproval, LS alone; one-tenth notice forces sitting within 14 days	Art 358 vs 359?	358: Art 19 only, automatic, war or aggression; 359: Order, any FR except 20, 21, remedy only
Three National Emergencies?	26 Oct 1962 China; 3 Dec 1971 Pakistan; 25 Jun 1975 internal (lifted 21 Mar 1977)	President's Rule numbers?	Approval 2 months simple majority; 6 months each; 3 years max; beyond 1 year needs Emergency + ECI certificate
Not necessarily consequences of PR?	Dissolution of Assembly and of local bodies; Council of Ministers always removed	Bommai 1994 and Minerva Mills 1980?	Review, floor test, suspend not dissolve, secularism basic feature; Minerva Mills: mala fide, irrelevant facts, absurd
Financial Emergency facts?	2 months, no limit, simple majority, judges' pay can be cut, never declared	Emergency tally?	NE 3 (1962, 1971, 1975); Art 356 130+, Punjab 1951 first, Manipur 11, UP 10; Art 360 never
Sarkaria four problems of Art 356 (ROAD)?	Report at Centre's behest; Opposition not allowed; Assembly for convenience; Definition missing	Bommai: constitutional vs administrative breakdown?	Only the first (State against the Constitution) justifies 356
Why Art 356 misuse fell after 1990?	Coalitions, Bommai, presidential checks, awareness, media		

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

PM = Prime Minister — Head of the Union government

RS = Rajya Sabha — Council of States; the upper House of Parliament

HC = High Court — State-level constitutional court (Art 214)

CM = Chief Minister — Head of a State government

NCRWC = National Commission to Review the Working of the Constitution — Set up in 2000 under Justice M. N. Venkatachaliah

IMF = International Monetary Fund — Global lender for balance-of-payments support

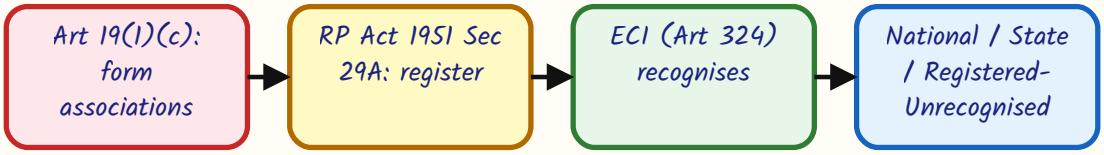
ECI = Election Commission of India — Constitutional body (Art 324) that conducts elections

POLITICAL PARTIES

PYQ None quoted in the handout

✎ *Parties are not named in the Constitution; they rest on Art 19(1)(c) and ECI recognition (Art 324, RP Act 1951, Symbols Order 1968). Know the recognition numbers, the 25-party table and the rise, role and limits of regional parties.*

At a glance: how a party exists



MEANING AND IDEOLOGICAL TYPES

Political party: voluntary, organised group around shared beliefs seeking and using public power by **lawful, constitutional means**; aggregates interests, formulates policy, offers choices.

Type	Seeks	Axis
Reactionary	Preserve older institutions; resist modernising change	Right
Conservative	Status quo; incremental change	Right
Liberal	Reform institutions to widen rights and opportunity	Centre
Radical	Fundamental transformation of order	Left

R C L R — Retain Conserve Liberalise Revolutionise: Reactionary (right) · Conservative (right) · Liberal (centre) · Radical (left). (Memory aid, not from the handout.)

Position	Indian example
Left	CPI and CPI(M)
Centre	INC (commonly centrist)
Right of centre	BJP

PARTY SYSTEMS

System	Meaning	Examples
One-party	Single ruling party; no organised opposition	Former communist states: USSR, East Europe
Two-party	Two major parties alternate	UK (Conservative, Labour), USA (Democratic, Republican)
Multi-party	Several compete; coalitions	France, Switzerland, Italy; India

One To Many; India sits at Many.

CONSTITUTIONAL UNDERPINNING

Legal base

→ Art 19(1)(c): form associations and unions: enabling only
→ Constitution does not define or regulate parties exhaustively
→ RP Act 1951 (registration, Sec 29A) + Election Symbols (Reservation and Allotment) Order 1968
→ Administered by ECI under Art 324

A-R-E: Art 19(1)(c), RP Act 1951, ECI Art 324 ("All Recognised Entities").

FEATURES OF THE INDIAN PARTY SYSTEM

Eight features

→ **Plurality**: very many parties; hung legislatures, coalitions; India has the **largest number of parties** in the world

Congress system
→ Long one-party dominance (analyst **Rajni Kothari**)
→ Falling since **1967**: regional parties, Janata (1977), Janata Dal (1989), BJP (1991)

Weak ideology
→ Only BJP, CPI, CPM clearly ideological
→ Almost all claim democracy, secularism, socialism, Gandhism; "political personalities rather than parties"

→ **Leader-centred**: known by leaders' names
→ **Identity bases**: religion, caste, language, culture
→ **Regional rise**: pivotal in coalitions, reshape centre-state dynamics

Factionalism
→ Defections, splits, mergers, offshoots
→ Defections more common after **4th general elections (1967)**

Weak opposition
→ No cohesive national opposition; fragmented, united intermittently
→ Effective organised Opposition only "in flashes" since first elections

PROLIFIC – Plurality · Regional formations rise · Opposition weak · Leader-centred · Identity bases · Factionalism · Ideological identities weak · Congress system. Indian parties multiply, split and spread. (Memory aid, not from the handout.)

From Congress system to coalitions

Congress system: one-party dominance → *Dominance weakens* → *Competitive multi-party order* → *Regional parties pivotal*

PARTY FORMATION TABLE

Party	Founder(s)	Year
INC	A.O. Home	1885
Shiromani Akali Dal (SAD)	not given	1920
CPI	M.N. Roy	1925
J&K National Conference	Sheikh Abdullah	1939
DMK	C.N. Annadurai	1949
CPI(M)	not given	1964
Shiv Sena (SHS)	Bal Thackeray	1966
AIADMK	M.G. Ramachandran	1972
BJP	A.B. Vajpayee, L.K. Advani	1980
TDP	N.T. Rama Rao	1982
BSP	Kanshi Ram	1984
Asom Gana Parishad	P.K. Mahanta	1985
Samajwadi Party	Mulayam Singh Yadav	1992
RJD	Lalu Prasad Yadav	1997
BJD	Naveen Patnaik	1997
AITC	Mamata Banerjee	1998
J&K PDP	Mufti Mohd. Sayeed	1999
JD(U)	Sharad Yadav	1999
JD(S)	H.D. Deve Gowda	1999
NCP	Sharad Pawar, P.A. Sangma, Tariq Anwar	1999
LJP	Ram Vilas Paswan	2000
TRS (now BRS)	K. Chandrashekar Rao	2001
YSRCP	Y.S. Jagan Mohan Reddy	2011
AAP	Arvind Kejriwal	2012
National People's Party (NPP)	P.A. Sangma	2013

No founder given for SAD and CPM. 1997 = RJD + BJD. 1999 = PDP + JD(U) + JD(S) + NCP. NTR = TDP 1982, MGR = AIADMK 1972, Kanshi Ram = BSP 1984, Kejriwal = AAP 2012. First four: "I See Changes Daily" (INC 1885, SAD 1920, CPI 1925, DMK 1949). ⭐

ECI RECOGNITION: NUMBERS TO KNOW

How a party gets status

Register: Sec 29A, RP Act 1951 → *ECI assesses performance after elections* → *National, State or Registered-Unrecognised*

Why recognition matters

- → Exclusive reserved symbol
- → Free airtime on Doordarshan and AIR
- → Access to electoral rolls and voter data
- → Enhanced status

Symbol	For
Reserved	Recognised national or state parties, exclusively; national: across country; state: only in its State(s)
Free	Registered-unrecognised parties, independents (ECI list)

National Party: any ONE of three	Condition
Votes + seats	6% valid votes in four or more States (LS or Assembly general election) AND four LS seats
LS seats	2% of LS seats (11 of 543) from three States
🗺️ State status	Recognised State Party in four States

State Party: any ONE of five	Condition
1	6% valid votes in State Assembly election AND 2 Assembly seats
2	6% valid votes in LS election from the State AND 1 LS seat
3	3% of Assembly seats or 3 seats, whichever higher
4	1 LS seat per 25 (or fraction) allotted to the State
5	8% of total valid votes in State in LS or Assembly election

National = 4s (four States, four seats, four-State recognition) with 2% = 11 of 543 as odd route. State = 6% twice, 3% seats, 1-per-25, 8% votes. "Six To Succeed." ✅

Registered-Unrecognised

→ Registered under Sec 29A, fails criteria
→ Contests; no reserved symbol or privileges; free symbols

Time	National	State
First General Elections 1952	14	39
Before 2019 (17th LS)	7	52

Lists

→ 14 national, 1952: BJS, Bolshevik Party of India, CPI, two Forward Bloc groups, Hindu Mahasabha, INC, Krishikar Lok Party, KMPP, RCPI, Ram Rajya Parishad, RSP, Scheduled Caste Federation, Socialist Party
→ 7 national, pre-2019: BSP, BJP, CPI, CPM, INC, NCP, AITC

Status re-assessed after each general election; ECI revises list. National parties = pan-India; State (regional) parties = specific States. Electoral performance = legitimacy. 💡

⚡ REGIONAL PARTIES: ROLE IN THE SYSTEM

⚡ Three roles

→ Aggregate: regional demands into programmes
→ Intermediate: link local societies with higher tiers
→ Negotiate: leverage in coalitions
→ Pivotal partners at Centre: decide formation, durability, policy orientation; shape State priorities and centre-state bargaining

Characteristics

→ Limited footprint: one State or region
→ Identity: culture, religion, language, ethnicity
→ Demands from historic, economic, social particularities
→ Exploit language, caste, religion, regional pride
→ Claim greater regional autonomy
→ Aim: State-level power

Type	Meaning	Examples
📚 Culture or ethnicity	Regional cultural or ethnic identity	SAD, National Conference, DMK, TDP, Shiv Sena, AGP
Rooted, pan-India outlook	State base, all-India view	SP, NCP (no national base)
Offshoots	Splits from national parties; inherit structure, cadres	BJD, RJD, Trinamool, YSR Congress
Personalised	Charismatic individual; often short-lived	

ROLE – Rooted in a region with pan-India outlook · Offshoots of national parties · Leader-centred · Ethnicity or culture-based. (Memory aid, not from the handout.)

Eleven causes	Explanation
Cultural, ethnic diversity	Mobilise to protect identity
Economic disparities	Uneven development, neglect by Centre
Historical, identity aspirations	Distinct political voice
Local elites, former rulers	Deposed princes, zamindars kept relevance
⚠️ Failure of national parties	Overlooked regional demands

🧑‍🤝‍🧑 Linguistic reorganisation (post-1956)	Regional consciousness
Charismatic leaders	MGR (Tamil Nadu), NTR (Andhra Pradesh)
Factionalism, splits	Breakaway formations
Weak central opposition	Vacuum
📚 Caste, religious dynamics	Parties for social groups
🧑‍🤝‍🧑 Tribal alienation	Tribal rights and autonomy

Cause groups

→ Identity (culture, history, caste or religion, tribal)
→ Economy (disparities)
→ Politics (national failure, weak opposition, splits, elites)
→ Language (post-1956 States)
→ Leaders (MGR, NTR).

Lakshmikanth differs: lists 12 causes, adding "centralising tendencies of the Congress party". Handout has 11; use 11 in class, remember LK's extra.

Ten roles	Meaning
1 Regional governance	Efficient, stable State government, local priorities
⚠️ 2 Challenge one-party dominance	Weakened Congress system
🗺️ 3 Centre-state relations	Demand autonomy; keep Union responsive
4 Participation	Grassroots, village and district
5 Voter choice	Regional or State platforms
6 Awareness	Development, language, identity
7 Curb central authoritarianism	Counterbalance; conciliatory Centre
🏛️ 8 Parliamentary democracy	Rule in States, oppose at Centre; minority has its say, majority its way
9 Expose misuse of offices	Governors: dismissing CMs, ordinances, reserving Bills for President
10 Coalitions	Key players at Centre

⚡ Role shortcut

→ Centre (3, 7)
→ Governor (9)
→ Coalition (10).

Limit	Problem
Narrow priorities	Local over national; harder coordinated response
Identity politics	Region, caste, language, religion, tribe deepen cleavages: regionalism, casteism, communalism, tribalism
🗺️ Inter-state obstacles	Water, boundaries unresolved
Corruption, nepotism	Favouritism, rent-seeking, patronage
💰 Populism, fiscal strain	Short-term schemes strain State finances
Coalition influence	Narrow demands skew central policy

POISON — Populism and fiscal strain · Obstacles to inter-state cooperation · Identity politics · Selfish narrow priorities · Outsized coalition influence · Nepotism and corruption. Six limits. (Memory aid, not from the handout.)

Strength	Weakness
🗺️ Stable State governance, check on Centre, wider participation, coalition leverage	Parochial priorities, identity politics, inter-state deadlock, populism, coalition pressure

📰 ***In the news · September 2026 (verify dates)*** RUPPs: six Gujarat-based Registered Unrecognised Political Parties reportedly received Rs 1,700 crore in FY 2023-24, more than the Rs 1,480 crore received by five national parties (excluding ...).

TIMELINE

1885 INC	**1920** SAD	**1925** CPI	**1939** JKNC
1949 DMK	**1951** RP Act	**1952** 14 national, 39 state	**1956** Linguistic States
1964 CPI(M)	**1966** Shiv Sena	**1968** Symbols Order	**1972** AIADMK
1980 BJP	**1982** TDP	**1984** BSP	**1985** AGP
1992 SP	**1997** RJD, BJD	**1999** PDP, JD(U), JD(S), NCP	**2012** AAP
2019 7 national, 52 state			

Recall drill: cover and answer

Legal base of parties in India?	Art 19(1)(c); RP Act 1951 Sec 29A; Symbols Order 1968; ECI under Art 324	Four ideological types and axis?	Reactionary, Conservative (right); Liberal (centre); Radical (left)
National Party: three routes?	6% in 4 States + 4 LS seats; 2% LS seats (11 of 543) from 3 States; State party in 4 States	State Party: five routes?	6% + 2 Assembly seats; 6% + 1 LS seat; 3% or 3 seats; 1 LS seat per 25; 8% votes
Reserved vs free symbol?	Reserved: recognised parties; free: registered-unrecognised, independents	Recognised parties 1952 vs pre-2019?	14 national, 39 state vs 7 national, 52 state
Eight features of Indian party system?	PROLIFIC: plurality, regional rise, opposition weak, leader-centred, identity, factionalism, ideology weak, Congress system	Founders: INC, CPI, DMK, BJP, BSP, AAP?	Hume 1885; M.N. Roy 1925; Annadurai 1949; Vajpayee and Advani 1980; Kanshi Ram 1984; Kejriwal 2012
Four types of regional party?	Culture-ethnic, rooted pan-India outlook, offshoots, personalised (ROLE)	Six limits of regional parties?	POISON: populism, obstacles, identity politics, selfish priorities, outsized influence, nepotism

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

ECI = Election Commission of India — Constitutional body (Art 324) that conducts elections

SAD = Shiromani Akali Dal

SHS = Shiv Sena

NPP = National People's Party

ELECTIONS AND ELECTORAL REFORMS

PYQ None quoted in the handout (Prelims 2012 delimitation and Mains 2022, 2020, 2019, 2018, 2017 are quoted under ch 25)

✎ *The whole election system: Part XV, who runs a poll, the steps, the MCC, the two RPAs, delimitation, other Acts, and the reform story from 1974 to electoral bonds (struck down Feb 2024).*

Current affairs · verify dates

Registered Unrecognised Political Parties (RUPPs)
Six Gujarat-based RUPPs reportedly received Rs 1,700 crore in FY 2023-24, more than the Rs 1,480 crore received by five national parties (excluding BJP).

EVM Totaliser
The Supreme Court asked the Union Government to examine whether totalisers can be used for EVM counting to protect voter secrecy.

At a glance: Part XV (324-329)



PART XV: ARTICLES 324-329A

C-S-A-P-S-B — Commission Supervises All Polls; Statutes Block. 324 Commission · 325 Single roll · 326 Adult suffrage · 327 Parliament's law · 328 State's law · 329 Bar on courts

C-S-A-P-S-B (handout) — "Chief Says All People Shall Ballot." Also: 327 = Parliament leads, 328 = State fills gap ("328 is 327's junior").

Art	Key provision
324	ECI: superintendence, direction, control of rolls and all elections to Parliament, State Legislatures, President, VP
325	One general roll per territorial constituency; no exclusion on religion, race, caste, sex; ended separate electorates (Indian Councils Act 1909, Morley-Minto)
326	Adult suffrage for Lok Sabha and Assemblies: citizen, 18+; disqualified for non-residence, unsound mind, crime, corrupt or illegal practice
327	Parliament makes law on all election matters: rolls, delimitation, due constitution of Houses
328	State Legislature makes law only where Parliament has not: supplement, not supersede
329	Bars courts on delimitation / seat allotment; election disputes only by election petition (329(b))
329A	Inserted by 39th Am. (1975); repealed by 44th Am. (1978) as inconsistent with judicial review

Constitution gives election detail only for President and VP; Parliament and State Houses run by Parliament's law (Art 327). Aim: free, fair, uniform elections.

Registration is not the right to vote: Art 326 gives only registration as voter. By SC judgments the right to vote is a Constitutional Right: Rajbala (2015), Haryana Panchayat polls, Justices Chelameswar and Abhay Manohar Sapre: right to vote and right to contest Panchayat poll = Constitutional Rights.

Source conflict (Art 329): bar on courts says delimitation orders are final, yet a 2024 SC verdict allows review of an order "manifestly arbitrary or violates constitutional values". Write both: constitutional bar + 2024 limited review. Delimitation runs under Arts 82 and 170. Election petitions: High Courts since mid-1960s, appeal to SC; RPA 1951 gives grounds, procedure, time limits.

Tribunals: Arts 323A/323B allow tribunals (some election matters). L. Chandra Kumar v. Union of India (1997): Art 323B ousting HC review (Arts 226/227) and SC review (Art 32) is unconstitutional; judicial review = basic feature. Art 323B tribunals for election disputes: none set up; decisions appealable to HC.

WHO RUNS THE POLL

ECI (Art 324)

→ permanent, constitutional, multi-member: CEC + other ECs as President appoints (now 1 CEC + 2 ECs)
→ CEC removed like an SC judge (same manner, same grounds)
→ State Election Commission handles panchayat and municipal polls

Officer	Appointed by	Job
CEO (State/UT)	ECI, consulting State/UT administration	oversees all election work; link between ECI and sub-state officers
DEO (district)	ECI, consulting State govt, from State officers	nodal official; supervises district planning
RO (constituency)	ECI, consulting State/UT (govt or local authority officer)	nomination to counting
ERO	ECI after consulting State/UT (govt or local authority officer)	prepares and maintains roll of a constituency
Presiding Officer	DEO (and ROs in UTs)	one polling station: secrecy, order, returns records to DEO/RO

C-D-R-E-P – CEO, DEO, RO, ERO, Presiding Officer: "Cats Dream Really Enormous Pies."

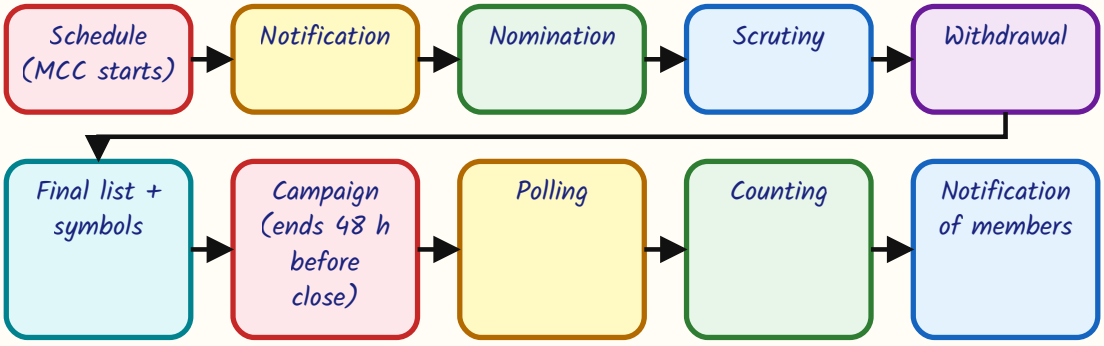
G-E-P – Observers: General, Expenditure, Police: "Go Every Place."

Observers (from services, report to ECI)

→ General: overall process, ECI directions
→ Expenditure (+ Assistant): candidates' spending only
→ Police (senior IPS): law and order, force deployment
→ RPA 1951 adds Micro-Observers

POLL PROCEDURE STEP BY STEP

Election route



Steps

→ Terms: LS and Assemblies 5 years; earlier dissolution if confidence lost and no alternative majority
→ Scrutiny: RO, summary hearing, may reject defective papers

→ **Oath/affirmation:** before RO or Assistant RO, in person, with nomination or before scrutiny day

→ **Ballot:** names in prescribed languages + symbols

→ **Counting:** EVMs opened under ROs and Observers; FPTP, largest valid votes wins

→ **After:** ECI compiles list; only then President/Governor summons House

N-N-S-W — Pre-poll: Notification, Nomination, Scrutiny, Withdrawal: "Never Neglect Small Words."

Polling day

→ stations in schools, halls: accessible, manageable size

→ name checked, ID verified, indelible ink on left forefinger, slip, EVM button

→ EVM gains: no invalid ballots, faster count, less paper, lower printing cost

→ Media may witness, subject to secrecy

→ Exit polls only after final-phase polling ends

EVM dates conflict: procedure section = experimental in 1980s, nationwide by early 2000s; reform table = legalised 1989, first tested 1998, Goa 1999. Use the reform table. Other EVM facts: first trial 1998 in Rajasthan, MP, Delhi Assembly polls; all State polls and by-elections 2003; 2004 LS wholly on EVMs (over 1 million machines); VVPAT slip visible 7 seconds.

Election petition: by elector or candidate, tried by State High Court; can annul election and order re-poll. **Two "48"s:** campaign ends 48 h before close; liquor sale barred 48 h before close (1996).

Timetable and polling norms (handout extras)	
Nominations	a week to file; withdrawal within 2 days after scrutiny
Campaign	at least 2 weeks from list of nominated candidates; max 6 months between last session of dissolved LS and first of new
Polling station	within 2 km of every voter; max 1200 voters; open at least 8 hours
Polls	opinion poll results barred from 2 days before polling starts to close; exit poll results only half an hour after last-day polling ends

OTHER ARTICLES ON ELECTIONS

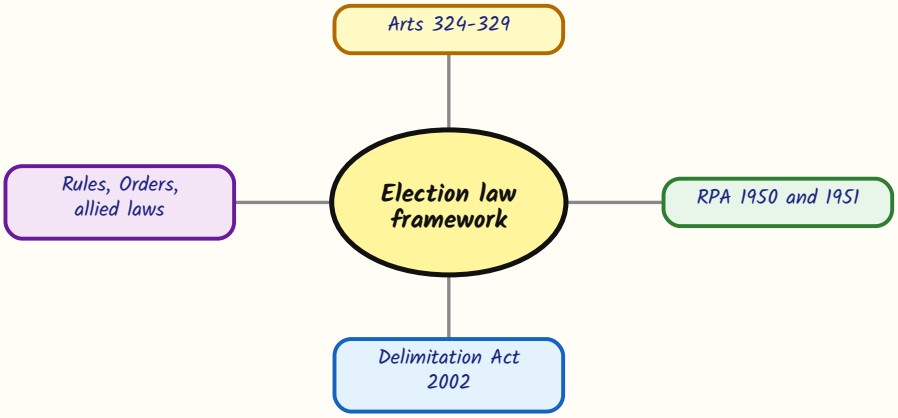
Art	Part	Subject
54	V	President elected by Electoral College of elected MPs and MLAs
55	V	Method of voting: population, proportional representation by STV
58	V	Qualifications for President
66	V	VP elected by members of both Houses
67(b)	V	VP term five years from entering office
80(4)	V	Rajya Sabha: elected MLAs, proportional representation by STV
81–84	V	LS composition, seat allocation, delimitation, qualifications
101–104	V	Vacation of seats, disqualification, vacancies
170–173	VI	Assembly composition, duration, qualifications
174–176	VI	Summon, prorogue, dissolve (fresh elections)
191–193	VI	Disqualifications, as for Parliament
243K	IX	Panchayat elections: State Election Commission
243ZA	IXA	Municipal elections: State Election Commission
243O	IX	Bar on courts in Panchayat polls (like Art 329)

K-O-Z — K = 243K Panchayat polls by SEC · O = 243O courts barred · Z = 243ZA municipal polls by SEC: "Kings Often Zap."

Provision	Relevance
🗺️ 10th Schedule	anti-defection disqualification
🧑‍🤝‍🧑 61st Am. (1988)	voting age 21 to 18 (Art 326); in force 28 March 1989
84th Am. (2001)	froze LS (and Assembly) seats on 1971 Census
87th Am. (2003)	delimitation on 2001 Census, not 1991
104th Am. (2020)	Art 334: SC/ST reservation extended 10 years (to 2030); ended Anglo-Indian nomination

📜 LAWS AND THE MODEL CODE OF CONDUCT

Four pillars (over 90 crore voters)



1960 MCC, Kerala poll; all parties accept

1962 ECI circulates to States; all adopt

1979 ECI amplifies

1991 Consolidated; strict since

K-C-A-C — Kerala 1960, Circulated 1962, Amplified 1979, Consolidated 1991: "Kind Citizens Always Comply."

MCC point	Detail
Period	announcement of polls to declaration of results; operative as soon as schedule announced
Area	LS: whole country · Assembly: whole State · by-election: the district
⚡ Authority	voluntary, no legal backing; ECI rejected making it law (provisions already in IPC, RPA 1951; a law would keep cases in court, defeating immediate resolution); parties respect ECI punishments

Six heads of MCC

→ **Peaceful conduct:** prior permission for rallies, processions; traffic rules
→ **Equal opportunity:** guest houses first come first served
→ **Citizens' peace:** no wall writings; RO permission for vehicles; loudspeakers 6 AM to 10 PM, none near schools, hospitals
→ **Decorum:** no personal attacks, baseless allegations
→ **Corrupt practice and offences:** mirror RPA 1951
→ **Govt machinery:** no official visits with election work, no new schemes (relief allowed), no foundation stones, no ad hoc PSU appointments

P-E-R-D-C-M — Peace, Equal chance, Right to quiet, Decorum, Corrupt practice, Machinery misuse: "Poll Etiquette Requires Decent Conduct, Modesty."

MCC date conflict: handout = began 1960 (Kerala). Lakshmikanth = agreed by all parties 1968, first effectively used 1991. Class: 1960; remember LK's 1968.

👥 RPA 1950: STRUCTURE AND ROLLS

📜 RPA 1950: nine provisions

→ Seats: gives effect to Arts 81 and 170 (Census-linked)
→ Delimitation: President, consulting ECI
→ Rolls: prepare, maintain, revise before every election (add 18-year-olds, drop ineligible)
→ Qualify to register: citizen, 18+ on qualifying date, ordinarily resident
→ Disqualify: unsound mind (court), non-citizens, disqualified for offences or corrupt practice
→ Officers: CEO, DEOs, EROs under ECI
→ UTs in Rajya Sabha: how chosen
→ Legislative Councils: defines local authorities whose members elect Council members
→ Sec 30: bars civil courts on roll entitlement and ERO action

C-A-R — Registration test: Citizen, Age 18+, Resident (ordinarily): "Cars Always Run."
"1950 = Structure and rolls; 1951 = Conduct and disputes. Fifty builds, Fifty-one runs."

RPA 1951: CONDUCT AND DISPUTES

In force 17 July 1951. Covers conduct (nomination to results), qualifications and disqualifications, registration of parties and expenses, corrupt practices and offences, petitions. 💡

Member	Rule
🎓 Qualifications	citizen; age 25 (LS, Assembly) or 30 (RS, Council); elector in a parliamentary / assembly constituency
🎓 Disqualifications	office of profit (unless exempted); unsound mind or undischarged insolvent; conviction for offences or corrupt practices; failure to lodge expenses; defection (Tenth Schedule, added later)

CLOUD — Disqualifications: Conviction · Lodging of expenses failed · Office of profit · Unsound mind or insolvent · Defection (Tenth Schedule). Order rearranged (own mnemonic).

PRICE — Corrupt practices: Publication of false statements · Religion or caste for votes · Influence (bribery, undue influence) · Capturing booths, tampering ballots · Exceeding expenditure limits. Conviction: disqualification, imprisonment or both. Not from handout.

B-R-F-B-E — Handout aid: Big Rats Fear Black Eyes (Bribery/undue influence, Religion, False statements, Booth capture, Exceeding limits).

💡 Other features of RPA 1951

→ Notification by President (Parliament) or Governor (State), then ECI; result in gazette
→ Parties: registration added 1989 (constitution, office-bearers, membership); recognised as National or State Party
→ Conduct: ballot, EVM, postal voting, declare winners, file expenses; candidates declare assets, liabilities, education
→ Expenditure: legal limits, statements to ECI; free copies of rolls to recognised-party candidates
→ Disputes: petition in HC; appeal to SC; costs and security stop frivolous suits
→ By-election: vacancy filled within 6 months
→ ECI powers: inquiries on disqualification, supervise procedures, guidelines

→ Courts: civil courts barred where Act gives remedy
→ Campaign period shortened 20 to 14 days

	RPA 1950	RPA 1951
Focus	seats, boundaries, rolls	nominations to results, disputes
Seats	Arts 81, 170	not its subject
Officers	CEO, DEOs, EROs	Returning, Presiding, Polling Officers, Observers, Micro-Observers
⚖️ Courts	Sec 30 bars civil courts	HC petition; appeal SC
Person	qualification to register	qualification and disqualification of members

📜 DELIMITATION ACT, 2002

⚠️ Delimitation basis
→ Art 82: readjust LS seats after each Census
→ Art 170: same for Assemblies
→ Arts 330, 332: SC/ST reserved seats tied to Census share
→ Aim: "one vote, one value"

📜 2002 Act (2001 Census) aims
→ redraw boundaries (LS, Assemblies)
→ re-fix SC/ST reserved seats
→ correct inequality from migration, uneven growth
→ balance rural and urban

👑 Delimitation Commission
→ Chair: serving or former SC Judge, appointed by Centre
→ CEC or an EC nominated by CEC, ex officio
→ State Election Commissioner of the State concerned, ex officio
→ Functions: fix boundaries and number of seats; identify SC/ST seats; publish draft for objections; finalise

J-C-S – Members: Judge, CEC or EC, State EC: "Jolly Chiefs Sing."

CARE – Criteria: Contiguity · Administrative convenience (district, tehsil) · Representation (SC/ST) · Equal population. Not from handout.

Seat freeze conflict: 42nd Am. (1976) started the freeze, 84th Am. (2001) extended it to the first Census after 2026, on 1971 population. 2002 delimitation changed boundaries, not seat numbers. 87th Am. (2003): 2001 Census for boundaries. Finality: orders final historically; 2024 SC allows review if "manifestly arbitrary".

OTHER ACTS, ORDERS AND RULES

Act	What it does
🎓 Parliament (Prevention of Disqualification) Act, 1959	lists offices of profit that do not disqualify; protects ministers, parliamentary secretaries, chairpersons of govt boards; Parliament can modify list
📜 SC and ST Orders (Amendment) Act, 1976	revises SC/ST lists (Arts 341, 342); readjusts reserved seats; basis of Arts 330, 332
📜 Govt of UTs Act, 1963	UTs with legislatures (Puducherry); ECI supervises
📜 GNCT of Delhi Act, 1991	implements Art 239AA; elected Assembly, Council; LG role
🗳️ President and VP Elections Act, 1952	STV; nomination to declaration; disputes in SC (Art 71)

ECI Order (Art 324, binding)	Key features
🗳️ Election Symbols (Reservation and Allotment) Order, 1968	recognition and symbols; reserved symbols (Lotus BJP, Hand INC); free symbols for independents; ECI may suspend or withdraw recognition on MCC or legal breach; prevents splinter-group misuse

Registration of Political Parties (Furnishing of Additional Particulars) Order, 1992	copy of constitution, office-bearers, membership rules, funding sources, internal elections; ECI may verify

Rules

- → Registration of Electors Rules 1960
- → Conduct of Elections Rules 1961
- → Prohibition of Simultaneous Membership Rules 1950
- → LS and RS (Disqualification on Ground of Defection) Rules 1985
- → President and VP Elections Rules 1974
- → LS/RS (Declaration of Assets and Liabilities) Rules 2004

1950 RPA rolls
1951 RPA conduct
1952 Pres-VP Act
1959 Offices of profit
1963 UT Govt Act
1968 Symbols Order
1976 SC/ST Orders
1991 Delhi Act
1992 Party Order
2002 Delimitation

REFORM COMMITTEES

Reforms on agenda since 4th general election (1967). Challenges: money and muscle, criminalisation, voter apathy, digital manipulation. Tools: laws, EVM/VVPAT, transparency, NOTA, NRI voting, postal ballots.

Committee	Recommendations
Tarkunde (1974), set up by Jayprakash Narayan (report 1975, unofficial)	ECI strength 3; voting age 18; voter's councils in each booth area; ECI appointed by committee: PM, Leader of Opposition (LS), CJI
1988 changes	RPA amended: polls can be countermanded for large-scale booth capturing; voting age 18 by 61st Am. 1988
Dinesh Goswami (1990), V.P. Singh govt (some proposals implemented 1996)	Voter ID; contest age RS/Councils 30 to 25, LS/Assemblies 25 to 21; ban transfer of election staff; higher deposits; standing committee on electoral reforms; MCC violation = 2 years jail
Vohra (1993)	crime-politics nexus; no recommendations listed

VOTE – Tarkunde: Voter's councils · Only committee appoints ECI (PM, LoP, CJI) · Three-member ECI · Eighteen voting age. Not from handout.

V-A-B-D-S-M – Goswami: Voter ID, Age to contest lower, Ban transfers, Deposits up, Standing committee, MCC jail: "Very Able Boys Deliver Sound Manifestos."

Lakshmikanth's committee list

- → JPC on Amendments to Election Laws (1971-72)
- → Tarkunde (1975)
- → Goswami (1990)
- → ECI proposals (1998)
- → Law Commission 170th (1999)
- → Venkatachaliah Commission (2000-02)
- → ECI report (2004)
- → 2nd ARC on Ethics (2007, Veerappa Moily)
- → Tankha Committee (2010)
- → J.S. Verma Committee (2013)
- → Law Commission 244th (2014), 255th (2015)

📜 LAW COMMISSION 255TH REPORT (2015)

Subject	Recommendation
Party regulation	no electoral reform without party reform; hardly any law on internal functioning; over-centralisation breeds corruption
👥 Party structure	3 tiers: Executive Committee (apex), State, Local (district); members elect from among themselves; polls every 5 years under ECI observers
Party affairs	secret ballot; candidate selection by Executive Committee with local units' views; separate RPA chapter; parties not contesting 10 years de-registered; ECI may fine and de-register
Proportional representation	Hybrid system
Anti-defection	disqualification power from Speaker to President/Governor on binding ECI advice
ECI independence	same protection for all 3 members; committee selection; independent secretariat
Paid news	make it an electoral offence
Opinion polls	Sec 126 to include print media; regulate opinion and exit polls
Rejected / not advised	compulsory voting; Right to Reject; Right to Recall; ward-wise counting (use totalizer)
Govt advertisements	restrict from 6 months before election, not from MCC
Seats / Independents / Rolls	contest one seat only; ban independents; common rolls for all elections

P-S-C-S-R-F – Party-reform bundle: Parties 3 tiers, Secret ballot, Candidate selection by committee, Separate RPA chapter, Registration cancelled after 10 years, Fines by ECI: "Parties Should Change Structure, Really, Fully."

Charged expenditure: it was the Election Commission (not the Law Commission) that recommended ECI expenditure change from voted to charged. ⭐

Early	1956	1964	Law Commission
3-member Election Tribunals (Art 324)	single-member tribunal; appeals HC then SC	19th Am.: HC original jurisdiction; SC appeal	trial 6 months, judgment 90 days, SC only on law

⚖️ LAWS, ECI AND COURTS AS REFORMERS

Law	Reform link
RPA 1950	seats, delimitation, registration; Aadhaar-Voter ID linkage, EPIC, online enrolment
RPA 1951	affidavit disclosure (2003), disqualification on conviction (2013), NOTA and VVPAT (2013-14)
⚠️ Delimitation Acts	1952, 1962, 1972, 2002
🗳️ Election Laws (Amendment) Act, 2021	Aadhaar linkage, four qualifying dates, "spouse"

ECI four hats

- → Supervisory: conducts polls, revises rolls, enforces MCC
- → Advisory: recommends reforms (1998, 2004 reports)
- → Innovator: EPIC, EVM, VVPAT, NOTA, Braille EVMs
- → Enforcer: excess spending, hate speech
- → Art 324: binding orders and model codes even without legislation

S-A-I-E – Supervisor, Adviser, Innovator, Enforcer: "Some Active Inspectors Enforce."

Case	Contribution
Indira Nehru Gandhi v. Raj Narain (1975)	free and fair elections = basic structure
🗺️ ADR v. Union of India (2002)	disclosure of criminal, financial, educational details of candidates
🗺️ PUCL v. Union of India (2003)	NOTA; voter's right to information
🗺️ Lily Thomas v. Union of India (2013)	immediate disqualification of convicted legislators (struck down Sec 8(4) RPA 1951)

Subramanian Swamy v. ECI (2013)	VVPAT essential for transparency
⚖️ Supreme Court (2024)	struck down Electoral Bonds, violates transparency, Art 19(1)(a)

I-A-P-L-S-E – Indira 1975, ADR 2002, PUCL 2003, Lily Thomas 2013, Subramanian Swamy 2013, Electoral bonds 2024: "I Always Pick Loyal Seats, Everyone."

NOTA / ADR conflicts: case table dates NOTA to PUCL 2003; reform tables date NOTA 2013 (SC directive). Use 2013 for reform, 2003 only if the question gives it beside PUCL. Do not mix ADR 2002 (candidate disclosure) with ADR 2020 (parties justify criminal candidates within 48 hours). NOTA: first used Noksen (Nagaland) by-election 2013; even if NOTA tops, top candidate wins. Jan Chaukidar (2013): jail inmates cannot contest; Parliament amended RPA 1951 to negate.

🔧 REFORM STORY: BEFORE 1996

Year	Reform
1988	voting age 21 to 18 (61st Am.)
1989	Deputation of roll officers to ECI · proposers for RS/Council: 10% of electors or 10 electors, whichever less · EVMs legalised · booth capturing: ECI can adjourn or cancel poll
1993	EPIC (photo ID) against bogus voting

Shortcut: "88 age, 89 four, 93 card." ✅

1996 PACKAGE

Reform (1996)	Detail
Category listing	recognised parties, registered-unrecognised, independents; alphabetical in each
Insulting national symbols	Prevention of Insults to National Honour Act, 1971 (flag, Constitution, anthem): bars contesting 6 years
Liquor ban	none within 48 hours before poll closure
🗳️ Nomination / proposers	10 electors for non-recognised-party candidates; 1 for recognised-party candidates
Death of candidate	poll not countermanded; recognised party may substitute within 7 days
🗳️ By-election time limit	within 6 months unless remaining term under 1 year or impracticable
Paid holiday	every registered voter, including daily wage workers
Two constituencies	cannot contest more than two
Arms near booths	cognisable offence
Campaign period	20 to 14 days

C-D-L-N-D-T-P-R-P-C – "Candidates Don't Like Needless Delays, Time Pays, Rules Prevent Chaos." (Category, Disqualification, Liquor, Nomination, Death, Time limit, Paid holiday, Restriction two seats, Prohibition of arms, Campaign 14 days)

🔧 REFORMS AFTER 1996 AND SINCE 2010

Year	Reform
1997	President: proposers 10 to 50; VP: 5 to 20; deposit Rs 2,500 to Rs 15,000
1998	ECI may requisition staff from PSUs, LIC, universities, nationalised banks
1999	postal ballot for notified categories (service voters)
2003	proxy voting for armed forces · affidavit (criminal cases, assets, liabilities, education; false info = offence) · RS: domicile removed, open ballot · free rolls and equal electronic media time to recognised parties · parties may take any contribution from person or company (not govt company), report above Rs 20,000 · leaders' travel not in candidate expenses
2004–09	Braille on EVMs, nationwide by 2009
2009	exit-poll ban during voting · LS deposit Rs 10,000 to Rs 25,000 (SC/ST Rs 5,000 to Rs 12,500)
2010	NRI voting (passport address)
2013	online enrolment · NOTA (SC directive) · VVPAT (nationwide by 2019) · immediate disqualification on conviction (Lily Thomas)
2015	candidate photos on EVMs
2019 on	VVPAT with every EVM; random VVPAT verification 5 EVMs per Assembly segment
2020–21	SC: parties justify criminal candidates, publish reasons within 48 hours of selection
2023	CEC and Other ECs Act: panel PM, LoP, a Cabinet Minister nominated by PM; 6 years or age 65; criticised for weakening ECI independence; under SC review 2024–25

P-R-P-P-A-R-F-B-E-H — "Polls Reform People's Power, All Rights For Better Elections Here." (Pres-VP 1997, Requisition 1998, Postal 1999, Proxy 2003, Affidavit 2003, RS 2003, Free rolls 2003, Braille 2004–09, Exit-poll 2009, Higher deposits 2009)

Doubts: (1) two seats (1996) versus Law Commission one seat only; (2) by-election: RPA says 6 months, 1996 adds exceptions; (3) CEC Act 2023 appears twice in handout, same content.

📜 CONTEMPORARY REFORMS AND 2021 ACT

Area	Reform
Transparency	Electoral Bonds struck down Feb 2024 (Art 19(1)(a)); ECI: parties publish audited accounts and donors quarterly
Rolls	Election Laws (Amendment) Act 2021; e-roll integration, national voter portal upgrades (2023–24)
Criminalisation	ADR 2020: parties justify candidates with criminal cases on websites and in newspapers within 48 h
Technology	RVM prototype (2023) for migrants, pilot postponed; ETPBS for service voters and seniors above 80 (2022 guidelines)
💰 Finance	post-2024 Finance Act rules cap cash donations Rs 2,000 per contributor; Election Expenditure Portal (ECI proposal, pilot 2023)
Institutions	CEC Act 2023; Common Electoral Roll Bill (2023 draft) merges LS, Assembly, local body rolls

🗳️ Election Laws (Amendment) Act, 2021

- → amends both RPAs; LS 20 Dec, RS 21 Dec, assent 29 Dec 2021
- → Aadhaar linkage: optional, EROs may ask
- → Four qualifying dates: 1 Jan, 1 Apr, 1 Jul, 1 Oct
- → Gender-neutral: "wife" of service voter becomes "spouse"
- → Premises: requisition for polling, storage, counting, staff stay

A-Q-G-P — Aadhaar, Qualifying dates, Gender-neutral, Premises: "All Quick Good Polls." Dates J-A-J-O: "Just Ask Just Once."

🗳️ ELECTORAL FINANCES AND STATE FUNDING

💰 Why finance reform

- → money = advantage; crorepati candidates LS 2009 16%, 2014 27%; MPs 442 (16th LS), 475 (17th)
- → bribing voters, black money, corruption incentive
- → Crony capitalism (quid pro quo); violates equal participation
- → large donations = institutionalised corruption

Corporate donations

→ Justice Louis Brandeis: democracy or concentrated wealth
→ super-rich (0.1%) fund costlier polls
→ Germany: only EU country allowing outdoor cigarette ads; India: corporate tax rate cut
→ USA: super-rich share of donations 15% (1980) to 70% (2016); bottom 50% income and corporate taxes fell
→ France banned corporate donations 1995, individual cap 6,000 Euro; Chile, Brazil banned recently

Source	State funding proposal
Dinesh Goswami (1990)	in kind to recognised parties; include fuel
Indrajit Sengupta (1998)	in kind to recognised parties
📜 Law Commission 170th, 255th	partial funding in kind
S.Y. Quraishi (ex-CEC)	cash by vote share; National Election Fund via cess on companies; ban corporate donations

Country	State funding
USA	none
UK	modest, up to 2 million pounds/year
Germany, Sweden	massive

Law Commission objections: voters will not support amid distrust; election cost unclear; must follow decriminalisation, inner-party democracy, transparency; may discourage social base and new parties. ⭐

Name conflict: handout "Indrajit Sengupta Committee" (1998); Lakshmikanth "Indrajit Gupta" (eight members, report 1999). Use handout spelling. 2017 Budget: anonymous cash Rs 20,000 to Rs 2,000, 7.5% profit cap on company donations removed; 2018 bonds only for parties with 1% votes, buyer confidential; FCRA amended for foreign funds.

🗳️ Electoral bond

→ SBI issues interest-free bearer instruments; anyone can buy
→ Denominations Rs 1,000, 10,000, 1 lakh, 10 lakh, 1 crore (ten times each)
→ party encashes within 15 days; unencashed to PMRF
→ Struck down Feb 2024, right to information; ended seven-year era
→ Issues: parties need not disclose; donor unknown (SBI under govt); shareholders blind; ruling party advantage; black money via shells; taxpayers in dark

P-D-S-R-F-T – Bond issues: Parties need not disclose, Donor unknown, Shareholders blind, Ruling party advantage, Funnelling black money, Taxpayers in dark: "People Deserve Straight Real Finance, Too."

🗳️ LOK SABHA ELECTIONS: LEADING PARTIES

Election	Seats	Top parties
👫 1st (1952)	489	Congress 364, Communist 16, Socialist 12
2nd (1957)	494	Congress 371, Communist 27, Praja Socialist 19
4th (1967)	520	Congress 283, Swatantra 44, Jana Sangh 35
5th (1971)	518	Congress 352, CPM 25, CPI 24
6th (1977)	542	Janata 298, Congress 154, CPM 22
10th (1991)	543	Congress 232, BJP 119, Janata Dal 59
11th (1996)	543	BJP 161, Congress 140, Janata Dal 46
12th (1998)	543	BJP 182, Congress 141, CPM 32
13th (1999)	543	BJP 182, Congress 114, CPM 33
14th (2004)	543	Congress 145, BJP 138, CPM 43
15th (2009)	543	Congress 206, BJP 116, SP 23
16th (2014)	543	BJP 282, Congress 44, AIADMK 37
17th (2019)	543	BJP 303, Congress 52, DMK 23

In the news · Sep 2026 (verify dates) **EVM Totaliser:** SC asked Union Govt to examine totalisers for EVM counting to protect voter secrecy. **RUPPs:** six Gujarat-based registered unrecognised parties reportedly got Rs 1,700 crore in FY 2023–24, more than Rs 1,480 crore for five national parties.

Recall drill: cover and answer

Arts of Part XV?	324 to 329 (329A repealed by 44th Am. 1978)	Voting age lowered how and when?	61st Am. 1988 (Art 326), in force 28 Mar 1989; 21 to 18
MCC period and legal status?	Announcement to results; voluntary, no legal backing; began 1960 Kerala	Delimitation Commission members?	SC judge (chair), CEC or EC, State EC
RPA 1950 vs 1951?	Rolls, seats, delimitation vs conduct, offences, disputes (in force 17 Jul 1951)	Campaign ends when?	48 hours before polling closes; liquor ban also 48 hours (1996)
Electoral bond denominations and fate?	Rs 1,000, 10,000, 1 lakh, 10 lakh, 1 crore; 15 days; struck down Feb 2024	Lily Thomas 2013?	Immediate disqualification of convicted legislators (Sec 8(4) struck down)
CEC Act 2023 panel and tenure?	PM, LoP, Cabinet Minister; 6 years or age 65	Seat freeze?	42nd Am. 1976, extended by 84th 2001 to first Census after 2026; 1971 population

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

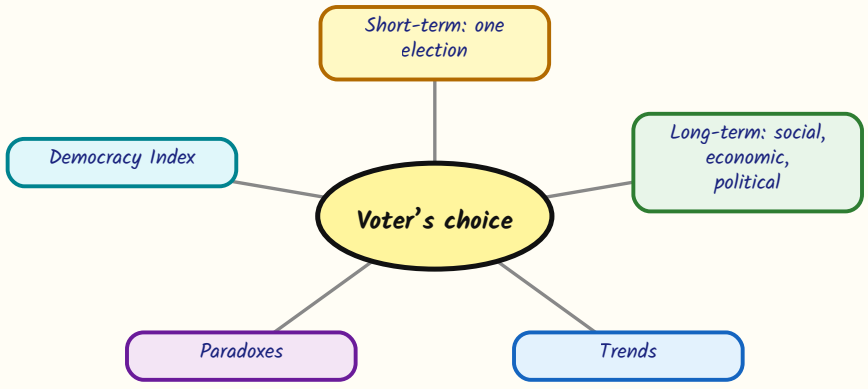
- **ECI** = Election Commission of India — Constitutional body (Art 324) that conducts elections
- **SC** = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list
- **RPA** = Representation of the People Act — Laws on conduct of elections and disqualification (1950 and 1951)
- **MCC** = Model Code of Conduct — Election-time guidelines issued by the ECI
- **CEC** = Chief Election Commissioner — Head of the Election Commission
- **EVM** = Electronic Voting Machine — Machine used to record votes
- **VP** = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha
- **ST** = Scheduled Tribes — Tribal groups listed under Art 342
- **RS** = Rajya Sabha — Council of States; the upper House of Parliament
- **HC** = High Court — State-level constitutional court (Art 214)
- **PM** = Prime Minister — Head of the Union government
- **UT** = Union Territory — Area administered directly by the Union government
- **ADR** = Association for Democratic Reforms — NGO working on electoral and political reform
- **PUCL** = People's Union for Civil Liberties — Rights group behind landmark cases such as the 1997 phone-tapping case
- **NRI** = Non-Resident Indian — Indian citizen living abroad
- **CJI** = Chief Justice of India — Head of the Supreme Court

VOTING BEHAVIOUR

PYQ Prelims 2020, 2012, 2001, 1997, 1995 · Mains 2025, 2024, 2022 (x2), 2020, 2019, 2018, 2017 (x2)

Why Indian voters choose as they do (short-term and long-term influences), the paradoxes of Indian democracy, and the Democracy Index.

At a glance



PYQ map (open-ended Mains on the whole chapter): Mains 2025 corrupt practices under RPA 1951 · 2024 electoral reforms, one nation-one election · 2022 ECI and MCC evolution; disputes on election of MP/MLA under RPA · 2020 simplify disqualification for corrupt practices · 2019 grounds of disqualification of representatives and remedies · 2018 EVM challenges · 2017 simultaneous elections; ECI 2016 reforms. Prelims: 2020 minister for six months (answer (a) 1 only) · 2012 Delimitation Commission orders not challengeable ((c) both) · 2001 RPA 1951 registration of parties ((d)) · 1997 Goswami = governmental funding of parliamentary elections ((c)) · 1995 Goswami = electoral reforms ((b)).

WHAT DECIDES A VOTE

Voting behaviour = electoral behaviour, a form of political behaviour; study = psephology (Greek psephos, pottery piece used to vote on banishing). Vote = individual choices + group choices (religion, social group). Short-term: one election only. Long-term: lasting factors.

⏳ Short-term (5)

- → Economy: inflation, unemployment
- → Local conditions: water, power, roads
- → Leaders' personality
- → Specific events: Emergency (1975) hurt Indira Gandhi
- → Media coverage

⏳ Long-term

- → Social: age, gender, inhabitation, caste, religion
- → Economic: income groups
- → Political: ideology, family, party identification

PULSE — Short-term: Pattern of media · Unemployment and inflation (economy) · Local conditions · Standing of leaders · Events (Emergency). Not from handout.

S-E-P — Long-term trio: Social, Economic, Political: "Some Electors Ponder." Short-term (handout): "Every Leader Prefers Smooth Messages."

⏳ LONG-TERM FACTORS

Social factor	How it shapes voting
Age	age of voter affects behaviour
Gender	inequality gives one gender more participation and awareness
Inhabitation	early decades urban voters more aware; now rural voters also aware
Caste	deep loyalties, esp. rural; OBC and Dalit mobilisation increased influence
📚 Religion	exploits apprehension: minority's in early decades, majority's recently (real or imaginary)

A-G-I-C-R — Allegiances Guide Indian Choices, Repeatedly (Age, Gender, Inhabitation, Caste, Religion). Handout: "A Good Idea: Count Rightly." Sentence aid; order free.

Economic

- → Higher, middle, lower-income: aware, think of long-term policy effects
- → Poor: personal economic problems; belong only to caste and religion; vote as employer says (rural)

Political

- → ideology matches party
- → political family background, socialisation
- → Party identification = psychological attachment

🎯 Trends in voting

- → Party or leader over candidate; party depends on leader image
- → Independents perform poorly
- → Vote against ruling party ("vote against, not for")

→ distinct national vs State choices

Lakshmikanth's extras

→ **Kini:** voting legitimises rule, participation, decision, role-action, citizen-government link

→ **Caste:** Rajni Kothari "politics casteist, caste politicised"; Paul Brass: caste solidarity most important in countryside

→ **Language/region:** 1956 reorganisation; DMK, TDP; sub-nationalism; secessionists call boycott

→ **Personality:** Nehru, Indira, Rajiv, JP, Vajpayee, Modi

→ **Money:** notes, liquor, goods; works only in normal times, not in a wave election (Brass)

→ **Anti-incumbency:** Congress 1977, Janata 1980

→ **Others:** events (war, murder, scandals), economy (inflation, food shortage, unemployment), factionalism, candidate, campaign, family, media

→ **Why study (5):** socialisation, value of democracy, ballot impact, continuity or break, modern or primordial

Lakshmikanth differs: splits determinants into socio-economic and political and lists ten (caste, religion, language, region, personality, money, ruling-party performance, party identification, ideology, others). Handout uses short-term/long-term and adds age, gender, inhabitation. Use the handout frame in class.

PARADOXES IN OUR DEMOCRACY

Paradox	Contrast
1 Participation vs muscle and money	participation up, peaceful transition, gun culture ended; muscle and money prevalent
🗺️ 2 Bureaucracy and State	bureaucracy under political control; State more repressive (draconian laws), bureaucracy anti-people
⚠️ 3 Issue vs identity politics	should be issue-based; identity prevails
4 Democracy and abject poverty	vote should let the poor remove parties; not so
5 Too many parties, no real choice	most share same economic ideology
6 Tolerance without liberal ethic	cannot be practised; mob lynching, vigilantism justified
7 Multi-party and personality cult	democracy should not rest on a leader
8 Psephocracy	democracy honoured at polls and peaceful transfer, not between elections: electoral dictatorships
9 Contradictions in party system	see below

P-B-I-D-T-T-M-P-C – "Poor Boys Ignore Dull Talk, Think More, Plan Carefully."

Phase 1
Language

Phase 2
Caste (after Mandal Commission)

Phase 3
Religion (after Ram Janmabhoomi Movement)

L-C-R – Identity phases: Language, Caste, Religion: "Look, Cast Right." / "Lines Create Rifts." Excess focus: frozen identities, no negotiation or reconciliation.

Psephocracy: democratic practices honoured during free and fair elections and peaceful transfer, not between two elections; leads to electoral dictatorships.

Democracy and poverty: economic inequality seen as less of a scandal than social inequality; reservation addresses social inequality but did not become material benefit; democracy preoccupied with changing social power, new political elites from Backward Classes; material status of the poor unchanged.

Party-system contradictions (7)

→ Personality cult re-emerged at Centre
→ High command, centralised parties
→ rising regional parties
→ multi-party but no real choice
→ rising independents
→ Fluid ideology: frequent defections
→ more representative, consensus harder

P-H-I-R-F-C-I — "Parties Hold Interests, Rarely Following Conscience."

Independents: numbers rise (contradiction) but success stays low (trend); different questions. Handout does not number the paradoxes; nine only if party-system contradictions counts last.

DEMOCRACY INDEX AND DEMOCRACY DAY

Democracy Index (EIU)

→ scale 0 to 10; 60 indicators; 5 categories
→ Categories: electoral process and pluralism, functioning of government, political participation, political culture, civil liberties
→ 4 regimes: Full > Flawed > Hybrid > Authoritarian
→ India 2020: Flawed democracy, 6.61 (fell from earlier peak; "democratic backsliding")
→ 2024 edition: global average lowest since index began 2006

E-F-P-P-C — Every Fair Poll Protects Citizens (Electoral process, Functioning of govt, Participation, Political culture, Civil liberties). Sentence aid.

International Democracy Day: 15 September. 2007: Universal Declaration on Democracy adopted by the Inter-Parliamentary Union.

Recall drill: cover and answer

Short-term influences?	Economy, local conditions, leaders, specific events (Emergency), media	Long-term factors?	Social (age, gender, inhabitation, caste, religion), economic, political
Party identification?	Psychological attachment with a party	Psephocracy?	Democracy at polls and transfer, not between elections: electoral dictatorships
Three phases of identity politics?	Language, caste (post-Mandal), religion (post-Ram Janmabhoomi)	Democracy Index scale, indicators, categories?	0–10, 60 indicators, 5 categories, 4 regime types
India in 2020 Index?	Flawed democracy, 6.61	International Democracy Day?	15 September; UDD adopted by IPU in 2007
Trend in Indian voting?	Party/leader over candidate; independents poor; vote against ruling party; national vs State choices		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

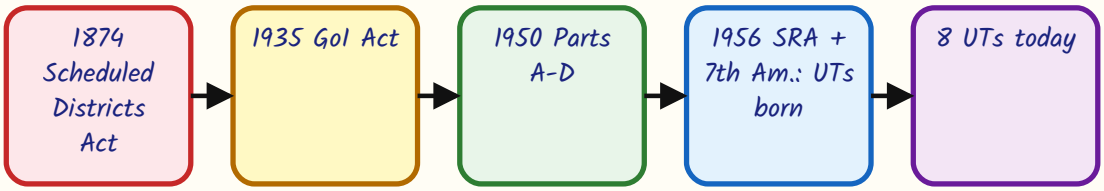
RPA = Representation of the People Act — Laws on conduct of elections and disqualification (1950 and 1951)
ECI = Election Commission of India — Constitutional body (Art 324) that conducts elections
MCC = Model Code of Conduct — Election-time guidelines issued by the ECI
MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha
EVM = Electronic Voting Machine — Machine used to record votes
OBC = Other Backward Classes — Socially and educationally backward groups eligible for reservation (Art 15(4), 16(4))
EIU = Democracy Index

UNION TERRITORIES

PYQ None quoted in the handout

✎ *Eight UTs run by the Centre under Arts 239-241; only Delhi, Puducherry and J&K have Assemblies, and Parliament's law always prevails.*

At a glance: origin to 8 UTs



ROOTS AND WHY UTs EXIST

1874
Scheduled Districts Act

Later
Chief Commissioner's Provinces: Delhi, Coorg, Ajmer-Merwara, A&N

1935
GoI Act: Chief Commissioners

1950
Part A, B, C, D States; C and D run by Centre

1956
SRA 1956 + 7th Am.: UTs

Origin shortcut: 74 scheduled, 35 commissioners, 50 Parts, 56 UTs born. Former UTs now States: Himachal Pradesh, Manipur, Tripura, Mizoram, Arunachal Pradesh, Goa. ✅

Reason	Examples
Political and administrative convenience	Delhi, Chandigarh (national capital; joint capital)
Cultural and historical distinctiveness	Puducherry (French), Dadra and Nagar Haveli and Daman and Diu (Portuguese)
🛡️ Strategic and security	A&N, Lakshadweep, Ladakh
👫 Tribal and backward	former UTs Manipur, Tripura, Mizoram

ACTS — Administrative convenience · Cultural distinctiveness · Tribal and backward · Strategic security. Handout: "Cats Can Stay Tonight."

📰 **In the news · Aug 2026 (verify dates)** **Ladakh High Court Bench:** Cabinet approved a Ladakh Bench of the J&K and Ladakh HC. **Sec 51, States Reorganisation Act 1956:** President may set a permanent Bench after consulting Governor and Chief Justice.

THE EIGHT UTs

No.	UT	Year	Feature and head
1	Andaman and Nicobar Islands	1956	strategic, Bay of Bengal; LG
2	Delhi (NCT)	1956 (re-designated 1992)	elected legislature; LG
3	Lakshadweep	1956	smallest UT, Arabian Sea; Administrator
4	Puducherry	1962	ex-French; Assembly; Lt Governor
5	Chandigarh	1966	joint capital of Punjab and Haryana; Administrator
6	Jammu and Kashmir	2019	bifurcation of former State; UT with legislature
7	Ladakh	2019	no legislature; LG
8	Dadra and Nagar Haveli and Daman and Diu	2020 (merger)	efficiency; Administrator

A-D-L-P-C-J-L-D — Administrators Direct Lakshadweep, Puducherry, Chandigarh, Jammu, Ladakh, Dadra (handout order). Handout: "Any Dancer Likes Pretty Colourful Jewelled Lehengas, Dear."

👑 Lt Governor (5)
- → Delhi
- → Puducherry
- → A&N
- → J&K
- → Ladakh

Administrator (3)
- → Chandigarh
- → Lakshadweep
- → DNH and DD

D-P-A-J-L — LG UTs: Delhi, Puducherry, A&N, J&K, Ladakh: "Dear Police Always Just Listen."

Delhi date conflict: table says 1956 (re-designated 1992); Delhi section says 69th Am. 1991; framework says Delhi (1992). Act = 1991, NCT in 1992 (took effect 1 Feb 1992). Old names: Lakshadweep = Laccadive, Minicoy and Amindivi till 1973; Puducherry = Pondicherry till 2006.

👑 HOW UTs ARE ADMINISTERED (ARTS 239-241, PART VIII)

Administration
- → President acts through an Administrator (agent, not constitutional head)
- → President fixes title: LG, Chief Commissioner, Administrator
- → may appoint neighbouring State's Governor as Administrator; acts independently of State ministers
- → only 3 UTs have Assembly + CM-led Council: Delhi (1992), Puducherry (1963), J&K (2019); other five directly by Centre
- → elected bodies do not dilute President and Parliament

UT Assembly	Legislates on	Except
Delhi	State and Concurrent Lists	public order, police, land
Puducherry	State and Concurrent Lists	none stated
J&K	State and Concurrent Lists	public order, police

LOP — Delhi barred: Land, Order (public order), Police. Handout: "Polite People Leave." J&K barred only public order and police.

📜 President's regulations (no legislature)
- → for peace, progress, good governance
- → same force as Act of Parliament; can amend or repeal Central laws
- → handout names A&N, Lakshadweep, Ladakh, DNH and DD
- → Puducherry only when Assembly suspended or dissolved
- → Parliament legislates on any subject for all UTs; its law prevails

HALL — Regulation UTs: Haveli (DNH and DD), Andaman and Nicobar, Lakshadweep, Ladakh. Chandigarh has no legislature but is not in the handout's list.

Handout alert: five UTs have no legislature (including Chandigarh) but the regulation list names four. Use the handout's list as given; remember "UTs without legislatures".

UT	High Court
Delhi	own HC (1966), the only UT with one
A&N	Calcutta
Chandigarh	Punjab and Haryana
Lakshadweep	Kerala
Puducherry	Madras
DNH and DD	Bombay

J&K and Ladakh	common HC of J&K and Ladakh

C-P-K-M — State HC UTs: Calcutta (A&N), Punjab and Haryana (Chandigarh), Kerala (Lakshadweep), Madras (Puducherry): "Cool Parrots Keep Mangoes." Parliament can set up a HC for a UT or place it under a State HC.

DELHI (NCT): ARTS 239AA AND 239AB

Feature	Detail
Basis	69th Am. 1991: NCT, administrator = LG, Arts 239AA, 239AB; UT + State features
🏛 Assembly	70 directly elected; ECI conducts
📜 Laws	State and Concurrent except public order, police, land; Parliament prevails
👑 Ministers	CM appointed by President (not LG); others on CM's advice; up to 10% of Assembly (7); during President's pleasure; collectively responsible to Assembly; aid and advise LG except where LG acts in discretion
👑 LG and ministers differ	referred to President, decision binding
Art 239AB	machinery fails (LG report or otherwise): President suspends 239AA or laws under it, temporary arrangements; like Art 356
📜 Ordinance (Art 239B)	LG during recess; force of Assembly Act; needs President's prior approval to issue or withdraw; Assembly approves within 6 weeks; cannot issue while Assembly dissolved or suspended
Art 239AA / HC	only UT with own High Court (1966)

GNCTD (Amendment) Act, 2021: Assembly rules not inconsistent with Lok Sabha's; Assembly cannot make rules to inquire into administrative decisions (earlier rules void); Delhi govt must get LG's opinion before acting; "Government" = LG. Handout: attempt to overrule SC (2018) settlement. ⭐

S-T-T — Delhi numbers: Seventy members, Ten per cent (seven), Two articles: "Seven Ten Two."

PUDUCHERRY: ART 239A

Feature	Detail
Basis	Art 239A by 14th Am. 1962; Govt of Union Territories Act, 1963
🏛 Assembly	unicameral, up to 33: 30 elected + up to 3 nominated by Centre; nominated have equal voting rights; SC upheld (2021)
📜 Laws	State and Concurrent, subject to Parliament; President may give directions
👑 Executive	LG administrative head; CM-led Council aids; LG acts independently where discretion or differences, referred to President
Regulations	only when Assembly suspended or dissolved
Regions	4: Puducherry, Karaikal, Mahe, Yanam (Tamil, Malayalam, Telugu)

P-K-M-Y — Puducherry, Karaikal, Mahe, Yanam: "Please Keep My Yogurt."

30+3 — "thirty vote, three nominated" = up to 33

JAMMU AND KASHMIR AND LADAKH

J&K Reorganisation Act, 2019, in force 31 Oct 2019: two UTs for governance, security, development. 💡

📜 J&K (legislature)

- → Assembly on Delhi/Puducherry model
- → LG head; CM-led Council aids and advises
- → State + Concurrent except public order, police
- → Parliament any subject

Ladakh (none)

- → President through LG
- → no elected legislature; LG with Central officers
- → LAHDCs for Leh and Kargil: local development, culture
- → President may issue regulations

J&K shortcut: Assembly, minus police and public order. Ladakh: no Assembly, hill councils (Leh, Kargil). Both share one HC. 2019 split reasons (LK): Ladakh = large area, thin population, difficult terrain, long demanded UT; J&K = internal security, cross-border terrorism. 2019 Presidential Order superseded the 1954 Order (Art 370). ✅

📰 In the news · Jul 2026 (verify dates) Ladakh hill councils: Ladakh to set up AHDCs in all seven districts; UT without legislature under J&K Reorganisation Act 2019, administered by LG under Art 239.

🗳️ ADVISORY COMMITTEES AND COMPARISONS

Committee	Chair	Members, role
🗳️ HMAC (Home Minister's Advisory Committee)	Union Home Minister	A&N, Ladakh, Lakshadweep, Chandigarh, DNH and DD: social, economic, infrastructure issues; reviews schemes; guides administrators
🗳️ AAC (Administrator's Advisory Committee)	Administrator or LG of that UT	MPs, elected local reps (District Panchayats, Municipal Councils), officials; local feedback

Set up by MHA (nodal ministry: UT legislation, finance and budget, services, appointment of LGs and Administrators) under Govt of India (Allocation of Business) Rules, 1961. "Home is High, Administrator is At home." 💡

	UTs with Legislature (Delhi, Puducherry, J&K)	UTs without (A&N, Ladakh, Chandigarh, Lakshadweep, DNH and DD)
Basis	Arts 239A, 239AA, 239AB	Art 239
Body	elected Assembly	none; Parliament laws or President regulations
👑 Executive	CM Council aids Administrator/ LG	Administrator/LG under President
📜 Local law	State + Concurrent minus specified	none
🏛️ Parliament	any matter; Union supremacy	complete control

States	Union Territories
🗺️ federal relation	unitary relation
⚡ share power with Centre	direct Central control
autonomy	no autonomy
uniform set-up	no uniformity
👥 Governor = constitutional head	Administrator = President's agent
📜 Parliament cannot make State List laws except extraordinary	Parliament can make laws on all three lists

🧑‍🤝‍🧑 Quick test

→ "Council of Ministers headed by a CM" = Delhi, Puducherry or J&K; else Administrator/LG. Arts: 239 administration
→ 239A local legislatures
→ 239AA Delhi
→ 239AB machinery failure
→ 239B ordinances
→ 240 regulations
→ 241 High Courts
→ 242 Coorg (repealed). Lakshmikanth: UTs = "centrally administered territories"; unitary, unlike federal States; no separate rules for acquired territories.

Lakshmikanth differs: footnote Puducherry 30, Delhi 70, J&K 83 (handout: Puducherry up to 33 = 30 + 3, no J&K figure; use handout). LK "remaining six UTs" vs its own list of five: use five. DNH merger: DNH (UT 1961) + Daman and Diu (UT 1962): common history, language, culture; same secretaries, duplicate secretariats, Administrator alternating; slogan "Minimum Government, Maximum Governance"; merger Act 2019, effective 2020. 📌

1961 Allocation of Business Rules

1962 14th Am.: Art 239A

1963 GUT Act

1966 Delhi HC; Chandigarh UT

1991 69th Am.

2019 J&K Act

2021 GNCTD Act; SC on Puducherry nominees

In the news · Sep 2026 (verify dates) **Defining Urban Areas:** MoHUA told a parliamentary panel census-town criteria miss the scale of urbanisation. **Navtor Land (Ladakh):** LG approved Ladakh Autonomous Hill Development Councils (Navtor Regularisation) Rules, 2026, over 60,000 acres.

Recall drill: cover and answer

How many UTs; which have Assemblies?	Eight; Delhi, Puducherry, J&K	Articles for UTs?	Arts 239–241 (Part VIII); 239A Puducherry (14th Am. 1962); 239AA/AB Delhi (69th Am. 1991)
Delhi: seats, ministers, barred subjects?	70; up to 10% (7); public order, police, land	Only UT with own High Court?	Delhi (1966)
Puducherry Assembly?	Up to 33 = 30 elected + 3 nominated; SC upheld nomination 2021	LG UTs vs Administrator UTs?	LG: Delhi, Puducherry, A&N, J&K, Ladakh; Administrator: Chandigarh, Lakshadweep, DNH and DD
GNCTD Amendment Act 2021 effect?	Government = LG; LG opinion needed; no inquiry rules	Delhi ordinance rules?	LG in recess, President's prior approval, Assembly approves in 6 weeks
HMAC vs AAC?	HMAC chaired by Home Minister; AAC by Administrator/LG		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

LG = Lieutenant Governor — Administrator of certain Union Territories

UT = Union Territory — Area administered directly by the Union government

HC = High Court — State-level constitutional court (Art 214)

CM = Chief Minister — Head of a State government

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ECI = Election Commission of India — Constitutional body (Art 324) that conducts elections

MHA = Ministry of Home Affairs — Union ministry for internal security, Centre-State matters and disaster management

SCHEDULED AND TRIBAL AREAS

PYQ Prelims 2008, 2013, 2015, 2019, 2021, 2022, 2023, 2025 + two undated · Mains 2013, 2016, 2017

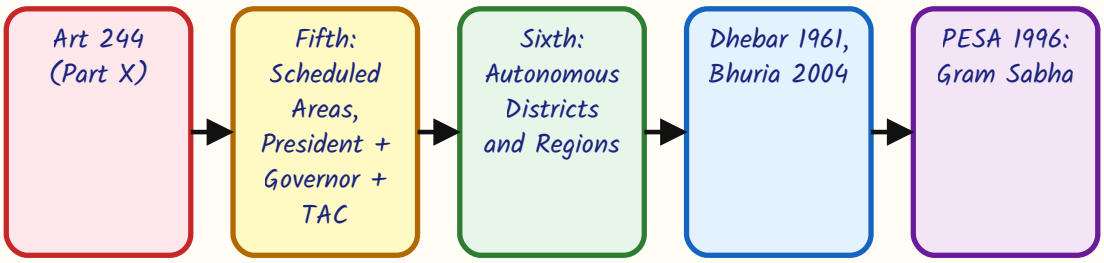
✎ *Art 244 gives tribal India two tracks: Fifth Schedule (Governor, TAC; outside four NE States) and Sixth (elected councils in Assam, Meghalaya, Tripura, Mizoram), plus PESA 1996.*

Current affairs · verify dates

Forest Clearance and the Forest Rights Act
The Ministry of Tribal Affairs clarified that the Forest Rights Act (FRA), 2006 does not itself require 100% Gram Sabha consent for Stage-II forest clearance.

Nautor Land (Ladakh)
The Ladakh LG approved the Ladakh Autonomous Hill Development Councils (Nautor Regularisation) Rules, 2026 covering over 60,000 acres.

At a glance: two tracks and PESA



📜 ARTICLE 244: TWO TRACKS PYQ 2008 PYQ 2015

	Fifth Schedule	Sixth Schedule
Where	any State except Assam, Meghalaya, Tripura, Mizoram	Assam, Meghalaya, Tripura, Mizoram
Units	Scheduled Areas (President)	Autonomous Districts and Regions (Governor restructures)
Body	Tribes Advisory Council (20)	District and Regional Councils (30)
📜 Laws	Governor excludes or modifies Acts; regulations	Councils make laws on listed subjects
Assent	regulations: President's	council laws: Governor's
💰 Courts / Finance	not mentioned	village courts; land revenue, local taxes
Oversight	Governor's annual report; commissions 1960, 2002	Governor's Commission of Inquiry; can dissolve Council
💡 Idea	protection and supervision of land and livelihood	autonomy and self-governance

A-M-T-M — Sixth Schedule States: Autonomous Mountain Tribes Manage (Assam, Meghalaya, Tripura, Mizoram). Handout: "All My Tribal Mates." Sentence aid.

Fifth = outside the north-east, Governor and TAC. Sixth = inside the four NE States, elected councils. Fifth Schedule = "a constitution within a constitution". Aim: protect tribals, preserve autonomy and culture, justice and peace. PYQ asks: Fifth + Sixth exist to protect interests of STs (2015); Fifth Schedule prevents transfer of tribal land to non-tribals (2022); transfer of tribal land for mining can be declared null and void under Fifth (2019). Related Arts: 244A (autonomous State in Assam), 339 (Union control over Scheduled Area administration, ST welfare).

🗺️ FIFTH SCHEDULE: SCHEDULED AREAS PYQ 2022 PYQ 2023 PYQ 2025

Four moves

→ **1 President:** declares, increases, reduces, cancels Scheduled Areas, modifies boundaries, consulting Governor

→ **2 Governor:** reports to President annually or when asked (PYQ 2023: Governor, not CM to Home Ministry)

→ **3 TAC:** each State with Scheduled Areas

→ **4 Governor regulates:** excludes or modifies laws; regulations on land and money-lending

→ State executive power continues; Union may direct State

P-G-T-R — President declares, Governor reports, TAC, Regulations: "Pretty Girls Take Rides."

🏛️ Tribes Advisory Council

→ 20 members; three-fourths ST MLAs

→ President may direct a State with STs but no Scheduled Areas to set one up

→ purpose: community participation in tribal welfare

TAC conflict: this chapter "total 20"; Schedules chapter (ch 4) "up to 20", Governor nominates if STs under-represented, not less than half ST. Answer: up to 20, about three-fourths ST MLAs. Governor makes regulations after consulting TAC.

👑 Governor's regulations

→ exclude or modify Acts of Parliament or State law in Scheduled Areas

→ regulate land transfer among STs, control land allotment, restrict money-lending

→ need President's assent; may repeal or amend existing laws

MAT — Money-lending · Allotment of land · Transfer of land. Handout: "Tribal Areas Matter."

AREA — Criteria: A preponderance of tribals · Reasonable size, compactness · Economic backwardness · Administrative viable unit (District, Block, Taluk). Not from handout.

Four criteria (handout box; not in the Constitution, established practice): preponderance of tribal population; compactness and reasonable size; viable administrative entity (District, Block, Taluk); economic backwardness. Handout aid: "Please Come Visit Eden."

Commission	Appointed	Chair	Report
👫 First	1960	U.N. Dhebar	1961
Second	2002	Dilip Singh Bhuria	2004

President must appoint a commission after ten years of the Constitution (hence 1960), at any time. "Double Bed" = Dhebar, Bhuria. Do not mix: Bhuria also headed the 1995 PESA committee (different body). Ten States with Scheduled Areas: Andhra Pradesh, Telangana, Jharkhand, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha, Rajasthan.

📜 CLASS · Tribal policy, PVTGs, amending Schedules

Class point	Detail
🧑‍🤝‍🧑 Tribal policy	NE tribes (Arunachal, Mizoram, Meghalaya, Tripura): "anthropological specimen" approach (isolation, preservation). Rest of India: assimilation into larger society
PVTG	Particularly Vulnerable Tribal Groups: Dhebar Commission 1960; Bhuria Commission 2002 (class wrote "Vulnerable", verify)
Simple majority	Schedules I, II, V, VI can be amended without Art 368 (Art 4, Art 244; Fifth para 7, Sixth para 21)
Art 339	"Notwithstanding" = in spite of

🏛️ SIXTH SCHEDULE: AUTONOMOUS DISTRICTS AND COUNCILS

👥 Structure

→ tribal areas = Autonomous Districts, still under State executive
→ Governor alters boundaries, size, names; creates or abolishes districts
→ several tribes: Autonomous Regions with Regional Councils
→ District Council 30: 26 elected (adult suffrage, 5 years) + 4 nominated by Governor (pleasure)

26+4 — "twenty-six vote, four named" = 30. Why only four NE States: tribal self-rule; communities had ruled themselves until British subjugation (19th century).

⚡ Council powers

→ Laws (Governor's assent): land use and ownership, forests (not reserved), water (canals), village administration, inheritance, customary marriage and divorce, social customs (LK adds shifting cultivation)
→ Justice: village councils and courts for civil and tribal cases; appeals to District or Regional Council; Governor decides HC jurisdiction
→ Welfare: primary schools, markets, dispensaries, roads, ferries, fisheries; regulate money-lending and trade by non-tribals (Governor's assent)
→ Finance: land revenue and certain local taxes
→ Oversight: Acts of Parliament/State apply with modifications or not at all; Governor's Commission of Inquiry, may modify or dissolve Council

L-F-W-V-I-M-C — "Little Frogs Wade Very Indifferently Most Congested" (Land, Forests, Water, Village admin, Inheritance, Marriage and divorce, Customs). Works: "Pay My Dear Rickshaw Fare" (Primary schools, Markets, Dispensaries, Roads, Ferries and fisheries).

Who disapplies laws (LK): Assam: Governor for both Parliament's and State laws. Meghalaya, Tripura, Mizoram: President for Acts of Parliament, Governor for State Acts. ⭐

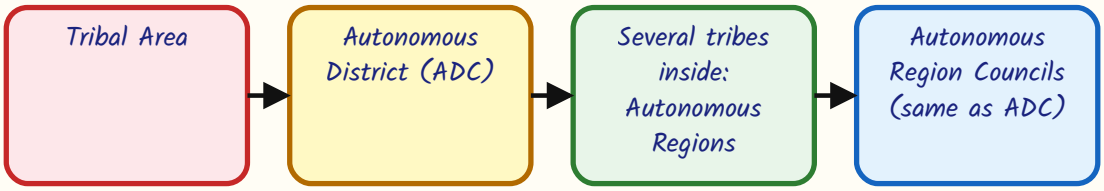
State	Ten Sixth Schedule tribal areas
Assam (3)	North Cachar Hills; Karbi Anglong; Bodoland Territorial Areas District
Meghalaya (3)	Khasi Hills; Jaintia Hills; Garo Hills
Tripura (1)	Tripura Tribal Areas District
Mizoram (3)	Chakma; Mara; Lai

📰 *In the news · Jul 2026 (verify dates)* AHDC vs Sixth Schedule ADC: AHDCs are statutory (LAHDC Act 1995; Leh 1995, Kargil 2003, 30 members each), cannot make laws; Sixth Schedule ADCs under Art 244(2) can, and have village courts.

🏛️ CLASS · Sixth Schedule: origin, BTC, powers, Ladakh

Origin: added on the recommendation of the Gopinath Bordoloi sub-committee of the Constituent Assembly (tribal areas). Governor is the key authority. ⭐

🏛️ Teacher diagram: area to councils



Council	Strength
Each ADC	30 = 26 elected (5 years) + 4 nominated
🏛️ Bodoland Territorial Council (exception)	46 = 40 elected + 6 nominated

⚡ ADC powers: 4 kinds

- 📜 Legislative (Governor's assent)
  - → land allotment, forests, water bodies, shifting cultivation
  - → village and town committees; village and town administration incl. police, public health, sanitation, education
  - → appointment and succession of chiefs; personal laws (marriage etc.)
- Judicial
  - → village councils and courts for intra-tribal disputes
  - → appeal route (class): ADC to Sub-court (as noted) to HC to SC
- Financial
  - → collect certain taxes
  - → licences for prospecting and extraction of minerals or a share of royalty
  - → rules on money-lending
- → Executive (4th kind named in class)

🗺️ Ladakh wants Sixth Schedule status (teacher's current example)

- 🏛️ Two Hill Councils
  - → Leh
  - → Kargil
- Reasons
  - → industrial exploitation
  - → minerals found
  - → tourist conduct
  - → reservation for locals in local governments
- → 1 Lok Sabha seat; also demanding 2 Rajya Sabha seats

📜 PESA ACT, 1996 PYQ 2013

1992
73rd Am. does not auto-apply to Scheduled Areas

Art 243M(4)(b)
Parliament may extend Part IX

1995
Bhuria Committee (an MP)

24 Dec 1996
PESA in force

PESA feature	Detail
Applicability	extends Part IX (Panchayats) to Fifth Schedule areas with modifications
Gram Sabha	nodal authority; approves plans and projects; safeguards traditions, identity, resources
Consultation	before land acquisition, rehabilitation, resettlement
Resources	minor forest produce (MFP: tendu leaves, honey, bamboo: collect, process, sell), land alienation, minor water bodies, minor minerals, village markets
Disputes	by Gram Sabha under custom
🗺️ States	must amend Panchayati Raj Acts to conform

CORDIAL — Gram Sabha: Control of haats and money-lending · Ownership of MFP · Resources (minor water bodies) · Dispute resolution by custom · Identification of beneficiaries · Approval of plans · Land alienation prevented. Not from handout; also regulates intoxicants, approves market licensing.

D-B-M-L-H-W-R — Handout: "Don't Break My Lovely Hot Water Rack" (Development plans, Beneficiaries, MFP, Land alienation, Haats and money, Water, Resolving disputes).

PESA states (10) — Andhra Pradesh, Chhattisgarh, Gujarat, Himachal Pradesh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha, Rajasthan, Telangana: "A Cool Guy Helps Just My Mother Often Run Tea."

PYQ trap (2013): PESA objectives = self-governance, recognising traditional rights, freeing tribals from exploitation; it does **not** create autonomous regions (that is Sixth). Undated Prelims: FRA 2006: Gram Sabha initiates determination; Ministry of Tribal Affairs nodal; bamboo = minor forest produce; ST declared by President, not Governor ((b) 2 only). PYQ 2023: 2 of 3 statements correct. Mains: 2013 Art 244 non-implementation (LWE), 2016 why "Scheduled Tribes", 2017 two legal initiatives vs ST discrimination.

In the news · Sep 2026 (verify dates) Forest clearance and FRA: Ministry of Tribal Affairs clarified FRA 2006 does not itself require 100% Gram Sabha consent for Stage-II forest clearance. Nautor Land (Ladakh): Ladakh AHDC (Nautor Regularisation) Rules, 2026, over 60,000 acres.

Recall drill: cover and answer

Fifth vs Sixth Schedule areas?	Fifth: any State except Assam, Meghalaya, Tripura, Mizoram; Sixth: those four	Who declares Scheduled Areas?	President, consulting Governor
TAC size?	Up to 20, three-fourths ST MLAs	Governor regulation topics in Fifth?	Land transfer, land allotment, money-lending; President's assent
Four criteria of Scheduled Area?	Tribal preponderance, compactness, viable unit, economic backwardness	Dhebar and Bhuria commissions?	Appointed 1960 (report 1961); 2002 (report 2004)
District Council composition?	30 = 26 elected (5 years) + 4 nominated by Governor	PESA date and nodal body?	In force 24 Dec 1996; Gram Sabha; owns MFP
PESA does not do what (2013)?	Create autonomous regions	Sixth Schedule tribal areas count?	Ten: Assam 3, Meghalaya 3, Tripura 1, Mizoram 3
Bodoland Territorial Council strength?	46 = 40 elected + 6 nominated	Schedules amended by simple majority?	I, II, V, VI

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

PESA = Panchayats (Extension to Scheduled Areas) Act, 1996 — Gives Gram Sabhas special powers in Fifth Schedule areas

ST = Scheduled Tribes — Tribal groups listed under Art 342

FRA = Forest Rights Act, 2006 — Recognises forest rights of Scheduled Tribes and other traditional forest dwellers

HC = High Court — State-level constitutional court (Art 214)

CM = Chief Minister — Head of a State government

LAHDC = Ladakh Autonomous Hill Development Council — Elected hill council for Leh and Kargil

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

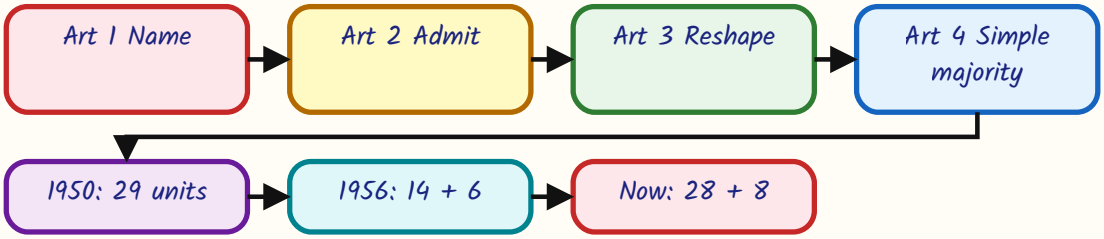
LWE = Left Wing Extremism — Maoist or Naxal insurgency

UNION AND ITS TERRITORY

PYQ Prelims 2007, 2000, 1994

✎ *Arts 1 to 4: India is an indestructible Union of destructible States; Parliament redraws the map by simple majority; Berubari, 100th Am., princely States, SRC 1956 and the chronology of States.*

At a glance: Arts 1-4 to today



📜 ARTICLES 1 TO 4

Art 1: "India, that is Bharat, shall be a Union of States" (compound name reconciles Assembly views). "Union" preferred to "Federation" (Ambedkar): not a compact among sovereign units but one indivisible whole, so no right to secede.

Art	Subject
1	name and territory (States, UTs of First Schedule, acquired territories)
2	Parliament admits or establishes new States (from outside), on its own terms
2A	Sikkim "associate state", 35th Am. 1974; repealed after Sikkim full State 1975
3	form States, alter area, boundaries, names (internal reorganisation); State legislature referred
4	laws under Arts 2, 3 amend First and Fourth Schedules and supplemental matters; not an Art 368 amendment, simple majority

N-A-R-S – Name (1), Admit (2), Reshape (3), Schedules (4): "Never Ask Rude Students."

🗺️ Territory of India (Art 1)

→ (i) territories of the States
→ (ii) UTs named in First Schedule
→ (iii) territories acquired by Govt of India
→ Union of India = collective of States; Territory = broader; now 28 States + 8 UTs

S-U-A – States, Union Territories, Acquired: "Some Unusual Antiques."

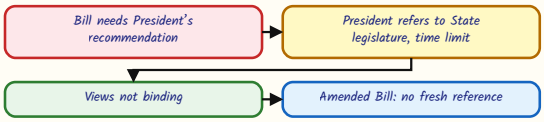
Acquisition modes: cession by treaty (purchase, gift, plebiscite), occupation of land under no sovereign. Handout omits lease and conquest (international law includes them). Integrated since 1950: Dadra and Nagar Haveli, Goa, Daman and Diu, Puducherry, Sikkim. Part XXI special provisions: Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, Karnataka. Fifth and Sixth Schedules: separate regimes.

⚡ ARTICLE 3: PARLIAMENT'S POWER PYQ 1994

⚡ Art 3: five powers

→ Form new State (separate, unite, merge territory)
→ Increase area
→ Reduce area
→ Change boundaries
→ Change name
→ also: form State or UT by uniting part of a State/UT with another

📝 Procedure



PYQ 1994 shortcut: Parliament can increase, diminish, alter boundary, alter name; "cannot alter boundary / name" are the incorrect statements. UT: Parliament acts alone, no reference. Consultation mandatory in form, not substance. Simple majority, ordinary procedure. ✅

F-I-R-C-C — Art 3 verbs: Form, Increase, Reduce, Change boundaries, Change name: "Five Indian Rivers Cross Cities." Own: AMEND (Alter, Make, Enlarge, Name, Diminish).

	India	USA
🗺️ Union	Indestructible Union of destructible States; no guaranteed territorial integrity	Indestructible Union of indestructible States; no change without States' consent

In the news · Aug 2026 (verify dates) Kerala becomes Keralam: renamed under Art 3. State resolution (2024) not binding; Bill needs President's recommendation, State's views not binding, simple majority, not Art 368.

💰 CESSION AND BOUNDARY: BERUBARI AND 100TH AMENDMENT

Year	Ruling
1960 Berubari	SC: Art 3 "diminish" does not cover ceding territory to a foreign State; needs Art 368 amendment (Berubari Union, West Bengal, for Pakistan); 9th Am. 1960
1969	SC: settling a boundary dispute needs no amendment

C-B — Cession needs amendment (1960); Boundary settlement does not (1969): "Cede = Change the Constitution, Boundary = Bypass."

100th Am. Act, 2015	Detail
India transferred	111 enclaves in Bangladesh
Bangladesh transferred	51 enclaves in India
Also	adverse possession; 6.1 km undemarcated stretch
🗺️ First Schedule altered	Assam, West Bengal, Meghalaya, Tripura
Border length	about 4096.7 km

1947 Radcliffe Award
1950 Bagge Award
1958 Nehru–Noon Agreement; Berubari to SC
1960 9th Am.
16 May 1974 Land Boundary Agreement
6 Sep 2011 Protocol (Assam, Meghalaya, Tripura, West Bengal agree)
2015 100th Am.

R-B-N-N-A-P-H — "Rival Borders Need Negotiated Agreements Peaceful Handshakes" (Radcliffe, Bagge, Nehru–Noon, Ninth, Agreement, Protocol, Hundredth). Handout: "India's big hand 111, Bangladesh's 51."

9th Am. doubt: enacted 1960 to implement the Berubari transfer, but could not be operationalised for former East Pakistan territories (politics, litigation); the **100th Am. (2015)** settled it.

🗺️ PRINCELY STATES AND THE 1950 MAP

Indian Independence Act 1947: two dominions; princely States could join India, join Pakistan or stay independent. **552** within India's boundaries; **549** joined; **3 refused**: Hyderabad, Junagarh, Kashmir. 💡

State	Mechanism
Hyderabad	police action (Operation Polo)
Junagarh	referendum
Kashmir	Instrument of Accession

PAR — Police action (Hyderabad) · Accession instrument (Kashmir) · Referendum (Junagarh). Not from handout.

H-J-K — Hyderabad, Junagarh, Kashmir: "Hot Jilebi Keeps."

1950 category	Description	Units
Part A (9)	ex-governors' provinces; Governor, elected legislature	Assam, Bihar, Bombay, Madhya Pradesh, Madras, Orissa, Punjab, United Provinces, West Bengal
Part B (9)	ex-princely States or groups with legislatures	Hyderabad, J&K, Madhya Bharat, Mysore, PEPSU, Rajasthan, Saurashtra, Travancore-Cochin, Vindhya Pradesh
Part C (10)	ex-chief commissioner's provinces, small princely States; Centre via Chief Commissioner or LG	Ajmer, Bhopal, Bilaspur, Cooch Behar, Coorg, Delhi, Himachal Pradesh, Kutch, Manipur, Tripura
Part D (1)	centrally administered	Andaman and Nicobar Islands

Const. Part	Heading	Arts
VI	States in Part A	152 to 237
VII	States in Part B	238
VIII	States in Part C	239 to 242
IX	Part D and other territories	243

9-9-10-1 — 9+9+10+1 = **29 units**: A nine provinces, B nine princely, C ten central, D one island: "Any Body Can Dance." Today's UT provisions: Arts 239–241 (Part VIII); see ch 26.

👑 LANGUAGE AS BASIS: COMMISSIONS

🗺️ For linguistic States

- → 1920s Congress consensus
- → Gandhiji: PCCs on linguistic lines
- → more secular than religion, caste
- → mother-tongue education
- → masses participate, languages enriched

🧑‍🤝‍🧑 Against

- → Nehru after Partition: Lilliputian States
- → stress national identity
- → secession demands, as in Europe
- → jobs, subsidies, xenophobia

Jun 1948
Dhar Commission (S.K. Dhar); Dec report: administrative convenience

Dec 1948
JVP Committee: Nehru, Patel, Pattabhi Sitaramayya

Apr 1949
JVP: language not the basis

Oct 1953
Andhra State; Potti Sriramulu 56-day fast

Dec 1953
SRC: Fazl Ali, K.M. Panikkar, H.N. Kunzru

Sep 1955
SRC report

1956
SRA + 7th Am.

J-V-P — Jawaharlal, Vallabhbhai, Pattabhi: "Just Very Peaceful."

F-P-K — Fazl Ali, Panikkar, Kunzru: "Fast Postman Knocks."

Fazl Ali four factors

- → Unity and security of country
- → Linguistic and cultural homogeneity with administrative feasibility
- → Financial, economic, administrative considerations
- → Welfare and development planning
- → language important but not "one language, one State"

DUEL — Development/welfare · Unity and security · Economic, financial, administrative · Linguistic and cultural. Not from handout.

U-L-F-W — Unity, Language and culture, Finance and administration, Welfare: "Under Lucky Full Wheels."

First linguistic State: JVP 1949 said language not the basis, yet Andhra came in 1953. Odisha was organised on a linguistic basis in 1936, but "first of independent India" = Andhra (1953). JVP Committee had no chairman or convenor. Andhra State Act 1953: capital Kurnool, HC Guntur.

🗺️ CLASS · Basis of States; border adjustment

🏛️ States were created mostly on

- → language
- → tribal ethnicity
- → development deficit.

Class vs handout: class says first linguistic State after Independence = Andhra Pradesh (1956); handout says Andhra State, 1953 (check). Before Independence: Odisha, 1936.

Cession vs adjustment (class): an agreement ceding territory to another country needs a special-majority amendment (9th Am. 1960); a minor border adjustment can be done by executive order. ✅

📜 STATES REORGANISATION ACT, 1956

16 + 3 vs 14 + 6: SRC recommended abolishing Parts A–D and 16 States + 3 centrally administered territories; the 1956 outcome (1 Nov) = 14 States + 6 UTs.

Result	Detail
Parts A, B	merged or reclassified
Part C	abolished: merged or UTs
Kerala	Travancore-Cochin + Malabar (Madras) + Kasargode (South Canara)
Andhra Pradesh	Telugu areas of Hyderabad + Andhra State
Madhya Pradesh	Madhya Bharat + Vindhya Pradesh + Bhopal
Bombay	+ Saurashtra, Kutch
Mysore	+ Coorg

Punjab	+ PEPSU
Rajasthan	+ Ajmer
🆕 New UT	Laccadive, Minicoy, Amindivi Islands from Madras

K-A-M-B-M-P-R — "Kind Aunts Make Big Mango Pickles, Really" (Kerala, Andhra, MP, Bombay, Mysore, Punjab, Rajasthan).

1956: 14 States	1956: 6 UTs
Andhra Pradesh, Assam, Bihar, Bombay, Jammu and Kashmir, Kerala, Madhya Pradesh	Andaman and Nicobar
🧑‍🤝‍🧑 Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh, West Bengal	Delhi, Himachal Pradesh, Laccadive-Minicoy-Amindivi, Manipur, Tripura

🗺️ THE MAP AFTER 1956: STATES IN ORDER PYQ 2007

Year	Event
1960	Maharashtra, Gujarat from bilingual Bombay; Gujarat 15th
1961	Dadra and Nagar Haveli: Portuguese till 1954, administrator till 1961; UT by 10th Am. 1961
1961–87	Goa, Daman and Diu: from Portugal by police action 1961; UT by 12th Am. 1962; Goa State 1987, Daman and Diu stays UT
1962	Puducherry: French places (Puducherry, Karaikal, Mahe, Yanam) transferred 1954; UT 1962 by 14th Am.
1963	Nagaland 16th (Naga Hills, Tuensang; under Assam Governor 1961)
1966	Haryana 17th (Shah Commission: Punjabi areas = Punjab, Hindi areas = Haryana, hills to Himachal); Chandigarh UT shared capital; Akali Dal (Master Tara Singh) Punjabi Suba demand
1971	Himachal Pradesh 18th
1972	Manipur 19th, Tripura 20th, Meghalaya 21st (autonomous sub-State of Assam by 22nd Am. 1969); Mizoram, Arunachal (ex-NEFA) UTs from Assam
1974–75	Sikkim (Chogyal; protectorate): 35th Am. 1974 associate State (Art 2A, "10th Schedule"); 1975 referendum, 36th Am.: 22nd State, Art 371-F, 2A repealed
1987	Mizoram 23rd (Peace Accord 1986 with MNF), Arunachal 24th, Goa 25th
2000	Chhattisgarh 26th (MP), Uttarakhand 27th (UP), Jharkhand 28th (Bihar)
2014	Telangana 29th (Andhra Pradesh)
2019	J&K and Ladakh UTs; Art 370 status revoked via Constitution (Application to J&K) Order 2019 (superseded 1954 Order); J&K UT has all districts except Kargil and Leh (Ladakh); DNH + Daman and Diu merged (Merger of UTs Act 2019, effective 2020)

States 15–29 — Gujarat 15, Nagaland 16, Haryana 17, Himachal 18, Manipur 19, Tripura 20, Meghalaya 21, Sikkim 22, Mizoram 23, Arunachal 24, Goa 25, Chhattisgarh 26, Uttarakhand 27, Jharkhand 28, Telangana 29: "Good New Home, Honey, Make Tea, My Sweet Monsoon Afternoon, Go Come Us Join Together."

G-N-H-H-M-T-M — Growing Nation Hatches Hill Manipur Tripura Meghalaya (States 15 to 21, in order). Not from handout.

PYQ 2007 order: Nagaland (1963), Haryana (1966), Sikkim (1975), Arunachal (1987). ✅

Doubts: (1) 29th State yet 28 States now: J&K became a UT 2019 (not spelt out). (2) Sikkim's "10th Schedule" is a historical arrangement, not the anti-defection Tenth Schedule (52nd Am. 1985). (3) NE dates: section headed 1972 but North-Eastern Areas (Reorganisation) Act is 1971; Mizoram and Arunachal Acts 1986 (heading 1987); HP Act 1970 (State 1971). Use Act year for law, heading year for creation.

SECOND SRC AND NAME CHANGES

⚖️ Case for 2nd SRC

→ demands: Koshal (Odisha), Kodagu (Karnataka), Vidarbha and Konkan (Maharashtra), Bodoland (Assam), Maru Pradesh (Rajasthan), Mithilanchal (Bihar), Gorkhaland (West Bengal)

→ Union sees demands through political lens; need rational, scientific, objective criteria

→ evolving exercise; 30 years of LPG imbalances; some States very large

D-R-E-L-P — Demands many, Rational criteria, Evolving process, LPG imbalances, Population size: "Don't Rush Every Little Proposal."

Old name	New name	Year
United Provinces	Uttar Pradesh	1950
Madras	Tamil Nadu	1969
Mysore	Karnataka	1973
Laccadive, Minicoy, Amindivi	Lakshadweep	1973
Delhi	NCT of Delhi	1992 (69th Am.)
Uttaranchal	Uttarakhand	2006
Pondicherry	Puducherry	2006
Orissa	Odisha	2011

Madras: name list says 1969, Acts table says Madras State (Alteration of Name) Act 1968. Quote 1968 for the Act, 1969 as year of change.

ACTS UNDER ARTICLE 3 (32 STATUTES)

No.	Act	Purpose
1	Assam (Alteration of Boundaries) Act, 1951	strip ceded to Bhutan
2	Andhra State Act, 1953	first linguistic State; Kurnool; HC Guntur
3	Himachal Pradesh and Bilaspur (New State) Act, 1954	merged HP and Bilaspur
4	Chandernagore (Merger) Act, 1954	French enclave into West Bengal
5	States Reorganisation Act, 1956	14 States, 6 UTs; new UT Laccadive etc.
6	Bihar and West Bengal (Transfer of Territories) Act, 1956	Bihar to West Bengal
7	Rajasthan and Madhya Pradesh (Transfer of Territories) Act, 1959	Rajasthan to MP
8	Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959	boundaries AP–Madras
9	Bombay Reorganisation Act, 1960	Maharashtra, Gujarat; Ahmedabad capital of Gujarat
10	Acquired Territories (Merger) Act, 1960	territories from Pakistan (1958–59) into Assam, Punjab, West Bengal
11	State of Nagaland Act, 1962	Nagaland 16th; Sixth Schedule tribal areas
12	Punjab Reorganisation Act, 1966	Haryana 17th; Chandigarh UT
13	Bihar and Uttar Pradesh (Alteration of Boundaries) Act, 1968	Bihar–UP
14	Andhra Pradesh and Mysore (Transfer of Territory) Act, 1968	Mysore to AP
15	Madras State (Alteration of Name) Act, 1968	Tamil Nadu
16	Assam Reorganisation (Meghalaya) Act, 1969	Meghalaya sub-State in Assam
17	State of Himachal Pradesh Act, 1970	HP full State (18th)
18	North-Eastern Areas (Reorganisation) Act, 1971	Manipur 19th, Tripura 20th, Meghalaya 21st; Mizoram and Arunachal UTs
19	Mysore State (Alteration of Name) Act, 1973	Karnataka
20	Laccadive, Minicoy and Amindivi Islands (Alteration of Name) Act, 1973	Lakshadweep
21	Haryana and Uttar Pradesh (Alteration of Boundaries) Act, 1979	Haryana–UP
22	State of Mizoram Act, 1986	Mizoram 23rd
23	State of Arunachal Pradesh Act, 1986	Arunachal 24th
24	Goa, Daman and Diu Reorganisation Act, 1987	Goa 25th; Daman and Diu UT
25	Madhya Pradesh Reorganisation Act, 2000	Chhattisgarh 26th
26	Uttar Pradesh Reorganisation Act, 2000	Uttaranchal 27th (Uttarakhand)
27	Bihar Reorganisation Act, 2000	Jharkhand 28th
28	Uttaranchal (Alteration of Name) Act, 2006	Uttarakhand
29	Pondicherry (Alteration of Name) Act, 2006	Puducherry
30	Orissa (Alteration of Name) Act, 2011	Odisha
31	Andhra Pradesh Reorganisation Act, 2014	Telangana 29th
32	Jammu and Kashmir Reorganisation Act, 2019	J&K and Ladakh UTs

Acts shortcut: new State = "(State) Act" (Andhra, Nagaland, Himachal, Mizoram, Arunachal); split = "Reorganisation Act" (Bombay, Punjab, MP, UP, Bihar, AP, J&K); rename = "Alteration of Name Act" (Madras, Mysore, Laccadive, Uttaranchal, Pondicherry, Orissa). ✅

Recall drill: cover and answer

Art 1, 2, 3, 4 in one line each?	Name; admit new States; reshape States; not an Art 368 amendment	Art 3 procedure?	President's recommendation; State legislature views, not binding; no fresh reference if amended; UT no reference
Berubari 1960 vs 1969?	Cession needs Art 368 (9th Am. 1960); boundary settlement does not	100th Am. 2015 numbers?	India gave 111, Bangladesh 51 enclaves; border about 4096.7 km
Princely States numbers and holdouts?	552, 549 joined; Hyderabad (police action), Junagarh (referendum), Kashmir (accession)	1950 units?	A 9, B 9, C 10, D 1 = 29
SRC members and result?	Fazl Ali, Panikkar, Kunzru; 1956: 14 States + 6 UTs (recommended 16 + 3)	First linguistic State?	Andhra State, Oct 1953 (Potti Sriramulu)
PYQ 2007 order?	Nagaland 1963, Haryana 1966, Sikkim 1975, Arunachal 1987	States 15 to 17?	Gujarat 1960, Nagaland 1963, Haryana 1966

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

UT = Union Territory — Area administered directly by the Union government

SRC = States Reorganisation Commission — Commission (1953–55) that recommended linguistic reorganisation of States

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

AP = Andhra Pradesh — State in south India

HC = High Court — State-level constitutional court (Art 214)

LG = Lieutenant Governor — Administrator of certain Union Territories

CITIZENSHIP

PYQ Prelims 2021, 2005 (handout only, no Mains PYQs quoted)

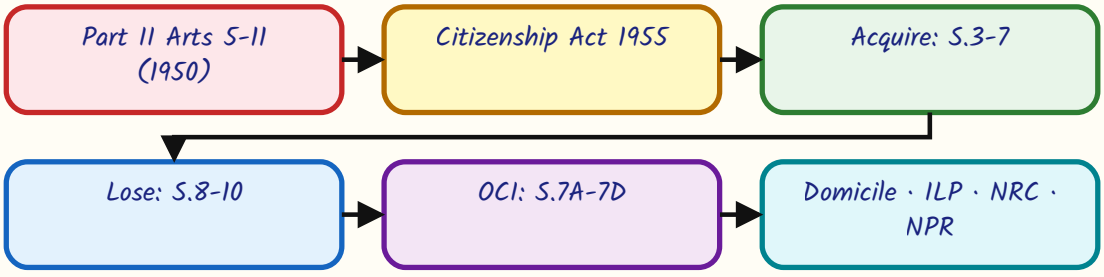
Current affairs · verify dates

1951 baseline for NRC in Manipur

The Manipur government told the Assembly that 1951 would be the proposed baseline for updating the NRC.

✎ *Who is an Indian citizen: Part II rules for 1950, five ways to gain and three ways to lose citizenship under the 1955 Act, OCI, and how domicile, ILP, NRC, NPR and Census differ.*

At a glance: the route



Citizenship: legal membership of a political community; full civil and political rights plus duties. Single citizenship (unlike the USA's dual system) for national unity. Governed by Part II (Arts 5–11) + Citizenship Act, 1955. Provisions in force 26 Nov 1949. 💡

RIGHTS ONLY FOR CITIZENS (DENIED TO ALIENS)

Citizen-only rights

- → Art 15 no discrimination (religion, race, caste, sex, place of birth)
- → Art 16 equal opportunity in public employment
- → Art 19 speech, assembly, association, movement, residence, profession
- → Arts 29–30 cultural and educational rights
- → Vote in Lok Sabha and State Assembly elections
- → Contest Parliament and State Legislature

Offices (citizens only)

- → President · Vice-President
- → Judges of SC and HCs
- → Governor · Attorney General · Advocate General

D-E-F-C-V-C-O — Discrimination (15), Employment (16), Freedoms (19), Cultural-educational (29–30), Vote, Contest, Offices: "Dear Every Friend, Citizens Value Choosing Officials."

P-V-J-G-A-A — Offices: President, Vice-President, Judges, Governor, Attorney General, Advocate General: "Put Very Just Guards At All posts."

ALIEN, REFUGEE, ASYLUM SEEKER, MIGRANT

Alien = non-citizen (Foreigners Act, 1946, amended 1957: foreigner = alien)

Friendly alien

- → civil rights only; no political rights
- → e.g. visiting Australian cricketers

Enemy alien

- → citizens of state at war with India or aiding it
- → neither civil nor political rights
- → e.g. Chinese nationals 1962, Defence of India Act

Group	Meaning	Key points	Example
Refugee	flees persecution or threat to life	Non-refoulement (Art 33, 1951 UN Convention). India not a signatory; NHRC v. State of Arunachal Pradesh (1996): FRs (equality, life) extend to all persons incl. refugees	Tibetans, Dharamshala, 1959
Asylum seeker	seeks protection, awaits refugee status	right to seek asylum; State keeps discretion	Sri Lankan Tamils, TN, 1980s
Migrant	moves voluntarily (economic, education, social)	can safely return; protected by home state	Bihari workers in Punjab farms

A-R-A-M — Alien, Refugee, Asylum seeker, Migrant: "All Rights Are Mixed." Refugee = persecution-driven, barred from return; migrant = opportunity-driven, can return.

📜 ARTICLES 5–11 (PART II): CITIZENS AT COMMENCEMENT, 26 JAN 1950

Art	Subject	Key provision
5	Commencement	domiciled in India AND (a) born in India, or (b) either parent born in India, or (c) ordinarily resident 5 years before 26 Jan 1950
6	Migrated from Pakistan	came before 19 July 1948 = deemed citizen (ordinary residence since migrating); after that date = registration after 6 months residence
7	Migrated to Pakistan	after 1 March 1947 ceases to be citizen; if returns on resettlement permit, may regain by registration
Art 8	Indian origin abroad	deemed citizens if registered with Indian diplomatic or consular representative
Art 9	Voluntary foreign citizenship	ceases to be Indian citizen
Art 10	Continuance	continues, subject to Parliament's law
Art 11	Parliament's power	regulate acquisition, termination (leads to Citizenship Act, 1955)

Why 19 July 1948: date the Influx from West Pakistan (Control) Ordinance came into force. Arts 5–11 do not create a permanent law; they empower Parliament.

C-F-T-O-V-C-P — Arts 5–11 in order: Commencement (5), From Pakistan (6), To Pakistan (7), Origin outside India (8), Voluntary foreign citizenship (9), Continuance (10), Parliament (11): "Citizens Find Their Own Valid Certificates, Please."

Source conflict: handout says provisions in force 26 Nov 1949 but Arts 5–11 fix citizens at 26 Jan 1950. Use 26 Nov 1949 for "provisions in force", 26 Jan 1950 for "who is a citizen at commencement".

📜 ACQUISITION: FIVE MODES (CITIZENSHIP ACT, 1955)

Blend of jus soli (birthplace) and jus sanguinis (descent). Sections run in order 3, 4, 5, 6, 7.

B-D-R-N-I — Birth (Sec 3), Descent (Sec 4), Registration (Sec 5), Naturalisation (Sec 6), Incorporation of territory (Sec 7): "Born Daughters Raise New India."

📜 BIRTH (Sec 3): amendments 1986 and 2003 tightened it

Born	Citizen if	Note
Before 1 July 1987	born in India; no parent test	broad jus soli
1 July 1987 to 2 Dec 2004	either parent a citizen at birth	excludes children of foreign diplomats, enemy aliens
On or after 3 Dec 2004	one parent citizen AND other not an illegal migrant	Citizenship (Amendment) Act, 2003

Illegal migrant: foreigner entering without valid travel documents or overstaying; crucial after 2003; barred from registration and naturalisation.

🏛 DESCENT (Sec 4): born outside India

Born	Citizen if	Note
26 Jan 1950 to 10 Dec 1992	father a citizen at birth	gendered: father only
10 Dec 1992 to 3 Dec 2004	either parent a citizen	1992 amendment removed gender bias
After 3 Dec 2004	(a) parents declare child holds no foreign passport; (b) birth registered at Indian consulate within 1 year	documentation, dual-nationality control

Not automatic: descent needs proactive registration. Extra: a minor citizen by descent holding another nationality ceases to be citizen if not renounced within 6 months of full age.

Handout note: descent table in PDF was scrambled; rebuilt with three periods as handout words them.

💰 REGISTRATION (Sec 5): semi-discretionary, by Centre, not illegal migrants

Category	Condition
PIO residing in India	ordinarily resident 7 years before applying
PIO residing abroad	ordinarily resident in any country outside undivided India
Spouse of Indian citizen	ordinarily resident 7 years
👫 Minor children of citizens	may be registered (avoids statelessness)
👫 Children of registered citizens	full age and capacity; parents registered under this section
Former citizens of independent India	person or parents were citizens; resident 12 months before applying
OCI cardholders	OCI for 5 years + resident 12 months before applying

For all: satisfy Centre on character, intention to reside permanently, lawful stay. Of Indian origin = self or either parent born in undivided India or territory that became Indian after 15 Aug 1947. Oath of allegiance for all registered. ⭐

P-P-S-M-C-F-O — PIO in India, PIO abroad, Spouse, Minor children, Children of registered citizens, Former citizens, OCI: "People Pursue Some More Citizenship For Ourselves."

🗺️ NATURALISATION (Sec 6): by Centre, Third Schedule

🎓 Eligibility

- → not citizen of a country barring Indians from naturalisation (reciprocity)
- → full age and capacity
- → good character; intends to reside permanently
- → knowledge of an Eighth Schedule language

Residence 12 years

- → 12 months continuous before applying
- → remaining 11 years within previous 14 years

- → citizen elsewhere must undertake to renounce

Certificate is discretionary, Government's decision final. All conditions waived for distinguished service to science, philosophy, art, literature, world peace, human progress. Oath of allegiance compulsory. ⭐

CAA 2019: relaxation (in force 10 Jan 2020)

CAA 2019

- → Six minorities: Hindus, Sikhs, Buddhists, Jains, Parsis, Christians
- → From: Pakistan, Afghanistan, Bangladesh; entered before 31 Dec 2014
- → residence cut 12 years to 5 years; new Section 6B
- → exempt from illegal-migrant status (2003 amendment; Foreigners Act 1946, Passport Act 1920)

Does not apply

- → six communities from other countries
- → Muslim communities in the three countries
- → Sixth Schedule tribal areas
- → Inner Line Permit (ILP) areas

Admin: applications on MHA online portal; Citizenship (Amendment) Rules, 2024 (procedure, documents, verification, online registration). Earlier: 2015 exemption from Passport (Entry into India) Act 1920 and Foreigners Act 1946; 2016 long-term visas. Before CAA such migrants without papers were illegal migrants. ⭐

H-S-B-J-P-C — Hindus, Sikhs, Buddhists, Jains, Parsis, Christians; countries Pak, Afg, Ban; before 31 Dec 2014: "How Some Brave Journeys Pass Customs."

Lakshmikanth differs: says aggregate 11 years (in previous 14) is cut to 5, besides the 12 months before applying. Handout says 12 to 5 years. **Use handout (12 to 5) in class.**

🗺️ INCORPORATION OF TERRITORY (S.7) AND ASSAM (S.6A)

🗺️ Sec 7 Centre notifies who becomes citizen

→ **Dadra and Nagar Haveli (1961)**: from Portuguese rule
→ **Puducherry (1962)**: French territories, Treaty of Cession; **Citizenship (Pondicherry) Order, 1962**
→ **Sikkim (1975)**: **36th Amendment**; citizens automatically Indian

Assam: Sec 6A (Assam Accord 1985; only people in Assam)

→ came **before 1 Jan 1966**: citizens
→ came **1 Jan 1966 to 25 Mar 1971**: citizens, **no vote for 10 years**
→ came **after 25 Mar 1971**: identify and deport

⏳ TERMINATION (Sec 8, 9, 10) PYQ 2021 PYQ 2005

Mode	Section	Nature	Key points
Renunciation	Sec 8	voluntary	citizen of full age holding another citizenship makes declaration; ceases on registration. **Minor children** also lose, may resume by declaration **within 1 year of majority**
⏳ Termination	Sec 9	automatic	on voluntarily acquiring foreign citizenship; applies to all citizens (birth, descent, registration, naturalisation); Government decides if voluntary; excludes acquisition during a war involving India unless Centre permits
Deprivation	Sec 10	compulsory, by Centre	only for citizens by **registration, naturalisation, incorporation**; **never by birth**

Dual nationality: India does not allow it; voluntary foreign citizenship = deemed renounced. Procedure: ground exists → notice and chance to be heard → Centre's inquiry → order. ⭐

Deprivation grounds (5)

→ **Fraud**, false representation, concealment
→ **Disloyalty** to the Constitution
→ unlawful **trade or communication with enemy** in war
→ **Imprisonment 2 years or more within 5 years** of registration or naturalisation
→ **Residence abroad 7 consecutive years** without annual registration at Indian mission

DRIFT — Disloyalty · Residence abroad 7 yrs · Imprisonment 2 in 5 · Fraud · Trade with enemy: a citizen who commits these can DRIFT out.

R-T-D — Renunciation (8), Termination (9), Deprivation (10): "Right To Depart"; voluntary, automatic, compulsory.

Handout conflict: under Renunciation it says foreign citizenship = "deemed to have renounced", but S.9 says termination is automatic. Exam: declaration by choice = S.8; voluntary acquisition of foreign citizenship = S.9. **Lakshmikanth:** a declaration during a war India is engaged in is withheld by Centre; minors resume within 1 year of turning 18 (handout: 1 year, age 18 not named).

OVERSEAS CITIZENSHIP OF INDIA (OCI) (Sec 7A-7D)

OCI basics

→ began 2003 Act (16 specified countries); widened 2005; 2015 Act merged PIO into OCI (effective 9 Jan 2015) and renamed OCI Cardholder

→ limited overseas nationality: lifelong visa, economic rights, no political rights

→ run by MHA Foreigners Division

→ Singhvi High Level Committee on Indian Diaspora (2000, report 2002); PIO card Aug 2002 merged into OCI card (Dec 2005 start)

📰 *In the news · July 2026 (verify dates)* **e-OCI card and FCRA 2.0:** Home Minister launched FCRA 2.0 portal and fully digital e-OCI card; OCI is a lifelong-visa status for foreign citizens of Indian origin, unlike NRIs.

🎓 Eligible (not illegal migrant)

→ citizen of India on or after 26 Jan 1950

→ or eligible to be citizen on that date

→ or from territory that became Indian after 15 Aug 1947

→ children, grandchildren, great-grandchildren of such citizens

→ spouse of citizen or OCI holder: marriage registered, subsisting 2 years

→ Not eligible: citizens or former citizens of Pakistan or Bangladesh (also parent, grandparent, great-grandparent of Pakistan, Bangladesh or other specified country)

Domain	Privileges
Travel	multiple-entry lifelong visa; no FRRO registration for any stay
Economic	parity with NRIs (except agricultural or plantation property)
📚 Education	same admission rights as NRIs in professional courses
Social, civic	Aadhaar, PAN, bank accounts, property (not farm or plantation land)
Employment	private sector yes; no public or constitutional offices

OVAL – OCI cannot: Offices (President, Governor, judges, civil services) · Vote · Agricultural or plantation land · Legislature (MP, MLA). OCI cannot hold Arts 16, 58, 66, 124, 217 posts.

MISLED – Sec 7D cancellation: Misrepresentation (fraud) · Imprisoned 2 yrs in 5 · Sovereignty, integrity, security threatened · Local laws or MHA conditions violated (2021 Am.) · Enemy assisted in war · Disaffection to the Constitution.

📜 CAA 2021: new OCI provisions

→ Prior permission for: research, missionary (Tabligh), mountaineering, journalism, restricted, protected or cantonment areas; internship or job in foreign missions

→ parity with citizens only in: monument entry fees, domestic air fares, NRI quota in medical and engineering colleges (also inter-country adoption)

→ MHA guidelines 2021, 2023

Aspect	OCI cardholder	Dual citizen (not in India)
Status	foreign national, lifelong visa	citizen of two countries
🛡️ Political rights	no vote, no constitutional posts	full in both
Employment	private only	public and private
Property	no agricultural or plantation	full rights
📜 Law	Citizenship (Amendment) Acts 2003 and 2005	not recognised
🎯 Example	Indian-origin Canadian with OCI	holder of US and UK passports

Point	NRI	PIO	OCI cardholder
Who	Indian citizen abroad, Indian passport	person or ancestor of Indian nationality, holds other citizenship	registered under Act 1955
Fee	–	–	US $275 abroad; Rs 15,000 in India
Benefits	all citizen benefits per notifications	none specific	lifelong visa; no FRRO/FRO; air-fare and entry-fee parity; NRI parity in adoption and entrance tests

Handout conflict: says OCI "originated under 2003 Amendment", but comparison table lists 2003 and 2005 only. Treat **2003 = origin, 2005 and 2015 = expansion, 2015 = PIO merged**.

DOMICILE AND ILP

PYQ 2021 PYQ 2005

Basis	Citizenship	Domicile
Meaning	political and legal membership of sovereign nation	legal residence: permanent home, personal-law jurisdiction
Law	Citizenship Act, 1955	common law (lex fori); States issue certificates for administration
Nature	single, no State citizenship	one for whole India (HC rulings)
Purpose	voting, contesting, State protection	succession, marriage, wills, taxation, education or reservation benefits
Acquisition	birth, registration, naturalisation; lost on renunciation	birth, or choice of permanent residence with intent to stay
Change	by legal procedure	hard: proof of long residence and intent
Uniformity	same for all	varies person to person

Inner Line Permit (ILP)

→ **Bengal Eastern Frontier Regulation (BEFR), 1873**: British, to restrict outsiders

→ post-Independence "British subject" became "Citizen of India"; protects tribal rights and land

→ **Arunachal, Nagaland, Mizoram, Manipur (since 2019)**

→ outsiders need permit to enter or stay; no land purchase

→ links to **Art 371** special protections (Arts 371A–371I: regional demands of Nagaland, Assam, Manipur, Andhra etc.)

A-N-M-M – ILP states: Arunachal, Nagaland, Mizoram, Manipur (2019): "All North-East Mountain Members."

NRC, NPR AND CENSUS

Feature	NRC	NPR	Census
Definition	register of legal citizens	register of **usual residents** (citizens + foreigners 6 months or more)	enumeration of population: demographic, social, economic
Legal basis	Citizenship Act 1955 and Rules 2003 (Assam Accord specific)	Act 1955 and **Citizenship (Registration of Citizens and Issue of National ID Cards) Rules, 2003**	**Census Act, 1948**
Coverage	citizens only	citizens + non-citizens	entire population
Purpose	identify illegal migrants; Assam NRC **2019 draft excluded about 19 lakh**	identity database; first step to a potential NRC	planning and policy
Frequency	never nationwide; Assam updated **2013–19**	first **2010**, updated **2015**, with Census	every **10 years**; last **2011**, 2021 postponed
Data	lineage proof: **1951 NRC**, electoral rolls to **24 Mar 1971** (Assam)	demographic + biometric, Aadhaar or mobile	age, sex, language, caste, occupation, religion, disability, migration
Confidentiality	publicly verifiable list	shared with State and Centre	confidential; only aggregates

C-R-E – Citizens only (NRC), Residents (NPR), Everyone counted (Census): "Cats Rule Everywhere."

Date conflict: NRC Assam cut-off **24 March 1971** (electoral-roll proof) vs S.6A **25 March 1971**. Use each in its own context.

In the news · Sept 2026 (verify dates) **1951 baseline for NRC in Manipur:** Manipur government told Assembly 1951 would be the proposed baseline for updating the NRC.

EXTRA POINTS FROM LAKSHMIKANTH

Extras

→ enemy aliens lose even Art 22 protection against arrest and detention

→ naturalised citizen can be **President** in India; only birth citizens in the USA

→ single citizenship: no State favouring own citizens; exception **Art 16** residence conditions (1957 Act: Andhra Pradesh, Himachal Pradesh, Manipur, Tripura non-gazetted posts; lapsed **1974** except Andhra Pradesh and Telangana)

→ Art 15 bars discrimination on place of birth, not residence; Art 19 movement limited to protect tribes

→ **Art 35A** (J&K permanent residents) ended by **2019 Order**

→ Commonwealth citizenship removed from 1955 Act by **2003 amendment**

TIMELINE

1873 BEFR: ILP	**1946** Foreigners Act	**1 Mar 1947** Art 7 cut-off	**19 Jul 1948** Art 6 cut-off
26 Nov 1949 provisions in force	**26 Jan 1950** Arts 5–11 fix citizens	**1955** Citizenship Act	**1961–62** D&NH; Puducherry
1 Jan 1966 S.6A first cut-off	**25 Mar 1971** S.6A second	**1975** Sikkim, 36th Am.	**1985** Assam Accord, S.6A
1 Jul 1987 birth: one parent citizen	**10 Dec 1992** descent via either parent	**2003** Amendment; OCI	**3 Dec 2004** birth: other not illegal migrant
2005 OCI widened	**2015** OCI Cardholder; PIO merged	**2019** CAA; Manipur under ILP	**2021** CAA 2021 OCI
2024 CAA Rules			

Recall drill: cover and answer

Arts 5–11 fix citizens as on?	26 Jan 1950 (provisions in force 26 Nov 1949)	Art 6 and Art 7 cut-off dates?	19 July 1948 (from Pakistan); 1 March 1947 (to Pakistan)
Five modes and Sections?	Birth 3, Descent 4, Registration 5, Naturalisation 6, Incorporation 7	Birth cut-offs?	1 Jul 1987 (one parent citizen); 3 Dec 2004 (other not illegal migrant)
Naturalisation residence: normal vs CAA?	12 years vs 5 years; entry before 31 Dec 2014	Assam S.6A dates?	1 Jan 1966 citizens; 1966–25 Mar 1971 no vote 10 yrs; after = deport
Three ways to lose? Which spares birth citizens?	Renunciation 8, Termination 9, Deprivation 10; S.10 never for birth	Deprivation numbers?	Prison 2 years in 5; abroad 7 consecutive years
OCI cannot?	Vote, hold office, be MP/MLA, own agricultural land (OVAL)	ILP states?	Arunachal, Nagaland, Mizoram, Manipur (2019); BEFR 1873

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

NRC = National Register of Citizens — Register of citizens, notably updated in Assam

PIO = Public Information Officer — Officer who receives and answers RTI applications

MHA = Ministry of Home Affairs — Union ministry for internal security, Centre-State matters and disaster management

NRI = Non-Resident Indian — Indian citizen living abroad

FCRA = Foreign Contribution (Regulation) Act — Regulates receipt of foreign money by NGOs and individuals; MHA administers it

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

UN = United Nations — World body of states founded in 1945 for peace, security and cooperation

NHRC = National Human Rights Commission — Statutory body under the Protection of Human Rights Act, 1993

HC = High Court — State-level constitutional court (Art 214)

ILP = Inner Line Permit

OCI = OVERSEAS CITIZENSHIP OF INDIA

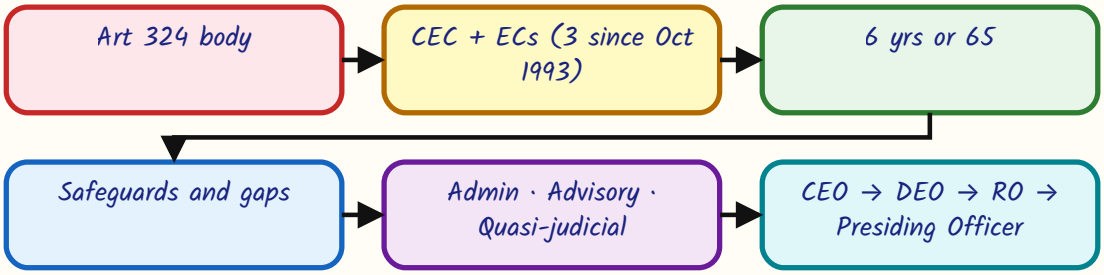
BEFR = Bengal Eastern Frontier Regulation

ELECTION COMMISSION

PYQ No PYQs quoted in the handout

✎ *The constitutional body that runs elections to Parliament, State Legislatures, President and Vice-President: composition, safeguards and gaps, three kinds of power, field machinery, Arts 324-329 and related amendments.*

At a glance: the route



ARTICLE 324: WHAT IT COVERS

Election Commission (EC): constitutional, permanent, independent, all-India body; Art 324 vests superintendence, direction and control of elections to Parliament, State Legislatures, President, Vice-President. Panchayat and Municipality elections are outside it: State Election Commissions (73rd, 74th Am.), constituted by State Governments.

P-S-P-V — ECI runs: Parliament, State Legislatures, President, Vice-President: "People Select President and VP." Top four offices = ECI; local bodies = SEC.

STRUCTURE AND TENURE

Art 324 composition

→ CEC + such number of other ECs as the President fixes

→ President appoints both; CEC = Chairperson when ECs appointed

→ President may appoint Regional Commissioners after consulting the EC

→ President fixes service conditions and tenure

1950–15 Oct 1989	16 Oct 1989	Jan 1990	Oct 1993
1 member (CEC)	3 members (voting age 21 to 18)	back to 1	3 members, ever since

S-T-S-T — Single (1950–89) · Three (Oct 1989) · Single (Jan 1990) · Three (Oct 1993): Solo Trio Solo Trio.

TERMS — Term 6 years or age 65, whichever earlier · Equal powers · Resign any time (in writing to President) or be removed · Majority decides · Salary and privileges equal to SC Judge.

National Voter's Day: 25 January, declared 2011, EC foundation day. Conditions: Election Commission (Conditions of Service of Election Commissioners and Transaction of Business) Act, 1991. 2018: SC judge salary Rs 2.50 lakh per month = CEC and EC pay. The 61st Am. (1988, in force 1989) lowered voting age, hence two more ECs in Oct 1989.

Handout conflict: tenure given as 6 years or 65, but a listed gap says Constitution fixes no definitive term. Read: the Constitution itself fixes no term; tenure comes from the 1991 Act.

SAFEGUARDS AND GAPS

Safeguard	Meaning
1. Tenure of CEC	removed only like an SC Judge: President after both Houses pass resolution by special majority on proven misbehaviour or incapacity; not at President's pleasure
2. Non-diminution	CEC's pay, allowances, service benefits not reduced after appointment
3. Others	EC or Regional Commissioner removed only on CEC's recommendation

SET — Security of tenure (CEC like SC Judge) · ECs and Regional Commissioners only on CEC's recommendation · Terms of service not reduced.

⚠ Gaps in Art 324
- → no formal qualifications
- → no definitive term fixed
- → no bar on post-retirement offices for ECs

NOT — Gaps: No qualifications · Offices after retirement not barred · Term not fixed.

CEC vs EC: CEC = removed like SC Judge; ECs and Regional Commissioners = only on CEC's recommendation. ✅

Anoop Baranwal (2023): SC said CEC and ECs be appointed on recommendation of a 3-member committee: PM, Leader of Opposition in Lok Sabha (or leader of largest opposition party), Chief Justice of India; applies until Parliament makes a law under Art 324. Desirable that other ECs be removable on CEC's grounds (like SC Judge), subject to CEC's recommendation; service conditions not varied to disadvantage.

In the news · Sept 2026 (verify dates) Appointment of Election Commissioners: Supreme Court gave a split verdict on whether challenges to the 2023 Act on appointment of CEC and ECs should go to a Constitution Bench.

POWERS AND FUNCTIONS

Category	What the EC does
Administrative	supervises machinery; territorial extent of constituencies (Delimitation Commission Acts 1952, 1962, 1972, 2002); prepares electoral rolls; fixes election schedule; scrutinises nominations; cancels polls (rigging, booth-capturing, violence); requisitions staff via President or Governors; appoints returning and presiding officers; broadcast time on radio and TV; issues and enforces Model Code of Conduct
Advisory	advises President on disqualification of MPs, Governors on State legislators; whether elections can be held under President's Rule; recognises parties, recommends national or State status
Quasi-judicial	disputes on party recognition and symbols; appoints inquiry bodies; enforces election laws and own orders; manages IIIDEM (India International Institute of Democracy and Election Management, 2011)

A-A-Q — Administrative · Advisory · Quasi-judicial: Act, Advise, Quell (sentence aid; order free).

Parties and symbols

→ registers parties; status national or State by poll performance (reserved symbols, broadcast time)

→ Election Symbols (Reservation and Allotment) Order, 1968

- National party → symbol not usable by another party anywhere in India
- State party → symbol usable in other States, not where recognised

→ detailed powers in RPA

Plenary power: Gill vs CEC (1977): EC can use powers not mentioned in RPA to ensure free and fair elections. 2019: EC nullified Vellore election after large-scale bribing.

FIELD MACHINERY

Field ladder

ECI HQ New Delhi → CEO (State; in consultation with State govt) → DEO (district; often Collector) → RO (constituency; nominated by ECI) → Presiding Officer (booth; by RO via DEO)

EC assisted by deputy election commissioners from civil service (tenure system), helped by secretaries, joint, deputy and under secretaries. Mnemonic: Come Down Right Port.

Lakshmikanth differs: CEO appointed by CEC in consultation with State govt; District Collector acts as district returning officer who appoints RO for every constituency and presiding officer for every booth. Handout: ECI nominates RO, RO appoints presiding officers via DEO. Use handout in class.

VISION, MISSION, TEN PRINCIPLES

Vision: Institution of Excellence; engagement, deeper electoral democracy, global model. Mission: independence, integrity, autonomy; accessible, inclusive, ethical; free, fair, transparent. From EC Strategic Plan 2016–2025.

Ten core principles

→ Constitutional values (equality, equity, impartiality, independence, rule of law)
→ Credible elections
→ Inclusive participation
→ Stakeholder engagement
→ Public awareness and trust
→ Human resource development
→ Infrastructure quality
→ Adoption of technology
→ Innovation and excellence
→ Reinforcing democratic values

ARTICLES 324-329 AND AMENDMENTS

Art	Subject
324	superintendence, direction, control of elections in an EC
325	no one ineligible for general roll or to claim inclusion on grounds of religion, race, caste, sex
326	Lok Sabha and Assembly elections on adult suffrage
327	Parliament's power on elections to Legislatures
328	State Legislature's power on elections to that Legislature
329	bar to interference by courts

S-N-A-P-S-B — Superintendence (324), No discrimination in roll (325), Adult suffrage (326), Parliament (327), State Legislature (328), Bar on courts (329): "Some New Admirals Prefer Sea Breeze."

Amendment	Change
61st, 1988	voting age 21 to 18 (Lok Sabha, Assemblies)
73rd, 1992	Panchayats, Part IX (Arts 243–243O); State Election Commissions
74th, 1992	Municipalities, Part IX-A; State Election Commissions
84th, 2001	seat freeze extended to after first census after 2026
87th, 2003	delimitation on 2001 Census; seats per State unchanged

V-P-M-F-D — Voting age (61st), Panchayats (73rd), Municipalities (74th), Freeze (84th), Delimitation 2001 Census (87th): "Very Practical Ministers Fix Districts."

1950 EC begins, 1 member

1988 61st Am.

Oct 1989 2 ECs added

Jan 1990 posts abolished

1992 73rd, 74th

Oct 1993 3 members

2001 84th

2003 87th

2011 Voter's Day; IIIDEM

2019 Vellore nullified

Recall drill: cover and answer

Which Article creates the EC? What does it cover?	Art 324; Parliament, State Legislatures, President, VP	Membership history?	1 (1950–89), 3 (Oct 1989), 1 (Jan 1990), 3 (Oct 1993 on)
Tenure and pay of CEC and ECs?	6 years or 65, earlier; pay equal to SC Judge	How is the CEC removed? ECs?	Like SC Judge; ECs only on CEC's recommendation
Three gaps in Art 324?	No qualifications, no fixed term, no post-retirement bar	Gill vs CEC (1977)? Vellore 2019?	Plenary power; election nullified for bribing
Anoop Baranwal (2023) committee?	PM, LoP in Lok Sabha, CJI	Field ladder?	CEO, DEO, RO, Presiding Officer
Arts 327 vs 328 vs 329?	Parliament; State Legislature; courts barred	Amendments 61, 73, 74, 84, 87?	Age 18; Panchayats; Municipalities; freeze to post-2026 census; 2001 Census

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CEC = Chief Election Commissioner — Head of the Election Commission

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ECI = Election Commission of India — Constitutional body (Art 324) that conducts elections

PM = Prime Minister — Head of the Union government

RPA = Representation of the People Act — Laws on conduct of elections and disqualification (1950 and 1951)

IT = Information Technology — Computing and digital technology (for example, the IT Act, 2000)

VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

CJI = Chief Justice of India — Head of the Supreme Court

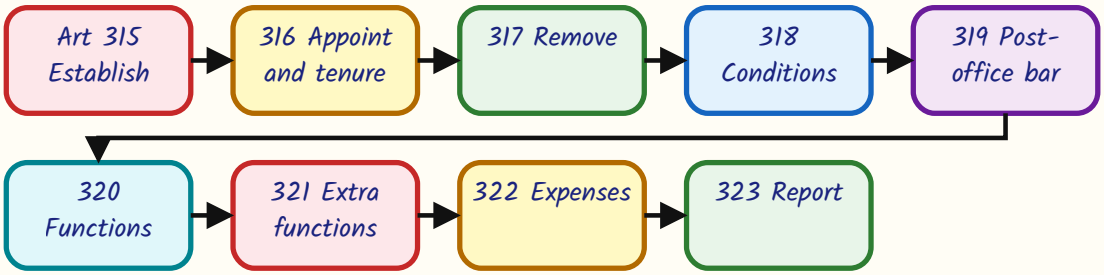
EC = Election Commission

UNION PUBLIC SERVICE COMMISSION

PYQ No PYQs quoted in the handout

✎ *The constitutional recruiter of the Union: Arts 315 to 323 on appointment, tenure, removal, post-retirement bars and finance, then its functions, consultation limits and advisory nature.*

At a glance: Articles 315–323



UPSC: principal central recruiting agency; a constitutional organ (not statutory or executive) in Part XIV (Arts 315–323). Advice is advisory; consultation is directory, not mandatory.

E-A-R-C-P-F-A-E-R – Establishment (315), Appointment and tenure (316), Removal (317), Conditions (318), Prohibition on later jobs (319), Functions (320), Additional functions (321), Expenses (322), Reports (323): "Every Aspirant Resolves, Clears Prelims, Finally Achieves Entering Rank."

ART 315: COMMISSIONS FOR UNION AND STATES

Art 315

→ a PSC for the Union and each State
→ Joint State PSC: two or more States, resolutions of their Legislatures, Parliament's law
→ UPSC helps a State: Governor requests + President approves
→ incidental provisions allowed in the law

Illustration

→ Sikkim 1975: request accepted
→ Punjab 2008: not approved

CLASS · PSC history and firsts

1919 GoI Act

1924 Lee Commission recommends

1926 Federal PSC set up

1929 Madras: first State PSC

1935 GoI Act: FPSC, PPSC, JPSC

1947 first Indian chair

1992 first woman chair

First	Name (class)
FPSC chairperson	Sir Ross Baker
First Indian chair	H.K. Kripalani, 1947 (class wrote "H.B. Kriplani", verify)
First woman chair	Rose Bathew, 1992
Present chair	Dr. Ajay Kumar

GoI Act 1935: Federal PSC (now UPSC), Provincial PSC (State PSC) and Joint PSC under Art 315; Punjab and Haryana had a Joint PSC for a brief period. Part XIV = Public Service (Arts 308–323). ⭐

🗳️ ART 316: APPOINTMENT AND TENURE

Commission	Appointing authority
👫 UPSC	President
🗺️ Joint State PSC	President
🗺️ State PSC (SPSC)	Governor

Art 316 rules

→ At least half of members: 10 years government service (Union or State)
→ strength not fixed; President decides; no other qualification
→ Tenure 6 years or age limit, earlier: UPSC 65; SPSC or Joint 62
→ resign in writing to President (UPSC, Joint) or Governor (SPSC)
→ Acting Chairman if post vacant: member authorised by President or Governor (15th Am., 1963); until new chairman joins or old resumes
→ former member not reappointed; a serving member can become Chairperson, new term 6 years or superannuation

📌 **S-H-T** — Six years · Half with ten years · Two ages (65, 62): "Six Hens Travel."

🚪 ART 317: REMOVAL AND SUSPENSION

👑 Misbehaviour route (SC advice binding on President)

Misbehaviour alleged → *Referred to Supreme Court* → *SC inquiry; charges upheld* → *President removes*

Art 317

→ only the President removes
→ Suspension pending inquiry: President (Governor for SPSC)

👫 Without SC reference

→ adjudged insolvent
→ paid employment outside duties
→ unfit by infirmity of mind or body

→ Contract rule: interested in or profiting from a government contract = misbehaviour (exception: ordinary member of an incorporated company)

📌 **OUT** — No-SC grounds: Outside paid employment · Unfit (infirmity) · Tapped out (insolvent).

👫 ARTS 318, 319: CONDITIONS AND POST-OFFICE BARS

Art 318: President (UPSC, Joint) or Governor (SPSC) frames regulations on service conditions, number of members, staff; not altered to member's disadvantage after appointment. ⭐

Former office	Further government employment
👫 UPSC Chairman	none under Union or State
👫 SPSC Chairman	UPSC (member or Chairperson) or Chairman of another SPSC; nothing else
👥 Member of UPSC or SPSC	only Chairperson route; no other government job

Kidwai 1979: SC upheld A.R. Kidwai, former UPSC Chairman, as Governor of Bihar: Governor is a constitutional office, not government employment. ⭐

N-C — Art 318 Non-diminution; Art 319 Cooling bar: "No Change, No Cash-in."

CLASS · Movement between posts; Art 320 split

Now	Can become
👥 UPSC member	UPSC Chairperson; SPSC Chairperson (class also: member of another State PSC, as written)
🧑‍🤝‍🧑 SPSC Chairperson	UPSC member or Chairperson; Chairperson of another State PSC

Art 320: clauses (1), (2) = mandatory functions, common to all PSCs; clause (3) = advisory consultation. A UPSC committee (Chairperson or member) recommends elevating State civil service officers to the IAS, up to 1/3 of cadre strength (as written). ⭐

💰 ARTS 320-323: FUNCTIONS, FUNDS, REPORT

Art	Rule
Art 320	core functions: exams, consultation (see below)
Art 321	Parliament or State Legislature may give additional functions (Union, State, local authorities, statutory bodies, public institutions)
Art 322	salaries, allowances, pensions charged on Consolidated Fund of India or State; not voted
Art 323	annual report: UPSC to President (laid before Parliament); SPSC to Governor; Joint to Governors of all States; plus memorandum on advice not accepted

A-R-B-F — Independence pillars: Appointment protection (316), Removal by SC route (317), Bar on later jobs (319), Funds charged (322).

SAFER — Security of tenure (316) · Alteration to disadvantage barred (318) · Fund charged (322) · Employment barred after office (319) · Removal only by Art 317 route.

⚡ ART 320: SPSC CONSULTATION AND UPSC CORE FUNCTIONS

State side: primary duty = conduct exams (clauses 1, 2 mandatory); consulted on six matters. Governor's regulations say when consultation not needed: laid before Legislature not less than 14 days. ⭐

🧑‍🤝‍🧑 UPSC recruitment

→ exams for All India Services, Central Services, UT and centrally administered services; written tests, interviews

→ help States: joint recruitment (two or more States) or individual State only when Governor requests and President approves

No.	Union must consult UPSC on
1	methods of recruitment
2	principles of appointments, promotions, transfers
3	suitability for appointments, promotions, transfers, deputations
4	disciplinary cases: censure; withholding increments or promotion; recovery of loss; demotion; compulsory retirement; removal or dismissal
5	legal-expense reimbursement for acts in official duty
6	pension claims for injury in service
7	temporary appointments over 1 year and regularisation
8	extension of service or re-employment of retired civil servants
9	any other matter referred

C-W-R-D-C-R — Penalties: Censure, Withholding, Recovery, Demotion, Compulsory retirement, Removal or dismissal: "Cool Winds Rush Down Cool Rooms." Consultation also covers memorials and petitions on discipline.

Nature (SC): consultation directory, not mandatory; omission does not invalidate decision; selection gives no right to appointment; Government must act fairly. If Government skips consultation the public servant has no court remedy. Government may frame rules limiting UPSC's advisory scope. ⭐

Annual report: President lays before both Houses; memorandum on every instance of advice not accepted; non-acceptance approved by Appointments Committee of the Union Cabinet (ACUC), not a single ministry. ⭐

Handout alerts: (1) says UPSC "must be consulted" yet SC says directory: duty to consult, but omission does not invalidate. (2) Art 320 text opens with SPSC duties, Core Functions gives the UPSC list; Art 320 is the common source for all PSCs (SPSC list = handout Sec 5-6; UPSC list = Sec 8).

👫 LIMITS: WHERE UPSC IS NOT CONSULTED

Area	Excluded
Affirmative action	reservations for backward classes; SC/ST claims in appointments
Specialised, lower posts	chairmanship or membership of commissions or tribunals; highest diplomatic posts; most Group C and D
Temporary staffing	temporary or officiating posts not over 1 year
👑 President's regulations	may exclude more posts or matters for All-India and Central Services; laid before Parliament 14 days, amend or repeal (UPSC (Exemption from Consultation) Regulations, 1958)

PATROL — Posts of highest diplomatic rank · Appointment claims of SC and ST · Tribunals and commissions · Reservations for backward classes · Officiating or temporary posts (not over 1 yr) · Lower Group C and D.

Two 14-day rules: Governor's Art 320 regulations (State) and President's exclusion regulations (Union). ✅

👫 GUARDIAN OF MERIT: UPSC vs DoPT vs CVC

👫 UPSC
- → central recruiting authority
- → exams and selections
- → advises when consulted
- → All-India and Central Services (Group A and B)

DoPT (central personnel agency)
- → service classification, pay scales, cadre management, training, personnel policy
- → under Ministry of Personnel, Public Grievances and Pensions (full-fledged 1985): 3 departments: Personnel and Training; Administrative Reforms and Public Grievances; Pensions and Pensioners' Welfare

C-P-C-T-P — UPSC does not do: Classification, Pay scales, Cadre management, Training, Personnel policy: "Cats Prefer Cream, Tuna, Prawns."

CVC: emerged 1964 by executive decision; statutory Oct 2003; also consulted in discipline; UPSC keeps the edge as a constitutional body. Advice non-binding: safeguard = accountability to Parliament. ⭐

🔧 ARC-1 RECOMMENDATIONS ON PSCs

ARC-1 (6)

→ one SPSC member from outside the State
→ members should hold a graduation degree
→ UPSC and SPSC Chairmen consulted in appointing SPSC members
→ UPSC Chairman consulted in appointing UPSC members and his successor
→ two-thirds of UPSC members from SPSC Chairmen
→ qualifications for official and unofficial members set out

O-G-C-C-T-Q — Outside member, Graduation, Consult chairmen (SPSC), Consult UPSC chairman (UPSC), Two-thirds, Qualifications: "Old Governments Choose Careful Teams, Quietly."

1964	1975	Oct 2003	2008
CVC (executive)	Sikkim help accepted	CVC statutory	Punjab help refused

Recall drill: cover and answer

UPSC is in which Part and Articles?	Part XIV, Arts 315–323	Who appoints UPSC, Joint PSC, SPSC members?	President; President; Governor
Tenure and age limits?	6 years; UPSC 65; SPSC and Joint 62	How many members need 10 years service?	At least half
Removal: SC reference needed when?	Misbehaviour; not for insolvency, outside paid job, infirmity	Art 319 for UPSC Chairman?	No further government employment
Art 322 and 323?	Charged on Consolidated Fund; report + memorandum on advice not accepted	Nature of consultation?	Directory, not mandatory; no right to appointment
Who approves non-acceptance of advice?	ACUC	CVC years?	1964 executive; Oct 2003 statutory

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

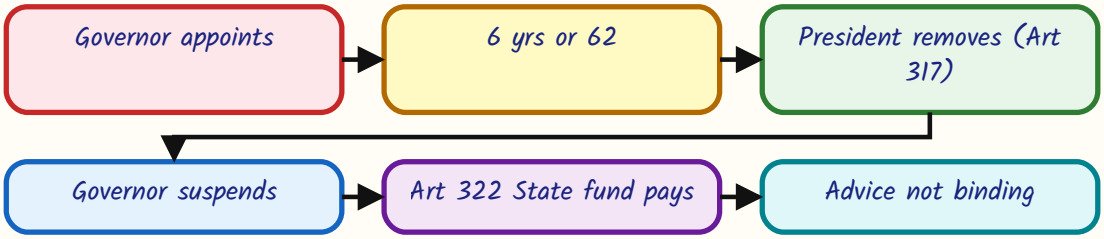
UPSC = Union Public Service Commission — Constitutional body (Art 315) that recruits for the Union services
SPSC = State Public Service Commission — State counterpart of the UPSC
PSC = Public Service Commission — Constitutional recruitment body (UPSC for the Union, SPSC for States)
SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list
CVC = Central Vigilance Commission — Apex vigilance body against corruption in central services
ST = Scheduled Tribes — Tribal groups listed under Art 342
DoPT = Department of Personnel and Training — Nodal department for civil service policy
UT = Union Territory — Area administered directly by the Union government
ACUC = Appointments Committee of the Union Cabinet

STATE PUBLIC SERVICE COMMISSION

PYQ No PYQs quoted in the handout

✎ *The state twin of the UPSC under the same Arts 315-323: Governor appoints, President removes, 6 years or 62; the Joint SPSC is statutory.*

At a glance: the route



SPSC: constitutional body, state counterpart of UPSC, Part XIV, Arts 315–323; same removal grounds, same Art 317 procedure. 💡

👥 COMPOSITION AND TENURE

Point	Rule
🗳️ Appointing authority	Governor
👥 Strength	not fixed; Governor decides
🎓 Qualifications	none prescribed
Experience	one-half of members: 10 years under Government of India or any State
Conditions of service	Governor determines (also number of staff)
⏳ Term	6 years or age 62, earlier (UPSC 65); age 62 was 60, raised by 41st Am., 1976
Resignation	to Governor

Acting Chairman: Governor appoints a sitting member if Chairman's office vacant or he cannot act; until substantive Chairman joins or old resumes (15th Am., 1963). Number trick: 6 and 62 State, 65 Union. ⭐

G-N-H-S — Governor appoints · Number not fixed · Half with 10 years · Six years or 62: "Good Newspapers Have Stories."

👥 REMOVAL OF MEMBERS (ART 317)

👑 Governor
- → appoints Chairman and members
- → fixes service conditions
- → accepts resignation
- → appoints acting Chairman
- → may suspend during SC inquiry

👑 President
- → alone removes
- → refers misbehaviour to SC
- → removes on (a)–(c)
- → bound by SC advice

GAP — Governor suspends · Appointed by Governor · President alone removes.

Route	What happens
Express grounds	(a) adjudged insolvent; (b) paid employment outside duties; (c) unfit by mental or physical infirmity (President's opinion)
Misbehaviour	President refers to SC; removal only if SC upholds and advises removal; advice binding

Misbehaviour: concerned or interested in a government contract, or profits from it (exception: one shareholder among others in an incorporated company). 1993 SC: appointing a blind university professor as SPSC member cannot be set aside on ground of infirmity of body or mind.

I-P-I — Removal grounds: Insolvent, Paid job outside, Infirmity: "It Pays Inside." Governor: appoint, suspend; President: remove; SC: inquire.

🛡️ INDEPENDENCE: SIX SAFEGUARDS

Safeguard	Detail
⏳ Security of tenure	removal only by President, Art 317 grounds
Service conditions	not varied to disadvantage of sitting member
Charged expenditure	salaries, allowances, pensions on State Consolidated Fund (Art 322); not voted
⏳ Post-tenure bar: Chairman	Chairman or Member of UPSC, or Chairman of another SPSC; no other government job
👥 Post-tenure bar: Member	Chairman or Member of UPSC, or Chairman of same or another SPSC; nothing else
⏳ No second term	not eligible for second term in same office

FENCE — Funds charged · Exit only by President · No second term · Conditions not varied · Employment barred after office (except UPSC or PSC chairs).

⚡ FUNCTIONS

Area	Consulted on
Recruitment, service management	method of recruitment; principles of appointment, promotion, inter-service transfers; suitability for direct recruitment, promotion, transfer, deputation (departmental promotion proposals referred for approval)
Disciplinary	censure; withholding increments or promotion; recovery of pecuniary loss; demotion; compulsory retirement; removal or dismissal
💡 Claims	legal-expense reimbursement; pension or compensation for injury in service
Other	any matter referred by State executive
🗺️ State Judicial Services	Governor consults SPSC and High Court on rules for appointments (excluding District Judges)

Primary function: conduct exams for State services. Art 321: State Legislature extends functions by State law. Art 320 functions; 322 expenses; 323 annual report to Governor, who lays before both Houses with memorandum on advice not accepted. Exemption rules: SPSC (Exemption from Consultation) Regulations.

C-W-R-D-C-R — Six penalties mild to harsh: Censure, Withholding, Recovery, Demotion, Compulsory retirement, Removal: "Clerks Who Report Delays Come Right back."

SC position: non-consultation or irregular consultation does not invalidate decision; directory; advice gives no right to appointment; selections must be acted on fairly. SPSC is only the recruiting agency; Department of Personnel or General Administration Department handles classification, pay, cadre, training. State Vigilance Commission (SVC) (1964) overlaps in discipline; SPSC has precedence.

👑 EXCLUSIONS AND GOVERNOR'S REGULATIONS

Excluded	Who decides
🧑‍🤝‍🧑 Reservation for backward classes	State executive and legislature
🗳️ SC and ST claims in appointments	State executive and legislature
👑 Posts excluded by Governor's regulations	Governor, subject to Legislature

Regulations laid before each House at least 14 days; Legislature may amend or repeal.

R-S-G — Reservation, SC/ST claims, Governor's regulations: "Rules Set Gently."

👫 JOINT SPSC (JSPSC)

Point	SPSC	JSPSC
💡 Nature	constitutional	statutory: Parliament law on State Legislatures' resolutions (Art 315)
🗳️ Appointing authority	Governor	President
⏳ Tenure	6 years or 62	6 years or 62
🚪 Suspension, removal	President removes; Governor may suspend	President suspends or removes
Resignation	to Governor	to President
👥 Strength, conditions	Governor	President under the statute
Annual report	to Governor	to Governors of all States served; each lays before his Legislature

A single State may get UPSC help: Governor requests, President approves. Roots: GoI Act 1919 led to Central PSC (1926); GoI Act 1935 envisaged Federal, Provincial and Joint PSCs. ⭐

Handout alert: do not carry the SPSC rule to JSPSC: for SPSC Governor appoints, President removes; for JSPSC President both appoints and removes.

⏳ KEY ARTICLES AND RETIREMENT PATHS

Art	Subject
315	establishment
316	appointment, term
317	removal, suspension
318	conditions, staff regulations
Art 319	further employment restrictions
320	functions
321	extension of functions
322	expenses on Consolidated Fund
Art 323	annual report

E-A-R-C-R-F-E-E-A – Establish 315, Appointment 316, Removal 317, Conditions 318, Restrictions 319, Functions 320, Extension 321, Expenses 322, Annual report 323: "Every Aspirant Reads Case Reports For Exam Excellence Always." Pin: 319 post-tenure bar, 322 charged expenditure.

Retirement: retiring SPSC member may become chairman of same or another SPSC, or chairman or member of UPSC; retiring SPSC chairman may become chairman or member of UPSC or chairman of any other SPSC. ⭐

1926
Central PSC (1919 Act)

1935
GoI Act: Federal, Provincial, Joint PSCs

1963
15th Am.: acting chairman

1964
State Vigilance Commission

1976
41st Am.: age 60 to 62

Recall drill: cover and answer

Who appoints and who removes an SPSC member?	Governor appoints; President removes	Who suspends during SC inquiry?	Governor
Term and age?	6 years or 62 (was 60; 41st Am. 1976); UPSC 65	Is SC advice binding on the President?	Yes, on misbehaviour inquiry
Expenses charged on?	State Consolidated Fund, Art 322	Second term?	Not eligible in same office
Consultation nature?	Directory; no right to appointment	Exclusions from consultation?	Backward-class reservation, SC/ST claims, Governor's regulations (14 days)
JSPSC: nature and appointer?	Statutory; President appoints and removes	Acting chairman added by?	15th Amendment, 1963

🔤 **Quick brief: abbreviations, schemes, bodies** (expansions from notes where given; briefs are general knowledge, verify)

SPSC = State Public Service Commission — State counterpart of the UPSC

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

UPSC = Union Public Service Commission — Constitutional body (Art 315) that recruits for the Union services

PSC = Public Service Commission — Constitutional recruitment body (UPSC for the Union, SPSC for States)

ST = Scheduled Tribes — Tribal groups listed under Art 342

SVC = State Vigilance Commission

JSPSC = JOINT SPSC

FINANCE COMMISSION

PYQ No PYQs quoted in the handout

✎ *The constitutional referee of Union-State money: duties, composition, chairpersons, advisory nature, and the 15th and 16th Commissions' numbers.*

💰 At a glance: fiscal advice chain

President constitutes (Art 280) → Chairman + 4 members → Recommends tax share, grants, local-body support → Union decides: advice not binding

Finance Commission (FC): quasi-judicial constitutional body under Art 280; President constitutes it every fifth year or sooner. Determines its own procedure. Art 281: report goes to President, laid before both Houses with explanatory memorandum on action taken. 💡

🤝 FOUR DUTIES

👑 FC recommends to President

→ Distribution of net tax proceeds, Union and States, and among States

→ Principles of grants-in-aid from Consolidated Fund of India

→ Augment State Consolidated Funds to support Panchayats and Municipalities (on SFC recommendations; added by 73rd and 74th Am., 1992)

→ Any other matter referred for sound finance

D-P-A-A — Distribution · Principles of grants · Augment State funds · Any other matter: Dividing Pie Aids All.

CLASS · ToR, vertical and horizontal, Art 281

Term	Class note
ToR	Terms of Reference = areas on which the FC recommends
Vertical	Union to States share
Horizontal	among States; FC develops a formula; also recommends several kinds of grants

Class vs handout: class says under Art 281 the report is "subject to modification by Parliament"; handout: laid before Parliament with a memorandum on action taken, advice not binding (check).

👥 COMPOSITION

👥 Chairman + 4 members (presidential order; reappointable)

→ Parliament sets qualifications (Finance Commission Act, 1951)

→ Chairman: experience in public affairs

👥 4 members (one or more profiles)

→ High Court Judge or qualified to be

→ specialised knowledge of government finance and accounts

→ substantial experience in financial administration

→ special knowledge of economics

FACE — Financial administration · Accounts and government finance · Court (HC Judge) · Economics. Chairman needs public affairs.

🎓 CLASS · FC: disqualification, timing, status

🗳️ Cannot be appointed to FC

→ unsound mind

→ undischarged insolvent

→ convicted of an offence

→ financial interest conflicting with duties as member

Point	Class note
🆕 New FC	constituted 18–24 months before the 5-year award expires
⏳ Tenure	as specified in presidential order; re-appointable; full-time or part-time; salary decided by Govt
⚡ Powers	power of a civil court (quasi-judicial)

SIFT — Disqualified: Sound mind lacking · Insolvent · Financial interest · convicTed. (own mnemonic)

👑 CHAIRPERSONS AND ALL COMMISSIONS

FC	Chairman	Appointed	Report	Period
🧑‍🤝‍🧑 1st	K.C. Neogy (first)	1951	1952	1952–57
2nd	K. Santhanam	1956	1957	1957–62
3rd	A.K. Chanda	1960	1961	1962–66
4th	Dr. P.V. Rajamannar	1964	1965	1966–69
5th	Mahavir Tyagi	1968	1969	1969–74
6th	Brahmananda Reddy	1972	1973	1974–79
7th	J.M. Shelat	1977	1978	1979–84
8th	Y.B. Chavan	1982	1984	1984–89
9th	N.P.K. Salwe (LK: N.K.P. Salve)	1987	1989	1989–95
10th	K.C. Pant	1992	1994	1995–2000
11th	A.M. Khusro	1998	2000	2000–05
12th	Dr. C. Rangarajan	2002	2004	2005–10
13th	Dr. Vijay Kelkar	2007	2009	2010–15
14th	Y.V. Reddy	2013	2014	2015–20
15th	N.K. Singh	2017	2019 and 2020	2020–26
16th	Arvind Panagariya	–	–	–

K-R-K-R-S-P — Chairs 11 to 16 in order: Khusro, Rangarajan, Kelkar, Reddy, Singh, Panagariya: "Kind Rulers Keep Revenue Shared Properly."

Politicians often appointed earlier: Y.B. Chavan, Brahmanand Reddy, N.P.K. Salwe, K.C. Pant, Rajamannar; of late experts. Punchi Commission: convert the FC division of Finance Ministry into a separate full-fledged department. Till 1960 FC also suggested temporary grants (10 years) to Assam, Bihar, Odisha, West Bengal in place of share of jute export duty. Fifteen FCs formed per LK. ⭐

Handout conflicts: chair list spells "Rajamanar", Advisory text "Rajamannar" (Fourth FC): same person. 9th chair: handout N.P.K. Salwe, Lakshmikanth N.K.P. Salve; use handout spelling, recognise both.

⚡ ADVISORY ROLE AND PLANNING COMMISSION

Not binding

→ Union keeps final discretion

→ no enforceable rights for States

→ D.D. Basu: Constitution nowhere says FC advice binds GoI or creates legal right

Authoritative

→ quasi-judicial, neutral

→ Dr. P.V. Rajamannar (4th FC): Union should not reject except for very compelling reasons

💰 Balancing wheel of fiscal federalism

→ Planning Commission (non-constitutional, non-statutory) overlapped with FC up to 2014, diluting it

→ 2015: replaced by NITI Aayog (National Institution for Transforming India)

💰 15TH FINANCE COMMISSION (chair N.K. Singh)

Period: award 2021–26; first an interim report for 2020–21 (due to delays and contentious ToR). Six years in all. Two reports: 5 Dec 2019 (for 2020–21); 9 Nov 2020 (for 2021–22 to 2025–26). ⭐

Why ToR contested

→ population base year 1971 Census to 2011 Census: southern and progressive States say it penalises population control

→ review of revenue deficit grants; Centre's fiscal situation after earlier higher devolution

→ performance-based conditionalities: tax effort, demographic control, power reforms, ease of doing business, Swachh Bharat

→ fear of central overreach and micromanagement

Head	15th FC recommendation
Vertical devolution	States' share 41% (excluding former J&K share after UT status)
💰 Grants-in-aid	overall share raised to 19.65%
💰 Revenue deficit grants	17 States initially (11 in 14th FC), COVID; reduced to 6 by 2025-26
💰 Disaster funding	90:10 NE and Himalayan States; 75:25 others
SDRF corpus	Rs 1.6 lakh crore (Centre Rs 1.2 lakh crore)
🛡️ Defence and internal security	Modernisation Fund (MFDIS) Rs 2.4 lakh crore for 5 years; sources: CFI, defence disinvestment, land monetization

Sector	Recommendation
Health	Rs 1,06,606 crore; 8% of State budget for health, two-thirds primary; All India Medical and Health Service proposal
📚 School education	Rs 4,800 crore, Performance Grading Index
📚 Higher education	Rs 5,078 crore, incl. online and regional-language courses
📚 Agriculture	land lease reform, water-use efficiency, Atmanirbhar crops (pulses, oilseeds, wood)
👥 Rural infrastructure	Rs 23,539 crore PMGSY road maintenance
Judiciary	Rs 10,245 crore Fast-Track Courts incl. POCSO
Aspirational Districts	Rs 500 crore incentives + grants for best blocks
⚡ Power sector reforms	compliance gives 0.5% extra fiscal-deficit space for 4 years

CASHIER – Courts · Agriculture · School and higher education · Health · Incentives for Aspirational Districts · Electricity reforms · Rural roads.

Fix first: 41 (share), 19.65 (grants), 17 to 6 (revenue deficit States), 90:10 and 75:25 (disaster). State-specific grants: water, heritage, tourism, infrastructure, governance. ⭐

📰 In the news · Aug 2026 (verify dates) 16th FC Panchayat grants: nearly double the 15th FC PRI grants; split Gram Panchayat 80%, Block 10%, District 10%; linked to own-source revenue.

📰 In the news · Aug 2026 (verify dates) Heatwaves, lightning notified: after 16th FC advice they join the notified calamity list for 2026-31, making 14; States can use SDRF, NDRF supplements.

Handout alert: "Horizontal Distribution Criteria" heading has no content; Defence item cut after its sources: text looks truncated. Horizontal criteria not covered; do not invent. Award period 2021-26 and "six years" reconcile via interim 2020-21.

⏳ 16TH FINANCE COMMISSION: TERMS OF REFERENCE

Subject	Task
💰 Tax distribution	distribute net proceeds between Union and States
💰 Grants-in-aid	principles for grants-in-aid of State revenues
💰 Consolidated Fund	measures to increase a State's Consolidated Fund
Disaster management	review current financing arrangements

Chairman: Arvind Panagariya. 14th FC covered 2015-20; 15th 2020-26. ⭐

up to 2014 Planning Commission overlap

2015 NITI Aayog

2020-21 15th FC interim

2021-26 15th FC award

2025-26 revenue deficit grants to 6 States

Recall drill: cover and answer

Art 280: who constitutes the FC and when?	President, every fifth year or sooner	Composition?	Chairman (public affairs) + 4 members
Four duties?	Tax sharing, grants principles, augment State funds for local bodies, other referred	First chairman? 15th? 16th?	K.C. Neogy; N.K. Singh; Arvind Panagariya
Is FC advice binding?	No; authoritative (Rajamannar, 4th FC)	Planning Commission replaced by?	NITI Aayog, 2015
15th FC share and grants?	41%; 19.65%	Revenue deficit grants?	17 States, down to 6 by 2025–26
Disaster funding ratios? SDRF corpus?	90:10 and 75:25; Rs 1.6 lakh crore (Centre 1.2)	Contested ToR point?	Population base 1971 Census to 2011 Census

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

NITI = National Institution for Transforming India — Government policy think tank that replaced the Planning Commission in 2015

HC = High Court — State-level constitutional court (Art 214)

UT = Union Territory — Area administered directly by the Union government

POCSO = Protection of Children from Sexual Offences Act, 2012 — Special law for child sexual offences, with special courts

NDRF = National Disaster Response Force — Specialised force for disaster response

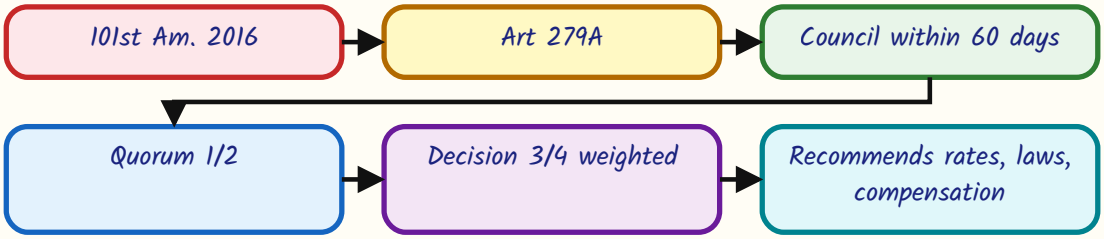
MFDIS = Modernisation Fund

GST COUNCIL

PYQ No PYQs quoted in the handout

The Union-State forum that decides GST rates and rules: composition, weighted voting (1/3 Centre, 2/3 States, 3/4 needed) and functions.

At a glance: the route



GST Council: joint Centre-State forum under Art 279A, inserted by 101st Amendment Act, 2016; steers GST and cooperative federalism. Art 279A(1): President constitutes within 60 days of commencement (constituted by order of 15 Sept 2016). First constitutional federal body with power over all major GST decisions. (Handout writes both "279A" and "279-A": same.)

COMPOSITION: ART 279A(2)

Clause	Member
a	Union Finance Minister (Chairperson)
b	Union Minister of State in charge of Revenue or Finance
c	Minister in charge of Finance or Taxation, or any other Minister nominated by each State
d	person nominated by the Governor of a State under proclamation of emergency Art 356 (handout wording)

State Ministers elect a Vice-Chairperson among themselves (and decide term). CBIC Chairperson = permanent invitee, no vote (Union Cabinet decision). Union Revenue Secretary = ex-officio Secretary; Secretariat in New Delhi.

GUST — Governor's nominee (Art 356) · Union Finance Minister (Chair) · Supporting MoS Revenue or Finance · Taxation or Finance Minister of each State.

Lakshmikanth differs: lists three categories (Union FM, MoS, State Ministers); omits the fourth, Governor's nominee under Art 356. **Use handout's four.**

📝 WORKING: QUORUM AND VOTING

Point	Rule
Quorum	one-half of total members
Decision	majority of not less than three-fourths of weighted votes of members present and voting
🗺️ Centre's weight	one-third
🗺️ States' weight	all States together two-thirds
Result	passes only at 75% combined support

Voting sum: 1/3 + 2/3 = 100; pass at 3/4 = 75. Centre alone cannot pass anything; States together cannot pass without Centre (2/3 is less than 3/4). ✅

COST — Centre 1/3 · One-half quorum · States 2/3 · Three-fourths decision.

🛡️ **Validity safeguards (no act invalid merely for)**

→ vacancy or defect in constitution of Council
→ irregularity in appointment of a Member
→ procedural irregularity not affecting merits

Council determines its own procedure; works through Secretariat, New Delhi. ⭐

VISION AND MISSION

Vision

→ exemplary cooperative federalism
→ highest standard-setting federal body for GST
→ collective decisions
→ parity of participation, consultation, mutual accommodation

Mission

→ GST structure via wide consultation (experts, administrators, elected representatives)
→ IT: digital, transparent, user-friendly
→ lower compliance cost, higher efficiency

Aim: harmonised GST architecture, single national market, predictability (rates, classification disputes, guidelines by consultative procedure). ⭐

⚡ FUNCTIONS: ART 279A(4)

Function	What it does
💰 Rationalisation of taxes	which taxes, cesses, surcharges of Centre, States, local bodies merge into GST; single destination-based tax; less cascading
💰 Tax coverage	goods and services under GST or exempt
📜 Model laws and principles	model GST laws; principles of levy and collection; apportionment on inter-state trade; place of supply
Thresholds and rates	turnover threshold for exemption; floor rates with bands; special temporary rates in calamities
🗺️ Special States	special provisions for the eleven States below
Other matters	any other GST matter

SECTOR — Special provisions · Exemptions and coverage · Collection and levy (model laws, place of supply) · Thresholds and rates · Other matters · Rationalisation.

Region	Eleven special States
👫 North-East (8)	Arunachal Pradesh, Assam, Manipur, Meghalaya, Mizoram, Nagaland, Sikkim, Tripura

Hill and border (3)	Himachal Pradesh, Uttarakhand, Jammu & Kashmir

Note: J&K Reorganisation Act, 2019 split the State into UTs of J&K and Ladakh, yet the special-provision list still names Jammu and Kashmir.

OTHER RESPONSIBILITIES

1. Petroleum

→ recommends date GST applies to: petroleum crude, high-speed diesel, motor spirit (petrol), natural gas, aviation turbine fuel (ATF)

→ currently outside GST; brought in on Centre-State consensus

Dispute type	Between	Example
(a)	Centre and one or more States	apportionment of tax revenue
(b)	Centre (and some States) vs other States	diverse fiscal interests
(c)	two or more States	place of supply, rate classification

3. Compensation chain (Parliament fixes the amount)

Council proposes 5-year compensation (Art 279A(5), Sec 18 of 101st Am.) → Parliament: GST (Compensation to States) Act, 2017 → Bi-monthly payment → Funded by GST Compensation Cess on luxury and sin goods

CAP – Compensation (5 years) · Adjudication of disputes · Petroleum date.

2016 101st Am. · **15 Sep 2016** Council constituted · **2017** Compensation Act · **2019** J&K Reorganisation Act

CLASS · GST framework, compensation, Mohit Minerals

Provision	Detail
Art 246A	Union and States both make GST laws
Art 269A	GST on inter-State supply (class lists with 246A)
Art 279A	GST Council recommends on taxes, surcharges, goods and services

Empowered Committee of State Finance Ministers (2000): worked on VAT, later GST.

Compensation (class)

Base year 2015-16 for every State → Revenue assumed to grow 14% a year → Shortfall: Centre compensates → GST (Compensation to States) Cess Act, 2017: 5 years, due to end 2022 → Covid: Centre borrowed to pay; cess ran to 2026

Mohit Minerals case, 2024 (year as written, check): GST Council recommendations are not binding on States.

→ abuse of Art 356

→ States unhappy with conduct of Governors

🗺️ Centre–State issues (teacher's list, 6)	→ management of All India Services → States unhappy with central administrative directions → binding central directions in a federal polity → no proper special body for Centre–State coordination; existing bodies not used well
Conferences (class)	→ Chief Secretaries' → DGPs' → Governance → All India District Collectors'.

Recall drill: cover and answer

Article and Amendment for GST Council?	Art 279A; 101st Amendment Act, 2016	When must the President constitute it?	Within 60 days (Art 279A(1))
Chairperson? Vice-Chairperson?	Union Finance Minister; elected by State Ministers	Four member categories?	Union FM, MoS Revenue or Finance, State Ministers, Governor's nominee under Art 356
Quorum and decision?	1/2; 3/4 of weighted votes present and voting	Weights?	Centre 1/3, States together 2/3
CBIC Chairperson?	Permanent invitee, no vote	Five petroleum products?	Crude, HSD, petrol, natural gas, ATF
Compensation: period, Act, source?	5 years; 2017 Act; GST Compensation Cess	How many special States?	Eleven (8 NE + HP, Uttarakhand, J&K)
GST compensation base year and growth rate?	2015–16; 14% a year	Mohit Minerals case holding?	GST Council recommendations not binding on States

🔤 **Quick brief: abbreviations, schemes, bodies** (expansions from notes where given; briefs are general knowledge, verify)

GST = Goods and Services Tax — Common indirect tax on goods and services; policy by the GST Council (Art 279A)

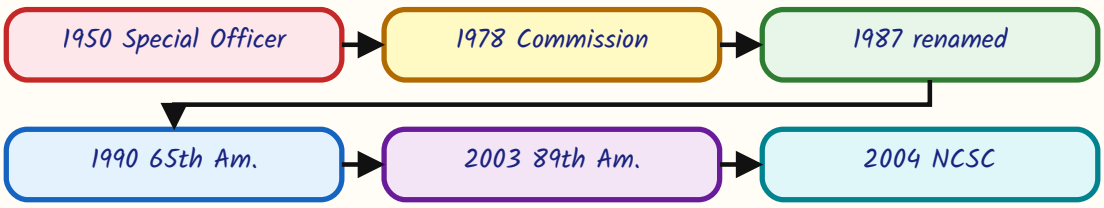
IT = Information Technology — Computing and digital technology (for example, the IT Act, 2000)

NATIONAL COMMISSION FOR SCHEDULED CASTES

PYQ No PYQs quoted in the handout

✎ *How the Special Officer of 1950 became the NCSC of 2004: composition, functions, three wings, Acts, and civil-court powers under Art 338.*

📝 At a glance: six-step ladder



NCSC: constitutional body under Art 338; protects Scheduled Castes and Anglo-Indian community (Art 338 cl. 10: references to SCs include Anglo-Indians). Twins: NCST Art 338A, NCBC Art 338B. Constitutional because Art 338 creates it; NCW (1992), Minorities (1993), NHRC (1993), Child Rights (2007) are statutory. 💡

HISTORY LADDER

Year	Step	Nature
1950	Special Officer (Commissioner for SCs and STs), Art 338	constitutional office
1978	Commission for SCs and STs; Commissioner continued	non-statutory, Government Resolution
1987	National Commission for SCs and STs (national advisory body on broad policy and development)	non-constitutional
1990	65th Am.: multi-member National Commission (in force 12 Mar 1992)	constitutional, Art 338
2003	89th Am.: split into NCSC (Art 338) and NCST (Art 338A) (in force 19 Feb 2004)	two constitutional bodies
2004	NCSC established	Art 338

S-C-R-A-B-N — Special Officer (1950) · Commission by Govt Resolution (1978) · Renamed (1987) · Amendment 65th (1990) · Bifurcation 89th (2003) · NCSC (2004): Social Care Rose After Bifurcation Naturally.

Year shortcut: 50, 78, 87, 90, 03, 04. Amendments 65 then 89. ✅

COMPOSITION

Point	Detail
Chairperson	one
Vice-Chairperson	one
👥 Other Members	three
🗳️ Appointing authority	President (by warrant under hand and seal)
⏳ Conditions, tenure	President's Rules (2004): 3 years, not more than 2 terms
Headquarters	New Delhi
Support	Secretary and staff from Union public service

Handout conflict: History says exactly 3 other Members (five in all); Composition says "a number of Members" (also "on recommendation of Central Government"). Use 1 + 1 + 3.

VISION AND MISSION

Vision: holistic development, empowerment, protection of SCs; equality, social justice, dignity. 💡

Mission area	Meaning
1 Monitoring, evaluation	evaluate schemes; benefits reach beneficiaries
🛡️ 2 Enforcement of safeguards	compliance by Centre, States, PSUs
📬 3 Complaint redressal	investigate violations, deprivation, discrimination
🔧 4 Policy recommendations	to Centre and States
⚡ 5 Proactive empowerment	fill gaps; education, employment
6 Guardianship of justice	vigilant, without fear or favour
7 Awareness, outreach	rights and schemes; participation

PROSPER — Policy · Redressal · Outreach · Safeguards · Proactive empowerment · Evaluation · Rights and justice.

⚡ FUNCTIONS AND REPORTS

Function	What it does
📝 Own procedure	regulates its procedure
Investigation, monitoring	safeguards under Constitution, laws, orders
Inquiry	complaints of deprivation: discrimination, atrocities, denied entitlements
Planning	participates, advises; assesses Union and State programmes
🔧 Recommendation	measures for safeguards, welfare
Additional	other functions the President assigns
⚡ Civil-court powers	summon, documents, evidence, public records
Consultation	Union and States consult on major policy affecting SCs
Extension	references include OBCs and Anglo-Indians per President on Art 340 recommendations

Handout alert: "Extension of Mandate" (SCs, STs, other backward classes) reads like old combined-commission text. Until 102nd Am., 2018 NCSC did similar OBC functions; now NCBC under Art 338B. Use the 102nd Am. position.

Six statutory functions (LK): investigate and monitor safeguards; inquire into complaints; advise on planning and evaluate progress; present reports to President; recommend measures; other functions the President specifies. ⭐

🗺️ Reporting chain (memorandum states reasons for non-acceptance)

Commission: annual + special reports → *President lays before Parliament + action-taken memorandum* → *State matter: President sends to Governor* → *Governor lays before State Legislature*

THREE WINGS

A-S-D — Atrocities and Protection of Civil Rights · Service Safeguards and Reservation Policy · Development and Welfare: All Seek Dignity.

Wing 1: Atrocities and PCR

→ atrocity cases; legal safeguards; Protection of Civil Rights Act, Bonded Labour System (Abolition) Act, Minimum Wages Act

📬 Complaints

→ heinous crimes (rape, gang-rape, murder, kidnapping) under SC and ST (Prevention of Atrocities) Act
→ FIR non-registration or delay
→ caste abuse, social boycott, insults
→ physical assault, attempt to murder
→ threats and intimidation
→ destruction of property (arson)
→ bonded or forced labour
→ non-payment of minimum wages
→ fraud or cheating
→ crimes against SC children (POCSO)

🛡️ Wing 2: Service Safeguards and Reservation

→ protects SC employees in Centre, States, PSUs; reservation policy

📬 Complaints

→ service harassment, bias
→ unjust suspension or termination

→ non-implementation of reservation (recruitment, promotion, rosters)
→ discriminatory disciplinary action
→ denial of promotion or appointment
→ caste certificate issues, inclusion or exclusion from SC list

Wing 3: Development and Welfare

→ socio-economic empowerment; review of welfare programmes

📬 Complaints

→ land disputes, housing-site allotment
→ scholarships and educational discrimination
→ dealerships (petrol pumps, gas agencies)
→ lapses in Special Component Plan (SCP), skill development
→ loans, subsidies
→ housing and civic amenities in SC colonies
→ exclusion from welfare benefits

🔧 ACTS AND KEY RECOMMENDATIONS

No.	Act or Rules
1	SC and ST (Prevention of Atrocities) Act, 1989
2	Protection of Civil Rights Act, 1955
3	Prohibition of Employment as Manual Scavengers and their Rehabilitation Act, 2013
4	SC and ST (Prevention of Atrocities) Rules, 1995 (as amended)
5	Manual Scavengers Rehabilitation Rules, 2013

Area	Annual Report 2017-18 recommends
👑 The Commission	make recommendations binding; independence in functions and budget; more staff
Service	reservation in promotion; in outsourcing and projects; action on false caste certificates; consistent implementation
Development	credit access (MUDRA); effective SCSP; faster scholarships; end manual scavenging and sewer deaths
Atrocities	better FIR registration; correct POA sections; police training; special courts and prosecutors; online relief monitoring; vigilance committees

Note: handout writes plan as SCP (wings) and SCSP (recommendations): same plan, used loosely.

⚡ POWERS: ART 338(8), 338(9)

Clause	Content
Art 338(8)	powers of a civil court while investigating or inquiring
Art 338(9)	Centre and States consult on all major policy matters affecting SCs

COURTS – Compel attendance (summon, oath) · Other powers by President · Unearth documents · Requisition public records · Testimony on affidavits · Summons for witnesses and documents.

OBC role: until 102nd Am., 2018 NCSC also did OBC functions; transferred to NCBC, Art 338B. NCSC = quasi-judicial constitutional authority. ⭐

1950 Special Officer

1955 PCR Act

1978 Commission

1987 renamed

1989 Atrocities Act

1990 65th Am.

1995 Atrocities Rules

2003 89th Am.

2004 NCSC

2013 Manual Scavengers Act

2018 102nd Am.: NCBC

Recall drill: cover and answer

Article for NCSC? Twins?	Art 338; NCST 338A; NCBC 338B	Six-step ladder years?	1950, 1978, 1987, 1990, 2003, 2004
Amendments for constitutional status and split?	65th (1990); 89th (2003)	Composition?	Chair, Vice-Chair, 3 Members; President appoints; HQ New Delhi
Tenure (2004 Rules)?	3 years, max 2 terms	Three wings?	Atrocities and PCR; Service Safeguards and Reservation; Development and Welfare
Art 338(8) vs 338(9)?	Civil-court powers; consultation on major policy	Acts?	PCR 1955; Atrocities 1989 (Rules 1995); Manual Scavengers 2013
Key demand in 2017-18 report?	Make recommendations binding	OBC role moved when and where?	102nd Am., 2018, to NCBC under Art 338B

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

NCSC = National Commission for Scheduled Castes — Constitutional commission under Art 338

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

NCBC = National Commission for Backward Classes — Constitutional commission under Art 338B (102nd Amendment, 2018)

OBC = Other Backward Classes — Socially and educationally backward groups eligible for reservation (Art 15(4), 16(4))

NCST = National Commission for Scheduled Tribes — Constitutional commission under Art 338A

ST = Scheduled Tribes — Tribal groups listed under Art 342

FIR = First Information Report — Police record of a cognizable offence that starts an investigation

NCW = National Commission for Women — Statutory body under the NCW Act, 1990 for women's rights

NHRC = National Human Rights Commission — Statutory body under the Protection of Human Rights Act, 1993

POCSO = Protection of Children from Sexual Offences Act, 2012 — Special law for child sexual offences, with special courts

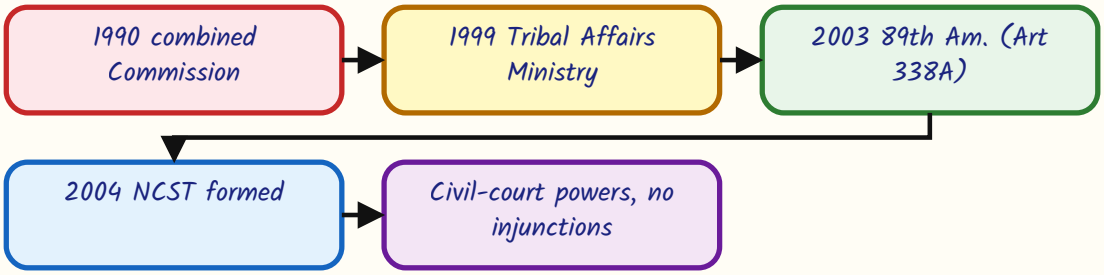
SCP = Special Component Plan

NATIONAL COMMISSION FOR SCHEDULED TRIBES

PYQ No PYQs quoted in the handout

The constitutional commission for STs under Art 338A: origin from the combined commission, ranks and term, safeguards by Article, laws, recommendations, and why it cannot grant injunctions.

At a glance: the route



NCST: constitutional body under Art 338A, inserted by 89th Am. Act, 2003 in Part XVI (Special Provisions Relating to Certain Classes). Permanent, independent; not created by executive order.

C-P-I — Constitutional, Permanent, Independent: "Commission Protects Indigenous peoples." Numbers: Art 338A, Part XVI, 89th Am., 2003.

👥 COMPOSITION

Post	Rank
Chairperson	Union Cabinet Minister
Vice-Chairperson	Minister of State
👥 Members	Secretary to GoI

Term: 3 years from assuming charge. President's Rules (2004): 3 years, not more than 2 terms; appointment by warrant; Chair, Vice-Chair and 3 other Members. Rules: Conditions of Service and Tenure Rules, 2004; Specification of Other Functions Rules, 2005.

C-M-S — Cabinet Minister (Chair) · Minister of State (Vice-Chair) · Secretary (Members): Chief Meets Secretary.

Handout alert: ranks and 3-year term given but the handout does not state the number of members (LK gives Chair, Vice-Chair, 3 Members). Mandate list in handout starts at item 8 (PDF artefact; items 1–7 missing), so only the roles below are given.

⚡ ROLE AND APPROACH

⚡ Mandate

→ Planning: participates in socio-economic development planning for STs; works with Union and States

→ Evaluation and monitoring: effectiveness of safeguards (Constitution, laws, directives); progress nationally and in States

⚡ Four functions

→ investigate and advise
→ inquire into complaints
→ recommend corrective measures
→ report annually to President

APPRISE — Advise and investigate · Progress monitoring · Presenting annual reports · Recommend corrective measures · Inquire into complaints · Socio-economic planning · Evaluate safeguards.

Approach	Meaning
Holistic	economic, social, cultural, environmental factors
Community engagement	field visits, consultations with ST representatives
Research and data	data on population, education, health, land rights, livelihoods (PEHLL)
Advocacy	policy and legal reform

2005: President specified eight other functions: minor forest produce ownership; mineral and water resource rights; livelihood and development strategies; relief and rehabilitation of project-displaced; preventing land alienation and rehabilitating affected; tribal cooperation in forest protection and social afforestation; full implementation of PESA, 1996; reducing and ending shifting cultivation. Same six statutory functions and six civil-court powers as SC Commission; Centre and States consult it on major policy.

EVOLUTION

1990 combined NCSCST, Art 338

1999 Ministry of Tribal Affairs

2003 89th Am.: Art 338A

2004 NCST formed

C-M-A-F — Combined (1990) · Ministry (1999) · Amendment (2003) · Formation (2004): Chiefs Meet At Forests.

Why separate: STs geographically and culturally different; Ministry of Social Justice and Empowerment could not coordinate. 65th Am. in force 12 Mar 1992; 89th Am. in force 19 Feb 2004.

CONSTITUTIONAL SAFEGUARDS FOR STs

Category	Art	Safeguard
Educational, cultural	Art 15(4)	special provisions for backward classes, SCs, STs
Educational, cultural	Art 46	promote educational and economic interests of weaker sections, SCs, STs; protect from injustice and exploitation
Educational, cultural	Art 350A	instruction in mother tongue
Social	Art 23	prohibition of traffic in human beings and forced labour
Social	Art 24	forbids child labour
Economic	Art 244	cl. (1) Fifth Schedule: Scheduled Areas and STs in States other than Assam, Meghalaya, Mizoram, Tripura; cl. (2) Sixth (6th) Schedule: those four
Economic	Art 275	grants-in-aid to States with STs and Scheduled Areas (Fifth, Sixth Schedules)
Political	Art 164(1)	Tribal Affairs Ministers in Bihar, MP, Orissa
Political	Art 330	ST seats in Lok Sabha
Political	Art 243D	seats in Panchayats
Political	Art 332	ST seats in State Legislatures
Political	Art 334	10-year period of reservation (extended repeatedly)
Political	Art 371	special provisions for NE States and Sikkim

CAPES — Heads of safeguards: Cultural and educational · Acts (laws) · Political · Economic · Social.

M-L-L-P-T-N — Political block: Ministers 164(1), Lok Sabha 330, Legislatures 332, Panchayats 243D, Time limit 334, NE States 371: "Most Leaders Like Power Too Nearly."

Shortcut: Social = 23, 24 (forced labour, child labour). Seats = 330 LS, 332 State, 243D Panchayat, 334 time limit. 15(4) and 46 = education and economic advancement; 350A mother tongue.

SAFEGUARDS UNDER LAWS

No.	Law
1	SC and ST (Prevention of Atrocities) Act, 1989; Rules 1995
2	Bonded Labour System (Abolition) Act, 1976
3	Child Labour (Prohibition and Regulation) Act, 1986
4	State Acts on alienation and restoration of ST land
5	Forest Conservation Act, 1980
6	Panchayati Raj (Extension to Scheduled Areas) Act (PESA), 1996
7	Minimum Wages Act, 1948
8	SC and ST (Prevention of Atrocities) Amendment Act, 2015 (published 6 Jan 2016)

🔧 TEN RECOMMENDATION THEMES

Theme	Recommends
💰 Funds	earmark ST-proportionate budget per ST population share; monitor unspent balances; timely transfer
Anti-alienation, land	review State statutes; harmonise with PESA; Gram Sabhas prevent illegal transfers; fast-track restitution
R&R	central legislation or uniform policy; time-bound rehabilitation before project (Sardar Sarovar, Kalinga Nagar, Polavaram)
FRA	recognise individual and community forest rights; speed pending claims
👫 ST certificates	pre-appointment verification against fraudulent certificates
📚 Education	scholarships, residential schools, mid-day meals, girl-child drives; cut dropouts
Atrocities	streamline reporting; special or fast-track courts; convictions, victim support
Data, accountability	disaggregated ST data; targets; periodic action-taken reports
PVTGs	tailored livelihood, health, habitat; dedicated funding
Institutions	convergence of CSS, State programmes; build Gram Sabha and Panchayat capacity

F-A-R-F-C-E-A-D-P-I – Funds, Anti-alienation, R&R, FRA, Certificates, Education, Atrocities, Data, PVTGs, Institutions: "Farmers Always Raise Fine Crops, Even After Dry Periods, Irrigating."

REPORTS

Report chain

Commission: annual + special reports → *President lays before Parliament + action-taken memorandum (reasons if not accepted)* → *State matter: to Governor* → *Governor lays before State Legislature*

⚡ POWERS AND THE SC LIMIT

Art 338A(8): while investigating under cl. (5)(a) or inquiring into complaint under cl. (5)(b), NCST has all powers of a civil court trying a suit (procedural). Quasi-judicial; not a court: no injunctions or interim orders. 💡

Power	Meaning
Summon	any person from India; examine on oath
Documents	discovery and production
Affidavits	evidence on affidavits
Records	requisition public records from court or office
👑 Commissions	for examining witnesses and documents
Other	additional power President prescribes by rules

👫 All India Indian Overseas Bank SC & ST Employees' Welfare Association vs Indian Overseas Bank

Erstwhile NCSCST ordered Indian Overseas Bank to halt a promotion → Delhi HC sets aside (1993) → SC upholds (1996) → DoPT circulates to Ministries (1998)

D-S-D — Delhi HC set aside (1993) · SC upheld (1996) · DoPT distributed (1998): Dismissed, Supported, Distributed.

Court shortcut: civil-court powers find facts, not order anything; powers limited to summoning, evidence, examining witnesses, requisitioning documents. ✅

Handout alert: powers called Art 338A(8) for NCST but "Art 338(8)" for the Supreme Court case on the old combined NCSCST. For NCST answer 338A(8); Art 338 was the old combined commission's provision.

1990 combined NCSCST

1993 Delhi HC

1996 SC: no injunctions

1998 DoPT circular

1999 Tribal Affairs Ministry

2003 89th Am.: Art 338A

2004 NCST

2015 Atrocities Amendment Act (6 Jan 2016)

Recall drill: cover and answer

Article and Amendment for NCST?	Art 338A; 89th Amendment Act, 2003; Part XVI	Ranks of Chair, Vice-Chair, Members?	Cabinet Minister; MoS; Secretary to GoI
Term?	3 years (max 2 terms, 2004 Rules)	Evolution years?	1990, 1999, 2003, 2004
Fifth vs Sixth Schedule (Art 244)?	Fifth: Scheduled Areas in most States; Sixth: Assam, Meghalaya, Mizoram, Tripura	Social, political safeguard Articles?	23, 24; 164(1), 330, 332, 243D, 334, 371
Laws and years?	Atrocities 1989 (Rules 1995; Am. 2015), Bonded Labour 1976, Child Labour 1986, FCA 1980, PESA 1996, Min. Wages 1948	Can NCST grant injunctions? Case?	No; Indian Overseas Bank case: Delhi HC 1993, SC 1996, DoPT 1998
R&R linked projects?	Sardar Sarovar, Kalinga Nagar, Polavaram	Report chain?	Commission, President, Parliament; State matters via Governor

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

ST = Scheduled Tribes — Tribal groups listed under Art 342

NCST = National Commission for Scheduled Tribes — Constitutional commission under Art 338A

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

PESA = Panchayats (Extension to Scheduled Areas) Act, 1996 — Gives Gram Sabhas special powers in Fifth Schedule areas

HC = High Court — State-level constitutional court (Art 214)

DoPT = Department of Personnel and Training — Nodal department for civil service policy

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

FRA = Forest Rights Act, 2006 — Recognises forest rights of Scheduled Tribes and other traditional forest dwellers

NATIONAL COMMISSION FOR BACKWARD CLASSES

PYQ None quoted in the handout

✎ *NCBC moved from a 1993 statutory body to a constitutional one (Art 338B, 102nd Am 2018): five members, six functions, civil-court powers, and a report-and-memorandum loop.*

👥 At a glance: statute to Constitution



ORIGIN AND STATUS

1992 Indra Sawhney (Mandal): SC asks for permanent body

1993 NCBC Act: statutory

2018 NCBC (Repeal) Act repeals 1993 Act

2018 102nd Am inserts Art 338B

NCBC

→ Looks after SEBCs (socially and educationally backward classes)
→ 1993: examined inclusion / exclusion in Central List of OBCs; advised govt
→ Under Ministry of Social Justice and Empowerment
→ Indra Sawhney: SC told Centre to set up a body for under-inclusion, over-inclusion, non-inclusion complaints
→ 102nd Am also inserted Art 342-A: President specifies SEBCs; functions enlarged to match NCSC, NCST

A R A – Act 1993 · Repeal 2018 · Amendment (102nd, 2018) inserts Art 338B: "Aid Reaches All".

In the news · Aug 2026 (verify dates) Creamy layer: from Indra Sawhney (1992) and Ram Nandan Prasad Committee (1993). Ceiling last revised to Rs 8 lakh in 2017. 102nd Am gave NCBC status (Art 338B).

S T B – Safeguards Together Bind: Scheduled Castes Art 338 · Tribes Art 338A · Backward Classes Art 338B.

CLASS · NCBC Act 1993 body; evolution of commissions

Art 338 Special Officer for SC/ST

1990 65th Am: National Commission for SC/ST

2003 89th Am: Art 338 NCSC, Art 338A NCST

2018 102nd Am: Art 338B NCBC

NCBC Act 1993 members	Who
1	Chairman: serving or retired SC/HC judge
2	a social scientist
3	2 persons with special knowledge on OBC matters
4	Member-Secretary (Govt)

⚡ 1993 functions

→ examine requests for inclusion in the Centre's OBC list
→ advise which communities to include and exclude (castes ceased, or freshly identified)

👥 COMPOSITION (ART 338B)

Point	Provision
👥 Members	Chairperson, Vice-Chairperson and three other Members = 5 (Art 338B(2))
📦 Appointment	President, by warrant under hand and seal (Art 338B(3))
⏳ Service conditions, tenure	Fixed by President through rules (Art 338B(2))
⏳ Tenure (Rules 2018)	3 years; not eligible for more than two terms

Source conflict (tenure): composition section says handout gives no number of years (only a fixed term by rules); the extra note says NCBC Conditions of Service and Tenure Rules 2018: three years, max two terms. Rank and pay equal to senior govt officials is stated only under significance.

⚡ FUNCTIONS: SIX

⚡ Six functions

→ Investigate and monitor safeguards for SEBCs, evaluate effectiveness
→ Inquire into complaints of deprivation (eg reservation not implemented in jobs, institutions)
→ Advise on socio-economic development; evaluate welfare progress (Union and States)
→ Report to President: annual and special
→ Recommend measures to Union and States
→ Additional functions the President specifies

ASPIRE — Additional functions · Safeguards: investigate · Programmes for development · Inquire into complaints · Report to President · Effective implementation: recommend. (order rearranged; memory aid)

Design point	Why
📜 Compact body (5)	Focused, agile
📦 Presidential appointment and rules	Independence, legitimacy
⏳ Fixed tenure	Renewal, stability
💰 Rank and pay of senior govt officials	Importance of role

REPORTS: ACCOUNTABILITY LOOP

Report route

NCBC: annual and special reports to President → *President lays before Parliament with memorandum of action taken* → *Reasons for non-acceptance explained* → *State matters: to State govt, laid before State Legislature*

Source conflict (State reports): NCST chapter says President forwards to the Governor; NCBC text says to the State government (clause 7 of Art 338B), not the Governor. Use each chapter's own wording.

⚡ POWERS

📝 Procedure

→ Frames and regulates own procedure
→ Civil-court powers (a) to (f) in investigating or inquiring
→ Consultation duty: Centre and every State must consult NCBC on major policy matters affecting SEBCs
→ 105th Am 2021: States exempt from consulting NCBC when preparing their own State list of SEBCs

Item	Civil-court power
(a)	Summon, enforce attendance of any person from any part of India; examine on oath
(b)	Discovery and production of documents
(c)	Receive evidence on affidavit
(d)	Requisition public records or copies from any court or office
(e)	Issue commissions for examining witnesses and documents
(f)	Any other matter President specifies by rule

COURTS — Compel attendance · Other powers by President's rule · Unearth documents · Requisition public records · Testimony on affidavit · Send out commissions. (order rearranged)

Same six civil-court powers as NCST and NCSC. Distinguishes NCBC from a purely advisory body. ✅

Recall drill: cover and answer

Article for NCBC?	338B, by 102nd Am 2018 (1993 Act repealed by NCBC Repeal Act 2018)	NCBC composition?	Chairperson, Vice-Chairperson, 3 Members = 5; warrant under hand and seal
Tenure under 2018 Rules?	3 years, not more than two terms	Which ministry?	Social Justice and Empowerment
Six functions?	Investigate, inquire, advise, report, recommend, additional	Civil-court powers count?	Six, (a) to (f)
What did 105th Am 2021 do?	States need not consult NCBC for own SEBC list	Art 342-A?	Inserted by 102nd Am; President specifies SEBCs
Which Art for SC, ST commissions?	338 and 338A		

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

NCBC = National Commission for Backward Classes — Constitutional commission under Art 338B (102nd Amendment, 2018)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

NCST = National Commission for Scheduled Tribes — Constitutional commission under Art 338A

NCSC = National Commission for Scheduled Castes — Constitutional commission under Art 338

ST = Scheduled Tribes — Tribal groups listed under Art 342

OBC = Other Backward Classes — Socially and educationally backward groups eligible for reservation (Art 15(4), 16(4))

HC = High Court — State-level constitutional court (Art 214)

SPECIAL OFFICER FOR LINGUISTIC MINORITIES

PYQ None quoted in the handout

✎ *Art 350B: the constitutional guardian of linguistic minorities (CLM), born from the SRC and the 7th Am 1956; plus Arts 350A and 351 and the related Acts.*

At a glance: the route

SRC 1956 recommends → 7th Am 1956: Arts 350A, 350B → CLM constituted 1957 → Reports to President → Laid before Parliament, sent to States

ART 350B AND LINGUISTIC MINORITY

Art 350B (Part XVII)

→ Inserted by 7th Am Act 1956 after SRC 1956
→ President appoints a Special Officer
→ Investigates all safeguards for linguistic minorities; reports to President periodically
→ Originally no such provision in the Constitution

Linguistic minority (not defined in Constitution)

→ Group with distinct language or script in any part of India
→ State level: mother tongue differs from State's principal language
→ District / tehsil level: language differs from that of the district or tehsil
→ Language need not be in Eighth Schedule (now 22, originally 14)

S S A – SRC 1956 · Seventh Am 1956 · Article 350B: "States Stirred, Amended, Backed minorities". Both 1956.

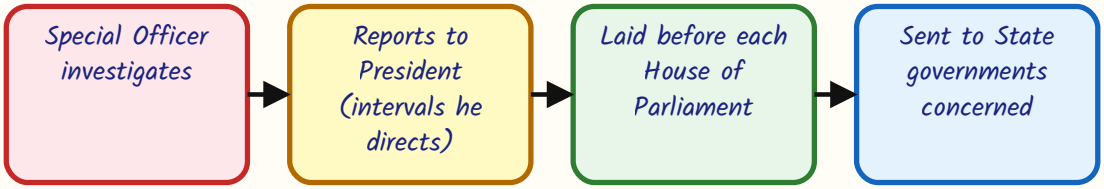
Source conflict (SRC date): Lakshmikanth gives SRC as 1953–55; handout says SRC, 1956. Use handout; 1956 is also the 7th Am year.

ARTS 350A, 350B, 351

Art	Subject	Provision
350A	Mother-tongue instruction at primary stage	Endeavour of every State and local authority for adequate facilities for children of linguistic minority groups; President may give directions to any State
350B	Special Officer	Appointed by President; investigates safeguards; reports at intervals President directs; President lays reports before each House and sends to State governments concerned
351	Development of Hindi (directive)	Union duty to spread Hindi as medium for all elements of composite culture; assimilate forms, style, expressions of Hindustani and Eighth Schedule languages; draw vocabulary from others where needed

M S H – Mother tongue 350A · Special Officer 350B · Hindi 351: "My State Hears". 350A and 350B added together in 1956.

Reporting chain, Art 350B



👑 COMMISSIONER FOR LINGUISTIC MINORITIES (CLM)

CLM = official title of Special Officer

→ Constituted 1957; initially New Delhi, later Allahabad, back to New Delhi in 2015

→ Assisted at HQ by Deputy Commissioner and Assistant Commissioner; liaison with States/UTs via nodal officers

→ Under Ministry of Minority Affairs; reports reach President via Union Minority Affairs Minister

→ Qualifications, tenure, salary, service conditions, removal: not specified in Constitution

1949 Education Ministers' Conf

1956 GoI Memorandum

1959 Southern Zonal Council

1961 Chief Ministers' Conf

E G S C – Every Government Seeks Consensus: forums that shaped the safeguards scheme, in year order.

Function	Meaning
Investigation	All matters on constitutional safeguards for linguistic minorities
Reporting	Periodic reports; President lays before both Houses and concerned State governments
Promotion of welfare	Oversee policies protecting linguistic and cultural heritage
💰 Equal access	Education, employment, public services

RIPE – Reporting · Investigation · Promotion of welfare · Equal access. (order rearranged)

How CLM works: three functions: investigate, report on implementation, monitor (questionnaires, visits, conferences, seminars, meetings, review). Takes up matters from individuals, groups, associations; visits minority areas and institutions; talks with CMs, Governors, Lt Governors, Chief Secretaries, Education Secretaries. Four objectives: equal opportunities, awareness, effective implementation, grievances.

💡 ORGANISATION AND SIGNIFICANCE

Item	Detail
Ministry	Minority Affairs
Headquarters	New Delhi
Regional offices	Belgaum (Karnataka), Chennai (Tamil Nadu), Kolkata (West Bengal)
Regional head	Assistant Commissioner

B C K – Big Cities Keep regional offices: Belgaum, Chennai, Kolkata. (order free)

Significance: protects about 36 million minority-language speakers (Census 2011); link between Union, States and language communities; constitutional guardian of linguistic pluralism. ✅

RELATED ACTS IN THE HANDOUT

Act	What it does
Durgah Khawaja Saheb Act, 1955	Durgah Endowment at Ajmer: income and religious affairs
National Commission for Minorities Act, 1992	Sets up NCM; safeguards minority rights under Arts 29 and 30
Wakf Act, 1995	Regulates Waqf institutions; Waqf Boards supervise use
Haj Committee Act, 2002	Haj Committee of India for Haj pilgrimage
Wakf (Amendment) Act, 2013	Stricter penalties for encroachment; better governance; financial accountability
Waqf (Amendment) Act, 2025	Digital record management, transparency, accountability of Waqf Boards

Handout alert: this list is religious-minority and Waqf law (from another chapter), and Art 351 Hindi is not about minorities. Core = Arts 350A, 350B, CLM. Both spellings Waqf and Wakf are kept as in handout.

Recall drill: cover and answer

Art 350B inserted by?	7th Am 1956, after SRC 1956	Official title of the Special Officer?	Commissioner for Linguistic Minorities, set up 1957
Art 350A and Art 351?	Mother-tongue instruction at primary stage; development of Hindi	CLM office shifts?	New Delhi, then Allahabad, back to New Delhi in 2015
Regional offices?	Belgaum, Chennai, Kolkata (each under an Assistant Commissioner)	Ministry?	Minority Affairs
Eighth Schedule languages?	22 now, 14 originally	Four forums and years?	1949 Education Ministers, 1956 GoI Memorandum, 1959 Southern Zonal Council, 1961 CMs
Minority-language speakers?	About 36 million (Census 2011)		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

SRC = States Reorganisation Commission — Commission (1953–55) that recommended linguistic reorganisation of States

NCM = National Commission for Minorities — Statutory body under the NCM Act, 1992

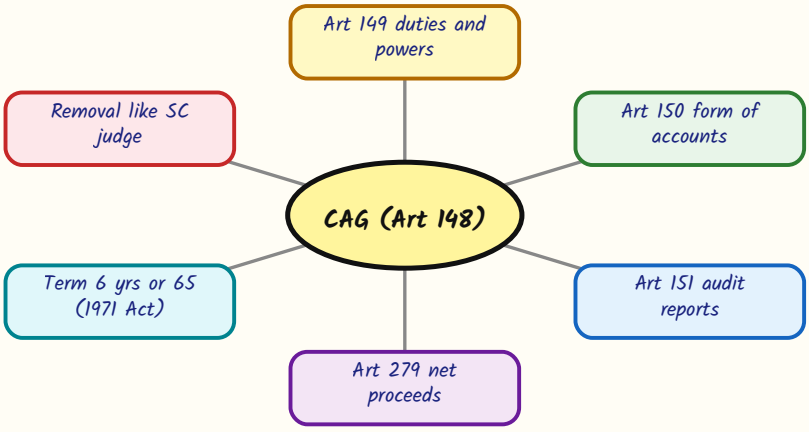
CLM = COMMISSIONER FOR LINGUISTIC MINORITIES

COMPTROLLER AND AUDITOR GENERAL

PYQ None quoted in the handout

✎ *CAG, the guardian of the public purse (Art 148): appointment and removal, seven safeguards of independence, audit powers and types, limits, Audit Board, Appleby's critique.*

At a glance: the CAG



WHO THE CAG IS

👥 CAG: independent constitutional authority, Art 148

→ Heads Indian Audit and Accounts Department (IA&AD); guardian of the public purse

→ Audits Union and State transactions; upholds Constitution and parliamentary laws in finance

→ Pillar with SC, Election Commission, UPSC

→ Ambedkar: "most important officer under the Constitution"

S E U C — Supreme Court · Election Commission · UPSC · CAG: "See Every Unit's Cash".

HISTORY OF IA&AD

Mid-19th c.
Separate accounts for three Presidencies: Bengal, Madras, Bombay

1860
Auditor-General of India

1919, 1935
GoI Acts: statutory, then independent status

Art 148
Renamed CAG

1990-2007
Thematic History volumes

📝 Four stages

→ Pre-Independence: three Presidencies, 1860 Auditor-General

→ Independence: Art 148; IA&AD machinery for Union and States

→ Post-Independence: standards expanded; IAAS cadre; unitary structure in federal setup

→ Modern: performance audit (value for money), compliance, accounting reforms, internal controls

Vision: independent credible assurance on public resources; global leader in public sector auditing. Mission: promote accountability, transparency, good governance; timely assurance to Legislature, Public, Executive. Institutional values: professional standards, objective balanced approach, independence, transparency. People values: ethical behaviour, integrity, professional competence, fairness, social awareness.

In the news · Aug 2026 (verify dates) Green India Mission: CAG audit (2015-16 to 2024-25, 16 States/UTs): 97.57% shortfall in forest cover increase, 91.87% in quality improvement; eight States/UTs kept no annual accounts.

CLASS · First CAG; Departmentalisation 1976

First CAG of India: V. Narhari Rao (class: "Narhari Rao"); 15th CAG: K. Sanjay Murthy.

DoAS 1976

Before: CAG kept and audited accounts of Centre, States, UTs (absurd) → *Departmentalisation of Accounts Scheme 1976 (DoAS)* → *Indian Civil Accounts Service created* → *Controller General of Accounts (CGA), Finance Ministry, takes over accounts*

APPOINTMENT AND TENURE

Point	Provision
Appointed by	President, warrant under hand and seal
Oath	Before President: true faith and allegiance to Constitution, uphold sovereignty and integrity, duties faithfully and impartially without fear or favour, affection or ill-will, uphold Constitution and laws
Conditions, tenure, age	CAG (Duties, Powers and Conditions of Service) Act 1971: 6 years, 65 years
Amendment	Change the Act, not the Constitution
Resignation	To the President, any time
Removal	As Supreme Court judge: proved misbehaviour or incapacity; resolution by special majority of Parliament presented to President

Source conflict (tenure wording): handout says "6-year term and 65 years" without "whichever is earlier"; the extra note says six years or up to 65, whichever is earlier. Salary = SC judge (Rs 2.50 lakh per month, 2018).

A T S – Act 1971 · Term 6 years · Sixty-five years of age: not in the Constitution.

SEVEN SAFEGUARDS OF INDEPENDENCE

Seven safeguards

→ Security of tenure: removal only by prescribed procedure
→ Post-tenure bar: no later office under Centre or State
→ Salary and conditions fixed by Parliament (pay = highest judicial office)
→ No detrimental alteration: salary, leave, pension, age
→ Consultation: IA&AD staff conditions and CAG's administrative powers prescribed by President after consulting CAG
→ Charged expenditure: office expenses on Consolidated Fund, not voted
→ No ministerial shielding: no minister represents or answers for CAG

SECURED – Security of tenure · Expenditure charged · Consultation on staff · Unalterable to disadvantage · Remuneration fixed by Parliament · Excluded from ministers · Disqualified from later office. (order rearranged)

Source conflict (count): Lakshmikanth lists six safeguards (no ministers point) and dates the Indian Audit and Accounts Department to British rule 1753; handout: seven safeguards, Auditor-General 1860. Use handout.

⚡ POWERS AND DUTIES (ART 149)

🤝 Art 149: Parliament defines duties; done by 1971 Act; later amendment separated accounts from audit at Centre (1976)

⚡ Core audit mandate

→ Consolidated Funds: India, each State, UTs with legislatures
→ Contingency Fund and Public Account: Union and States
→ Department accounts: trading, manufacturing, profit and loss, balance sheets
→ Revenue: receipts, systems to control assessment, collection, allocation
→ Institutions, corporations: bodies substantially financed, Government companies, statutory corporations
→ Financial transactions: debt, sinking funds, deposits, advances, suspense, remittances; with presidential approval receipts and stock accounts
→ Special audits: any authority when President (Union) or Governor (State) requests

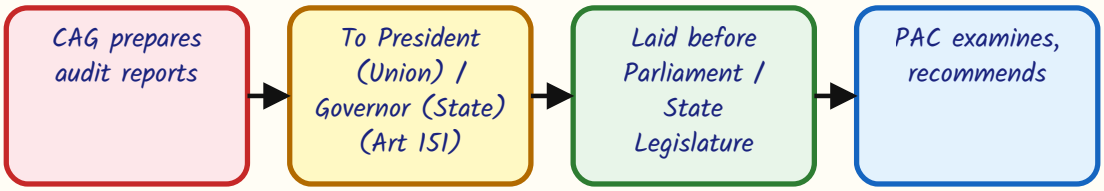
→ Extras: grants and loans for specific purposes; stores and stock; Govt Companies under Companies Act; corporations whose statutes require it

⚡ Powers in audit

→ Inspect any office or department
→ Examine transactions, question person in charge
→ Call for records and documents
→ Decide extent and manner of audit

Role	Detail
Form of accounts (Art 150)	Advises President on format and principles for Union and State accounts
Net proceeds (Art 279)	Ascertains and certifies net proceeds of tax or duty (proceeds less cost of collection); certificate final
🏛️ Parliament	Guide to review bodies, esp. Public Accounts Committee (CAG = guide, friend and philosopher)

Report route, Art 151



Three audit reports	Shows
Appropriation Accounts	Actual expenditure vs parliamentary authorisation
💰 Finance Accounts	Annual receipts and disbursements
Reports on Public Undertakings	Audit findings on public undertakings

Accounts and audit: CAG relieved of Central accounts (1976); still compiles and maintains State accounts. ⭐

Art	Subject
148	CAG of India
149	Duties and powers
150	Form of accounts of Union and States
151	Audit reports
279	Calculation of net proceeds of taxes

C D F R N — Careful Detectives Follow Real Numbers: 148, 149, 150, 151, then 279.

⚡ CLASS · CAG: more functions and areas

Class point	Detail
UTs with assemblies	Puducherry, J&K, Delhi
🗺️ Sixth Schedule	Autonomous District Councils audited by CAG
Art 279	certifies net proceeds; assists the Finance Commission
💰 Budgets	helps Govt, States, UTs with annual budget setting (as written)

⚡ ROLE AND TYPES OF AUDIT

Accountability

→ Parliament controls executive through CAG: agent of Parliament, accountable solely to it

→ More discretion on expenditure audit; receipts, stores, stock follow executive-approved rules

→ Checks funds legally available and spent per governing authority

→ Legal and regulatory audit obligatory; propriety audit (wisdom, faithfulness, economy) discretionary

→ 2006 Finance Ministry Office Memorandum: performance audit (economy, efficiency, effectiveness) in scope

Type	Checks
Compliance (legality, statutory, transactions)	Spent per financial law, legally available, on activity Parliament authorised
Financial	Proper books; entries faithfully show what happened
Performance (efficiency)	Eg schools built under an amount and their standards
Propriety	Wisdom and faithfulness of spending; eg 2G spectrum, CAG Vinod Rai, loss Rs 1.76 lakh crore

FLAW — Financial · Legality (compliance) · Audit of efficiency (performance) · Wisdom of spending (propriety). (order rearranged)

CAG does performance audit or reporting, not performance evaluation (reasons for inefficiency outside his domain). Propriety audit needed as it is taxpayers' money; major frauds surface through it. Handout slip "proprietary" = propriety. ⭐

LIMITS: COMPTROLLER VS AUDITOR

Limit	Detail
Secret service expenditure	No detailed particulars; certificate from competent administrative authority accepted
Comptroller vs Auditor	In practice an Auditor-General
No prior control	Unlike British CAG, no control over issue from Consolidated Fund; departments draw by cheque
🧑‍🤝‍🧑 Post-facto	Scrutiny follows completed transactions

CORPORATIONS AND AUDIT BOARD

Category	Audit
Direct	Some statutory corporations audited wholly by CAG
Private with CAG oversight	Professional auditors appointed by Centre in consultation with CAG; CAG may do supplementary audit
Exclusive private	A few: only professional audit; reports go direct to Parliament

Govt companies

→ Private auditors appointed by Govt on CAG's advice

→ CAG may conduct supplementary or test audits

Audit Board (1968)

→ Set up in CAG's office on Administrative Reforms Commission recommendation

→ For large specialised enterprises: engineering, iron and steel, chemicals

→ Chairman + two Members, all appointed by CAG

CLASS · Corporations and companies: who audits

Body	Class note
📜 Public corporation (by law, 100% Govt)	audit as the setup law says: full, partial or none. RBI (RBI Act 1934, first corporation), LIC, FCI outside CAG
Govt company (joint stock)	min 51% Govt-owned; auditor (chartered accountant) appointed by Govt on CAG advice; then CAG supplementary audit
All PSUs	comprehensive performance review through Audit Boards from 1968

APPLEBY'S CRITIQUE

Paul H. Appleby

→ Two reports (1953, 1956); even suggested CAG be relieved of audit
→ Colonial inheritance
→ Inhibits action: "paralysing unwillingness to decide and to act"
→ Parliament's misconception: exaggerated view; functions not defined as Constitution envisaged
→ Centrality questioned; auditors lack expertise to judge administration
→ Narrow, "pedestrian" procedural task
→ Comparative knowledge: a deputy secretary knows more

📌 **MADCAP** — Misconception by Parliament · Administrative action inhibited · Deputy secretary knows more · Colonial inheritance · Auditor not central · Pedestrian view. (order rearranged)

⭐ Second ARC (2005–09): PAC examines only 15–20 of 1000–1500 paras a year; audit post facto, file-based, little physical verification.

✅ Answer frame: CAG ensures legality, regularity and prudence; objective audit evidence to Parliament; independence via seven safeguards; limits = post-facto, secret service.

Recall drill: cover and answer

Article for CAG? Duties? Form of accounts? Reports? Net proceeds?	148, 149, 150, 151, 279	CAG term and age, and source?	6 years, 65; CAG (DPC) Act 1971, not Constitution
Removal of CAG?	Like an SC judge: proved misbehaviour or incapacity, special majority	Seven safeguards?	Tenure, post-tenure bar, Parliament fixes pay, no detrimental change, consult on staff, charged expenditure, no minister
Four audits?	Compliance, financial, performance, propriety	2G audit figure?	Rs 1.76 lakh crore (propriety audit, Vinod Rai)
Audit Board?	1968, ARC, Chairman plus two Members appointed by CAG	Auditor-General first created?	1860
Appleby reports?	1953 and 1956; six criticisms		

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

PAC = Public Accounts Committee — Parliamentary committee that examines CAG audit reports

RBI = Reserve Bank of India — Central bank; regulates banks and conducts monetary policy

ARC = Administrative Reforms Commission — Commission recommending reforms in public administration (1st in 1966, 2nd in 2005)

UPSC = Union Public Service Commission — Constitutional body (Art 315) that recruits for the Union services

PSC = Public Service Commission — Constitutional recruitment body (UPSC for the Union, SPSC for States)

FCI = Food Corporation of India — Buys, stores and distributes food grains

ATTORNEY GENERAL AND ADVOCATE GENERAL

PYQ Handout PYQ block is shared by all bodies (Prelims 2023, 2017 x2, 2011, Art 350-A; Mains 2022 to 2004); none tests AG or Advocate-General directly

✎ *Union and State law officers side by side: who appoints, qualifies, serves at pleasure, may speak but not vote (Arts 76, 88, 105 vs 165, 177, 194(2)).*

At a glance: the AG route; Advocate-General mirrors it (165, 177, 194(2))



PYQ note: the High badge comes from the shared block (Election Commission, PSC, Finance Commission, GST, CAG, NCSC, NCBC). Art 350-A PYQ answer (c) is in ch 38. Shared block years: Prelims 2023, 2017, 2011; Mains 2022, 2020, 2018 (EVM, CAG, FC), 2017, 2016 (CAG Art 149 audit of Govt), 2014, 2004. No skeletons written here.

ATTORNEY GENERAL OF INDIA (ART 76)

Art 76

→ Principal legal adviser to Union Govt; highest law officer

→ Advises and appears for GoI in courts

📜 Union law officers

→ Attorney General: constitutional (Art 76)

→ Solicitor General: not constitutional

→ Additional Solicitors General: not constitutional (assist AG)

→ Not a member of Central cabinet; a separate Law Minister sits in cabinet

A S A – Always Seek Assistance: Attorney General (Art 76, only constitutional one) · Solicitor General · Additional Solicitors General.

🗳️ Appointment

→ By President; qualified as Supreme Court Judge

Three routes

→ HC Judge for 5 years

→ HC advocate for 10 years

→ Eminent jurist (President's view)

→ Indian citizen

Aspect	AG
⏳ Term	No fixed term; pleasure of President; no removal procedure or grounds
Resign	To President
🌐 Convention	Goes when Council of Ministers resigns or is replaced
💰 Pay	Not fixed by Constitution; as President determines

🤝 Duties

→ Legal advice on matters referred by President

→ Other legal duties assigned by President

→ Constitutional and statutory functions

→ Supreme Court: all matters where Union is party or has stake

🗺️ Appears for Union (notification 26 Jan 1950)

→ Art 143 presidential references (advisory opinion)

→ High Courts: when GoI requires

S P H — Silk Pleads Hardest: Supreme Court · Presidential references (Art 143) · High Courts, in handout order.

🛡️ Rights and privileges

→ Right of audience in all courts in territory of India

→ Art 88: speak and take part in both Houses, joint sittings, committees of which named a member; no vote

→ Art 105: privileges and immunities of MPs

→ Official capacity only

Source conflict (committees): handout says both "of which he may be named a member" (Art 88 text) and "to which he may be invited". Use named a member.

Limitation (five)	Rule
No adverse representation	No advice or action against GoI in any matter
No dual briefs	No briefs where he must advise or represent Govt
Criminal defence	Not without prior permission of GoI
Directorships	None in companies or corporations without Govt approval
Centralised referral	No direct instructions from ministries, departments, statutory bodies, PSUs; via Ministry of Law and Justice (Dept of Legal Affairs)

A D C C R — Adverse · Dual briefs · Criminal defence · Company directorships · Routed via Law Ministry. (handout memory line: All Documents Come Countersigned, Routed)

Status: AG is not a govt servant, not full-time salaried counsel; private practice not barred subject to limits. Solicitor General and Additional SGs: not constitutional, a classic trap beside Art 76. ⭐

Art	AG
76	Office, appointment, qualifications, duties
88	Speak and take part, no vote
105	Privileges and immunities as MPs

ADVOCATE-GENERAL (ART 165)

📜 Art 165: State's highest law officer; State counterpart of AG

→ Appointed by Governor (on advice of CM-led Council of Ministers)

🎓 Qualified as HC Judge

→ Indian citizen

→ Judicial office 10 years

→ OR HC advocate 10 years

→ No tenure fixed; pleasure of Governor; resigns to Governor; goes with the government (convention)

→ Pay as Governor determines

C J A — Capable Jurists Advocate: Citizen · Judicial office 10 yrs · Advocate of HC 10 yrs. (order free)

No jurist route: Constitution has no provision for eminent jurist as HC judge, so none for Advocate-General. "Judicial office" = judicial service of the State. ⭐

🤝 Duties

→ Legal advice on matters referred by Governor

→ Other duties assigned by Governor

→ Constitutional and statutory functions (State law)

→ Appear in any court in the State: HC and subordinate

→ Art 177: speak and take part in Assembly (or both Houses with Council) and committees of which named a member; no vote

→ Art 194(2): legislators' privileges, free speech in Legislature, immunity from court for what is said

LOCAL — Legal advice · Other duties by Governor · Constitutional and statutory functions · Appear in any court in State · Legislature, no vote. (order rearranged)

Significance: bridge between law and governance; executive actions legally sound; clarifies legal points in debate; rule of law. ✅

Art	Advocate-General
165	Office, appointed by Governor, HC-judge qualified
177	Speak and take part in Legislature, no vote
194(2)	Privileges, free speech, immunity

AG VS ADVOCATE-GENERAL

Aspect	Attorney General	Advocate-General
📜 Article	76	165
🗳️ Appointer	President	Governor
🎓 Qualification	SC Judge: HC Judge 5 yrs OR HC advocate 10 yrs OR eminent jurist	HC Judge: HC advocate 10 yrs OR judicial office 10 yrs; citizen
Adviser to	Union Govt (President, Union Council of Ministers)	State Govt (Governor, State Council of Ministers)
Represents	Union in SC, HCs; constitutional and international matters incl. treaties	State in HC, SC, other forums; inter-State and constitutional matters: water-sharing, boundary disputes
Vets	Union bills and ordinances (drafting)	Draft State bills, ordinances, amendments
Audience	All courts in India	All courts within the State
📜 Parliament / Legislature	Takes part, no vote	Takes part, no vote
Private practice	Allowed with limits; not against GoI	Allowed with limits; not against State Govt
💰 Pay	President	Governor

MIRROR — President to Governor · Parliament to State Legislature · SC Judge to HC Judge · 76 to 165 · 88 to 177 · 105 to 194(2). (shortcut from handout)

Handout alert: the table cell "Guardian of Constitutionality" was cut in the PDF and is rebuilt as the Union mirror of the State line. Art 194 is listed for Advocate-General powers, privileges and immunities beside 165 (office) and 177 (rights in Houses).

👥 ARTICLES ON CONSTITUTIONAL BODIES (HANDOUT TABLE)

Art	Body	Art	Body
76	Attorney General	280	Finance Commission
148	CAG	307	Inter-State Trade and Commerce Commission
165	Advocate-General	315	UPSC and SPSC
243-I	State Finance Commission	324	Election Commission
243-K	State Election Commission	338	NCSC
243ZD	District Planning Committee	338A	NCST
243ZE	Metropolitan Planning Committee	338B	NCBC
263	Inter-State Council	339	Scheduled Areas and Scheduled Tribes Commission
279A	GST Council	340	Backward Classes Commission
344	Official Language Commission and Parliamentary Committee	350B	Special Officer for Linguistic Minorities

Recall drill: cover and answer

Art 76 vs Art 165?	Attorney General (Union) vs Advocate-General (State)	AG qualification?	SC judge standard: HC judge 5 yrs, HC advocate 10 yrs, or eminent jurist
Advocate-General qualification?	HC judge standard: 10 yrs judicial office or 10 yrs HC advocate; no jurist route	Speak but not vote?	Art 88 (AG), Art 177 (Advocate-General)
Privileges?	Art 105 (AG), Art 194(2) (Advocate-General)	Is Solicitor General constitutional?	No; nor Additional SGs
Five limits on AG?	No adverse, no dual briefs, criminal defence permission, directorships, via Law Ministry	Who fixes pay?	President (AG), Governor (Advocate-General)
AG tenure?	No fixed term; pleasure of President; goes with Council of Ministers by convention		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

HC = High Court — State-level constitutional court (Art 214)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

GST = Goods and Services Tax — Common indirect tax on goods and services; policy by the GST Council (Art 279A)

NCSC = National Commission for Scheduled Castes — Constitutional commission under Art 338

NCBC = National Commission for Backward Classes — Constitutional commission under Art 338B (102nd Amendment, 2018)

PSC = Public Service Commission — Constitutional recruitment body (UPSC for the Union, SPSC for States)

EVM = Electronic Voting Machine — Machine used to record votes

CM = Chief Minister — Head of a State government

UPSC = Union Public Service Commission — Constitutional body (Art 315) that recruits for the Union services

SPSC = State Public Service Commission — State counterpart of the UPSC

NCST = National Commission for Scheduled Tribes — Constitutional commission under Art 338A

NITI AAYOG AND NDC

PYQ Prelims 2013

How the Planning Commission gave way to NITI Aayog (1 Jan 2015), its structure, programmes and indices, and how the NDC (1952) compares.

1950 Planning Commission

Aug 1952 NDC

2014 I-Day address

1 Jan 2015 NITI Aayog

Jan 2016 NDC subsume plan

2018 ADP, SDG Index

NITI AAYOG: BACKGROUND PYQ 2013

Prelims 2013: NDC, Planning Commission, Zonal Councils: which find no mention in the Constitution? Answer (d): all three. NITI also non-constitutional, non-statutory (LK).

NITI Aayog (National Institution for Transforming India)

→ 1 Jan 2015, executive resolution of Union Cabinet; replaces Planning Commission (1950–2014)

→ Premier think-tank: advice, no executive or financial control

→ Aim: cooperative and competitive federalism; evidence-based, performance-driven

→ Governing Council chaired by PM

Why replace

→ Planning Commission: Five-Year Plans; top-down, limited state participation, not adaptable

→ 2014 Independence Day address (PM Modi) called for a new institution
→ 65-year-old Commission scrapped, announced 13 Aug 2014
→ Planning Commission set up March 1950 by executive resolution (Advisory Planning Board 1946, K.C. Neogi); neither constitutional nor statutory
→ Policy flow: one-way Centre to State becomes partnership; bottom-up

Planning Commission	NITI Aayog
1950; Five-Year Plans	1 Jan 2015; think tank with Governing Council
⚡ Top-down; limited state role; allocates resources	Evidence-based, flexible; cooperative and competitive federalism; no control

👥 COMPOSITION

Category	Position
Chairperson	Prime Minister
Vice-Chairperson	PM appoints; Suman Bery since July 2022; rank of Cabinet Minister (LK)
👥 Full-time Members	PM appoints; eminent experts; rank of MoS (LK)
Ex-officio	Four Union Ministers nominated by PM (Finance, Home, Agriculture, Railways etc.)
👥 Part-time Members	Max 2, from universities, research bodies; rotational
Special Invitees	Experts, academicians or CMs nominated by PM
CEO	PM appoints; rank of Secretary to GoI; fixed tenure (LK)
🏛️ Governing Council	CMs of all States, Lt Governors of UTs; chaired by PM
🏛️ Regional Council	Convened by PM; CMs and Lt Governors of the region; chaired by NITI Chairperson or nominee; issues of more than one state or region

Who appoints: PM chairs; appoints VC, full-time members, CEO; nominates four ministers and special invitees. LK: Governing Council also names CMs of UTs with legislatures (Delhi, Puducherry, J&K) and Lt Governors of the others. Secretariat added as needed. ⭐

C V F E P S C – Cats Visit Far Evening Parks, Sleeping Calmly: Chair, Vice-chair, Full-time, Ex-officio, Part-time, Special invitees, CEO.

Handout alert: sub-group topics differ by passage: skill development, centrally sponsored schemes, agriculture reforms (composition) vs Skill Development, Swachh Bharat, Crop Diversification (cooperative federalism). Learn both lists.

⚡ TWO HUBS AND FUNCTIONS

Team India Hub
→ Centre-State interface
→ Coordinates state inputs
→ Knowledge-sharing
→ Aligns state with national goals

Knowledge and Innovation Hub
→ Think-tank arm
→ Research, data analytics, policy design
→ Long-term reforms

T K – Take Knowledge: Team India, Knowledge and Innovation.

⚡ Seven objectives and functions
→ Policy vision: Strategy@75, Vision@2047, SDGs
→ Cooperative and competitive federalism: Governing Council, CM Sub-Groups
→ Evidence-based, decentralised planning (replaces Five-Year Plans)
→ Monitoring and evaluation: ADP, Global Innovation Index, Health Index

→ Knowledge and innovation hub: best practices, tech-driven delivery
→ Public-private and global partnerships
→ Capacity building and technical support

Core function (four)	What
Policy formulation	Medium and long-term frameworks
Coordination	Ministries, states, stakeholders
Monitoring and evaluation	Dashboards, outcome metrics
Capacity building	Expertise, innovation models, reform blueprints

P C M C – Please Call My Cousin: Policy, Coordination, Monitoring, Capacity.

Source conflict (index): objective 4 names Global Innovation Index; initiatives list names India Innovation Index (with Institute for Competitiveness). For NITI's own index use India Innovation Index.

LK extras: 13 objectives; four function heads (policy and programme framework, federalism, M&E, think-tank hub); 25 verticals; seven pillars of effective governance (pro-people, pro-active, participative, empowering women, inclusion of SC, ST, OBC, minorities, equality for youth, transparency via technology); focus moves Outlay to Output to Outcome.

A I V D P G S – All Indians Value Dignity, Participation, Governance, Sustainability: NITI's seven guiding principles (LK): Antyodaya · Inclusion · Village · Demographic dividend · People's participation · Governance · Sustainability.

KEY INITIATIVES

Initiative	Detail
Aspirational Districts (ADP)	2018; 112 most underdeveloped districts; five themes; Champions of Change dashboard; ranked monthly (delta rankings, LK)
Aspirational Blocks (ABP)	2023; 500 blocks; saturation of basic services
💡 Atal Innovation Mission (AIM)	Atal Tinkering Labs (schools), Atal Incubation Centres (universities); 10,000+ labs and centres
SDG India Index	2018; 100+ indicators; ranks states on 17 SDGs; Kerala, Tamil Nadu lead
India Innovation Index	With Institute for Competitiveness; Karnataka, Maharashtra top
👥 Health, Education, Composite indices	School Education Quality Index (SEQI), Health Index, MPI; LK: State Health Index, Export Competitiveness Index
Gati Shakti	PM GatiShakti National Master Plan: unified digital platform, cuts logistics delays
National Energy and Climate Agenda	India Energy Dashboard; National Hydrogen Mission support; carbon neutrality

H E A F I – Happy Elephants Always Find Ice: ADP five themes: Health and nutrition · Education · Agriculture and water resources · Financial inclusion · Infrastructure.

Source conflict (ADP themes): narrative gives five themes; programmes table lists four (health, education, agriculture, infrastructure). Use five.

🗺️ COOPERATIVE VS COMPETITIVE FEDERALISM

Cooperative	→ Governing Council: Gati Shakti, Viksit Bharat 2047, social sector → Sub-Groups of CMs: Skill Development, Swachh Bharat, Crop Diversification → SDG localisation; State Development Indicators (SDIs) → Joint monitoring: ADP 2018, 112 → Reform bridge: GST, agri markets, social spending → FC recommendations aligned with state fiscal performance → DMEO workshops, state reviews → LK: model laws (land leasing, agri marketing); North-East, Himalayan, islands; models DSSS, SATH
Competitive	→ Health Index, SEQI, Composite Water Management Index (annual) → SDG India Index (2018, 17 SDGs) → Ease of Doing Business with DPIIT → India Innovation Index → Aspirational Blocks 2023, 500 → Public dashboards, peer learning → Recognition; more autonomy in centrally sponsored schemes

WISHED – Water index · Innovation index · SDG index · Health index · Education (SEQI) · Doing business: ranking tools. (order rearranged)

Shortcut: Council, groups, goals = cooperative; indices, rankings, rewards = competitive. ✅

Seven roles in governance	What changed
Data-driven policy	Outcome targets via SDG India Index, Health Index, Export Preparedness Index
🗺️ Cooperative federalism	Governing Council, thematic CM sub-groups
Performance-linked governance	Rankings: school education, logistics, water
Innovation and start-ups	AIM 10,000+ labs and centres
Inclusive development	ADP and ABP: health, education, nutrition dashboards
⏳ Long-term vision	Strategy for New India @75; Viksit Bharat 2047 roadmap
🌐 International and climate	SDGs, COP commitments, G20

🏛️ NATIONAL DEVELOPMENT COUNCIL (NDC)

NDC

→ Set up August 1952, executive resolution; apex Centre-State planning forum

→ Worked with Planning Commission; final authority to approve Five-Year Plans, review implementation

👥 Members

→ PM chair
→ All Union Cabinet Ministers
→ CMs of all States and UTs with legislatures
→ Administrators / Lt Governors of UTs without legislatures
→ Planning Commission members (now NITI)
→ Secretary = Secretary of Planning Commission

CHAMP – Cabinet Ministers · Heads of State governments · Administrators / Lt Governors · Members of Planning Commission · Prime Minister. (order rearranged)

💡 Objectives

→ Centre-State cooperation in plans
→ Plan approval: Five-Year and Annual
→ Balanced regional development
→ Review implementation; mid-course corrections
→ People's participation

⚡ Functions

→ Approve national plans
→ Prescribe guidelines
→ Coordinate ministries, states, Planning Commission
→ Monitor, recommend remedies
→ Promote decentralisation
→ Advise on resource allocation
→ Foster cooperative federalism

A P C M P A F – All Planners Can Meet, Plan And Fix: Approve, Prescribe, Coordinate, Monitor, Promote decentralisation, Advise on resources, Foster cooperative federalism.

1952
NDC set up

Jan 2016
Plan to subsume in NITI Governing Council

Now
De jure alive, de facto defunct

NDC status: no resolution passed; never formally abolished; de jure exists, de facto non-functional; role effectively with NITI Governing Council. NDC approved, NITI advises. ⭐

Basis	NDC	NITI Aayog
🏛️ Set up	1952, Cabinet resolution	2015, Cabinet resolution; replaced Planning Commission
👥 Composition	PM, Union Ministers, CMs, Lt Governors, Planning Commission members	PM, CMs, Lt Governors, NITI officials via Governing Council
💡 Objective	Approve Five-Year Plans; coordination	Cooperative and competitive federalism; long-term strategy
⚡ Role	Decision-making, approving	Advisory, coordinating; no approval powers
Planning	Approved Five-Year and Annual Plans, allocation	Abandoned Five-Year Planning; Strategy for New India @75, Viksit Bharat 2047
Linkage	Depended on Planning Commission	Independent; works via sub-groups with ministries, Finance Commission, states

⚡ Federal role	Joint plan approval meetings	Performance incentives, shared reforms
Status	Defunct in practice, not abolished	Active apex body

Source conflict (NDC): comparison table says NITI replaced Planning Commission and NDC; legacy passage says NDC never formally abolished. Also origin "executive resolution" vs "Cabinet resolution" (both executive, not Constitution or Act). Exam: Planning Commission replaced 2015; NDC exists on paper.

PROGRAMMES AT A GLANCE

Programme	Focus
ADP 2018	112 backward districts; real-time monitoring: health, education, agriculture, infrastructure
ABP 2023	500 under-performing blocks
💡 AIM	Atal Tinkering Labs, Atal Incubation Centres
National MPI 2021	Beyond income: health, education, living standards; SDG 1
India@100 / Viksit Bharat 2047	Developed economy by 2047
DPI Framework 2023-24	UPI, Aadhaar, DigiLocker
LiFE 2022	Mission Lifestyle for Environment; sustainable consumption; India's NDCs
Samavesh, SATH-E	Sustainable Action for Transforming Human Capital: state capacity in health, education, nutrition
GatiShakti	Multi-modal infrastructure; cut logistics costs
👭 Women Entrepreneurship Platform (WEP)	Mentorship, funding linkages, capacity building

A A M L D – All Active Ministries Learn Data: ADP 2018, ABP 2023, MPI 2021, LiFE 2022, DPI 2023-24.

LK: attached bodies

→ NILERD: autonomous; formerly IAMR (1962), renamed 2014; Narela campus since 2002

→ DMEO (2015): merged Programme Evaluation Organisation (1952) and Independent Evaluation Office (2010); 15 regional offices closed 2017

📰 *In the news · July 2026 (verify dates)* Investment Friendliness Index 2026: NITI Aayog first index, 28 states and 8 UTs; top: Gujarat, Maharashtra, Tamil Nadu, Goa, Odisha.

Recall drill: cover and answer

NITI Aayog set up when and how?	1 Jan 2015, Union Cabinet executive resolution; replaced Planning Commission (1950–2014)	Is NITI constitutional or statutory?	Neither; NDC and Planning Commission also not in Constitution (Prelims 2013: all three)
NITI composition?	PM chair; VC; full-time members; 4 ex-officio ministers; max 2 part-time; special invitees; CEO (Secretary rank)	Governing Council?	All CMs and Lt Governors, chaired by PM
Two hubs?	Team India Hub; Knowledge and Innovation Hub	ADP vs ABP?	2018, 112 districts vs 2023, 500 blocks
NDC set up and status?	Aug 1952; de jure alive, de facto defunct; no resolution after Jan 2016 plan	NDC vs NITI role?	NDC approved Five-Year Plans; NITI advises, no approval powers
SDG India Index?	2018; 17 SDGs; Kerala, Tamil Nadu lead		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

NITI = National Institution for Transforming India — Government policy think tank that replaced the Planning Commission in 2015

PM = Prime Minister — Head of the Union government

SDG = Sustainable Development Goals — 17 UN goals to be met by 2030

CM = Chief Minister — Head of a State government

DPI = Digital Public Infrastructure — Shared digital systems such as Aadhaar, UPI and DigiLocker

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ST = Scheduled Tribes — Tribal groups listed under Art 342

OBC = Other Backward Classes — Socially and educationally backward groups eligible for reservation (Art 15(4), 16(4))

GST = Goods and Services Tax — Common indirect tax on goods and services; policy by the GST Council (Art 279A)

G20 = Group of Twenty — Forum of major economies

UPI = Unified Payments Interface — Instant mobile payment system run by NPCI

LK = of Cabinet Minister

ADP = Aspirational Districts

ABP = Aspirational Blocks

AIM = Atal Innovation Mission

SEQI = School Education Quality Index

CENTRAL BUREAU OF INVESTIGATION

PYQ None quoted in the handout

CBI: not a constitutional body; wartime SPE to 1963 MHA resolution; Director selection panel and tenure, state consent, Sections 6A and 17A, dual superintendence, reforms.

Current affairs · verify dates

Central Bureau of Investigation (CBI) and State consent

The Bihar Government expanded the CBI's general consent for specified cases involving Central Government employees, Central PSUs and related private persons ... (full: CA pages at the end)

1941 SPE (War and Supply Dept)

1946 DSPE Act

1962–64 Santhanam Committee

1 Apr 1963 MHA Resolution: CBI

2003 CVC Act

2021 Director up to 5 yrs

MANDATE AND EVOLUTION

CBI

→ Premier agency: corruption, economic offences, serious and inter-state crime; not a constitutional body

→ Set up by MHA Resolution, 1 April 1963; works under DSPE Act 1946

→ Under DoPT (Ministry of Personnel, Public Grievances and Pensions); HQ New Delhi

→ Motto: Industry, Impartiality, Integrity

→ Also Interpol's National Central Bureau (NCB) for India

Evolution

→ 1941 SPE by British: corruption in War and Supply Department

→ 1946 DSPE Act: superintendence to Home Department; all departments

→ Santhanam Committee on Prevention of Corruption (1962–64): white-collar crime; central agency

→ 1963: inherits DSPE powers; DSPE merged as a division (LK); later moved to Ministry of Personnel

→ Later: terrorism, fraud, narcotics, cyber, trafficking

Source conflict (status): intro says CBI draws statutory authority from DSPE Act; legal-status row says "not constitutional or statutory by origin". LK: not a statutory body. Use: executive resolution 1963, working under DSPE Act, not constitutional.

In the news · Aug 2026 (verify dates) DSPE Act amendment sought: Home Affairs panel on cyber crime urged amending DSPE Act 1946 so CBI can probe national or inter-state cybercrimes without State consent.

S D S C – Some Detectives Search Clues: SPE 1941, DSPE 1946, Santhanam 1962–64, CBI 1963.

DIRECTOR: APPOINTMENT, TENURE, REMOVAL

Parameter	Provision
Head	Director CBI; rank Director General of Police; Principal Police Officer for DSPE cases
Appointed by	Central Govt on recommendation of 3-member committee, Sec 4A DSPE Act (as amended by Lokpal and Lokayuktas Act 2013)
Committee	PM (chair) · Leader of Opposition in Lok Sabha (or single largest opposition party leader; DSPE Amendment Act 2014) · CJI or SC Judge nominated by CJI
Tenure	2 years, extendable year by year up to 5 (DSPE Amendment Act 2021); annual ACC approval
Extension	Not automatic; beyond 2 yrs needs committee recommendation and public-interest reasons
Removal	Only by Central Govt on same committee's recommendation (Vineet Narain guidelines, Sec 4B); grounds misconduct, incapacity, public interest
Service conditions	As State DGP; not varied to disadvantage
Eligibility	Senior IPS (usually DG rank), impeccable record, anti-corruption or vigilance experience; DoPT Screening Committee
Resignation	In writing to Central Govt; vacancy by same process
Other senior posts	Special, Additional, Joint Directors: prior approval of ACC

P L C – Pick Leaders Carefully: Prime Minister, Leader of Opposition, Chief Justice of India. Tenure 2+1+1+1 = 5.

Source conflicts (Director): (1) table says "IG of Police of DSPE", elsewhere DGP rank: use DGP. (2) Committee statute Sec 4A (Lokpal Act 2013) vs "DSPE (Amendment) Act 2003" in another table: use Sec 4A, 2013. (3) Special and Additional Directors: "DoPT in consultation with ACC" vs "prior approval of ACC". Divisions: five (ACD, EOD, SCD, PCD, Administration) vs six below.

VISION, MISSION, STRUCTURE

Vision: premier agency of international repute; prompt, fair, impartial; transparency, technology, accountability

Mission (updated 2022), five

- → Professionalism: evidence-based, scientific
- → Integrity
- → Public Trust
- → Innovation: digital forensics, analytics, AI
- → Coordination: state police, vigilance, global partners

→ LK mission and nine-point vision differ; use handout

P I P I C – Police Investigate Properly, Innovating Constantly: Professionalism, Integrity, Public trust, Innovation, Coordination.

Position	Appointment / rank	Function
Director	Central Govt on PM+CJI+LoP committee; DGP	Head, administrative and operational control
Special / Additional Directors	DoPT with ACC; ADGP/DGP rank	Major divisions, zonal offices
Joint Directors	Senior IPS; IG rank	Specialised branches
DIGs	IPS, IRS, IA&AS; DIG rank	Investigation units
SPs	SP rank	FIRs, supervise cases
Inspectors, SIs, experts	UPSC or deputation	Searches, interrogation, forensics

Division	Mandate
Anti-Corruption (ACD)	PC Act 1988; Central depts, PSUs, banks; under CVC
Economic Offences (EOD)	Bank scams, money laundering, corporate crime; with ED, SFIO, RBI; NPA frauds, shell companies

Special Crimes (SCD)	Terror, organised crime, cyber, trafficking, homicide; SC/HC transfers; eg Aarushi-Talwar, Satyam, Vyapam
Policy and Coordination (PCD)	Policy, training, budget; Interpol NCB; extradition
Directorate of Prosecution (DoP)	Special CBI Courts; Director appointed by Centre in consultation with CVC
Technical and Forensic	Cyber-forensics, fingerprints, central forensic database; CFSL, NIC

ASPECT – Anti-corruption · Special crimes · Prosecution · Economic offences · Coordination (policy) · Technical and forensic. (order rearranged)

⚡ JURISDICTION AND POWERS

Scope

→ Inter-State or international implications
→ National importance
→ Central employees and PSUs
→ Cases notified under DSPE Act; PC Act 1988; economic offences, bank fraud, cyber, smuggling; referred by Centre, SC or HCs

⚖️ Three routes to a case

→ State request to Centre
→ Judicial direction (SC or HC)
→ Central notification, Sec 5 DSPE Act

PASS – Prosecution (Special CBI Courts) · Arrest · Search and seizure · Summoning and interrogation. (order rearranged)

🗺️ Territorial limits

→ UTs: direct
→ States: consent under Sec 6 DSPE Act (outside railway areas)
→ Consent withdrawn: cannot register new cases; can continue earlier ones (CBI v. State of Rajasthan, 2020)

PRIOR PERMISSION: 6A AND 17A

	Sec 6A	Sec 17A
Source	DSPE Act via CVC Act 2003	PC Amendment Act 2018
Covers	Joint Secretary and above	Any public servant, acts in official duty
Approval	Prior sanction (block frivolous probes)	Prior approval of appropriate government
Status	Struck down 2014, Dr Subramanian Swamy v Director CBI: violates Art 14 (rank-based)	In force

No approval needed: accused caught red-handed taking a bribe; cases referred by courts or constitutional authorities (CVC, Lokpal). ✅

🗺️ CBI VS STATES

Consent

→ Law and order = State List (List II); consent = Sec 6
→ General consent: all cases in State
→ Specific consent: case by case after withdrawal
→ Withdrawn by (as of 2024): West Bengal, Kerala, Telangana, Punjab, Mizoram, Chhattisgarh
→ State of West Bengal v. Committee for Protection of Democratic Rights (West Bengal v. CPDR, 2010): SC and HCs can direct CBI probe under Arts 32 and 226 without State consent

In the news · Sept 2026 (verify dates) Bihar consent: Bihar Government expanded CBI's general consent for specified cases involving Central Government employees, Central PSUs and related private parties (source text cut off).

V C S R – Vigilant Courts Shield Reputations: Vineet Narain v. Union of India 1998 · State of West Bengal v CPDR 2010 · Dr. Subramanian Swamy v. Director, CBI 2014 · CBI v. State of Rajasthan 2020.

W K T P M C – We Keep Thieves Properly Monitored, Closely: West Bengal, Kerala, Telangana, Punjab, Mizoram, Chhattisgarh.

Coordination

→ Joint Task Forces (inter-state crimes, PSU corruption)
→ MHA–CBI–State DGP meetings
→ Digital complaint and data-sharing portals

CBI vs others (LK)

→ DSPE takes Central affairs or employees, Central PSU and statutory body staff; State police take State affairs
→ Murder, kidnapping, rape: on State reference or SC/HC direction
→ NIA (after 2008 Mumbai attack): terror attacks and funding; CBI: corruption, economic, organised crime other than terror

SUPERINTENDENCE

Tier	Authority	Role
Administrative	DoPT (under PMO charge)	Administrative control
⚡ Functional	CVC	Corruption cases
Judicial	SC and HCs	Monitor or direct sensitive probes

Dual superintendence (CVC Act 2003; Vineet Narain 1998): PC Act 1988 cases: CVC; all others: Central Government. Prosecution in Special CBI Courts supervised by Dept of Personnel and CVC. ⭐

A F J – All File Justly: Administrative (DoPT), Functional (CVC), Judicial (courts).

⚡ FUNCTIONS

Function	Covers
Anti-corruption	PC Act 1988: Central staff, PSUs, MPs, Ministers, senior officials; procurement, tender, defence
Economic and financial	Bank scams, securities, cyber, money laundering; referred by RBI, MoF, ED, SFIO, SEBI
Special crimes	Terror, organised crime, trafficking, high-profile murder; eg Nirbhaya, 2G Spectrum, Satyam
⚖️ Court-monitored	Where State agencies' impartiality questioned; eg Vyapam, Saradha chit fund

CASE – Court-monitored · Anti-corruption · Special crimes · Economic crimes. (order rearranged)

⚡ Other roles

→ Vigilance coordination: advises CVC, ministries; corruption-risk mapping
→ CBI Academy, Ghaziabad: trains CBI and State police
→ Inputs to PC (Amendment) Act 2018
→ Cooperates with Interpol (NCB), State Police, IT, Customs, DRI, Lokpal, CVC
→ International: extradition, MLATs, red-corner notices; UNODC, Interpol General Assembly, OECD Working Group on Bribery
→ Director of Prosecution coordinates with Law Ministry's Directorate of Public Prosecution
→ LK adds: fiscal and economic laws (customs, excise, income tax, forex), coordination of anti-corruption agencies, public-importance cases on State request, crime statistics

📜 Lokpal Act 2013 changes

→ Directorate of Prosecution for Lokpal cases (Director on CVC recommendation)

→ SP rank and above: committee of Central Vigilance Commissioner, Vigilance Commissioners, Home Secretary, DoPT Secretary

RECENT REFORMS

Year	Development
2021	DSPE (Amendment) Act: Director up to 5 yrs, three one-year extensions, annual ACC approval
2021	Lokpal coordination: CBI investigates Group A and B Central officers referred by Lokpal; time-bound reporting to CVC and Lokpal
2022	CBI database linked to NAFIS with NCRB
2022	ICG: CBI, ED, SFIO, NIA, DRI
2022	Revised Manual of Investigation (first since 2005); e-FIR, blockchain, witness protection
2022	Mission statement updated
2023	CFCC under MHA; AI facial and voice analysis
2023	Project CHAKRAVYUH: Red Corner Notices, digital evidence for extradition
2023	AI and Data Analytics Division
NEW 2024	MoUs with RBI, SEBI, ED
NEW 2025	Online Case Status Portal; Ethics and Integrity Unit

T L N I M A F P — The Law Never Ignores Modern Analytics, Forensics, Portals: Tenure 2021, Lokpal 2021, NAFIS 2022, ICG 2022, Manual 2022, AI 2023, CFCC 2023, Portal 2025.

Recall drill: cover and answer

CBI set up how and when?	MHA Resolution 1 Apr 1963 after Santhanam Committee; DSPE Act 1946 base; not constitutional	Director selection panel?	PM, Leader of Opposition in LS, CJI or nominee (Sec 4A)
Director tenure?	2 years, extendable to 5 (DSPE Amendment Act 2021)	Sec 6A fate?	Struck down 2014, Subramanian Swamy, Art 14
Sec 17A?	2018: prior approval of appropriate govt for inquiry into official acts; not if caught red-handed	State consent section?	Sec 6; courts can order probe under Arts 32, 226 (West Bengal v CPDR 2010)
Dual superintendence?	CVC for PC Act cases, Centre for others (Vineet Narain 1998, CVC Act 2003)	States that withdrew consent (2024)?	West Bengal, Kerala, Telangana, Punjab, Mizoram, Chhattisgarh
Rajasthan 2020?	Existing cases continue after consent withdrawn		

abc Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CBI = Central Bureau of Investigation — Premier central investigating agency; derives powers from the DSPE Act, 1946

DSPE = Delhi Special Police Establishment — Legal base of the CBI (DSPE Act, 1946)

CVC = Central Vigilance Commission — Apex vigilance body against corruption in central services

DoPT = Department of Personnel and Training — Nodal department for civil service policy

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

MHA = Ministry of Home Affairs — Union ministry for internal security, Centre-State matters and disaster management

CJI = Chief Justice of India — Head of the Supreme Court

AI = Artificial Intelligence — Machines performing tasks that need human-like intelligence

ED = Enforcement Directorate — Agency that enforces PMLA and FEMA

NCB = Narcotics Control Bureau — Central agency against drug trafficking

PM = Prime Minister — Head of the Union government

IPS = Indian Police Service — All India Service for police officers

RBI = Reserve Bank of India — Central bank; regulates banks and conducts monetary policy

HC = High Court — State-level constitutional court (Art 214)

PSU = Public Sector Undertaking — Company owned mainly by the government

NIA = National Investigation Agency — Central agency for terror and other scheduled offences (NIA Act, 2008)

CENTRAL VIGILANCE COMMISSION

PYQ None quoted in the handout

✎ CVC: 1964 resolution to CVC Act 2003; composition, 4 yrs or 65, removal, functions, jurisdiction, link with CBI and Lokpal, digital initiatives and the Whistle Blowers Act 2014.

1962 Santhanam Committee

1964 Govt Resolution

1998 Vineet Narain

2003 CVC Act (in force 2004)

2013-14 Lokpal Act; tenure 4 yrs

2014 Whistle Blowers Act

ORIGIN AND STATUS

CVC: apex vigilance institution; independent statutory body; watchdog of Central Govt

→ 1964 by Govt Resolution on Santhanam Committee (non-statutory, limited)
→ Vineet Narain v. Union of India (1998): directed statutory status
→ CVC Act 2003 (in force 2004)
→ Under Ministry of Personnel, Public Grievances and Pensions
→ 2013-14: Lokpal and Lokayuktas Act framework; 2020 to 2025 e-vigilance (ten initiatives, below)

Source conflict (Vineet Narain year): 1998 in the evolution table, 1997 in the CBI-relationship table; handout does not reconcile. Use the year in the question's option; if forced, 1998. Also Whistle Blowers Act year first 2011, later 2014.

S R V A – Smart Rules Vanquish Abuse: Santhanam, Resolution 1964, Vineet Narain, Act 2003.

COMPOSITION, APPOINTMENT, TENURE, REMOVAL

Parameter	Details
Composition	Central Vigilance Commissioner (chair) + not more than two Vigilance Commissioners; total max 3
Appointed by	President, warrant under hand and seal
Committee	PM (chair), Home Minister, Leader of Opposition in LS (if none recognised: single largest opposition party leader)
Eligibility	Impeccable integrity, eminence in public life; administration, vigilance, law, finance, anti-corruption; not an MP, legislator, or holder of office of profit
Tenure	4 years or age 65, whichever earlier (earlier 5 yrs; changed by Lokpal and Lokayuktas Act 2013)
Reappointment	Not eligible; a VC may become Commissioner within same four-year limit; no later employment under Centre or State
Service conditions	CVC = UPSC Chairperson; VCs = UPSC Members; not varied to disadvantage
Removal	President, on specified grounds

P H L – Police Have Lists: PM, Home Minister, LoP. Count: 1 + 2 = 3; 4 and 65.

CVC and VCs	CBI Director
PM, Home Minister, LoP; appointed by President	PM, LoP, CJI (post-Lokpal Act 2013)

Removal (Sec 6, CVC Act 2003)

→ Functions from Sec 8 and Sec 11
→ (a) Insolvency
→ (b) Conviction, moral turpitude
→ (c) Paid employment during office
→ (d) Mental or physical infirmity
→ (e) Financial or other interest affecting duties

→ (f) Proved misbehaviour or incapacity: only after Supreme Court inquiry
→ Misbehaviour deemed if interested in Central Govt contract or its profits (other than as a company member)

I C P M F P – I Can't Pay My Fine Promptly: Insolvency, Conviction, Paid employment, Mental/physical infirmity, Financial interest, Proved misbehaviour.

Grounds (a) to (e): President removes directly. Only (f) needs prior SC inquiry. Independence: statute 2003, bipartisan committee, SC-inquiry removal, UPSC-equal pay, budget charged on Consolidated Fund.

⚡ FUNCTIONS AND POWERS (SECS 8, 11)

SAPICF – Sharp Auditors Prevent Illegal Cash Flow: Supervisory, Advisory, Preventive, Investigative and quasi-judicial, Coordinating, Financial and administrative.

Supervisory
→ Superintendence over CBI in PC Act 1988 cases
→ Reviews CBI, PSU, central bodies' investigations, prosecutions; pending cases, disciplinary proceedings
→ Oversees CVOs in each Ministry, Department, PSU

COP – CBI superintendence · Oversees CVOs · Progress reviewed. (order rearranged)

Advisory
→ Disciplinary advice (persuasive, normally accepted); Govt disagreeing must record reasons in writing
→ Vigilance manuals, policy
→ Consulted on appointment, transfer, posting of CVOs and vigilance staff

📚 Preventive and educational
→ Vigilance Awareness Week, Preventive Vigilance Frameworks
→ Preventive vigilance audits
→ Training with IIPA
→ CVC Portal for citizens

Investigative, quasi-judicial
→ Inquire or cause inquiry into corruption, favouritism, abuse
→ Suo motu if prima facie evidence
→ Civil-court powers: summon, examine on oath, requisition public documents; proceedings judicial in character
→ Recommends departmental or criminal action

Coordinating and monitoring
→ Assists Lokpal (Lokpal Act 2013): preliminary inquiries on Group A and B
→ Link: CBI, CAG, vigilance units
→ Annual report to President, laid before both Houses

Financial and administrative
→ Budget charged on Consolidated Fund
→ Appoints, transfers own staff; sets procedure
→ Can delegate functions

Added functions (extra): inquire on Central Govt reference into PC Act offences by its employees; complaints against All-India Services and Group A officers; give directions to DSPE on superintendence; review pending sanction for prosecution; consulted on vigilance and discipline rules. CVC is designated agency under PIDPI Resolution 2004 and the only agency to act against motivated or vexatious complainants.

S I T — Secretariat · Inquiry (Commissioners for Departmental Inquiries) · Technical (Chief Technical Examiners' Wing: engineers, technical audit of construction works; helps CBI; advises CVC and CVOs). Organs of CVC (LK).

⚡ JURISDICTION

Category	Scope
1. Central Govt Departments	All Ministries, Departments, attached and subordinate offices
2. CPSEs	Central equity over 51%: banks, insurance, ONGC, BHEL, LIC
3. Autonomous and statutory bodies	Substantially financed or controlled: AIIMS, NHAI, UIDAI
4. Public sector banks and financial institutions	Via nominated CVOs
5. Group A Central officers	All-India and Central Civil Services
📜 6. PC Act 1988 matters	All corruption cases of Central officials, incl. CBI-investigated

D C A B G P — Don't Cut Any Big Government Papers: Departments, CPSEs, Autonomous bodies, Banks, Group A, PC Act.

LK ranks (extra): All-India Services members and Group A; Scale V and above in public sector banks; Grade D and above in RBI, NABARD, SIDBI; E-8 and above (Schedule A and B PSUs) or E-7 and above (Schedule C and D); Managers and above in general insurance; Senior Divisional Managers and above in LIC. Use handout categories for class. ⭐

RELATIONS WITH OTHER AGENCIES

With	Details
CBI	Superintends in PC Act 1988 cases (Vineet Narain, codified CVC Act 2003); reviews corruption cases monthly; CVO data shared; cannot direct CBI to initiate prosecution, only recommend investigations and monitor
Lokpal	Lokpal forwards Group A, B complaints; CVC directs vigilance authority or CBI; reports back within stipulated time; Lokpal investigative and prosecutorial, CVC preventive
CVOs	Nodal point in each Ministry, Department, PSU, Bank; appointed in consultation with CVC; preliminary inquiries; report quarterly
DVUs	Case registers, monitor disciplinary proceedings, apply preventive measures
Review meetings	CVC convenes with CVOs on pendency, quality, compliance

C L V — Come, Let's Verify: CBI (superintend), Lokpal (assist), Vigilance officers (CVOs, DVUs).

Handout alert: CVC and Lokpal Inquiry Wing both deal with Group A and B; CVC assists in preliminary inquiries and reports back, Lokpal sits above on prosecution. CVC's own listed jurisdiction names Group A only. CBI Director panel differs (PM, LoP, CJI) from CVC panel (PM, Home Minister, LoP).

NEW RECENT INITIATIVES (2020-25): TEN

No.	Initiative	What
1	CMS Complaint Management System Portal	Online complaints; integrates CVC, CBI, CVO data; real-time tracking
2	VCMS Vigilance Case Management System	Tracks every stage; analytics
3	Online APR (Annual Property Return)	Property declarations; detects disproportionate assets
4	e-Vigilance Clearance	Paperless clearances: promotions, foreign postings, deputations
5	Integrity Index	With IIM-Ahmedabad; ranks 500+ public organisations
6	AIVA AI-based Vigilance Analytics Unit	2023; predictive analytics on procurement and finance
7	PVIM Preventive Vigilance Inspection Model	Audit tool: procurement, projects, fund use
8	PIDPI Portal	Digital anonymity, encryption for informers
9	Vigilance Awareness Week, Integrity Pledge Portal	1.6 crore+ participants 2024; theme "Say No to Corruption"
10	Integration with GeM	Audit access to procurement data; vendor collusion, overpricing

C V A E I A P W V G — Cats Visit All Eager Inspectors, Ask Police Who Visited Gardens. Grouping: Complain (CMS, PIDPI) · Track (VCMS, e-clearance) · Declare (APR) · Predict (AIVA, PVIM, GeM) · Rank and campaign (Integrity Index, Week).

WHISTLE BLOWERS PROTECTION ACT 2014

Objectives (three)

→ Protection: identity and safety
→ Encouragement of public interest disclosures
→ Institutional mechanism for complaints, incl. against ministers

Competent authority and coverage

→ CVC is competent authority (Govt may notify another)
→ All public servants: Central and State govt, PSUs, aided bodies; SPG excluded
→ National security or Official Secrets Act disclosures may be exempt

SAFE — Supporting documents · Anonymous or false identity: no action · Faith: good-faith declaration, substantially true · Electronic or written mode. (order rearranged)

Protection and penalty

→ Identity confidential
→ No punitive or disciplinary action against discloser
→ False or frivolous disclosure: up to 2 years and fine up to Rs 30,000

C S 2 3 — CVC shields · SPG excluded · 2 years for lies · Rs 30,000 fine.

Handout alert: Act ensures anonymity and confidentiality, yet no action on anonymous complaints. Read together: discloser gives verifiable identity; authority keeps it confidential. Integrates with CVC, Lokpal, CBI as integrity architecture.

Recall drill: cover and answer

CVC set up and made statutory?	1964 Govt Resolution (Santhanam); CVC Act 2003, in force 2004	Composition?	Central Vigilance Commissioner + max two Vigilance Commissioners = 3
Appointment committee?	PM, Home Minister, Leader of Opposition (LS)	Tenure?	4 years or 65, earlier; reappointment barred; earlier 5 yrs
Pay equals?	UPSC Chairperson (CVC) and Members (VCs)	Removal safeguard?	Proved misbehaviour or incapacity needs SC inquiry; other five grounds directly
Limit on CVC over CBI?	Superintends PC Act cases but cannot direct prosecution	Whistle Blowers Act 2014?	CVC competent authority; SPG excluded; false complaint 2 yrs and Rs 30,000
Integrity Index?	With IIM-Ahmedabad; ranks 500+ organisations	CPSE threshold?	Central equity over 51%

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CVC = Central Vigilance Commission — Apex vigilance body against corruption in central services

CBI = Central Bureau of Investigation — Premier central investigating agency; derives powers from the DSPE Act, 1946

PM = Prime Minister — Head of the Union government

UPSC = Union Public Service Commission — Constitutional body (Art 315) that recruits for the Union services

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

PSU = Public Sector Undertaking — Company owned mainly by the government

CJI = Chief Justice of India — Head of the Supreme Court

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

DSPE = Delhi Special Police Establishment — Legal base of the CBI (DSPE Act, 1946)

RBI = Reserve Bank of India — Central bank; regulates banks and conducts monetary policy

NABARD = National Bank for Agriculture and Rural Development — Apex development bank for agriculture and rural credit

AI = Artificial Intelligence — Machines performing tasks that need human-like intelligence

LK = Organs of CVC

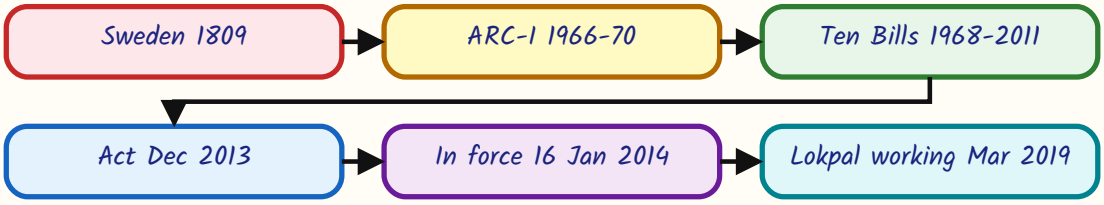
LS = Leader of Opposition

⚖ LOKPAL AND LOKAYUKTA ⚖

PYQ None quoted (handout only; facts chapter)

✎ *India's anti-corruption ombudsman: Lokpal at the Centre, Lokayuktas in States; learn composition, selection committee, powers, timelines (90 days, 6 months, 60 days, 1 year) and State records.*

At a glance: the road to the Lokpal



🌐 1 · OMBUDSMAN: GLOBAL SCENE

Ombudsman = "representative of the people" (Swedish ombud): independent authority probing maladministration and corruption of officials. Reports to higher authority; cannot reverse a decision or punish. 💡

Country / year	What it did
Sweden 1809	world first; parliamentary commissioner for executive accountability
🆕 New Zealand 1962	first in the Commonwealth; administrative fairness
UK 1967	Parliamentary Commissioner for Administration
Others	Canada, Australia, Denmark adapted it; Finland 1919, Denmark 1955, Norway 1962

S-N-U — Sweden 1809 · New Zealand 1962 · UK 1967: "Sweet New Uncles."

Swedish Ombudsman matters: abuse of discretion, maladministration, administrative corruption, nepotism, discourtesy. Other devices: Administrative Courts (France), Procurator System (USSR, China). ⭐

💡 2 · EVOLUTION AND OBJECTIVES

1966-70 ARC-I: Lokpal + Lokayuktas

1968-2011 Ten Bills fail

2011 Jan Lokpal movement (IAC, Anna Hazare)

Dec 2013 Act passed

16 Jan 2014 operational

ARC-I (1966-70): Lokpal for complaints against ministers and secretaries (Centre and States), Lokayukta for other higher officials; judiciary kept out; Lokpal appointed by President after consulting CJI, Lok Sabha Speaker, Rajya Sabha Chairman. ⭐

Ten failed Bills: 1968, 1971, 1977, 1985, 1989, 1996, 1998, 2001, 2005, 2011 (first four 68-71-77-85; then 89, 96, 98; last three 2001, 2005, 2011). ⭐

Source conflict, Bills: Lakshmikanth lists 1968, 71, 77, 85, 89, 96, 98, 2001 and two in 2011 (Aug, Dec); no 2005 Bill. Handout has 2005. Use the handout; both agree on ten attempts, 2011 enacted.

Source conflict, operational date: Evolution says **16 Jan 2014**; Challenges says Lokpal operationalised **March 2019**. Read 16 Jan 2014 = Act commencement, Mar 2019 = Lokpal working start; quote the date the question gives.

In the news · July 2026 (verify dates) **Timeline comparison:** magazine contrasts the exam Act's trial timelines, which carry no consequence if missed, with the Lokpal Act, 2013 which needs written reasons for any extension.

Six objectives

- → Independent anti-corruption **institutions** (Lokpal, Lokayuktas)
- → Institutional **accountability**: executive, bureaucrats, public servants
- → Speedy, fair, time-bound probe
- → Protect **whistleblowers**, anonymity
- → Public trust: **Art 14**, **Art 311**
- → Harmonise with CVC, CBI, state vigilance

I-A-S-W-P-H — Institutions, Accountability, Speedy probe, Whistleblowers, Public trust, Harmonise with CVC and CBI: "I Always Seek Wise Public Help."

3 · COMPOSITION, APPOINTMENT, REMOVAL

Aspect	Lokpal (Act, 2013)
Structure	**Chairperson + up to 8 Members**
Judicial	**at least 50%** of total strength
Reserved	**50%** for SC, ST, OBC, minorities, women
Eligibility	eminence in public life: law, public administration, vigilance, finance, anti-corruption policy
Disqualified	sitting MP/MLA, office of profit, link to any political party
Appointed by	**President**
Selection Committee	**PM** (head) + **Speaker** + **LoP (Lok Sabha)** + **CJI or SC Judge** nominated by him + **eminent jurist** nominated by President on their recommendation
Search Committee	formed by Selection Committee; at least 50% SC/ST/OBC/minorities/women
Transparency	proceedings of both committees recorded; shortlisted names published
Tenure	**5 years or age 70**, earlier one; no reappointment
Pay	Chairperson = CJI; Members = SC Judge
Resignation	written letter to President

SCOPE — Speaker · CJI (or SC Judge nominated) · Opposition leader · PM (Chair) · Eminent jurist. (Order rearranged; PM + four.)

P-S-L-C-J — "Put Some Law Courts' Judges." Two 50s: 50% judicial, 50% reserved (also Search Committee). 5 years or 70; PM-led five-member panel.

Six grounds of removal

- → Insolvency
- → Conviction (moral turpitude)
- → Paid job outside duties
- → Infirmity, body or mind
- → Conflict of interest
- → Proved misbehaviour or incapacity (SC inquiry)

Removal route

President refers → Supreme Court reports → President removes

I-C-P-I-C-P — "I Can Pay If Court Permits."

⚡ 4 · JURISDICTION AND POWERS

Covered

→ PM (strict limits), Union Ministers, MPs, Group A, B, C, D officers
→ PSUs, statutory bodies, societies, trusts funded fully or partly by Centre
→ NGOs: foreign contribution above Rs 10 lakh or govt grants above Rs 1 crore
→ Complainant: any citizen (corruption, abuse of office, disproportionate assets); whistleblower protection

PM: only national security, foreign relations, public order, and only with full Bench approval. No inquiry for official acts in good faith or Council of Ministers' decisions.

Not covered

→ MP speech or vote in Parliament (Art 105)
→ matters pending before a court
→ matters under exclusive State Lokayukta jurisdiction
→ PM outside the three matters

SUMMON — Societies/trusts/PSUs · Union Ministers · MPs · Most senior: PM · Officers A–D · NGOs. (Order rearranged.)

Power	Meaning
Preliminary inquiry	Inquiry Wing; Group A and B cases may go to CVC
Investigation	direct CBI under Prevention of Corruption Act, 1988
Supervision	supervises CBI in referred cases; periodic progress reports; superintendence over any agency
Search and seizure	raids, documents, witnesses; civil court powers
Attachment	provisional attachment under PMLA, 2002; even while prosecution pending
Prosecution sanction	grant or deny within 60 days
Disciplinary action	recommend against guilty officials
⚡ Civil court powers	CPC, 1908: summon, discovery, affidavits, requisition records, commissions

P-I-S-S-A-P-D-C — "Police Inspect Suspects, Seize Assets, Prosecute, Discipline, Court-powered."

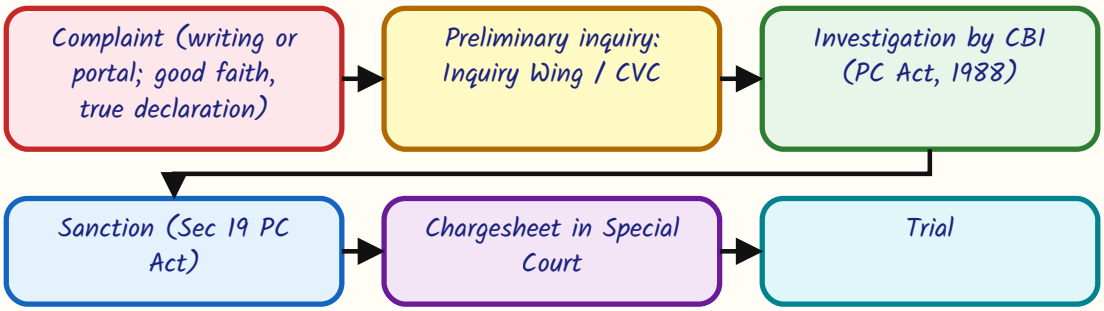
CARDS — Commissions · Affidavits · Requisition public records · Discovery and production · Summoning witnesses. (Five civil court powers; rearranged.)

PC Act punishment: maximum raised 7 to 10 years; minimum 3 years under Secs 7, 8, 9, 12; 2 years under Sec 15 (attempt). Funding: fully/partly Govt-financed bodies covered; merely aided excluded; foreign donations above Rs 10 lakh a year (FCRA) bring entities in. ⭐

CVC referral: Group A, B: CVC sends preliminary report back to Lokpal. Groups C, D: CVC proceeds under its own Act, subject to Lokpal reporting and review. ⭐

5 · PROCEDURE AND TIMELINES

Complaint to conviction



Stage	Time
Preliminary inquiry	90 days, up to 6 months (written reasons)
CBI investigation	6 months, plus 6 with justification
Prosecution sanction	60 days
⚖️ Special Court trial	1 year, up to 2 for complex cases

C-P-I-P — Complaints Prompt Inquiry, Prosecution: Complaint (good faith, identity, evidence) · Preliminary inquiry 90 days to 6 months · Investigation 6 months plus 6 · Prosecution: sanction 60 days, trial 1 year to 2.

I-C-S-T — "I Can See Time": Inquiry 90d, CBI 6m, Sanction 60d, Trial 1y.

Frivolous or motivated complaint: Lokpal may dismiss it and impose costs on the complainant. Accused gets a fair chance to respond. ⭐

Source conflict, anonymity: procedure says anonymous complaints are not entertained; another section says the portal (PIDPI Rules, 2022) takes anonymous complaints with end-to-end encryption. Use: verifiable identity needed; encryption = whistleblower safeguard.

Hearing and decisions

- → Quasi-judicial; benches of Chairperson and Members
- → hearings public unless confidentiality needed; natural justice
- → summon witnesses, records, statements on oath
- → orders binding on public authorities
- → Annual report to President, laid before both Houses; special reports possible

🛡️ Safeguards

- → Whistle Blowers Protection Act, 2014: informant identity hidden
- → confidential until prosecution sanctioned
- → digital workflow post-2020: e-filing, dashboards, video hearings
- → written reasons; officers liable for deliberate delay

👥 6 · STRUCTURE

Part	Role
1 Chairperson	heads; allocates cases; rank = CJI
👥 2 Members	up to 8; at least 50% judicial; oversee domains
3 Inquiry Wing	Director of Inquiry; preliminary probe
4 Prosecution Wing	Director of Prosecution; chargesheets in Special Courts
5 Secretariat	admin support; coordinates Lokpal, CVC, CBI
6 Technical and Forensic Cell	post-2020; digital forensics, data analytics, blockchain tracking
7 Legal and Research Division	advisories, comparative research, liaison with legislative committees

C-M-I-P-S-T-L – "Cool Minds Investigate, Prosecute, Secure Truth, Legally."

Linkages

→ CBI: main investigator; Lokpal supervises
→ CVC: inquiry for Group A, B
→ CAG: audit insights
→ IT and ED: trace assets, freeze, confiscate (PMLA, 2002)
→ Whistleblower channel: PIDPI Rules, 2022

Autonomy

→ independent of any ministry; DoPT for staff and budget
→ Charged on Consolidated Fund of India (like CAG, EC)
→ frames Rules (Presidential assent)
→ appoints own Directors of Inquiry, Prosecution; officers from IPS, IRS, IA&AS

⚡ 7 · ROLE, CHALLENGES, REFORMS

⚡ Roles

→ independent oversight, incl. PM (safeguards)
→ integration with CBI, CVC, ED
→ whistleblower protection (2014 Act)
→ systemic vigilance: procurement, appointments, services
→ public confidence at highest level

Challenge group	Problems
(a) Institutional	Secretariat and Inquiry Wing delay; no own investigators, relies on CBI/CVC; weak follow-up
(b) Legal	PM hedged; judiciary and state-level officials excluded; NGO/contractor enforcement unclear
(c) Coordination	overlap with CVC and Lokayuktas; no central vigilance database
(d) Resources	manpower, budget; weak digital forensics, financial intelligence, international cooperation
(e) Political	hesitation in referring sensitive cases; non-cooperation on records

I-L-C-R-P – "I Like Clean Records, Please."

Mar 2019 8,000+ complaints, few reach investigation

2022 Digital Case Management System

2023 joint protocol with CVC, CBI

2024 first prosecution sanctions

⚠ Drawbacks (Lakshmikanth, seven)

→ no suo motu action
→ stress on form of complaint
→ heavy punishment for false complaints may deter
→ no anonymous complaints
→ legal help for accused
→ 7-year limitation period
→ non-transparent PM procedure.

🔧 8 · WAY FORWARD

Reform	Meaning
Institutional consolidation	own investigation and prosecution wings; less CBI dependence
⚡ Wider jurisdiction	judiciary, lower bureaucracy, with safeguards
Stronger coordination	National Anti-Corruption Coordination Framework
Digital vigilance	expand 2023 e-Lokpal Portal, AI analytics
Citizen accountability	public dashboards
Financial autonomy	independent budget; technical experts
Awareness	campaigns, rural areas
🏛️ Parliamentary oversight	biennial joint committee review

Shortcut: own people, own money, wider reach; then data and public eyes. ✅

📝 9-10 · LOKAYUKTAS: SET-UP AND WORKING

State counterpart; idea from ARC, 1966; 2013 Act told every State to set one up within one year; structure and powers vary by State law. 💡

Aspect	State Lokayukta
👥 Composition	Lokayukta + up to 3 Deputy Lokayuktas (State law)
🗳️ Appointed by	Governor
🗳️ Selection Committee	CM (Chair), Speaker (Assembly), LoP, High Court Chief Justice or nominee
🎓 Qualification	retired HC Chief Justice or Judge; Deputies: integrity, administration/law experience
⏳ Tenure	5 years or 70 (varies)
🚪 Removal	misbehaviour or incapacity; like HC judges: judicial inquiry + Governor

C-S-L-H – "Can State Look Honest?" CM, Speaker, LoP, HC CJ.

	Lokpal	Lokayukta
Level	Centre	State
🗳️ Appointer	President	Governor
🗳️ Committee	PM-led five	CM-led
👥 Members	up to 8	up to 3 Deputies
⏳ Tenure	5 yrs or 70	5 yrs or 70 (varies)
Orders	binding	recommendatory
Reports to	President	Governor

Source conflicts, Lakshmikanth: tenure in most States = 5 years or 65 (handout: 70; follow handout, know States vary). Odisha: LK says Act passed 1970 (Maharashtra first Lokayukta 1971); handout gives Odisha 2019. Use handout.

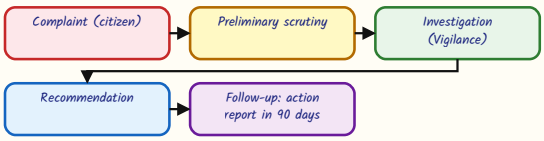
⚡ Jurisdiction (State law)

→ CM: covered in Karnataka, Kerala; excluded in Maharashtra
→ MLAs, MLCs in most States
→ bureaucrats, state PSUs, municipal bodies, universities, cooperatives
→ Panchayats, municipalities after 73rd-74th Amendments
→ Excluded: HC judges, State PSC members, subordinate judiciary

⚡ Powers

→ inquire: corruption, abuse, maladministration
→ civil court powers: summon, documents
→ preliminary inquiry via vigilance / ACB
→ recommend prosecution or departmental action
→ advise reforms; monitor ethical codes
→ annual, special reports to Governor, laid before Legislature
→ whistleblower protection (Karnataka, Kerala)

How a Lokayukta works



LK facts: some States have Lokayukta and Upalokayukta, others only Lokayukta; recommendations advisory; some cover grievances as well as allegations. ⭐

11 · PROMINENT LOKAYUKTAS

State	Note
Karnataka 1986	early and effective; illegal mining, public works (Justice Santosh Hegde); suo-moto
Maharashtra 1971	ministers and govt servants, CM excluded; urban development irregularities
Kerala 1999	ministerial misconduct rulings; "maladministration" widened to ethical lapses
Madhya Pradesh	digital complaints, special investigation units; disproportionate assets of bureaucrats
Odisha 2019	under 2013 Act; newest; online complaints, time-bound disposal

K-M-K-M-O — "Kind Men Keep Much Order." Karnataka mining · Maharashtra CM excluded · Kerala ethics · MP digital · Odisha newest.

⚠️ 12 · LOKAYUKTA CHALLENGES AND REFORMS

Challenge	Detail
Uniformity	State laws differ
Enforcement	recommendatory; Govt may reject
Political resistance	appointment delays, non-cooperation
Resources	staff, investigation, digital
Overlap	State Vigilance Commissions, ACBs, CVC
Low awareness	fear of retaliation

U-E-P-R-O-L — "Under Every Politician's Rule, Ombudsmen Languish."

🔧 Reforms

→ Uniform Model Law: National Model Lokayukta Framework
→ binding power to prosecute or recommend discipline
→ expenses charged to State Consolidated Fund
→ National Vigilance Database (Lokayuktas, Lokpal, CVC, states)
→ awareness; online complaints in vernacular languages
→ annual review by Legislature or independent committee

Handout alert: challenges list says Act excludes judiciary and state-level officials; Lokpal cannot touch matters under exclusive Lokayukta jurisdiction; yet 2013 Act directs States to set up Lokayuktas, powers by State law. Use: Lokpal = Centre, Lokayukta = State, State law decides powers.

Recall drill: cover and answer

Lokpal strength?	Chairperson + up to 8 Members; at least 50% judicial; 50% SC/ST/OBC/ minorities/women	Selection Committee?	PM, Speaker, LoP (LS), CJI or SC Judge, eminent jurist (SCOPE)
Tenure and pay?	5 years or 70; no reappointment; CJI / SC Judge pay	Lokpal timelines?	Inquiry 90 days (6 months); CBI 6 months (+6); sanction 60 days; trial 1 year (2)
PM covered when?	Only national security, foreign relations, public order; full Bench	NGO thresholds?	Foreign contribution above Rs 10 lakh; govt grants above Rs 1 crore
Removal route?	President refers to SC; SC inquires; President removes	Who appoints Lokayukta?	Governor; CM-led committee; recommendatory
Lokpal operational?	16 Jan 2014 (Act); March 2019 (working start)	Ombudsman order?	Sweden 1809, NZ 1962, UK 1967

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CVC = Central Vigilance Commission — Apex vigilance body against corruption in central services

CBI = Central Bureau of Investigation — Premier central investigating agency; derives powers from the DSPE Act, 1946

PM = Prime Minister — Head of the Union government

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

CM = Chief Minister — Head of a State government

CJI = Chief Justice of India — Head of the Supreme Court

HC = High Court — State-level constitutional court (Art 214)

ST = Scheduled Tribes — Tribal groups listed under Art 342

OBC = Other Backward Classes — Socially and educationally backward groups eligible for reservation (Art 15(4), 16(4))

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

PMLA = Prevention of Money Laundering Act, 2002 — Law to prevent money laundering and attach proceeds of crime; ED enforces it

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

ED = Enforcement Directorate — Agency that enforces PMLA and FEMA

NGO = Non-Governmental Organisation — Private voluntary body working for social causes

CPC = Code of Civil Procedure, 1908 — Law on civil court procedure

FCRA = Foreign Contribution (Regulation) Act — Regulates receipt of foreign money by NGOs and individuals; MHA administers it

INFORMATION COMMISSIONS

PYQ None quoted (handout only)

✎ *CIC and SICs are the statutory final appellate bodies under the RTI Act; know composition, committees, Secs 12, 14, 15, 18, 19(3), penalty Rs 250/25,000 and the 2019 Amendment.*

At a glance



🌐 1 · INTRODUCTION AND GLOBAL BASE

CIC = statutory body (RTI Act, 2005), final appellate authority, but orders open to writ in High Court (Art 226). Right to know = Art 19(1)(a) through judicial pronouncements; time-bound disclosure, penalty for delay or denial. 💡

Instrument	Role for RTI
🌐 UDHR Art 19	foundational; "seek, receive and impart information"
ICCPR Art 19	binding; positive duty to give access to public-body information
ICESCR	enabling right; RTI not named; schemes information needed for Arts 6–13 rights

U-I-I — UDHR foundational, ICCPR binding, ICESCR enabling: "Union Is Informed." Declare, Bind, Enable.

👥 2 · CIC: COMPOSITION, TENURE, REMOVAL

Parameter	CIC
Status	statutory, Sec 12 RTI Act, 2005; functions under DoPT
👥 Composition	CIC + up to 10 ICs; total not more than 11
📦 Appointed by	President
📦 Committee (Sec 12(3))	PM (Chair) + LoP in Lok Sabha (or leader of single largest opposition group) + Union Cabinet Minister nominated by PM
🎓 Eligibility	eminence: law, science and technology, social service, management, journalism, mass media, administration and governance; not MP/MLA, no office of profit, no party link
⏳ Tenure (2019)	prescribed by Centre; DoPT notification Oct 2019: 3 years or age 65; earlier fixed 5 years
📦 Reappointment	not eligible; an IC may become CIC within same overall limit
💰 Pay (2019 rules)	CIC Rs 2,50,000/month; IC Rs 2,25,000 (fixed); earlier CIC = CEC, ICs = ECs
Resignation	to President
🚪 Removal	President, Sec 14

P-L-C — PM, LoP, Cabinet Minister: "Public Life Counts." 1 + 10 = 11; 3 and 65; old rule 5 years, pay = CEC/EC.

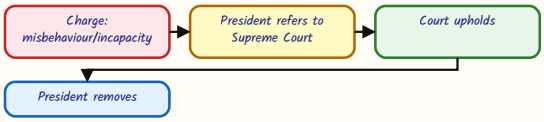
	Before 2019	After 2019
⏳ Tenure	fixed 5 yrs or 65	Centre prescribes (3 yrs or 65, Oct 2019)
💰 Pay	CIC = CEC; IC = EC	Centre: Rs 2.5 lakh / 2.25 lakh
Fixed by	Parliament (Act)	Central Government

Handout alert: Act no longer fixes tenure (Centre prescribes) yet DoPT Oct 2019 notification = 3 years or 65. Read together. SIC: "as prescribed by Centre or until 65", no figure. **Lakshmikanth:** only "as prescribed by Centre or until 65", no 3-year figure; use handout 3 years.

Six grounds (Sec 14)

- → Insolvency
- → Conviction, moral turpitude
- → Paid job outside duties
- → Infirmity, mind or body
- → Financial/other interest
- → Proved misbehaviour or incapacity (SC inquiry)

Safeguard



I-C-P-I-F-P — "I Can Pay If Free, Please."

LK adds: eligibility bars any business or profession; misbehaviour includes interest in a Govt contract/profit (except incorporated-company membership); unrecognised LoP = leader of single largest opposition group; IC can become CIC but total not over 5 years (same for States). ⭐

⚡ 3 · POWERS AND FUNCTIONS OF CIC

Final appellate authority for Central Public Authorities, PSUs, UT administrations. Also entertains matters on offices, financial institutions under Centre and UTs. 💡

A-I-C-A-S-Q – Six roles: Adjudicatory, Investigative, Compliance, Advisory, Supervisory, Quasi-judicial: "A Informed Citizen Asks, Sees, Questions."

1 Adjudicatory

→ Sec 19(3) second appeals vs First Appellate Authority

📬 Sec 18 complaints (any person)

→ access denied
→ no PIO so no RTI request
→ unreasonable fees
→ incomplete, false, misleading information

2 Investigative

→ inquire suo motu or on complaint

⚡ Civil court powers (CPC, 1908)

→ summon, evidence on oath
→ discovery, inspection
→ affidavits
→ requisition public records
→ summons for witnesses/documents
→ inspect in camera

→ Sec 18(3): no record withheld during inquiry

Order	Detail
Disclosure	specified form or language
PIO	order appointment where none
Proactive publication	Sec 4
Record management	digitisation, indexing, preservation
Compensation	loss or detriment from denial/delay
Penalty	Rs 250/day, up to Rs 25,000; recommend discipline

D-O-M-R-C-P – Delaying Officers Must Remedy, Compensate, Pay: Disclosure · Order PIO · Mandate Sec 4 · Records · Compensation · Penalty. (Unordered list.) 100 days reach the cap.

4 Advisory / 5 Supervisory / 6 Quasi-judicial

→ Annual report to Centre, laid before both Houses; recommendations; awareness, training; policy help to DoPT

→ Sec 25: reviews periodic departmental reports; works with SICs for uniform interpretation

→ proceedings = judicial proceedings, IPC Secs 193, 228; orders binding unless writ (Art 226)

→ LK extras: annual compliance report from authority; training; may reject application

	Sec 18 complaint	Sec 19(3) second appeal
By	any person aggrieved	against First Appellate Authority order
CIC acts	inquiry, civil court powers	decides on merits

⚠️ 4 · REFORMS, CHALLENGES, WAY FORWARD (CIC)

Development	Note
📜 RTI (Amendment) 2019	Govt: flexibility. Critics: independence compromised
Digitalisation	RTI Online Portal to all UTs, major PSUs; CIC Dashboard 2.0 (2022); video hearings in COVID-19
🆕 AI file tracking (2024)	DoPT + CIC pilot predicts pendency, flags delays
Backlog drives	special benches 2021-23; pendency crossed 32,000 late 2023; link with CPGRAMS

⚠️ Challenges

→ **Independence:** 2019 blurs oversight; no EC parity

→ **Pendency:** above 30,000; wait over 10 months; vacancies, esp. CIC post

→ **Transparency fatigue:** misuse of Sec 8(1) "national interest"; post-COVID opacity

Rulings 2019-25

→ ONGC vs RTI Applicant (2022), BSNL (2023): PSUs with public functions cannot cite commercial secrecy

→ 2021: Health Ministry to publish vaccine procurement/pricing suo motu

→ CIC v. Ministry of Environment (2022): proactive disclosure of EIA clearances, expert minutes

→ whistleblowers: anonymity; speed up Whistleblower Protection Act, 2014 amendments

Way forward	Detail
Restore autonomy	fixed tenure, EC pay parity
Enforcement	binding directions; refer violators to Parliament
Digitise	vernacular portal; National Data Governance Framework
Capacity	timely appointments; regional benches
📚 Culture	transparency as governance reform
🏛️ Parliament review	annual evaluation

R-E-D-C-C-P — "Right Every Day, Citizens Can Pry."

👑 5-6 · STATE INFORMATION COMMISSION

SIC: statutory, not constitutional; notified by State Govt under Sec 15; independent, not subordinate to CIC; final appellate body for state authorities (departments, PSUs, local bodies). 💡

Aspect	SIC
👥 Composition	SCIC + up to 10 SICs (number varies by State)
🗳️ Appointed by	Governor on committee: CM (Chair), LoP in Assembly, Cabinet Minister nominated by CM
🎓 Eligibility	same fields as CIC; no MP/MLA, office of profit, party, business or profession
⏳ Tenure (2019)	as Centre prescribes or until 65; earlier 5 years
🗳️ Reappointment	SIC can become SCIC if total service within 5 years
🚪 Removal	Governor for five grounds; proved misbehaviour/incapacity: refer to Supreme Court
Service conditions	Centre decides (earlier EC and Chief Secretary parity); not varied to disadvantage

	CIC	SIC
📜 Section	12	15
🗳️ Appointer	President	Governor
🗳️ Committee	PM, LoP, Union Cabinet Minister	CM, LoP Assembly, Cabinet Minister (CM's nominee)
🚪 Removal	President, Sec 14	Governor; SC inquiry
👥 Size	CIC + 10 ICs	SCIC + 10 SICs

C-L-C — "Come, Let's Count": CM, LoP (Assembly), Cabinet Minister.

Handout alert: CIC reappointment "same overall tenure limit"; SIC "not beyond 5 years" (old fixed term). Use 5-year wording only for SIC reappointment line; 2019 tenure set by Centre.

⚡ SIC powers

- Sec 19(3) appeals → disclose, modify, reject on merits
- 📬 Sec 18 complaints
  - → no PIO
  - → refused information
  - → no response in time
  - → excessive fee
  - → incomplete, misleading, false
  - → any other difficulty
- → suo motu inquiry; civil court powers; spot inspections
- → compel: format, PIO appointment, records reform, compensation, penalty Rs 250/day to Rs 25,000, discipline
- → annual report to State Govt, tabled in State Legislature; advise on records, digital disclosure, training, awareness

INFORM — Sec 18 grounds: Information refused · No PIO · Fee excessive · Other difficulty · Response not in time · Misleading information. (Rearranged.)

A-I-E-S — "All Information Ends Secrecy": Adjudicate, Investigate, Enforce, Supervise/advise. SIC = mirror of CIC one level down.

📜 7 · RTI (AMENDMENT) ACT, 2019

Aspect	Before (2005)	After (2019)
⏳ 1 Tenure	fixed 5 yrs or 65	no fixed term; Centre prescribes (CIC and SIC)
💰 2 Pay	CIC = CEC; IC = EC; SCIC = EC; SIC = Chief Secretary	Centre prescribes by executive rules
📦 3 Reappointment	not eligible	same
4 Pension deduction	deducted from pay	removed; full pay
⚡ 5 Authority	Parliament (Act)	Centre via rule-making
6 Applicability	separate, Secs 12–15	uniform Centre control over both levels

T-S-R-D-A-U — "Ten Students Read Documents And Understand." Five moved to Centre, one stayed, one removed.

C-E-E-C — Old pay parity: CIC = CEC · EC for each IC · EC for SCIC · Chief Secretary for SICs.

Lakshmikanth: lists five features of the 2019 Act; handout adds sixth (applicability). Follow handout.

Recall drill: cover and answer

CIC section? SIC?	Sec 12; Sec 15	CIC strength?	CIC + up to 10 ICs; max 11
CIC appointment committee?	PM, LoP (Lok Sabha), Union Cabinet Minister nominated by PM	SIC committee?	CM, LoP Assembly, Cabinet Minister nominated by CM; Governor appoints
Tenure after 2019?	Centre prescribes; DoPT Oct 2019: 3 years or 65 (earlier 5)	Penalty on PIO?	Rs 250/day, max Rs 25,000
Removal section?	Sec 14; SC inquiry for misbehaviour	Sec 18 vs 19(3)?	complaint by any person vs second appeal
What did 2019 change?	tenure, pay, conditions moved to Centre; pension deduction removed	Court remedy vs CIC order?	Writ, Art 226 High Court

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CIC = Central Information Commission — Hears RTI appeals against central public authorities

SIC = State Information Commission — State body hearing RTI appeals

RTI = Right to Information — Citizens can seek records from public authorities under the RTI Act, 2005

PIO = Public Information Officer — Officer who receives and answers RTI applications

CM = Chief Minister — Head of a State government

DoPT = Department of Personnel and Training — Nodal department for civil service policy

PM = Prime Minister — Head of the Union government

CEC = Chief Election Commissioner — Head of the Election Commission

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

UDHR = Universal Declaration of Human Rights — UN General Assembly document of 1948 listing basic human rights

UT = Union Territory — Area administered directly by the Union government

CPC = Code of Civil Procedure, 1908 — Law on civil court procedure

IPC = Indian Penal Code, 1860 — Old criminal code, replaced by the BNS

AI = Artificial Intelligence — Machines performing tasks that need human-like intelligence

CPGRAMS = Centralised Public Grievance Redress and Monitoring System — Online portal for public grievances

NATIONAL INVESTIGATION AGENCY

PYQ None quoted (handout only)

✎ *Central counter-terror agency (Act 2008, set up 2009 after 26/11) with suo motu concurrent jurisdiction; know the 2019 Amendment, scheduled laws and Special Courts.*

At a glance: the route



1 · INTRODUCTION AND RATIONALE

Aspect	Detail
🏛️ Established	2009 under NIA Act, 2008
Ministry	MHA (administrative control); HQ New Delhi
Trigger	26/11 Mumbai attacks (2008): coordination gaps among states
💡 Nature	federal; more centralisation in counter-terror probes
⚡ Key power	investigate and prosecute scheduled offences without state consent

Five reasons

→ Rising terror threat, cross-border

→ Complex inter-state and global links (drugs, arms, fake currency, infiltration)
→ Dedicated federal agency needed
→ Expert advice: 2nd ARC (2008)
→ Uniform standards

R-C-D-E-U — "Red Corridors Demand Effective Unity."

LK: Govt gave four reasons for the NIA Bill, 2008 (cross-border sponsorship, complex links, need for central agency, expert committee advice). 2nd ARC (chair Veerappa Moily, 2005–09) recommended it in 2008 report Combating Terrorism. DG has powers like a State DGP.

👥 2 · COMPOSITION AND SET-UP

Aspect	Detail
Head	Director-General (DGP-equivalent), appointed by Central Govt
⚡ Jurisdiction	concurrent, all India; post-2019 abroad too
Control	MHA overall policy supervision; functional autonomy in investigation
Coordinates with	State Police; IB, RAW, ED, CBI; international partners (treaties, INTERPOL)

Division	Work
Counter-Terrorism (CTD)	terror offences, blasts, attacks on forces
TFFC Cell	hawala, illegal remittances, fake currency
Cyber and Forensic	digital evidence
Prosecution	charge-sheets; Special NIA Courts
Training and Research	NIA Academy, Hyderabad

TRACE — TFFC · Research (Training) · Attacks (CTD) · Charge-sheets (Prosecution) · Evidence (Cyber). (Rearranged.) Policy = MHA, investigation = NIA.

C-T-C-P-T — "Cops Track Criminals, Put Them away."

⚡ 3 · FUNCTIONS (EIGHT)

#	Function	Detail
1	Investigate, prosecute	scheduled offences
2	Coordination	state police, CBI, IB, RAW; joint raids
3	Intelligence	national Terror Database, Crime Linkage Grid; TFFC
4	Assist states	technical, forensic, legal; training
5	International	abroad probes (2019); INTERPOL, UNODC, CIA, FBI, FATF; joint task forces
6	Speedy trials	Special NIA Courts, Sec 11, fast-track
7	Preventive and policy	risk assessments; legal reviews; capacity building
8	Confidence, rights	proportional power, human rights

I-C-I-A-I-S-P-P — "India's Cops Investigate All International Security Plots Properly."

Handout example Manipur 2023: NIA coordinated with Assam Rifles and state forces on arms-smuggling networks.

Rules, 2008 (LK): functions per NIA (Manner of Constitution) Rules, 2008: investigate/prosecute scheduled offences; help other agencies; other measures for speedy implementation.

4 · VISION AND MISSION

Aspect	Point
Vision	professional, internationally benchmarked; fair, without delay
Goals	centre of excellence; speedy Special Court trials; intelligence/data network; federal cooperation
Mission	scientific, impartial probe; convictions with constitutional and human rights
Ethos	rule of law; forensic and digital; international coordination; training and ethics
Values	Integrity, Objectivity, Efficiency, Transparency, National service

I-O-E-T-N — "I Only Expect True Nation-builders."

LK: Vision = four points (professional; excellence in counter-terror; deterrence; storehouse of terror information). Mission = eleven points (e.g. all cases detected, scientific temper, cordial relations with states/UTs, public confidence). Handout mission bullets: scientific probe, speedy trials, rights-focused workforce, inter-agency collaboration, terrorist databases, global law analysis, public trust.

⚡ 5 · JURISDICTION AND POWERS

Unlike the CBI, NIA takes cases suo motu once Centre says the offence is scheduled. NIA Act 2008 as amended 2019.

🆕 Domestic (concurrent)

- → sovereignty, integrity, security
- → friendly relations with foreign States
- → public order
- → take over state/agency cases if scheduled
- → e.g. defence installations, terror finance, arms/fake currency smuggling

🧑‍🤝‍🧑 Abroad (post-2019)

- → Indian citizen offender abroad
- → India's interests affected
- → Indian assets/missions targeted
- → Centre directs NIA to register as if in India; like FBI, Scotland Yard

C-I-A — Citizen abroad · Interests affected · Assets/missions: "Case Is Abroad."

⚡ Powers (police officer, CrPC)

- → search and seizure
- → arrest, interrogation
- → electronic and forensic evidence
- → charge-sheets; follow-up prosecutions
- → summon persons, documents; joint operations

🌐 Oversight and international

- → States must cooperate fully
- → accountable to Parliament via MHA: annual report before both Houses
- → Interpol, UNCTED; MLATs: evidence sharing, extradition
- → International Cooperation Division (ICD): USA, UK, France, Australia; cyber-terror, radicalisation
- → also Acts implementing treaties, UN resolutions: blasts, hijacking of aircraft/ships, nuclear attacks, WMD (LK)

📰 **Handout example · 2022-23** FBI and Europol: NIA traced ISIS-linked digital propaganda networks targeting Indian youth.

🗺️ 6 · SCHEDULED OFFENCES

Act (original Schedule)	Year
UAPA	1967
📜 Atomic Energy Act	1962
📜 Anti-Hijacking Act	2016
📜 Suppression of Unlawful Acts against Safety of Civil Aviation Act	1982
📜 Weapons of Mass Destruction Act	2005
📜 Explosive Substances Act	1908
📜 POTA and related laws	as listed in handout

U-A-A-S-W-E — UAPA · Atomic · Anti-Hijacking · Suppression (civil aviation) · WMD · Explosive: "Under Any Act, Some Weapons Explode." Handout order.

Added 2019 (five)

- → Human trafficking
- → Counterfeit currency / banknotes
- → Manufacture or sale of prohibited arms
- → Cyber-terrorism
- → Explosive substances offences

CACHE — Counterfeit currency · Arms (prohibited) · Cyber-terrorism · Human trafficking · Explosive substances. (Rearranged.)

H-C-M-C-E — "He Came, Made Cash Easily."

Handout alert: text says **five** added in 2019 (incl. prohibited arms); Amendment table lists **four** (explosive substances, cyber-terrorism, human trafficking, counterfeit currency). Use five; Explosive Substances Act, 1908 is also in the original list. LK puts explosive substances only in the 2019 five; lists agree otherwise.

⚖️ 7 · AMENDMENT ACT 2019 AND SPECIAL COURTS

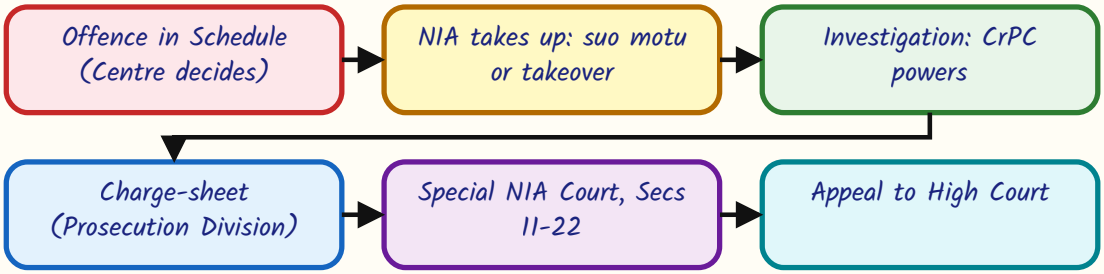
Provision	Description
🗺️ 1 Extra-territorial	scheduled offences outside India involving Indian citizens/interests
⚡ 2 International jurisdiction	police powers abroad, with central approval
🗺️ 3 Expanded Schedule	explosives, cyber-terrorism, trafficking, counterfeit currency
⚖️ 4 Special Courts	Centre/States designate Sessions Courts
🌐 5 Global cooperation	treaties, MLATs, agencies

SIEGE — Special Courts · International jurisdiction · Expanded Schedule · Global cooperation · Extra-territorial. (Rearranged.)

E-I-E-S-G — "Every Intelligence Effort Seeks Global reach."

Special NIA Courts (Secs 11–22): designated by Centre or State in consultation with High Court Chief Justice; try NIA Act and scheduled-law offences; appeal directly to High Court. ⭐

⚖️ Path of a scheduled case



Shortcut: Home = concurrent + suo motu. Abroad = citizen, interest, asset. Courts = Secs 11–22, appeal to High Court. ✅

🆕 8 · RECENT INITIATIVES

Initiative	Year	What
Operation Garuda	2022	global crackdown on drug trafficking, money laundering
Khalistan-linked cells	2023	pan-India raids on ISI-backed networks
💰 Terror Funding Free India	2021–24	curb hawala, crypto, FICN
NATGRID integration	2024	data access, intelligence fusion
👭 Women in NIA	2023	over 18% of operational staff

G-K-T-N-W — "Good Knights Take Night Watch."

Recall drill: cover and answer

NIA Act and agency year?	Act 2008; NIA set up 2009 after 26/11	Ministry, HQ, head?	MHA; New Delhi; Director-General
What sets NIA apart from CBI?	suo motu: no state consent once scheduled	2019 Amendment gave?	abroad jurisdiction, five new offences, Sessions Courts as Special Courts
Five offences added 2019?	Human trafficking, counterfeit currency, prohibited arms, cyber-terror, explosives (CACHE)	Special Courts sections? Appeal?	Secs 11–22; directly to High Court
NIA Academy?	Hyderabad	Three abroad triggers?	Citizen, interests, assets/ missions
UAPA / Atomic Energy / Anti-Hijacking years?	1967 / 1962 / 2016	Who recommended NIA?	2nd ARC (Moily), report Combating Terrorism, 2008

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

NIA = National Investigation Agency — Central agency for terror and other scheduled offences (NIA Act, 2008)

MHA = Ministry of Home Affairs — Union ministry for internal security, Centre-State matters and disaster management

CBI = Central Bureau of Investigation — Premier central investigating agency; derives powers from the DSPE Act, 1946

ARC = Administrative Reforms Commission — Commission recommending reforms in public administration (1st in 1966, 2nd in 2005)

IB = Intelligence Bureau — India's domestic intelligence agency

UAPA = Unlawful Activities (Prevention) Act, 1967 — Main anti-terror law; allows banning organisations and designating terrorists

ED = Enforcement Directorate — Agency that enforces PMLA and FEMA

UNODC = United Nations Office on Drugs and Crime — UN body on drugs, crime and terrorism

FATF = Financial Action Task Force — Global body setting standards against money laundering and terror financing

UN = United Nations — World body of states founded in 1945 for peace, security and cooperation

WMD = Weapons of Mass Destruction — Nuclear, chemical and biological weapons

ISIS = Islamic State of Iraq and Syria — Global terror group

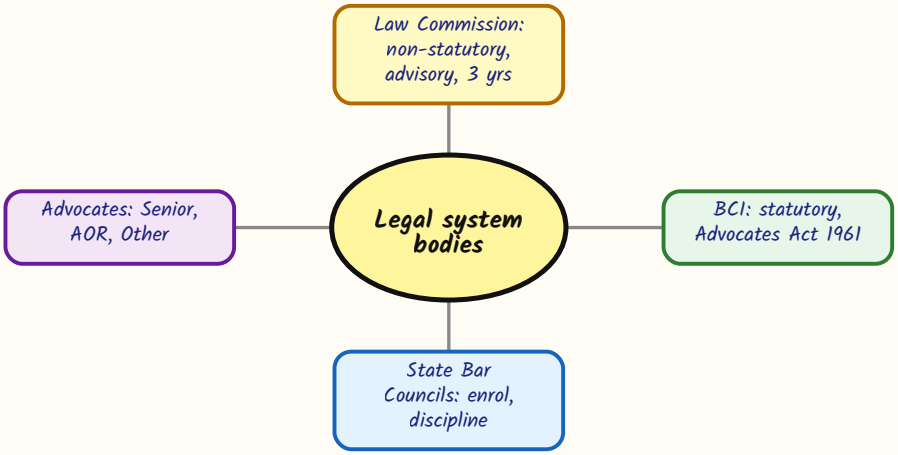
ICD = International Cooperation Division

LAW COMMISSION AND BAR COUNCIL

PYQ Prelims 2022

✎ *One non-statutory advisory body for law reform (Law Commission) and one statutory ladder (BCI over State Bar Councils) regulating advocates and legal education; tables of reports, committees and three types of advocates are the hooks.*

At a glance



1 · LAW COMMISSION: NATURE, EVOLUTION

Non-statutory, advisory; by Govt notification (Ministry of Law and Justice, Dept of Legal Affairs). Recommendations not binding, high persuasive value. Vision: reform laws for maximum justice, good governance, rule of law.

Phase	Details
Colonial 1834–1947	four Commissions; IPC 1860, CPC 1908, Contract Act 1872, Evidence Act 1872
1955	First under M.C. Setalvad (first Attorney-General); DPSP alignment; 3-year tenure
Art 372	pre-independence laws continue until amended or repealed, hence need for reform body

I-C-C-E — Colonial codes: IPC 1860, CPC 1908, Contract 1872, Evidence 1872: "Indian Codes Came, Explained."

Handout alert: "22 Law Commissions constituted" yet 23rd constituted from 1 Sept 2024 for 3 years; also "22nd Commission, 2023". Use: 22nd (2023), 23rd (from 1 Sept 2024).

Pre-independence	Year	Chairman
First	1834	Lord Macaulay
Second	1853	Sir John Romilly
Third	1861	Sir John Romilly
Fourth	1879	Dr Whitney Stokes

LK: the four gave IPC, CrPC, CPC, Contract Act, Evidence Act, Transfer of Property Act. Also: comparative studies; laws to remove discrimination, improve legal aid.

Independent India	Years	Chairman
1st	1955–58	M C Setalvad
2nd	1958–61	T V Venkatarama Aiyar
3rd / 4th	1961–64 / 1964–68	J L Kapur

5th	1968–71	K V K Sundaram, ICS
6th / 7th	1971–74 / 1974–77	P B Gajendragadkar
8th	1977–1979	H R Khanna
10th	1981–1985	K K Mathew
15th	1997–2000	B P Jeevan Reddy
17th	2003–06	M Jagannadha Rao
18th	2006–09	A R Lakshmanan
19th	2009–12	P Venkatarama Reddy
20th	2012–15	D K Jain, then A P Shah
21st	2015–18	B S Chauhan
22nd	2020–24	Ritu Raj Awasthi

22nd Commission (LK): constituted 21 Feb 2020 for 3 years; chair and members appointed only Nov 2022; term extended 22 Feb 2023 to 31 Aug 2024. 23rd from 1 Sept 2024 (3 years).

CLASS · Law Commission: first, 23rd, status

1st LC 1834 under the Charter Act 1833, Lord Macaulay (four colonial LCs: 1834, 1853, 1861, 1879). 23rd LC (2024): Justice Dinesh Maheshwari.

Class vs handout: class calls today's LC a "statutory body"; handout: non-statutory, advisory, by Govt notification. Follow the handout.

2 · COMPOSITION

Position	Details
Chairperson	usually retired SC Judge or HC Chief Justice
Full-time members	legal experts, jurists, law professors
Member-Secretary	Indian Legal Service; Additional Secretary / Secretary rank
Part-time members	eminent advocates, scholars, professionals
Set-up	research and secretarial staff under Law Ministry (LK: about a dozen researchers)
Tenure	generally 3 years, per terms of reference

CASE – Chairperson · Advocates (part-time) · Secretary (Member-Secretary) · Experts (full-time). (Rearranged.) Also "Courts Follow Many Proposals".

CLASS · LC composition (class version)

Law Commission

→ 1 Chairman (serving or retired SC/HC judge)
→ 4 full-time members
→ ex-officio: Secretary, Dept of Legal Affairs; Secretary, Legislative Dept
→ not more than 5 part-time members

⚡ 3 · FUNCTIONS (EIGHT) AND PROCEDURE

#	Function	Example
1	Review, repeal obsolete laws	248th, 251st (2014): about 1,824 laws; Repealing and Amending Acts 2015–17
2	Test laws against Constitution	FRs, DPSPs; gender justice, personal laws, UCC
3	Codify, simplify	IPC, CrPC, Evidence Act to BNS, BNSS, BSA (2023)
4	Legal policy advice	drafting, treaties harmonisation, comparative studies
5	Justice delivery research	230th (2009): fast-track courts, e-judiciary, manpower
6	Access to justice	women, children, SC, ST, EWS; 256th (2015): pro bono, rural legal aid tech
7	International research	foreign requests; CEDAW, UNCAC
8	Specific issues	244th criminalisation of politics; 255th electoral reforms, simultaneous polls; 276th data protection; sedition (22nd, 2023)

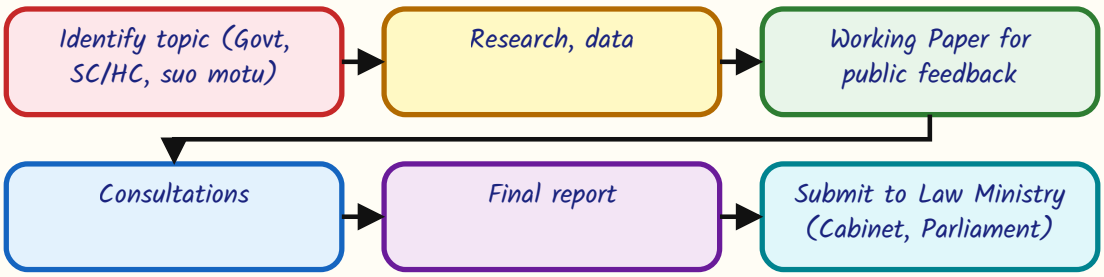
R-E-C-L-R-A-I-S — "Reform Every Clause, Let Rights Advance In Society."

LK adds: views on any law/judicial administration matter referred by Govt; research for foreign countries; law and legal process in service of the poor. Reports go to Law Ministry, which consults ministries and places them before Parliament; Cabinet consideration. ⭐

Handout alert: 244th = "Criminalization of politics" in functions but "Electoral Disqualifications" (disqualify on framing of charges for heinous offences) in the table; same theme.

📰 **In the news · July 2026 (verify dates)** UCC: 21st Law Commission (2018) held UCC neither necessary nor desirable at this stage; 22nd (2023) closed public feedback but released no final report.

How a report is made



I-R-W-C-F-S — "I Read Written Cases, File Summaries." (Also: Inquiring Reformers Write Comments, Finalise, Submit.)

👑 4 · MAJOR REPORTS (277 TILL 22ND COMMISSION, 2023)

Report	Subject and recommendation	Outcome
👫 1st (1956)	judicial administration: separate judiciary from executive, more courts, judge training	Art 50; district judiciary reforms
14th (1958)	judicial administration updated: efficiency, fewer arrears, accountability	Justice Delivery reforms
42nd (1971)	IPC revision; socio-economic offences	later IPC amendments; BNS 2023
👫 91st (1983)	dowry deaths: reverse burden, stricter punishment	Sec 304-B IPC, 113-B Evidence Act, 1986 Amendment
152nd (1994)	custodial crimes: CrPC provisions, mandatory registration	DK Basu v. State of West Bengal (1997); NHRC
156th (1997)	IPC comprehensive; gender-neutral rape law	Justice Verma Committee (2013); 2013 amendment
172nd (2000)	rape laws: criminalise marital rape; gender-neutral	Criminal Law (Amendment) Act, 2013, partly
185th (2003)	CPC, 1908 review: summary trials	Civil Procedure (Amendment) 2002-03
210th (2008)	humanisation: repeal Sec 309 IPC	Mental Healthcare Act, 2017
230th (2009)	judiciary: strength, case management	National Mission for Justice Delivery (2011)
244th (2014)	electoral disqualifications on framing of charges	Lily Thomas v. Union of India (2013)
255th (2015)	electoral reforms: funding transparency, simultaneous polls	One Nation One Election debate
262nd (2015)	death penalty: abolish except terrorism	"rarest of rare"
268th (2017)	bail reforms	SC bail guidelines 2021
👫 271st (2017)	Human DNA Profiling Bill	DNA Technology (Use and Application) Bill, 2019
276th (2018)	data protection, GDPR-aligned	DPDP Act, 2023
277th (2018)	wrongful prosecution: compensation	criminal justice proposals
22nd LC (2023)	sedition (Sec 124A IPC): retain with safeguards	BNS 2023 debate

Number shortcut

- → Judiciary 1, 14, 230
- → Penal 42, 156, 172
- → Dowry 91
- → Custody 152
- → CPC 185
- → Suicide 210
- → Elections 244, 255
- → Death penalty 262
- → Bail 268
- → DNA 271
- → Data 276
- → Wrongful prosecution 277.

D-C-S-M-D – "Dear Court, See My Draft": Dowry 91, Custodial 152, Suicide 309 (210), Mental Healthcare Act 2017, Data 276.

Source conflict, 276th: LK's 21st Commission table gives 276 (2018) as Gambling and Sports Betting incl. Cricket and 266 (2017) as Advocates Act; handout gives 276 = data protection. Use handout. 277: both say wrongful prosecution.

Significance: institutional continuity; judicial credibility (cited by SC/HCs); ready drafts; policy integration (NITI Aayog, National Judicial Mission, Ease of Doing Business). ⭐

🎯 CLASS · Sedition: Sec 124A to BNS 152 PYQ 2023

1860/1870 — IPC; 124A added 1870

1962 — Kedarnath: upheld, read down

1995 — Balwant Singh

2022 — Vombatkere: stay

2023 — BNS Sec 152 replaces 124A

124A: words, signs or visible representation bringing or attempting to bring hatred or contempt / exciting disaffection towards Govt; non-bailable (class: up to 3 years, verify). Gandhi: "prince among IPC sections" made to suppress Indians. Demand to add sedition to Art 19(2) in the Constituent Assembly was not accepted.

⚠ Criticism (5)

- → medieval, archaic idea of loving the Govt
- → vague, politically misused
- → 3% conviction rate
- → relic of monarchy
- → racist: Indians treated as inferiors

Case	Holding
Kedarnath, 1962	upheld 124A but read down: not violating Art 19(1)(a); reasonable restriction under 19(2) for public order
Balwant Singh, 1995	needs clear intent or actual incitement to violence; slogans causing no disturbance = no sedition
S.G. Vombatkere, 2022	SC stayed 124A; no new case until law is declared unconstitutional; pending proceedings in abeyance; accused may seek bail

Read down = scope restricted; read into = scope expanded.

BNS Sec 152: purposely or knowingly, by words, signs, visible representation, e-communication or financial means, exciting secession, armed rebellion, subversive activities, separatist feelings or endangering sovereignty, unity, integrity; class: 7 years + fine (verify, BNS also provides life). Explanation: criticism of Govt act or policy is not covered.

🏛 5 · BAR COUNCIL OF INDIA PYQ Prelims 2022

Apex statutory body, Advocates Act, 1961, on recommendation of All-India Bar Committee; autonomous under Law Ministry (Dept of Legal Affairs). Dual role: regulate advocates + oversee legal education. Functions: Sec 7; appeals: Sec 38 to Supreme Court.

Aspect	BCI composition
🗳 Elected	one member elected by each State Bar Council from its members
Ex-officio	Attorney General and Solicitor General
Chair, Vice-Chair	elected by Council; 2 years
🗂 Committees	Disciplinary, Legal Aid, Executive, Legal Education, others
👥 Members' tenure	matches term in their SBC

D-L-E-L-O — BCI committees: Disciplinary · Legal Aid · Executive · Legal Education · Others: "Discipline Leads Every Lawyer Onward." Also "Dear Lawyers, Enrol Learners."

History (LK): All India Bar Committee (1951) under Justice S.R. Das, reported 1953; 14th Law Commission Report (1958) endorsed; Advocates Act, 1961.

⚡ 6 · BCI FUNCTIONS (SEVEN HEADS)

Head	Functions
1 Regulatory	conduct and etiquette; disciplinary procedure for itself and SBCs; supervise SBCs; protect advocates' rights, independence
📚 2 Educational	standards with universities and SBCs; recognise law universities; inspect, accredit; Legal Education Committee frames curriculum
3 Disciplinary	appeals from SBC orders; suspend or remove guilty advocates; coordinate with judiciary
4 Welfare, legal aid	aid for weaker sections; welfare funds for indigent, disabled, distressed advocates; legal literacy; volunteering
📜 5 Law reform	promote reform; opinions on drafts; seminars, journals
6 Financial, admin	manage funds; grants, donations; elections; committees
🌐 7 International	affiliate with IBA, ILAA; reciprocal recognition of foreign law degrees

R-E-D-W-L-F-I — "Right Education Develops Wise Legal Folk, India."

⚡ 7 · BCI POWERS (SEVEN GROUPS)

Group	Powers
1 Disciplinary	Disciplinary Committees; procedure; appellate authority (affirm, reverse, modify); suspend/ remove from roll
2 Supervisory	control over SBCs; directions on enrolment, discipline, welfare; may temporarily assume SBC functions; inspect records
3 Regulatory	conduct standards; minimum qualifications, course structure; recognise/derecognise colleges; foreign lawyers (2023 Rules); enrolment conditions
4 Financial, admin	funds, law libraries; grants; elections, tenure; sub-committees
5 Quasi-judicial	civil court powers; suo motu inquiries; orders binding, appeal to SC under Sec 38
📜 6 Law reform	propose amendments; consult Law Commission, Parliamentary Committees; represent legal community abroad
7 Emergency, residual	interim orders; suspend enrolments, revoke recognition if urgent

S-P-A-R — Civil-court powers: Summon · Production of documents · Affidavits · Requisition records: "See Papers And Records." Ladder: SBC decides, BCI appeal, Sec 38 to SC.

🏛 8 · STATE BAR COUNCILS

Aspect	SBC
Basis	Advocates Act, 1961, Sec 3; autonomous under BCI supervision
Set-up	one per State or common for several (e.g. Punjab and Haryana; Assam, Nagaland, Mizoram)
Ex-officio	Advocate-General of State (all concerned in common SBC); Delhi SBC also Additional Solicitor-General
Chair, Vice-Chair	elected; tenure per SBC rules
⏳ Term	5 years elected members; BCI may extend 6 months if elections delayed
🗳 Committees	Disciplinary, Legal Aid, Executive, Enrolment, others
👥 Size (LK)	15 (electorate 5,000), 20 (5,000–10,000), 25 (above 10,000); single transferable vote; half with 10 years' standing; 24 SBCs

⚡ SBC functions

Enrolment
→ roll and register
→ verify qualifications, character
→ BCI standards

Discipline
→ misconduct cases
→ Disciplinary Committees
→ appeal to BCI
→ supervise Bar Associations

📚 Welfare, education
→ welfare funds, legal aid
→ state law reform, journals
→ inspect universities as BCI directs

Admin
→ elect Chair, Vice-Chair, BCI reps
→ funds, libraries, grants
→ rules subject to BCI approval

⚡ SBC powers (7)
→ Disciplinary: summon, evidence, suspend/ remove
→ Supervisory: Bar Associations
→ Regulatory: enrolment, roll
→ Financial: funds, grants
→ Quasi-judicial: civil court powers
→ Coordination with BCI, universities
→ Residual

D-L-E-E – SBC committees: Disciplinary · Legal Aid · Executive · Enrolment: "Day Long Exams End." BCI has Legal Education instead of Enrolment.

Aspect	BCI	SBC
Level	national	State/regional
⚡ Role	whole profession and legal education	advocates of that State
Supervision	all SBCs	local Bar Associations
📚 Education	standards; recognises universities	inspects colleges on BCI direction
Discipline	appellate	primary
💰 Funds	national	State welfare and library
Representation	international bodies	State advocates
⏳ Chair term	2 years	per SBC rules
Ex-officio	AG, SG	Advocate-General
👥 Members' term	as in SBC	5 years (+6 months)

Common SBC	Covers
Arunachal, Assam, Mizoram, Nagaland	four States
Kerala	Kerala, Lakshadweep
Madras	Tamil Nadu, Puducherry

Maharashtra and Goa	Maharashtra, Goa, Dadra and Nagar Haveli and Daman and Diu
Punjab and Haryana	Punjab, Haryana, Chandigarh
🧑‍🤝‍🧑 West Bengal	West Bengal, Andaman and Nicobar
J&K and Ladakh	J&K, Ladakh
Orissa	Odisha

🎯 9 · TYPES OF ADVOCATES PYQ Prelims 2022

Advocates Act recognises one class, the advocate; three types by function (Act + Supreme Court Rules, 2013). LK differs: says Act has two categories (Senior, other); three may practise before SC. Follow handout.

	Senior Advocate	Advocate-on-Record	Other Advocate
⚡ Authority	designated by SC or HC (CJI/HC CJ with collegium); consent needed	SC Rules, 2013	on roll of an SBC
⚡ Role	argue, advise	file, act, plead in SC; only AOR can file or sign pleadings, vakalatnamas	all courts except SC (without AOR); draft, advise
Restriction	cannot file or draft pleadings, affidavits (Rule 2, BCI Rules); needs brief via advocate	cannot delegate filing	in SC must act via AOR
🎓 Eligibility	standing, ability, ethics	4 years practice + 1 year training under AOR of 10 years + AOR exam (SC Registry, Board headed by SC Judge)	law degree + enrolment
Regulator	SC / HC	SC	SBC and BCI
Ethics	highest decorum	procedural discipline	BCI Code (Chapter II, Part VI)

CAST — Permanent Committee (2018) for Senior Advocates: CJI (Chair) · Attorney General · Senior advocate (one, nominated by Committee) · Two senior-most SC Judges. (Rearranged.)

S-A-O — "Some Appear Only with help." Senior = argues, AOR = files, Other = needs AOR in SC.

AOR history (LK): 1954 AORs replaced "Agents"; 1959 AOR exam; training under 10-year AOR for one continuous year from end of fourth year of enrolment. ⭐

📰 In the news · July 2026 (verify dates) Bar boycott: Ayodhya Bar Association resolved not to defend an accused; A.S. Mohammed Rafi (2010) held boycott resolutions null and void; cab-rank rule binds advocates.

⏳ CLASS · Senior Advocate, pre-audience, Rule 49, terms

Sec 16, Advocates Act 1961: SC/HC may designate a Senior Advocate for ability, standing, experience. Limits: cannot appear in the SC without a junior who is an AOR; cannot accept briefs directly. ⭐

🛡️ Right of pre-audience (heard first)

→ Attorney General over all advocates
→ Solicitor General over all except AG
→ Advocate General (in the State)
→ Senior Advocate over other advocates (order of last two partly unclear)

BCI Rule 49: an advocate who becomes a permanent salaried employee of any person, Govt, corporation or company loses status as advocate.

Legal term	Meaning (class)
📜 Lawyer / Barrister	law graduate / the same in the UK
Advocate (attorney)	enrolled on a Bar Council
Public Prosecutor / Govt Pleader	Govt advocate in criminal / civil cases
Res judicata	final judgement between same parties on same question by competent court: cannot be raised again
⚖️ Decree / Judgement / Order	formal declaration of civil decision / decision with reasons / final or interlocutory order
📜 Sources of law	Constitution, statutes, case law, customary law

🔧 10 · REFORMS AND DIGITAL INITIATIVES (2020-25)

Reform	Content
1 AIBE	under Rule 9, BCI Certificate of Practice Rules (2010); AIBE XVII-XIX (2023-25): CBT replaces OMR; cyber law, data protection, environmental law; linked to enrolment portal; result triggers Certificate of Practice
2 Digital enrolment	BCI Online Enrolment Portal 2021; QR Smart ID Cards piloted in Delhi, Maharashtra, Karnataka
📚 3 Legal education	Rules revised 2020: Clinical Legal Education, ADR, Legal Ethics; Tech-Law, AI and Law, Corporate Governance; virtual inspection; 350+ substandard colleges flagged 2021-24; BCITER with NLUs and UGC
📜 4 Foreign lawyers (2023 Rules)	non-litigious only; reciprocity; annual registration; litigation reserved for Indian advocates
5 E-litigation	SBCs + NIC, eCourts Mission Mode Project; State Bar E-Portals; e-billing
6 Legal aid	National Legal Awareness Drive 2021-23 (POCSO, JJ Act, DV Act); Advocates for Social Justice Program 2022; BCI Legal Aid Fund 2024
7 Judiciary, NITI Aayog	Judicial Infrastructure and Legal Reforms Blueprint 2047 (2023); SC e-Committee: online AOR exams, virtual internships
8 Welfare	Advocates Welfare Scheme 2021-25 (health, accident cover); LIC, New India Assurance in Tamil Nadu, Delhi, Maharashtra; Central Advocates Welfare Fund 2022
📜 9 MNC law entities (abuse of dominance)	with CCI: guidelines vs cartelisation; Legal Division coordination 2024; Monitoring Committee, Sec 4 Competition Act

C-Q-L-R — AIBE changes: CBT replaces OMR · Question bank widened · Linked to portal · Results trigger Certificate: "Can Quick Law Results arrive?"

Handout alert: reform 9 borrows competition-law material; read with the Competition Commission chapter (49).

🔧 CLASS · Bar and Bench reform points (teacher)

Aim: better laws for justice and good governance under rule of law; improve quality of Bar (lawyers) and Bench (judges). 💡

Teacher's 5 points

→ justice delivery not seen in India as part of development

→ operationalise All India Judicial Service (AIJS)

→ 2010 All India Bar Exam; upheld in the Bonnie Law College case, 2023 (name as written)

→ root out fake lawyers: 2017, 14 lakh+ asked to submit degrees; only 6.5 lakh received

→ 2023 foreign law firms allowed: register with BCI, reciprocity, non-litigation (corporate: JVs, contracts, foreign law)

Recall drill: cover and answer

Law Commission status? Tenure?	Non-statutory, advisory, not binding; 3 years	First Law Commission of India?	1955, M.C. Setalvad
Pre-independence Commission heads?	Macaulay 1834, Romilly 1853 and 1861, Whitney Stokes 1879	91st / 152nd / 210th report?	Dowry deaths / custodial crimes / Sec 309 attempt to suicide
276th report?	Data protection (handout); DPDP Act 2023	BCI basis, functions, appeal?	Advocates Act 1961; Sec 7; Sec 38 to SC
BCI ex-officio and chair term?	AG, SG; 2 years	SBC term?	5 years (+6 months); Advocate-General ex-officio
AOR eligibility?	4 yrs practice + 1 yr training + AOR exam	Senior Advocate limits?	Cannot file or draft directly; designated with consent
Senior Advocates Committee 2018?	CJI, two senior-most SC Judges, AG, one senior advocate (CAST)	Kedarnath 1962 on sedition?	Upheld 124A but read down: incitement to violence or public disorder
Which BNS section replaced 124A?	Sec 152	Who has right of pre-audience first?	Attorney General, then Solicitor General

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

IPC = Indian Penal Code, 1860 — Old criminal code, replaced by the BNS

BNS = Bharatiya Nyaya Sanhita, 2023 — New criminal code that replaced the Indian Penal Code

HC = High Court — State-level constitutional court (Art 214)

CPC = Code of Civil Procedure, 1908 — Law on civil court procedure

UCC = Uniform Civil Code — Proposed common personal laws for all citizens (Art 44)

DPDP = Digital Personal Data Protection — India's data protection law of 2023 (DPDP Act)

NITI = National Institution for Transforming India — Government policy think tank that replaced the Planning Commission in 2015

CJI = Chief Justice of India — Head of the Supreme Court

DPSP = Directive Principles of State Policy — Part IV (Arts 36–51): goals the State should pursue; not enforceable in court

BNSS = Bharatiya Nagarik Suraksha Sanhita, 2023 — New procedure code that replaced the Code of Criminal Procedure

ST = Scheduled Tribes — Tribal groups listed under Art 342

EWS = Economically Weaker Sections — 10% reservation in jobs and education (103rd Amendment, 2019)

CEDAW = Convention on the Elimination of All Forms of Discrimination Against Women — UN treaty of 1979

UNCAC = UN Convention against Corruption — Treaty of 2003; India ratified in 2011

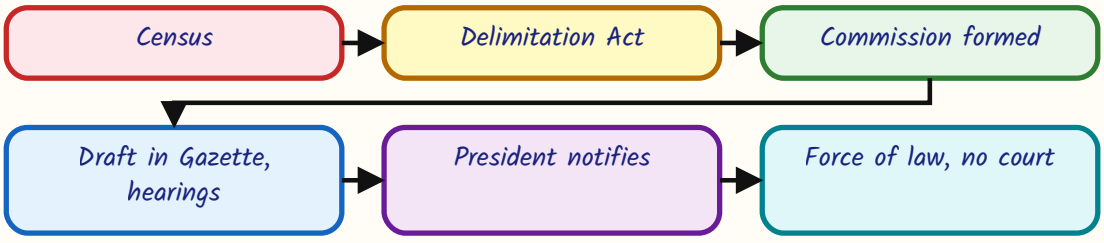
NHRC = National Human Rights Commission — Statutory body under the Protection of Human Rights Act, 1993

DELIMITATION COMMISSION

PYQ Prelims 2024, 2012

✎ *A statutory, independent commission redraws constituencies after each Census; orders have force of law and are non-justiciable. Know Articles, four commissions, 84th Amendment freeze and the J&K 2022 numbers.*

At a glance: the route



1 · MEANING AND RATIONALE

Delimitation = redrawing Lok Sabha and Assembly constituency boundaries to Census population. Ideal: one person, one vote, one value. Also called Boundary Commission. Orders: force of law once President notifies; cannot be challenged in any court PYQ 2012.

Five reasons

- → Equal vote value
- → Demographic shifts (migration, urbanisation)
- → Fair regional representation
- → Strengthens democracy, trust
- → Prevents gerrymandering

E-D-F-S-P – "Every District Fights Some Politics."

R.C. Poudyal v. Union of India (1993) (LK): votes in a less populated constituency are worth more than in a more populated one.

2 · CONSTITUTIONAL FRAMEWORK

Article	Subject
Art 81	Lok Sabha seats by State population
Art 82	readjustment after each Census by Act of Parliament
Art 170	State Legislative Assemblies
330	SC/ST reservation, Lok Sabha
Art 332	SC/ST reservation, Assemblies

L-R-A-S – 81 = Lok Sabha · 82 = Readjustment · 170 = Assemblies · 330, 332 = SC/ST: "Let Real Articles Speak."

84th Amendment Act, 2001: froze total Lok Sabha and Assembly seats on 1971 Census till first Census after 2026. 84th + 87th (2003): seat numbers frozen on 1971, but redrawing and reallocation (incl. SC/ST seats) on 2001 data; new boundaries frozen till first Census after 2026; each constituency near-equal population within a State.

Handout alert: 3rd Commission row says seats fixed till 2001 Census "(later extended till 2026)"; 84th Amendment text says frozen till first Census after 2026. Same freeze, extended by 84th Amendment.

3 · NATURE AND LEGAL STATUS PYQ 2012

Feature	Detail
Nature	statutory but independent; not constitutional; Delimitation Acts 1952, 1962, 1972, 2002
Independence	free of executive and legislature
Backing	Arts 81, 82, 170, 330, 332
Finality	force of law on President's notification
Legislatures	laid before Parliament and State Legislatures for information only; no modification; date fixed by President
Immunity	non-justiciable
Control	Law Ministry, autonomous; Election Commission supports implementation

S-I-C-F-J-A – "Some Ideas Cannot Face Judges, At all."

4 · FOUR COMMISSIONS PYQ 2024

No.	Year	Act	Census	Note
1st	1952	Delimitation Commission Act, 1952	1951	first general elections
2nd	1963	Delimitation Commission Act, 1962	1961	adjusted for growth
3rd	1973	Delimitation Act, 1972	1971	fixed seats till 2001 Census (later 2026)
4th	2002	Delimitation Act, 2002	2001	Justice Kuldip Singh

F-S-T-F — "Fair Seats Taken Fairly." Census years end in 1; Act years 1952, 1962, 1972, 2002.

LK: Delimitation Act, 2002 amended in 2003, 2008, 2016. Fourth Commission covered all States except erstwhile J&K.

Fourth Commission member	Detail
Chairperson	serving/retired SC Judge (Kuldip Singh)
Ex-officio	CEC or nominee; State Election Commissioner
Associates	10 (5 MPs + 5 MLAs nominated by Speakers); no vote, no right to sign orders

ACES — Associates · Chair · Election Commissioner · State Election Commissioner. (Rearranged.) Also "Can Every State Agree".

CLASS · Chairs, the freeze and why a 4th in 2002

DC	Chair (class, verify)
1952	Justice J.C. Aiyar
1963	Justice K.V. Sundaram (written "Sundaran")
1973	Justice J.L. Kapur
2002	Justice Kuldeep Singh (notebook reads "Desai")

Class vs handout: notebook gives "Desai" for the 2002 chair; handout: Kuldip Singh (2002), Ranjana Prakash Desai = 2020 Commission. Handout names no chairs for 1952–73.

1976 — 42nd Am: delimitation postponed to 2000

2001 — 84th Am: postponed to 2026

2002 — 4th DC: intra-State redrawing only

2020 — DC for exempt States, continues the 2002 work

Why a 4th DC in 2002? It only redrew boundaries within States; seat numbers stayed frozen. Exempt: Assam, Manipur, Arunachal, Nagaland, J&K; the 2020 DC took up these pending States (later J&K).

⚡ 5 · FUNCTIONS, PRINCIPLES, PROCEDURE

⚡ Functions (6)

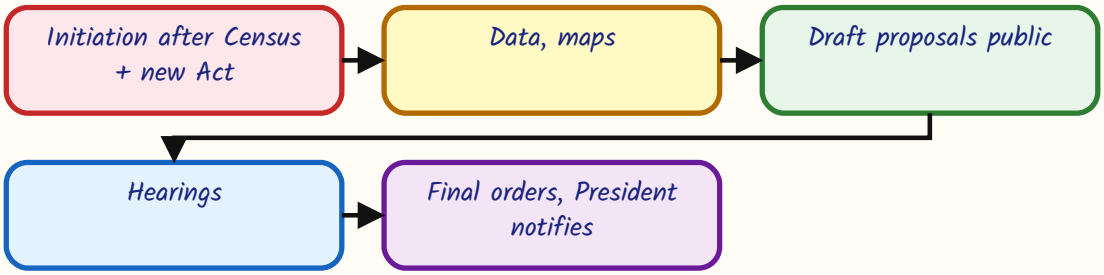
- → redraw on latest Census
- → SC/ST seats (Arts 330, 332) by population
- → population parity in a State
- → administrative integrity: keep district, tehsil, panchayat lines
- → transparency: draft in Gazette and newspapers, objections invited
- → coordinate with Election Commission

💡 Principles (6)

- → Equal representation
- → Geographical contiguity
- → Administrative convenience
- → Physical features (terrain, rivers, transport, density)
- → Public participation
- → Reservation parity

E-G-A-P-P-R — "Every Group Asks Proper Public Representation." (Also: "Even Good Advice Pushes People's Rights".) Order free.

📝 Working procedure



👑 6 · FOURTH COMMISSION: IMPLEMENTATION

2002 formed — **2007** report — **2008** notified — **2009** first Lok Sabha poll

R-N-F — Report 2007, Notified 2008, First poll 2009: "Run Now, Finish."

Applied to 499 of 543 Lok Sabha seats. Excluded: Assam, Arunachal Pradesh, Manipur, Nagaland, Jharkhand. Outcomes: equalised representation; urban gain (Delhi, Maharashtra, Tamil Nadu); administrative coherence; SC/ST seats re-identified on 2001 Census; electoral legitimacy. ⭐

A-A-M-N-J — Left out: Assam, Arunachal, Manipur, Nagaland, Jharkhand: "Always Awaiting Maps, Never Joined." Order free.

Handout alert: 2008 exclusion = five States; 2020 Commission's original brief lists four NE States (no Jharkhand). LK: in 2008 Govt deferred delimitation in four NE States and cancelled final order for Jharkhand; Feb 2020 deferral notifications rescinded; 2020 Commission set up March 2020.

Monitoring

- → Election Commission: maps in roll revision, elections
- → State governments: logistics, administrative divisions
- → Law Ministry: oversight, clarifications or corrections

👑 7 · 2020 COMMISSION AND J&K 2022

Aspect	2020 Commission
Formed	March 2020: Delimitation Act, 2002 + J&K Reorganisation Act, 2019
Brief	four NE States (Assam, Arunachal, Manipur, Nagaland) + UT of J&K
Chair	Justice (Retd) Ranjana Prakash Desai
Ex-officio	Sushil Chandra (Election Commissioner); State Election Commissioner
Associates	5 MPs (J&K Lok Sabha members) nominated by Speaker
2021	March 2021: NE States removed; only J&K
⏳ Tenure	extended twice, till May 2022

LK: first appointed for 1 year; extended 1 year (till Mar 2022), then 2 months (till May 2022). Final J&K order 5 May 2022; report Delimited Landscape of UT of Jammu and Kashmir. Used 2011 Census. ⭐

2022 report	Outcome
🏛️ Assembly seats	90 elected + 2 nominated women (if under-represented)
Region	43 Jammu + 47 Kashmir
🆕 New seats	+7: 6 Jammu, 1 Kashmir
👫 ST (first time)	9: 6 Jammu, 3 Kashmir
👫 SC	7
🏛️ Lok Sabha	5 seats x 18 segments

Cross-region	new Anantnag-Rajouri seat
Names	some renamed (e.g. Shri Mata Vaishno Devi)

S-S-N-S — Seats 90 (43 + 47) · Seven new (6 + 1) · Nine ST (6 + 3) · Seven SC; 5 x 18 = 90: "Some States Need Seats."

Representation proposals: at least 2 Kashmiri migrant members (one woman) nominated, rights like nominated members of Puducherry Assembly; nomination of PoJK displaced persons (left 1947-48, 1965, 1971).

Handout alert: table says "2 nominated women if under-represented"; text says 2 Kashmiri migrant members (one woman) + PoJK nominations. Use table for the 2-women figure, text for migrant/PoJK. LK: J&K Reorganisation Act, 2019: 114 elected seats, 24 vacant for PoJK, so 90 usable (+7); LG nominates 2 women.

Before 2019 (LK): J&K delimited under J&K Constitution in 1957, 1966, 1975, 1995 (on 1981 Census); old Assembly 111 seats incl. 4 Ladakh, 24 for PoJK.

Implications

- → first Assembly election in UT since 2019
- → more representation for Jammu
- → first ST seats: Gujjar-Bakarwal, Pahari
- → EC can revise rolls, prepare polls

Recall drill: cover and answer

Delimitation Articles?	81 LS seats; 82 readjustment; 170 Assemblies; 330, 332 SC/ST	Status of Commission?	Statutory, independent; orders non-justiciable
How many Commissions so far?	Four: 1952, 1963, 1973, 2002	Acts?	1952, 1962, 1972, 2002
84th Amendment (2001)?	Seats frozen on 1971 Census till first Census after 2026	Fourth Commission chair and dates?	Kuldip Singh; report 2007, notified 2008, 2009 poll; 499 of 543
States excluded in 2008?	Assam, Arunachal, Manipur, Nagaland, Jharkhand	Fourth Commission composition?	SC Judge, CEC, State EC, 10 associate members (no vote)
J&K 2022 numbers?	90 seats (43 + 47); +7; 9 ST; 7 SC; 5 LS x 18	2020 Commission chair?	Justice Ranjana Prakash Desai

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ST = Scheduled Tribes — Tribal groups listed under Art 342

UT = Union Territory — Area administered directly by the Union government

CEC = Chief Election Commissioner — Head of the Election Commission

LG = Lieutenant Governor — Administrator of certain Union Territories

COMPETITION COMMISSION OF INDIA

PYQ None quoted (handout only)

✎ CCI regulates market conduct (cartels, abuse of dominance, combinations) under the Competition Act, 2002; replaced MRTP after 1991; know composition, sections, penalty, 2023 Amendment and big-tech cases.

At a glance: from MRTP to CCI



1 · INTRODUCTION AND MRTP BACKGROUND

CCI = guardian of fair markets and consumer welfare; statutory, quasi-judicial, under MCA. Duties: eliminate practices harming competition; promote and sustain competition; protect consumers; ensure freedom of trade. Vision: competition culture through engagement and enforcement; consumer welfare; growth.

MRTP Act, 1969	Detail
Root	DPSP Arts 38 and 39: no "concentration of wealth to the common detriment"
Objectives	prevent monopoly (big houses); regulate restrictive and unfair trade practices; public interest
Body	MRTP Commission
1991	focus shifts from company size to market conduct
Status	repealed; Competition Act, 2002

M-R-P — Monopoly prevention, Regulate trade practices, Public interest: "Make Rules for the Public."

	MRTP 1969	Competition Act 2002
Aim	controls company size, wealth concentration	regulates conduct; competition, consumer welfare
Body	MRTP Commission	CCI
Root	Arts 38, 39	post-1991 market approach
Status	repealed	current

2 · OBJECTIVES (SEVEN)

Objective	Meaning
Anti-competitive agreements	cartels, price-fixing, bid-rigging
Abuse of dominance	unfair pricing, discrimination, denial of market access
Combinations	M&A with "appreciable adverse effect" (AAEC) in India
Promote competition	innovation, efficiency
Protect consumers	choice, quality, fair prices
Freedom of trade	no unfair barriers
Economic efficiency	productivity, technology, competitiveness

FAIR — Freedom of trade · Anti-competitive agreements · Interests of consumers · Regulate combinations. (Part 1 of 2.)

ACE — Abuse of dominance · Competition promoted · Efficiency. (Part 2 of 2.) Also "All Agents Compete, People Profit Fairly, Everywhere".

Three prohibitions: Agreements, Abuse, Combinations; other four = promotion and protection goals. ✅

👥 3 · COMPOSITION

Aspect	Provision
Basis	Competition Act, 2002, amended 2007, in force 2009
💡 Nature	statutory, quasi-judicial, MCA
👥 Strength	Chairperson + up to 6 Members
📦 Appointed by	Centre on recommendation of Selection Committee chaired by CJI or SC Judge nominated by him
🎓 Eligibility	integrity, ability; law, economics, commerce, finance, accountancy, management, public affairs
⏳ Tenure	5 years or 65, earlier one; reappointment eligible
🚪 Removal	Centre, after inquiry: insolvency, infirmity, misbehaviour, conviction, incapacity
⏳ Service terms	by Centre; not altered to disadvantage
HQ	New Delhi; regional offices Mumbai, Kolkata, Chennai, Bengaluru

L-E-C-F-A-M-P — Fields: Law, Economics, Commerce, Finance, Accountancy, Management, Public affairs: "Let Experts Control Fair Activity, Market Policy."

I-I-M-C-I — Removal: Insolvency, Infirmity, Misbehaviour, Conviction, Incapacity: "I Insist Men Comply, Instantly."

Numbers

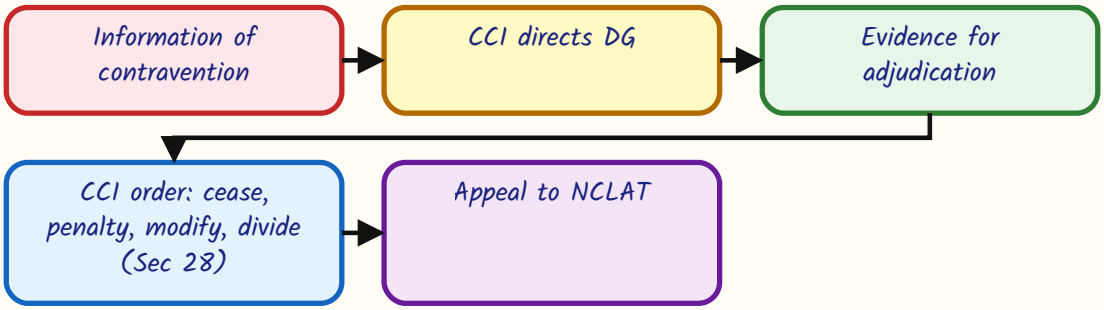
- → 1 + 6 members
- → 5 years or 65
- → CJI chairs selection
- → MCA
- → appeals to NCLAT.

⚡ 4 · POWERS (SEVEN GROUPS)

Power	What it does
1 Regulatory	agreements under Sec 3; conduct causing AAEC; e.g. Google 2022
2 Adjudicatory	cease-and-desist, penalties, modify agreements; divide enterprises (Sec 28); appeal to NCLAT
3 Investigative	directs Director General (DG): search, seizure, examination like civil court
4 Advisory	opinions to Centre/States; market studies (telecom, e-commerce, digital ads); outreach
5 Combinations	Sec 5 and Sec 6: approve, reject, modify; e.g. Sony-Zee 2023 with safeguards
⚖️ 6 Civil court	summon, documents, evidence on oath, inquiries
7 Penal	up to 10% of average turnover; cartels: up to 3 times profit or 10% of turnover, whichever higher

R-A-I-A-C-C-P — "Right Actions Impose Accountability Clearly, Court-Proof." (Order free.) Section map: 3 agreements, 5–6 combinations, 28 division.

⚖️ Case path



🔧 5 · RECENT REFORMS (2020-25)

📬 Competition (Amendment) Act, 2023

→ Deal value threshold: big-tech/start-up buyouts under scrutiny despite low target turnover
→ penalty guidelines on global turnover
→ Settlement and commitment before adjudication

D-P-S — Dealmakers Pay Settlements: Deal value · Penalty (global turnover) · Settlement. Also "Deals Get Scrutinised".

DMDU (2024): Digital Markets and Data Unit; data concentration, algorithmic pricing, platform gatekeeping; aligns with EU DMA and UK CMA. ⭐

Case	Year	What happened
Google, Android	2022	Rs 1,338 crore; restricted app developers, forced pre-installation; users may uninstall; third-party stores allowed; parallel to EU action
Apple, App Store	2023	probe into 30% in-app commission
Amazon, Flipkart	2021	preferential listings, exclusive deals; algorithm scrutiny, fair-play commitments

G-A-A — Giants Are Accountable: Google · Apple · Amazon-Flipkart. Also "Good Appetite Always".

👥 Advocacy, strengthening

→ studies: telecom 2021, pharma 2022, digital advertising 2023
→ interoperability, data portability vs "walled gardens"
→ campaign "Fair Competition for a Vibrant Economy" (2024)
→ coordination with SEBI, RBI, MeitY; AI analytics for cartels, predatory pricing
→ offices in Bengaluru, Mumbai expanded
→ Google v. CCI (2023): NCLAT and SC upheld CCI orders; natural justice stressed

Handout alerts: (1) penalty: 10% of average turnover cap, 2023 Act links to global turnover, yet challenges say it still needs operationalising. (2) DMDU launched 2024; way forward asks for a DMDU with forensic capability (strengthen it).

⚠️ 6 · CHALLENGES (SEVEN)

Challenge	Detail
1 Digital complexity	algorithms, data ecosystems; hard to prove dominance
2 Weak deterrence	fines on Indian revenue only, too low for global MNCs; 2023 partial fix
3 Delays, backlog	over 350 cases pending (2024)
4 Overlap	TRAI, SEBI, MeitY; forum shopping
⚠️ 5 Global coordination gaps	no bilateral cooperation with global regulators
6 Expertise deficit	digital economists, data scientists
7 Compliance, advocacy	weak among small firms; low awareness outside metros

D-L-P-O-G-R-C — "Dear Leaders, Please Open Good Reforms, Clearly."

🔧 7 · WAY FORWARD

Step	Detail
📜 1 Digital law	Digital Competition Act (2024 Standing Committee on Finance): gatekeepers, interoperability, no self-preferencing
🌐 2 Global cooperation	European Commission, US FTC, OECD
3 Capacity	data analysts, AI experts; DMDU forensics
4 Binding penalties	operationalise global-turnover penalties
🔧 5 Quick resolution	settlements, commitments
6 Awareness	outreach, universities
7 Autonomy	financial, functional; transparent appointment of Members and DG

D-G-I-B-E-A-A — "Don't Give In, Be Ever Alert, Act."

Answer frame: move from reactive enforcement to forward-looking market regulator; balance competition, innovation, consumer welfare. ✅

Recall drill: cover and answer

CCI law and dates?	Competition Act 2002; amended 2007; in force 2009	Law replaced?	MRTP Act 1969 (Arts 38, 39)
CCI strength and tenure?	Chair + up to 6; 5 years or 65; reappointment eligible	Selection Committee head?	CJI or SC Judge nominated by him
Ministry? Appeal to?	MCA; NCLAT	Sections?	3 agreements; 5-6 combinations; 28 division
Penalty?	Up to 10% avg turnover; cartels 3x profit or 10%, higher	2023 Amendment?	Deal value threshold; global turnover penalty; settlement and commitment
Google Android fine?	Rs 1,338 crore, 2022	DMDU?	Digital Markets and Data Unit, 2024

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CCI = Competition Commission of India — Regulator that prevents anti-competitive practices under the Competition Act, 2002

NCLAT = National Company Law Appellate Tribunal — Hears appeals against CCI and NCLT orders

CJI = Chief Justice of India — Head of the Supreme Court

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

EU = European Union — Political and economic union of European countries

SEBI = Securities and Exchange Board of India — Regulator of the securities market

AI = Artificial Intelligence — Machines performing tasks that need human-like intelligence

DPSP = Directive Principles of State Policy — Part IV (Arts 36-51): goals the State should pursue; not enforceable in court

DMA = Department of Military Affairs — Department in the Ministry of Defence headed by the CDS

RBI = Reserve Bank of India — Central bank; regulates banks and conducts monetary policy

TRAI = Telecom Regulatory Authority of India — Regulator of the telecom sector

OECD = Organisation for Economic Co-operation and Development — Club of mostly rich economies

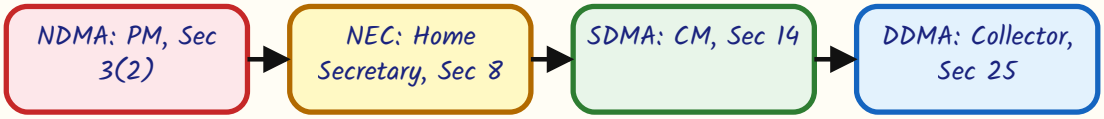
DG = Director General

DISASTER MANAGEMENT AUTHORITIES

PYQ 2016 (two essay-type questions: NDMA guidelines and Uttarakhand cloudbursts; 2004 tsunami and NDMA 2010 guidelines; handout labels them Prelims)

✎ DM Act, 2005 built a three-tier system (PM-led NDMA, CM-led SDMA, Collector-led DDMA); know sections 3(2), 8, 12-14, 14, 25, composition and the 2020-25 initiatives with numbers.

At a glance: three tiers



1 · WHY THE ACT AND WHAT NDMA IS

Disaster Management Act, 2005: first statutory framework for preparedness, mitigation, response, recovery; shift from relief-centric to disaster-risk management. NDMA = apex policy body, chaired by PM, under MHA (Dept of Disaster Management). Chain: NDMA, SDMAs, DDMAs.

Background (LK): High Powered Committee (1999), National Committee (2001, after Gujarat earthquake); Act after 2004 tsunami. NDMA first constituted 2005 by Executive Order, notified 2006 under the Act.

Vision: safer, disaster-resilient India through holistic, proactive, technology-driven, sustainable development; links DRR with sustainable development and climate resilience. LK adds: involves all stakeholders; culture of prevention, preparedness, mitigation.

In the news · Aug 2026 (verify dates) Heatwave notified disaster: heatwaves and lightning added to notified disasters for 2026-31; earlier States could spend only up to 10% of SDRF on locally notified disasters; mitigation funds now cover heatwaves.

In the news · July 2026 (verify dates) NDMA landslide strategy: magazine urges implementing NDMA Strategy (2019): mountain zone regulations, community awareness, dedicated landslide research centre.

2 · NDMA: COMPOSITION AND STRUCTURE

Position	Provision	Details
Chairperson	Sec 3(2)	Prime Minister, ex-officio
Vice-Chairperson	nominated by Chair	Cabinet Minister status
Members	up to nine, nominated by Chair	MoS rank; thematic charge (early warning, logistics, training)
Control	–	MHA, Dept of Disaster Management
Secretariat	Sec 8	NEC headed by Union Home Secretary

Component	Head	Function
NDMA	PM	policy, national plans, coordination
NEC	Home Secretary	implements NDMA policies
NIDM	autonomous, MHA; New Delhi (LK)	training, research, capacity building
NDRF	Director General	specialised rescue and relief force

P-V-M – PM chairs, Vice-chair Cabinet rank, Members MoS: "Power Values Ministers." Support: "Never Neglect NDRF" (NEC, NIDM, NDRF). Sections: 3(2) then 8.

3 · OBJECTIVES (NINE)

#	Objective	Meaning
1	Culture of prevention, preparedness	relief to pre-disaster risk management
2	Integrate DRR in development	vulnerability assessment in all projects
3	Techno-legal frameworks	laws, guidelines, institutions
4	Risk identification, early warning	forecasting, hazard mapping, real-time data
5	Community capacity	local authorities, NGOs, citizens
6	Sustainable, eco-friendly mitigation	technology + traditional wisdom
7	Inclusive response	women, children, elderly, disabled
8	Media, public communication	awareness, timely warnings (LK: reconstruction as chance for resilient habitat)
9	International cooperation	neighbours, global agencies

P-I-E-I-B-E-E-S-P – "Please Include Every Indian; Build Eco-friendly, Equal, Strong Partnerships." (Order of the nine.)

4 · FUNCTIONS (SIX HEADS) PYQ 2016

1 Policy, planning
- → national policies
- → approves NDMP
- → approves plans of Central Ministries (LK: guidelines for SDMA plans, ministries)
- → guides SDMAs, uniform standards

2 Integration, coordination
- → DRR in all Central and State programmes
- → via NEC and ministries
- → inter-ministry, inter-state resources
- → technical and financial guidance

3 Mitigation, preparedness
- → guidelines with scientific institutions
- → capacity building: NIDM, state institutes
- → early warning, forecasting, hazard mapping
- → climate resilience, eco-friendly practices

4 Emergency response
- → general supervision and control over NDRF
- → minimum relief standards: food, shelter, medical aid
- → relief in loan repayment / concessional loans
- → emergency procurement, tenders waived

5 International
- → humanitarian aid abroad
- → UN bodies, ASEAN, SAARC, BIMSTEC
- → Sendai Framework (2015–2030)
- → LK: policies for NIDM

6 Oversight, reporting
- → annual report to Centre, before Parliament
- → review SDMAs, DDMAs, NDRF
- → evaluate guidelines; accountability

P-I-M-E-I-O – "Please Inspect My Emergency Inventory Often."

Head 4 in one line: NDRF control + relief standards + loan relief + procurement without tenders. **LK:** also recommends funds for mitigation; support to other countries. ✅

⚡ 5 · ADDITIONAL FUNCTIONS (SECS 12–14)

Head	What NDMA does
1 Relief standards	minimum relief: food, water, shelter, clothing, medical; psychosocial support (children, women, elderly); loan relief or concessional loans
2 NDRF control	superintendence, direction, control; DG works under NDMA supervision via MHA
3 Emergency procurement	provisions, materials, equipment; tenders waived
4 Annual report	laid before both Houses; basis for policy updates, budgets
🌐 5 International, technical	Operation Sagar Bandhu (Sri Lanka, 2025); Sendai; UNDP, WHO, World Bank

REACT — Relief standards · Emergency procurement · Annual report · Control of NDRF · Technical and international collaboration. (Rearranged.)

Handout alert: additional NDMA functions from Secs 12–14, yet SDMA is under Sec 14. Use as written: 12–14 NDMA functions, 14 SDMA, 25 DDMA.

6 · SDMA

Sec 14; apex state body; every State and UT with a legislature must set one up. SDMAs link NDMA and DDMAs; adapt national policy to coastal, hilly, drought-prone States. 💡

📰 *In the news · July 2026 (verify dates)* Flood control: in none of the three lists; drainage and embankments in State List Entry 17; DM Act, 2005 is the legal framework.

Position	Role
Chairperson	Chief Minister, ex-officio
Vice-Chairperson	nominated by Chair from members
👥 Members	up to 9 nominated; heads of Home, Health, Agriculture, Finance, Urban Development
👥 Ex-officio member / CEO	Chair of State Executive Committee (usually Chief Secretary)

Handout alert: State Executive Committee chair appears as ex-officio member and as ex-officio CEO: one person, both roles. LK differs: chair + other members not over 9, SEC chair ex-officio and nominated members not over 8 (by CM). Use handout; remember LK's 8.

⚡ SDMA functions

Policy, planning
- → State Policy per National Policy
- → approve SDMP
- → approve Departmental plans
- → DRR in State development

Coordination
- → implement SDMP
- → recommend mitigation funds
- → oversee State Executive Committee

Monitoring
- → review departmental, district plans (LK: development plans too)
- → monitor capacity and preparedness
- → guidelines for prevention

→ Annual Report to State Govt, laid before State Legislature

P-D — "Plans Down the line": State policy, SDMP, Departmental plans.

7 · DDMA

Sec 25; district apex body; every district must have one; decentralised preparedness, rapid local response. 💡

Position	Role
Chairperson	Collector / DM / Deputy Commissioner, ex-officio
Co-Chairperson	elected representative of local authority; tribal (Sixth Schedule) areas: Chief Executive Member of District Council
With Zilla Parishad	ZP Chairperson = Co-Chair
👥 Ex-officio members	CEO of DDMA, Superintendent of Police, Chief Medical Officer
👥 Other members	up to two district officers nominated by State
CEO	appointed by State Government; executive head

📌 **EMS** — Executive head (CEO) · Medical (CMO) · SP. (Rearranged.) Also "Collectors Count Many Men".

LK count: chair + members not over 7: Collector, Co-Chair, CEO, SP, CMO, up to 2 nominated = 7. ⭐

⚡ DDMA functions

Planning
- → DDMP with District Response Plan (DRP)
- → identify prone areas, vulnerable groups
- → risk mapping, resource inventory
- → community preparedness: schools, NGOs, local bodies

Coordination
- → National, State, District plans
- → ensure NDMA/SDMA guidelines followed
- → oversee Emergency Operation Centres
- → train officers, voluntary rescue workers

Mitigation, response
- → early warning, alerts
- → rescue, relief, rehabilitation
- → relief centres, shelters
- → medical preparedness, epidemic control, psychosocial care
- → LK: identify buildings for relief camps; advise district departments, bodies, NGOs

Monitoring
- → review departments, local bodies
- → evaluate district plans
- → update resource data

→ Reports periodically to SDMA and State Govt; State may assign extra duties; grass-roots, "community-centric" resilience

8 · THREE TIERS COMPARED

Point	NDMA	SDMA	DDMA
📜 Section	3(2) chair; 8 NEC; 12–14 functions	14	25
Chair	Prime Minister	Chief Minister	Collector / DM / DC
Deputy	Vice-Chair (Cabinet status)	Vice-Chair from members	Co-Chair (local authority / ZP)
👥 Members	up to 9 (MoS)	up to 9	SP, CMO, CEO + up to 2
👑 Executive arm	NEC (Home Secretary)	State Executive Committee (Chief Secretary, CEO)	CEO by State
Plan	NDMP	SDMP + departmental	DDMP + District Response Plan
Report	to Parliament	to State Legislature	to SDMA and State Govt

P-C-C — Prime Minister, Chief Minister, Collector: "Policies Cascade Correctly." Sections 3(2) – 14 – 25; NEC 8; extra functions 12–14.

🆕 9 · RECENT INITIATIVES: FRAMEWORKS AND WARNING

Shift to multi-hazard, technology-driven, climate-resilient, anticipatory risk governance. 💡

Frameworks

→ NDMP 2023: aligned with Sendai (2015–2030) and SDG 13; whole-of-government, whole-of-society; gender-sensitive; pandemics, cyber disasters, CBRN, climate migration

→ Climate Risk Atlas (2022): NDMA + Environment Ministry; district vulnerability to floods, heatwaves, cyclones; NAPCC 2.0

Tool	Year	Number / partner
Climate Risk Atlas	2022	NDMA with Environment Ministry
EWDS	2021–24	coastal to inland flood districts; ISRO, IMD; CAP with DoT
Landslide Atlas	2022	147 districts; IMD, IIT Roorkee, NRSC
FFGS	all river basins	6–12 hour alerts

C-E-L-F — "Cool Early Lookouts Forewarn": Climate Atlas, EWDS, Landslide Atlas, FFGS.

🌐 10 · RECENT INITIATIVES: PEOPLE, CITIES, TECH, WORLD

Capacity, community

→ Aapda Mitra Phase II (2022–27): NDMA–MHA; 1 lakh volunteers, 350 districts; first response, crowd control, search and rescue

→ NSSP 2.0: UNICEF, NCERT; 25,000+ schools; drills, curriculum, retrofitting

Urban, technology

→ Urban Flood Mitigation Project (2023): 98 cities; MoHUA; stormwater, micro-drainage, green infrastructure

→ AI and drones for damage assessment (Cyclone Biparjoy 2023)

→ DMIS: ISRO, NIC; satellite imagery + crowd reports

Pandemic, biological

→ post-COVID Health Emergency Management Cells, national and state

→ new NIDRHS (National Institute for Disaster Resilience and Health Security) planned

→ SDMAs: district pandemic plans after 2021

🌐 World

→ "first responder" in South Asia: CDRI, BIMSTEC Disaster Management Framework (2022)

→ co-chair G20 DRR Working Group (2023–24)

Operation / mission	Where	Year
Sagar Bandhu	Sri Lanka	2025
🧑‍🤝‍🧑 Dost	Turkiye-Syria	2023
Karuna	Myanmar	2023

S-D-K — Sailors Deliver Kindness: Sagar Bandhu, Dost, Karuna.

I-E-C-U-P-W — Six themes: Institutional · Early warning · Capacity · Urban/tech · Pandemic · World: "India's Experts Call Us Promptly, Worldwide."

Numbers

- → 2023 NDMP and Urban Flood (98 cities)
- → 2022 Atlas and Aapda Mitra II (1 lakh, 350 districts)
- → 25,000 schools
- → 147 districts.

Source doubts: the two PYQs are labelled "Prelims" but are essay-type (no options; answers not printed). Function-list numbering jumps in the handout (PDF formatting); read as complete lists.

Recall drill: cover and answer

DM Act year? Shift?	2005; relief-centric to risk management	Who chairs NDMA, SDMA, DDMA?	PM; CM; District Collector
Sections?	3(2) chair; 8 NEC; 12-14 functions; 14 SDMA; 25 DDMA	NDMA members?	Vice-Chair (Cabinet status) + up to 9 (MoS rank)
Who heads NEC?	Union Home Secretary	DDMA members?	Co-Chair, CEO, SP, CMO + up to 2 nominated
NDMA emergency powers?	NDRF control, relief standards, loan relief, procurement without tenders	Aapda Mitra II?	2022-27; 1 lakh volunteers; 350 districts
Rescue operations abroad?	Sagar Bandhu 2025, Dost 2023, Karuna 2023	Landslide Atlas / FFGS?	147 districts / all river basins, 6-12 hr alerts

🔤 Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

NDMA = National Disaster Management Authority — Apex disaster body under the DM Act, 2005; PM is chair

NEC = North Eastern Council (or National Executive Committee, by context) — Advisory body for the North East; under the DM Act the NEC assists the NDMA

NDRF = National Disaster Response Force — Specialised force for disaster response

DM = District Magistrate (or Disaster Management, by context) — Head of district administration; in GS3, the DM Act, 2005 sets up disaster bodies

PM = Prime Minister — Head of the Union government

DRR = Disaster Risk Reduction — Measures to reduce disaster losses (Sendai Framework)

CM = Chief Minister — Head of a State government

MHA = Ministry of Home Affairs — Union ministry for internal security, Centre-State matters and disaster management

ISRO = Indian Space Research Organisation — India's space agency

UN = United Nations — World body of states founded in 1945 for peace, security and cooperation

ASEAN = Association of Southeast Asian Nations — Ten-member Southeast Asian bloc; central to India's Act East policy

SAARC = South Asian Association for Regional Cooperation — Eight-member regional grouping, largely stalled

UNDP = United Nations Development Programme — UN body that publishes the Human Development Report

UT = Union Territory — Area administered directly by the Union government

SDG = Sustainable Development Goals — 17 UN goals to be met by 2030

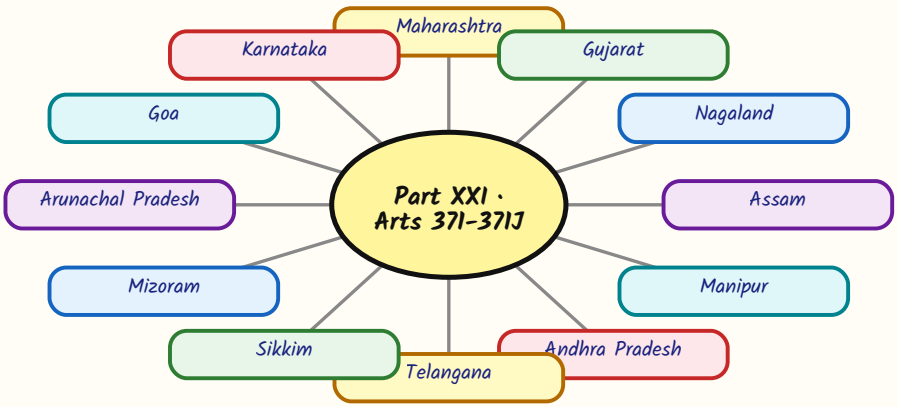
AI = Artificial Intelligence — Machines performing tasks that need human-like intelligence

SPECIAL PROVISIONS FOR SOME STATES

PYQ None quoted in the handout (handout only, no class slides)

✎ *Part XXI gives 12 states tailor-made rules (Arts 371 to 371J): learn the Article-state-Amendment table, the numbers (30, 40, 35, 37%) and the 2021-25 controversies.*

🗺️ At a glance: the 12 states



Part XXI = "Temporary, Transitional and Special Provisions". Arts 371 to 371J were not in the original Constitution; added by amendments (state reorganisation or UT turned state). Aims: backward regions, tribal culture and land, law and order, local people. = asymmetric federalism.

7 letters – 371 Maharashtra-Gujarat · A Nagaland · B Assam · C Manipur · D-E Andhra-Telangana · F Sikkim · G Mizoram · H Arunachal · I Goa · J Karnataka

📜 WHY SPECIAL PROVISIONS

Dimension	Rationale	Explanation
👥 Constitutional	Substantive equality	treat unequals differently for justice; uniformity can be unjust
Historical	Integration of diverse regions	princely states, tribal and frontier areas after Independence
Colonial legacy	Neglect	under British rule and princely administration
Socio-cultural	Tribal identity	customary laws, social practices, religion, land ownership
Cultural pluralism	Prevents homogenisation	respects India's diversity
Geographical	Difficult terrain	hilly, remote regions need flexible governance
🛡️ Strategic / security	Border sensitivity	international borders, insurgency

C-H-C-S-C-G-S – Constitutional equality, Historical integration, Colonial legacy, Socio-cultural tribal identity, Cultural pluralism, Geographical terrain, Security borders: "Can Hill Communities Stay Culturally Grounded, Safe?"

🗺️ FEATURES AND ASYMMETRIC FEDERALISM

💡 Features of Part XXI

→ 12 states under Arts 371–371J
→ added by amendment, not original
→ Temporary in name: no explicit expiry dates; Parliament can amend as conditions change
→ Tools: Governor's special responsibility, development boards, Assembly committees, local reservation, minimum Assembly size

UT exceptions

→ Art 239A: local legislature for Puducherry
→ Art 239AA: Delhi NCT legislates on State and Concurrent subjects, except police, public order, land

Asymmetric federalism: political, administrative and fiscal powers shared unevenly among units. Vertical = Centre vs States; Horizontal = State vs State. 💡

Type	Evidence
🗺️ Vertical: strong Union	Indestructible Union of destructible States (Art 1); residuary powers with Union (Art 248); Emergency overrides States; amendment initiation only with Union; Governor and President's Rule as supervisory roles
🛡️ Horizontal: regional protection	Art 371 for backwardness, security hurdles, geography, tribal identity; Sixth Schedule high autonomy in four NE States
💰 Representation and fiscal	Seats in Parliament by population (not equal); Special Category Status: extra funds to 11 States

I-R-E-A-S – Vertical five: Indestructible (Art 1), Residuary (Art 248), Emergency, Amendment initiation, Supervisory (Governor, President's Rule): "I Rule Every Assembly Strongly". Horizontal = Art 371, Sixth Schedule, SCS, seats by population.

⏳ Key terms

→ Special responsibility: duty given by President to Governor to act in own judgment (Nagaland 371-A, Arunachal 371-H)
→ Development board: Vidarbha, Marathwada, Saurashtra, Kutch; Hyderabad-Karnataka; annual report to Assembly
→ Local cadre: civil posts organised by part of state with local preference (371-D)
→ Administrative Tribunal (371-D): service disputes outside High Court; only Supreme Court has jurisdiction
→ Hill Areas Committee (HAC): Manipur 371-C; consultative, not legislative like Sixth Schedule

ARTICLE-BY-ARTICLE TABLE: 371 TO 371J

Art	State	Amendment	Special provision
371	Maharashtra, Gujarat	7th Am, 1956 (also Bombay Reorganisation Act, 1960)	President authorises Governor's special responsibility: separate development boards for Vidarbha, Marathwada, rest of Maharashtra; Saurashtra, Kutch, rest of Gujarat; annual report to Assembly; equitable funds; technical education, vocational training, employment in state services
371-A	Nagaland	13th Am, 1962	Parliament Acts on Naga religious/social practices, customary law, justice under it, land ownership and transfer do not apply unless Assembly decides. Governor: law and order in internal disturbance (individual judgment after consulting Council of Ministers; decision final, cannot be questioned). Central funds for a purpose go in that demand for grant. Tuensang: 35-member regional council (Deputy Commissioner ex-officio Chairman; Vice-Chairman elected); special provisions 10 years from formation of Nagaland or longer as Governor specifies; Governor runs district; Minister for Tuensang affairs; its MLAs elected by the council
371-B	Assam	22nd Am, 1969	President may provide committee of Assembly with members from Tribal Areas (North Cachar Hills, Karbi Anglong, Bodoland Territorial Areas) and others
371-C	Manipur	27th Am, 1971	Committee of members from Hill Areas (as President declares by order); Governor's special responsibility for its working; annual report to President; Centre can give directions
371-D, 371-E	Andhra Pradesh, Telangana	32nd Am, 1973; AP Reorganisation Act, 2014	371-D: equitable public employment and education; local cadres; local areas for admission and reservation; Administrative Tribunal outside HC (only SC); President may abolish it; set up by AP Administrative Tribunal Order, 1975. 371-E: Parliament may set up Central University in AP. AP taken out of Art 371 by the 32nd Am
371-F	Sikkim	36th Am, 1975	Assembly not less than 30; one Lok Sabha seat; Parliament may fix seats for sections and delimit; Governor's special responsibility for peace and equitable advancement (discretion, subject to President's directions); President can extend state laws with changes
371-G	Mizoram	53rd Am, 1986	Parliament Acts on Mizo practices, customary law, justice, land do not apply unless Assembly decides; Assembly not less than 40
371-H	Arunachal Pradesh	55th Am, 1986	Governor: law and order (individual judgment after consulting Council of Ministers; ends on President's direction); Assembly not less than 30
371-I	Goa	56th Am, 1986	Assembly not less than 30
371-J	Karnataka	98th Am, 2012	Governor's special responsibility: board for Hyderabad-Karnataka (annual reports, equitable funds); reservation in education, vocational training and state posts for the region; local cadres for HR enhancement and jobs. Region = six districts: Gulbarga, Bidar, Raichur, Koppal, Yadgir, Bellary; Assembly and Council passed resolutions in 2010

Source conflicts: (1) Sikkim: table says Assembly "not less than 30"; Recent Events says 32-member. Use 30 as the 371-F floor, 32 as actual strength. (2) Significance says the "Governor" sets up boards for Maharashtra and Gujarat; table says President authorises Governor. Use the table. (3) Goa 371-I: handout 56th Am 1986; Lakshmikanth says 1987. Use 1986 in class, keep 1987 in mind.

1956
7th: Art 371

1962
13th: 371-A

1969
22nd: 371-B

1971
27th: 371-C

1973
32nd: 371-D, E

1975
36th: 371-F

1986
53rd G · 55th H · 56th I

2012
98th: 371-J

S-T-T-T-T-T – Seven (371), Thirteen (A), Twenty-two (B), Twenty-seven (C), Thirty-two (D), Thirty-six (F): "Sly Tigers Take Ten Tasty Treats." Then 53, 55, 56 (all 1986) and 98 (2012).

M-N-A-M-A-C – Articles 371 to 371-E in order: Mountain Nagas Assamese Manipuris Attend Colleges. M Maharashtra-Gujarat (371) · N Nagaland (A) · A Assam (B) · M Manipur (C) · A Andhra (D) · C Central University (E)

S-M-A-G-K — Articles 371-F to 371-J in order: Snowy Mountains Attract Goa Kayakers. S Sikkim (F) · M Mizoram (G) · A Arunachal (H) · G Goa (I) · K Karnataka (J)

REGION — Karnataka 371-J: Report yearly to Assembly · Education seats reserved · Government posts reserved · Institutional mechanism (HR, local cadres) · Outlay equitable · New separate board. All six provisions.

PACT — Nagaland and Mizoram (371-A, 371-G): Practices religious/social · Administration of justice by customary law · Customary law · Transfer and ownership of land. Parliament Act applies only if Assembly decides.

M-N-A-M-A-S-M-A-G-K — "My Neighbour Always Makes Appetising Soup, Mostly As Good Khichdi." (Maharashtra-Gujarat, Nagaland, Assam, Manipur, Andhra-Telangana, Sikkim, Mizoram, Arunachal, Goa, Karnataka)

Numbers	Where
35	Tuensang regional council members (371-A)
10 years	Special provisions for Tuensang (371-A)
30	Minimum Assembly: Sikkim (371-F), Arunachal (371-H), Goa (371-I)
40	Minimum Assembly: Mizoram (371-G)
1	Lok Sabha seat for Sikkim

📰 *In the news · July 2026 (verify dates)* Ladakh: an apex body above the seven Ladakh councils is proposed under a customised Article 371 framework; its powers and relation with the LG remain undefined.

PATTERNS IN THE TABLE

Patterns

📜 **Customary law and land shield**
→ 371-A Nagaland and 371-G Mizoram: practices, customary law, justice, land; Assembly decides

🤝 **Governor's special responsibility**
→ Law and order: Nagaland 371-A, Arunachal 371-H (individual judgment after consulting Council of Ministers)
→ Development or welfare: Maharashtra, Gujarat (boards), Sikkim (peace, equitable advancement), Karnataka (board, local reservation), Manipur (hill committee)

⚖️ **Jobs, cadres, tribunals**
→ 371-D AP, Telangana: employment, local cadres, local admission areas, tribunal under SC only; 371-E Central University
→ 371-J Karnataka: reservation in education, training, state posts; local-cadre mechanism

🗳️ **Hills and tribal committees**
→ 371-B Assam: committee with Tribal Areas members
→ 371-C Manipur: Hill Areas committee, Governor's annual report to President, Centre's directions

N-A — Governor's law-and-order pair: Nagaland and Arunachal: "No Alarm": individual judgment after consulting Council of Ministers.

💡 SIGNIFICANCE: FOUR STRANDS

Strand	Point
1. National integration	"political safety valve"; neutralised secessionism (Nagaland, Mizoram brought insurgents to the table); Sikkim: 371-F moved it from "Associate State" to full member
👫 2. Cultural and tribal identity	protects "way of life"; 371-A, 371-G bar Parliament without Assembly consent; land rights: stops alienation to outsiders
3. Regional disparities	"equitable development"; boards for Vidarbha, Marathwada, Saurashtra, Kutch fix a portion of state budget; 371-D, 371-J local reservation stops "brain drain"
🛡️ 4. Administration and security	Governor's special responsibility in border states; 371-H Arunachal; 371-C Manipur hill committee so valley majority does not overshadow

N-C-R-A – National integration, Cultural and tribal identity, Regional disparities, Administrative and security: "No Community Right Abandoned".

🆕 RECENT EVENTS AND CONTROVERSIES (2021-25)

Article and state	Event	Takeaway
371A Nagaland (2021-24)	SARFAESI conflict: NEDFi v. L. Doulo Builders: no Parliament Act on land applies without Assembly resolution (SARFAESI lets banks seize defaulters' property)	local "Indigenous" status is prerequisite for land ownership; banking laws cannot override
371C Manipur (2023-25)	2023 violence after High Court order suggesting ST status for Meiteis, feared by Kuki/Naga hill tribes; Nov 2025: Kuki-Zomi demand "Separate Budget" or "Separate Administration" citing 371C	Hill Areas Committee is consultative, not legislative like Sixth Schedule
🆕 371D AP, Telangana (2024)	After 2014 bifurcation, employees stuck in allocation disputes; 2024 SC ruling gave finality to allocation of state-level employees	local cadre principle: one state's residents do not dominate the other's jobs
371J Karnataka (2022-25)	Kalyana-Karnataka (formerly Hyderabad-Karnataka); 2024: 37% reservation for locals upheld; 2025: board scope widened to industrial clusters	targeted economic growth, not only social reservation
🆕 Art 371F Sikkim (2024)	2024 polls: Sangha seat (monks) and Bhutia-Lepcha parity reinforced	32-member Assembly and ethnic reservations (as handout says)

Judicial and national context (2023-25)	Point
👑 Governor's discretion (371H, 371A), 2023	SC: Governors with special responsibility have no "parallel government"; must consult Council of Ministers except where "individual judgment" is given
💰 2025 Budget "NE Push"	Art 371 framework: funds via Regional Development Councils, bypassing red tape
Mizoram 371G and UCC, 2023-24	Assembly resolutions: UCC cannot apply without consent (Mizo customary law)
📜 Article 370 contrast	After 2019 abrogation, NE feared 371 next; Centre: 371 is permanent, "Unity in Diversity"
⚖️ 2023 J&K verdict	SC: special provisions for some states are essential federal features; differ from "internal sovereignty" claimed under Art 370

Conclusion: Art 371 = "New Frontier" of federalism; **not erosion but enhancement** of the Constitution; unity in diversity so no region feels forced into a monolithic mould. ✅

S-H-C-K-S – Five controversies: SARFAESI (Nagaland), Hill committee and Meiteis (Manipur), Cadres (AP-Telangana), Karnataka 37%, Sangha seat (Sikkim): "Some Hard Cases Keep Showing up."

2014
AP Reorg Act: 371-D, E extend to Telangana

2019
Art 370 abrogated

2023
Manipur violence; SC J&K verdict

2024
AP-Telangana cadre ruling; 37% quota; Sikkim polls

2025
NE Push budget; Kuki-Zomi demand (Nov)

Recall drill: cover and answer

Which 12 states are in Part XXI?	Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, Karnataka	Article and Amendment for Nagaland?	371-A, 13th Amendment, 1962
Which Amendment gave Karnataka 371-J?	98th Amendment, 2012 (Hyderabad-Karnataka, six districts)	Minimum Assembly size: Sikkim, Arunachal, Goa, Mizoram?	30, 30, 30 and 40
Which two states have customary-law and land shield?	Nagaland (371-A) and Mizoram (371-G): Assembly decides	Governors with law-and-order special responsibility?	Nagaland (371-A) and Arunachal (371-H)
Which Article has the Administrative Tribunal?	371-D (AP, Telangana): only the SC has jurisdiction	Delhi NCT cannot legislate on?	Police, public order, land (Art 239AA)
Tuensang council: members and years?	35 members; special provisions 10 years	Goa 371-I: handout vs Lakshmikanth?	56th Am 1986 (handout) vs 1987 (LK)

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

- AP = Andhra Pradesh — State in south India
- SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list
- UT = Union Territory — Area administered directly by the Union government
- UCC = Uniform Civil Code — Proposed common personal laws for all citizens (Art 44)
- SCS = Special Category Status — Earlier Centre-State funding status for hill and border States
- HC = High Court — State-level constitutional court (Art 214)
- LG = Lieutenant Governor — Administrator of certain Union Territories
- ST = Scheduled Tribes — Tribal groups listed under Art 342
- HAC = Hill Areas Committee

OFFICIAL LANGUAGE

PYQ None quoted in the handout (handout only, no class slides)

India has an Official Language but no National Language: the Munshi-Ayyangar compromise, Arts 343-351 in four heads, the Eighth Schedule (22), the Official Languages Act 1963 with its 1967 veto, and 2024-25 developments.

Current affairs · verify dates

Hindi Diwas (14 September)
Marks adoption of Hindi as official language after the Munshi-Ayyangar Formula.

Tulu language
Karnataka Cabinet gave Tulu the status of second additional administrative language for Dakshina Kannada and Udupi.

Use of Regional Languages in High Courts
The Tamil Nadu Assembly passed a resolution urging the Centre to recognise Tamil, alongside English, as the principal language of the Madras High Court.

At a glance: how the compromise unfolded



No national language. Part XVII (Arts 343-351) deals only with Official Language. Constitution-makers avoided "National Language" to preserve federal fabric. Hindi in Devanagari + international numerals; English kept as associate.

343-351 ladder — 343 Union · 345 State · 346 inter-state · 347 minority language · 348 courts · 350 grievances · 350A mother tongue · 350B Special Officer · 351 Hindi · Eighth Schedule = 22

WHY "OFFICIAL" AND NOT "NATIONAL"

Goal	Meaning
Administrative efficiency	standard language between Union and States; no "Babel of tongues"
National integration	common identity via Hindi (Art 351), English kept as associate to avoid "majoritarian trap"
Preservation of diversity	Eighth Schedule: Indian-ness not monolithic; platform for regional literatures
Socio-political stability	English = "safety valve" against linguistic sub-nationalism (anti-Hindi agitations of 1960s)

DESI — Diversity preserved · Efficiency in administration · Stability (English safety valve) · Integration (Hindi, Art 351). Four goals; "a policy for a land of many tongues".

A-N-P-S — Administrative efficiency, National integration, Preservation of diversity, Stability: "All Need Peaceful Speech."

MUNSHI-AYYANGAR FORMULA

Three camps (1947-49)

→ Pro-Hindi: Hindi (Devanagari) as sole national language at once
→ Non-Hindi: feared "imposition"; wanted English or regional languages
→ Compromise seekers: "Hindustani" (Hindi plus Urdu)

K.M. Munshi and N. Gopalaswamy Ayyangar proposed a "political formula": avoid "National Language", adopt "Official Language". Core pillars became Art 343.

Feature	Decision
Official Language	Hindi in Devanagari script, of the Union
Transition	English continues for all official purposes 15 years (until 1965)
Numerals	International form of Indian numerals (1, 2, 3), not Devanagari
⚡ Parliament's power	after 15 years may allow English: led to Official Languages Act, 1963

OPEN — Official language Hindi (Devanagari) · Parliament may allow English after 15 years · English continues 15 years (to 1965) · Numerals international. The formula kept the door OPEN for English.

O-T-N-P — Official Hindi, Transition 15 years, Numerals international, Parliament's power: "Old Tricks Never Persist."

💡 Significance

→ Unity in diversity: 15-year cooling-off
→ Linguistic secularism: "Official" not "National"
→ 1963 extension: anti-Hindi protests (esp. Tamil Nadu) made English an associate language indefinitely
→ Hindi Diwas, 14 September: marks 1949 adoption of the formula; basis of bilingual Central administration

👥 CONSTITUTIONAL PROVISIONS: PART XVII

Head	Art	Provision
🗺️ A Union	Art 343	Hindi (Devanagari), international numerals; English 15 years (to 1965)
🗺️ A Union	Art 343(3)	Parliament may continue English after 15 years
🗺️ A Union	Art 344	Commission and Committee of Parliament: progressive use of Hindi, restrict English
B Regional	Art 345	State Legislature adopts one or more state languages or Hindi (Andhra Pradesh: Telugu)
B Regional	Art 346	inter-State and State-Union communication: Union's official language (English or Hindi)
B Regional	Art 347	on demand, President recognises a language of a substantial section of a state
⚖️ C Courts	Art 348 (349: authoritative texts)	English in SC, every HC, and authoritative texts of Bills, Acts, Ordinances, Rules, until Parliament provides otherwise
D Special	Art 350	redress of grievances in any language used in Union or State (cannot be rejected for language)
D Special	Art 350A	mother-tongue instruction at primary stage
D Special	Art 350B	Special Officer for Linguistic Minorities, by President
D Special	Art 351	Union to promote Hindi as medium of composite culture

HC exception (Art 348): with President's consent a Governor may authorise Hindi or the state language in HC proceedings; judgments and decrees stay in English.

U-R-C-S — Union (343–344), Regional (345–347), Courts (348–349), Special (350–351): "United Regions Choose Speech."

U-R-J-S — Union language (343–344) · Regional (345–347) · Judiciary and texts of laws (348–349) · Special directives (350–351). "Unity Requires Joint Speech."

More detail

🗺️ Union (343–344)

→ Official Language Commission 1955 under B.G. Kher (report 1956)

→ Parliament committee under Gobind Ballabh Pant examined it 1957; second commission due 1960 never appointed

→ Constitution asked for commission at 5 and 10 years, members for Eighth Schedule languages; Parliament committee of 30 (20 LS, 10 RS)

🗺️ States (345–347)

→ English continues until legislature adopts a language; choice not limited to Eighth Schedule

→ two or more states may use Hindi between themselves

→ Hindi sent to non-Hindi state needs English translation

⚖️ Courts and laws (348–349)

→ state legislature may prescribe another language for its Acts and rules; English translation must be published

→ 1963 Act: Hindi translations of President-published Acts authoritative; every Bill comes with Hindi translation

→ No Hindi provision for SC: hears English only

→ Authorised Translations (Central Laws) Act, 1973: translations in Eighth Schedule languages (not Hindi) authoritative

Special (350–351)

→ 350A, 350B added by 7th Am (1956) on States Reorganisation Commission advice

→ Art 351: enrich Hindi from Hindustani and Eighth Schedule languages, vocabulary mainly from Sanskrit

EIGHTH SCHEDULE: 14 TO 22

Stage	Languages
Original (14)	Assamese, Bengali, Gujarati, Hindi, Kannada, Kashmiri, Malayalam, Marathi, Odia, Punjabi, Sanskrit, Tamil, Telugu, Urdu
21st CAA, 1967	Sindhi
71st CAA, 1992	Konkani, Manipuri, Nepali
92nd CAA, 2003	Bodo, Dogri, Maithili, Santhali

14 + 1 + 3 + 4 = 22. Order: Sindhi, the "KMN" trio, the "BDMS" four. Uses: representation in Official Language Commission; enriching Hindi; use in competitive exams. 96th Am (2011): "Oriya" became "Odia".

K-M-N-B-D-M-S — After 1967: Kind Mothers Nurture Brave Daughters, Mighty Sons. K Konkani, M Manipuri, N Nepali (71st, 1992) · B Bodo, D Dogri, M Maithili, S Santhali (92nd, 2003). Sindhi (1967) came before.

S-K-M-N-B-D-M-S — Sindhi (1967), Konkani, Manipuri, Nepali (1992), Bodo, Dogri, Maithili, Santhali (2003): "Six Kind Men Never Bring Dull Maps, Sir."

CLASS · Inclusion committees; why Schedule 8 matters

Class point	Detail
Committees	Pahwa 1996, Mahapatra 2003: neither produced firm criteria for inclusion (languages added on political demand)
Art 344	official language commission, based on Schedule 8 languages
Art 351	Union duty to spread and develop Hindi as composite-culture language, drawing on Hindustani and the Schedule 8 languages (mainly Sanskrit)
Count	22 scheduled languages; 11 classical (teacher's totals)

OFFICIAL LANGUAGES ACT, 1963

Section	Provision
Section 3	English "may" continue with Hindi for all Union official purposes and Parliament business after 26 Jan 1965
Section 3(3)	Mandatory bilingualism: resolutions, general orders, rules, notifications; administrative and other reports; contracts, agreements, licences, permits, tender forms
Section 4	Committee on Official Language: Parliamentary, 30 members (20 LS, 10 RS), reviews Hindi progress, reports to President; set up 1976; Union Home Minister elected Chairman by convention
Section 5	Authorised Hindi translation of Central Acts and Ordinances

3-3(3)-4-5 — 3 English may continue · 3(3) bilingual documents · 4 Committee of 30 · 5 Hindi legal texts: permission, papers, committee, translation.

1967 amendment: the veto

→ 1965: violent anti-Hindi protests; 1967: Act amended
→ English between Union and states (or between states) cannot be discontinued until Legislatures of all non-Hindi states pass resolutions
→ Result: permanent veto for non-Hindi states

Area	Language (diglot system)
Parliament	Hindi and English (simultaneous translation)
Central offices	files in either language; translation where needed
Inter-State	English link language for states not adopting Hindi
Judiciary	basis for Hindi or regional language in HCs with Presidential consent

Source conflicts: (1) Dates: handout ties the 1963 extension to protests in Tamil Nadu; the Act section puts violent protests in 1965 and veto in 1967. Use: Act 1963, protests 1965, amendment 1967. (2) Lakshmikanth says the 1967 amendment made English compulsory for listed papers; handout puts it under Section 3(3). Use handout. (3) LK says the Committee was due after ten years (came 1976); handout cites Section 4 with no date.

SIGNIFICANCE AND CLASSICAL LANGUAGES

Statutory soul: the Official Languages Act moved India from "Hindi-only" to a permanent bilingual reality. No national language = deliberate "Status Quo". Language is a "fault line"; Three-Language Formula (Regional, Hindi, English) bridges it but faces implementation problems.

Classical language criteria: high antiquity (1500–2000 years), body of ancient literature, original literary tradition. Category began 2004; benefits: two international awards, Centre of Excellence, UGC professional chairs.

Language	Year declared
Tamil	2004
Sanskrit	2005
Telugu	2008
Kannada	2008
Malayalam	2013
Odia	2014
NEW Added Oct 2024 (5)	Marathi, Pali, Prakrit, Assamese, Bengali: total 11

T-S-T-K-M-O — Original six in year order: Timeless Songs Tell Kings' Magnificent Odysseys. Tamil (2004), Sanskrit (2005), Telugu (2008), Kannada (2008), Malayalam (2013), Odia (2014).

T-S-T-K-M-O (handout) — "These Scripts Tell Knowledge, Many Old." Five added: Marathi, Pali, Prakrit, Assamese, Bengali.

Source conflicts: Mains section lists six classical languages; Recent Trends says the October 2024 Cabinet decision made 11. Use 11. Lakshmikanth counts six (older list).

NEW CLASS · Classical language criteria and 2024 change

Classical languages = custodians of India's rich and ancient heritage. Sahitya Akademi linguistic experts committee advises GoI.

Criterion	Original	2024
1	high antiquity of early texts, 1500–2000 years	same
2	large body of ancient literature valued by generations of speakers	same
3	original literary tradition, not borrowed	changed: knowledge texts, esp. prose, in addition to poetry; epigraphical and inscriptional text
4	classical literature distinct from modern and its later forms	same

Class vs handout (benefits): class: Centre of Excellence; UGC awards for writers; UGC chairs in Central Universities. Handout: two international awards (check).

RECENT TRENDS (2024-25) AND WAY FORWARD

Item	Detail
NEW Classical languages (Oct 2024)	Cabinet added Marathi, Pali, Prakrit, Assamese, Bengali (total 11)
Project Bhashini	National Language Translation Mission; AI real-time translation in all 22 scheduled languages
Judiciary in vernacular	SC (e-SCR portal) and HCs translate judgments; former CJI DY Chandrachud: "justice must be accessible in the language of the common man"
NEP 2020	Bharatiya Bhasha Pustak Scheme (2025): technical and higher-education textbooks in Indian languages

Way forward

→ Harmonious: no imposing Hindi; enrich it from other languages (Art 351)
→ Technology: scale Bhashini so language never blocks schemes like DBT
→ Three-Language Formula in spirit: North learns South languages and vice versa
→ Empower Eighth Schedule: funding for modern scientific and legal terminology
→ Conclusion: "delicate social contract"

H-T-S-E – Harmonious Hindi, Technology (Bhashini), Strengthen three-language formula, Empower Eighth Schedule: "Help Them Speak Easily."

In the news · September 2026 (verify dates) Hindi Diwas (14 Sep) marks Hindi adoption after the Munshi-Ayyangar Formula. Tamil Nadu Assembly resolution urges Centre to recognise Tamil with English as principal language of Madras HC. Tulu: Karnataka Cabinet made it second additional administrative language for Dakshina Kannada and Udupi.

1949 Sept 14: formula adopted

1963 Official Languages Act

1965 End of 15 years; protests

1967 OLA veto; 21st CAA Sindhi

1992 71st CAA

2003 92nd CAA

2024 Oct: 5 classical; total 11

2025 Bharatiya Bhasha Pustak

Recall drill: cover and answer

Why no national language?	Munshi-Ayyangar compromise: only Official Language (Part XVII, Arts 343-351)	Art 343: language, script, numerals, English period?	Hindi, Devanagari, international numerals, English 15 years (to 1965)
Which Art lets Parliament extend English?	343(3)	Art 350A and 350B?	Mother-tongue instruction at primary stage; Special Officer for Linguistic Minorities (7th Am, 1956)
Eighth Schedule: 14 to 22?	Sindhi 1967 (21st), Konkani Manipuri Nepali 1992 (71st), Bodo Dogri Maithili Santhali 2003 (92nd)	OLA 1963: Sections 3, 3(3), 4, 5?	English may continue; bilingual documents; Committee of 30; Hindi translation of Acts
1967 amendment?	English stays until all non-Hindi states' Legislatures pass resolutions: permanent veto	Classical languages: total and Oct 2024 additions?	11; Marathi, Pali, Prakrit, Assamese, Bengali
Original six classical languages with years?	Tamil 2004, Sanskrit 2005, Telugu 2008, Kannada 2008, Malayalam 2013, Odia 2014	Who made the Official Language Commission 1955?	B.G. Kher (report 1956); Pant committee 1957
Which classical language criterion changed in 2024?	No. 3: knowledge texts, esp. prose, added to poetry		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

HC = High Court — State-level constitutional court (Art 214)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

UGC = University Grants Commission — Statutory body funding and coordinating higher education

RS = Rajya Sabha — Council of States; the upper House of Parliament

AI = Artificial Intelligence — Machines performing tasks that need human-like intelligence

CJI = Chief Justice of India — Head of the Supreme Court

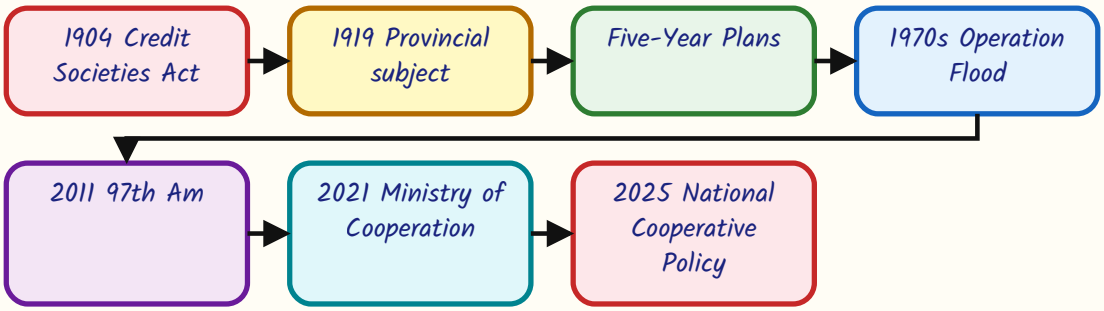
DBT = Direct Benefit Transfer — Subsidies and benefits paid straight to bank accounts

THE COOPERATIVE SECTOR

PYQ None quoted in the handout (handout only, no class slides)

The 97th Amendment's three changes (Art 19(1)(c), Art 43-B, Part IX-B), the numbers inside Part IX-B (21 directors, 5 years, 6 months), and the 2024-25 policy, society and reform news.

At a glance: the route



Cooperative: autonomous association of persons united voluntarily to meet common economic, social, cultural needs through a jointly owned, democratically controlled enterprise. "Each for all and all for each." Ministry of Cooperation (2021): "Sahkar se Samriddhi", took duties from Ministry of Agriculture.

19-43-IX-B — 19(1)(c) right · 43-B directive · Part IX-B (243-ZH to ZT) · State List Entry 32 · Union List Entry 44 · 21 directors · 6 months for supersession, audit, AGM, returns

WHAT IT IS AND WHY IT MATTERS

Objective	Meaning
Credit accessibility	low-interest loans via PACS
Market linkages	no middlemen: fair price to producers, affordable to consumers
Economic growth	local PACS to national links: jobs, rural economy
Inclusivity	women, ST/SC, small artisans
Democratic governance	one member, one vote

Small-holding farmers have low bargaining power; cooperatives give economies of scale against corporations; growth towards a $5 trillion economy stays inclusive.

C-M-E-I-D — Credit, Market linkages, Economic growth, Inclusivity, Democratic governance: "Cooperatives Make Everyone's Income Dependable."

FEATURES AND EVOLUTION

Feature	Meaning
Voluntary, open membership	no discrimination of gender, social, racial, political, religious affiliation
Democratic member control	members set policy; one member, one vote
Economic participation	equitable capital, fair return
Limited liability	generally to capital contributed
Service over profit	services to members, not shareholder profit

CLOSE – Control by members (one member one vote) · Limited liability · Open and voluntary membership · Service over profit · Economic participation. Members stay CLOSE to their cooperative.

V-D-E-L-S – Voluntary membership, Democratic control, Economic participation, Limited liability, Service over profit: "Very Democratic, Equally Local Service."

1904
First Cooperative Credit Societies Act (Sir Edward Law Committee)

1919
Provincial Subject (Montague-Chelmsford)

Plans
Five-Year Plans: rural development

1970s
Operation Flood: Verghese Kurien, Amul model; world's largest milk producer

2011
97th Am

2021
Ministry of Cooperation

Union and State power

- **Union** → Parliament governs Multi-State Cooperative Societies (MSCS)
  → MSCS Act, 2002 is the primary law
  → 2022 Amendment: Co-operative Election Authority to oversee board elections
- **State** → State legislatures govern other societies through state Acts

Source doubt: handout says the movement had "three distinct phases" but numbers only two (Pre-Independence, Post-Independence). Treat 97th Amendment, MSCS Act and 2022 Amendment, Ministry of Cooperation 2021 as the third phase.

In the news · Aug 2026 (verify dates) 97th Amendment and Part IXB: added cooperatives to Art 19(1)(c), Art 43B and Part IXB. Rajendra N. Shah (2021) struck Part IXB for State cooperatives; it survives for multi-State ones.

97TH AMENDMENT AND PART IX-B

97th Constitutional Amendment Act, 2011 = "Magna Carta" of the sector. Commenced 15 Feb 2012; states to amend Acts before 14 Feb 2013. Why: elections postponed indefinitely, administrators long in charge, unprofessional management.

Change	Detail
Fundamental Right	"cooperative societies" added to Art 19(1)(c) (right to form)
Directive Principle (DPSP)	Art 43-B: State to promote voluntary formation, autonomous functioning, democratic control, professional management
New Part IX-B	Arts 243-ZH to 243-ZT, "The Co-operative Societies"

F-D-P – Fundamental right 19(1)(c) · Directive principle 43-B · Part IX-B. "Farmers Deserve Profit." Also: "Free Democratic Partnerships."

Seventh Schedule	Scope
State List Entry 32	cooperatives in a single state; supervised by state Registrar of Cooperative Societies (RCS)
Union List Entry 44	Multi-State Cooperative Societies (MSCS), more than one state

In the news · Aug 2026 (verify dates) NCDC Amendment Act 2026: NCDC may lend directly to any cooperative, take equity in single-State cooperatives, share credit data with RBI and banks. Federal friction: cooperatives are State List Entry 32.

Art	Subject	Provision
Art 243ZH	Definitions	"board" = governing body; "office bearer" = president, vice-president, chairperson, secretary, treasurer
243ZI	Incorporation	State law on incorporation, regulation, winding-up; four principles: voluntary formation, democratic member-control, member-economic participation, autonomous functioning
243ZJ	Board	max 21 directors (functional directors not counted); 1 seat SC/ST, 2 women; term 5 years; co-opted max 2 (banking, management, finance) with no vote in elections, cannot be office bearers
243ZK	Elections	electoral rolls and elections under a body set by State Legislature; held before term expires
243ZL	Supersession	max 6 months; grounds five: persistent default, negligence, acts prejudicial to society or members, board stalemate, failure of election body; not if no Government shareholding, loan, aid or guarantee; cooperative banks (non-multi-state): one year; administrator holds elections within six months
243ZM	Audit	once a year; auditor from state-approved panel (appointed by general body); done within 6 months; apex society report laid before State Legislature
243ZN	General body	annual meeting within 6 months of year end
243ZO	Member rights	access to books, information, accounts; cooperative education and training
243ZP	Returns	within 6 months: annual report, audited accounts, surplus plan, by-law amendments; also date of general body meeting and conduct of elections
243ZQ	Offences	false returns, disobeying summons, employer not paying deducted amount (within 14 days), not handing records, corrupt election practices
243ZR	Multi-State	"State Legislature or Government" read as "Parliament or Central Government"
243ZS	Union Territories	apply unless President directs otherwise
Art 243ZT	Continuance	inconsistent laws stay one year after 97th Am (2011) unless amended earlier (until amended or one year, whichever is less)

Numbers of Part IX-B

→ 21 directors
→ 5 years
→ 2 co-opted
→ 1 SC/ST
→ 2 women
→ 6 months (supersession, audit, AGM, returns). Only one year = 243ZT. Suffix ladder: ZI incorporation, ZJ board, ZK election, ZL supersession, ZM audit, ZN general body, ZO rights, ZP returns, ZQ offences, ZR multi-state, ZS UTs, ZT continuance.

ARMS — Audit (243-ZM) · Returns (ZP) · Meeting AGM (ZN) · Supersession max (ZL): each a 6-month clock.

STORM — SC/ST 1 seat · Term 5 years · Outside co-opted max 2, no vote · Reserved women 2 · Maximum 21 directors.

S-A-A-R — Supersession, Audit, AGM, Returns: "Six Accounts Are Reviewed": all capped at six months.

⚖️ Court rulings

🗺️ Rajendra N. Shah v. Union of India (Gujarat HC, 2013)

→ Part IX-B ultra vires: states had not ratified under Art 368

→ 19(1)(c) and 43-B changes not affected

🗺️ Union of India v. Rajendra N. Shah (SC, 2021)

→ upheld HC but did not strike all of Part IX-B

→ Part IX-B operative only for multi-state cooperatives (in states and UTs)

Source conflict: handout presents Part IX-B as general law for all cooperatives; Lakshmikanth reports the 2021 ruling limiting it to multi-state societies. Give the handout's provisions and add this ruling.

🆕 ACHIEVEMENTS AND RECENT DEVELOPMENTS (2024-25)

Area	Detail
Contribution	20% agri-credit · 35% fertiliser distribution · 31% sugar production
🛡️ Food security	IFFCO (Indian Farmers Fertilizer Cooperative Limited), KRIBHCO (Krishak Bharati Cooperative Limited)
Dairy	Amul (GCMMF, Gujarat Cooperative Milk Marketing Federation Limited): 3.6 million producers
Financial inclusion	over 95,000 PACS (Primary Agricultural Credit Societies)

C-F-S — Credit 20%, Fertiliser 35%, Sugar 31%: "Cooperatives Feed Society."

🆕 National Cooperative Policy 2025

→ mid-2025; replaces 2002 policy

→ 3-3-3 target: triple sector's GDP share by 2034

→ pillars: strengthen foundations, tech adoption, new sectors (Green Energy, Tourism, Insurance)

→ Model Cooperative Village: 5 villages per tehsil as Centres of Excellence

Item	Detail
🌐 International Year of Cooperatives 2025	UN declared; India hosted ICA Global Cooperative Conference
White Revolution 2.0	women-led dairy cooperatives
National Cooperative University	Tribhuvan Sahkari University, Anand, Gujarat
PACS as CSCs	petrol pumps, Jan Aushadhi Kendras, grain storage hubs

Society	Focus	Goal
BBSSL Bharatiya Beej Sahakari Samiti Limited	quality seeds to global standard	cut seed imports; rural income
NCOL National Cooperative Organics Limited	promote and market organic produce	maximum value to farmers
NCEL National Cooperative Export Limited	export surplus goods and services	"Make in India", "Atmanirbhar Bharat"

B-N-N — BBSSL (seeds), NCOL (organics), NCEL (export): "Beej, Natural, Nikaas".

Source doubts: ICA conference dated "Nov 2024/Jan 2025": say only that India hosted it around the International Year. "Tribhuvan Sahkari University" = "Tribhuvan Cooperative University": use Tribhuvan Sahkari University, Anand.

⚠️ CHALLENGES AND WAY FORWARD

Challenge	Detail
Regional imbalances	Gujarat, Maharashtra strong; UP, Bihar have dormant or poorly managed societies
🤝 Trust and certification	NCOL: few affordable district testing labs to prove "organic"
⚠️ Professional management gap	PACS lack skills in supply chains, digital accounting, trade compliance
📬 Competition	national cooperatives vs private MNCs in seeds and FMCG
Regulatory complexity	MSCS Act (Union) vs state Acts

R-T-P-C-R — Regional imbalance, Trust and certification, Professional gap, Competition, Regulatory complexity: "Rural Traders Prefer Clear Rules."

Roadmap (five bullets)

→ **"Bharat" branding:** Bharat Organics, Bharat Beej
→ **Cooperative Stack:** national digital database; ONDC integration
→ **New sectors:** solar cooperatives, cooperative pharmacies, Sahkar Taxi
→ **Infrastructure:** organic labs in every district; decentralised PACS grain storage
→ **Education:** Tribhuvan Cooperative University trains managers

Source doubt: handout says "six strategic pillars" but lists five; do not invent a sixth. Roadmap headed "to 2030"; GDP target 2034; vision 2047.

Vision: "government-aided" to "market-driven"; triple GDP share by 2034; by 2047 ✅ at least one professional cooperative in every village, the "second engine" of the economy.

1904 Credit Societies Act

1919 Provincial subject

2002 MSCS Act

2011 97th Am; +1 year: 243ZT

2021 Ministry

2022 MSCS Amendment: Election Authority

2025 Policy; IYC

2034 triple GDP share

2047 cooperative in every village

Recall drill: cover and answer

Three changes of the 97th Amendment (2011)?	Art 19(1)(c) right, Art 43-B directive, Part IX-B (243ZH-243ZT)	State List vs Union List entry?	Entry 32 (single state, Registrar); Entry 44 (multi-state, MSCS Act 2002)
Max directors, reserved seats, term, co-opted?	21; 1 SC/ST + 2 women; 5 years; 2 co-opted, no vote in elections	Which four things run on a 6-month clock?	Supersession (max), audit, AGM, returns (ARMS)
Which Article has the one-year rule?	243ZT: inconsistent laws continue one year	What did the 2021 Rajendra N. Shah SC ruling do?	Part IX-B operative only for multi-state cooperatives
Contribution numbers 20-35-31?	Agri-credit 20%, fertiliser distribution 35%, sugar 31%	Name the 3 new national societies.	BBSSL (seeds), NCOL (organics), NCEL (export)
National Cooperative Policy 2025 target?	Triple GDP share by 2034 (3-3-3); replaces 2002 policy	Cooperatives first Act and Committee?	1904 Credit Societies Act, Sir Edward Law Committee

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

ST = Scheduled Tribes — Tribal groups listed under Art 342

GDP = Gross Domestic Product — Total value of goods and services produced within a country in a year

IT = Information Technology — Computing and digital technology (for example, the IT Act, 2000)

HC = High Court — State-level constitutional court (Art 214)

DPSP = Directive Principles of State Policy — Part IV (Arts 36–51): goals the State should pursue; not enforceable in court

RBI = Reserve Bank of India — Central bank; regulates banks and conducts monetary policy

UN = United Nations — World body of states founded in 1945 for peace, security and cooperation

MSCS = Multi-State Cooperative Societies

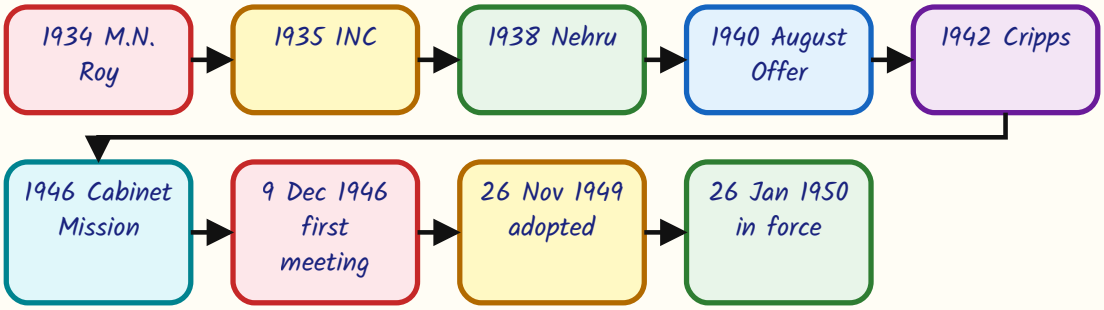
RCS = Registrar of Cooperative Societies

MAKING OF THE CONSTITUTION

PYQ None quoted in the handout (Constituent Assembly questions are quoted under the Preamble chapter, Ch 1)

How the Constituent Assembly came about (1934-46), who sat in it, what it did from 9 Dec 1946 to 26 Jan 1950, the Objectives Resolution, committees, criticisms and Prelims trivia.

At a glance: the route



Constituent Assembly: body of representatives to draft the Constitution; formed Nov 1946 under Cabinet Mission Plan; first Parliament of independent India. Work took 2 years, 11 months, 17 days. Date 26 Jan 1950 = Purna Swaraj (1930).

9-11-13 — 9-11-13 Dec 1946 · 389 then 299 seats · 26 Nov 1949 adopted, 26 Jan 1950 in force · Ambedkar chaired Drafting Committee. "Nine-Eleven-Thirteen, then Twenty-Two."

EVOLUTION OF THE DEMAND (1934-42)

1934 M.N. Roy: first idea

1935 INC officially demands

1938 Nehru's Declaration

1940 August Offer (Linlithgow)

1942 Cripps Mission (failed)

1946 Cabinet Mission Plan; Assembly Nov

R-I-N-A-C-C — Real India Needs A Constitution Council: Roy (1934), INC (1935), Nehru (1938), August Offer (1940), Cripps (1942), Cabinet Mission (1946).

R-I-N-A-C-C (handout) — "Real Indians Never Accept Cheap Cheques."

Steps

→ 1938 Nehru: two conditions: adult franchise (elected by people) and no outside interference (British Parliament no say)

→ 1940 August Offer (WWII began 1939; Viceroy Lord Linlithgow): British accept for first time Indians frame Constitution, but "mainly" not "solely"

→ 1942 Cripps (Sir Stafford Cripps, War Cabinet): elected body after war; Dominion Status with right to secede from Commonwealth

Who	Objection to Cripps
Opt-out clause	provinces could reject and form separate unions: INC saw Balkanization
Mahatma Gandhi	"a post-dated cheque on a crashing bank"
Muslim League	no explicit sovereign Pakistan with two Constituent Assemblies

CABINET MISSION PLAN, 1946

Cabinet Mission

→ Members: Lord Pethick Lawrence (Secretary of State), Sir Stafford Cripps, A.V. Alexander

→ arrived 24 March 1946; plan published 16 May 1946

→ rejected two assemblies (League's demand for Pakistan): would not solve minority problem

→ about one seat per million; divided among Muslims, Sikhs, General in each province

→ Congress Experts Committee 8 July 1946 under Nehru prepared material

CAP – Cripps · Alexander · Pethick Lawrence. The Mission wore a CAP: three members. Handout: "Please Call All."

Group	Provinces	Examples
A	Hindu-majority	Madras, Bombay, UP
B	Muslim-majority, North-West	Punjab, Sindh
C	Muslim-majority, North-East	Bengal, Assam

INC and League both accepted initially (different readings of Grouping). Elections July–Aug 1946; Assembly Nov 1946. Results (296 seats): Congress 208, Muslim League 73, others 15. 93 princely seats not filled at first.

👥 COMPOSITION OF THE ASSEMBLY

👥 Composition

→ Elected indirectly by Provincial Legislative Assemblies; PR by STV

→ Nominated: princely-state representatives, by their heads

→ 296 British India seats among Muslims, Sikhs, General by population: 292 from eleven governors' provinces + 4 from four Chief Commissioners' provinces

Component	Before Partition	After Partition
British India	296	229
🗺️ Princely States	93	70
Total	389	299

292 + 4 = 296; 296 + 93 = 389; 229 + 70 = 299. British India lost 67, States lost 23. Fall to 299 after Partition and withdrawal of Muslim League members.

Community (296 seats, 1946)	Strength
Hindus	163
Muslims	80
🗺️ Scheduled Castes	31
Indian Christians	6
🧑‍🤝‍🧑 Backward Tribes	6
Sikhs	4

Anglo-Indians	3
Parsees	3
Total	296

First meeting: only 207 members attended. 15 women members; every important leader except Gandhi. ⭐

KEY TIMELINE OF THE MAKING

Date	Event
9 Dec 1946	First meeting (League boycotted); Dr. Sachchidananda Sinha temporary President
11 Dec 1946	Rajendra Prasad elected President; H.C. Mookerjee and V.T. Krishnamachari Vice-Presidents; B.N. Rau Constitutional Legal Advisor
13 Dec 1946	Nehru moved Objectives Resolution
22 Jan 1947	Resolution adopted unanimously
22 July 1947	National Flag adopted
Aug 1947	Independence Act: Assembly fully sovereign and Dominion Legislature (first Parliament)
29 Aug 1947	Drafting Committee formed (first draft published Feb 1948)
26 Nov 1949	Constitution passed and adopted; citizenship, elections, provisional parliament provisions in force at once
24 Jan 1950	Final session: Constitution signed; National Anthem and Song adopted; Prasad elected first President
26 Jan 1950	Commencement (Purna Swaraj date)

After Aug 1947: two hats

→ Constituent body: chaired by Dr. Rajendra Prasad
→ Legislative body (Dominion Legislature): chaired by G.V. Mavlankar, elected speaker 17 Nov 1947
→ ratified Commonwealth membership May 1949; provisional Parliament until 1951–52 elections

📰 *In the news · July 2026 (verify dates)* Vande Mataram: a magazine recalls Constituent Assembly President Rajendra Prasad's 24 January 1950 declaration that Vande Mataram be honoured equally with, and have equal status to, Jana Gana Mana.

Totals	
🏛️ Sessions	11
👥 Constitutions studied	about 60
Draft considered	114 days
📦 Drafting Committee sat	141 days
🧑‍🤝‍🧑 Cost	Rs 64 lakh
Final text	Preamble, 395 Articles, 8 Schedules
Signed 26 Nov 1949	only 284 of 299 present

Reading	Period
🧑‍🤝‍🧑 First	from 4 Nov 1948 (five days of talk)
Second	15 Nov 1948 to 17 Oct 1949: 7653 amendments proposed, 2473 discussed
Third	from 14 Nov 1949

📌 Source conflicts: (1) Feb 1948 line carries "formed 29 Aug 1947": use 29 Aug 1947 = formation, Feb 1948 = first draft published. (2) Lakshmikanth: 2 years 11 months 18 days; handout 17: use 17, keep 18 in mind. (3) LK: H.C. Mukherjee Vice-President 25 Jan 1947 and V.T. Krishnamachari second VP 16 July 1947; handout puts both on 11 Dec 1946: use handout. Handout also names 26 Nov Constitution Day (decided 19 Nov 2015). Stray list numbers (17–25, 30–35) in the handout are PDF artefacts.

Session	Period
🧑‍🤝‍🧑 First	9–23 Dec 1946

Second	20–25 Jan 1947
Third	28 Apr–2 May 1947
Fourth	14–31 Jul 1947
Fifth	14–30 Aug 1947
Sixth	27 Jan 1948
Seventh	4 Nov 1948–8 Jan 1949
Eighth	16 May–16 Jun 1949
Ninth	30 Jul–18 Sep 1949
Tenth	6–17 Oct 1949
Eleventh	14–26 Nov 1949
After 11th	24 Jan 1950: members signed

🔧 THE OBJECTIVES RESOLUTION

Moved by Nehru 13 Dec 1946; adopted unanimously 22 Jan 1947. Roadmap and guiding principles; its modified form became the Preamble ("identity card"; Resolution = "pledge"). 💡

No.	Point	Says
1	Sovereignty	Independent Sovereign Republic
2	Territorial Union	British India, Indian States, other willing parts form Union of India
3	Federalism, residuary powers	territories keep "retained status"; residuary powers vest in units
4	Source of power	all power from the People
5	Fundamental values	Justice (social, economic, political); Liberty (thought, expression, belief, faith, worship); Equality (status, opportunity)
6	Protection of vulnerable	minorities, backward and tribal areas, depressed and other backward classes
7	Territorial integrity	land, sea, air; justice and law of civilized nations
8	International peace	willing contribution to world peace and welfare

S-T-F-S-F-P-T-I – Sovereignty, Territorial Union, Federalism, Source of power, Fundamental values, Protection of vulnerable, Territorial integrity, International peace: "Some Tall Folks Sang Fine Poems To Impress."

Resolution vs Preamble: "Independent" retained; federal structure made stronger (Unitary bias) after Partition (fear of Balkanization); Justice, Liberty, Equality, Fraternity in Preamble. ⭐

🗳️ IMPORTANT COMMITTEES

Committee	Chairperson
Drafting	Dr. B.R. Ambedkar
⚡ Union Powers	Jawaharlal Nehru
👥 Union Constitution	Jawaharlal Nehru
👥 Provincial Constitution	Sardar Vallabhbhai Patel
💰 Advisory (Fundamental Rights and Minorities)	Sardar Vallabhbhai Patel
📝 Rules of Procedure	Dr. Rajendra Prasad
Steering	Dr. Rajendra Prasad

D-U-U-P-A-R-S – Drafters Unite Unity, Preserving All Rights Securely. Chairmen in order: Ambedkar, Nehru, Nehru, Patel, Patel, Prasad, Prasad.

A-N-P-P – Ambedkar (Drafting), Nehru (two Union), Patel (Provincial, Advisory), Prasad (Rules, Steering): "A New Pen Produces."

🗳️ Other committee facts

→ Drafting Committee (7): Ambedkar (chairman), N. Gopalaswamy Ayyangar, Alladi Krishnaswamy Ayyar, K.M. Munshi, Syed Mohammad Saadullah, N. Madhava Rau (replacing B.L. Mitter), T.T. Krishnamachari (replacing D.P. Khaitan)

→ first draft open to public 8 months; second draft Oct 1948
→ Advisory Committee sub-committees: Fundamental Rights (J.B. Kripalani), Minorities (H.C. Mukherjee)
→ States Committee chaired by Nehru

🏛️ CRITICISM OF THE ASSEMBLY

Criticism	Point
Not representative	not elected directly on universal adult franchise
Not sovereign	created by British proposals (Cabinet Mission)
Time-consuming	US Constitution took 4 months
Dominated by Congress	Granville Austin: "The Assembly was the Congress, and the Congress was India."
📜 Lawyer-politician domination	complicated language
Hindu dominated	Winston Churchill: "only one major community in India"

N-N-T-D-L-H — Not representative · Not sovereign · Time-consuming · Dominated by Congress · Lawyer-politician · Hindu dominated. "Naysayers Note: Too Dominant, Lawyerly, Hindu."

R-S-T-C-L-H — "Real Students Take Careful Long Hours." Austin: Congress remark. Churchill: "one major community" remark.

🎯 IMPORTANT FACTS (OFTEN ASKED IN PRELIMS)

Item	Answer
Symbol (Seal)	Elephant
👥 Constitutional (Legal) Advisor	Sir B.N. Rau
Secretary	H.V.R. Iyengar
Chief Draftsman	S.N. Mukherjee
English calligraphy	Prem Behari Narain Raizada (flowing italic)
Hindi calligraphy	Vasant Krishan Vaidya
Hindi decoration	Nand Lal Bose
General decoration	Shantiniketan artists incl. Nand Lal Bose and Beohar Rammanohar Sinha
Preamble decoration	Beohar Rammanohar Sinha illuminated the Preamble (calligraphed by Raizada)

CASE — Chief Draftsman: S.N. Mukherjee · Advisor: B.N. Rau · Secretary: H.V.R. Iyengar · Elephant seal.

S-E-S-C — "See Elephants Sing Calypso": Seal Elephant, Secretary Iyengar, Chief Draftsman Mukherjee (Advisor Rau).

Shortcut: Raizada writes English; Vaidya writes Hindi; Nand Lal Bose decorates the Hindi; Sinha illuminates the Preamble. ⭐

Interim Government (1946)	Portfolio
Jawaharlal Nehru	Vice-President of Council; External Affairs, Commonwealth Relations
Sardar Vallabhbhai Patel	Home, Information and Broadcasting
Dr. Rajendra Prasad	Food and Agriculture
Dr. John Mathai	Industries and Supplies
Jagjivan Ram	Labour
Sardar Baldev Singh	Defence
C.H. Bhabha	Works, Mines and Power
Liaquat Ali Khan	Finance
Abdur Rab Nishtar	Posts and Air
Asaf Ali	Railways and Transport
C. Rajagopalachari	Education and Arts
I.I. Chundrigar	Commerce
Ghaznafar Ali Khan	Health

Jogendra Nath Mandal	Law		
Country	Articles	Working period	Time
USA	7	25 May–17 Sep 1787	less than 4 months
Canada	147	10 Oct 1864–Mar 1867	about 2 years 6 months
Australia	128	Mar 1891–9 Jul 1900	about 9 years
South Africa	153	Oct 1908–20 Sep 1909	1 year

Recall drill: cover and answer

Who first proposed a Constituent Assembly and when?	M.N. Roy, 1934; INC officially demanded 1935	August Offer 1940: key word?	"Mainly" (not solely) framed by Indians; Linlithgow
Cripps 1942: Gandhi's remark?	"A post-dated cheque on a crashing bank"; opt-out clause	Cabinet Mission members?	Pethick Lawrence, Stafford Cripps, A.V. Alexander (CAP)
Seats before and after Partition?	389 (296 + 93), then 299 (229 + 70)	Dates 9, 11, 13 Dec 1946?	First meeting (Sinha temporary President); Prasad elected; Objectives Resolution moved
Objectives Resolution adopted?	22 Jan 1947 unanimously; modified form is the Preamble	Chairs: Drafting, Union (2), Provincial and Advisory, Rules and Steering?	Ambedkar; Nehru; Patel; Prasad
Assembly seal, Secretary, Chief Draftsman, Advisor?	Elephant; H.V.R. Iyengar; S.N. Mukherjee; B.N. Rau	Time taken?	2 years 11 months 17 days (LK says 18 days)

🔤 **Quick brief: abbreviations, schemes, bodies** (expansions from notes where given; briefs are general knowledge, verify)
VP = Vice-President — Second highest constitutional office; Chairman of Rajya Sabha

HINDI TEXT OF THE CONSTITUTION

PYQ None quoted in the handout (one short handout page; tiny chapter)

✎ *The original Constitution had no authoritative Hindi text; the 58th Amendment (1987) added Art 394-A in Part XXII so the President publishes one.*

📜 At a glance: one fact chain

58th Amendment Act, 1987 → Inserts Art 394-A → Part XXII (last part) → President publishes Hindi text → Authoritative for all legal purposes

Item	Detail
📜 Amendment	58th Constitutional Amendment Act, 1987
📜 New Article	394-A
Placed in	Part XXII (last part): "Short title, Commencement, Authoritative Text in Hindi and Repeals", Arts 393 to 395
Subject	Authoritative Hindi text

👑 **What 394-A requires (President publishes)**

👥 **Hindi translation of the Constitution**
→ matches language, style, terminology of Central Acts in Hindi
→ includes all amendments up to publication

→ **Hindi translation of every later amendment** made in English
→ **If difficulty arises:** President has Hindi text revised suitably

Legal standing

→ **Equivalence:** same meaning as the English original
→ **Authoritative text** in Hindi for all legal purposes

Part XXII Art	Subject
Art 393	Short title
Art 394	Commencement
Art 394-A	Hindi authoritative text
Art 395	Repeals

S-C-H-R — Short title (393) · Commencement (394) · Hindi authoritative text (394-A) · Repeals (395). A Short, Clear Hindi Rendering sits inside Part XXII.

CLEAR — Constitution translated into Hindi, with all amendments to date · Legal: authoritative in Hindi · Equivalence: same meaning as English · Amendments: every English amendment also translated · Revision by the President if a difficulty arises.

A-P-H-E — Amendment 58th (1987), Part XXII, Hindi translation by the President, Equals English in meaning: "A Poet Has Ease." Remember: 58, 394-A, XXII.

Recall drill: cover and answer

Which Amendment gave an authoritative Hindi text?	58th Constitutional Amendment Act, 1987	Which new Article?	394-A
In which Part?	Part XXII (last part, Arts 393-395)	Who publishes the Hindi text?	The President, under his authority
What must the Hindi translation match?	Language, style, terminology of Central Acts in Hindi; includes all amendments to date	Legal weight of the Hindi text?	Same meaning as English; authoritative Hindi text for all legal purposes
If a difficulty arises?	President has the Hindi text revised suitably	Arts 393, 394, 395?	Short title, commencement, repeals

RIGHT TO INFORMATION ACT

PYQ None quoted in the handout (handout only, no class slides)

✎ *How India got RTI, what the 2005 Act promises, who is a public authority (and the disputed cases), proactive disclosure, the Section 8 exemption list, citizens' rights and the 2019 Amendment.*

At a glance: the route

1997 Shourie group · Tamil Nadu law → 2002 FOI Bill (not notified) → 2005 RTI Act (NAC draft) → Section 8 exemptions → 2019 Amendment

RTI Act, 2005: every citizen may seek information held by a public authority. Bill drafted by the National Advisory Council, not bureaucrats. CIC and SIC are statutory, not constitutional.

numbers — 120 days (publish 16 types) · 100 days (PIOs) · 5 days (transfer) · 10 days (third-party notice) · 20 years (exempt info opens) · Rs 250 a day up to Rs 25,000

📜 HOW THE LAW CAME

Item	Detail
📝 Working group	1997, under H.D. Shourie
📜 Draft bill	Freedom of Information Bill, 2002 (enacted, not implemented or notified; "feeble")
📜 First state law	Tamil Nadu (1997); other states followed
📜 2005 bill	drafted by National Advisory Council

Source doubt: handout puts the 1997 working group and the 2002 FOI Bill in one sentence. Learn both as written: Shourie group 1997; FOI Bill 2002 (not notified).

CRITERIA AND PHILOSOPHY

Criterion	Meaning
💰 Wide access	minimal fees, free for BPL, easily perceivable information
Penalties for denial	Rs 250 per day up to Rs 25,000; departmental disciplinary action option
Independent appeal	Information Commissions (CIC, SICs)
Maximum disclosure, minimal exemption	some information cannot be public, but exemptions minimal

WIDE – Wide access · Independent appeal · Denial penalty · Exemption minimal. "We Push Information More" (handout).

Philosophy (Preamble)

→ transparency, checks corruption, accountability, citizen empowerment, promotes democracy

→ balanced with government confidentiality and efficiency

ACTED – Accountability · Checks on corruption · Transparency · Empowerment · Democracy. Handout: "Tell Citizens All Closed Doors."

⚡ MAIN FEATURES: INFORMATION, RIGHT, PUBLIC AUTHORITY

Information (very broad)

→ records, documents, memos, e-mail, opinions, advice, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models, electronic data

→ private-body information held by a public authority under any other law

🛡 Right to information includes

→ inspect work, documents, records

→ notes, extracts, certified copies

→ certified samples

→ diskettes, floppies, tapes, video cassettes, electronic mode, printouts

	Public authority: established or constituted
a	by or under the Constitution
b	by law of Parliament
c	by law of State legislature
d	by notification or order of appropriate Government
e	body owned, controlled or substantially financed (incl. NGOs substantially financed by appropriate government)

"Substantially" not defined in the Act; ARC suggests 50% of operating costs for 3 years or at least Rs 1 crore (see Ch 57). 💡

C-P-S-N-B – Constitution · Parliament law · State legislature law · Notification or order · Body owned, controlled or substantially financed. "Citizens Peek Sarkari Notice Boards."

📰 **In the news · Aug 2026 (verify dates)** NSE and RTI: SC stayed Delhi HC order holding NSE a public authority under RTI. Section 2(h) covers bodies set up under Constitution, law or notification, or substantially government-financed.

⚡ ISSUES OF PUBLIC AUTHORITY

Body	Handout says
👑 President and Governors	long-pending issue whether they fall in the definition
🗺️ State federations	substantially financed, resisted; many brought in by court rulings
BCCI	Law Commission recommended; CIC affirmed in 2018
PPP projects	DoPT circular 2013 asked for disclosure; Delhi International Airport Ltd (2010): CIC ruled DIAL a public authority; Delhi HC stayed
Judiciary	below
Political parties	below

Judiciary

→ 2009: Subhash Agrawal petition on judges' asset declaration (1997 resolution); SC said it was not covered

→ CIC ruled against SC; SC (administrative side) appealed; Delhi HC sided with CIC

→ 2019: Apex Court: judiciary by and large covered

⚠️ Problem observations (2019)

→ RBI need not disclose banks' risk evaluation and financial inspection reports

→ SC: extensive RTI use created "fear psychosis and paralysis"; civil servants' personal status beyond RTI

→ professional records, assets and liabilities beyond RTI

→ names of interviewers need not be disclosed

Political parties

→ Electoral bonds money not disclosed

→ other money via proper channels goes to Election Commission

→ candidate selection questions: "winnability" answers

→ criminal and educational background already disclosed

→ 2013 CIC: recognized parties subject to RTI (IT exemptions, free airtime on state media, land at subsidised prices)

Parties object

→ free associations

→ no direct tax money

→ no infrastructure

→ used against each other

→ Now: CIC order not stayed or nullified; parties still do not comply (citing sub judice)

Source doubt: judiciary paragraph runs 2009 and 2019 together. Learn as a sequence: SC said not covered, CIC ruled against SC, Delhi HC sided with CIC, SC in 2019 said judiciary by and large covered.

P-S-B-P-J-P — President/Governors, State federations, BCCI, PPP projects, Judiciary, Political parties: "People See Big Public Justice Places."

🤝 PROACTIVE DISCLOSURE AND DUTIES

Duty	Limit
Records catalogued, indexed, computerised	reasonable time
Publish 16 types of information; update yearly	120 days of enactment
Provide as much information suo-moto as possible	continuing
Designate PIOs in all administrative units	100 days of enactment
Transfer misdirected requests	5 days of receipt
💰 NGOs substantially financed	covered

TIMED — Third-party notice 10 days · Information of 16 types in 120 days · Misdirected requests transferred in 5 days · Exempt information released after 20 years · Designate PIOs in 100 days.

📜 SECTION 8: EXEMPTIONS (a to q as handout lists)

Pt	Exemption
a	prejudicial to sovereignty and integrity, security, strategic, scientific or economic interest, foreign relations, or incitement of offence
b	expressly forbidden by court or tribunal, or contempt of court
c	breach of privilege of Parliament and state legislatures
d	commercial confidence, trade secrets, IP harming third party, unless larger public interest
e	fiduciary relationship, unless larger public interest
f	received in confidence from foreign government
g	endangers physical safety or identifies confidential source for law enforcement or security
h	impedes investigation, apprehension, prosecution
i	Cabinet papers incl. deliberations of CoM, Secretaries, officers
j	personal information with no public activity or invading privacy, unless larger public interest
k	public interest override: despite Official Secrets Act 1923 and Section 8(1), access if disclosure outweighs harm
l	copyright in a person other than the state: the only absolute exemption
m	what cannot be denied to Parliament cannot be denied to citizens (as handout words it)
n	Second Schedule intelligence and security agencies outside the Act, but corruption and human rights violation information must be given
o	third-party information after notice and hearing; notice 10 days
p	Act prevails over Official Secrets Act 1923 and inconsistent law; suit barred except appeal under the Act
q	wholly retrospective: covers information held before the Act

Detail on key points

→ Cabinet papers (i): decisions, reasons and material made public after the matter is complete or over; other exemptions not disclosed

→ Intelligence (n): human rights information only after approval of the concerned Information Commission; CBI and NIA added to Second Schedule by executive order

→ Parliament (m): handout wording loose

→ Retrospective (q): unique aspect

20-year rule: exempted information released 20 years after creation, except Cabinet decisions, breach of legislature privilege, and information prejudicial to sovereignty, integrity, security, strategic, scientific, economic interest, foreign relations, or incitement. Third party: notice, hearing, 10 days, then release. ⭐

Source doubt: letters a to q mix Section 8 exemptions with other provisions (public-interest override, Second Schedule, third-party notice, retrospectivity); point m is loose; point l calls copyright the only absolute exemption. Learn as the handout words them. d, e, j carry a larger-public-interest override; k is the general override.

COP — CIC selection committee (Lakshmikanth): Cabinet Minister (Union, nominated by PM) · Opposition Leader in Lok Sabha · Prime Minister (Chair). A COP watches the watchdog.

📬 RIGHTS OF CITIZENS AND COMPLAINTS

No.	Right
1	right to information
2	choose medium of request
3	choose language: English, Hindi or local language of the application
4	help in writing the request
5	no reason or personal details except for contact
6	informed immediately if transferred
7	assistance in accessing records if disabled
8	all fees waived for BPL
9	all fees waived if time limits missed
10	reasons for rejection, appeal period, appellate authority

📬 Complaint to CIC/SIC when

💰 Access and response
- → unable to submit request to PIO/APIO
- → refused access
- → no response in time

Quality and fee
- → unreasonable fee
- → incomplete, misleading or false information
- → any matter on accessing records

B-T – BPL and Time-limit failure: "BPL and Tardy authorities pay no fee."

CIC AND SIC (handout detail)

CIC (2005)

- → not constitutional; one Chief + not more than ten ICs
- → appointed by President on advice of PM (chair), LoP Lok Sabha, Union Cabinet Minister nominated by PM; if no recognised LoP, leader of largest opposition group counts
- → persons of eminence: law, science and technology, social service, management, journalism, mass media, administration
- → cannot be MP or MLA, hold office of profit, join party, run business
- → Term: as Centre prescribes or age 65, whichever earlier; no reappointment; IC may become Chief but total 5 years; pay not changed to disadvantage
- → Removal by President: insolvency, moral turpitude conviction, paid employment, unfitness (mind or body), harmful interest; misbehaviour or incapacity: first to Supreme Court; interest in Central Government contract = misbehaviour

⚡ Powers

- → hears complaints: no PIO, refusal, no reply, unreasonable fee, incomplete or false information, other matters
- → suo-moto inquiry; civil court powers: summoning, discovery of documents, affidavit evidence, requisitioning public records, witness summons
- → can examine any record; none withheld
- → orders: form of access, appoint PIO, publication, record practices, training, annual compliance report, compensation, penalties, reject application
- → annual report to Central Government, laid before each House; may recommend steps

👑 State Information Commission

- → appointed by Governor on advice of CM (chair), LoP in Assembly, state Cabinet Minister nominated by CM
- → number of SICs varies; annual report to State Legislature

RTI AMENDMENT ACT, 2019

Area	Change
Tenure and appointment	Centre decides tenure of CIC and ICs; five-year term removed
Salary and service conditions	Centre fixes; delinked from CEC and ECs
Autonomy	excessive central control may weaken independence
Status	CIC statutory, not constitutional

Before 2019	
Term	fixed 5 years
Pay (Centre)	CIC = Chief Election Commissioner; IC = Election Commissioner
Pay (State)	State Chief = Election Commissioner; State IC = Chief Secretary
Also	deduction of pension from salary removed

Negative
- → executive overreach
- → public distrust
- → federal dilution (SICs)

Positive
- → administrative flexibility
- → fiscal discipline
- → policy alignment

Critical reflection: balances efficiency with institutional independence but risks executive overreach; impact depends on how responsibly powers are used. ✅

T-S-S – Tenure, Salary, Status: "Time, Salary, Status are with the Centre now."

Source conflict: this chapter says 2019 removed the five-year term; Ch 57 gives notified tenure 3 years or age 65 (whichever earlier) with 5-year ceiling on combined IC and CIC tenure. Use Ch 57 for the figures; this chapter for the principle (Centre decides).

In the news · September 2026 (verify dates) FCRA Amendment Bill, 2026 has been referred to the Joint Parliamentary Committee (JPC).

1997 Shourie group; TN law

2002 FOI Bill

2005 RTI Act

2009 Subhash Agrawal

2010 DIAL: CIC, HC stay

2013 DoPT circular; CIC on parties

2018 BCCI

2019 SC on judiciary; RTI Amendment

Recall drill: cover and answer

Who drafted the RTI Bill 2005?	National Advisory Council; earlier Shourie group 1997, FOI Bill 2002 (not notified), Tamil Nadu 1997	RTI numbers: 120, 100, 5, 10, 20?	16 types in 120 days; PIOs 100 days; transfer 5 days; third-party notice 10 days; exempt info opens after 20 years
PIO penalty?	Rs 250 per day up to Rs 25,000, plus disciplinary action	Only absolute exemption?	Copyright (point l)
Who fixes CIC and IC tenure and pay after 2019?	The Centre; delinked from CEC and ECs	Judiciary under RTI?	2019 Apex Court: by and large covered (Subhash Agrawal 2009 to Delhi HC)
Political parties under RTI?	2013 CIC: recognized parties subject (substantial financing); not complied	Fee waiver cases?	BPL applicants; and when the authority misses time limits
CBI and NIA in Second Schedule how?	By executive order; corruption and human rights information must be given	Selection committee for CIC?	PM (chair), LoP Lok Sabha, Union Cabinet Minister nominated by PM

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CIC = Central Information Commission — Hears RTI appeals against central public authorities

RTI = Right to Information — Citizens can seek records from public authorities under the RTI Act, 2005

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

HC = High Court — State-level constitutional court (Art 214)

PM = Prime Minister — Head of the Union government

PIO = Public Information Officer — Officer who receives and answers RTI applications

SIC = State Information Commission — State body hearing RTI appeals

BPL = Below Poverty Line — Households under the official poverty threshold

BCCI = Board of Control for Cricket in India — Private body that runs Indian cricket; a test case for what counts as "State" under Art 12

DoPT = Department of Personnel and Training — Nodal department for civil service policy

CBI = Central Bureau of Investigation — Premier central investigating agency; derives powers from the DSPE Act, 1946

NIA = National Investigation Agency — Central agency for terror and other scheduled offences (NIA Act, 2008)

CM = Chief Minister — Head of a State government

CEC = Chief Election Commissioner — Head of the Election Commission

ARC = Administrative Reforms Commission — Commission recommending reforms in public administration (1st in 1966, 2nd in 2005)

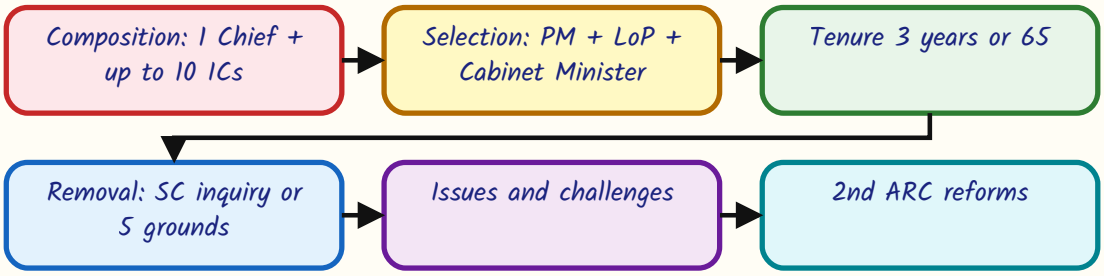
PPP = Public-Private Partnership — Long-term project partnership between government and a private firm

RTI: CIC, ISSUES AND IMPACT

PYQ None quoted in the handout (handout only, no class slides)

The Central Information Commission (composition, tenure and pay after 2019, removal), then RTI implementation challenges with figures, the impact of RTI and the Second ARC recommendations.

At a glance: the route



P-L-C — PM + LoP + Cabinet Minister pick the CIC · tenure 3 years or 65 · SC inquiry only for misbehaviour or incapacity.

CIC: COMPOSITION

Item	Detail
Members	1 Chief Information Commissioner + up to 10 Information Commissioners
Appointing authority	President
Selection committee	PM (chair); Leader of Opposition (Lok Sabha); Union Cabinet Minister nominated by PM
Eligibility	eminence: law, science, social service, journalism, mass media, public administration etc. (also science and technology, management, governance); not MP or State/UT legislator
Bars in tenure	office of profit, political party, any business

CIC set up by Central Government in 2005; hears complaints and appeals on offices, financial institutions, PSUs under the Centre and UTs. If no recognised LoP, leader of the single largest opposition group is deemed LoP. Statutory, not constitutional.

COP — Cabinet Minister (Union) nominated by PM · Opposition Leader in Lok Sabha · Prime Minister (Chair). A COP picks the commissioners.

P-L-C (handout) — Prime Minister, Leader of Opposition, Cabinet Minister: "Politics Loves Committees." The 2nd ARC would replace the Cabinet Minister with the CJI.

L-S-S-J-M-P — Eligibility: Law, Science, Social service, Journalism, Mass media, Public administration: "Let Smart Students Judge Many Problems."

⏳ TENURE AND SALARY (RTI RULES, 2019)

Item	Detail
⏳ Who decides tenure	Central Government, by notification
⏳ Notified tenure	3 years or age 65, whichever earlier
📦 Reappointment	none
IC elevated to CIC	allowed; combined tenure max 5 years
💰 CIC salary	Rs 2,50,000 per month (2.5 lakh)
💰 IC salary	Rs 2,25,000 per month (2.25 lakh)
Other conditions	allowances and conditions by Centre, not in parent Act

Before 2019

→ tenure and conditions in the RTI Act
→ pay linked to CEC and ECs
→ term fixed 5 years; State CIC = EC; State IC = Chief Secretary; pension deducted from salary

After 2019

→ executive rules decide tenure, salary, allowances
→ salary delinked from EC norms
→ CIC remains statutory
→ pension deduction removed

Four changes (2019)	
1	tenure and service conditions no longer in RTI Act; set by executive rules
2	salary delinked from Election Commission norms
3	CIC remains statutory, limiting safeguards
4	Centre has greater discretion over tenure, salary, allowances, conditions

R-D-S-D — Rules decide tenure, salary · Delinked from EC · Statutory body only · Discretion of the Centre: "Rules Decide Status Daily."

Source conflict: Ch 56 says 2019 removed the five-year term; this chapter gives 3 years or 65 and a 5-year combined ceiling. Use this chapter for figures; Ch 56 for the principle that the Centre decides.

🚪 REMOVAL BY THE PRESIDENT

🚪 Removal

→ **Track 1:** proved misbehaviour or incapacity: after Supreme Court inquiry (on President's reference); SC recommendation requirement retained

🧑‍🤝‍🧑 Track 2: no SC inquiry, five grounds

→ declared insolvent
→ convicted of offence of moral turpitude
→ paid employment during tenure
→ physically or mentally unfit
→ financial or other interest prejudicial to duties

DEBIT — Declared insolvent · Employment (paid) · Body or mind unfit · Interest harming duties · Turpitude conviction. Five grounds DEBIT a commissioner's term without SC inquiry.

I-C-P-U-F – Insolvent, Convicted, Paid employment, Unfit, Financial interest: "I Can't Pay Us Fully."

⚡ CIC powers (handout detail)

→ must inquire into complaints: no PIO appointed, refused, no reply, unreasonable fee, incomplete, misleading or false information, other matters

→ suo-moto inquiry; civil court powers: witnesses, documents, affidavit evidence, public records, summons; no record withheld

→ orders: form of information, PIO, publication, record practices, RTI training, annual compliance report, compensation, penalties, rejection

→ Penalty on PIO: Rs 250 per day up to Rs 25,000 plus disciplinary recommendation

→ annual report to Centre, laid before each House; may recommend steps

→ SIC: Governor on advice of CM (chair), LoP in Assembly, state Cabinet Minister; term and pay also set by Centre; number varies

⚠️ ISSUES AND CHALLENGES

RTI is a means; gap between the right to information and access to information as end. 💡

Attitude and political will

→ Bureaucratic mindset: RTI is an accountability tool; resisted

→ Absence of political will: hesitancy in bureaucracy, then politicians; scams harmed the government

→ Waning interest of media, activists, civil society

📜 Money, awareness, law

→ No budget allocation; 2nd ARC: 1% of flagship funds

→ Limited awareness (PwC): 12% women, 26% men, 13% rural, 33% urban

→ Vague terms in the law

👑 Commissions

→ ICs dominated by retired bureaucrats

→ Penalties rarely applied: not imposed in 95% of cases (Satark Nagrik Sangathan)

→ No organic CIC-SIC link; no national platform

→ Orders not implemented: no contempt powers

→ Annual reports delayed: 21 of 29 ICs filed none in 2019-20; AP and Telangana SICs none since 2017, Odisha since 2015-16

PIOs and records

→ extra burden without incentive; juniors appointed as PIO (seniors needed)

→ Poor record keeping; specialised agency suggested

→ Abuse of Schedule II: bodies added against spirit of law

Pendency

→ 40 to 60 lakh requests a year

→ pendency in 26 ICs: 2.55 lakh cases; IC vacancies

→ average disposal 1 year 11 months; COVID worsened

→ delay defeats the purpose of contemporary needs

Statistic	Number
👫 PwC aware: women, men	12%, 26%
PwC aware: rural, urban	13%, 33%
Penalty not imposed (Satark Nagrik Sangathan)	95% of cases
RTI requests per year	40 to 60 lakh
Pendency in 26 ICs	2.55 lakh
Average disposal time	1 year 11 months
ICs without annual report 2019-20	21 of 29

Source doubt: PwC line ("12% women, 26% men, and only 13% of rural and 33% of urban") has unclear grammar; treat all four as awareness figures.

A-M-C-P-R – Attitude, Money and awareness, Commissions, PIOs and records, Requests pending: "All Must Clear Pending Requests."

📜 IMPACT OF RTI

👥 Strengths

→ transparency tool
→ grievance redressal
→ exposes corruption, wasteful expenditure, scams, junkets, false narratives, recruitment results, marks
→ rural gain via NGO help
→ national movement: Right to Food, right to education

⚠️ Gaps

→ works best for personally relevant information
→ falls short on controversial information of large public interest
→ rural access depends on NGOs

🔧 SECOND ARC RECOMMENDATIONS

Theme	Recommendation
📜 Secrecy laws	repeal Official Secrets Act; oath of secrecy to oath of transparency
🗺️ Second Schedule	periodic review; remove unnecessary bodies
Classification	Top Secret, Secret, Confidential, Restricted
📦 Appointments	CJI in selection committee instead of Union Cabinet Minister; at least half of ICs from non-civil service
💰 Access	4 regional offices of CIC; nodal PIO where more than 1 PIO; central secretariat PIOs at least Deputy Secretary or Director; payment by stamps or postal orders; single window agency in districts; suo moto disclosure in print, free for reference
Records	public record office as independent authority, Centre and States
💰 Funding	one-time 1% of flagship programme funds for 5 years: infrastructure, RTI manuals
Training	all civil servants, not only PIOs
Awareness	campaigns by credible NGOs; CIC and SIC ready reckoners
Coordination	National Coordination Committee chaired by Central Information Commissioner
💰 Substantially financed	50% of operating costs for 3 years, or at least Rs 1 crore
📬 Frivolous complaints	steps to check them

POSTAL – PIO nodal officer · Offices: 4 regional CIC offices · Suo moto disclosure in print, free · Tools of payment: stamps, postal orders · Agency: single window in districts · Level of secretariat PIOs: Deputy Secretary or Director.

Classification

→ norms by Ministry of Home, not public; Public Records Act, 1993: 5-year review of top secret, secret, confidential for declassification
→ Top Secret: exceptionally grave damage
→ Secret: serious damage
→ Confidential: simple damage
→ Restricted: for official use only

T-S-C-R – Top Secrets Cannot Reveal: Top Secret, Secret, Confidential, Restricted, most to least damaging. Handout: "Tell Secrets Carefully, Really."

R-S-C-A-R-F-T-A-C-S-F — ARC themes: Repeal OSA, Second Schedule, Classification, Appointments, Records, Funding, Training, Awareness, Coordination, Substantially financed, Frivolous: "Real Scholars Check All Records, Find Truth, Avoid Corruption, Serve Fairly."

1993
Public Records Act

2005
RTI Act

2019
Amendment and Rules

2019-20
21 of 29 ICs: no report

Recall drill: cover and answer

CIC composition and appointer?	1 Chief + up to 10 ICs; President	Selection committee?	PM (chair), LoP Lok Sabha, Union Cabinet Minister nominated by PM; 2nd ARC: CJI instead of Cabinet Minister
Tenure and pay (2019 Rules)?	3 years or age 65; no reappointment; 5 years combined; CIC Rs 2,50,000, IC Rs 2,25,000	Which removal ground needs SC inquiry?	Proved misbehaviour or incapacity; five other grounds need none
Five grounds without SC inquiry?	Insolvency, moral turpitude, paid job, unfit, harmful interest (DEBIT)	PwC awareness figures?	12% women, 26% men, 13% rural, 33% urban
Penalty imposed? Pendency? Disposal?	Not imposed in 95%; 2.55 lakh in 26 ICs; 1 year 11 months	Four classification levels?	Top Secret, Secret, Confidential, Restricted; 5-year review under Public Records Act 1993
2nd ARC funding and substantially financed test?	1% of flagship funds for 5 years; 50% operating costs for 3 years or Rs 1 crore	2nd ARC access numbers?	4 regional offices; PIOs Deputy Secretary or Director level

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

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ARC = Administrative Reforms Commission — Commission recommending reforms in public administration (1st in 1966, 2nd in 2005)

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SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

PIO = Public Information Officer — Officer who receives and answers RTI applications

CJI = Chief Justice of India — Head of the Supreme Court

SIC = State Information Commission — State body hearing RTI appeals

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

UT = Union Territory — Area administered directly by the Union government

CEC = Chief Election Commissioner — Head of the Election Commission

CM = Chief Minister — Head of a State government

AP = Andhra Pradesh — State in south India

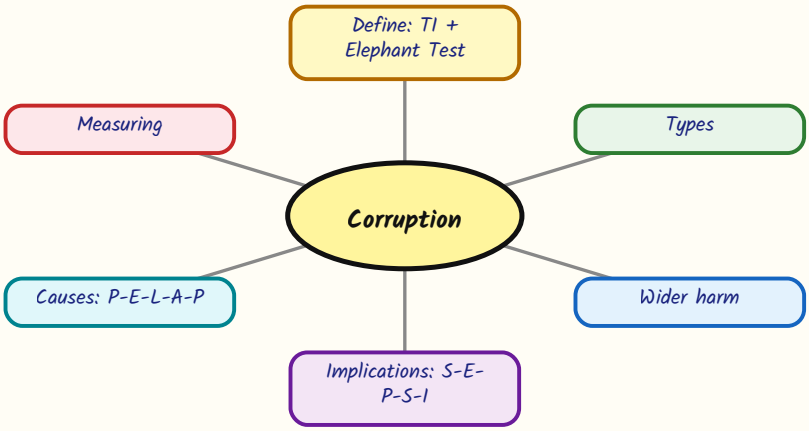
NGO = Non-Governmental Organisation — Private voluntary body working for social causes

PROBLEM OF CORRUPTION

PYQ None quoted in the handout (handout only, no class slides)

✎ *What corruption is and why it is hard to define, its types, what it costs, the five families of causes, and the four ways of measuring it.*

👥 At a glance: the structure



Transparency International: corruption = "private abuse of public office". Elephant Test: hard to define, but society knows it when it sees it. Kautilya's Arthashastra lists civil-servant corruption and measures.

TI-CPI-6A — TI: private abuse of public office · CPI since 1995, 0 = most corrupt, 100 = cleanest · Sec 6A struck down 2014, 17A added 2018

DEFINING CORRUPTION

Is a gift a bribe? Six factors

- → intent of donor
- → expectation of recipient
- → timing
- → value
- → legal framework
- → social acceptability

TRAGIC — Timing · Recipient's expectation · Acceptability to society · Gift's value · Intent of donor · Country's legal framework. A gift turned bribe is TRAGIC.

I-E-T-V-L-S — "Is Every Token Valued Like a Sale?"

Place	Practice	View
UK	old school ties of universities	culturally accepted
USA	lobbying and networking	regulated, legal
Russia	Blat: reciprocal favours, Soviet inheritance	culturally accepted
China	Guanxi: favour must be returned	reciprocity

Scope: public only or private too?

- → **Both sectors:** wide net dilutes focus
- → **Public first:** if government is incorruptible, private corruption falls
- → **TI answer:** "private abuse of public office" plus Elephant Test

TYPES OF CORRUPTION

Type	Meaning
Black	all sections agree it is corrupt and must not be tolerated
White	seen as corrupt but tolerated; e.g. speed money
Grey	sections differ on whether it is corrupt
Grass-eating	does not seek bribes but does not refuse one
Meat-eating	actively seeks corrupt gain
Coercive (extortive)	citizen must bribe to get his due; official extorts
Collusive (transactive)	official and bribe-giver collude; both gain, public loses
Retail (petty)	street-level bureaucracy; e.g. speed money
Policy (grand)	crony capitalism, state capture; highest levels; business shapes policy

G-U-T — Grey: sections disagree · Unanimous condemnation: Black · Tolerated: White (speed money). Society knows corruption by its GUT feeling.

Pairs: Grass = passive, Meat = active. Coercive = official squeezes you; Collusive = you and official squeeze the public. Retail = street, Policy = top. Black/White/Grey: "Bad, Winked at, Got opinions".

Wider harm to public interest

- → lethargy
- → dereliction or negligence
- → repeated carelessness
- → non-punctuality
- → subjective interpretation of public interest
- → favouritism and nepotism
- → communalism, casteism, lynching, regional bias

L-D-R-N-S-F-C — Lethargy, Dereliction, Repeated carelessness, Non-punctuality, Subjective public interest, Favouritism, Communalism: "Lazy Duty Runs Never Services Friends' Causes".

IMPLICATIONS

Social

- → **Divisions:** vertical (rich or well-connected get their due) and horizontal (favouritism to one caste or class)
- → **Insecurity:** crimes unreported, society criminalised
- → **Danger to life:** building collapses, fires from substandard materials, false certificates
- → erodes social fabric: distrust

Economic

- → **less aid** (Africa: aid lost to dictators, warlords)
- → **less investment**: Paulo Mauro: differential up to 12%
- → **additional tax** on investment; lower revenues; spending diverted to non-priority sectors
- → efficiency compromised; distorts competition; **brain drain, capital flight**
- → trouble joining international clubs (Eastern Europe and EU); **environmental damage**

Political and legal

- → enhances power and **discretion** of public servants
- → more **money power**
- → **pork-barrelling**: project shown as public interest, really serves corporate house, officials, politicians
- → despair makes **extremist politicians** attractive (xenophobia, radical populism)
- → **mass unrest** (India Against Corruption)

→ radical tendencies: left extremism and NE insurgency fuelled by corruption

Security and international

→ Security: forces' corruption aids money laundering, drug and human trafficking, arms smuggling; defence procurement quality

International

→ Magnitsky Act, 2012: Russian lawyer prosecuted for exposing corruption; US law named for him soured ties with Russia

→ Germany 1990s: luxury cars stolen and smuggled to Central Europe with corrupt officials; German premiums rose; diplomatic row

S-E-P-S-I – Five heads: Social, Economic, Political-legal, Security, International: "Some Elephants Prefer Sweet Ice".

REVISIONISM

Revisionism (few takers): some corruption in civil services is not bad; lethargic, low-paid, red-tape-prone civil servants become more efficient with corruption: "corruption as grease". Never present as accepted view.

FACTORS BEHIND CORRUPTION: P-E-L-A-P

P-E-L-A-P – Psycho-social, Economic, Legal, Administrative, Political: "Poor Elephants Lift Awkward Pots".

Psycho-social

→ Need for THYMOS (Greek: respect, recognition): low self-worth drives materialism; locus of control outside the person

→ Societal attitude: labelling and shaming disincentivise honest employees

→ Squirrel Nuts Syndrome: near-retirement officers more corrupt to keep benefits

→ Opportunity Theory: few seek opportunity, but commit when it comes; reduce opportunities

→ Religion: Protestant areas less corrupt in European studies

→ History: long Indian history (Kautilya) makes society tolerant

→ Popular sanction: no popular sanction against corruption; honest people victimised

→ Social evils: marriage expenditure, dowry

Source doubt: "Popular sanction" first says "some societal sanction" then "no popular sanction against corruption". Reading: society lacks real popular disapproval; honest people are victimised.

T-S-S-O-R-H-P-S – Thymos, Societal attitude, Squirrel Nuts, Opportunity, Religion, History, Popular sanction, Social evils: "Tall Sailors Seldom Overlook Rough Harbours, Pirates Sail". Squirrel hoards nuts; Thymos = hunger for respect.

Economic

→ poor salary at upper levels (raising alone may not dent it)

→ consumerism feeds low self-esteem

→ Licence Permit Quota Raj to Clearance Raj: clearances and NOCs, red tape

→ willingness and ability: large MNCs can bribe for policy

→ lack of business cooperation: firms outbid each other

P-C-C-W-L — Poor salary, Consumerism, Clearance Raj, Willingness and ability, Lack of business cooperation: "Pay Can't Cure Willing Lions".

Legal factors, central claim: excessive legal protection for public servants against corruption prosecution. ⭐

Provision	Says	Effect
📜 Article 311	reasonable opportunity before any action against public servant	very hard to dismiss the corrupt
📜 Section 19 PCA, 1988	sanction of appointing authority before prosecution	protects honest from spurious charges; misused to protect corrupt
📜 Section 197 CrPC	for any offence (apart from corruption) in discharge of duty, permission of appointing authority	same logic, same misuse
📜 Section 6A DSPE Act, 1946	prior sanction to investigate officers of joint secretary rank and above	struck down (chain below)

Single Directive
Single Directive: sanction for preliminary inquiry and investigation (JS and above)

1997
Vineet Narain case strikes it down

Later
DSPE Act amended: Single Directive becomes Sec 6A

2014
SC strikes down 6A: special protection violates equality (Art 14)

2018
PCA amended: Section 17A: permission for preliminary inquiry for all public servants, except caught red-handed

Other legal factors
- → delay in prosecution; weak judicial process
- → no effective whistle-blowers' law
- → inadequate autonomy of CBI and CVC; politicised

V-D-S-P — Vineet Narain (1997) strikes Single Directive · DSPE Act gets Sec 6A · Sec 6A struck down (2014) · PCA Sec 17A (2018).

A-S-S-S — Article 311, Section 19 PCA, Section 197 CrPC, Section 6A DSPE: "All Shields Stay Strong".

Administrative
- → procedural complexity: middlemen
- → red tape; weak internal grievance redressal
- → peer pressure and indoctrination
- → resistance to administrative reforms
- → politicisation of transfers and plum postings
- → culture of secrecy

Political
- → absence of political will: Lokpal bill attempts, delay in appointing Lokpal
- → criminalisation of politics
- → no encouragement of neutrality
- → voter immaturity: TINA factor (There Is No Alternative)
- → money power in elections; weak party-funding disclosure

ENACT — Election money power and weak funding disclosure · Neutrality not encouraged · Absence of political will (Lokpal) · Criminalisation · TINA.

A-C-N-V-M — Absent will, Criminalisation, Neutrality lacking, Voter immaturity, Money power: "Any Candidate Needs Votes and Money".

MEASURING CORRUPTION

Method	Details	Limits
Official statistics	prosecution and investigation records	weak if prosecution is ineffective
Perception surveys	TI Corruption Perception Index, annual since 1995; 0 = most corrupt, 100 = least	experts and business leaders (not common man); perception not objective; sources change; rank comparison over years not appropriate (number of countries varies)
Experiential surveys	TI Global Corruption Barometer, actual experience	not annual, regional; in Asia (17 countries) Japan least, India most corrupt
Tracking surveys	World Bank PETS: Public Expenditure Tracking Survey	tracks flow of donor funds through levels
Content analysis	media content on corruption	crude but interesting

COAST – Content analysis · Official statistics · Attitudinal and perceptual surveys (CPI) · Surveys of experience (Barometer) · Tracking (PETS). Is the COAST clear of corruption?

O-P-E-T-C – Official, Perception, Experience, Tracking, Content: "Old Peacocks Eat Tasty Corn". CPI = perception; Barometer = experience; PETS = tracking funds.

CPI 2020 (released 2021)	Rank
NEW New Zealand and Denmark	least corrupt
Somalia and South Sudan	last
Bhutan	24th
USA	25th
Botswana	35th
China	78th
Pakistan	124th

Source gap: the sub-heading "India's rankings and scores" has no India figure (table seems missing). Do not quote an India rank from this chapter.

Indian framework (Lakshmikanth extras)

→ Public Servants (Enquiries) Act 1850, IPC 1860, Commissions of Inquiry Act 1952, Benami Transactions (Prohibition) Act 1988 (handout: "Benami Properties Act")

→ Rules: All-India Services (Conduct) 1968 and (Discipline and Appeal) 1969; Central Civil Services (Conduct) 1964 and (Classification, Control and Appeal) 1965; Railway Services (Conduct) 1966

→ Bodies: State Vigilance Commissions (1964), Divisional Vigilance Board, District Vigilance Officer, ministry and PSU vigilance units, Directorate of Public Grievances in Cabinet Secretariat (1988), Centralised Public Grievance Redress and Monitoring System (2007)

→ CVC: designated agency for whistleblower complaints under Public Interest Disclosure and Protection of Informers Resolution, 2004; only agency to act on vexatious complaints

→ 6A: Constitution Bench 2014: violates Art 14; CJI: status gives no exemption

Ancient Kautilya's Arthashastra

1946 DSPE Act

1988 PCA (Sec 19)

1995 CPI annual

1997 Vineet Narain

2012 Magnitsky Act

2014 6A struck down

2018 PCA: 17A

2020 CPI: NZ, Denmark top

Recall drill: cover and answer

TI definition and the Elephant Test?	"Private abuse of public office"; hard to define, society knows it when it sees it	Black, white, grey?	All condemn; recognised but tolerated (speed money); sections differ
Grass-eating vs meat-eating?	Does not refuse a bribe vs actively seeks one	Coercive vs collusive; retail vs policy?	Official extorts vs both gain; street-level vs state capture (crony capitalism)
Squirrel Nuts Syndrome? Thymos?	Near-retirement officers more corrupt; Greek for respect or recognition	Section 6A chain?	Single Directive struck down (Vineet Narain 1997); Sec 6A DSPE; struck down 2014; PCA 17A in 2018
Four legal shields?	Art 311, Sec 19 PCA, Sec 197 CrPC, Sec 6A DSPE	CPI scale, start year?	0 = most corrupt, 100 = cleanest; annual since 1995
PETS and Global Corruption Barometer?	World Bank tracking of fund flow; TI experiential survey	Paulo Mauro figure?	Investment differential up to 12%

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

TI = Transparency International — Global anti-corruption group that publishes the Corruption Perceptions Index

PCA = Prevention of Corruption Act, 1988 — Law punishing bribery and corruption by public servants

DSPE = Delhi Special Police Establishment — Legal base of the CBI (DSPE Act, 1946)

CVC = Central Vigilance Commission — Apex vigilance body against corruption in central services

EU = European Union — Political and economic union of European countries

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

CBI = Central Bureau of Investigation — Premier central investigating agency; derives powers from the DSPE Act, 1946

IPC = Indian Penal Code, 1860 — Old criminal code, replaced by the BNS

PSU = Public Sector Undertaking — Company owned mainly by the government

CJI = Chief Justice of India — Head of the Supreme Court

CORRUPTION: CBI AND CVC

PYQ None quoted in the handout (handout-only chapter)

The laws against corruption, then the two central bodies: CBI investigates (origin, divisions, problems, Vineet Narain 1997) and CVC supervises (selection, term, powers, reforms).

1941 SPE

1946 DSPE Act

1962 Santhanam Cttee

1963 CBI name

1964 CVC executive

1997 Vineet Narain

2003 CVC Act

2011 PJ Thomas

2013 Lokpal Act

2014 Whistleblower Act

LAWS AND BODIES AGAINST CORRUPTION

Law	What it does
Sec 203 BNS (Sec 169 IPC)	civil servant acquiring property illegally
Sec 316 BNS (Sec 409 IPC)	criminal breach of trust by public servant
DSPE Act, 1946	establishes CBI for anti-corruption probe
Sec 123 RPA, 1951	corrupt practices in elections
Prevention of Corruption Act (PCA), 1988	general law on corruption
Benami Properties Act, 1988	prosecute benami property
PMLA, 2003	nodal law on money laundering
CVC Act	central vigilance organisation
RTI Act, 2005	transparency, accountability
Lokayukta Acts (states)	state ombudsman
Lokpal Act, 2013	central ombudsman
Whistleblower Act, 2014	protects those who disclose corruption
Time Bound Delivery of Services laws	tackle speed money

Big Dogs Run Past Bushes, Pulling Chains, Rushing Late Wildly – BNS · DSPE 1946 · RPA 1951 · PCA 1988 · Benami 1988 · PMLA 2003 · CVC Act · RTI 2005 · Lokpal 2013 · Whistleblower 2014 (time order)

Central bodies

- → CBI
- → CVC
- → CAG
- → Lokpal
- → ED (PMLA and FEMA)

State and other

- → Anti-corruption bureaus, vigilance wings
- → Lokayuktas
- → Banking Sector Ombudsman
- → Consumer Courts
- → 3-tier judiciary

CBI: ORIGIN AND DIVISIONS

1941 Special Police Establishment

1946 DSPE Act: statutory backing

1963 name CBI

S D C – Sleuths Deliver Convictions: SPE 1941 · DSPE Act 1946 · CBI 1963 (year order)

Division	Covers
Anti-Corruption	corruption cases
Special Crimes	serious, sensational, organised crimes
Economic Offences	cheating, Ponzi schemes, counterfeit currency
Banking and Security Frauds	economic offences in banking and securities market

CASE – Crimes (Special) · Anti-Corruption · Security and banking frauds · Economic Offences (order rearranged; handout list unordered)

⚠️ CBI: ISSUES

⚡ Issues in functioning

→ Politicisation: former SC judge: "caged parrot"; every ruling party used it vs opponents

→ Staff: about one-third posts vacant

→ Conviction rate: CBI 67% vs 30–40% other agencies; low in high-profile cases

→ Sanction delays: Sec 19 PCA and Sec 197 CrPC protect civil servants; sanction from state govt; delay in sanction = delay in prosecution

⚡ Jurisdiction

→ no suo-moto jurisdiction

→ only cases transferred to it

Parrots Seldom Catch Slippery Jackals — Politicisation · Staff shortage · Conviction in high-profile cases · Sanction delays · Jurisdiction (no suo-moto)

⚖️ VINEET NARAIN CASE, 1997

Direction	Detail
CVC supervises CBI	CVC: anti-corruption and civil service discipline; CVC Act gives general superintendence over CBI in PCA cases
⏳ Minimum tenure	Director and key posts; DSPE Act: Director 2 years; ordinance extended up to 5 years, in tranches of 1 year after the two
🗳️ Committee appointment	not govt discretion: PM, LoP in Lok Sabha (or leader of largest opposition party if no recognised LoP), CJI
Single Directive struck down	rule requiring sanction vs joint secretary and above
DoPT control	broad direction and control = overall policy only, not day-to-day probes
Transfer	Director transferred by the same committee

MASCOT — Minimum tenure 2 yrs · Appointment by committee (PM, LoP, CJI) · Single Directive struck down · CVC superintends in corruption cases · Only overall policy by DoPT · Transfer by same committee (order rearranged)

Reality check: even after the judgement, CBI still has politicisation allegations and the "caged parrot" label. ⭐

🗳️ CVC: STATUS, SELECTION, TERM

1962 — Santhanam Committee (K Santhanam)

1964 — CVC set up by Centre as executive body

2003 — CVC Act: statutory body

Definition: CVC = apex vigilance institution free from control of any executive authority; monitors all vigilance under Central Govt, advises on planning, reviewing, reforming vigilance work. 💡

👥 Composition and selection

→ 1 Central Vigilance Commissioner (chair) + up to 2 Vigilance Commissioners

Drawn from

→ All India Services or Central Services (present or past)

→ Officers of CPSUs

🗳️ Committee

→ PM, Home Minister, Leader of Opposition (or largest opposition party leader)

→ two govt members = govt has final say

MOP — Minister of Home Affairs · Opposition Leader · Prime Minister (order rearranged)

Handout alert: "from both categories not more than two can be selected, ensuring at least one from each category". Simple reading: 1 CVC + up to 2 VCs, each category gets at least one.

⚖️ **PJ Thomas Case, 2011**

→ **Problem:** govt majority in committee made LoP's membership pointless
→ **Ruling:** selection by consensus of all members, not majority
→ **Limit:** applies only to this appointment, not all committee appointments

Point	Rule
⏳ Term	4 years (CVC and VC); retire at 65
🗳️ Reappointment	none at same post; elevation (VC to CVC) allowed if total stay not above 4 years
Bars after service	not UT administrator, diplomatic job, any appointment under President's warrant and seal; no office of profit under Centre or states
💰 Salary	CVC = UPSC Chairperson; VCs = UPSC members; cannot be altered to disadvantage
💰 Source of pay	Consolidated Fund of India
🚪 Removal	proven misbehaviour or incapacity: reference to Supreme Court
Other grounds	insolvency, moral turpitude, private employment, infirmity of body and mind, prejudicial financial interests

Four Silver Pens Elected — Four years or 65 · Salary like UPSC · Proven misbehaviour via SC · Elevation allowed, no reappointment

CVC vs CBI Director: CVC = 4 yrs or 65, committee PM + HM + LoP. CBI Director = min 2 yrs (up to 5 by ordinance), committee PM + LoP + CJI. ✅

⚡ CVC: FUNCTIONS AND POWERS

⚡ **Powers**

→ Superintend CBI in PCA 1988 cases (Vineet Narain 1997); give directions to it
→ Inquire on Central Govt reference; inquire into complaints vs officials in Sec 8(2) CVC Act 2003: Group A, All India Service, equivalent in Central PSUs
→ Review DSPE progress on PCA offences; review pending sanctions under PCA
→ Tender advice to Centre and organisations; superintend vigilance administration of ministries
→ Civil court powers when inquiring; mandatory consultation before rules on vigilance or discipline for Union services and All India Services
→ Annual report to President, laid before both Houses

👥 **Appointments by CVC-chaired committee (VCs members)**

→ Director of Enforcement
→ ED officers of Deputy Director and above (after consulting Director)
→ CBI officers of SP level and above, except Director: appointment, extension, curtailment (after consulting CBI Director)

Smart Guards Inspect Records, Track Crooks — Superintend CBI · Give directions · Inquire · Review · Tender advice · Civil court powers

⚠️ CVC: ISSUES AND SEVEN REFORMS

OPEN — Overwhelming dependence on CBI · Prosecution power absent, sanction needs govt permission (often delayed) · Engagement with civil society poor · Non-cooperative govt

Suggestion	Detail and example
⚡ Independent investigative and prosecution powers	like Lokpal model; 2nd ARC (Ethics in Governance): functional autonomy
Statutory timelines for sanction	3–6 months; Vineet Narain (1997) directed timelines, delays persist; TI India: 2023 over 70% sanctions pending beyond 6 months
Binding oversight in disciplinary and vigilance matters	advisory to binding across ministries and PSUs; Sarkaria Commission stressed independent oversight
⚡ Manpower and technology	more staff, dedicated Vigilance Cadre, digital real-time monitoring; CVC Annual Report 2023: under 50% staff, over 1500 organisations
Civil society participation, citizen feedback	consultations with whistleblowers, NGOs; public grievance dashboard; 2nd ARC multi-stakeholder; South Korea ACRC model
🔧 Binding recommendations	amend CVC Act so advice binds ministries in vigilance lapses; Punchhi Commission: statutory backing
🗳️ Transparent selection	add judiciary members or eminent experts to panel; PJ Thomas (2011) showed flaws

If State Bodies Meet Citizens, Bribes Take Time — Independent powers · Sanction timelines · Binding oversight · Manpower · Civil society · Binding recommendations · Transparent selection

Handout alert: reforms numbered 26–32 in handout (stray list numbers); there are seven. Sarkaria and Punchhi (Centre–State) are quoted by the handout as vigilance examples; quote as the handout does.

ALSO IN THE HANDOUT: CBI AND CVC EXTRAS

CBI extras

→ Roots: SPE (1941) probed bribery in War and Supply Dept in WWII; DSPE Act 1946 moved it to Home Department; CBI by Home Ministry resolution 1963, DSPE became a division

→ Motto: Industry, Impartiality and Integrity; under DoPT; Interpol NCB for India

→ NIA (after 2008 Mumbai attack): terror; CBI: corruption, economic offences, organised crime except terror

→ State consent needed (except railway areas); murder etc. only on State reference or SC/HC direction

🗺️ CBI vs state police

→ DSPE: Central affairs, employees, Central PSUs

→ State police: state affairs even if Central staff involved

📜 Lokpal Act 2013 changes

→ Director of Prosecution recommended by CVC

→ SP rank and above: committee of CVC (chair), VCs, Home Secretary, DoPT Secretary

→ DSPE (Amendment) Act 2014: largest opposition party leader sits on Director's committee if no LoP

CVC extras

→ Own Secretariat; Chief Technical Examiners' Wing (technical audit of construction); Commissioners for Departmental Inquiries (oral inquiries)

→ civil court powers; seat New Delhi; govts must record reasons in writing if advice rejected

→ Jurisdiction also: Scale V+ in public sector banks, Grade D+ in RBI, NABARD, SIDBI, senior officers of PSUs, insurance, LIC

Lakshmikanth differs (CBI status): LK says CBI is not a statutory body, draws powers from DSPE Act 1946; handout says DSPE Act establishes it. Use the handout in class.

Lakshmikanth differs (Director tenure): LK: DSPE (Amendment) Act, 2021 extends fixed 2 years to max 5 years, one year at a time (three extensions), reasons in writing. Handout says ordinance. Use handout, remember the 2021 Act.

In the news · Sep 2026 (verify dates) **CBI and State consent:** Bihar Government expanded the CBI's general consent for specified cases involving Central Government employees, Central PSUs and related private... (source text is cut off)

Recall drill: cover and answer

CBI origin years?	SPE 1941, DSPE Act 1946, name CBI 1963	Four CBI divisions?	Anti-Corruption, Special Crimes, Economic Offences, Banking and Security Frauds
Six Vineet Narain (1997) directions?	CVC supervision, min tenure (2 yrs), committee (PM, LoP, CJI), Single Directive struck down, DoPT overall policy only, same committee transfers	CVC history?	Santhanam 1962, executive 1964, statutory CVC Act 2003
CVC composition and committee?	1 CVC + up to 2 VCs; PM, Home Minister, LoP	PJ Thomas (2011) ruling?	consensus not majority; only for this appointment
CVC term, pay, removal?	4 yrs or 65; CVC = UPSC Chair, VC = UPSC member; SC reference	CBI conviction rate?	67% vs 30–40% other agencies
CBI jurisdiction limit?	no suo-moto; State consent needed except railway areas		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CVC = Central Vigilance Commission — Apex vigilance body against corruption in central services

CBI = Central Bureau of Investigation — Premier central investigating agency; derives powers from the DSPE Act, 1946

DSPE = Delhi Special Police Establishment — Legal base of the CBI (DSPE Act, 1946)

PM = Prime Minister — Head of the Union government

PCA = Prevention of Corruption Act, 1988 — Law punishing bribery and corruption by public servants

DoPT = Department of Personnel and Training — Nodal department for civil service policy

UPSC = Union Public Service Commission — Constitutional body (Art 315) that recruits for the Union services

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

CJI = Chief Justice of India — Head of the Supreme Court

BNS = Bharatiya Nyaya Sanhita, 2023 — New criminal code that replaced the Indian Penal Code

IPC = Indian Penal Code, 1860 — Old criminal code, replaced by the BNS

PMLA = Prevention of Money Laundering Act, 2002 — Law to prevent money laundering and attach proceeds of crime; ED enforces it

TI = Transparency International — Global anti-corruption group that publishes the Corruption Perceptions Index

ED = Enforcement Directorate — Agency that enforces PMLA and FEMA

ARC = Administrative Reforms Commission — Commission recommending reforms in public administration (1st in 1966, 2nd in 2005)

RPA = Representation of the People Act — Laws on conduct of elections and disqualification (1950 and 1951)

TACKLING CORRUPTION AND SOCIAL AUDIT

PYQ None quoted in the handout (handout-only chapter)

✎ *Five toolkits against corruption (stick, carrot, administrative, radical, international), then social audit: features, issues, strengthening, success stories.*

At a glance: five toolkits



Wicked problem: many laws (PCA, Lokpal, CVC Act) yet corruption persists; law proliferation often signals systemic inefficiency; can only be **controlled, not eliminated**.

Some Cats Always Run Inside – Stick · Carrot · Administrative and technical · Radical · International

STICK MEASURES

Measure	Content
Legal system and prosecution	higher conviction deters (Botswana); India: delayed trials, lenient punishment; harsh penalties (China) unsuitable: rule-of-law gaps, victimisation
Sting operations, entrapment	admissibility ambiguous; natural stings (citizen recordings) should be admissible; clarity to avoid misuse (Sweden restrictive)
Tighter anti-corruption laws	2018 amendments diluted PCA; no will to plug loopholes in whistleblower, CVC, Lokpal laws
Declaration of assets	monitor disproportionate lifestyle; rigorous audits
Effective agencies	India fragmented (CVC, CBI, Lokpal, ED); Singapore CPIB, Hong Kong ICAC = single dedicated agency
Public shaming, blacklisting	naming officials (South Africa); blacklist firms from contracts
Financial penalties	forfeit pensions and future benefits

SCALPEL – Shaming and blacklisting · Corruption agency (CPIB, ICAC) · Assets declaration · Legal system and prosecution · Penalties on pensions · Entrapment and stings · Laws tightened (order rearranged)

CARROT MEASURES

Carrots

→ **Substantial pay rise** with strict enforcement: better integrity at entry level

→ **Citizen helplines:** Delhi anti-corruption hotline; needs **whistleblower and witness protection** laws

Handout alert (conflict): earlier chapter (Problem of Corruption) says raising salaries may not dent corruption; this chapter backs pay rises **if paired with strict enforcement**. Use both: pay helps only with enforcement.

ADMINISTRATIVE AND TECHNICAL

Measure	Content
Job rotation	frequent transfers in sensitive posts break networks; Kautilya's Arthashastra supports
Auditing	CAG covers only 25% auditable units yearly; need manpower, IT, random audits
Procurement	bid norms + Public Procurement Law; procurement = 30% of GDP; 2012 bill lapsed, revive
Digitisation	less physical interface, curbs petty corruption
CCTV	police stations, borders, vulnerable depts; high-risk first

SCRAP – Services digitised · CCTV · Rotation of jobs · Auditing (CAG) · Procurement norms and law (order rearranged)

RADICAL APPROACHES

Approach	Example and note
Disbanding departments (Georgia)	Traffic Police disbanded 2004, fresh recruitment under stricter norms
Gender balance (Peru)	more women = less corruption; can be piloted in India
Monetising bribes (Romania)	official payments to avoid petty bribes (conscription policy); equity concerns
General amnesty	disclose black money (50% surrender); strict enforcement after

DRAG – Disband (Georgia) · Romania monetised bribes · Amnesty · Gender balance (Peru) (order rearranged)

INTERNATIONAL MEASURES

1977 FCPA (USA)

1989 FATF

1997 OECD Anti-Bribery Convention

2003 UNCAC

2010 UK Bribery Act

Instrument	Role
Foreign Corrupt Practices Act, 1977 (USA)	penalises MNCs' offshore corrupt practices
UK Bribery Act, 2010	same
OECD Anti-Bribery Convention, 1997	global anti-corruption norms
UNCAC, 2003	global anti-corruption norms
FATF, 1989	combats money laundering
Interpol's IGEC	corruption standards for police forces

Fine Usual Old Uniforms Fit – FCPA 1977 · UK Bribery 2010 · OECD 1997 · UNCAC 2003 · FATF 1989

Gaps: WTO inaction on corruption as non-tariff barrier; global financial transparency vs banking havens still critical. ⭐

CRITIQUE AND ALTERNATIVES

Critique of anti-corruption industry

→ West ignored corruption until 1990s; post-globalisation = geopolitical tool

→ NGO vested interests: data over ground impact

→ Cultural imperialism concerns

Alternatives

→ Spiritual education: ethics and meditation in curricula

Integrity Recognition Certificates (IRC)

→ recognise honest officers; peer-pressure networks

→ insulate from politicisation

SOCIAL AUDIT: MEANING AND FEATURES

Social audit: scheme details (financial and non-financial) shared with beneficiaries on a public platform (**Jan Sunwai**, public hearing, **Gram Sabha**); people give input, spot loopholes. Origin traced to **CSR in private companies**.

Key condition: works only with a sound **access to information (RTI) regime**: agencies must reveal all details or it is a lost cause.

Feature	Meaning
Multi-perspective	beneficiaries, leaders, civil servants all present their side
Regular	periodic, issues re-evaluated continuously
Comparative	across time and across villages: weaknesses vs what others did well
👥 Strengthens demand side	pressure on local bureaucracy is weak; fixes demand-side weakness, indirectly supply-side

STEP – Strengthens demand side · Time and place comparison · Every set period (regular) · Perspectives of many sides

Significance

→ people's **participation**
→ **benefits reach** targets
→ **social capital**
→ HR and training needs of civil servants
→ highlights development concerns
→ transparency, **checks corruption**
→ better future programmes

⚠ Issues

→ not in **mainstream policy** discourse
→ statutory under very few programmes; **NREGA** must hold it
→ **no trained social auditors**
→ **vested interests** oppose
→ **Symptom-cause:** surface symptoms only (plague awareness vs sanitation, housing); do not scrap scheme without examining all causal layers

👥 STRENGTHENING SOCIAL AUDIT

Heading	Steps
Legal and institutional	Model Social Audit Law (from **Meghalaya 2017 Act**); independent units like **AP SSAAT**; support CAG; build PRI technical and human capacity
⚡ Empower stakeholders	train Gram Sabha members and auditors (standards, ethics); NGO and media partnerships; recognition for active participants
Standardise and digitise	online portals for real-time audit reports, expenditure, PRI records; proactive disclosure; unified guidelines and checklists
🧑‍🤝‍🧑 Best practices	**Chhattisgarh:** link audits with grievance redressal, wall writing. **Karnataka:** rotate audit teams after every **three audit cycles**

Learn, Educate, Standardise, Adopt – Legal and institutional · Empower stakeholders · Standardise and digitise · Adopt best practices

Handout alert: Chhattisgarh and Karnataka numbered 26 and 27 (stray list numbers); just two models.

SUCCESS STORIES

Story	What happened
AP MGNREGA: SSAAT (Society for Social Audit, Accountability and Transparency)	autonomous; trained village resource persons; crores of wage misappropriation recovered; World Bank global best practice
Jharkhand SAU	MGNREGA, PDS, pensions; ghost beneficiaries, wage delays, ration diversion; Swaraj Abhiyan Case (2016) SC appreciated; empowered Gram Sabhas
Rajasthan MKSS (Mazdoor Kisan Shakti Sangathan)	jan sunwais 1990s revealed leakages; led to RTI Act 2005
Bengaluru Citizen Report Cards	civil society pioneered; water, hospitals, transport surveys; bribery fell, satisfaction rose; endorsed in 2003 study
Benchmarking, municipal services	compare costs (cost per km of road); disclosure built pressure, cut corruption

Shortcut

→ AP = SSAAT
→ Jharkhand = SAU
→ Rajasthan = MKSS
→ Bengaluru = CRC. MKSS leads to RTI 2005; Swaraj Abhiyan 2016.

Lakshmikanth adds: 3 world grievance devices: Ombudsman, Administrative Courts (France), Procurator (former USSR, China). India: Directorate of Public Grievances, Cabinet Secretariat (1988); Dept of Administrative Reforms and Public Grievances; CPGRAMS (Centralised Public Grievance Redress and Monitoring System, 2007). File to Field (Kerala): administrator goes to village, acts at once. Follow handout where LK differs.

1977 FCPA
1989 FATF
1997 OECD
2003 UNCAC
2004 Georgia traffic police
2005 RTI
2010 UK Bribery Act
2012 Procurement bill lapses
2016 Swaraj Abhiyan
2017 Meghalaya Act
2018 PCA amended

Recall drill: cover and answer

Five anti-corruption toolkits?	Stick, carrot, administrative and technical, radical, international	Single-agency models?	Singapore CPIB, Hong Kong ICAC
CAG audit coverage; procurement share of GDP?	25% of auditable units yearly; 30%	Radical four?	Georgia disband (2004), Peru women, Romania monetise bribes, amnesty (50% surrender)
Instruments with years?	FCPA 1977, UK Bribery 2010, OECD 1997, UNCAC 2003, FATF 1989	Four social audit features?	Multi-perspective, regular, comparative, strengthens demand side
Which Act is the social audit model?	Meghalaya 2017	AP, Jharkhand, Rajasthan, Bengaluru models?	SSAAT, SAU, MKSS, Citizen Report Cards
Karnataka model feature?	rotate audit teams after every three audit cycles		

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

CAG = Comptroller and Auditor General of India — Constitutional auditor of Union and State accounts (Art 148); reports go to Parliament and Legislatures

FATF = Financial Action Task Force — Global body setting standards against money laundering and terror financing

OECD = Organisation for Economic Co-operation and Development — Club of mostly rich economies

UNCAC = UN Convention against Corruption — Treaty of 2003; India ratified in 2011

RTI = Right to Information — Citizens can seek records from public authorities under the RTI Act, 2005

AP = Andhra Pradesh — State in south India

PCA = Prevention of Corruption Act, 1988 — Law punishing bribery and corruption by public servants

CVC = Central Vigilance Commission — Apex vigilance body against corruption in central services

GDP = Gross Domestic Product — Total value of goods and services produced within a country in a year

NGO = Non-Governmental Organisation — Private voluntary body working for social causes

MGNREGA = Mahatma Gandhi National Rural Employment Guarantee Act, 2005 — Legal guarantee of 100 days of wage work to rural households

CBI = Central Bureau of Investigation — Premier central investigating agency; derives powers from the DSPE Act, 1946

ED = Enforcement Directorate — Agency that enforces PMLA and FEMA

IT = Information Technology — Computing and digital technology (for example, the IT Act, 2000)

WTO = World Trade Organization — Global body for trade rules and disputes

PDS = Public Distribution System — Network supplying subsidised food grains

CORRUPTION: LOKPAL IN INDIA

PYQ None quoted in the handout (handout-only chapter)

✎ *Ombudsman idea, weak state Lokayuktas, the Lokpal Act 2013 (composition, jurisdiction, procedure, removal), its problems and the 2nd ARC view, then the Whistleblower Act 2014 and PCA with its 2018 amendment.*

1809 Sweden ombudsman

1967 UK commissioner

1968 first Lokpal bill

1971 Maharashtra Lokayukta

1988 PCA

2013 Lokpal Act

2014 Whistleblower Act

2018 PCA amended

2019 Lokpal constituted, Justice PC Ghosh

THE OMBUDSMAN IDEA AND INDIAN JOURNEY

Place	Detail
Sweden	first in world, 1809
UK	Parliamentary Commissioner, 1967
USA	some states (Hawaii, Oregon, Nebraska), not federal

First ARC: two-tier

→ Lokpal: Secretary rank and above, Union and State
→ Union Lokayukta: below Secretary, Union level
→ State Lokayuktas: similar cases within states

Indian timeline

→ 1968: first Lokpal bill
→ 1971: Maharashtra first state Lokayukta
→ 2013: Lokpal Bill passed
→ 2019: Lokpal constituted, Justice PC Ghosh, nine members

🗺️ STATE EXPERIENCE: "PAPER TIGERS"

🗺️ State Lokayuktas: not satisfactory

→ Flooded with complaints: depends on lower departments handling petty ones
→ Poor effectiveness: weak investigate and prosecute powers
→ Inter-state differences: qualifications, tenure, functions, powers, suo-moto; no separate investigation agency
→ Survival at state's will: Odisha 1992 by ordinance, Haryana 1999 abolished
→ Paper tigers: mostly recommendatory
→ Corruption within: extortion allegations
→ Set-up to intimidate opponents

Five Pink Iguanas Sing Poor Choir Songs – Flooded · Poor effectiveness · Inter-state differences · Survival at state's will · Paper tigers · Corruption within · Set-up to intimidate

👥 LOKPAL ACT, 2013: STRUCTURE

Seat	Qualification
Chairperson	is or was CJI or SC judge, or eminent person with 25 years in vigilance, anti-corruption, law, finance, administration, management
👥 8 members (9 in all)	half judicial, half non-judicial
Judicial	SC judge or High Court Chief Justice
Non-judicial	eminent, 25 years in same fields
Affirmative action	50% SC, ST, OBC, minorities, women

👥 Members must not be

→ MP, MLA or MLC
→ member of a local body
→ under 45 years
→ removed or dismissed from govt service
→ holder of office of profit, business or profession
→ affiliated with a political party

My Lord, All Rules Obey Principles – MP/MLA/MLC · Local body · Age below 45 · Removed from service · Office of profit or business · Political party

🗳️ Appointment (name and seal of President)

→ Selection committee: PM (chair), Speaker LS, LoP LS, CJI or SC judge nominated, eminent jurist chosen by first four
→ optional 7-member search committee (also 50% SC, ST, OBC, minorities, women); selection committee may go beyond its names

SCOPE – Speaker · CJI or nominee · Opposition Leader · Prime Minister (chair) · Eminent jurist

Handout alert: Act does not say who replaces the LoP if none is recognised in Lok Sabha: a gap in the law, not a rule.

Point	Rule
⏳ Tenure	5 years or age 70
🗳️ Reappointment	none, except member elevated to Chairperson if total tenure not above 5 years
💰 Salary	Chairperson = CJI; members = SC judge; terms not altered to disadvantage
⏳ After retirement	disabilities like CVC + no election in India for 5 years
Organisation	Inquiry wing (Director of Inquiry), Prosecution wing (Director of Prosecution), Secretary; from panel recommended by Govt of India

SHOULD THE PM BE COVERED?

2nd ARC opposed

→ cripples administration during probe
→ foreign powers may malign PM
→ PM already covered under PCA 1988

Against that view

→ CBI under DoPT, so PM's control hampers probe
→ PM should lead by example (some states cover CM)
→ Art 361 exempts only President and Governors

Act: partial coverage. No probe of PM decisions on public order, internal and external security, atomic energy, space (O S A S); inquiry needs two-thirds of full bench. ✅

⚡ JURISDICTION, PROCEDURE, POWERS

Scope: PM, Union Ministers, MPs, Group A to D officials, boards, corporations, societies, trusts govt-funded (over Rs 10 lakh a year). Any individual can complain on PCA 1988 offences. 💡

📝 Procedure

Complaint (PCA 1988 offence) → Preliminary inquiry: Inquiry Wing, CVC or CBI, 60 days → Lokpal reviews, hears public servant → Outcome → Investigation and prosecution (Bench of min 3)

Preliminary inquiry

→ public servant's explanation first (prima facie)
→ Group C and D complaints go to CVC
→ 60 days

Outcomes

→ full investigation
→ departmental proceedings
→ close case
→ proceed against false complainant

ACID – Action against false complainant · Close · Investigation ordered · Departmental proceedings

⚡ Powers

→ Sanction shift: replaces appointing/dismissing authority under Sec 197 CrPC and Sec 19 PCA
→ search, seizure, asset attachment, civil court powers (CPC)
→ Superintendence over CBI in cases it refers
→ Annual declaration of assets and liabilities of public servants
→ Annual Report to President, tabled in Parliament with memorandum on why recommendations were rejected
→ Limitation: 7 years

Handout alert: scope says Group A to D, procedure sends C and D to the CVC. Read: jurisdiction on paper, but C and D complaints go to CVC.

👥 REMOVAL OF MEMBERS

Ground	Process
Misbehaviour	SC reference, only if signed by 100 MPs
Other grounds	President on advice of Council of Ministers: insolvency, private employment, infirmity of body or mind, prejudicial financial interest

⚡ ISSUES, FUNCTIONING SINCE 2019, 2nd ARC

⚠️ Issues

- → jurisdiction too wide
- → convoluted appointment
- → PM only partly covered
- → 7-year limit
- → intimidation of NGOs
- → delays in appointments

Since 2019

- → allegations of emasculating via legislation
- → rules for complaint form, asset disclosure delayed
- → by 2020 Prosecution and Investigation Wings not set up
- → rules for preliminary inquiry, investigation delayed

Sep 2019	2019-20	2020-21	2021-22
1000 of 1065 disposed	1427 complaints	110	12 till August

Handout alert: "1000 of 1065" (by Sep 2019) and "1427 in 2019-20" use different bases, not reconciled. Quote as given; stress the sharp fall 1427, 110, 12.

🔧 2nd ARC recommendations

- → Constitutional status (from statutory) for Rashtriya Lokayukta and State Lokayukta
- → Rashtriya Lokayukta: Union Ministers, MPs, State CMs
- → State Lokayukta: State Ministers, legislators
- → CVC: civil servants
- → Local Bodies Ombudsman: political and administrative officials

Lokpal not a panacea

- → corruption is a hydra-headed monster, needs multi-pronged strategy
- → huge bureaucracy size
- → petty complaints efficiency
- → inadequate judicial process
- → no ombudsman, citizen empowerment, willingness to complain as in developed nations

Hydras Smile, Probing Just Numbers – Hydra-headed · Size of bureaucracy · Petty complaints · Judicial inadequacy · No citizen empowerment

📜 WHISTLEBLOWER ACT, 2014 (PIDPI)

PIDPI Act, 2014: Public Interest Disclosure and Protection of Individuals making Disclosure Act. 💡

Point	Rule
Who	anyone, about any public body or agency
Disclosure to	PM for Union Ministers · CM for State Ministers · Presiding Officer for legislators · CVC for civil servants
📬 Anonymous complaints	not allowed
🛡️ Protection	CVC can issue directions
📬 Frivolous complaints	2 years' jail

📜 2015 amendment bill	lapsed; proposed Official Secrets Act, 1923 override

Pay Careful Public Complaints – PM (Union Ministers) · CM (State Ministers) · Presiding officer (legislators) · CVC (civil servants)

⚠️ Challenges

→ Lack of anonymity: identity disclosed; Satyendra Dubey (NHAI) murdered
→ Weak organisational implementation: unclear guidelines, awareness
→ Inadequate legal safeguards vs victimisation, career setbacks, harassment, physical harm
→ Rising complaints: 2018 NSE-listed companies got over 3,500

AIRS – Anonymity lacking · Inadequate safeguards · Rising complaints show potential · Slack implementation

📜 Measures (2nd ARC, Law Commission)

→ stronger law, public and private sectors
→ Law Commission framework: confidentiality and anonymity, protection vs victimisation, harassment, bodily harm
→ cover corporate whistleblowers
→ SEBI Tipping Mechanism: reward up to Rs 1 crore for actionable insider-trading information, with confidentiality

📜 PREVENTION OF CORRUPTION ACT, 1988 AND 2018 AMENDMENT

Public servant covers

→ pay or service of government
→ PSU employees
→ local body functionaries
→ judges
→ office bearers of govt-funded cooperatives
→ Public Service Commission members
→ Central and State University employees
→ Deemed University employees (Apex Court 2020)
→ any public duty office incl. MPs and MLAs

2018 change	Detail
Giving a bribe	categorically an offence; coercive corruption: complaint within 7 days = not guilty
Sec 17A	extended to retired civil servants: sanction of appropriate authority
Sec 13(1)(d) diluted	earlier: prosecution for decision benefiting a commercial organisation against public interest
⏳ Jail term	3 to 7 years
Trial	2 years, max 4 years
Commercial organisations	prosecution provisions
Property	attachment or confiscation

COPYCAT – Clause 13(1)(d) diluted · Offence: bribe-giving (7-day window if coerced) · Property attachment · Years 3 to 7 · Commercial organisations · Act Sec 17A to retired · Trial 2 up to 4 years

Handout alert: Problem of Corruption chapter: 17A = permission for preliminary inquiry for all public servants except caught red-handed. Here: 17A extended to retired servants. Both hold: serving, and now retired too.

📜 LOKPAL BILLS: TEN ATTEMPTS

Bill	Introduced by	Fate
1. May 1968	Indira Gandhi	lapsed, LS dissolved
2. Apr 1971	Indira Gandhi	lapsed, LS dissolved
3. Jul 1977	Morarji Desai (Janata)	lapsed, LS dissolved
4. Aug 1985	Rajiv Gandhi	lapsed, LS dissolved
5. Dec 1989	V.P. Singh (National Front)	withdrawn
6. Sep 1996	Deve Gowda (United Front)	lapsed, 11th LS dissolved
7. Aug 1998	A.B. Vajpayee (BJP-led)	lapsed, 12th LS dissolved
8. Aug 2001	A.B. Vajpayee (NDA)	lapsed, 13th LS dissolved 2004
9. Aug 2011	Manmohan Singh (UPA)	withdrawn
10. Dec 2011	Manmohan Singh (UPA)	enacted: Lokpal and Lokayuktas Act, 2013

LAKSHMIKANTH ADDS (follow handout where it differs)

Extras

Ombudsman

→ "ombud" = Swedish for representative; handles abuse of discretion, maladministration, corruption, nepotism, discourtesy; cannot reverse or quash decisions

→ spread: Finland 1919, Denmark 1955, Norway 1962; New Zealand 1962 first Commonwealth

🧑‍🤝‍🧑 First ARC (1966–70)

→ Lokpal for ministers and secretaries; Lokayuktas for other higher officials; judiciary outside; ten bills: first four lapsed, fifth withdrawn, sixth to eighth lapsed, ninth withdrawn, tenth = 2013 Act

CVC and Lokpal

→ Group A and B: CVC sends preliminary report back to Lokpal; Group C and D: CVC proceeds under own powers, subject to Lokpal review

Coverage

→ entities with FCRA foreign donations above Rs 10 lakh covered; fully or partly govt-financed covered, merely govt-aided excluded

Lokayuktas

→ states to legislate within 365 days of 2013 Act; Odisha Act 1970, Maharashtra institution first (1971); appointed by Governor; usually 5 years or 65; advisory

→ LK drawbacks of Act: no suo moto power, stress on form of complaint, heavy punishment for false complaints, no anonymous complaints, legal help to accused, 7-year limit, opaque process for PM complaints

→ Whistleblower Act: personal declaration of good faith; false complaints up to 2 years and fine up to Rs 30,000; not applicable to Special Protection Group

Lakshmikanth differs (timelines): preliminary enquiry 3 months (+3), investigation 6 months (+6 at a time), trial 1 year (+1). Handout: 60 days. Use the handout in class.

Lakshmikanth differs (punishment): Lokpal Act raised PCA maximum 7 to 10 years, minimum 3 under Secs 7, 8, 9, 12 and 2 under Sec 15. Handout: 3 to 7 under 2018 amendment. Use the handout, keep LK in mind.

Lakshmikanth differs (competent authority): LK: at present the CVC (Govt may notify others); handout lists PM, CM, Presiding Officer, CVC by category. Use the handout list.

Recall drill: cover and answer

First ombudsman country and year?	Sweden, 1809	First state Lokayukta?	Maharashtra, 1971
Lokpal Act year; constituted; first Chairperson?	2013; 2019; Justice PC Ghosh	Lokpal composition?	9: Chair + 8, half judicial, 50% SC, ST, OBC, minorities, women; age 45+
Lokpal selection committee?	PM (chair), Speaker, LoP, CJI or nominee, eminent jurist	Tenure, pay, removal?	5 yrs or 70; Chair = CJI, members = SC judge; SC reference signed by 100 MPs
PM coverage limits?	Excludes public order, security, atomic energy, space; two-thirds of full bench	Preliminary inquiry time; limitation; funding bar?	60 days; 7 years; govt-funded bodies above Rs 10 lakh
PCA 2018 changes?	bribe-giving offence (7-day), 17A for retired, jail 3 to 7, trial 2 to 4 years	Whistleblower Act 2014 key rules?	no anonymous complaints; frivolous = 2 years jail; disclosure to PM, CM, Presiding Officer, CVC

Quick brief: abbreviations, schemes, bodies (expansions from notes where given; briefs are general knowledge, verify)

PM = Prime Minister — Head of the Union government

CVC = Central Vigilance Commission — Apex vigilance body against corruption in central services

SC = Supreme Court (or Scheduled Castes, by context) — India's apex court under Art 124; the second meaning is the Art 341 list

PCA = Prevention of Corruption Act, 1988 — Law punishing bribery and corruption by public servants

ARC = Administrative Reforms Commission — Commission recommending reforms in public administration (1st in 1966, 2nd in 2005)

CJI = Chief Justice of India — Head of the Supreme Court

CM = Chief Minister — Head of a State government

ST = Scheduled Tribes — Tribal groups listed under Art 342

OBC = Other Backward Classes — Socially and educationally backward groups eligible for reservation (Art 15(4), 16(4))

CBI = Central Bureau of Investigation — Premier central investigating agency; derives powers from the DSPE Act, 1946

MP = Member of Parliament — Elected or nominated member of Lok Sabha or Rajya Sabha

DoPT = Department of Personnel and Training — Nodal department for civil service policy

CPC = Code of Civil Procedure, 1908 — Law on civil court procedure

SEBI = Securities and Exchange Board of India — Regulator of the securities market

PSU = Public Sector Undertaking — Company owned mainly by the government

FCRA = Foreign Contribution (Regulation) Act — Regulates receipt of foreign money by NGOs and individuals; MHA administers it